SUPPLEMENT NO. 132
July 2026

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinances of May 19, 2026.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xvi
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SH:5	SH:5
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369—371	369—374
425, 426	425, 426
451	451—466
779—802	779—801
1111, 1112	1111, 1112
1125—1128	1125—1128.2
1137, 1138	1137—1138.1
1187—1201	1187—1204
2853, 2854	2853, 2854
2859—2863	2859—2863
2927—2952	2927—2953

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SUPPLEMENT NO. 131
December 2025

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 25-199, enacted November 18, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
801, 802	801, 802
1189—1194.2	1189—1194.2
1245—1252	1245—1252
2853, 2854	2853, 2854
2927—2952	2927—2952

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SUPPLEMENT NO. 130
September 2025

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 25-145, enacted August 19, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
665—675	665—681
1109—1116	1109—1116
1122.1—1126	1123—1126.2
1139—1142	1139—1142.1
1643	1643
1657—1661	1657—1661
1713—1716	1713—1716
1917—1924	1917—1924
2853, 2854	2853, 2854
2859—2863	2859—2863
2927—2952	2927—2952

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SUPPLEMENT NO. 129
April 2025

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 025-027, enacted March 4, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
199, 200	199, 200
1139, 1140	1139, 1140
2853	2853, 2854

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SUPPLEMENT NO. 128
January 2025

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 024-168, enacted December 3, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
435, 436	435, 436
1245, 1246	1245, 1246
1257—1260	1257—1260.1
2853	2853
2927—2952	2927—2952

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SUPPLEMENT NO. 127
October 2024

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 024-103, enacted July 16, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
2.5	2.5
67, 68	67—72
115	115, 116
435—451	435—451
1659, 1660	1659—1661
1919—1930	1919—1930
2853	2853
2859—2863	2859—2863
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SUPPLEMENT NO. 126
April 2024

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 048-24, enacted February 20, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
317—319	317—319
1118.1—1122	1119—1122.1
1137—1149	1137—1150
1249—1263	1249—1271
1705—1728.5	1705—1728.6
1745—1747	1745—1747
1861—1866	1861—1866
2853	2853
2859—2863	2859—2863

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SUPPLEMENT NO. 125
January 2024

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23-152, enacted November 6, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
193—196	193—196
427—430	427—430
2853	2853

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SUPPLEMENT NO. 124
September 2023

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23-117, enacted August 15, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
202.1—204	203, 204
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2927—2952	2927—2952

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SUPPLEMENT NO. 123
July 2023

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22-264, enacted December 20, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
1743—1746	1743—1747
1859, 1860	1859, 1860
2853	2853

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SUPPLEMENT NO. 122
January 2023

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22-243, enacted December 6, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1258.7, 1258.8	1258.7, 1258.8
1301	1301
1307, 1308	1307, 1308
2851, 2852	2851—2853
2927—2952	2927—2952

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SUPPLEMENT NO. 121
August 2022

CODE OF ORDINANCES

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22-161, enacted July 19, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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667—670.3	667—670.5
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1245, 1246	1245, 1246
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1527—1529	1527—1529
1657—1660	1657—1660
1919—1930	1919—1930
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2859—2863	2859—2863
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SUPPLEMENT NO. 120
March 2022

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22-027, enacted February 15, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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2943—2946.1	2943—2946.1
2949—2952	2949—2952

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SUPPLEMENT NO. 119
December 2021

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21-173, enacted November 17, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xv	xi—xv
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SUPPLEMENT NO. 118
September 2021

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21-112, enacted July 20, 2021.

See the Code Comparative Table for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1918.1—1922	1919—1922.1
2851	2851
2859—2862	2859—2862
2931—2940	2931—2940.1

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SUPPLEMENT NO. 117
February 2021

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20-163, enacted December 15, 2020.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 20-163, enacted December 15, 2020.

See the Charter Comparative Table for further information.

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v, vi	v, vi
ix—xv	ix—xv
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131, 132	131—132.1
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317, 318	317, 318
429—446	429—446.1
449, 450	449, 450
513—516	513—516.1
525, 526	525—526.1
529—532	529—532.1
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667—670	667—670
673, 674	673, 674
729	729
783—798	783—798.1
803, 804	803, 804

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1197—1200	1197—1200
1247—1258	1247—1258.8
1261, 1262	1261—1262.1
1305—1308	1305—1308
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SUPPLEMENT NO. 116
December 2020

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20-156 (20-0860), enacted December 1, 2020.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
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1199, 1200	1199—1201
2847	2847
2859—2862	2859—2862
2931—2952	2931—2952

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SUPPLEMENT NO. 115
September 2020

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20-104, enacted July 21, 2020.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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726.1—729	727—729
1657—1660	1657—1660
2847	2847

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SUPPLEMENT NO. 114
September 2019

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19-093, enacted July 16, 2019.

See the Code Comparative Table—Ordinances for further information.

Included in the Charter is:

S.L. 2013-252.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
39—42.1	39—42.1
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SUPPLEMENT NO. 113
June 2019

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19-056, enacted May 21, 2019.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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193, 194	193—194.1
199—203	199—204
1843—1844.1	1843—1844.1
1863—1865	1863—1865
1941—1954	1941
2847	2847
2859—2862	2859—2862
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SUPPLEMENT NO. 112
March 2019

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19-13, enacted February 19, 2019.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
ix—xv	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
196.1—200	197—200.1
559—561	559—561
849—850.1	849—850.1
1847—1850	1847—1850
1923, 1924	1923—1924.1
2847	2847

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SUPPLEMENT NO. 111
December 2018

CODE OF ORDINANCES

City of

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Ordinance No. 18-142, enacted November 20, 2018.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	ix—xv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
779, 780	779, 780
783, 784	783—784.1
789—794	789—794.1
849—850.1	849—850.1
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1139, 1140	1139—1141
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1249—1252	1249—1252.1
1260.1—1266	1261—1263
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September 2018

CODE OF ORDINANCES

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18-104, enacted August 21, 2018.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xvii	xv—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1109—1112	1109—1112
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1245, 1246	1245, 1246
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1859	1859—1860.1
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2859—2862	2859—2862
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July 2018

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18-076, enacted June 19, 2018.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
921, 922	921, 922
1355—1365	1355
1915	1915
1919—1928	1919—1929
2845, 2846	2845, 2846
2859—2862	2859—2862
2927—2930	2927—2930
2939, 2940	2939, 2940
2945—2948	2945—2948
2955, 2956	2955, 2956

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SUPPLEMENT NO. 108
April 2018

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18-003, enacted January 16, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
189, 190	189, 190
427, 428	427, 428
2845, 2846	2845, 2846

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September 2017

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17-94, enacted July 18, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
315—318	315—318
559—561	559—561
667, 668	667, 668
673—675	673—675
1657—1659	1657—1660
1891—1894.1	1891—1894.1
1915	1915
1919—1928	1919—1928
1971	1971
2845, 2846	2845, 2846
2859—2862	2859—2862
2927, 2928	2927, 2928
2947, 2948	2947, 2948
2955, 2956	2955, 2956

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March 2017

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17-27, enacted March 21, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1—SH:3	SH:1—SH:3
911—914	911—914
920.1—930	921—930
1245, 1246	1245, 1246
1265—1269	1265, 1266
1301	1301
1303—1308	1303—1308
1363—1365	1363—1365
1701, 1702	1701, 1702
1706.1—1708	1707—1708.2
1769	1769
1847—1860.1	1843—1859
2845	2845, 2846
2859—2862	2859—2862
2927, 2928	2927, 2928
2935, 2936	2935, 2936
2941—2950	2941—2950.1

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CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 016-93, enacted August 16, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
185, 186	185, 186
195, 196	195—196.1
423—449	423—451
850.1	850.1
2843, 2844	2843—2845
2859—2862	2859—2862
2927—2946	2927—2946.1
2951—2957	2951—2957

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July 2016

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 016-75, enacted June 21, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
668.1—670.2	669—670.3
919, 920	919, 920
1301—1307	1301—1308
1919—1928	1919—1928
2843, 2844	2843, 2844
2859—2862	2859—2862
2943, 2944	2943, 2944

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April 2016

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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16-11, enacted January 19, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
1047	1047
1111	1109—1112
1123—1124.2.1	1123—1124.2.1
1130.1—1132	1131—1132.2
2843, 2844	2843, 2844
2953, 2954	2953—2954.1

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SUPPLEMENT NO. 102
January 2016

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15-0128, enacted October 20, 2015.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 15-0151, adopted December 15, 2015.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
11—12.1	11—12.1
19, 20	19, 20
117	117
855—862.1	855—862.1
909, 910	909, 910
919, 920	919—920.1
2843, 2844	2843, 2844

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September 2015

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15-0123, enacted September 15, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
185—196	185—187
	189—203
431, 432	431, 432
611	611
613—615	613—616
779—799	779—799
909—942	909—930
1001	1001
1003—1006	1003—1006
1189—1199	1189—1200
1355	1355
1357—1365	1357—1365
1701	1701—1702.2
1711—1728.3	1711—1728.3
1737, 1738	1737, 1738
1893, 1894	1893, 1894
2843	2843, 2844
2859—2863	2859—2862
2927—2956	2927—2957

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May 2015

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15-013, enacted January 6, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xvii	xv—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
185	185, 186
195, 196	195, 196
855—862	855—862.1
1245	1245, 1246
1265, 1266	1265—1269
1413—1415	1413—1415
2843	2843
2859—2863	2859—2863
2927—2934	2927—2934.1

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September 2014

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14-0299, enacted August 19, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
425—426.1	425—426.2
429—436	429—436.3
440.1—449	441—449
911—918.1	911— 918.2
1187	1187
1197, 1198	1197—1199
1250.1—1252	1251—1252.2
1657—1659	1657—1659
1711, 1712	1711, 1712
1918.1—1927	1919—1928
2841, 2842	2841—2843
2927—2946	2927—2946.1
2955, 2956	2955, 2956

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May 2014

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14-44, enacted April 1, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
667, 668	667—668.1
915—916.1	915—916.2
1193—1198	1193—1198
1249—1250.3	1249—1250.2
2841, 2842	2841, 2842

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December 2013

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-141, enacted November 12, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
192.1, 192.2	192.1—192.3
425, 426	425—426.1
1001	1001
1003, 1004	1003—1006
1187	1187
1192.1—1197	1193—1198
1257—1260	1257—1260.1
2841, 2842	2841, 2842
2859—2863	2859—2863
2927—2930	2927—2930.1
2937—2942	2937—2942
2947—2948.1	2947—2948.1

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SUPPLEMENT NO. 96
September 2013

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-115, enacted August 20, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
185	185
195, 196	195, 196
559, 560	559, 560
781—796	781—799
849, 850	849—850.1
1135, 1136	1135—1136.1
1187	1187
1189—1192	1189—1192.1
1257—1264	1257—1266
1917, 1918	1917—1918.1
2841, 2842	2841, 2842
2931—2948.1	2931—2948.1
2955, 2956	2955, 2956

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SUPPLEMENT NO. 95
July 2013

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-93, enacted June 18, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
559—561	559—561
1123—1124.2	1123—1124.2.1
1657—1659	1657—1659
1709—1714	1709—1714
1725—1726.1	1725—1726.1
1919—1927	1919—1927
2841, 2842	2841, 2842

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-115, enacted August 20, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
185	185
195, 196	195, 196
559, 560	559, 560
781—796	781—799
849, 850	849—850.1
1135, 1136	1135—1136.1
1187	1187
1189—1192	1189—1192.1
1257—1264	1257—1266
1917, 1918	1917—1918.1
2841, 2842	2841, 2842
2931—2948.1	2931—2948.1
2955, 2956	2955, 2956

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March 2013

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13-16, enacted February 5, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
670.1, 670.2	670.1, 670.2
935—939	935—942
2841	2841, 2842
2859—2862	2859—2863
2939—2942.1	2939—2942.1
2947—2948.1	2947—2948.1

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December 2012

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12-131, enacted November 7, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
194.1—195	195, 196
1361—1364	1361—1365
1701	1701
1719—1726.1	1719—1726.1
2841	2841
2859—2863	2859—2862
2939, 2940	2939, 2940
2945, 2946	2945, 2946
2949, 2950	2949, 2950
2955, 2956	2955, 2956

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September 2012

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12-104, enacted September 4, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
1119—1124.4	1119—1124.5
1127, 1128	1127, 1128
1919—1922	1919—1922.1
1925, 1926	1925, 1926
2841	2841

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SUPPLEMENT NO. 91
June 2012

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12-46, enacted June 5, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
1254.1—1260	1255—1260.3
1923—1924.1	1923, 1924
1941	1941
1943—1954	1943—1954
2841	2841
2861—2863	2861—2863
2941, 2942	2941—2942.1
2946.1—2948	2947—2948.1
2955, 2956	2955, 2956

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SUPPLEMENT NO. 90
April 2012

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12-18, enacted March 21, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xvii	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
425, 426	425, 426
791—802	791—796
1248.3—1250	1249—1250.3
2841	2841
2859—2863	2859—2863
2937, 2938	2937, 2938

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SUPPLEMENT NO. 89
January 2012

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 11-204, enacted December 13, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
49, 50	49—50.1
115	115
187—190	187—190.1
1922.1—1924	1923—1924.1
2841	2841
2931, 2932	2931, 2932
2945, 2946	2945—2946.1

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SUPPLEMENT NO. 88
October 2011

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 11-146, enacted July 19, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xix	xi—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
24.1, 24.2	24.1—24.3
31—32.1	31—32.1
115	115
185	185
191—192.2	191—192.2
1413, 1414	1413, 1414
1971—2197	1971
2841	2841
2859—2863	2859—2862
2913, 2914	2913, 2914
2919—2926	2919—2926
2929—2968	2929—2956

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July 2011

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 11-133, enacted June 21, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xix	xi—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1 (following Checklist of up-to-date pages)
559—561	559—561
668.1—670.2	669—670.2
915—916.1	915—916.1
927—930	927—930.1
934.1—937	935—939
1123—1124.4	1123—1124.4
1127—1128.1	1127—1128.1
1701	1701
1704.1—1706	1705—1706.2
1709, 1710	1709, 1710
1723—1726	1723—1726.1
1925, 1926	1925, 1926
2839, 2840	2839—2841
2929—2936	2929—2936
2939, 2940	2939, 2940
2942.1—2946	2943—2946.1
2949—2957	2949—2957

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SUPPLEMENT NO. 86
March 2011

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 11-33, enacted February 15, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xi—xix	xi—xix
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents) SH:1 (following Checklist of Up-to-Date Pages)
187, 188	187, 188
425, 426	425, 426
1703, 1704	1703, 1704
1709—1714 .1	1709—1714
1915	1915
1919—1922.1	1919—1922.1
1927	1927
2839, 2840	2839, 2840
2955—2957	2955—2957

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SUPPLEMENT NO. 85
December 2010

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 10-173, enacted November 16, 2010.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xx	xv—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
915—916.1	915—916.1
930.1—934.1	931—934.1
1245	1245
1247—1248.2	1247—1248.3
1252.1—1254	1253—1254.2
1259, 1260	1259—1264
1363, 1364	1363, 1364
1769—1791	1769
1887—1894.1	1887—1894.1
1900.1—1904	1901—1904
1919—1922	1919—1922.1
1925, 1926	1925, 1926
1971—1973	1971—1973
2013, 2014	2013—2014.1
2143—2154.14	2143, 2144
2839, 2840	2839, 2840
2859—2863	2859—2863
2927, 2928	2927, 2928
2933, 2934	2933, 2934
2941, 2942	2941—2942.1
2945—2952	2945—2952
2955—2957	2955—2957
2966.1—2968	2967, 2968

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SUPPLEMENT NO. 84
September 2010

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 10-124, enacted August 17, 2010.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xi—xx	xi—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1119—1124.3	1119—1124.4
1251—1252.1	1251—1252.2
1361—1364	1361—1364
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1919—1927	1919—1927
1971—1973	1971—1973
2177—2180	2177—2180.1
2839, 2840	2839, 2840
2859—2863	2859—2863
2955—2957	2955—2957

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SUPPLEMENT NO. 83
June 2010

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 10-54 enacted May 18, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1361, 1362	1361, 1362
1725, 1726	1725, 1726
2002.1, 2002.2	2002.1, 2002.2
2003, 2004	2003, 2004
2018.1, 2018.2	2018.1, 2018.2
2081—2084	2081—2084
2839, 2840	2839, 2840
2861, 2862	2861, 2862

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December 2009

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 09-180, enacted November 10, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
791—800	791—800.1
1971, 1972	1971, 1972
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2018.1, 2018.2	2018.1, 2018.2
2839, 2840	2839, 2840
2965, 2966	2965—2966.1

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SUPPLEMENT NO. 81
October 2009

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 09-160, enacted September 15, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1119—1122.2	1119—1122.2
1127, 1128	1127, 1128
1259, 1260	1259, 1260
1361, 1362	1361—1362.1
1985—1990	1985—1990
2002.1, 2002.2	2002.1, 2002.2
2003, 2004	2003—2004.1
2017—2018.1	2017—2018.2
2036.1—2036.4	2036.1—2036.4.2
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2105—2106.1	2105—2106.2
2121—2122.1	2121—2122.1
2191—2194	2191—2194
2837—2839	2837—2840
2861—2862.1	2861—2863
2953—2957	2953—2957

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SUPPLEMENT NO. 80
June 2009

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 09-73, enacted April 21, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv, xvi	xv, xvi
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
913—916.1	913—916.1
1769	1769
1771—1788	1771—1791
1971—1973	1971—1973
1975—1982.1	1975—1982.2
1985—1998	1985—1998.1
2002.1, 2002.2	2002.1, 2002.2
2003, 2004	2003, 2004
2015, 2016	2015—2016.1
2031, 2032	2031—2032.1
2040.10.7, 2040.10.8	2040.10.7—2040.10.9
2107, 2108	2107—2108.1
2129—2132	2129—2132.1
2139—2154.8	2139—2154.7
2169, 2170	2169—2170.1
2193, 2194	2193, 2194
2839	2839
2861—2863	2861—2863
2927, 2928	2927, 2928
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2941, 2942	2941, 2942
2945—2948	2945—2948
2955—2957	2955—2957
2967, 2968	2967, 2968

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SUPPLEMENT NO. 79
March 2009

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 09-33, enacted February 17, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xx	xv—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1778.3—1780	1779—1780.1
1785—1788	1785—1788
1923—1924.1	1923—1924.1
1982.1	1982.1
1987—1990	1987—1990.1
2008.1—2008.4	2008.1—2008.4
2035, 2036	2034.1—2035
2092.3—2094	2092.3—2094
2113, 2114	2113, 2114
2127—2128.1	2127—2128.2
2197	2197
2837, 2838	2837—2839
2967, 2968	2967, 2968

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SUPPLEMENT NO. 78
December 2008

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 08-283, enacted November 18, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
iv.i	iv.i
xiii—xvi	xiii—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
559—561	559—561
667, 668	667—668.1
791—796	791—802
1129, 1130	1129, 1130
1251, 1252	1251—1252.1
1919—1922.1	1919—1922.1
1982.1	1982.1
1989, 1990	1989, 1990
2078.1—2078.3	2078.1—2078.3
2837, 2838	2837, 2838
2859—2863	2859—2863
2937, 2938	2937, 2938
2943, 2944	2943, 2944
2954.1—2957	2955—2957

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SUPPLEMENT NO. 77
September 2008

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 08-241, enacted September 2, 2008.

See the Code Comparative Table for further information.

Included in the Charter is:

Chapter 48 of the 2008 Session Laws.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
iv.i	iv.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
13—18	13—18.1
115	115
559—561	559—561
1645—1659	1645—1659
1721—1728	1721—1728.3
1775—1778.3	1775—1778.3
1859—1860.1	1859—1860.1
1923, 1924	1923—1924.1
1982.1	1982.1
1993, 1994	1993, 1994
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2040.10.7, 2040.10.8	2040.10.7, 2040.10.8
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2051, 2052	2051, 2052
2059, 2060	2059, 2060
2078.1, 2078.2	2078.1, 2078.2
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2112.1, 2112.2	2112.1, 2112.2
2117—2122	2117—2122.1
2133—2136	2133—2136.2
2139, 2140	2139, 2140
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2153, 2154	2153, 2154
2166.1—2166.4	2166.1—2166.4
2173, 2174	2173—2174.1

Remove old pages	*Insert new pages*
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2837, 2838	2837, 2838
2919—2920.1	2919—2920.1
2923, 2924	2923, 2924

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SUPPLEMENT NO. 76
June 2008

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 08-135, enacted May 20, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1982.1	1982.1
1985—1990	1985—1990
2002.7—2004	2002.7—2004.1
2040.9, 2040.10	2040.8.1—2040.9
2040.10.7, 2040.10.8	2040.10.7, 2040.10.8
2059, 2060	2059, 2060
2073, 2074	2073—2074.1
2078.1, 2078.2	2078.1—2078.3
2107—2110	2107—2110.1
2112.1, 2112.2	2112.1, 2112.2
2112.5, 2112.6	2112.5—2112.6.1
2137, 2138	2137—2138.1
2166.1, 2166.2	2166.1—2166.2.1
2172.1	2172.1
2191—2194	2191—2194
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SUPPLEMENT NO. 75
April 2008

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 08-40, enacted March 4, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
667—670	667—670
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1919—1922	1919—1922.1
1925—1927	1925—1927
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2036.1, 2036.2	2036.1, 2036.2
2095, 2096	2095, 2096
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2953, 2954	2953—2954.1

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SUPPLEMENT NO. 74
December 2007

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-259, enacted November 20, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xix	xv—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1111	1111
1118.1—1122.1	1119—1122.2
1133—1138	1133—1140
1245	1245
1250.1—1257	1251—1260
1919—1922	1919—1922
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1979, 1980	1979, 1980
1982.1	1982.1
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1997, 1998	1997, 1998
2001—2002.2	2001—2002.2
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2023—2036.4	2023—2036.4
2040.3, 2040.4	2040.3, 2040.4
2040.10.1, 2040.10.2	2040.10.1, 2040.10.2
2040.10.5—2040.10.8	2040.10.5—2040.10.8
2051—2062	2051—2063
2068.3, 2068.4	2068.3, 2068.4
2072.1—2078.1	2073—2078.2
2084.1—2092	2085—2092.1
2105—2106.2	2105—2106.1
2112.5, 2112.6	2112.5, 2112.6
2133—2144.3	2133—2143
2154.7—2154.10	2154.7—2154.10
2171, 2172	2171, 2172
2177—2180	2177—2180
2193, 2194	2193, 2194
2835, 2836	2835—2837
2859—2863	2859—2863

2927—2954	2927—2957
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SUPPLEMENT NO. 73
October 2007

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-185, enacted August 21, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xvi	xiii—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
187—190	187—190
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669—670.2	669—670.2
1645—1658	1645—1659
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2135, 2136	2135, 2136
2142.1—2144.1	2143—2144.3
2835, 2836	2835, 2836
2861—2863	2861—2863
2931—2938	2931—2938.1
2948.1, 2948.2	2948.1, 2948.2

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SUPPLEMENT NO. 72
June 2007

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-76, enacted May 5, 2007.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xi—xix	xi—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
187—190	187—190
791—794.2	791—794.2
1971, 1972	1971, 1972
1977—1982.1	1977—1982.1
1985—2002.3	1985—2002.12
2008.1—2010.1	2009—2010.5
2030.1—2036.3	2031—2036.6
2040.10.3—2040.10.8	2040.10.3—2040.10.8
2040.13—2040.15	2040.13—2040.19
2055—2058	2055—2058
2084.1	2084.1
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2159—2166.1	2159—2166.4
2179—2182	2179—2182.2
2189—2196	2189—2197
2833—2835	2833—2836
2965—2968	2965—2968

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SUPPLEMENT NO. 71
March 2007

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 07-28, enacted February 7, 2007.

See the Code Comparative Table—Ordinances for further information.

Included in the Charter is:

Session Laws 2004-5, Chapter 680.

See the Charter Comparative Table—Session Laws for further information.

Remove old pages	*Insert new pages*
xi—xix	xi—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61, 62	61, 62
115	115
787—788.1	787—788.2
791—794	791—794.2
1917—1922	1917—1922
1973	1973
1998.1, 1998.2	1998.1, 1998.2
2002.1, 2002.2	2002.1, 2002.2
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2040.10.5—2040.10.8	2040.10.5—2040.10.8
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2833—2835	2833—2835
2931, 2932	2931, 2932
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SUPPLEMENT NO. 70
January 2007

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 06-245, enacted November 21, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
133, 134	133, 134
1119—1120.2	1119—1120.2
1713, 1714	1713, 1714
1719—1722.1	1719—1722.2
1917—1922	1917—1922
1982.1	1982.1
1998.1, 1998.2	1998.1, 1998.2
2002.1, 2002.2	2002.1, 2002.2
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2092.1—2094	2092.1—2093
2095—2096.1	2095—2096.1
2112.7—2114	2112.7—2114
2833—2835	2833—2835
2967, 2968	2967, 2968

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SUPPLEMENT NO. 69
September 2006

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 06-177, enacted August 15, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii—xiv.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
423	423
430.1—435	430.1—436
441—448	441—449
1917—1922	1917—1922
1982.1	1982.1
2025—2026.1	2025—2026.1
2030.1, 2030.2	2030.1, 2030.2
2040.10.7, 2040.10.8	2040.10.7, 2040.10.8
2059—2062	2059—2062
2833, 2834	2833—2835
2931—2934	2931—2934.1
2939—2942	2939—2942
2945, 2946	2945—2946.1

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SUPPLEMENT NO. 68
June 2006

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 06-119, adopted June 6, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
iv.i	iv.i
xi—xix	xi—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
189, 190	189, 190
1361—1364	1361—1364
1718.1—1722	1719—1722.1
1982.1	1982.1
2001—2002.2	2001—2002.2
2008.1, 2008.2	2008.1, 2008.2
2013, 2014	2013, 2014
2043, 2044	2043, 2044
2051, 2052	2051, 2052
2091—2092.1	2091—2092.1
2147, 2148	2147, 2148
2833, 2834	2833, 2834
2939, 2940	2939, 2940

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SUPPLEMENT NO. 67
March 2006

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 06-32, adopted February 21, 2006.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xiii—xix	xiii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
669—670.2	669—670.2
1248.3—1250.1	1249—1250.1
1981—1982.1	1981—1982.1
2040.10.5—2040.10.8	2040.10.5—2040.10.8
2042.1—2044	2043—2044.1
2051, 2052	2051, 2052
2091, 2092	2091—2092.1
2103—2106	2102.1—2105
2115, 2116	2115—2116.1
2833, 2834	2833, 2834

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SUPPLEMENT NO. 66
December 2005

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-225, adopted November 15, 2005.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xvii—xix	xvii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
426.1—430	427—430.2
911, 912	911—912.1
921—924	921—924
1919—1922.1	1919—1922.1
1981—1982.1	1981—1982.1
2833, 2834	2833, 2834
2859—2863	2859—2863

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SUPPLEMENT NO. 65
September 2005

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-182, adopted September 6, 2005.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xvii—xix	xvii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
193, 194	193, 194
559, 560	559—561
673—675	673—675
781—788	781—788.1
791, 792	791—792.1
1115—1118	1115—1118.1
1718.1	1718.1
1971, 1972	1971, 1972
1981, 1982	1981—1982.1
2071, 2072	2071—2072.1
2127, 2128	2127—2128.1
2831—2833	2831—2834
2859, 2860	2859, 2860
2937—2940	2937—2940
2967, 2968	2967, 2968

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June 2005

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-110, adopted May 17, 2005.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xv—xix	xv—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
187, 188	187—188.1
425, 426	425—426.1
923—924.1	923—924.1
929, 930	929—930.1
1245	1245
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1701	1701
1727, 1728	1727—1738
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2859, 2860	2859—2860.1
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2933—2940	2933—2940
2943—2948.2	2943—2948.3

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March 2005

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 05-50, adopted March 1, 2005.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xiii—xvi	xiii—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
791—796	791—796
1645—1658	1645—1658
2833	2833

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December 2004

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 04-230, adopted November 22, 2004.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xiii—xix	xiii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
189, 190	189, 190
427—428.1	427—428.1
430.1—432	431—432.1
667—670.2	667—670.2
725, 726	725—726.1
789—795	789—796
1195—1197	1195—1197
1253—1255	1253—1255
1721—1724	1721—1724.1
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1853, 1854	1853, 1854
1919—1922	1919—1922
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2831, 2832	2831—2833
2861—2863	2861—2863
2933—2936	2933—2936
2943—2946	2943—2946

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CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 156-04, adopted August 17, 2004.

See the Code Comparative Table—Ordinances for further information.

Included in the Charter is:

Session Laws 2004, Chapter 20.

See the Charter Comparative Table—Session Laws for further information.

Remove old pages	*Insert new pages*
iv.i	iv.i
xi—xix	xi—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
20.1—22	21—22.1
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189, 190	189, 190
559, 560	559, 560
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1357—1362	1357—1364
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1853—1854.2	1853, 1854
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2015—2018	2015—2018.1
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2831, 2832	2831, 2832
2860.1—2863	2861—2863
2939—2946	2939—2946

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SUPPLEMENT NO. 60
June 2004

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 04-70, adopted May 21, 2004.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xiii—xix	xiii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
423	423
443, 444	443, 444
447, 448	447, 448
791, 792	791—792.1
1858.1—1860	1859—1860.1
2008.1—2008.3	2008.1—2008.3
2043, 2044	2043, 2044
2051, 2052	2051, 2052
2831, 2832	2831, 2832

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SUPPLEMENT NO. 59
March 2004

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 04-25, adopted February 17, 2004.

See the Code Comparative Table—Ordinances for further information.

Included in the Charter is:

Session Laws 2003, Chapter 134.

See the Charter Comparative Table—Session Laws for further information.

Remove old pages	*Insert new pages*
xi—xix	xi—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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187, 188	187, 188
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443, 444	443, 444
447, 448	447, 448
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1716.1—1718	1717—1718.1
1984.1—1988.1	1985—1988.2
1995—1998	1995—1998.2
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2015—2018	2015—2018
2046.1—2048	2047—2048.1
2051, 2052	2051, 2052
2091, 2092	2091—2092.1
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2859, 2860	2859—2860.1
2931—2934	2931—2934
2939—2942	2939—2942
2945, 2946	2945, 2946

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SUPPLEMENT NO. 58
December 2003

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 03-250, adopted November 18, 2003.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xiii—xix	xiii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
781—792	781—795
1119—1120.2	1119—1120.2
1787	1787
1919—1922	1919—1922
1925, 1926	1925, 1926
1982.1—1984	1983—1984.1
1987, 1988	1987, 1988
1992.1, 1992.2	1992.1, 1992.2
1995—1996.2	1995—1996.2
2002.1, 2002.2	2002.1, 2002.2
2030.1, 2030.2	2030.1, 2030.2
2035—2036.2	2035—2036.2
2040.10.7, 2040.10.8	2040.10.7, 2040.10.8
2041, 2042	2041, 2042
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2068.1—2068.4	2068.1—2068.4
2097, 2098	2097, 2098
2129—2134	2129—2134
2137—2142	2137—2142
2153, 2154	2153, 2154
2154.7—2154.10	2154.7—2154.10.1
2831	2831, 2832
2937—2940	2937—2940
2965—2968	2965—2968

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SUPPLEMENT NO. 57
September 2003

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 03-191, adopted August 19, 2003.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
	iv.i
xi—xix	xi—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1116.1—1120	1117—1120.2
1655—1658	1655—1658
1971, 1972	1971, 1972
2006.1—2008.2	2007—2008.3
2023—2026	2023—2026.1
2101, 2102	2101, 2102
2105—2112.8	2105—2112.8
2831	2831
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SUPPLEMENT NO. 56
June 2003

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 03-112, adopted May 20, 2003.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xiii—xix	xiii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
669—670.1	669—670.2
779	779
791—797	791, 792
1355	1355
1359, 1360	1359—1362
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1951—1954	1951—1954
1971, 1972	1971, 1972
1980.1—1982	1981—1982.1
2000.1—2002	2001—2002.2
2008.3—2010	2009—2010.1
2014.1—2020	2015—2020.1
2025—2030	2025—2030.2
2033—2036	2033—2036.3
2171—2172.1	2171—2172.1
2175—2178	2175—2178
2191—2196	2191—2196
2829, 2830	2829—2831
2859—2863	2859—2863
2927—2940	2927—2940
2943—2948.2	2943—2948.2
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2965—2967	2965—2967

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SUPPLEMENT NO. 55, REVISION
April 2003

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement No. 55, Revision is printed to revise pages in Supplement No. 55 and should be inserted as directed below.

Remove old pages	*Insert new pages*
2040.9—2040.10.4	2040.9—2040.10.4
2129	2129
2141, 2142	2141, 2142
2163, 2164	2163, 2164

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SUPPLEMENT NO. 55
March 2003

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 03-17, adopted January 21, 2003.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xv—xix	xv—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1189—1196	1189—1197
1971, 1972	1971, 1972
1979—1980.1	1979—1980.1
1983—1988.1	1983—1988.1
1992.1—1994	1992.1—1993
1994.3—1996.1	1995—1996.2
2001—2006	2001—2006.1
2013, 2014	2013—2014.1
2045—2046.1	2045—2046.1
2051, 2052	2051, 2052
2073—2074.1	2073—2074.2
2077, 2078	2077—2078.1
2104.3—2106	2104.3—2106
2111—2112.2	2110.1—2112.1
2125—2128	2125—2128
2137—2142.2	2137—2142.2
2154.1, 2154.2	2154.1, 2154.2
2154.7, 2154.8	2154.7—2154.8.1
2191—2192.1	2191—2192.1
2827—2830	2827—2830
2859, 2860	2859—2860.1
2965—2967	2965—2967

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SUPPLEMENT NO. 54
December 2002

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 02-245, adopted December 3, 2002.

See the Code Comparative Table-Ordinances for further information.

Remove old pages	*Insert new pages*
xvii—xix	xvii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1127, 1128	1127—1128.1
1527, 1528	1527, 1528
1919—1922	1919—1922
1925, 1926	1925, 1926
1943—1953	1943—1954
2033—2034.2	2033—2034.2
2040.9, 2040.10	2040.9—2040.10.8
2043—2046	2043—2046.1
2051, 2052	2051, 2052
2127—2130	2127—2129
2132.1—2142.1	2133—2142.2
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2829, 2830	2829, 2830
2945, 2946	2945, 2946
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SUPPLEMENT NO. 53
September 2002

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

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Ordinance No. 02-174, adopted September 3, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1248.1, 1248.2	1248.1—1248.3
2829, 2830	2829, 2830
2861—2863	2861—2863
2953, 2954	2953, 2954

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SUPPLEMENT NO. 52
July 2002

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 02-126, enacted June 18, 2002.

See the Code Comparative Table-Ordinances for further information.

Remove old pages	*Insert new pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
559, 560	559, 560
1003, 1004	1003, 1004
1655—1658	1655—1658
1703—1704.1	1703—1704.1
1773—1774.1	1773—1774.1
1917, 1918	1917—1918.1
1943—1952	1943—1953
1971—1973	1971—1973
2040.9—2040.12	2040.9—2040.15
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SUPPLEMENT NO. 51
March 2002

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 02-23, enacted February 19, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
425, 426	425, 426
669—670.1	669—670.1
2051, 2052	2051, 2052
2065—2068	2065—2068
2123—2128	2123—2127
2829	2829

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SUPPLEMENT NO. 50
November 2001

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 01-212, enacted November 8, 2001.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 49
September 2001

CODE OF ORDINANCES

City of

GREENSBORO, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 01-150, enacted June 19, 2001.

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GREENSBORO

CODE OF ORDINANCES

GENERAL ORDINANCES OF THE CITY

Published in 1988 by Order of the City Council

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OFFICIALS

of

GREENSBORO, NORTH CAROLINA

AT THE TIME OF THIS CODIFICATION

V. M. Nussbaum, Jr.
Mayor

Alma S. Adams
Dorothy Bardolph
Joanne W. Bowie
William J. Burckley
Earl Jones
Robert W. Mays
W. K. Phipps
Joanne W. White
City Council

William H. Carstarphen
City Manager

Jesse L. Warren
City Attorney

Nancy J. McPeak
City Clerk

CURRENT OFFICIALS
of
GREENSBORO, NORTH CAROLINA

Yvonne J. Johnson
Mayor

Michael L. Barber
T. Dianne Bellamy-Small
Sandra Anderson Groat
Zachery Matheny
Robert V. Perkins
Mary Rakestraw
Trudy Wade
Goldie F. Wells
City Council

Mitchell E. Johnson
City Manager

A. Terry Wood
City Attorney

Elizabeth H. Richardson
City Clerk

PREFACE

This Code constitutes a complete recodification of the ordinances of the City of Greensboro, North Carolina of a general and permanent nature.

Source materials used in the preparation of the Code were the 1961 Code, as supplemented through March 16, 1987, and ordinances subsequently adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this volume, the reader can locate any section of the 1961 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order and the various sections within each chapter have been catchlined to facilitate usage. Footnotes which tie related sections of the Code together and which refer to relevant state laws have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The numbering system used in this Code is the same system used in many state and municipal codes. Each section number consists of two component parts separated by a dash, the figure before the dash referring to the chapter number and the figure after the dash referring to the position of the section within the chapter. Thus, the first section of Chapter 1 is numbered 1-1 and the second section of Chapter 1 is 1-2. Under this system, each section is identified with its chapter and at the same time new sections or even whole chapters can be inserted in their proper place simply by using the decimal system for amendments. By way of illustration: If new material consisting of three sections that would logically come between sections 1-1 and 1-2 is desired to be added, such new sections would be numbered 1-1.1, 1-1.2 and 1-1.3 respectively. New chapters may be included in the same manner. If the new material is to be included between Chapters 2 and 3, it will be designated as Chapter 2.5. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Indices

The indices have been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by municipal officials and employees. There are numerous cross references within each index which stand as guideposts to direct the user to the particular item in which he/she/they is interested.

Looseleaf Supplements

A special feature of this Code to which the attention of the user is especially directed is the looseleaf system of binding and supplemental servicing for the Code. With this system, the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the appropriate page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Successfully keeping this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publishers that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The publication of this Code was under the direct supervision of Roger D. Merriam, Supervising Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publishers are most grateful to Mr. Jesse L. Warren, City Attorney and his staff, for their cooperation and assistance during the progress of the work on this Code. It is hoped that their efforts and those of the publishers have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

MUNICIPAL CODE CORPORATION
Tallahassee, Florida

ADOPTING ORDINANCE

Ordinance No. 88-20

An Ordinance Adopting and Enacting a New Code for the City of Greensboro, North Carolina; Providing for the Repeal of Certain Ordinances Not Included Therein; Providing a Penalty for the Violation Thereof; Providing for the Manner of Amending Such Code; and Providing When Such Code and This Ordinance Shall Become Effective.

Be It Ordained by the City Council of the City of Greensboro, North Carolina:

Section 1. The Code entitled the "Greensboro Code of Ordinances" published by Municipal Code Corporation consisting of Chapters 1 through 30 is adopted.

Section 2. All ordinances of a general and permanent nature enacted on or before October 21, 1987, and not included in the Code or recognized and continued in force by reference therein, are repealed.

Section 3. The repeal provided for in section 2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this ordinance.

Section 4. Additions or amendments to the Code when passed in the form as to indicate the intention of the city to make the same a part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

Section 5. Ordinances adopted after October 21, 1987 that amend or refer to ordinances that have been codified in the Code, shall be construed as if they amend or refer to like provisions of the Code.

Section 6. That the new Code entitled the "Greensboro Code of Ordinances" shall become effective twenty (20) days after publication of this adopting ordinance.

/s/ Nancy J. McPeak

City Clerk

Adopted: 3 March 1988
Published: 10 March 1988
Effective: 31 March 1988

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From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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11-33	2-15-11	Included	86
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11-78	5- 3-11	Included	87
11-112	6-21-11	Included	87
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11-126	6-21-11	Included	87
11-127	6-21-11	Included	87
11-128	6-21-11	Included	87
11-129	6-21-11	Included	87
11-130	6-21-11	Included	87
11-133	6-21-11	Included	87
2011-111 S.L.	6- 8-11	Included	88
11-145	7-19-11	Included	88
11-146	7-19-11	Included	88
11-151	8-16-11	Omitted	88
2011-177 S.B.	6-15-11	Included	89
11-203	12-13-11	Included	89
11-204	12-13-11	Included	89
12-6	2- 7-12	Included	90
12-9	2-21-12	Included	90
12-18	3-21-12	Included	90
12-29	4-16-12	Included	91
12-31	4-16-12	Included	91
12-46	6- 5-12	Included	91
12-63	6-19-12	Included	92
12-64	6-19-12	Included	92
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13-132	10-15-13	Included	97
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15-091	6-16-15	Included	104
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24-087	6-18-24	Included	127
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CHARTER*

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*__Editor's note—__The city charter, being Chapter 1137 of the session laws of 1959, ratified on June 18, 1959 is published as enacted; however, the style is made consistent with that of the Code. The source of amendments are shown in history notes.

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Sec. 6.153. Enforcement of payment of assessments.
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Sec. 6.155. Apportionment of assessments.
Sec. 6.156. Change of ownership.
Sec. 6.157. Lands subject to assessment.
Sec. 6.158. Proceedings in rem.
Sec. 6.159. Grass plot and driveway maintenance.
Sec. 6.160. Council may hold in abeyance certain water and sewer assessments.
Sec. 6.161. Abutting property outside city limits.
Sec. 6.162. Acceptance of deed in lieu of taxes or assessments or both.
Sec. 6.163. Authority to acquire entire lot, block or tract.

Chapter VII Miscellaneous

Subchapter A. Claims Against the City

Sec. 7.01. Reserved.
Sec. 7.02. Time of presentation of claims.
Sec. 7.03. Settlement of claims by city manager.

Subchapter B. Claims by the City

Sec. 7.21. Settlement of claims by the city manager.

Subchapter C. Waiver of Governmental Immunity

Sec. 7.41. Authority of city council.
Sec. 7.42. Contract of insurance; payment of premiums.
Sec. 7.43. Actions for negligence.

Subchapter D. Civil Service.

Sec. 7.45. Civil Service Board.

Chapter I

ORGANIZATION AND POWERS

SUBCHAPTER A. INCORPORATION: CORPORATE POWERS AND THEIR EXERCISE

Sec. 1.01. Incorporation and corporate powers.

The City of Greensboro shall continue to be a body politic and corporate by the name of "City of Greensboro." Under that name the city continues to be vested with all property and rights of property which now belong to the corporation; shall have perpetual succession; may have a common seal and alter and renew the same at pleasure; may sue and be sued; may contract and be contracted with; may acquire and hold all such property, real and personal, as may be devised, bequeathed, sold or in any manner conveyed or dedicated to or otherwise acquired by it, and from time to time may hold or invest, sell, or dispose of the same; and shall have and may exercise in conformity with this charter all municipal powers, functions, rights, privileges and immunities of every name and nature whatsoever.

Sec. 1.02. Exercise of power.

All powers, functions, rights, privileges and immunities of the city, its officers, agencies, or employees, shall be carried into execution as provided by this charter or, if this charter makes no provision, as provided by ordinance or resolution of the City Council, and as provided by the general laws of North Carolina pertaining to municipalities, and their officers, agencies, and employees.

SUBCHAPTER B. CITY BOUNDARIES

ARTICLE 1. EXISTING CITY BOUNDARIES

Sec. 1.21. Existing city boundaries.

The corporate limits of the city shall be as follows until changed as provided by law:

BEGINNING at a point on the North line of Friendly Road and the South line of the corporate limits of Guilford College, said point being 200 feet west of the center line of Muir's Chapel Road, and running thence with the North Line of Friendly Road in an easterly direction 2,100 feet, more or less, to Julius A. Coltrane's southeast corner, the southeast corner of the corporate limits of Guilford College; thence with the said corporate limits (North 08 degrees 84 minutes West as stated in the 1955 Session Laws of North Carolina in Chapter 210, page 163) North 07 degrees 06 minutes 30 seconds West as shown on plat of Briarwood Estates approximately 1,385 feet to a point, the northwest corner of lot number 12 of Briarwood Estates; thence South 87 degrees 00 minutes 10 seconds East 581.61 feet to a point, the northeast corner of lot number 13 of said Briarwood Estates; thence South 00 degrees 47 minutes 02 seconds West 950 feet, more or less, to a point in Dr. J. N. Caudles's East line, said point being 250 feet as measured perpendicularly from the center line of Friendly Road; thence in a northeasterly direction parallel with and 250 feet from the center line of Friendly Road approximately 1,590 feet to a point 250 feet West of the center line of Westridge Road; thence in a northeasterly direction parallel with the center line of Westridge Road about 370 feet to a point in the northern boundary of the First Baptist Church property; thence North 84 degrees 43 minutes West 35 feet, more or less, to a point; thence South 86 degrees 41 minutes West 230.99 feet to an iron pipe, the northwest corner of the First Baptist Church property; thence North 76 degrees 49 minutes 30 seconds West 71.54 feet to an iron pipe; thence South 87 degrees 43 minutes 30 seconds West 175.0 feet to an iron pipe in the eastern margin of Jefferson Road, said iron pipe being 664.71 feet in a northern direction from the northeastern corner of Friendly Road and Jefferson Road; thence North 00 degrees 41 minutes West with the eastern margin of Jefferson Road 450.02 feet to an old iron pipe, said point being the southwest corner of Thomas T. Lambeth's property; thence North 87 degrees 44 minutes 08 seconds East 399.8 feet with Lambeth's southern line to an iron pipe; Ruby C. Barry's southwest corner; thence South 64 degrees 47 minutes East 265 feet, more or less, with Ruby C. Barry's southern line to a point, said point being

250 feet in a northwestern direction from the center line of Westridge Road; thence in a northeasterly direction parallel with center line of Westridge Road 4,500 feet, more or less, to a point in the southern line of lot number 32 of Friendly Acres, thence South 85 degrees 03 minutes West 220 feet, more or less, to the southwest corner of said lot number 32 of Friendly Acres; thence North 89 degrees 59 minutes 10 seconds West 1,024.31 feet to an iron pipe; thence North 68 degrees 27 minutes 30 seconds West 1,837.16 feet to an iron pipe; thence North 07 degrees 40 minutes 30 seconds East 692.19 feet to an iron pipe; thence South 89 degrees 36 minutes East 866.54 feet to an iron pipe; thence North 41 degrees 36 minutes 50 seconds East 415.03 feet to an iron pipe; thence South 48 degrees 10 minutes 30 seconds East 113.66 feet to an iron pipe; thence North 05 degrees 48 minutes East 465.41 feet to an iron pipe; thence North 80 degrees 18 minutes West 329.66 feet to an iron pipe; thence North 00 degrees 18 minutes West 432.66 feet to an iron pipe; thence North 88 degrees 29 minutes 30 seconds East 809.29 feet to an iron pipe; thence South 05 degrees 05 minutes 30 seconds West 772 feet to an iron pipe; thence South 05 degrees 46 minutes 20 seconds West 657.27 feet to an iron pipe; thence South 85 degrees 12 minutes 20 seconds East 1,058.97 feet to an iron pipe; thence North 01 degrees 57 minutes East 33.62 feet to an iron pipe; the northwest corner of lot number 35 of Friendly Acres; thence South 54 degrees 05 minutes East 710 feet, more or less, to a point in the Northern line of said lot number 35 of Friendly Acres, said point being 250 feet as measured perpendicularly in a northwestern direction from the center line of Westridge Road; thence in a northeastern direction parallel with the center line of Westridge Road 1,130 feet, more or less to a point in the southern line of Westridge Heights Subdivision; thence North 86 degrees 55 minutes West approximately 750 feet to a point; thence North 02 degrees 07 minutes East approximately 1,500 feet to a point in the Starmount Company line; thence South 87 degrees 53 minutes East 1,104 feet to an iron pipe, the northwest corner of lot number 2, block B, of the Westridge Heights Subdivision; thence continuing South 87 degrees 53 minutes East 130 feet, more or less, to a point in the northern line of lot number 1, block B, of Westridge Heights Subdivision, said point being 250 feet westwardly from the center line of Westridge Road and 168.85 feet northwardly from the northern property line of Pinetop Road; thence in a northern and northeastern direction parallel with the center line of Westridge Road 3,690 feet, more or less, to a point in the MacMillan property, 250 feet southwest of the center line of Whitehurst Road; thence in a northwestwardly direction parallel with and 250 feet from the center line of Whitehurst Road, approximately 1,623 feet to a point in the Davis-Chapman property line; thence with the Davis-Chapman line, 235 feet, more or less, to the southern edge of the Whitehurst Road right-of-way line; thence with the southern margin of Whitehurst Road (the Caffey line) North 84 degrees 47 minutes West, approximately 2,000 feet to an iron pin, Starmount corner, thence North 4 degrees 49 minutes West 10 feet to an iron pin; thence North 25 degrees 39 minutes East along the Starmount-Caffey line, 438.15 feet to an iron pin; thence South 88 degrees 35 minutes East 33.40 feet to an iron pin; thence North .01 degree 28 minutes West 444.3 feet along the Starmount-Caffey line to an iron pin; thence along the Caffey line north 89 degrees .01 minutes East 526.3 feet to an iron pin; thence along the Caffey Guilford Recreation Club line, North 0 degrees 15 minutes West 1,456.50 feet to an iron pin; thence with the Caffey line South 85 degrees 43 minutes East 631.0 feet to an iron pin; thence North 01 degree 33 minutes East, 112.38 feet to an iron pin in the Caffey-Star line; thence with the Caffey-Star line and crossing U. S. Highway No. 220 North 70 degrees 00 minutes East 468.94 feet to a point in the northeastern margin of U. S. Highway No. 220 right-of-way; thence in a southeastwardly direction parallel with and 50 feet from the center line of U. S. Highway No. 220 south 44 degrees .02 minutes East approximately 3,315 feet to a point on the northeast right-of-way line of U. S. Highway No. 220, said point being 250 feet measured perpendicular from the center line of Westridge Road; thence in a northeastwardly direction perpendicular with the center line of the Southern Railway approximately

400 feet to a point 50 feet East of the center line of the Southern Railway; thence parallel with the center line of the Southern Railway North 13 degrees 59 minutes West approximately 3,200 feet to the South line of the Guilford Battleground National Park property; thence with the line of said park property South 87 degrees 17 minutes 45 seconds East 583.75 feet to a marble monument; thence South 07 degrees 48 minutes 15 seconds West 109.80 feet to a marble monument; thence South 86 degrees 41 minutes 45 seconds East 249.00 feet to a marble monument; thence North 01 degree 00 minutes East 119.57 feet to a marble monument; thence South 88 degrees 58 minutes 30 seconds East approximately 629.51 feet to Monument Circle; thence around the outside of said circle on a counter-clockwise direction to the East edge of a road leading North; said road being along the East boundary of Guilford Battleground National Park property; thence with the East line of said road in a northerly direction 1,400 feet to the South line of New Garden Road; thence with the South line of New Garden Road in an easterly direction approximately 335 feet to the northeast corner of the property conveyed to the County of Guilford, North Carolina, by deed recorded in the office of Register of Deeds of Guilford County, N. C., in book 561, page 236; thence with the East line of said county property South 03 degrees 38 minutes West 1,156 feet to property belonging to City of Greensboro; thence with said city property North 88 degrees 41 minutes East 1,316.1 feet to an iron pipe; thence South 02 degrees 30 minutes West 106.4 feet to an iron pipe; thence South 85 degrees 55 minutes East 103.76 feet to the West line of Lawndale Drive Extension; thence South 05 degrees 11 minutes West 454.0 feet to a point; thence South 08 degrees 23 minutes East 417.83 feet to a point; thence North 88 degrees 01 minutes West 160.9 feet to a stone; thence South 02 degrees 21 minutes West 353.05 feet to an iron pipe; thence North 89 degrees 41 minutes West 377.25 feet to an iron pipe; thence South 02 degrees 01 minutes 15 seconds West 1,062.95 feet to an iron pipe; thence North 88 degrees 04 minutes 40 seconds East 767.90 feet to the West line of Lawndale Road; thence southwardly with the West line of Lawndale Road approximately 531.27 feet to the City of Greensboro's corner; thence North 87 degrees 11 minutes 50 seconds West 325.90 feet to an iron pipe; thence South 01 degree 34 minutes East 1,416.13 feet; thence North 88 degrees 29 minutes West 72.53 feet to an iron pipe; thence South 09 degrees 33 minutes West 652.88 feet to an iron pipe; thence still with the city's property North 88 degrees 29 minutes West 573.93 feet to an iron pipe; thence South 00 degrees 53 minutes West approximately 361.9 feet to a point on the City of Greensboro's line, said point being 175 feet as measured perpendicular from the center line of Pisgah Church Road; thence in an easterly direction parallel with Pisgah Church Road approximately 1,850 feet to the West line of Lawndale Drive; thence with the West line of Lawndale Drive in a northwesterly direction approximately 25 feet to a point 200 feet as measured perpendicular from the center of Pisgah Church Road; thence in an easterly direction parallel with said Pisgah Church Road approximately 11,300 feet to the West line of Scotsdale Road; thence crossing Scotsdale Road to the northwest corner of lot number 89 of Jessie Wharton School development; thence North 75 degrees 50 minutes East along the North line of lots number 89 through 75 of said development 449.69 feet to Gordon Road; thence crossing Gordon Road to the northwest corner of lot number 73; thence North 62 degrees 52 minutes East with the North line of lots number 73 through 65, 258.36 feet to the northeast corner of lot number 65; thence with the East line of lot number 65 in a southerly direction 60.00 feet to the northwest corner of lot number 64; thence North 62 degrees 52 minutes East along the North line of lots number 64 through 50, 253.6 feet to the West line of Randolph Road; thence with the west line of Randolph Road in a northwesterly direction to a point 300 feet as measured perpendicularly from the center of Pisgah Church Road; thence in an easterly direction parallel with Pisgah Church Road approximately 500 feet to a point on the extension of F. A. Setzer's West line (the West line of lot number 55 of Jessie Wharton School Development); thence along the extension of Setzer's line in a southerly direction approximately 100 feet to the northwest corner of lot number 55 of the said development; thence

North 62 degrees 54 minutes East along the North line of lots number 55 through 45 to the southwest corner of lot number 40; thence North 7 degrees 16 minutes West with the West line of lot number 40, 37.29 feet to the northwest corner of lot number 40; thence North 84 degrees 44 minutes East with the North line of lot number 40, 240 feet to the West line of Church Street Extension; thence northwardly with the West line of Church Street Extension approximately 90 feet to a point on the extension of the North line of lot number 4 of L. J. Duffy property; thence along that line in an easterly direction about 250 feet to Mrs. Minnie Smith's West line; thence with Smith's West line southwardly to the North line of Pisgah Church Road; thence southwardly across Pisgah Church Road to a point in the South of Pisgah Church Road, said point being eastwardly 200 feet measured at right angles from the center line of Church Street; thence southwardly parallel with the center line of Church Street approximately 3,000 feet to a point 200 feet North of the center line of Denny Road; thence eastwardly parallel to and 200 feet North of the center line of Denny Road and to its extension approximately 4,400 feet to the West line of Yanceyville Road; thence across Yanceyville Road in an eastwardly direction to a point in the East line of Yanceyville Road, said point being 200 feet northwardly from the center line of Rankin Road as measured perpendicular to it; thence in an easterly direction parallel with Rankin Road approximately 3,050 feet to the East line of Summit Avenue; thence continuing eastwardly in the same direction 200 feet to a point; thence in a southerly direction parallel with the East line of Summit Avenue and 200 feet therefrom a distance of approximately 400 feet to the North line of Hanner Street; thence with the North line of Hanner Street and its extension in an eastwardly direction approximately 1,000 feet to a point 200 feet East of Martin Street; thence South 07 degrees 07 minutes West parallel with Martin Street approximately 1,350 feet to the northwest corner of lot number 21 of sheet number 2 of "Rankin Land"; thence in an easterly direction with the North line of lot number 21 approximately 185 feet to David Prevett's northwest corner; thence in an easterly direction with the North lines of David Prevett, R. E. Daney, and T. E. Sykes approximately 1,240 feet to T. E. Sykes' northeast corner on Bryson's line; thence with said Sykes' East line in a southerly direction approximately 270 feet to the North line of an alley, W. W. Lewis's southwest corner; thence in an easterly direction with W. W. Lewis' South line and an extension of his line approximately 750 feet to the East line of A. H. Nuckle's property; thence with Nuckle's East line in a southerly direction approximately 450 feet to Mrs. Samuel Welborn's northeast corner; thence in an easterly direction parallel with McKnight Mill Road approximately 700 feet to Annie A. Sykes' East line; thence with Sykes' East line in a southerly direction approximately 180 feet to the North line of McKnight Mill Road; thence continuing in a straight line across McKnight Mill Road to the south line of said road; thence with the South line of McKnight Mill Road in a westerly direction approximately 130 feet to the northwest corner of the J. H. Kellam Estate; thence with the West line of said Kellam Estate in a southerly direction approximately 1,080 feet to the J. H. Kellam corner in Dr. T. E. Sykes' North line; thence with Sykes' North line South 86 degrees 30 minutes East approximately 950 feet to a stone monument, Dr. T. E. Sykes' northeast corner; thence with Sykes' East line South 02 degrees 30 minutes West 2,178.66 feet to a cedar stake at the water line of North Buffalo Creek; thence continuing in the same direction to the center of North Buffalo Creek; thence with the present city limits line down Buffalo Creek as it meanders approximately 6,850 feet to Mildred F. Lewis' northwest corner on North Buffalo Creek; thence South 1 degree 45 minutes West 411.98 feet to an iron pipe; thence South 2 degrees 28 minutes West 208.0 feet to an iron pipe; thence North 88 degrees 39 minutes West 401.68 feet to an iron pipe; thence North 09 degrees 14 minutes 30 seconds West 56.85 feet to an iron pipe; thence South 84 degrees 02 minutes West 1,418.49 feet to an iron pipe at Alonzo Neal's northwest corner; thence South with Alonzo Neal's West line 250 feet to the northeast corner of the tract purchased by John R. Taylor and wife from Josephine Neal; thence with the eastern line of said tract South 10

degrees 04 minutes West 303.7 feet; thence South 23 degrees West 399 feet to a corner with Higgins; thence with Higgins' East line South 2 degrees West 561 feet to Higgins' corner; thence with Higgins' North line South 85 degrees 25 minutes East 610.7 feet to a corner; thence South 02 degrees 17 minutes East 1,001.34 feet to a corner; thence South 84 degrees 05 minutes East 1,487.76 feet to a corner; thence with Higgins' East line South 04 degrees West approximately 1,200 feet to Ruby T. Davis' northwest corner; thence with Davis' North line in an easterly direction 238 feet to Davis' northeast corner; thence with Davis' East line South 03 degrees 00 minutes West 160 feet to Rufus Chavis' southwest corner; thence with Chavis' South line in an easterly direction about 485 feet to a stake, a corner with Mildred Lewis'; thence with Mildred Lewis' West line South 4 degrees 30 minutes West approximately 320 feet to the North line of Huffine Mill Road; thence with the North line of Huffine Mill Road in an easterly direction approximately 300 feet to a point on the extension of the northeast line of the Mt. Zion School property; thence South 17 degrees 38 minutes East approximately 60 feet to the northeast corner of the Guilford County Board of Education's property; thence with said school line South 17 degrees 38 minutes East 401 feet to Alfred H. Waddell's corner; thence with Waddell's line and the East line of the school property in a southerly direction approximately 200 feet to the North line of the J. Robert Landreth Subdivision; thence with the North line of said subdivision North 89 degrees 32 minutes West approximately 180 feet to the northeast corner of lot number 14 of said Landreth subdivision; thence with the line between Lots 14 and 15 South 00 degrees 28 minutes West 200 feet; thence South 30 feet to the South line of Anderson Street; thence with the South line of Anderson Street in a westerly direction approximately 25 feet to the northwest corner of lot number 32, thence with the line between Lots 32 and 33 South 00 degrees 28 minutes West 230.52 feet to the South line of said Landreth Subdivision; thence North 87 degrees 00 minutes West approximately 70 feet to Rosa Lee McConnell's northeast corner; thence with said McConnell's East line South 05 degrees 32 minutes West 706.0 feet to Rosa Lee McConnell's southeast corner on Lillian Murray's North line; thence with Murray's North line North 82 degrees 53 minutes West 277.5 feet to an iron pipe; thence with Lillian Murray's West line in a southerly direction approximately 310 feet to a stone at an angle point in said line; thence South 09 degrees 33 minutes West along Murray's line and the East line of Ward Heights Subdivision for approximately 1,070 feet to the northwest corner of the G. E. Pridmore property; thence with said Murray's South line in an easterly direction approximately 680 feet to R. W. Tucker's northeast corner; thence with Tucker's East line in a southerly direction approximately 220 feet to a point 300 feet as measured perpendicularly from the North line of East Market Street; thence in an easterly direction parallel with said East Market Street approximately 520 feet to W. A. Fryar's northwest corner; thence with Fryar's West line and its extension in a southeasterly direction approximately 500 feet to the center line of the Southern Railroad leading from Greensboro to Raleigh; thence with the center line of said railroad in a westerly direction approximately 3,640 feet to the East line of the Bessemer Sanitary District; thence with the Bessemer Sanitary District line South 3 degrees 41 minutes West approximately 880 feet to a corner; thence continuing with the Bessemer Sanitary Distirct line North 86 degrees 18 minutes West 1,000 feet to a corner; thence continuing with the Bessemer Sanitary District line South 3 degrees 41 minutes West 2,370 feet to a corner; thence continuing with the Bessemer Sanitary District line North 86 degrees 18 minutes West to a point 150 feet East of the East line of Lowdermilk Street; thence southwardly parallel with the East line of Lowdermilk Street to the North line of Holts Chapel Road; thence southwardly across Holts Chapel Road to the South line of Holts Chapel Road a corner between properties belonging to French P. Wise and Frances A. Wyrick; thence South 6 degrees 31 minutes East 346.09 feet to Wyrick's southwest corner in Heath's line; thence with Wise's South line North 84 degrees 30 minutes West 113 feet to Wise's southwest corner in Carter's line; thence with Carter's line South 3 degrees 45 minutes West about 640

feet to northwest corner of A & T College property; thence with said college property's West line South 0 degrees 24 minutes West 661.73 feet to a corner in Grandview Heights Subdivision as recorded in Plat Book 17, Page 50; thence with the East line of said subdivision South 04 degrees 08 minutes West about 1,850 feet to a point 200 feet South of the South line of McConnell Road as measured perpendicular thereto; thence westwardly 200 feet from and parallel with McConnell Road approximately 1,500 feet to the West line of Woodlawn Dairy Farm Subdivision; thence South 8 degrees West approximately 111 feet to a corner of lot number 19 of Woodlawn Dairy Subdivision; thence North 79 degrees 05 minutes West 114.3 feet to another corner of lot number 19; thence South 04 degrees 40 minutes West 760.5 feet to a stone, the southwest corner of said subdivision; thence with the North line of the Holder property South 84 degrees 57 minutes East 507.0 feet to a stone; thence South 84 degrees 22 minutes East 875.6 feet to a stone, Mrs. Mary Mitchell's northeast corner; thence with the West line of A & T College Farm in a southerly direction approximately 1,200 feet to the present City of Greensboro's corporate limit line; thence continuing with A & T College line and the City of Greensboro's East line in a southerly direction approximately 1,720 feet to the center line of South Buffalo Creek; thence up the creek approximately 7,000 feet to a point 200 feet West of the center of Willow Road; thence southwardly 200 feet West of and parallel with the center line of Willow Road approximately 3,150 feet to the South line of Alamance Road at a point 200 feet West of the center of Willow Road; thence in a westerly direction approximately 500 feet to Hase H. Smith's northwest corner; thence with Smith's West line South 01 degree 21 minutes West 1,465.63 feet to a stone; thence with A. Hoyle Hinkle's North line in a westerly direction approximately 200 feet to Hinkle's northwest corner; thence with Hinkle's West line in a southerly direction approximately 1,340 feet to the northeast line of Highway No. 421; thence crossing said highway to E. D. Holden's northeast corner; thence with Holden's East line South 34 degrees 20 minutes West 200 feet; thence in a westerly direction parallel with Highway No. 421 approximately 360 feet to a point which is 200 feet East of the center line of the Pleasant Garden Road as measured perpendicularly from it; thence in a southwesterly direction 200 feet from and parallel with the center line of the Pleasant Garden Road approximately 1,950 feet to the North line of property belonging to Eula Anthony et al; thence with said Anthony line North 85 degrees 30 minutes West to the eastern margin of Pleasant Garden Road; thence North 85 degrees 30 minutes West across Pleasant Garden Road to a point on the West side of Pleasant Garden Road, Taylor's corner; thence with Taylor's South line North 85 degrees 30 minutes West about 2,700 feet to Taylor's corner; thence continuing with Taylor's line South 6 degrees 45 minutes West 722 feet to corner; thence continuing with Taylor's line South 86 degrees West 1,386 feet to Taylor's corner; thence with Taylor's line North 6 degrees 19 minutes West 564.78 feet to W. C. Pope's Southeast corner; thence along Pope's South line North 85 degrees 53 minutes West approximately 1,800 feet to a point 200 feet East of the center line of South Elm Street; thence southwardly 200 feet from and parallel with the center line of South Elm Street to a point 200 feet South of the center line of Pinecrest Road if extended; thence in a westwardly direction 200 feet distant from and parallel with the center line of Pinecrest Road and its extension about 3,500 feet to a point 200 feet West of the center line of Randleman Road; thence northwardly parallel with the center line of Randleman Road to the South line of the E. D. Foushee Subdivision as recorded in Plat Book 5 page 407; thence along the South line of the E. D. Foushee Subdivision North 84 degrees West about 1,770 feet to southwest corner of said Foushee Subdivision; thence continuing a straight line North 84 degrees West about 1,800 feet to the northwestern side of U.S. No. 29; thence southwestwardly along the northwestern side of U. S. No. 29 about 3,000 feet to a point 175 feet southwardly from the center line of Rocky Knoll Road as measured perpendicular thereto; thence in a westerly direction parallel with Rocky Knoll Road approximately 4,500 feet to the East line of Pinecroft Road; thence crossing Pinecroft Road to a point 175 feet South of the center line of Freeman

Mill Road as measured perpendicular from it; thence in a southwesterly direction parallel with Freeman Mill Road approximately 3,700 feet to a point 175 feet from the center line of Davis Road; thence still in a southwesterly direction parallel with the center line of Davis Road and 175 feet therefrom for approximately 230 feet to a point 175 feet northeast of Twin Oak Drive, the northeast line of lot number 15 of J. W. Blackwelder's Subdivision; thence with the line of lot number 15, 150 feet to the East line of Davis Road; thence southwest with the East line of Davis Road to a point 175 feet southeast of the center line of Freeman Mill Road as measured perpendicular with it; thence in a westerly direction parallel with Freeman Mill Road approximately 4,440 feet to a point 250 feet West of the center line of Groometown Road; thence in a northerly direction parallel with Groometown Road approximately 3,670 feet to the South line of Forbes Drive; thence with the South line of Bowman Park Subdivision in a westerly direction approximately 75 feet to a point on the West line of lot number 106 of Bowman Park Subdivision extended; thence with that line in a northerly direction to the northeast corner of lot number 103; thence in a westerly direction with the South line of a street approximately 310 feet to the point of intersection with the East line of lot number 87 extended; thence with the East line of lots number 87 and 78, 400 feet to the South line of Oakvale Street; thence with the South line of said Oakvale Street in a westerly direction to an intersection with the East line of lot number 50 of Bowman Park Subdivision extended; thence with that line in a northerly direction 250 feet to Elliston Street; thence with the South line of Elliston Street in an easterly direction to a point 250 feet from the West property line of Groometown Road; thence in a northwesterly direction parallel with Groometown Road approximately 380 feet to E. R. Ward's southeast corner; thence with the South line of lot number 20 of said Bowman Park Subdivision in a westerly direction to E. R. Ward's southwest corner; thence in a northerly direction to the northeast corner of lot number 4 of Bowman Park Subdivision; thence with the North line of lot number 4 in a westerly direction 200.2 feet to the East line of High Point Road; thence with the East line of High Point Road in a southerly direction to an intersection with the South line of Lot 79 of Scales-Bernau Place Subdivision extended East across High Point Road; thence North 64 degrees 14 minutes West across the High Point Road to the southeast corner of Lot 79 of the Scales-Bernau Place Subdivision; thence with the South line of Lots 79 through 95, inclusive, of said subdivision North 64 degrees 14 minutes West 2,029 feet to Helen T. Jamison's East line; thence in a southerly direction approximately 35 feet to the North line of Lot 123 of a resubdivision of Carlisle Estates as recorded in Book 19, page 59 in the Register of Deeds office of Guilford County; thence with the North line of lot number 124 North 89 degrees 22 minutes West 249.50 feet to the East line of Fairfax Road; thence continuing on the same line 50 feet to the West line of said road; thence northwardly with the West line of Fairfax Road approximately 262 feet to the southeast corner of lot number 2 of said resubdivision of Carlisle Estate; thence North 83 degrees 49 minutes West 436.46 feet to the southwest corner of lot number 18 of said resubdivision of Carlisle Estates; thence with the West line of lot number 18 North 06 degrees 20 minutes East 93.57 feet to the southeast corner of lot number 132 of Carlisle Estates as recorded in the office of the Register of Deeds of Guilford County, N. C., in Book 8, page 35; thence North 83 degrees 49 minutes 46 seconds West 597.88 feet to the southwest corner of Lot 129 of said Carlisle Estates; thence South 6 degrees 10 minutes 14 seconds West approximately 300 feet to W. R. Campbell's southeast corner; thence with Campbell's South line in a westerly direction approximately 200 feet to W. R. Campbell's southwest corner; thence with Campbell's West line in a northerly direction approximately 100 feet to Herman W. House's southeast corner, the southeast corner of lot number 9 of S. S. Hurt Estate recorded in Plat Book 14, page 54; thence with the South line of Lots 9 through 26 North 84 degrees 12 minutes West 700.71 feet to the southwest corner of lot number 26 of S. S. Hurt Estate; thence crossing the Southern Railroad in a northwesterly direction to the southeast corner of lot number 132 of Hill Top Heights as recorded in the office of the Register of Deeds of Guilford County, N. C., in Plat Book 19, page 12; thence

with the South line of Lots 132 through 149 North 51 degrees 26 minutes West 461.8 feet to the East line of Roediger Road; thence across Roediger Road in a westerly direction 60 feet to the southeast corner of lot number 150; thence with South line of Lots 150 through 157 of Hill Top Heights North 51 degrees 26 minutes West 200 feet to the southeast corner of lot number 158; thence North 50 degrees 09 minutes West 124.37 feet to the southwest corner of lot number 162; thence South 81 degrees 07 minutes 30 seconds West 30.00 feet to the southeast corner of lot number 166; thence North 08 degrees 52 minutes 30 seconds East 98.28 feet to the South corner of lot number 36; thence with the East line of lot number 36 of Hill Top Heights and its extension North 23 degrees 50 minutes 30 seconds East 561.72 feet crossing Hill Top Road to a point in the Pomona Terra Cotta Company's property; thence in a northwesterly direction across said property approximately 1,940 feet to the southwest corner of a tract of land belonging to Pomona Terra Cotta Company as recorded in Deed Book 974, page 40; thence along said Pomona Terra Cotta Company's West line North 5 degrees 52 minutes East 1,845.19 feet; thence North 27 degrees 03 minutes East 215 feet; thence North 60 degrees 04 minutes West 263.95 feet; thence North 60 degrees 25 minutes West 198.38 feet; thence North 16 degrees 05 minutes East 350.78 feet; thence South 83 degrees 07 minutes East about 550 feet to a point 1,000 feet East of the center line of Stanley Road; thence northwardly parallel with the center line of Stanley Road about 2,800 feet to the North right-of-way line of U. S. No. 421; thence northwestwardly along the North right-of-way line of U. S. No. 421 approximately 1,500 feet to a point 200 feet northwardly from the center line of Deep River Church Road as measured perpendicular thereto; thence eastwardly along a line 200 feet distant from and parallel to the center line of Deep River Church Road (Red Road) about 8,200 feet to the East line of property belonging to Worth Williams as recorded in Deed Book 1574, page 289; thence along Williams' East line and its extension North 0 degrees 50 minutes East about 950 feet to the center line of the Southern Railway; thence along the center line of the Southern Railway in a westerly direction about 1,600 feet to a point where the rear lot line of lots number 111 to 157 inclusive on the West side of Manley Avenue of the A. W. Edwards Subdivision as recorded in Plat Book 8, page 51, if extended, intersects the center line of the Southern Railway; thence North 08 degrees 21 minutes West along the above-said rear lot lines if extended about 2,150 feet to a point 200 feet North of the center line of the Winston-Salem Road; thence eastwardly parallel to Winston-Salem Road to a point 200 feet West of the center line of Muirs Chapel Road as measured perpendicular thereto; thence northwardly parallel to and 200 feet West of the center line of the Muirs Chapel Road about 8,000 feet to the north line of Friendly Road, the point of beginning.

Editor's note—The above description is not accurate, as the city has by ordinance annexed property. See. G. S. § 160A-24 et seq. Section 30 of S. L. 1967, Ch. 74 provided as follows: "All extensions and purported extensions of the corporate limits of the City of Greensboro are hereby declared to be valid." A similar provision is found in S. L. 1969, Ch. 141, § 16.

ARTICLE 2. EXTENSION OF CITY BOUNDARIES

Sec. 1.31. Extension of city boundaries.

The General Statutes of North Carolina shall govern all extensions of the city boundaries.

SUBCHAPTER C. CHARTER AMENDMENTS

Sec. 1.61. Incorporation of amendments.

(a) As soon as possible after the adjournment of each General Assembly, the city attorney shall present to the City Council copies of all local laws relating to the property, affairs and government of the City of Greensboro that were enacted by such General Assembly, whether or not amending in terms this charter, which he/she/they recommends be incorporated into this charter. Such recommendations may include suggestions for renumbering or rearranging the provisions of such laws, for providing titles and catchlines, and for such other changes in arrangement and

form that do not change the law as may be thought necessary to implement the purposes of this Section.

(b) After considering the recommendations of the city attorney, the City Council may provide for the incorporation of such laws into this charter.

(c) The purpose of this Section is to enable the city to maintain at all times a current and accurate city charter, organized in clear and orderly fashion, and embracing all pertinent local laws relating to the property, affairs and government of the city.
(Ord. No. 20-163, § 3, 12-15-20)

Chapter II

NOMINATIONS AND ELECTIONS

SUBCHAPTER A. REGISTRATION

Sec. 2.01. Registration for city elections.

Chapter 847 of the Session Laws of 1953, as amended, shall govern the conduct of registration for all city elections, including primaries, but bond elections may be held according to the provisions of the Municipal Finance Act.

SUBCHAPTER B. NOMINATIONS

Sec. 2.21. Candidates for city council and conduct of municipal elections.

All candidates for city council shall file notice of candidacy in accordance with Article 24 of Chapter 163 of the General Statutes of North Carolina [G. S. § 163-291 et seq.] concerning municipal elections. Elections for mayor and city council shall be by the nonpartisan primary and election method set out in North Carolina General Statute 163-294. All such municipal elections shall be held and conducted as provided by Article 23 and 24 of Chapter 163 of the General Statutes [G. S. §§ 163-279 et seq., 163-291 et seq.]. Unless provided otherwise in this Charter, Chapter 163 of the General Statutes shall govern all city elections, and the Guilford County Board of Elections shall exercise all the functions and duties established therein.
(S.L. 1961, Ch. 686, § 1; S.L. 1963, Ch. 55, §§ 1—3; S.L. 1967, Ch. 74, §§ 1, 2; S.L. 1969, Ch. 142, § 1; S.L. 1973, Ch. 213, § 1)

SUBCHAPTER C. GENERAL ELECTIONS

Sec. 2.41. Time of regular municipal elections and mode of election.

Municipal nonpartisan primaries and elections for mayor and city council shall be held biennially and at such times as prescribed by North Carolina General Statute G.S. 163-279.

(1) The city council shall consist of eight (8) members who shall serve for a term of four (4) years.

(2) Mode of election: The city shall be divided into five (5) single-member electoral districts with one member of the city council elected from each district. These five (5) members of the city council shall be apportioned to the five (5) districts so that each member represents, as nearly as possible, the same number of persons. The qualified voters of each district shall nominate and elect a candidate who resides in the district for the seat apportioned to that district. There shall be three (3) members of the city council apportioned to the city at large. All the qualified voters of the city shall nominate and elect candidates for the three (3) seats apportioned to the city at large.

(3) There shall be a mayor who shall be elected separately and at large by all the qualified voters of the city for a term of four (4) years. The mayor shall have a vote on all council matters.

(S.L. 1961, Ch. 686, § 2; S.L. 1973, Ch. 213, § 2; Ord. No. 82-113, § 1(1)—(3), 12-16-82; Ord. No. 83-7, § 1, 2-7-83; Ord. No. 15-0151, 12-15-15)

Sec. 2.42. Guilford County Board of Elections to conduct municipal elections.

All municipal primary elections, regular municipal elections and special elections of the

City of Greensboro shall be held, conducted, supervised and canvassed by the Guilford County Board of Elections as provided for in the general laws of the State. Voting machines of any type approved by the state board of elections shall be used in all municipal primaries and elections. The City of Greensboro is authorized, by agreement, to reimburse the county board of elections for the actual costs involved in the registration of voters and the conduct of municipal elections.
(S.L. 1973, Ch. 213, § 3)

Sec. 2.43. Establishment of electoral districts.

(a) *Adoption of official electoral district boundary map.* Pursuant to Article 4 and Article 5 of Chapter 160A of the General Statutes of North Carolina (G.S. 160A-21, et seq., 160A-59, et seq.), the City of Greensboro is hereby divided into five (5) electoral districts to be known by numbers 1, 2, 3, 4, and 5. Such districts shall be drawn on an official "Electoral District Boundary Map" which shall be retained permanently in the office of the City Clerk. The boundaries of each district under the present corporate limits as it exists on May 15, 2001 are hereby established as shown on said official map dated May 15, 2001 and which map is hereby adopted and incorporated herein by reference and made a part hereof. A separate metes and bounds description shall not be deemed to be required or necessary in establishing electoral district boundaries or any amendments thereto.

(b) *Amendments to district lines.* Pursuant to G.S. 160A-23, the City Council shall have authority to revise, change, alter or amend the electoral district boundaries from time to time in a reasonable manner and as it deems to be in the best interest of the city. In the event that the corporate limits are extended, the nearest electoral district shall be automatically enlarged to include the annexed area therein. However, if in the opinion of the city council, the district lines should be adjusted in some other manner to include the annexed area, it may make such reasonable adjustments as deemed necessary. In addition, from time to time in order to correct population imbalances, the city council shall adjust district lines in such reasonable manner as it deems appropriate and necessary and shall cause the board of elections to be duly notified so that the board may take appropriate action including any adjustments in precinct boundaries.

(c) *Procedure for amendment and official entries on map.* All amendments to electoral district boundaries as approved by motion or resolution of the City Council at a duly authorized meeting thereof, shall be codified by appropriate entries (including the date of amendment) upon the official district boundary map. Such entries shall be made by or under the direction of the city manager and shall be permanently retained in the office of the city clerk.
(Ord. No. 83-7, § 2, 2-7-83; Ord. No. 84-124, § 1, 11-15-84; Ord. No. 91-61, § 1, 5-6-91; Ord. No. 01-112, § 1, 5-1-01; Ord. No. 01-116, § 1, 5-15-01)

Sec. 2.44. Reserved.

Editor's note—Section 2.44, requiring each city council candidate to file an expense statement with the city clerk within ten (10) days following a municipal election, has been superseded and preempted by Chapter 565 of the 1975 Session Laws of North Carolina. Article 22A of Chapter 163 of the General Statutes of North Carolina now applicable to candidates for city council by the above cited act, requires detailed reporting of contributions and expenditures in political campaigns. Such reports are required to be filed with the local board of election which has the duty to administer this law.

Sec. 2.45. Failure of council to give notice of election.

If the Council shall fail to give notice of elections, or to hold or declare the same, each of them as shall be in fault shall forfeit and pay for the equal benefit of the city, and of him/her/them who shall sue therefore, one hundred dollars ($100.00).
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 2.46. Reserved.

Editor's note—Session Laws of 1973, Ch. 213, § 5, repealed § 2.46 relative to the applicability of general statutes to the conduct of elections. The section was amended by S. L. 1961, Ch. 686, § 3.

SUBCHAPTER D. OTHER ELECTIONS

ARTICLE 1. SPECIAL ELECTIONS

Sec. 2.61. Special elections.

The Council shall have the power to call at any time any special election for any purpose expressly authorized by law. The procedure for calling a special election shall be in accordance with North Carolina General Statute 163-287, except as otherwise provided by the City Charter or general law. All bond elections shall be called in accordance with the provisions of general law and such elections shall be held and conducted under the authority of the Local Government Finance Act. Initiative, referendum and recall elections shall be governed by Article 2 of this Subchapter.
(S.L. 1973, Ch. 213, § 6)

ARTICLE 2. INITIATIVE, REFERENDUM AND RECALL

Sec. 2.71. Powers of initiative, referendum and recall.

(a) (1) The voters of the city shall have the power, except as provided in paragraph (2) of this subsection, to propose ordinances to the City Council. If the Council rejects an ordinance proposed hereunder or passes it with amendment, the voters shall have power to approve or reject the proposed or amended ordinance at the polls. These powers comprise the initiative power.

(2) The initiative shall not extend to the proposing of: (i) any part or all of the annual budget; or (ii) any ordinance making or repealing any appropriation of money, fixing the salaries of city officers or employees, or authorizing or repealing the levying of taxes.

(3) Voters seeking to propose an ordinance subject to initiative shall proceed by way of initiative petition addressed to the Council and containing the full text of the proposed ordinance. An initiative petition must be registered with the Guilford County Board of Elections, as required by G.S. 163-218, before it is circulated for signatures. The valid signatures required on the petition must equal twenty-five percent (25%), in number, of the number of persons voting at the last preceding citywide election for City Council members occurring before the registration of the initiative petition. It is not necessary that the signers of the petition have voted in the last election. The petitioner's committee shall have one year from the date of registration with the Board of Elections to file the initiative petition with the City Clerk.

(b) (1) The voters of the city shall have power, except as provided in paragraph (2) of this subsection, to require reconsideration by the Council of any adopted ordinance, including any ordinance initiated under subsection (a) of this Section and adopted by the Council. If the Council fails to repeal an ordinance which it has been required to reconsider, the voters shall have power to approve or reject that ordinance at the polls. These powers comprise the referendum power.

(2) The referendum power shall not extend to (i) any part or all of the annual budget or the property tax levied therein; (ii) to any ordinance making or repealing any appropriation of money or fixing the salary of any officer or employee; or (iii) to any repealing ordinance adopted by the Council in compliance with a referendum petition.

(3) Voters seeking a referendum on any ordinance shall proceed by way of a referendum petition addressed to the council, identifying the ordinance

concerned and requesting that it be either amended, repealed, or referred to the voters of the city. Any referendum petition must be registered with the Guilford County Board of Elections, as required by G.S. 163-218, before it is circulated for signatures. Such registration must be within 30 days after adoption by the council of the ordinance concerned. The valid signatures required on the petition must equal twenty-five percent (25%), in number, of the number of persons voting at the last preceding citywide election for City Council Members occurring before the date of adoption of the ordinance referred. It is not necessary that the signers of the petition have voted in the last election. The petitioner's committee shall have one year from the date of registration with the Board of Elections to file the referendum petition with the City Clerk.

(c) (1) The voters of the city shall have the power, which shall be known as the recall power, to remove from office any member of the city council, including the Mayor.

(2) Voters seeking the recall of any member of the council shall proceed by way of a recall petition addressed to the council identifying the council member concerned, requesting his/her/their removal from office and stating the grounds alleged for his/her/their removal. The grounds for recall must be for cause, misfeasance, malfeasance, nonfeasance, or a violation of the oath of office. A recall petition must be registered with the Guilford County Board of Elections before it is circulated for signatures; however, no recall petition may be registered within six months before a general election involving the members named in the petition. With respect to the Mayor or any council member elected at large, any recall petition must be filed with the city clerk within one year after registration and the valid signatures required on the petition must equal twenty-five percent (25%), in number, of the number of persons voting at the last preceding citywide election for Mayor or city council members occurring before the registration of the recall petition. It is not necessary that the signers of the petition have voted in the last election. With respect to any city council member elected from a district, any recall petition must be filed with the city clerk within one year after registration and the valid signatures required on the petition must equal twenty-five percent (25%), in number, of the number of persons voting at the last preceding district election occurring before the registration of the recall petition. It is not necessary that the signers of the petition have voted in the last district election.

(S.L. 1989, Ch. 896, § 1; S.L. 1991, Ch. 4, § 1; S.L. 2008, Ch. 48, § 1)

Sec. 2.72. Petitioners' committee.

In each initiative, referendum, or recall petition there shall be named a petitioner's committee representing all the petitioners and composed of five members who shall be qualified voters of the city and signers of the petition concerned. The petitioner's committee shall be responsible for registration and circulation of the petition and for its assembling and filing in proper form. The committee may also amend or withdraw its petition as provided in this Article.

(S.L. 2008, Ch. 48, § 1)

Sec. 2.73. Initiative, referendum and recall petitions: Form and sufficiency.

(a) Initiative, referendum and recall petitions shall be governed by the rules regarding form and sufficiency set out in this Section, as well as by such other rules regarding form and sufficiency as the City Council may impose by ordinance consistent with the provisions and with the spirit and purpose of this charter.

(b) The signatures to a petition shall be executed in ink or indelible pencil and need not all be affixed to one paper, but all papers of a

petition shall be of uniform size and style and shall be assembled as one instrument for filing with the city clerk. Each signature shall be followed by the address of the signer. Petitions or petition papers which reasonably comply with these requirements shall be accepted by the clerk without delay upon presentation and their filing shall be completed by his/her/their acceptance. Noncomplying petitions or papers may be rejected by the clerk until they are brought into reasonable compliance.

(c) The clerk shall not accept any petition until it indicates: (1) by name and address, the five petitioners who constitute the petitioners' committee for that petition and (2) the address to which all notices for the petitioners' committee are to be sent.

(d) Any petition shall be certified or determined insufficient which: (1) is validly signed by less than the required number of qualified voters of the city, (2) proposes, or requests repeal of, an ordinance not subject to the power under which the petitioners are proceeding, (3) if a petition, is not registered or filed within the time allowed, or (4) if a recall petition, seeks the removal of an official not subject to recall hereunder.

(e) No signature on a petition paper shall be counted in support of the petition involved if that paper (1) being part of an initiative petition, has not contained or had attached to it throughout its circulation the full text of the proposed ordinance, (2) being part of a referendum petition, has not contained throughout its circulation a clear, concise designation and description of the ordinance concerned, or (3) being part of a recall petition has not contained or had attached to it throughout its circulation a copy of the recall petition identifying the council member concerned and stating the grounds alleged for his/her/their removal.

(f) No signature on a petition paper shall be counted in support of the petition involved if that paper at the time of Filing, does not have attached to it an affidavit, executed by the circulator of that paper, to the effect: (1) that he/she/they personally circulated the paper; (2) that each signature on the paper was affixed in his/her/their presence; (3) that he/she/they believes each signature to be the genuine signature of the person whose name it purports to be; (4) if an initiative petition is concerned, that the full text of the proposed measure was attached to or contained in the accompanying paper throughout its circulation, and that each signer of the accompanying paper had an opportunity before signing to read the full text of the ordinance attached; and (5) if a referendum petition is concerned, that each signer of the accompanying paper had an opportunity before signing to read the designation and description of the ordinance in question; and (6) if a recall petition is concerned, that a copy of the recall petition was attached to or contained in accompanying paper throughout its circulation, and that each signer of the accompanying paper had an opportunity before signing to read the full text.

(g) Upon receipt of a petition that complies with the requirements of subsections (b) and (c) of this Section, the clerk shall examine the petition to determine whether, on its face, it is insufficient under paragraphs (1), (2) or (3) of subsection (d). If he/she/they finds the petition insufficient on its face for any of these reasons, he/she/they shall so certify to the City Council at the next regular Council meeting occurring not sooner than five days after the filing of the petition, and the determination shall be subject to review in the manner provided in subsection (e) of Section 2.75. If he/she/they does not find the petition insufficient for these reasons, the clerk shall determine which signatures on the petition papers may be counted in support of the petition under subsections (e) and (f). He/she/they shall then clearly mark the signatures that may be so counted. Within ten days after the filing of the petition he/she/they shall deliver the petition papers with signatures marked to the Guilford County Board of Elections for a checking of the marked signatures against the registration books. The Board of Elections shall complete its check within 15 days after receipt of the petition papers; except that the said board shall not be obligated to conduct a check in any 30-day period immediately preceding, or in any 10-day period immediately following, a county-wide or city-wide election. Upon completion of its check, the Board of Elections shall forthwith certify to

the city clerk: (1) the total number of registered voters of the city or the municipal electoral district, whichever is applicable, at the time of the relevant election of members of the City Council; and (2) the number of voters registered in the city or in the municipal electoral district, if applicable, whose signatures, marked by the clerk, appear on the petition papers that the board found it necessary to examine. If it was found unnecessary to check all names on the petition papers, this fact shall be indicated on the certificate. The petition papers shall be returned to the city clerk by the Board of Elections together with its certificate.
(S.L. 1963, Ch. 55, § 4; S.L. 1989, Ch. 896, § 2; S.L. 2008, Ch. 48, § 1; Ord. No. 20-163, § 3, 12-15-20)

Sec. 2.74. Referendum petitions; suspension of ordinance after filing.

When, within the time allowed, a referendum petition is filed with the city clerk, the ordinance to which that petition is directed shall immediately be and shall remain suspended from taking effect. This suspension shall terminate when, in accordance with this Article: (1) a final determination is made that the petition concerned is insufficient, or (2) the petitioners' committee withdraws the petition, or (3) the Council reconsiders the ordinance and repeals it without modification. Any action taken pursuant to the respective ordinance while it was in effect shall remain valid.
(S.L. 2008, Ch. 48, § 1)

Sec. 2.75. Initiative, referendum and recall petitions; procedure after filing.

(a) Within five days after the return of the petition papers by the County Board of Elections, the city clerk shall complete a certificate as to whether the petition is sufficient. If the clerk certifies a petition insufficient, his/her/their certificate shall show the particulars wherein the petition is defective. As soon as he/she/they has completed his/her/their certificate, the clerk shall notify the committee of petitioners of the contents of the certificate. If a petition is certified sufficient, the clerk shall present his/her/their certificate to the City Council at its next meeting and that certificate shall be a final determination as to the sufficiency of the petition. If a petition certified sufficient is a recall petition, the clerk shall also give written notice of the action taken to the Council member whose removal is sought. If a petition is certified insufficient under Section 2.73(d)(1), a majority of the committee of petitioners may elect to amend the petition; but if a majority does not so elect to amend the petition, the clerk shall present his certificate to the council at its next meeting and that certificate shall be a final determination as to the sufficiency of the petition.

(b) If a majority of the committee of petitioners elects to amend the petition, then within ten days after notice of the contents of the clerks' [clerk's] certificate, the committee may file, for purposes of amendment, a supplementary petition upon additional papers. The supplementary petition shall be governed by the same requirements as an original petition with respect to such matters as uniformity and assembly of papers, listing of the petitioners' committee, text or designation and description of measures, circulators' affidavits, the writing and counting but not the number of signatures; and the clerk shall proceed as in the case of an original petition. Within two days after receipt of a supplementary petition complying with the requirements of subsections (b) and (c) of Section 2.73, the clerk shall deliver the supplementary petition papers to the county board of elections for a checking of the marked signatures against the registration books. The Board of Elections shall complete its check within five days after receipt of the said petition papers; except that the said board shall not be obligated to conduct a check in any 30-day period immediately preceding, or in any 10-day period immediately following a county-wide or city-wide election. Upon completion of this check, the Board of Elections shall forthwith certify to the city clerk the number of voters registered in the city or in the municipal electoral district, if applicable, whose signatures, marked by the clerk, appear on the supplementary petition papers that the board found it necessary to examine. If it was found

necessary to check all names on the supplementary papers, this fact shall be indicated in the certificate. The supplementary petition papers shall be returned to the city clerk by the Board of Elections together with the certificate.

(c) Within two days after the return of the supplementary petition papers by the Board of Elections, the clerk shall complete a second certificate as to whether the original petition, as amended by the supplementary petition is sufficient. If the clerk certifies the amended petition insufficient, his/her/their second certificate shall show the particulars wherein the petition is still defective. As soon as he/she/they has completed his/her/their second certificate, the clerk shall notify the petitioners' committee of its contents and shall present that certificate to the Council at its next meeting, and that certificate shall be a final determination as to the sufficiency of the petition.

(d) If a petition has been certified insufficient and there is no election to amend it, or if an amended petition is certified insufficient, the clerk shall present his/her/their latest certificate on the petition to the Council at its next meeting.

(e) If, in any one of the ways provided in this Section, a final determination has been made that a petition is insufficient, that determination shall be subject to judicial review, but no further action shall be taken on the petition unless the reviewing court directs otherwise. Such a final determination, even if sustained upon review, shall not prejudice the filing of a new petition for the same purposes.
(S.L. 1963, Ch. 55, § 5; S.L. 1989, Ch. 896, § 3; Ord. No. 20-163, § 3, 12-15-20)

Sec. 2.76. Consideration by the city council and submission to the voters.

(a) When the City Council has been presented with, or has an initiative or referendum petition which has been finally determined sufficient in accordance with the preceding Sections of this Article, it shall proceed at once to hold a public hearing theron and consider that petition. If an initiative petition is concerned, the ordinance it proposes shall at once be introduced and shall undergo all other procedures required for ordinances of the same kind, however, not later than 30 days after the date on which the petition proposing the ordinance is finally determined to be sufficient, the Council shall complete its consideration of the proposed ordinance and shall adopt it with or without amendment or reject it. If a referendum petition is concerned, the ordinance to which that petition is directed shall be reconsidered by the council and, not later than 30 days after the date on which the referendum petition was finally determined sufficient, the Council shall repeal or sustain the ordinance.

(b) If the Council fails to adopt, or adopts with amendment, a proposed initiative ordinance, or if the Council fails to repeal an ordinance reconsidered pursuant to a referendum petition, it shall submit the originally proposed initiative ordinance or refer the reconsidered ordinance concerned to the voters of the city.

(c) When the Council has been presented with, or has, a recall petition which has been finally determined sufficient in accordance with the preceding Sections of this subchapter, it shall thereupon fix a day for holding a recall election unless, prior to Council consideration of the matter, the Council member whose removal is sought has resigned and his/her/their resignation has been accepted by the Council. Any recall election for a council member from an electoral district shall be held within that district only.

(d) An initiative election shall be held at the next regularly scheduled primary or general election in Guilford County for state, county or municipal officials following ninety (90) days after the petition has been finally determined to be sufficient. A referendum or recall election shall be held no sooner than ninety (90) days and no later than one hundred twenty (120) days after the petition has been finally determined to be sufficient, but no recall election shall be held within the first six months or the last six months of the term of office of the member.
(S.L. 1989, Ch. 896, § 4; S.L. 1991, Ch. 4, § 2; S.L. 2008, Ch. 48, § 1; Ord. No. 20-163, § 3, 12-15-20)

Sec. 2.77. Ballots for initiative, referendum, and recall elections.

(a) Any initiative or referendum ordinance to be voted on in accordance with this charter shall be presented for voting by ballot title. The ballot title shall be prepared by the city attorney. The ballot title may differ from the legal title and shall be a clear, concise statement describing the substance of the ordinance without argument or prejudice. If the ballot used in voting is a paper ballot, it shall have below the ballot title the following instructions: "Place a cross (x) in only one of the squares below." Below this instruction shall appear, in the order indicated the following propositions: "FOR THE ORDINANCE" and "AGAINST THE ORDINANCE." Immediately at the left of each of the two propositions set out, there shall be a square in which by making a cross (x) the voter may cast his/her/their vote.

(b) The ballots used in a recall election, if a paper ballot is used, shall contain the following instructions: "Place a cross (x) in one of the squares below." Below the instruction shall appear, in the order indicated, the following propositions: "FOR THE RECALL OF (NAME OF OFFICER)" and "AGAINST THE RECALL OF (NAME OF OFFICER)." Immediately at the left of each of the two propositions thus set out, there shall be a square in which by making a cross (x) the voter may cast his/her/their vote.

(c) If voting machines are used for an initiative, referendum or recall election, the ballot title shall have below it the same two propositions appropriate to its nature as prescribed for the paper ballot, one above the other or one preceding the other in the order indicated, and the voter shall have an opportunity to vote in favor of either of the two propositions and thereby to vote his/her/their preference.

(d) Any number of initiative, referendum or recall proposals may be voted on at the same election and may appear on the same ballot. Paper ballots used for voting on one or more such proposals shall be used for that purpose only. If more than one proposal appears on the same paper ballot or if voted on by paper ballot at the same election, each one shall be presented for voting with ballot title, instruction, propositions, and voting squares as prescribed for single proposals. If voting machines are used, each proposal shall be presented for voting as prescribed for single proposals on voting machines.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 2.78. Withdrawal of initiative and referendum petitions.

(a) A petitioners' committee may withdraw an initiative or referendum petition:

(1) At any time after the City Council, if an initiative petition is concerned, has finally rejected or has adopted with amendment the ordinance proposed; or, if a referendum petition is concerned, has finally refused to repeal the ordinance to which the petition is directed; but the city clerk shall retain the petition papers as part of the official records of the city.

(2) But not later than the fifteenth day immediately preceding the day scheduled for a vote in the city on the proposal concerned.

(b) No petition shall be withdrawn except by written request for its withdrawal filed with the Council within the time limits prescribed for withdrawal and signed by at least four of the five members of the petitioners' committee for that petition. The filing of such request immediately withdraws the petition and there shall be no further action on or under that petition and no city vote or further action pursuant to that petition on the proposal concerned.

Sec. 2.79. Results of election.

(a) If a majority of the voters of the city voting upon a proposed initiative ordinance shall vote in favor of it, the ordinance involved shall thereupon be an ordinance of the city. A referred ordinance not approved by a majority of the voters voting on it shall thereupon be repealed.

(b) If a majority of the votes cast on the question of recalling a Council member be against his/her/their recall he/she/they shall continue in office for the remainder of the unexpired term, but subject to recall as before. If a majority of

such votes be for the recall of the Council member designated on the ballot, he/she/they shall be removed from office.

(c) If a Council member in regard to whom a sufficient recall petition is submitted to the Council shall resign before the election and his/her/their resignation be accepted by the Council, or shall be removed as a result thereof, the vacancy shall be filled in the manner provided by this charter for filling vacancies in such office, except as otherwise provided in subsection (d) of this Section. But a Council member removed by the voters as the result of a recall election, or resigning after a sufficient petition for his/her/their recall has been submitted to the Council shall not be re-elected to fill the vacancy caused by his/her/their own removal or resignation.

(d) If the recall of a majority of the members of the City Council, including the mayor as one of the members, shall be effected at a single recall election, the successors of the Council members recalled shall be elected by the registered, qualified voters of the city at a special municipal election, and said successors shall serve for the unexpired part of the term of the Council members recalled. The members of the City Council who have not been recalled are empowered to call such special election and to make all necessary provisions regarding the same in conformity with the Constitution and general laws of North Carolina. If the recall of the members of the City Council, including the mayor, shall be effected at a single recall election, they shall be continued in office for the sole purpose of calling a special municipal election for the election of their successors as above provided, and of ascertaining and declaring the results thereof.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 2.80. Publication of ordinances; repeal and amendment; conflicts.

No initiative petition proposing an ordinance that addresses essentially the same issue as, or requiring an amendment to, an ordinance that was the subject of a referendum election may be filed within one year after the referendum election.
(S.L. 2008, Ch. 48, § 1)

Chapter III

MAYOR AND COUNCIL

SUBCHAPTER A. COUNCIL; COMPOSITION, TERMS, QUALIFICATIONS, COMPENSATION

Sec. 3.01. Composition and term of the mayor and city council.

The city council shall consist of eight (8) members who shall be elected for a term of four (4) years in the manner provided by Chapter II. In addition, there shall be a mayor who shall be elected for a term of four (4) years in the manner provided by Chapter II.
(S.L. 1973, Ch. 213, § 7; Ord. No. 82-113, § 1(1), 12-16-82; Ord. No. 83-7, § 3, 2-7-83; Ord. No. 15-0151, 12-15-15)

Sec. 3.02. Qualifications and term of mayor and council; vacancies.

(a) Members of the council shall serve for terms of four (4) years, beginning the day and hour of the organizational meeting of the council, but members shall continue to serve until their successors are elected and qualified. The mayor shall continue to serve until his/her/their successor is elected and qualified.

(b) No person shall be eligible to be nominated or elected to the city council from an electoral district or to continue to serve thereon unless he/she/they is a qualified voter and resident of the city and the district which he/she/they represents. No person shall be eligible to be nominated or elected to the city council at large or to continue to serve thereon unless he/she/they is a qualified voter and resident of the city. In addition, no person shall be eligible to be nominated or elected [to] the office of mayor or to continue to serve as mayor unless he/she/they is a qualified voter and resident of the city.

(c) If any elected councilman shall refuse to be qualified, or if there is a vacancy in the office of councilman after election and qualification, or if any councilman be unable to discharge the duties of his/her/their office, the council shall

choose some person for the unexpired term, or during his/her/their disability, as the case may be, to act as councilman, councilmen so selected shall have all authority and powers given under this charter to regularly elected councilmen and shall be subject to recall. Any vacancy occurring in the office of mayor shall be filled by appointment made by the city council for the remainder of the unexpired term.
(S.L. 1973, Ch. 213, §§ 8—10; Ord. No. 83-7, § 4, 2-7-83; Ord. No. 15-0151, 12-15-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 3.03. Compensation of mayor and council.

The city council may fix its own compensation and the compensation of the mayor in such sums as may be just and reasonable. Adjustments in the compensation of the mayor and city council members may be made effective at such time as the council directs, but the salary of an elected official shall not be reduced during the then current term of office unless he/she/they shall agree thereto.
(S.L. 1963, Ch. 55, § 6; S.L. 1967, Ch. 74, § 3; S.L. 1969, Ch. 142, § 2, S.L. 1973, Ch. 213, § 11; Ord. No. 20-163, § 3, 12-15-20)

SUBCHAPTER B. ORGANIZATION AND PROCEDURES

Sec. 3.21. Organizational meetings; oath of office.

The organizational meeting of the council shall be held as set forth under the requirements of G.S. 160A-68. At the organizational meeting, the newly elected mayor and members of the council shall qualify by taking the oath of office prescribed in Article VI, Section 7 of the Constitution. The council shall organize by the choice from its members of a mayor pro tem who shall hold office at the pleasure of the council.
(S.L. 1973, Ch. 213, § 12; S.L. 1975, Ch. 100, § 1; S.L. 1981, Ch. 159, § 1)

Sec. 3.22. Regular and special meetings.

(a) The council shall fix suitable times for its regular meetings, which shall be as often as twice monthly. The mayor, the mayor pro tem, or any two (2) members of the council may at any time call a special meeting by signing a written notice stating the time of the meeting to be delivered to each member or left at his/her/their usual dwelling place at least six (6) hours before the meeting. Meetings of the council may also be held at any time when all members of the council are present and consent thereto. In addition, the council shall comply with the public notice requirements as set forth in G.S. 143-318.12(b).

(b) Except where otherwise specifically provided by this charter, the city council shall have authority to determine the time and place of council meetings, to make such provisions as it may deem wise relative to regular, special, adjourned and continued meetings, to adopt rules of procedure, and generally to regulate the time, place, manner and method of the exercise of its powers. All meetings shall be held within Guilford County except in the case of an emergency. In the event the council is authorized or required by law to hold a joint meeting with the governing body of another municipality or political subdivision of the State of North Carolina, it may at its election meet with the other governing body at a designated place within the area subject to the jurisdiction of the other governing body.
(S.L. 1981, Ch. 159, § 2; Ord. No. 20-163, § 3, 12-15-20)

Sec. 3.23. Meetings; quorum; votes; attendance of members.

(a) All meetings of the council shall be public meetings. The city council shall not by executive session or otherwise formally consider or vote on any question in private session.

(b) The Mayor shall be considered and given the same status as a member of the Council for the purpose of determining a quorum of the City Council and for the purpose of voting. A majority of the members of the Council shall constitute a quorum to do business, but a less number may adjourn from time to time and compel the attendance of absent members by ordering them to be taken into custody. The affirmative vote of a majority of the members of the Council shall be necessary to adopt any ordinance. All other

matters voted upon shall be by majority vote of the Council members present but no ordinance shall be adopted on the same day it is introduced unless six affirmative votes are received in favor of it. Nevertheless, with respect to any ordinance amending the budget to appropriate funds from the Unappropriated Fund Balance of the General Fund, the affirmative vote of seven members of the council shall be necessary to adopt any such amendment, except in case of an emergency. For the purpose of this section, an emergency is an unforeseen occurrence or condition calling for immediate action to avert imminent danger to life, health, or property and to secure the public safety. No member shall be excused from voting except on matters involving the consideration of his/her/their own official conduct or involving his/her/their financial interest.

The reading of the title or substantial portion of the title as set out in the agenda of the council meeting shall constitute the introduction of a proposed ordinance or amendment to a proposed ordinance. In the event the ordinance is not adopted at the council meeting at which it is introduced, the city clerk shall note the date of introduction thereon.

(c) All final votes of the council involving the expenditure of money or the enactment of ordinances shall be by roll call and shall be entered in minutes. It shall not be necessary to call the roll, however, if a voting device is provided which records the vote of each council member for later entry in the council minutes, and the voting device is constructed so that the vote of each council member is visible to the members. The mayor shall announce the result of each vote of the council.

(d) The council shall have power to compel the attendance of absent members by ordering them to be taken into custody.
(S.L. 1961, Ch. 686, § 5; S.L. 1973, Ch. 213, § 13; Ord. No. 83-7, § 5, 2-7-83; S.L. 1989, Ch. 896, § 4.1; Ord. No. 20-163, § 3, 12-15-20)

Sec. 3.24. Continuance of public hearing.

If a public hearing is set for a given date, and a quorum is not then present, the hearing shall be continued until the next regular council meeting without further advertising. The council may continue any public hearing without further advertisement.

SUBCHAPTER C. COUNCIL; ORDINANCE PROCEDURE

Sec. 3.41. Applicable general law provisions.

Except as herein otherwise provided, the adoption, amendment, repeal, pleading and proving of ordinances shall be governed by applicable provisions of general law.

Sec. 3.42. Publication of ordinances.

(a) Any compilation or codification of the city ordinances adopted by the City Council, and ordered printed by it in pamphlet or book form, may be published by publication of the ordinance adopting the compilation or codification, and the ordinances included in the compilation or codification shall be effective not less than twenty days after publication of the adopting ordinance. All requirements of any law as to notice and hearing shall be deemed to be complied with if, prior to the adoption of any compilation or codification of the city ordinances by the city council, a notice is published once a week for four successive weeks as provided in subsection (d) of this section, stating the date, time and place for a public hearing by the council on the adoption of a compilation or codification and that a copy of the same is available in the office of the city clerk for public inspection, and thereafter a public hearing is held by the city council prior to such adoption. Such adoption shall not be construed to be a cessation, however brief, of the ordinances of the city or the city government, but a continuation of the same with such changes as are provided for in the ordinances.

(b) Any new Chapter of the city code whether by way of addition or substitution may be published in its entirety or a notice may be published stating the title of the Chapter, the date of its adoption, and that it will be effective twenty days after the publication of said notice. Any new Chapter published in its entirety shall

become effective upon publication. Any new Chapter published by title shall become effective not less than twenty days after publication.

(c) *Reserved.*

(d) As used in this Section the term "publication" means publication once in some newspaper published in the city which is qualified to carry legal notices, or, if there be no such newspaper[,] by posting in three public places in the city.

(e) In any instance where the Charter of the City of Greensboro or the General Statutes of North Carolina provide that a sale may be had after publication of notice once a week for a number of successive weeks in a newspaper published in the City of Greensboro, the sale may be held on the day following the last day of publication.
(S.L. 1961, Ch. 686, §§ 6, 7; S.L. 2004, Ch. 20, § 1)

Sec. 3.43. Code of ordinances.

(a) The City Council may adopt and provide for the publication and distribution of a codification of the city ordinances, to be known as the "Greensboro Code of Ordinances." The Code of Ordinances shall consist of two separate parts. The first part shall be known as "General Ordinances." The second part shall be known as "Technical Ordinances," and shall include all ordinances regarding the construction of buildings, the installation of plumbing, the installation of electric wiring, the installation of oil appliances, or gas appliances and equipment, and other technical ordinances designated as such by the City Council.

(b) The official copy of the Code of Ordinances, including all ordinances, amending or supplementing the code, shall be kept in the office of the city clerk.

Sec. 3.44. Codification of certain zoning, traffic and related ordinances by appropriate entries upon official map books.

(a) Every ordinance concerning the matters enumerated in subsections (b) and (c) of this Section shall be codified by appropriate entries upon official map books to be retained permanently in the office of the city clerk. Such entries shall be made by or under the direction of the city manager. In conjunction with the introduction of every proposed ordinance concerning any of these matters, a map of the affected area shall be presented to the City Council, but failure to present a map shall not affect the validity of the ordinance.

(b) The ordinances referred to in subsection (a) include all ordinances establishing or amending boundaries of any district under zoning regulations.

(c) The ordinances referred to in subsection (a) also includes all ordinances:

(1) Designating the location of official traffic control devices;

(2) Designating areas or zones where restrictions, prohibitions or other controls are applied with respect to parking, loading, bus stops, and taxicab stands;

(3) Establishing speed limits;

(4) Designating the location of through streets, stop intersections, yield right-of-way intersections, waiting lanes, one-way streets, and truck traffic routes; and

(5) Establishing restrictions, prohibitions, or other controls upon vehicle turns at designated locations.

Sec. 3.45. Ordinances of limited application.

The council shall have the power to pass ordinances which shall be effective only in certain districts or sections of the city, or ordinances which may except from their operations any district or sections of the city, if in the judgement of the city council the condition in such sections or districts require them to be included in or excepted from the provisions of any such ordinance.

SUBCHAPTER D. COUNCIL: POWERS AND DUTIES[; ANTIDISCRIMINATION ORDINANCES]

Sec. 3.61. Exercise of city powers; powers of city council.

(a) The city council shall direct the exercise of all of the powers of the city, except as otherwise provided by this charter.

(b) In addition to other powers conferred upon it by law, the council may adopt and provide for the execution of such ordinances, rules, and regulations, not inconsistent with this charter, as may be necessary or appropriate for the preservation and promotion of the health, comfort, convenience, good order, better government, and general welfare of the city and its inhabitants.

Sec. 3.62. Public accommodations.

The city council shall have the power to adopt ordinances to insure that all public accommodations in the City of Greensboro shall be equally available to all persons without regard to race, color, religion or national origin. Such ordinances may prohibit discrimination by anyone who denies any individual the full and equal enjoyment of the goods, services, facilities, privileges, advantages and accommodations of a place of public accommodation. A place of public accommodation is defined to mean a business, accommodation, refreshment, entertainment, recreation or transportation facility of any kind whose goods, services, facilities, privileges, advantages, or accommodations are extended, offered, sold or otherwise made available to the public.
(S.L. 1981, Ch. 132, § 1)

Sec. 3.63. Equal employment.

The city council shall have the power to adopt ordinances prohibiting acts of employment discrimination based on race, religion, color, creed, national origin or sex, against all persons otherwise qualified, except where specific sex requirements constitute bona fide occupational qualifications necessary to proper and efficient administration. Acts of employment discrimination prohibited by ordinances adopted pursuant to this section shall be the same acts prohibited by Title VII of the Civil Rights Act of 1964, as amended.
(S.L. 1981, Ch. 132, § 1)

Sec. 3.64. Fair housing.

(a) *Legal Authority; Enforcement.* The City Council may adopt ordinances prohibiting discrimination based on race, color, religion, sex, handicap, familial status, or national origin in the sale, rental or advertising of dwellings, in the provision of brokerage services or in the availability of residential real estate-related transactions. Such ordinances may regulate or prohibit any act, practice, activity or procedure related directly or indirectly, to the sale or rental of public or private housing, that affects or may tend to affect the availability or desirability of housing on an equal basis to all persons, and may:

(1) Provide that the appropriate person, commission or committee as designated by the City Council, be granted the power and authority to initiate complaints regarding fair housing;

(2) Provide that the appropriate person, commission or committee as designated by the City Council, be granted the power and duties to take any action deemed necessary by the City Council for the proper implementation and enforcement of the fair housing ordinance;

(3) Allow an aggrieved person one year after an alleged discriminatory housing practice to file a written complaint with the appropriate department, commission or committee as designated by the City Council;

(4) Allow an aggrieved person two years to institute a civil action in the Superior Court Division of the General Court of Justice for an alleged discriminatory housing practice;

(5) Provide that an aggrieved person shall be given an option to either proceed under the City's administrative hearing

process or to file a civil action in the Superior Court Division of the General Court of Justice;

(6) Provide that if an aggrieved person elects a civil action in lieu of the City's administrative hearing process, the City may, if requested by the aggrieved person, commence and maintain the civil action seeking relief on behalf of the aggrieved person;

(7) Provide that investigation and conciliation of fair housing complaints filed pursuant to this Chapter be completed within 100 days after the filing of the complaint, unless it is impracticable to do so;

(8) Provide that violations constitute a criminal offense;

(9) Subject the offender to civil penalties; and

(10) Provide that the City or the aggrieved person may enforce the ordinances by application to the Superior Court Division of the General Court of Justice for appropriate legal and equitable remedies, including but not limited to mandatory and prohibitory injunctions, temporary restraining orders, orders of abatement, actual and punitive damages, and attorney's fees, and the court shall have jurisdiction to grant such remedies.

The City Council may also amend any ordinance adopted pursuant to the provisions contained in this section to ensure that the ordinance remains substantially equivalent to Title VIII of the Civil Rights Act of 1968, as amended by the Fair Housing Amendments Act of 1988.

(b) *Exemptions.* The following shall be exempt from the provisions of any ordinance adopted pursuant to the provisions of this section:

(1) Nothing other than the prohibitions against discriminatory advertising applies to the sale or rental of any single family house by an owner, provided the owner does not own or have any interest in more than three single family houses at any one time, the house is sold or rented without the use of a real estate broker, agent or salesperson or the facilities of any person in the business of selling or renting dwellings, provided further that if the owner selling the house does not reside in it at the time of the sale or was not the most recent resident of the house prior to such sale, the exemption in this paragraph applies to only one such sale in any 24-month period.

(2) Rooms or units in dwellings containing living quarters occupied or intended to be occupied by no more than four families living independently of each other, if the owner actually maintains and occupies one of such living quarters as his/her/their residence.

(3) The rental of a room or rooms in a private house, not a boarding house, if the lessor or a member of his/her/their family resides in the house.

(4) A religious organization, association or society or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, may limit the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion or may give preference to persons of the same religion, unless membership in the religion is restricted because of race, color, sex, handicap, familial status or national origin.

(5) A private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodging which it owns or operates for other than a commercial purpose, may limit the rental or occupancy of such lodging to its members or may give preference to its members.

(6) With respect to discrimination based on sex, the rental or leasing of housing accommodations in single-sex dormitory property.

(7) The sale, rental, exchange or lease of commercial real estate (real property not intended for residential use).

(8) The applicability of any reasonable local, state or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling.

(9) Conduct against a person because the person has been convicted by any court of competent jurisdiction of the illegal manufacture or distribution of a controlled substance as defined in section 102 of the Controlled Substance Act (21 U.S.C. § 802) or Article 5 of Chapter 90 of the General Statutes, the North Carolina Controlled Substances Act.

(10) The provisions of this section regarding discrimination based on familial status do not apply to housing for older persons. As used in this section, "housing for older persons" means housing:

a. Provided under any state or federal program that the Secretary of Housing and Urban Development determines is specifically designed and operated to assist elderly persons (as defined in the state or federal program); or

b. Intended for, and solely occupied by, persons 62 years of age or older; or

c. Intended and operated for occupancy by at least one person 55 years of age or older per unit that satisfy the following criteria:

1. The existence of significant facilities and services specifically designed to meet the physical or social needs of older persons, or if the provision of such facilities and services is not practicable, that such housing is necessary to provide important housing opportunities for older persons; and

2. That at least eighty percent (80%) of the units are occupied by at least one person 55 years of age or older per unit; and

3. The publication of, and adherence to, policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons 55 years of age or older.

d. Housing shall not fail to meet the requirements for housing for older persons by reason of:

1. Persons residing in such housing as of the date of enactment of an ordinance pursuant to this section who do not meet the age requirements of Section 3.64(b)(10)b. or c., provided that new occupants of such housing meet the age requirements of Section 3.64(b)(10)b. or c.; or

2. Unoccupied units, provided that such units are reserved for occupancy by persons who meet the age requirements of Section 3.64(b)(10)b. or c.

e. Housing facilities newly constructed for first occupancy after the date of enactment of an ordinance pursuant to this section shall satisfy the requirements of Section 3.64(b)(10)c. if:

1. When twenty-five percent (25%) of the units are occupied, eighty percent (80%) of the occupied units are occupied by at least one person 55 years of age or older; and thereafter

2. Eighty percent (80%) of all newly occupied units are occupied by at least one person 55 years of age or until such time as eighty percent (80%) of all units in the housing facility are occupied by at least one person 55 years of age or older; and

3. There are units occupied by employees of the housing facility, and family members resid-

ing in the same unit who are under 55 years of age, provided the employees perform substantial duties directly related to the management or maintenance of the housing.

(S.L. 1981, Ch. 132, § 1; S.L. 1991, Ch. 67, § 1; Ord. No. 20-163, § 3, 12-15-20)

Sec. 3.64.1. Subpoena power.

The appropriate commission or committee as designated by the City Council may, by ordinance of the City Council, be granted the power and authority to:

(1) Subpoena and examine witnesses under oath or affirmation; administer oaths, compel the production of documents and any other evidence related to the matter of a complaint; and require answers to interrogatories;

(2) Apply to the Superior Court Division of the General Court of Justice, upon the failure of any person to respond to or comply with a lawful interrogatory, request for production of documents, or subpoena, for an order requiring such person to respond or comply; and the court shall have jurisdiction to issue any order after notice to all proper parties.

(S.L. 1987, Ch. 51, § 1; S.L. 1991, Ch. 67, § 2)

Sec. 3.64.2. Complaints and other records.

The City Council may provide that complaints filed with any commission or committee pursuant to the ordinance and the results of the commission's or committee's investigations, discovery or attempts at conciliation, in whatever form prepared and preserved, may not be subject to inspection, examination, or copying under the provisions of Chapter 132 of the General Statutes.
(S.L. 1987, Ch. 51, § 1)

Sec. 3.64.3. Meetings.

The City Council may provide that the provisions relating to meetings of governmental bodies, under Article 33C of Chapter 143 of the General Statutes, shall not apply to the activity of any commission or committee authorized to enforce the ordinance, to the extent that the commission or committee is receiving a complaint or conducting an investigation, discovery, or conciliation pertaining to a complaint filed pursuant to the ordinance.
(S.L. 1987, Ch. 51, § 1)

Sec. 3.65. Remedies.

Any ordinances adopted by the city council pursuant to Sections 3.62, 3.63 and 3.64 may, in addition to any other remedies permitted by law, provide that any persons aggrieved may apply to the Superior General Court of Justice for appropriate civil relief including any legal and equitable remedies. Violation of an ordinance adopted pursuant to this act does not constitute a misdemeanor under G.S. 14-4.
(S.L. 1981, Ch. 132, § 1)

SUBCHAPTER E. MAYOR

Sec. 3.81. Mayor and mayor pro tem.

The mayor shall be the official head of the city and shall preside at council meetings. He/she/they shall have a vote upon all measures coming before the council but no veto. In the absence from the city or disability of the mayor, the mayor pro tem shall perform his/her/their duties. During the absence or disability of both the mayor or [and] mayor pro tem, the council shall select one of its number to perform such duties.

Either the mayor or the mayor pro tem shall be a proper party to receive and accept service of all complaints, notices and other documents of a judicial nature on behalf of the city. The mayor pro tem, as well as the mayor, shall have the authority to execute contracts, deeds or other legal documents on behalf of the city, such documents having been first approved by the city attorney.
(S.L. 1969, Ch. 142, § 3; Ord. No. 20-163, § 3, 12-15-20)

Chapter IV

ADMINISTRATIVE OFFICERS, POWERS AND PROCEDURES

SUBCHAPTER A. CREATION AND POWERS OF DEPARTMENTS, OFFICES, POSITIONS, BOARDS, COMMISSIONS AND OTHER AGENCIES GENERALLY

ARTICLE 1. IN GENERAL

Sec. 4.01. Offices, positions, departments, etc., continued by charter or created by council.

(a) The following offices and positions are hereby continued under this charter: Mayor, mayor pro tem, city manager, city clerk, city treasurer, city attorney, chief of police, tax collector, fire chief, and building inspector. The Council may assign to the said offices and positions functions in addition to those set forth in this charter, but may not discontinue or transfer from such offices and positions functions assigned to them by this charter, except that:

(1) The position of city clerk and city treasurer, and of assistant city clerk and assistant city treasurer, may be combined, and the functions of any of these four positions may be assigned to the holders of any other of such positions; and

(2) The positions of fire chief and police chief may be combined.

(b) The Council may create, combine, consolidate and abolish; may assign functions to; and may organize as it sees fit the work of:

(1) Other offices and positions in addition to those named in subsection (a); and

(2) Such departments, boards, commissions and agencies as it deems appropriate.

(c) The Council may provide for compensation and expenses to members of any boards and commissions created by the Council in such amounts as, in the opinion of said Council, is deemed to be just and reasonable.
(S.L. 1975, Ch. 100, § 2)

ARTICLE 2. CITY MANAGER

Sec. 4.11. City manager; appointment, qualifications, term and compensation.

The Council shall appoint the city manager, who shall be the administrative head of the city government. He/she/they shall be responsible for the administration of all city offices, positions, departments, boards, commissions and agencies created by or under this charter. He/she/they shall be appointed with regard to merit only and he/she/they need not be a resident of the city when appointed. He/she/they shall hold office during the pleasure of the Council, and shall receive such compensation as it may fix.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 4.12. City manager; powers and duties.

The city manager shall (1) be the administrative head of the city government; (2) see that within the jurisdiction of the city the laws of the State and the ordinances, resolutions, regulations of the Council are faithfully executed; (3) attend all meetings of the Council, and recommend for adoption such measures as he shall deem expedient; (4) make reports to the Council from time to time upon the affairs of the city, and keep the Council fully advised of the city's financial condition and its future financial needs; and (5) be a proper party to receive and accept service of all complaints, notices and other documents of a judicial nature on behalf of the city.
(S.L. 1965, Ch. 42, § 1)

Sec. 4.13. City manager; absence or disability.

(a) In the event the [city] manager shall be sick, absent from the city or otherwise unable to perform the duties of his/her/their office, the assistant city manager shall be ex officio city manager until the manager is able to resume his/her/their duties, and during said period the assistant city manager shall have all the power and authority of the city manager.

If there is no assistant city manager or he/she/they is unable to assume the duties of city manager for any reason, then the mayor shall be ex officio city manager.

(b) Should the position of city manager be vacant or in the event of the prolonged absence, illness, or other incapacity of the city manager, the council may designate one of its members, the mayor the assistant city manager or any other person as temporary city manager, and the person so designated shall have all the powers and authority of the city manager while he/she/they shall serve in the capacity and he/she/they may receive such additional compensation as the council may determine.
(S.L. 1969, Ch. 142, § 4; Ord. No. 20-163, § 3, 12-15-20)

ARTICLE 3. CITY ATTORNEY

Sec. 4.21. City attorney; appointment, compensation, powers, and duties.

(a) The city council shall appoint the city attorney, who shall hold office at the pleasure of the city council and shall receive such compensation as it may fix.

(b) The city attorney shall (1) serve as legal advisor to the City Council, the city manager and all city departments, officers and agencies; (2) represent as counsel the city, its officers, agents, or employees, in any legal action arising out of or connected with the proper functions of the city, its officers, agents or employees, unless disqualified to so act; (3) approve as to form all ordinances and resolutions, including initiated or referred ordinances, prior to their introduction.
(S.L. 2011-111, H.B. 150, § 1, eff. 6-8-11)

Editor's note—Session Law 2011-111, H.B. 150, effective June 8, 2011, changed the title of § 4.21 from "Powers and duties of the city attorney" to "City attorney; appointment, compensation, powers, and duties." This historical notation has been preserved for reference purposes.

ARTICLE 4. POLICE AND FIRE OFFICERS

Sec. 4.31. Powers and duties of the chief of police and police officers.

(a) The chief of police, acting under the city manager, shall have supervision and control of the police force and shall enforce discipline therein.

(b) For the purpose of enforcing North Carolina State laws, city ordinances and regulations, of preserving the peace of the city, of suppressing disturbances and apprehending offenders, and for serving civic process, the chief of police and each member of the police force shall have the powers of peace officers vested in sheriffs and constables. Such powers may be exercised within the corporate limits of the city and one mile beyond, upon city real property wherever located, and within the limits of the watershed of the city water supply.
(S.L. 1967, Ch. 74, § 4; Ord. No. 20-163, § 3, 12-15-20)

Sec. 4.32. Power to establish police emergency lines.

The City Council shall have the power to authorize the chief of police or other police officer in charge at the scene of a parade, fire, accident, disturbance, crime scene, natural or artificial disaster or emergency, or any large gathering of people, to provide barricades, ropes, signs, or other means of restraint, and it shall be unlawful for any person other than a law enforcement officer, firefighter, or other person having official business at the scene, to cross a duly established police emergency line without express permission of a police officer at the scene, or to remain within the area bounded by the police emergency line after being ordered by a police officer to leave.
(S.L. 1963, Ch. 55, § 7; Ord. No. 20-163, § 3, 12-15-20)

Sec. 4.33. Fingerprinting and photographing of arrested persons.

The chief of police may provide for the taking of fingerprints and photographs of any person arrested by any police officer of the City of Greensboro, and the provisions of G.S. 148-19 shall not apply to the City of Greensboro.
(S.L. 1967, Ch. 74, § 5)

Sec. 4.34. City and county jails.

The keeper of the jail of Guilford County is hereby required to receive into the jail without a mittimus, any person under arrest by a police

officer of the city, and to keep such person safely until he/she/they is brought out for trial. For such services the jailer shall be entitled to such fees as are allowed him/her/them in like cases. The city may also provide and use a jail for the confinement of prisoners in its discretion, but the providing of a city jail shall not relieve the county jailer of the duty to receive prisoners from police officers of the city.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 4.35. Auxiliary police officers and firefighters.

(a) The City Council may provide for the organization, recruiting, training, equipping, and appointing of auxiliary police officers and auxiliary firefighters for the City of Greensboro.

(b) Duly appointed auxiliary police officers and firefighters shall, while training and while performing duties on behalf of the city incidental to their appointment, be entitled to workers' compensation benefits to the same extent as regular city employees. Compensation payments to auxiliary police officers shall be based upon the entrance salary of a regular city police patrol officer at the time of the injury. Compensation payments to auxiliary firefighters shall be based upon the entrance salary of a regular city firefighter at the time of the injury.

(c) Upon approval of the City Council, the city manager may provide additional compensation to auxiliary police [officers] and firefighters for injuries received in the line of duty for the City of Greensboro. Otherwise, auxiliary police officers and firefighters shall not be entitled to additional compensation for their services, unless called into active duty by either the mayor or city manager and chief of police because of an emergency, in which event they may receive such compensation for their services as shall be approved by the Council. This subsection shall not in any manner affect the rights of any person to benefits provided by the State of North Carolina or by Act of Congress for civilian defense workers or auxiliary police officers and firefighters.

(d) The City of Greensboro shall be entitled to the same immunities with respect to the action of auxiliary police officers and auxiliary firefighters in the performance of their duties or training or otherwise, to which it is entitled with respect to the actions of regular city police officers and firefighters in the performance of their duties.
(S.L. 1971, Ch. 29, § 1; Ord. No. 20-163, § 3, 12-15-20)

Sec. 4.36. Municipal rescue squad.

The City Council may create a municipal rescue squad and, for the purpose of providing emergency life saving and rescue service to persons within the city whose lives or property are imperiled, may allocate sufficient funds to train and equip such an organization. The city may share the expense thereof with Guilford County in the manner provided by Chapter 525 of the Session Laws of 1957. In the event it shall be deemed advisable, the City Council may provide emergency lifesaving and rescue services by contracting with any incorporated, nonprofit volunteer or community rescue squad. Any expenditure made hereunder is declared to be a necessary expense and for a public purpose.

SUBCHAPTER B. FINANCES AND FISCAL MATTERS[; ECONOMIC DEVELOPMENT PROJECTS]

ARTICLE 1. FINANCES AND FISCAL ADMINISTRATION

Sec. 4.51. City treasurer.

The city treasurer shall perform the functions prescribed by this charter and by general law, and shall be provided with a surety bond at the expense of the city, in an amount fixed by the Council. The bond shall be filed with the city clerk.

Subject to such conditions as it may impose, the city council may authorize the city treasurer, upon discovering a clerical error in any payment made within the preceding three years or to be made to the city for taxes, assessments for local improvements, utility charges, or any other kind of debt owed to the city, to refund the amount paid in error or to rebate the amount charged in error and to be paid, and the city treasurer shall

have no liability for making any refund or rebate if he/she/they secures the approval of the city attorney therefor. The city treasurer may require such proof of error as may be satisfactory to him/her/them in justifying any refund or rebate.
(S.L. 1961, Ch. 686, § 8; S.L. 1973, Ch. 213, § 14; Ord. No. 20-163, § 3, 12-15-20)

Sec. 4.52. City tax collector.

The city tax collector shall perform the functions prescribed by this charter and by general law, and shall be provided with a surety bond at the expense of the city, in an amount fixed by the council. The bond shall be filed with the city clerk.

Sec. 4.53. Authority to engage in manpower development and drug action programs.

(a) Subject to the conditions hereinafter set forth, the City of Greensboro, through its governing body, shall have the power to undertake, endorse, administer, operate and maintain, and to expend non ad valorem tax funds for "manpower development programs" and "drug action programs" for the purpose of serving the public interest and well-being of the community and its citizens; provided, such powers may be exercised only within the jurisdiction boundaries as may be lawfully exercised by the City of Greensboro. In order for the city to participate, any such programs shall be partially or wholly financed by state or federal funds or both. The aforementioned powers may be exercised only with respect to those certain programs in which the County of Guilford does not participate and has no immediate plans to participate. However, the City of Greensboro may participate with the County of Guilford jointly upon mutual consent of both governing bodies.

(b) The city council may appoint such committees or boards as it may deem necessary in carrying out such programs and may authorize the employment of personnel. In undertaking and engaging in such programs, the city council may enter into contracts with and accept grants from appropriate branches of the state and federal governments.

(c) The powers granted herein are not intended to encroach in any manner upon the powers, duties and responsibilities of Guilford County in any health, social, educational or welfare programs being administered by said county.

(d) The provisions of state law granting the powers to municipalities to engage in community action programs shall not be applicable to the City of Greensboro.
(S.L. 1973, Ch. 700, § 1)

Sec. 4.54. Authority to engage in community action programs jointly with Guilford County.

(a) The City of Greensboro, through its governing body, shall have the power and authority to enter into agreements with Guilford County for the purpose of providing joint participation in any undertaking involving community action programs for the general welfare and benefit of the citizens; provided that Guilford County has the separate power and authority to engage in any such programs.

(b) Under any such joint agreements, the City of Greensboro may participate financially or render such other assistance as may be mutually determined by said City of Greensboro and Guilford County, and such joint undertakings are hereby declared to be for a public purpose.
(S.L. 1974, Ch. 1052, § 1)

Sec. 4.55. Economic development projects.

(a) *Definition.* In this article "economic development project" means an economic capital development project within a certain defined area or areas of the city as established by the city council, comprising of one or more buildings or other improvements and including any public and/or private facilities. Said project may include programs or facilities for improving downtown redevelopment, "pocket of poverty" or other federal or state assistance programs which the city council determines to be in need of economic capital development or revitalization and which qualify for capital assistance under applicable federal or state programs.

(b) *Authorization.*

(1) In addition to any other authority granted by law, the City of Greensboro may accept grants, expend funds, make grants or loans, acquire property and participate in capital economic development projects which the city council determines will enhance the economic development and revitalization of the city in accordance with the authority granted herein. Such project may include both public and/or private buildings or facilities financed in whole or in part by federal or state grants (including but not limited to urban development action grants) and may include any capital expenditures which the city council finds necessary to comply with conditions in any federal or state grant agreements and which the city council finds will complement the project and improve the public tax base and general economy of the city. By way of illustration, but not limitation, such a project may include the construction or renovation of any one or combination of the following projects:

(a) Privately owned hotel.

(b) Privately owned office building.

(c) Housing.

(d) Parking facilities.

Such project may be partially financed with city funds received from federal or state sources and being granted or loaned to the private owner for said construction or renovation; in addition, other city funds from any sources may be used for acquisition, construction, leasing and/or operation of facilities by the city for the general public and for capital improvements to public facilities which will support and enhance the private facilities and the general economy of the city.

(2) When the city council finds that it will promote the economic development or revitalization in the city, the city may acquire, construct and operate or participate in the acquisition, construction, ownership and operation of an economic development project or of specific buildings or facilities within such a project and may comply with any state or federal government grant requirements in connection therewith. The city may enter into binding contracts with one or more private parties or governmental units with respect to acquiring, constructing, owning or operating such a project. Such a contract may, among other provisions, specify the responsibilities of the city and the developer or developers and operators or owners of the project, including the financing of the project. Such a contract may be entered into before the acquisition of any real property necessary to the project by the city or the developer or other parties.

(c) *Property acquisition.* An economic development project may be constructed on property acquired by the developer or developers, or on property directly acquired by the city, or on property acquired by the redevelopment commission while exercising the powers, duties and responsibilities pursuant to G.S. 160A-505.

(d) *Property disposition.* In connection with an economic development project, the city may convey interests in property owned by it, including air rights over public facilities, as follows:

(1) If the property was acquired under the urban redevelopment law, the property interests may be conveyed in accordance with said law.

(2) If the property was acquired by the city directly, the city may convey property interests by any procedure set forth in its city charter or the general law or, by private negotiation or sale.

(e) *Construction of the project.* A contract between the city and the developer or developers may provide that the developer or developers shall be responsible for the construction of the entire economic development project. If so, the contract shall include such provisions as the city council deems sufficient to assure that any public facilities included in the project meet the needs of the city and are constructed at a reasonable

price. Any funds loaned by the city pursuant to this paragraph to a private developer or developers and used by said developer or developers in the construction of a project hereunder on privately owned property shall not be deemed to be an expenditure of public money.

(f) *Operation*. The city may contract for the operation of any public facility or facilities included in an economic development project by a person, partnership, firm or corporation, public or private. In addition, the city, upon consideration, may contract through lease or otherwise whereby it may operate privately constructed parking facilities to serve the general public. Such a contract shall include provisions sufficient to assure that any such facility or facilities are operated for the benefit of the citizens of the city.

(S.L. 1981, Ch. 159, § 3)

ARTICLE 2. TAXATION

Sec. 4.61. General authority to levy and collect taxes.

To raise revenue for defraying expenses incident to the proper government of the city, the council may annually levy and collect (1) an ad valorem tax on real and personal property (including intangible property not exempt from taxation) and on all other property subject to ad valorem tax; (2) a tax on all businesses, trades, professions, avocations, and franchises, carried on or enjoyed within the city; and (3) any other taxes permitted by general law.

Sec. 4.62. Levy, collection and payment of ad valorem property taxes.

(a) Except as otherwise herein provided, ad valorem property taxes shall be imposed and collected in the manner provided by general law.

(b) Ad valorem property taxes shall become due and payable on the date provided by general law, and interest shall be charged for late payment in the amounts and during the periods covered [provided] by general law. In the discretion of the City Council, discounts may be allowed for prepayment of taxes, and if allowed, shall be granted in the amounts and for the periods provided by general law.

(c) The Council may make rules and regulations for the payment of the tax on any particular parcel or parcels of real estate or personal property listed in the name of any person, firm or corporation without requiring the payment of all of the taxes listed by such person, firm or corporation. The property upon which taxes are so paid shall be released or exempt from the lien of the unpaid portion of taxes.

(d) If for any reason the making out of tax statements is delayed so that persons cannot ascertain the full amount of their taxes in time to take advantage of the discounts herein provided for, the Council may revise the schedule of discounts and penalties, either or both, as in its judgment may be fair and proper, but the maximum discount or penalty thus fixed by the Council shall not exceed the maximum provided for by subsection (b).

(e) The city tax collector shall, on or before the second Monday in June of each year, report a list of all taxpayers owing taxes for the current year which are liens on real property, and the City Council shall thereupon, at its next regular meeting following such report, order the sale of the tax lien on said real property of said taxpayers to be held at one of the times prescribed in the General Statutes of North Carolina. District taxes collected by the city tax collector shall be regarded as city taxes for purposes of advertisement and sale.

(S.L. 1963, Ch. 55, § 8)

Sec. 4.63. Additional remedies for collection of privilege license taxes.

In addition to any other civil or criminal remedy available to enforce the collection of privilege license taxes, the tax collector may employ the remedies of levy upon personal property, attachment and garnishment, in the manner of and subject to the limitations provided in G.S. 105-367 and 368.

(S.L. 1973, Ch. 213, § 15)

Sec. 4.64. Issuance of licenses by tax collector.

All licenses authorized by the General Statutes of North Carolina and the ordinances of the City of Greensboro, and particularly the license authorized by G.S. 105-113.79 and G.S. 113.82, shall be issued by the tax collector or other official designated by the city manager without the approval of the city council.
(S.L. 1961, Ch. 686, § 9; S.L. 1973, Ch. 213, § 16)

ARTICLE 3. INVESTMENT OF FUNDS

Sec. 4.71. Investment of proceeds of the sale of bonds and other surplus funds.

(a) The City Council, or the mayor, the city manager and the treasurer acting jointly with authority granted by ordinance, shall from time to time carefully analyze the amount of cash in the general fund of the city and in all special funds of the city credited to any special purpose, and all proceeds from the sale of bonds heretofore or hereafter issued by the city. When in the opinion of the City Council, or the mayor, city manager and treasurer, acting jointly, it is determined that the cash in any funds is in excess of the amount required to meet current needs, the Council, or the mayor, manager and treasurer, acting jointly, may deposit excess funds at interest with an official depository in the city upon terms authorized by applicable laws of the United States and the State of North Carolina, or invest in shares of any building and loan association organized and licensed under the laws of the State of North Carolina, or in shares of any federal savings and loan association organized under the laws of the United States and having its principal office in this State; or invest excess funds in bonds or certificates of indebtedness or treasury bills of the United States of America, or in bonds, notes or other obligations of any agency or instrumentality of the United States of America when the payment of principal and interest thereon is fully guaranteed by the United States of America, or in bonds of the City of Greensboro, North Carolina, or in certificates of deposit issued by banks or official depositories within the City of Greensboro, North Carolina. No funds may be invested, however, in building and loan associations unless and until authorized by the Insurance Commissioner, or in case of shares of a federal savings and loan association, unless and until authorized by an officer of the Federal Home Loan Bank.

(b) The funds shall be so invested that, in the judgment of the Council, or of the mayor, manager and treasurer, acting jointly, they may be readily converted into money as needed. Earnings from the investment of proceeds of sale of bonds may be applied to the payment of the interest or principal of the bonds from the sale of which the proceeds where derived, or may be applied as increment to the proceeds. Earnings received on deposits and the income from investments, other than the investment of the proceeds from the sale of bonds, unless otherwise required by law, shall be paid into the city's general fund. Nothing in this Section shall be construed as permitting moneys realized from the investment of the proceeds of the sale of City of Greensboro bonds to be used for any purpose other than the purpose for which the bonds were authorized.

(c) The City Council or the mayor, manager, and treasurer, acting jointly, may make deposits in designated depositories to the extent that the depositories have qualified to receive such deposits under the law, and may purchase and sell the securities or investments hereinabove set out privately and without notice, but no such securities or investments shall be purchased at more than the market price thereof nor sold at less than the market price thereof. The city may pay all costs of every nature incident to the purchase and sale of securities.

(d) When the United States Government securities hereinabove mentioned are purchased and sold in New York City, New York, and it is not deemed practical to transport any or all of such securities from New York to Greensboro and from Greensboro to New York, the city council is authorized to name a bank or banks with which such securities may be left in a safekeeping account, either in the name of the city or in the name of a Greensboro bank, designated by the city council as a bank which

may hold for the city such securities in its customer's account with a New York bank or banks likewise designated by the city council. No security shall be required for the protection of securities or investments thus held for safekeeping. No city officer or employee, including the officer or employees having charge or custody of city funds, or the surety or sureties on any official bond, shall be liable for any losses sustained when United States securities and investments are deposited or left with any bank or banks in the manner hereinabove authorized.

SUBCHAPTER C. PERSONNEL

Sec. 4.91. Appointment and removal of department heads and employees; salaries; absence or disability.

(a) The city manager, except as otherwise provided in this charter, shall appoint and may suspend and remove all city employees, and heads of departments, and, in his/her/their discretion, may employ consultants of any kind when needed. The manager shall report to the City Council every appointment and removal of a department head at the next Council meeting following the appointment or removal.

(b) All compensation and salaries shall be fixed or approved by the council. In addition to the compensation and salaries fixed or approved by the city council, the council may provide for group insurance for city employees to provide any or all of the following benefits:

(1) Life insurance benefits payable upon the death of an employee. The amount of insurance to be provided for an employee may be based on either rate of pay or classification. The premium may be paid by City of Greensboro, or by the city and employees jointly.

(2) Life insurance benefits payable upon the death of any dependent of an employee. The premium may be paid by the City of Greensboro, by the employee, or by the city and employee jointly.

(3) Life insurance benefits payable upon the death of an employee after his/her/their retirement under either the Local Governmental Employees Retirement System, the Federal Social Security System, the State Law Enforcement Officers Benefit and Retirement Fund, or any combination thereof; provided that the amount of such benefits or coverage shall be determined by the city council. The premium may be paid by City of Greensboro, by the employee, or by the city and employee jointly.

(4) The accumulation of life insurance cash reserve values for an employee; provided, that the full cost of such coverage is paid by the employee.

(5) Benefits payable under hospitalization insurance arising out of the hospitalization of an employee. The premium may be paid by the City of Greensboro, by the city and employees jointly, or by the employee.

(6) Benefits payable under hospitalization insurance arising out of the hospitalization of a dependent of an employee. The premium may be paid by the City of Greensboro, by the employee, or by the city and employee jointly.

(7) Benefits payable under hospitalization insurance arising out of the hospitalization of a retired employee or the dependent of a retired employee after his/her/their retirement under either the Local Governmental Employees Retirement System, the State Law Enforcement Officers Benefit and Retirement System, or the Federal Social Security System, or any combination thereof; provided that the full cost of continuing such coverage after retirement shall be paid by the employee.

(c) In case of any absence or disability of any department head or holder of any position named in this charter, an assistant designated by the city manager may perform the functions of the department head or position holder.

(d) City employees and department heads shall perform such duties as may be required by them by the manager under general regulations of the council.

(e) Neither the council nor any of its members shall take any part in the appointment or removal of department heads and employees in the administrative service of the city. Except for the purpose of inquiry, or for consultation with the city attorney, the council and its members shall deal with the administrative service solely through the manager, and neither the council nor any member thereof shall give specific orders to any subordinates of the city manager, be it publicly or privately. This section shall not apply to action taken by a member of the council while servicing temporarily as manager, or as manager ex officio.
(S.L. 1961, Ch. 686, § 10; S.L. 1969, Ch. 142, §§ 5, 6; S.L. 1986, Ch. 807, § 1; Ord. No. 20-163, § 3, 12-15-20)

Sec. 4.92. Public liability insurance policies covering certain employees.

The city may purchase and pay the premium on a public liability insurance policy or policies to protect and hold harmless from loss any city employee or employees engaged in occupations found by the council to be hazardous to the public generally.

Sec. 4.93. Loss and theft insurance policies covering certain employees.

The city may purchase and pay the premium on an insurance policy or policies to protect and hold harmless from loss by disappearance, theft, or means other than the wrongdoing of the insured employee or employees, any city employee or employees who are engaged in duties which require them to be responsible for public funds.

Sec. 4.94. Oaths of certain officers and employees.

Before entering upon the discharge of their duties, the holders of the following offices and positions shall be required to take and subscribe before the mayor, or some other officer authorized to administer oaths in such cases, the oath prescribed for public officers and an oath that they will faithfully and impartially discharge the duties of their respective offices or positions according to law; the city treasurer, the city clerk, the chief of police and each member of the police force, the tax collector and assistant tax collector, and the building inspector and all employees empowered to enforce the building code. All such oaths shall be filed with the city clerk.
(S.L. 1961, Ch. 686, § 11; S.L. 1965, Ch. 42, § 2)

SUBCHAPTER D. PROCUREMENT AND PROPERTY MANAGEMENT

ARTICLE 1. CONTRACTING, PURCHASING AND PROPERTY MANAGEMENT PROCEDURE

Sec. 4.111. Contract procedures.

All contracts, except as otherwise provided for in this Charter, shall be authorized and approved by the Council and reduced to writing in order to be binding upon the City. All contracts and all ordinances or resolutions authorizing the same shall be drawn by the City Attorney or shall be approved by him/her/them before authorization by the Council. A contract for the purchase of apparatus, supplies, materials or equipment may be approved, awarded and executed by the city manager on behalf of the city provided that the City Council shall have approved a sufficient appropriation in the annual budget for the current fiscal year. A contract for the performance of services may be approved, awarded, and executed by the City Manager on behalf of the city, as provided by an ordinance duly adopted by the City Council. A contract for construction or demolition may be approved, awarded and executed by the City Manager on behalf of the City when the amount of such contract does not exceed three hundred thousand dollars ($300,000); provided that the City Council shall have approved a sufficient appropriation in the Annual Budget for the current fiscal year for the general purposes specified under the contract. Before any such contract is awarded, the City Manager shall comply with all other requirements set forth in

G.S. 143-129, and G.S. 143-131, and said contract shall be subject to the approval of the City Attorney. Any person aggrieved by an award made pursuant to this Section may appeal to the City Council by filing notice thereof with the City Clerk immediately following a decision granting such award.
(S.L. 1967, Ch. 74, § 6; S.L. 1969, Ch. 142, § 7; S.L. 1973, Ch. 213, § 17; S.L. 1981, Ch. 159, § 4; S.L. 1993, Ch. 6, § 1; S.L. 2003, Ch. 134, § 1; S.L. 2011-111, H.B. 150, § 2, eff. 6-8-11; Ord. No. 20-163, § 3, 12-15-20)

Sec. 4.112. Purchase of repair parts for specialized equipment.

All contracts authorizing the purchase of repair parts for specialized equipment for which there is only one known manufacturer and supplier shall be made only after an informal bid has been secured, without regard to the maximum limits set forth in G.S. 143-129 and G.S. 143-131.
(S.L. 1967, Ch. 74, § 7)

Sec. 4.113. Minimum number of bids for construction contracts.

No contract to which G.S. 143-129 applies for construction or repairs shall be awarded on the first advertising thereof unless the least two (2) competitive bids have been received from reputable and qualified contractors regularly engaged in their respective lines of endeavor.
(S.L. 1981, Ch. 159, § 5)

ARTICLE 2. SALE AND DISPOSITION OF PROPERTY

Sec. 4.121. Sale of personal property.

Any personal property not exceeding ten thousand dollars ($10,000.00) in value at the time of sale may be sold or exchanged by the Council without advertisement. Personal property having a value in excess of ten thousand dollars ($10,000.00) may be sold only at public sale after advertisement as prescribed in Section 4.123.

With respect to sales of bicycles and other seized articles held pursuant to Article 2, Chapter 15 of the General Statutes of North Carolina [G.S. § 15-11 et seq.], public auction of such items may be held at such place as designated by the city manager and in the same manner as other surplus goods and equipment owned and held by the City are sold.
(S.L. 1975, Ch. 100, § 3; S.L. 1989, Ch. 48, § 2)

Sec. 4.122. Sale of real property by advertisement for bids.

Any real property owned and held by the City for governmental or other purposes may be sold by the Council in the manner hereinafter prescribed. When any satisfactory offer is made for the same, and a deposit of ten per cent (unless otherwise specified by the Council) of the amount bid is made with the city clerk, the Council shall cause to be published one time in some newspaper published in the City which is qualified to carry legal notices, or, if there be no such newspaper, there shall be posted in three places in the City, a general description of the property, the amount and the terms of payment offered, together with a notice that within ten days any person may raise the bid not less than ten per cent unless otherwise specified by the Council. If within ten days any person raises the bid accordingly and deposits with the city clerk a certified check covering the deposit for the increased bid, the city clerk shall readvertise so long as the bids are increased and proper deposits are made; and when there is no increased bid within the prescribed time, the Council may sell and convey such property for the amount of the highest bid offered; but the Council may at any time refuse to proceed further with the proposed sale. In lieu of the foregoing procedure, the Council may, in its discretion, order a public auction sale of any real property in the manner as prescribed in the succeeding section.
(S.L. 1965, Ch. 42, § 3; S.L. 1971, Ch. 29, § 2)

Sec. 4.123. Sale of real property by public auction.

By a two-thirds vote of all the members of the City Council, any real property owned and held by the city for governmental or other purposes may be sold by the City Council at public sale and after advertisement. The resolution authoriz-

ing the sale shall describe the property to be sold, the time, place, and terms of sale, and shall state that any offer or bid must be accepted and confirmed by the Council before the sale shall be effective. The resolution may, but need not, require that the highest bidder at the sale deliver to the city treasurer, or other official designated by the City Council, a certified check in an amount named in the resolution, to guarantee that, if the sale is confirmed by the Council, the bidder will comply with the terms of his/her/their bid. The resolution shall be published in some newspaper published in the city which is qualified to carry legal notices once a week for two successive weeks, or, if there be no such newspaper, the resolution shall be posted in two public places in the city, and the last publication may, but need not, be on the day of the sale. After the bids have been received at the sale, the highest bid for the property shall be reported to the Council, and within thirty days thereafter the Council shall accept or reject the bid. If the bid is rejected, the Council may readvertise the property for sale.
(S.L. 1965, Ch. 42, § 4; Ord. No. 20-163, § 3, 12-15-20)

Sec. 4.124. Sale or exchange of excess property.

In any case where the city has acquired property for any public purpose, and, in the opinion of the Council, it is desirable to sell any part or all of such property as excess, that is, such property as is not needed or no longer needed for the particular improvement or public purpose, the Council may sell it by public sale pursuant to Section 4.123 by receiving bids pursuant to Section 4.122 or by exchanging it for other property; provided, if in the opinion of the Council, the public interest of the city will best be served by the recombination of such property with other adjacent property in order to promote a more orderly and coordinated system of development, the council may sell it by private conveyance to an abutting property owner at a fair market value to be determined on the basis of a competent and disinterested appraisal.
(S.L. 1965, Ch. 42, § 5; S.L. 1969, Ch. 142, § 8)

Sec. 4.125. Lease of property.

(a) Any property owned by the city, whether originally acquired for governmental or other purposes, may be rented or leased by the council for a term not to exceed ten (10) years if, in the opinion of the city council, the property will not be needed by the city for the period of the lease. A lease may be made privately by the council or publicly after notice is given in such manner and for such length of time as prescribed by the council. In any case, however, where the lessee enters into a binding obligation to erect, upon property owned by the city, improvements to cost not less than one hundred thousand dollars ($100,000.00) the council may rent or lease such property for a term not to exceed forty (40) years and such lease may be made by the council either privately or publicly and upon such terms as in the judgment of the council will promote the best interest of the city. In addition, any property or portion thereof owned by the city subject to lease in accordance with the provisions herein, may be reasonably improved and renovated by the city either at its own expense or by mutual joint arrangement with other persons.

(b) The Greensboro War Memorial Stadium on Yanceyville Street and the Greensboro War Memorial Coliseum Complex on West Lee Street, in whole or in part, may be leased by the city manager under rules and regulations adopted by the city council.

(c) The city manager shall have the authority, under rules and regulations approved by the city council, to lease, either as lessor or lessee, privately and publicly, any vacant land or any structure owned by or needed by the city for a period of not exceeding seven (7) years and at a rental to be determined by the city manager to be fair rental value of the property.
(S.L. 1967, Ch. 74, § 8; S.L. 1973, Ch. 213, § 18; S.L. 1975, Ch. 100, § 4; S.L. 1989, Ch. 48, § 1)

Sec. 4.126. Real property conveyed to the city for parks, recreation and playgrounds; sale; dedication for street, sidewalk, water or sewer purposes.

The city council may (1) sell, as provided in sections 4.122 and 4.123, any part of any real

property heretofore or hereafter conveyed or dedicated to the city for parks, recreation or playgrounds; and (2) dedicate and use for street, sidewalk, water or sewer purposes such portion or portions of any such property as in the opinion of the city council public convenience or necessity may require; but nothing herein shall have the effect of altering the terms or conditions of any agreement with the city, or conveyance to the city, relative to the use of property.
(S.L. 1965, Ch. 42, § 6)

Sec. 4.127. Releases and quitclaims.

(a) The city may quitclaim any rights it may have in property not needed for public purposes upon report by the city attorney and city manager, and adoption of a resolution by the city council, both finding that the property is not needed for public purposes and that the city's interest has no readily ascertainable monetary value.
(S.L. 1963, Ch. 55, § 9; S.L. 1981, Ch. 159, § 6)

Sec. 4.128. Easements and encroachments; grant and release thereof.

(a) The City Council may release or quitclaim any rights the city may have in any water, sanitary sewer, storm sewer easement or any other right-of-way except street right-of-way upon a report by the city attorney and city manager and a finding by the Council that the city has no further need for such easement or right-of-way for the particular improvement or for any other public purpose and that the easement or right-of-way should be abandoned.

The city council may, by duly enacted ordinance, delegate and assign to the Greensboro Planning Board, the authority to release or quitclaim any rights the city may have in any water, sanitary sewer, storm sewer easements or any other right-of-way except street right-of-way. However, the planning board shall not authorize a release or quitclaim of any of the city's rights in an easement until the city manager and city attorney report in writing that the city has no further need for such right-of-way or easement for this particular improvement or for any other public purpose and that the easement or right-of-way should be abandoned. All release deeds shall be duly executed on behalf of the City of Greensboro by the mayor and city clerk.

(b) For fair value to be determined by the City Council, the Council may grant an easement to any person, corporation or public utility for the construction, existence and maintenance of lines, pipes, structures or for any other purpose over, under or through any real property owned by the city in fee simple if, in the opinion of the council, such easement will not interfere with the proper use by the city of the property in which such easement is granted and that the city has no governmental or other public need which would be in conflict with the easement granted therein or the use made thereof.

(c) With respect to real property adjoining a street right-of-way, the City Council may permit or grant an encroachment easement beyond the existing building line into a street right-of-way for the purpose of permitting the erection of a building or other structure either over, under or through said right-of-way if, in the opinion of the Council, such encroachment will neither cause a public nuisance nor unreasonably interfere with the use of the streets and sidewalks by the public.
(S.L. 1965, Ch. 42, § 7; S.L. 1977, Ch. 85, § 1)

Sec. 4.129. Exercise of eminent domain for low-and moderate-income housing.

The City of Greensboro shall have the power of eminent domain to acquire property to provide housing for low-and moderate-income persons for the purpose of acquiring:

(a) Vacant structures boarded up for a minimum period of two (2) years as a result of housing code violations; and

(b) Vacant properties rendered vacant for a minimum period of two (2) years as a result of housing code enforcement demolition orders.

In the exercise of its authority of eminent domain for the acquisition of property to provide housing for low-and moderate-income persons, the City of Greensboro is hereby authorized to

use the procedure and authority prescribed in Article 3 of Chapter 40A of the General Statutes of North Carolina as now or hereafter amended. The city council must adopt a plan to use condemned property for low-or moderate-income housing prior to exercising the powers under this section.
(S.L. 1989, Ch. 466, § 1)

Sec. 4.131. Conflict of interest.

Any officer, department head or employee who has financial interest, direct or indirect, in any proposed contract with the city or in a proposed sale of any land, material, supplies, or services to the city or to a contractor supplying the city, shall make known that interest and shall refrain from voting upon or otherwise participating in the making of such contract or sale. Any officer, department head, or employee who willfully conceals such a financial interest or willfully violates the requirements of this Section shall be guilty of malfeasance in office or position and shall forfeit his/her/their office or position. Violation of this Section with the knowledge expressed or implied of the person or corporation contracting with or making a sale to the city shall render the contract void.
(S.L. 1967, Ch. 74, § 9; Ord. No. 20-163, § 3, 12-15-20)

SUBCHAPTER E. RECORDS MANAGEMENT

Sec. 4.151. City clerk.

The city clerk shall be ex officio clerk of the City Council, and shall keep records of its proceedings. He/she/they shall perform all other functions prescribed by this charter and by general law. He/she/they shall have the same power to administer oaths, in the exercise of his/her/their official functions, as the clerk of the Superior Court of Guilford County. He/she/they shall be provided with a surety bond at the expense of the city, in an amount fixed by the Council. The bond shall be filed with the City Manager.
(Ord. No. 20-163, § 3, 12-15-20)

Chapter V

REGULATORY AND PLANNING FUNCTIONS

SUBCHAPTER A. ADMINISTRATION OF JUSTICE

Sec. 5.01. Rewards for conviction of certain offenses.

The city council may offer and pay rewards for the conviction of any person or persons alleged to have committed criminal offenses which, in the judgment of the Council, involved serious danger to the public peace or public safety, or involved malicious destruction of public property. The Council shall fix the terms, conditions and amounts of such rewards. Rewards shall be paid only by order of the Council from nontax revenues in the general fund of the city. The Council shall, in its discretion, determine who shall be entitled to the collection of any reward.
(S.L. 1991, Ch. 4, § 3)

SUBCHAPTER B. ALCOHOLIC BEVERAGE CONTROL

Sec. 5.21. Board of alcoholic control: Selection, composition and terms.

The City of Greensboro Board of Alcoholic Control is hereby continued under this charter, and shall consist of three members who shall be known for their character, ability, and business acumen. The City Council shall appoint the members of said board for three-year overlapping terms; shall fix their compensation; and shall designate one of the members as chairperson. Vacancies occurring otherwise than by expiration of term shall be filled by the Council for the unexpired term.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 5.22. Board of alcoholic control: Powers and duties.

The Board of Alcoholic Control shall have all of the powers and duties imposed by Section

18A-17 [now 18B-701 of the General Statues on county boards of alcoholic control and shall be subject to the powers and authority of the State Board of Alcoholic Control to the same extent as county boards of alcoholic control, as provided in Section 18A-15 of the General Statutes. The city board and the operation of any city liquor stores authorized under the provisions of this subchapter shall be subject to and in pursuance with the provisions of Article 2 of Chapter 18A of the General Statutes, except to the extent which the same may be in conflict with the provisions of this Act. Wherever the word "County" board of alcoholic control appears in said Article, it shall include the City of Greensboro Board of Alcoholic Control. The board shall have authority to employ legal counsel and such other employees as it may deem wise and to fix their compensation. Any law enforcement officer appointed by the board shall have all of the powers provided for law enforcement officers by Section 18A-20 [now 18B-501] of the General Statutes.
(S.L. 1973, Ch. 213, § 19)

Sec. 5.23. Board of alcoholic control: Distribution of profits.

The Board of Alcoholic Control is authorized, in its discretion, to expend for law enforcement not more than ten per cent (10%) of the profits remaining after the payment of all other costs and operating expenses, to be determined by quarterly audits. In addition, the Board of Alcoholic Control is authorized, in its discretion, to expend, for education as to the effects of the use of alcoholic beverages and for the rehabilitation of alcoholics, not more than five per cent (5%) of its total profits, to be determined by quarterly audits. The board also shall retain out of such profits a sufficient and proper working capital, the amount to be determined by the board. Any profits remaining at the end of each quarterly period following the establishment of liquor control stores shall be paid out and distributed as follows:

(1) Twenty-seven per cent (27%) shall be allocated and distributed to the general funds of Guilford County and the municipal corporations, other than the City of Greensboro, located in the county, until they shall establish liquor control stores; provided, that upon the establishment of a liquor control store or stores in Guilford County or in any municipality therein other than the City of Greensboro, this percentage shall be reduced to fifteen per cent (15%). The amounts distributable to the county and to each of the municipal corporations shall be determined upon the basis of population as shown by the latest federal decennial census; provided, however, the population of the county shall be the entire population exclusive of the population of all of the municipal corporations located therein. Upon the establishing of liquor or alcoholic beverage control store or stores, by any city or town located in Guilford County, other than the City of Greensboro, the distributive share of the profits which would be payable to such city or town during the period such stores are operated by any such city or town shall be paid by the board to the City of Greensboro in the same manner and for the same purpose set out in paragraph (2) of this Section.

(2) Seventy-three per cent (73%) shall be allocated and distributed to the tax collector of the City of Greensboro and may be used by the City of Greensboro in the operation of the water and sewer system of the city, for debt service, for the general fund or for any public purpose; provided, that upon the establishment of a liquor control store or stores in Guilford County or in any municipality therein other than the City of Greensboro this percentage shall be increased to eighty-five per cent (85%).

(S.L. 1961, Ch. 686, §§ 1, 2; S.L. 1963, Ch. 769, § 1; S.L. 1973, Ch. 213, § 20)

Sec. 5.24. Subsequent elections concerning alcoholic beverage control.

(a) Elections may be held upon the continued operation of city liquor control stores in the City of Greensboro or, in the event of a vote in opposition thereto, then, elections may be held

thereafter upon the renewed operation of such stores. Such elections shall be conducted in accordance with the provisions of this charter applicable to initiative petitions (Sections 2.71 through 2.80) except that:

(1) The number of signers required upon petition to initiate such election shall be fifteen per cent (15%) of the qualified voters of the city who voted at the last preceding election for City Council members;

(2) The propositions to be voted upon shall be "For City Liquor Control Stores" and "Against City Liquor Control Stores"; and

(3) A new registration of voters for such election shall not be necessary and all qualified voters who are properly registered prior to registration for the election and those registered in the liquor election shall be entitled to vote in the election.

(b) If a subsequent election shall be held and at such election a majority of the votes shall be cast "Against City Liquor Control Stores," the city liquor control board shall within three months from the canvassing of such votes and the declaration of the results thereof, close the stores and shall thereafter cease to operate them, and within three months the city control board shall dispose of all alcoholic beverages on hand, all fixtures, and all other property under the control of the board, convert it into cash, and turn the cash over to the city treasurer. Thereafter, all public, public-local and private laws applicable to the sale of intoxicating beverages within the City of Greensboro in effect prior to the authorization to operate city liquor stores shall be in effect as if the election had not been held and until and unless another election is held under the provisions of this Act in which a majority of the votes shall be cast "For City Liquor Control Stores." No election shall be called and held in the City of Greensboro under the provisions of this Act within three years from the holding of the last election thereunder.

SUBCHAPTER C. OCCUPATIONAL AND BUSINESS LICENSING AND REGULATION

Sec. 5.41. Power to tax, regulate, etc., certain businesses.

The Council shall have the power to license, tax, regulate, restrict, prohibit, suspend, and revoke any license on the following businesses; for running billiard tables, bowling alleys, or alleys of like kind, bowling saloons, bagatelle tables, pool tables, or tables for any other game or play, with or without a name, for the use of which a charge is directly or indirectly made; pawnbrokers; fruit or vegetable stands; restaurants; drink stands; lunch counters; dance halls; pressing clubs; theaters; vaudeville or moving picture houses or shows; and any other businesses the council may determine should be placed in this class. Before issuing the license as above, the Council may require bonds from all applicants, conditioned as the Council may determine, with such sureties as the City Manager and City Attorney may approve.

In the regulation of the trades of plumbing, electrical, heating and air conditioning work, the City Council may require each person so engaged or employed to stand an examination and may charge a reasonable fee therefor.
(S.L. 1967, Ch. 74, § 10)

SUBCHAPTER D. PLANNING, ZONING, BUILDING REGULATIONS AND RELATED MEASURES

ARTICLE 1. IN GENERAL[; BOARD OF ADJUSTMENT]

Sec. 5.61. Authority within corporate limits.

The City Council may exercise within the corporate limits and planning, subdivision, zoning and building regulation powers (including plumbing, heating or electrical regulation powers) now or hereafter conferred by law upon cities and city

governing bodies generally, or specifically conferred by law upon it or upon the City of Greensboro.

Sec. 5.62. Extraterritorial authority.

(a) For the purpose of promoting the orderly growth, expansion and development of the City of Greensboro and the surrounding territory hereinafter defined, and for the purpose of promoting the health, safety, morals, and general welfare of the citizens of such area, the City Council is hereby authorized to exercise any planning, subdivision, zoning and building regulation powers (including plumbing, heating, or electrical regulation powers) now or hereafter conferred upon the City of Greensboro and vested in the Council by this charter, the General Statutes, or any other statute applicable to the City of Greensboro, not only within the corporate limits of the city but also within the territory beyond the corporate limits, as now or hereafter fixed, for a distance of one mile in all directions. Such powers may be exercised to the same extent and according to the same procedures as are applicable to the exercise of planning, zoning, subdivision, or building regulation power (including plumbing, heating, or electrical regulation powers) within the corporate limits of the city; but any ordinance intended to have application beyond the corporate limits of the city shall so provide. Such powers shall include the power to adopt such ordinances and regulations as may be considered necessary or expedient by the Council to regulate, control and restrict:

(1) The height, number of stories, and size of buildings and other structures;

(2) The percentage of a lot that may be occupied;

(3) The size of yards, courts and other open spaces;

(4) The density of population;

(5) The location and use of buildings, structures, and land for trade, industry, residences, or other purposes;

(6) The construction of buildings, including plumbing, heating and electrical installations;

(7) The names of streets, and the city may provide street name signs in the area;

(8) The height, location, construction, size and other regulatory measures with respect to commercial or other signs and outdoor advertising; and

(9) Minimum standards for buildings, residences and other structures through housing codes and other similar regulations.

(b) One but not more than three members of the Greensboro Planning Board, authorized by G.S. 160A-361, may be citizens and residents of the territory beyond the corporate limits of Greensboro and within one mile thereof. Members appointed from the territory beyond the corporate limits of the City of Greensboro shall be appointed in the same manner and shall have the same powers and duties as the other members of the Greensboro Planning board, and the laws, ordinances, rules and regulations applicable to the members of the Greensboro Planning Board shall be applicable to said members.

(c) The City Council is authorized, in order to enforce properly the provisions of any ordinance or building regulation, to require by ordinance that prior to the beginning of any construction, reconstruction or alteration of any building or structure, or for plumbing, heating or electrical installations within said area, a permit or permits be obtained therefor from the building inspector of the City of Greensboro. All permits, plans, inspections and fees which are specified in the Greensboro Code of Ordinances will apply to such area within one mile beyond the corporate limits.

(d) Membership on the Greensboro Board of Adjustment and the Greensboro Board of Building Appeals, authorized by this charter, shall not be limited to citizens and residents of the City of Greensboro, and members may be appointed to these boards who reside within the corporate limits of the city or within the territory beyond the corporate limits and within one mile thereof; except that not more than two members of the Greensboro Board of Adjustment, or one member and one alternate member, and not more than one member of the Greensboro Board of Building

Appeals, shall be a resident or residents of the territory beyond the corporate limits and within one mile thereof.

(e) In the event that any portion of the territory beyond the corporate limits of the City of Greensboro and within one mile thereof comes within an area which is subject to the jurisdiction of another municipality or political subdivision of the State which has authority to exercise planning, zoning, subdivision, or building regulation powers (including plumbing, heating, or electrical regulation powers) and is exercising such jurisdiction, then the authority herein granted to City of Greensboro, to the extent that any conflict of jurisdiction may exist, shall not attach unless and until the governing body of such other municipality or political subdivision shall relinquish jurisdiction over said portion of said territory by resolution or ordinance of its governing board or body, or by repealing the regulations which it has adopted, and any such governing body or board is hereby authorized to pass or enact a resolution or ordinance relinquishing such jurisdiction. Except as otherwise herein provided, the authority hereby given to City of Greensboro shall become effective immediately upon the adoption by the City Council of an ordinance making such territory subject to its authority.

(f) The powers herein granted to the City Council are intended to be supplementary to any powers now or hereafter conferred upon it. The exercise of powers herein granted shall be within the discretion of the Council. This Section shall have no effect upon any existing city ordinances. The adoption of any ordinance under authority of this Section shall have no effect upon any litigation pending at the time of adoption of such ordinance.

(g) One but not more than three members of the Greensboro Zoning Commission, authorized by G.S. 160A-387, may be citizens and residents of the territory beyond the corporate limits of Greensboro and within one mile thereof. Members appointed from the territory beyond the corporate limits of the City of Greensboro shall be appointed in the same manner and shall have the same powers and duties as the other members of the Greensboro Zoning Commission, and the laws, ordinances, rules and regulations applicable to the members of the Greensboro Zoning Commission shall be applicable to said members.
(S.L. 1967, Ch. 74, §§ 11, 12; S.L. 1967, Ch. 142, § 9; S.L. 1971, Ch. 29, § 3; S.L. 1973, Ch. 213, §§ 21, 22)

Sec. 5.63. Authority to require installation of certain improvements prior to approval of plats.

(a) In connection with subdivision or platting controls, the City Council may require the improvement and grading of streets and the construction and installation of street pavements, curbs, gutters, sidewalks, and water, sewer, surface water drainage, and other utility mains, as a condition precedent to approval of the plat. The requirements may provide for tentative approval of the plat previous to such improvement and installation; but any such tentative approval shall not be entered on the plat. The requirements may provide that in lieu of completion of the work and installations prior to final approval of a plat the council may accept a bond in an amount and with surety and condition satisfactory to it, providing for and securing to the city the actual construction and installation of the improvements and utilities within a period specified by the council and expressed in the bond. The city is empowered to enforce the bond by all appropriate legal and equitable remedies. Requirements adopted under this subsection may be applied throughout the area over which the city is authorized by law to exercise platting or subdivision controls.

(b) The requirements may provide, in lieu of the completion prior to the final approval of a plat of such work and installation on land within the corporate limits of the city, for an assessment under this charter or under Article 9 of Chapter 160 of the General Statutes [now § 160A-216 et seq.] or other statutory authorization whereby the city may do the work and make the installations at the cost of the owners of the property within the subdivision.

(c) No subdivision plat shall be filed or recorded until it shall have been submitted to and approved by the City of Greensboro acting by and through

such board or agency thereof as is designated by ordinance adopted by the city council and such approval entered in writing on the plat by the city clerk.
(S.L. 1967, Ch. 74, § 13)

Sec. 5.64. Amendments to official zoning map.

The city council may, by ordinance, delegate or assign the authority for the rezoning of property to the zoning commission with certain rights of appeal and review before the city council. Such authority shall be exercised by the zoning commission under such rules, regulations and guidelines as may be established by the city council.

The city council may establish conditional use zoning districts to coincide and correlate with the issuance of conditional use permits. Such districts shall be established and amended under rules, regulations and guidelines as may be established by the city council.
(S.L. 1969, Ch. 142, § 10; S.L. 1973, Ch. 213, § 23)

Sec. 5.65. Creation and duties of board of adjustment.

(a) The city council may provide for the creation and organization of a board of adjustment to which appeals may be taken from the decision of the compliance officer concerning provisions of the zoning, subdivision, mobile home, and sign ordinance of the City of Greensboro and any other provisions of this Greensboro Code of Ordinances in which appeals to the board of adjustment may be provided.

(b) The board shall consist of seven (7) members to serve for three-year overlapping terms. The city council may fix the duties, procedures for appeals to the board and the vote required to reverse the compliance officer. The board of adjustment shall have the power to elect its own officers, to fix the time and places for its meetings, to adopt necessary rules of procedure and to adopt all other rules and regulations not inconsistent with the duties conferred by the city council and which may be necessary for the proper discharge of its duties; and it shall keep an accurate record of all its proceedings.

(c) Every decision of the board shall be subject to review by the Superior Court of Guilford County by proceedings in the nature of certiorari instituted within thirty (30) days of the decision of the board, but not otherwise.
(S.L. 1971, Ch. 29, § 4; S.L. 1986, Ch. 807, § 5; S.L. 2013, Ch. 252, § 2)

Sec. 5.66. Ordinances regulating the removal, replacement and preservation of trees.

The Council may adopt ordinances to regulate the removal of trees and other growth from public and private property within the City of Greensboro in order to preserve, protect and enhance one of the most valuable natural resources of the community and to protect the health, safety and welfare of its citizens. Before adopting or amending any ordinance authorized herein, the Council shall hold a public hearing. A notice of the public hearing shall be given once a week for two (2) successive calendar weeks in a newspaper having general circulation in the area. The notice shall be published the first time not later than fifteen (15) days nor more than twenty-five (25) days before the date fixed for the hearing.
(S.L. 1979, Ch. 288, § 1)

ARTICLE 2. BUILDING REGULATIONS[; BOARD OF BUILDING APPEALS; HOUSING COMMISSION]

Sec. 5.71. Building inspector.

The building inspector shall enforce the city building code, shall perform the functions prescribed by this charter and by general law, and shall perform such additional functions as may be assigned to him/her/them by the City Council.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 5.72. Board of building appeals.

(a) The City Council may provide for the creation and organization of a board of building appeals to which appeals may be taken from the decision of the building inspector upon any provision of the building code of the city.

(b) The board shall consist of seven members to serve for three-year overlapping terms. It shall have power to elect its own officers, to fix the times and places for its meetings, to adopt necessary rules of procedure, and to adopt all other rules and regulations not inconsistent herewith which may be necessary for the proper discharge of its duties; and it shall keep an accurate record of all its proceedings.

(c) An appeal from any decision or order of the building inspector may be taken by any person aggrieved thereby or by any officer, board or commission of the city. Any appeal from the building inspector to the board shall be taken within such reasonable time as shall be prescribed by the board by general rule and shall be taken by filing with the building inspector and with the clerk or secretary of the board, or with such other person as may be designated by the board, a notice of appeal which shall specify the grounds upon which the appeal is based. Upon the filing of any notice of appeal, the building inspector shall forthwith transmit to the board all the papers constituting the record upon which the decision appealed from was made. When an appeal is from a decision of the building inspector refusing to allow the person aggrieved thereby to do any act, his/her/their decision shall remain in force until modified or reversed by the board. When any appeal is from a decision of the building inspector requiring the person aggrieved to do any act, the appeal shall have the effect of suspending the requirement of the building inspector until the hearing by the board, unless the building inspector certifies to the board, after the notice of appeal is filed with him/her/them, that by reason of the facts stated in the certificate (a copy of which shall be furnished the appellant), a suspension of his/her/their requirement would cause imminent peril to life or property, in which case the requirement shall not be suspended except by a restraining order, which may be granted, for due cause shown and upon not less than one day's written notice to the building inspector, by the board or by the Superior Court of Guilford County.

(d) The board shall fix a reasonable time for the hearing of all appeals and shall render its decision within a reasonable time. Any party may appear in person or by agent or attorney. The board may reverse or affirm, wholly or partly, or may modify the decision appealed from, and may make such decision and order as in its opinion ought to be made in the matter, and to that end it shall have all the powers of the building inspector; but the concurring vote of four members of the board shall be necessary to reverse or modify any decision of the building inspector. In passing upon appeals, the board shall have power not only to determine whether the decision of the building inspector is made upon a proper construction of the pertinent provisions of the building code but it shall have power also to allow materials and methods of construction other than those required by the building code to be used when in its opinion other materials and methods of construction are as good as those required by the code; and for this purpose the requirements of the building code shall be considered as a standard to which construction shall conform. The board shall have power also in passing upon appeals, in any case where there are practical difficulties or unnecessary hardships in the way of carrying out the strict letter of the building code, to adapt the application of the code to the necessities of the case to the end that the spirit of the code shall be observed, public safety and welfare secured and substantial justice done.

(e) Every decision of the board shall be subject to review by the Superior Court of Guilford County by proceedings in the nature of certiorari instituted within fifteen (15) days of the decision of the board, but not otherwise.
(S.L. 1969, Ch. 142, § 11; Ord. No. 20-163, § 3, 12-15-20)

Sec. 5.73. Fees for building inspection and related matters.

The City Council may fix its own fees, notwithstanding any State law for fixing such fees generally, for the inspection of: (1) the construction, alteration, repair, removal and demolition of buildings; (2) all plumbing, electrical, heating and air conditioning work done in the city; and (3) the erection, installation, repair,

maintenance and operation of smokestacks and smoke-producing apparatus of any kind whatsoever.

Sec. 5.74. Housing commission.*

(a) The city council may provide for the creation and organization of a housing commission to which appeals may be taken from the decision of the compliance officer upon any provision of the housing code of the city.

(b) The commission shall consist of seven members to serve for three-year overlapping terms. It shall have power to elect its own officers, to fix the times and places for its meetings, to adopt necessary rules of procedure, and to adopt all other rules and regulations not inconsistent herewith which may be necessary for the proper discharge of its duties; and it shall keep an accurate record of all its proceedings.

(c) An appeal from any decision or order of the compliance officer may be taken by any person aggrieved thereby or by any officer, board or commission of the city. Any appeal from the compliance officer to the commission shall be taken within such reasonable time as shall be prescribed by the commission by general rule and shall be taken by filing with the compliance officer and with the secretary of the commission a notice of appeal which shall specify the grounds upon which the appeal is based. Upon the filing of any notice of appeal, the compliance officer shall forthwith transmit to the commission all the papers constituting the record upon which the decision appealed from was made. When an appeal is from a decision of the compliance officer refusing to allow the person aggrieved thereby to do any act, his/her/their decision shall remain in force until modified or reversed. When any appeal is from a decision of the compliance officer requiring the person aggrieved to do any act, the appeal shall have the effect of suspending the requirement of the compliance officer until the hearing by the commission, unless the compliance officer certifies to the commission, after the notice of appeal is filed with him/her/them, that by reason of the facts stated in the certificate (a copy of which shall be furnished the appellant), a suspension of his/her/their requirement would cause imminent peril to life or property, in which case the requirement shall not be suspended except by a restraining order, which may be granted, for due cause shown and upon not less than one day's written notice to the compliance officer, by the commission or by the Superior Court of Guilford County.

(d) The commission shall fix a reasonable time for the hearing of all appeals and shall render its decision within a reasonable time. Any party may appear in person or by agent or attorney. The commission may reverse or affirm, wholly or partly, or may modify the decision appealed from, and may make such decision and order as in its opinion ought to be made in the matter, and to that end it shall have all the powers of the compliance officer; but the concurring vote of four members of the commission shall be necessary to reverse or modify any decision of the compliance officer. The commission shall have power also in passing upon appeals, in any case where there are practical difficulties or unnecessary hardships in the way of carrying out the strict letter of the housing code, to adapt the application of the code to the necessities of the case to the end that the spirit of the code shall be observed, public safety and welfare secured and substantial justice done.

(e) Every decision of the commission shall be subject to review by the Superior Court of Guilford County by proceedings in the nature of certiorari instituted within fifteen days of the decision of the commission, but not otherwise.

(f) If a person fails to comply with an order of the compliance officer or, upon appeal, an order of the Housing Commission to repair, alter, improve, vacate, close or demolish a building or dwelling, the compliance officer may cause such building or dwelling to be repaired, altered, improved, vacated, closed or demolished; provided that the duties of the compliance officer as set forth herein shall not be exercised until the Housing Commission shall have, by resolution or

*__Editor's note—__It should be noted that Ord. No. 93-141, adopted Nov. 15, 1993, provided that the name of the "housing commission" be changed to the "minimum housing standards commission" throughout the Code of Ordinances, see Code § 11-46 et seq. However, no provision was specified for like change to the Greensboro Charter.

other written decree, ordered the compliance officer to proceed to effectuate the above purposes with respect to the particular property or properties involved.
(S.L. 1961, Ch. 686, § 12; S.L. 1963, Ch. 55, § 10; S.L. 1967, Ch. 74, § 14; S.L. 2013, Ch. 252, § 3; Ord. No. 20-163, § 3, 12-15-20)

Sec. 5.75. Creation and duties of housing development clearinghouse commission.

(a) The City Council may provide for the creation and organization of a housing development clearinghouse commission to serve as an advisory body to the City Council, other local public agencies, sponsoring agencies and financing agencies of government-assisted housing developments on matters pertaining to existing and proposed government-assisted housing developments. The City Council may require that prior to the issuance of any building permit or certificate of occupancy for any proposed government-assisted housing development, plans for such development shall have been submitted to the commission for review, recommendation, suggestions and advice; provided, however, that the recommendation, suggestions or advice of the commission shall not preclude the subsequent issuance of any building permit or certificate of occupancy; and provided further, that failure of said commission to act upon said plans within sixty (60) days of submission shall be deemed to constitute approval of said plans.

(b) For the purposes of recommending, promoting and coordinating local goals, objectives and standards in regard to government-assisted housing developments, the City Council may assign to the commission such duties as it deems necessary including but not limited to the following:

(1) To initiate studies in regard to the locations and environments of existing and proposed government-assisted housing developments and to develop and promote citywide goals, objectives and standards for such housing developments; and

(2) To make recommendations to appropriate public and private agencies for actions it deems necessary in furtherance of local goals, objectives and standards for government-assisted housing developments; and

(3) To serve as a clearinghouse for the purpose of reviewing proposals for government-assisted housing referred to the commission and for the purpose of making recommendations to the appropriate agencies in regard to the degree of compliance of such proposals with local goals, objectives, and standards and other such recommendations, suggestions, or advice as the commission may deem appropriate; and

(4) To perform such other duties as may be assigned it from time to time by the City Council.

(c) The City Council may provide for the membership of the commission including ex-officio members, the manner of appointment, the tenure of office and other rules of procedure regarding such commission as it deems appropriate; provided, that the commission shall adopt such rules and regulations, not inconsistent with those conferred by the city council, which may be necessary and desirable for the proper discharge of its duties and shall keep an accurate record of all of its proceedings.
(S.L. 1971, Ch. 853, § 1)

SUBCHAPTER E. UTILITY REGULATIONS

Sec. 5.91. Public utility franchises.

(a) The Council may grant franchises for any public utility in the manner provided by law, and, in its discretion and in accordance with subchapter D of Chapter II, may hold a referendum at the expense of the applicant on the question of granting a franchise.

(b) Franchises granted hereunder:

(1) Shall extend for such periods as the Council may determine, not to exceed sixty years, and may be renewable;

(2) Shall be revocable at the will of the Council for violation of their terms or conditions;

(3) Shall—if they pertain to streets, sidewalks, public grounds or places in the city—be separately taxable, such taxes to be in addition to all other taxes; except when such imposition by the city is prohibited by any statute now or hereafter in effect;

(4) May not be transferred without the approval of the Council;

(5) May contain such provisions—consistent with the General Statutes relating to the jurisdiction of the State Utilities Commission—as the Council deems proper concerning service, facilities, maintenance, operation, rates, accounting, reports and other matters; and

(6) May reserve to the city the right to purchase the utility properties covered by the franchise upon such terms (including price) as may be provided for by the franchise, but in no event shall the value of the franchise by considered in determining the purchase price.

SUBCHAPTER F. VEHICLES AND TRAFFIC

ARTICLE 1. CITY REGULATION OF VEHICLES AND TRAFFIC IN GENERAL

Sec. 5.111. Authority of city council to adopt regulations.

(a) Subject to the provisions of subsection (b) of this Section, the City Council may adopt ordinances regulating the speeds of vehicles upon any city streets and may establish truck routes (or other required routes for limited classes of vehicles or traffic) applicable to any city streets. As used in this Section the term "city streets" includes all public highways, roads and streets within the city limits, including numbered State highways, and highways, roads and streets maintained, repaired, constructed, re-constructed or widened in whole or in part with State funds.

(b) An ordinance concerning vehicle speeds, truck routes or other required routes that applies to numbered State highways shall become effective only as provided in this subsection. The Council shall transmit to the State Highway Commission by registered mail a copy of the ordinance upon its adoption. The ordinance shall become effective if not disapproved by the commission within twenty days following the next regular meeting of the commission after the commission has received a copy of the ordinance.

(c) The authority herein granted to the City Council shall be in addition to any authority conferred by general law upon the City Council or the city to regulate vehicles, traffic or the use of city streets.

(d) The city council shall have authority to provide for the towing and impounding of vehicles unlawfully parked on city streets and on other public places.
(S.L. 1961, Ch. 686, § 13)

Sec. 5.112. Power to regulate ambulances and wreckers.

The Council may establish regulations governing the operations of ambulances, wreckers, and other motor vehicles used in connection with emergencies, disasters, or accidents, and may provide for the operation of an ambulance service or a wrecker service, or to enter into a contract or contracts for the providing of such service by a private person or persons.

Sec. 5.113. Power to regulate obstruction of alleys.

If, in the opinion of the City Council, a fire hazard is created by the obstruction of private alleys, the City Council may adopt regulations governing the obstruction of private alleys, either by reason of the parking of motor vehicles or otherwise but such regulations shall not be construed so as to restrict or limit the legal right of the owners of interests in a private [private] alley to close the alley or to exercise other property rights therein.

Sec. 5.114. Location of traffic control devices.

The City Council may authorize an official to designate the location of official traffic control devices, upon a determination by him/her/them:

(1) If such a device is to be installed at a particular location, that its installation is necessary in order to control traffic congestion in the interest of public safety; or

(2) If such a device is to be moved or removed from a particular location, that the device is no longer required at such location for control of traffic congestion in the interest of public safety.

An "official traffic control device," as used in this Section is a sign, signal, marking, or device, including a parking meter, which is intended to regulate vehicular or pedestrian traffic.
(Ord. No. 20-163, § 3, 12-15-20)

ARTICLE 2. TRAFFIC BUREAU

Sec. 5.121. Authority of city council to create a traffic bureau.

(a) The City Council may provide a traffic bureau to handle the following traffic violations:

Parking over the allowed time

Parking between one a.m. and six a.m.

Parking more than twelve inches from the curb

Parking within twenty-five feet of an intersection

Parking too close to a fire hydrant

Parking in a non-parking space

Illegal use of loading zones, bus stops and taxi stands

Parking at entrance of alley or driveway

Parking at left side of curb

Double parking

Not displaying proper lights

Making U turn in street where prohibited

Illegal left or right turn

Disregard of stop sign

Not displaying city license

Obstructing traffic

Other violations of traffic ordinances enumerated in such ordinance.

(b) The Council may eliminate any traffic violations from the foregoing schedule.

(c) The Council may establish maximum civil penalties for any traffic violations as established above including for overtime parking.

(d) Any person receiving a citation or ticket by any police officer or other designated official of the City of Greensboro for any traffic violation including overtime parking may pay the applicable civil penalty as may be fixed by the Council and be discharged.

(e) No State tax shall be paid to the State of North Carolina in cases finally disposed of by the traffic bureau.

(f) The City Manager shall designate a sufficient number of persons to operate the traffic bureau.

(g) All civil penalties collected in the traffic bureau shall be paid into the general fund of the City of Greensboro.
(S.L. 1969, Ch. 142, § 12; S.L. 1979, Ch. 288, § 2)

Chapter VI

CITY SERVICES AND FACILITIES

SUBCHAPTER A. ESTABLISHMENT AND MAINTENANCE OF SERVICES AND FACILITIES

ARTICLE 1. ANIMAL SHELTERS

Sec. 6.01. Joint animal shelters.

The City Council may participate in the construction, operation and management of one or more animal shelters for the joint use of

Guilford County and the cities of Greensboro and High Point, as provided by Chapter 314 of the Session Laws of 1955.
(S.L. 1959, Ch. 1137, § 6.01)

ARTICLE 2. CITY CEMETERIES

Sec. 6.11. Sale of cemetery lots.

Lots may be sold and maintained in cemeteries owned by the city under rules and regulations prescribed by the city manager and approved by the city council. The city council shall establish sale prices and fees for opening graves, and may prohibit or regulate burials at places other than in cemeteries owned by the city.
(S.L. 1961, Ch. 686, § 14)

ARTICLE 3. FIRE PROTECTION SERVICES

Sec. 6.21. Power to destroy property to stop fires.

The Mayor, City Manager or any two members of the City Council may order the blowing up, tearing down or other destruction of any building when it is deemed necessary to stop the progress of a fire. No person shall be held liable, civilly or criminally, for acting in obedience to orders, nor shall the city, the Mayor, the City Manager, or the Council members be held liable, civilly or criminally, for the giving of such orders or for damages to property ordered destroyed.

ARTICLE 4. GARBAGE AND REFUSE DISPOSAL

Sec. 6.31. Liens for garbage and refuse disposal charges.

The Council may establish charges to be made for garbage and refuse disposal. In case any charge for the removal and disposal of garbage and refuse is not paid within ten days after it becomes due, the charge shall become a lien against the property served or in connection with which the service or facility is used and may be collected thereafter in the manner provided by Section 6.83 for collection of utility charges.

Sec. 6.32. Liens for cost of removal of motor vehicles.

The Council may establish charges to be made for the cost of removing abandoned motor vehicles from private property. When the City causes the removal of any vehicle from private property pursuant to an ordinance permitting such removal and the owner or other person having control of said property fails to pay the cost of removal within thirty days after it becomes due, the amount of the cost of removal of such vehicle shall become a lien against the real property from which said vehicle was removed; said cost shall be placed upon the municipality's tax books against the said property and may be collected and the said lien may be foreclosed in the same manner as taxes are collected and foreclosed, or by suit, as the municipality may determine.
(S.L. 1969, Ch. 142, § 13)

ARTICLE 5. RECREATIONAL FACILITIES

Sec. 6.41. Power to regulate use of facilities.

(a) The City Council may:

(1) Regulate the use of War Memorial and other recreation facilities belonging to the city;

(2) Regulate recreational uses of the city lake and other city-owned reservoirs or bodies of water;

(3) Promote athletic events and other recreation and entertainments in or involving any such facilities, reservoirs, or bodies of water, or contract for the promotion of athletic events, entertainment or recreation events, by leasing such facilities as provided in this charter, or otherwise.

(b) With respect to the use of city-owned reservoirs or bodies of water, the council may:

(1) Adopt regulations concerning boating on city-owned reservoirs and the taking of fish therefrom (including regulations of the size, kind and number of fish that may be taken, and of fishing season);

(2) Fix charges for fishing permits, boating permits, rental of fishing tackle and sale of bait;

(3) Employ wardens to enforce any such regulations, and stock such reservoirs with fish, and any lake wardens so employed shall, upon taking a proper oath, have all of the powers of peace officers, including the power of arrest, for the purpose, and no other, of enforcing federal and state laws, and ordinances, rules and regulations of the city, which laws, ordinances, rules and regulations pertain to the protection of the city watershed and the protection of game and wildlife in said area; provided, that such lake wardens shall not be police officers of the city, nor shall they be eligible for membership in the Law Enforcement Officers Benefit and Retirement Fund, or the Greensboro Police Emergency Reserve Fund; and

(4) Exercise all other rights and privileges incident to the ownership of such properties.

(c) With respect to the use of city-owned or leased parks, playgrounds and recreation areas, the Council may:

(1) Adopt rules and regulations concerning the use of such property and facilities located thereon and fix charges for camping and boating in addition to any other charges the Council may deem appropriate.

(2) Employ park rangers to enforce any such rules and regulations and any rangers so employed shall, upon taking a proper oath, have all of the powers of peace officers, including the power of arrest, for the purpose, and no other, of enforcing federal and state laws and ordinances, rules and regulations of the City pertaining to parks and recreation areas; provided, that such park rangers shall not be police officers of the City nor shall they be eligible for membership in the Law Enforcement Officers Benefit and Retirement Fund or the Greensboro Police Emergency Fund.

(3) Exercise all other rights and privileges incident to the ownership or use of such properties.

(S.L. 1961, Ch. 686, § 15; S.L. 1967, Ch. 74, § 15)

ARTICLE 6. ROADS AND STREETS

Sec. 6.51. Establishment of proposed street lines.

Whenever, in the opinion of the City Council, it is for the best interest of the city that any street should be widened or extended, or both, or that a new street should be opened, the Council may pass an ordinance declaring that such street should be widened or extended, or both, or that such new street should be opened, and shall lay out in the ordinance the lines within which such street should be widened, extended, or opened. If any street under the provision of such ordinance is to be widened, it need not be widened on both sides; and, if it is to be widened on both sides, the distance to be widened on both sides need not be the same. Any ordinance introduced for the purpose of widening, extending, or opening any street under the provisions of this charter, may not be adopted until the proposed ordinance is published in a newspaper published in the city and qualified to carry legal notices at least two times, on separate days at least ten days before the passage of the ordinance, or, if there be no such newspaper, posted in three public places in the city. There shall be posted or published with the ordinance a notice stating when property owners may be heard by the Council. A public hearing on the question of the adoption of such ordinance shall be held prior to the passage of the ordinance.

Sec. 6.52. Notice to city required before improvement.

After the passage of such ordinance, it shall be unlawful for any land within the proposed street lines established by such ordinance to be built upon or improved, or for any part of any existing building within said lines to be repaired or

otherwise improved until the city shall have first been given an opportunity to purchase or otherwise acquire said property for street purposes as provided in this charter. To that end, any person proposing to build upon such land or to make repairs or improvements to that part of any existing building situated thereon shall, in writing, notify the City Council of the nature and estimated cost of such building, repairs, or improvements. The Council shall then determine whether it will take the necessary steps to acquire said land prior to the construction of said building or the making of such repairs or improvements, and if it fails within sixty days from date of receipt of said notice to acquire, or to institute condemnation proceedings to acquire, said property, the owner or other person giving such notice may proceed to erect the building in accordance with the ordinances and regulations of the city, or to make the repairs or improvements described in said notice.

Sec. 6.53. Failure to give notice bars recovery.

If any person, firm, or corporation builds upon any land included within proposed street lines, or repairs or otherwise improves that part of any existing building within proposed street lines without giving the city an opportunity to acquire said land free from said improvements, as provided in the preceding Section, the city shall not be required to pay for the value of the building, repairs, or improvements in any proceeding subsequently brought to acquire said land for the purpose set out in said Section.

Sec. 6.54. Acquisition of land.

If upon receiving any notice in compliance with Section 6.52, the City Council determines to acquire said land immediately, it may acquire the same by grant, purchase, or condemnation. In no case shall an effort to purchase said land be necessary to the institution of condemnation proceedings. If the Council determines to proceed by condemnation, the condemnation shall be as set forth in this charter.

Sec. 6.55. Cost of land acquired for street widening to be assessed as part of improvement.

After any land has been purchased or condemned for the purpose of widening, extending, or opening any street, and the land purchased or condemned lies within the limits of an improvement directed in said proceeding, then the amount paid by the city for the land purchased or condemned, together with the cost of the condemnation proceeding and interest on said amount paid and costs at the rate of six per cent per annum from the date of payment, shall be included in the cost of said improvement and shall be assessed as provided by law against the property to be assessed for the improvements.

Sec. 6.56. Exercise of condemnation power after failure to condemn following notice.

The failure of the city to acquire any land within sixty days after receiving notice that the same is to be built upon, or that a building thereon is to be repaired or otherwise improved, or its failure within said time to institute proceedings to condemn the same shall not limit the right of the city at any subsequent time to condemn the same; but in such case the owner shall be entitled to compensation as now provided by law for the building, repairs, or improvements made after the giving of the required notice and the failure of the city to acquire said land free of said improvements.
(S.L. 1961, Ch. 686, § 16)

Sec. 6.61. Power to close streets.

(a) The city council shall have the power to close any street or portion thereof that is now or may hereafter be opened or dedicated, either by the recording of a subdivision plat or otherwise. In addition, upon receipt of a sufficient petition signed by the owners of a majority of the property abutting a street, requesting that it be closed, and after an investigation of the sufficiency of the petition by the city attorney, the city clerk shall publish a notice of a public hearing to be held by the council, such publication to be once a week for two (2) successive weeks in a newspaper

published in the city which is qualified to carry legal notices; the notice shall be published the first time not less than ten (10) days nor more than twenty-five (25) days before the date fixed for the hearing. Any individuals owning property abutting a street who do not join in the request for closing the street shall be notified by registered letter of the time and place of the public hearing. If it appears to the satisfaction of the city council that the closing of the street is not contrary to the public interest, and that no individual owning property in the vicinity of the street or in the subdivision in which it is located will thereby be deprived of reasonable means of ingress or egress to his/her/their property, the city council may order the closing of the street; provided, that any person aggrieved may appeal within thirty (30) days from the order of the council to the Superior Court of Guilford County, where the question shall be heard de novo. Upon such an appeal, the superior court shall have full jurisdiction to decide the matter upon the issues arising and to order the street closed upon proper finding of fact by a jury. A certified copy of the order of the council (or the judgment of the superior court in the event of an appeal) shall be filed in the office of the Register of Deeds of Guilford County. Upon the closing of a street in accordance with the provisions of this section, all right, title, and interest in the portion of the street closed shall be conclusively presumed to be vested in the owners of the lots or parcels of land abutting the portion of the street closed, and the title of each of such owners shall, for the width of the abutting land owned by such persons, extend to the center of the street. Copies of all registered letters giving the notice required by this section, and the return receipts or other good and sufficient evidence of the giving of the required notice shall be filed in the office of the city clerk together with the resolution ordering said closing; provided, a certified copy of the resolution of the council ordering the closing of the street or streets shall be recorded in the office of the Register of Deeds of Guilford County. No final action shall be taken by the city council to close a street until the matter has been referred to the Greensboro Planning Board for study and recommendations, but no public hearing shall be necessary before the Greensboro Planning Board.

(b) The resolution ordering the closing of a street may provide for utility rights-of-way to be retained by the city or public utility company, if needed.

(c) The provisions contained herein shall not be construed to limit the authority of the city under this charter or under general law to sell, exchange, convey, or otherwise dispose of any fee interest which it may have acquired in any street.

(S.L. 1965, Ch. 42, § 8; S.L. 1986, Ch. 807, §§ 2, 3; Ord. No. 20-163, § 3, 12-15-20)

ARTICLE 7. WATER SUPPLY, SEWERAGE AND WASTE DISPOSAL AND OTHER UTILITIES

Sec. 6.81. Operation of water systems, sewerage and waste disposal systems, and other utilities.

(a) The City Council may:

(1) Provide for the construction or acquisition and operation of utilities and utility systems;

(2) Acquire any real or personal property necessary or incidental thereto, including equipment, machinery, and all manner of rights or interests in or relating to land and water, and appurtenances thereto; and

(3) Establish rates of charge for utility services and for the use of utility facilities.

(b) The City Manager shall have the entire supervision and control of the management of all city utilities and utility systems. With the approval of the City Council he/she/they may adopt rules and regulations:

(1) Concerning the management of utility and utility systems, with regard to such matters as maintenance, operation, and improvement thereof, or requiring the pretreatment of waste; and

(2) Concerning collection of charges for utility services and for the use of utility facilities. If pursuant to any rule or

regulation utility service to any property is discontinued, it shall be unlawful for any person, firm or corporation without the City Manager's approval to renew a utility service or to use it without having first paid any outstanding charges and obtained the approval of the City Manager. Violations of this paragraph shall be misdemeanors punishable by a fine of not exceeding fifty dollars ($50.00), or imprisonment for not exceeding thirty days.

(c) As used in this charter, unless the context otherwise requires, the term "utility" includes water supply, water distribution, sewerage, waste disposal, electric power, gas, and public transportation utilities.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 6.82. Water connection by abutting owners.

The City Council may require that within thirty days after a water main or sewer main is completed and made ready for use, the owner of every abutting lot whereon water is supplied for any human use shall cause the lot to be connected to the water main or sewer main.

Sec. 6.83. Liens for utility charges.

(a) Except as provided in subsection (b) of this section, when any charge for utility service or for the use of utility facilities is not paid within ten days after it becomes due, the same shall become a lien upon the property served or in connection with which the service or facility is used. The charge may at any time thereafter be collected, either by suit in the name of the city or by the city tax collector for the city, by the sale of the property upon which the lien attaches at the Guilford County courthouse door, after advertising the sale once a week for four successive weeks in some newspaper published in the city which is qualified to carry legal notices. The sale shall be made under the same rules and regulations, and subject to the same costs and penalties and to the same rights of redemption as are provided by law for the foreclosure of the lien on real estate for taxes.

(b) When any charge for utility service or for the use of utility facilities is for a rental property and the tenants of the rental property are individually liable for the charge, the city shall collect any charge that is incurred and becomes past-due after July 1, 2010, pursuant to the provisions of G.S. 160A-314 and any other applicable general or local law. The city shall not collect any charge from a tenant that is incurred and becomes past-due after July 1, 2010, under the provisions of subsection (a) of this section.
(S.B. 177, 6-15-2011)

Sec. 6.84. Deposits by tenants; final disposition of deposits.

In addition to other remedies now provided for the collection of any charge for utility service or the use of utility facilities and as a part of the cost of such utility service, a deposit by a tenant of the premises to be served may be required. The deposits may vary according to the type of service. The utility service charge, if not paid within the time designated, may be deducted from the deposit and utility service may be cut off and not be turned on again until the balance of the deposit is increased to the original amount thereof. In order that the utility of the city may be protected and that the costs of services shall be paid by the person receiving such services, a tenant may give notice that the premises have been or will be vacated and that the utility should be cut off, and, in the event that all charges due are paid he/she/they shall be entitled to the return of his/her/their deposit. In the event the tenant shall vacate the premises without notifying the city and having the utility cut off, he/she/they shall forfeit to the city any balance of such deposit remaining after the utility service charge due has been deducted. Such forfeited money may be used by the city for the payment of principal or interest on the bonded indebtedness of the city incurred for the utility involved or the money may be used for the maintenance or extension of the utility service involved.
(S.L. 1961, Ch. 686, § 17; Ord. No. 20-163, § 3, 12-15-20)

ARTICLE 8. LIBRARY BOARD OF TRUSTEES

Sec. 6.87. Powers and duties of the Board of Trustees of the Greensboro Public Library.

The Board of Trustees of the Greensboro Public Library shall elect one of its members as chairperson. It may also elect a secretary and a treasurer and such other officers as it may deem necessary, either from the members of the board or from the employees of the library. The duties of the board shall be as follows:

(a) To adopt such bylaws, rules and regulations for its own guidance and for the government of the library as may be necessary and in conformity with the law.

(b) To supervise and care for the physical facilities constructed, leased or set apart for library purposes.

(c) To advise and make recommendations to the city council concerning the lease or purchase and occupancy of appropriate building or buildings, or the erection of appropriate building or buildings upon lands acquired by gift, devise or purchase.

(d) To make recommendations to the city manager concerning the appointment of a chief librarian or director of library services, assistant librarians and other employees, and the removal of such librarians or employees; provided, that no vacancies existing or occurring in the position of chief librarian or director in any such library shall be filled by the appointment or designation of any person who is not certified as a professional librarian by the North Carolina Library Certification Board under the provisions of G.S. 125-9 or G.S. 125-10.

(e) To make recommendations concerning the annual budget for the library to the city manager and city council.

(f) With the consent of the city council to extend the privileges and use of such library to nonresidents of the county or municipality, upon such terms and conditions as it may prescribe.

(g) To submit an annual report to the city council with a copy thereof filed with the North Carolina State Library Board.

(h) To perform such other duties as may be assigned to it from time to time by the city council.

(S.L. 1967, Ch. 74, § 16; Ord. No. 20-163, § 3, 12-15-20)

Sec. 6.88. In lieu of other powers conferred by general law.

The above powers and duties are in lieu of those powers and duties set out under G.S. 160-70 [now 153-250.6] and are not intended to be supplementary thereto.
(S.L. 1967, Ch. 74, § 16)

SUBCHAPTER B. EMINENT DOMAIN AND LOCAL IMPROVEMENTS

ARTICLE 1. RESERVED*

ARTICLE 2. LOCAL IMPROVEMENTS AND ASSESSMENTS FOR LOCAL IMPROVEMENTS†

Sec. 6.131. Authority to make local improvements.

The City Council shall have authority to make the local improvements described in this charter,

*__Editor's note—__S.L. 1986, Ch. 807, § 4, ratified June 26, 1986, repealed Ch. 6, Subchapter B, Article 1, §§ 6.101—6.120, pertaining to eminent domain, which provisions were amended by S.L. 1967, Ch. 74, §§ 17—19; S.L. 1969, Ch. 142, § 14; S.L. 1971, Ch. 29, § 5; S.L. 1973, Ch. 784, § 1.

†__Editor's note—__S.L. 1967, Ch. 74, § 21, ratified March 21, 1967, provided as follows: "All proceedings of the City Council of the City of Greensboro and all work performed relative to local improvements, including street paving, sidewalk construction, water and sanitary sewer construction, including water and sanitary sewer mains, lines and laterals, and all work incidental to such local improvements and the assessments levied and assessed therefor, are hereby in all respects approved and validated." Like provisions were included in S.L. 1969, Ch. 142, § 17.

and to assess the cost against benefited property. The procedure set forth in this Article shall not be exclusive, but shall be in addition to any other procedure provided by law.

Sec. 6.132. Separate proceedings not required.

One or more local improvements may be made in a single proceeding, and assessments for one or more local improvements may be combined.

Sec. 6.133. Definitions.

Certain words and phrases will be used with the following meanings with reference to local improvements, unless some other meaning is plainly intended:

(a) A "street" is the entire width between property lines of every way or place, of whatever nature, when any part thereof is dedicated or open to the use of the public as a matter of right for the purpose of vehicular or pedestrian traffic.

(b) A "sidewalk" is the part of a street which is used, or to be used, for pedestrian traffic.

(c) A "storm sewer" is a conduit above or below ground for the passage of storm water, and may include a pumping station and outlet where deemed necessary, and may also include the building of culverts over or the enclosing of streams where needed to carry off storm water.

(d) A "sanitary sewer" is an underground conduit for the passage of sewage and may include a pumping station and outlet.

(e) A "water main" is a pipe for the passage of city water for public hydrants and private and public use and consumption.

(f) A "lateral" is a pipe connecting a storm or sanitary sewer or water main with the line of adjacent property or the curbline, being either a sewer lateral or water lateral, but does not include a building connection, that is, a pipe extending from a lateral at the property line or curbline to the house or plumbing fixture to be served.

(g) A "roadway" is the part of a street which is used, or to be used, for vehicular traffic.

(h) The word "sewer" includes both sanitary and storm sewers unless a contrary intention is shown.

Sec. 6.134. Improvements described.

The Council shall have authority to make the following local improvements:

(a) Roadway paving improvements, which include the grading, regrading, paving, repaving and widening of roadways, or the improvement thereof with any treatment designed to provide an improved wearing surface, with necessary drainage, sewer inlets, manholes and catch basins and the construction or reconstruction of retaining walls made necessary by any change of grade incident to such improvement, and in any case where the improvement is made upon petition if the petition so requests, or in any case where the improvement is made without petition if the Council so directs, it may include the construction or reconstruction of curbs, gutters, drains, and sidewalks.

(b) Water main improvements, which include the laying or construction of water mains, the relaying where necessary of parts of paved roadways and sidewalks torn up or damaged by the laying or construction of such mains, and, in any case where the improvement is made upon petition and the petition so requests, or in any case where the improvement is made without petition and the Council so directs, the laying of water laterals.

(c) Sanitary sewer improvements, which include the laying or construction of sanitary sewers, the relaying, where necessary, of parts of roadways and sidewalks torn up or damaged by the laying or

construction of such sewers, and in any case where the improvement is made upon petition and the petition so requests, or in any case where the improvement is made without petition and the City Council so directs, the laying of sanitary sewer laterals.

(d) Storm sewer improvements, which include the laying or construction of storm sewers, the relaying, where necessary, of parts of paved roadways and sidewalks torn up or damaged by the laying or construction of such sewers, and in any case where the improvement is made upon petition and the petition so requests, or in any case where the improvement is made without petition and the Council so directs, the laying of storm sewer laterals.

(e) Sidewalk improvements, which include the grading, regrading, construction, reconstruction and repair of paved or other improved sidewalks, the construction or reconstruction of retaining walls made necessary by and incident to such improvements, and, in any case where the improvement is made upon petition, if the petition so requests, or in any case where the improvement is made without petition if the Council so directs, it may include the construction or reconstruction of curbs, gutters and drains, and the construction or reconstruction of all such portions of driveways as in the judgment of the Council ought to be laid in the street area.

(f) Grass plot improvements, which include the grading and planting of grass plots in a street.

Sec. 6.135. Water and sewer mains between streets.

Whenever the Council finds it in the public interest, and it will be more economical and the interest of the property owners will best be served by constructing either water or sanitary sewer mains, or both, between streets rather than in a street, the petition may provide therefor, or in the event the water and sanitary sewer mains may be constructed in a street without petition, they may be constructed between streets without petition. The cost of the construction of such water or sewer mains and laterals shall be assessed according to the street frontage in the same manner and to the same extent that it would be assessed if the improvements were constructed in a street; provided that the city shall provide the rights-of-way for construction and maintenance of such mains at its own expense without assessing the cost thereof.

Sec. 6.136. Inclusion of more than one improvement in single proceeding.

(a) Any proceeding may include one or more local improvements on one or more streets, but all improvements included in one procedure shall be practically uniform in cost and kind. A petition may include improvements on only one side of a street.

(b) The petition may provide for making any one or more local improvements in or on a street or streets and for the assessment of the cost thereof, except the city's portion, wholly against the property abutting one side of such street or streets or otherwise against such abutting property as may be designated in the petition in any of the following cases: (1) In any case where there is park land or unimproved land abutting one side, or a part of one side, of a street; or (2) where the land abutting one side, or a part of one side of a street, is of such a nature or is devoted to such a purpose that a special assessment against it cannot be made, or, if made would probably exceed the value of the land assessed; or (3) where the owners of all the property to be assessed agree thereto.

Sec. 6.137. The petition; certificate of sufficiency.

(a) Except as otherwise provided in subsection (b), the petition for any local improvements shall designate by a general description the improvements proposed, and shall request that such proportion of the cost of each of such improvements as may be specified in the petition be specially assessed against the property abut-

ting on the street or streets or part thereof in which or on which such improvements are proposed to be made. The petition shall be filed with the city attorney.

(b) (1) In any case where the improvement is to be made on one side of a street only, the petition shall request that the assessment be made only against the property abutting that side of the street whereon the improvement is to be made.

(2) In any case where it is proposed to assess the cost of any local improvement covering the entire width of a street against the land abutting one side of the street only or against any lands less than all of those abutting the improved portion of the street, such petition shall designate the lands to be assessed.

(c) Except as otherwise provided in subsection (d), the petition shall be signed by at least a majority in number of the owners, which majority must own at least a majority of all the lineal feet of frontage, of the lands abutting the street or streets or part of a street or streets proposed to be improved, excluding street intersections.

(d) (1) A petition for the making of local improvements on one side of a street only need be signed only by a majority in number of the owners of land abutting the side of the street whereon such improvement is to be made, which majority must own at least a majority of all the lineal feet of frontage of the lands [land] abutting such side of the street, excluding street intersections.

(2) Any petition for the making of any improvements covering the entire width of a street and the assessment of the cost thereof against the land abutting one side of the street only or against any lands less than all of those abutting the improved portion of the street, shall be signed by all of the owners of the lands thus proposed to be assessed.

(e) (1) For the purpose of the petition, all the owners of undivided interests in any land shall be deemed and treated as one person and such land shall be sufficiently signed for when the petition is signed by the owner or owners of a majority in amount of such undivided interest.

(2) For the purpose of this Section the word "owners" shall be considered to include the owners of any life estate, of an estate by entirety, or of the estate of inheritance, and shall not include mortgages [mortgagees], trustees of a naked trust, trustees under deeds of trust to secure the payment of money, lienholders, or persons having inchoate rights of curtesy or dower.

(f) Upon the filing of such petition, the city attorney shall investigate the sufficiency of the petition, and if it is found to be sufficient, he/she/they shall certify the same to the Council. (Ord. No. 20-163, § 3, 12-15-20)

Sec. 6.138. When petition unnecessary.

(a) No petition shall be necessary for the making of any local improvements for which the city bears the entire cost without assessment.

(b) If, in the judgment of the City Council, the abutting property to be assessed will be benefited in an amount at least equal to the assessment, no petition for local improvement[s] shall be necessary in the cases set forth in subsections (c) through (g) of this Section.

(c) Street Paving Improvements—When, in the judgment of the Council:

(1) Any street or part of a street is unsafe; or

(2) The improvement of a street or part of a street not more than three blocks in length is necessary to connect streets already paved; or

(3) The improvement of a street or part of a street is necessary to connect a paved street, or portion thereof, within the city with a paved highway beyond the city limits; or

(4) The improvement of a street or part of a street is necessary to provide a paved approach to a railroad or street grade separation or any bridge; or

(5) Any street or part of a street should be widened.

(d) Water Main Improvements—When, in the judgment of the Council, any street or part of a street, or any property within the city, is without a public water supply and can be served, and water service should be provided in the public interest.

(e) Sanitary Sewer Improvements—When, in the judgment of the Council, any street or part of a street, or any property within the city, is without a public sanitary sewer system and can be served, and sanitary sewer service should be provided in the public interest, or when, in the judgment of the city council, a sewage pumping station is required in the interest of the public health.

(f) Storm Sewer Improvement—When, in the judgment of the Council, any street or part of a street, or any property within the city, is without storm sewer facilities, and can be served, the storm sewers should be provided in the public interest.

(g) Sidewalk Improvements—When, in the judgment of the Council, any street or part of a street is without sidewalks and sidewalks should be provided in the public interest, or that any existing sidewalk is unsafe and should be repaired.
(S.L. 1961, Ch. 686, §§ 18, 19)

Sec. 6.139. Notice of hearing.

(a) Upon the presentation of a sufficient petition for local improvements, or when it is proposed to make without petition any improvements authorized to be made without petition, a notice shall be prepared by the city attorney which shall contain substantially the following:

(1) That a sufficient petition has been filed for the making of the improvements, or, if it is proposed to make the improvements without petition, a statement of the reasons proposed for the making thereof;

(2) A brief description of the proposed improvements;

(3) The proportion of the cost of the improvements to be assessed and the terms of payment;

(4) A statement of the time and place of a public hearing on the proposed improvements;

(5) A statement that all objections to the legality of the making of the proposed improvements shall be made in writing, signed in person or by attorney, and filed with the city clerk at or before the time of the hearing, and that any objections not so made will be waived.

(b) The notice shall be published one time in a newspaper published in the city which is qualified to carry legal notices, or, if there be no such newspaper, the city clerk shall cause it to be posted in three (3) public places in the city, the date of publication or posting to be not less than ten (10) days prior to the date fixed for the hearing. A copy of the notice shall be mailed to the owners of the land subject to assessment for such improvements as shown on the county tax records. The person designated to mail these notices shall file with the council a certificate showing that they were mailed by first-class mail and on what date the mailing of notices shall be completed not less than five (5) days prior to the date fixed for the hearing.
(S.L. 1986, Ch. 807, § 6)

Sec. 6.140. Public hearing.

At the time for the public hearing, or at some subsequent time to which such hearing shall be adjourned, the council shall consider objections to the legality of the improvements made in compliance with paragraph (5) of subsection (a) of the preceding section, together with objections to the policy or expediency of the making of the improvements, and the council shall thereafter determine whether it will order the making of the improvements. Any objections to the legality of the making of the improvements not made in writing, signed in person or by attorney, and filed with the city clerk at or before the time or adjourned time of the hearing shall be considered

as waived; and if any such objection shall be made and shall not be sustained by the council, the adoption of the resolution ordering the making of the improvements shall be the final adjudication of the issues presented, unless within ten days after the adoption of the resolution proper steps shall be taken in a court of competent jurisdiction to secure relief.

Sec. 6.141. Resolution ordering improvements; publication.

(a) After the public hearing, if the council determines to make the improvements proposed, it shall adopt a resolution which shall contain:

(1) If the improvements are to be made by petition, a finding by the council as to the sufficiency of the petition, which finding shall be final and conclusive.

(2) If the improvements are to be made without petition, a finding by the council of such facts as are required in order to authorize improvements without petition.

(3) A general description of the improvements to be made and the designation of the street or streets or parts thereof where the work is to be done.

(4) If the improvement directed to be made is the paving of a roadway or part thereof wherein a railroad company has tracks, a direction that said company pave that part of the street occupied by its tracks, the rails of the tracks, and eighteen (18) inches in width outside such tracks, with such material and in such manner as the governing body may prescribe, and that unless such paving be completed on or before a day specified in the resolution, the governing body will cause the same to be done. Where such railroad company shall occupy such street or streets under a franchise or contract which otherwise provided, such franchise or contract shall not be affected by this Section, except insofar as may be consistent with the provisions of such franchise or contract.

(5) If the improvement directed to be made includes the construction of water mains or sewers, and in order to provide the mains or sewers in the street or streets to be improved it is necessary to extend them beyond the limits of the street or streets, the resolution shall contain a provision for the necessary extension of such mains or sewers and a further provision that the cost of such extension shall eventually be assessed against the lots or parcels of land abutting the street or streets in which such extensions are made but that assessments shall not be made until such time as the Council shall thereafter determine by appropriate resolution.

(6) If the improvement directed to be made is the paving of a roadway or part thereof, or the construction of sidewalks, the resolution may, but need not, contain a direction that the owner of each lot abutting the part of the street to be improved, connect his/her/their lot by means of laterals with water mains, gas or sewer pipes, or any one or more thereof, located in the street adjacent to his/her/their premises in accordance with the requirements governing the laying of laterals, and that unless the owners cause laterals to be laid on or before a date specified in the resolution, the date to be not less than thirty day[s] after the date of the resolution, the Council will cause the same to be laid.

(7) A designation of the proportion of the cost of the improvements to be assessed against abutting property, and of the number of equal annual installments in which assessments may be paid.

(b) The resolution after its passage shall be published at least once in some newspaper published in the city which is qualified to carry legal notices, or, if there be no such newspaper, the resolution shall be posted in three public places in the city for at least five days; except, that in any case where the Council directed that the notice should be served or mailed instead of

being published, the resolution ordering the improvements need not be either published or posted.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 6.142. Details of construction; contracts for construction.

The Council shall have power to determine the character and type of construction and of material to be used and to determine any other details of plan or construction necessary to be determined in making any local improvements and to determine whether any work to be done by the city shall be done by contract or by the city. The Council shall have power also, unless otherwise limited, to determine the number of water, sewer and gas laterals that shall be laid to any lot on any street to be improved. If the work or any part thereof is to be done by contract, the Council may let all of the work in one contract, or it may divide it into several contracts, and may let contracts separately.

Sec. 6.143. Determination as to cost of improvements.

Upon completion of the improvements, the Council shall ascertain the total cost. In addition to other items of cost, there may be included therein the cost of all necessary legal services, the amount of interest paid during construction, the amount of damages paid or to be paid for injury to property by reason of any change of grade or drainage, including court costs and other expenses incidental to the determination of damages, and the cost of retaining walls, sidewalks or fences built or altered in lieu of cash payment for property damage, including the cost of moving or altering any building. The determination of the Council as to the total cost of any improvement shall be conclusive.

Sec. 6.144. Preliminary assessment.

(a) Having determined the total cost, the Council shall make a preliminary assessment. The preliminary assessment shall be advisory only and shall be subject to modification. Except as otherwise provided in subsection (b), the preliminary assessment shall be as follows:

(1) Roadway paving. The total cost of any roadway paving improvement, excluding the cost incurred at street intersections, shall be specially assessed against the lots and parcels of land abutting the street containing the roadway paved, according to the frontages thereon, by an equal rate per foot of frontage, except that, where the petition so requested, the cost shall be assessed against the lands on one side of the street only or against such lands as were designated in the petition. Nothing herein contained shall limit the power of the Council to contract with any property owner for such improvements.

(2) Water mains and sewers. The cost of not exceeding an eight-inch water or sanitary sewer main and of not exceeding a thirty-inch storm sewer main shall be assessed against the abutting property. Such cost shall be assessed against the lots and parcels of land according to their respective frontages thereon by an equal rate per foot of such frontage. If a water or sanitary sewer main in excess of eight inches in size or a storm sewer in excess of thirty inches in size is laid, the excess cost shall be borne by the city. As a part of the extension of water or sewer mains, pumping stations, discharge lines, and outfalls may be constructed and the cost thereof assessed against the property to be served at an equal rate on an acreage basis or front foot basis; provided, that nothing herein contained shall limit the power of the council to contract with any property owner for such facilities. The entire cost of each water and sewer lateral shall be specially charged against the particular lot or parcel of land for or in connection with which it was constructed, except that the assessments shall be calculated as if the lateral were laid from the center of the street. The cost of

installing storm sewers may, however, be assessed as part of the cost of roadway paving.

(3) Sidewalks. The total cost of constructing or reconstructing sidewalks shall be assessed against the lots and parcels of land abutting that side of the street upon which the improvement is made according to their respective frontages thereon by an equal rate per foot of such frontage, the lots within a block being deemed to abut upon a sidewalk although the latter extends beyond the lot to the curb line of an intersecting street. The total cost of constructing portions of driveways within the street area shall be assessed against the lots for which they are constructed.

(4) Grass plots. The entire cost of grading or otherwise improving or of planting the grass plots in any street or part thereof shall be assessed against the lots and parcels of land abutting the street or part thereof where or whereon the improvements are made by an equal rate per front foot of such frontage; provided, that this subsection shall be construed to mean that when a grass plot in any street is graded or planted or otherwise improved, the cost thereof shall be assessed against all of the property abutting the street within the block where such grass plot is located.

(b) If the petition (or the resolution in those cases where the improvement was ordered made without petition) specified that there should be specially assessed against the abutting property a smaller proportion of the cost of any improvement than that set forth in subsection (2), there shall be assessed against abutting property only the proportion of the cost as was specified in the petition or in said resolution. No restriction or denial of access to an abutting street shall affect the levy or collection of any assessment for local improvements.

(c) The cost of paving, water, sewer, and sidewalk improvements upon, in, or to any portion of a right-of-way or any property owner by the State of North Carolina, any agency or subdivision thereof, shall be assessed against the right-of-way or property and shall be paid by the State, its agency or subdivision.
(S.L. 1961, Ch. 686, § 20; S.L. 1971, Ch. 29, § 6)

Sec. 6.145. Corner lot exemptions.

The Council shall have authority to determine the amount and applicability of assessment exemptions for corner lots, and to distinguish between different classifications of property uses. The exemptions for paving, sidewalk, and storm sewer improvements shall not exceed sixty feet and shall be limited to residential uses, and the exemptions for water mains and sanitary sewers shall not exceed one hundred and fifty feet for residential uses and one hundred feet for business uses. If the corner formed by two intersecting streets is rounded into a curve or is foreshortened for the purpose of providing sight distance or for any other purpose of construction, the frontage for assessment purposes shall be calculated to the midpoint of the curve or foreshortened corner.

Sec. 6.146. Preliminary assessment roll.

The Council shall cause to be prepared a preliminary assessment roll, on which shall be entered a brief description of each lot or parcel of land assessed, the amount assessed against each lot, the name or names of the owner or owners of each lot, as far as the same can be ascertained; however, if any parcel, lot or plot to be assessed has less than the minimum dimensions required by any applicable ordinances of the City of Greensboro, such lot, parcel or plot shall, for purposes of assessment, be combined with other adjoining property, parcels, lots or plots which are in the same undivided ownership, and the total combined lots shall be assessed as one lot; provided, that a map of the improvements on which is shown the frontage and location of each affected lot, together with the amount assessed against each lot and the name or names of the owner or owners thereof, as far as the same can be ascertained, shall be a sufficient assessment roll. If the resolution directed the making of more than one improvement, a single preliminary assessment roll for all the improvements authorized by such resolution shall be sufficient,

but the cost of each improvement to each lot affected shall be shown separately. After the preliminary assessment roll has been completed, it shall be filed in the office of the city clerk, and there shall be published in some newspaper published in the city which is qualified to carry legal notices, or if there be no such newspaper, the city clerk shall cause to be posted in three public places in the city, a notice of the completion of the assessment roll, setting forth a description in general terms of the improvements, the amount of each assessment, and stating the time fixed for the meeting of the council for the hearing of objections to the special assessments, such meeting to be not earlier than ten days after the first publication or from the date of posting of said notice. Any number of assessment rolls may be included in one notice. In any case where the preliminary notice was served or mailed instead of being published, this notice need not be published or posted but may be served or mailed. The serving or mailing of notices shall be completed not less than five days prior to the date fixed for the hearing of the assessment roll, and the return of the person serving or mailing the same shall in the absence of fraud be conclusive the same were served or mailed.
(S.L. 1963, Ch. 55, § 1)

Sec. 6.147. Hearing; revision; confirmation; lien.

At the time appointed for that purpose or at some other time to which it may adjourn, the Council shall hear objections to the preliminary assessment roll of all persons interested who may appear and offer proof in relation thereto. Then or thereafter, the Council shall either annul or sustain or modify in whole or in part the assessment, either by confirming the preliminary assessment against any or all lots or parcels described thereon, or by cancelling, increasing or reducing the same, according to the special benefits which the Council decides each of the lots or parcels has received or will receive on account of the improvements, except that assessments against railroads because of contract or franchise obligations shall be in accordance with such obligations. If any property is omitted from the preliminary roll, the Council may place it on the roll and levy the proper assessment. The Council may thereupon confirm the assessment roll, and the assessments so confirmed shall be in proportion to the special benefits, except in the case of franchise obligations of railroads. Whenever the governing body shall confirm assessments for local improvements, the city clerk shall enter on the Council minutes and on the assessment roll the date, hour, and minute of confirmation, and from the time of confirmation the assessments shall be a lien on the property assessed of the same nature and to the same extent as county and city taxes and shall be superior to all other liens and encumbrances. After the assessment roll is confirmed a copy of the same shall be delivered to the city tax collector.

Sec. 6.148. Appeal to superior court.

If the owner of, or any person interested in, any lot or parcel of land against which an assessment is made is dissatisfied with the amount of the assessment, he/she/they may, within ten days after confirmation of the assessment roll, give written notice to the Council that he/she/they takes an appeal to the Superior Court of Guilford County, in which case he/she/they shall within twenty days after the confirmation of the assessment roll serve on the mayor or city clerk a statement of facts upon which he/she/they bases his/her/their appeal. The appeal shall be tried as other actions at law. The remedy herein provided for any person dissatisfied with the amount of the assessment against any property of which he/she/they is the owner or in which he/she/they is interested shall be conclusive.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 6.149. Power to correct error in assessment.

If it shall appear after confirmation of any assessment roll that an error has been made, the city clerk shall cause to be published one time in some newspaper published in the city, or if there be no such newspaper, the city clerk shall cause to be posted at three public places in the city, a notice referring to the assessment roll in which the error was made, naming the owner or owners

of the lot or parcel of land affected by the error, if the same can be ascertained, and naming the time and place fixed for a hearing by the Council for the correction of the error, such meeting not to be earlier than ten days from the publication or from the date of the posting of the notice. At the time fixed in the notice or at some subsequent time to which the Council may adjourn, the Council, after giving the owner or owners of the property affected and other persons interested therein an opportunity to be heard, may proceed to correct the error, and the assessment then made shall have the same force and effect as if it had originally been properly made. No notice and hearing shall be necessary if the correction does not increase an assessment against any property not owned by the city, or if all of the property owners affected by the correction waive notice in writing.

Sec. 6.150. Reassessment.

The Council shall have the power, when in its judgment there is any irregularity, omission, error or lack of jurisdiction in any of the proceedings relating thereto, to set aside the whole of the local assessment made by it, and thereupon to make a reassessment. In such cases there shall be included, as a part of the cost of the improvements involved, all interest paid or accrued on notes or certificates of indebtedness, or bonds issued by the city to pay the expenses of such improvement. The proceeding shall, as far as practicable, be in all respects as in the case of original assessments, and the reassessment shall have the same force as if it had originally been properly made.

Sec. 6.151. Publication of notice of confirmation of assessment roll.

After the expiration of twenty days from the confirmation of the assessment roll, the city clerk shall cause to be published one time in some newspaper published in the city which is qualified to carry legal notices, or, if there be no such newspaper, shall cause to be posted at three public places in the city, a notice of confirmation of the assessment roll, and that assessment may be paid at any time before the expiration of thirty days from the date of publication or posting of the notice, without interest from the date of confirmation of the assessment roll, but that if such assessment is not paid in full within said time, all installments thereof shall bear interest at the rate fixed by general law for interest on assessments levied for public improvements and shall run from the date of confirmation of the assessment roll.
(S.L. 1971, Ch. 29, § 7)

Sec. 6.152. Payment of assessments in cash or by installments.

The property owner or railroad company assessed shall have the option of paying for improvements in cash or in not less than two or more than ten equal annual installments as may have been determined in the resolution ordering the improvements. If paid in installments, installments shall bear interest at the rate fixed by general law for interest on assessments levied for public improvements and shall run from the date of confirmation of the assessment roll. If any assessment is not paid in cash, the first installment with interest shall become due and payable thirty days after the publication or posting of the notice of confirmation, and one subsequent installment and interest shall be due and payable on the same day of the month in each successive year until the assessment is paid in full; provided, however, that if the Council shall so direct installments shall become due and payable on the same date when property taxes of the city are due and payable. If any installment with interest is not paid when due, it shall be subject to the same penalties as are now prescribed by law for unpaid taxes, in addition to the interest herein provided for. The whole assessment may be paid at any time by the payment of the full amount due with accrued interest.
(S.L. 1971, Ch. 29, § 8)

Sec. 6.153. Enforcement of payment of assessments.

Upon the failure of any property owner to pay any installment when due and payable, all of the installments remaining unpaid shall immediately become due and payable, and property and rights-of-way may be sold by the city under the same

rules, regulations, rights of redemption and savings as are now prescribed by law for the sale of land for unpaid taxes. Unpaid assessments, interest, and penalties owed by railroad companies and the State of North Carolina, its agencies or subdivisions, may be collected by writs of mandamus issued by the Superior Court of Guilford County. Collection of assessments with interest and penalties may also be made by the city by proceedings to foreclose the lien of assessments as a lien for mortgages is or may be foreclosed under the laws of the State, and it shall be lawful to join in any bill for foreclosure any one or more lots or parcels of land, by whomsoever owned, is assessed for an improvement ordered by the same resolution, after default in the payment of any installment. The payment of said installment, together with interest and penalties due thereon, before the lot or parcel of land, against which the same is a lien, is sold or said lien is foreclosed shall bar the right of the city to sell land or to foreclose the lien by reason of default.

Sec. 6.154. Assessment of cost of water main and sewer extensions.

If the resolution ordering the making of any improvement or improvements included a provision for any necessary extension of a water main or sewer or sewers beyond the limit of a street or streets, at such time after the completion of said extension or extensions as, in the judgment of the Council, circumstances justify the assessment of the cost thereof, the Council shall cause a preliminary assessment to be made and the procedure thereafter to be followed with respect to such assessment and the force and effect thereof shall be as already prescribed for other assessments.

Sec. 6.155. Apportionment of assessments.

In any case where one or more special assessments have been made, and property has been, or is about to be, subdivided, and it is desirable that the assessments be apportioned among the subdivisions of such property, the Council may, upon application by the owner or owners, apportion the assessments among the subdivisions. Thereafter, each subdivision shall be relieved of any part of the original assessment except the part apportioned to the subdivision, and the part of the original assessment apportioned to any subdivision shall be of the same force and effect as the original assessment.

Sec. 6.156. Change of ownership.

No change of ownership of any property or interest therein after the passage of a resolution ordering the making of a local improvement shall affect subsequent proceedings, and the improvement may be completed and assessment made therefor as if there had been no change in ownership.

Sec. 6.157. Lands subject to assessment.

No lands in the city, including railroad company lands and rights-of-way and property of the State of North Carolina, its agencies or subdivisions shall be exempt from special assessments except lands belonging to the United States which are exempt under the provisions of Federal Statutes, and the Council and the officers, trustees or boards of all incorporated or unincorporated bodies in whom is vested the right to hold and dispose of real property shall have the right by authority duly given to sign the petition for any local improvements.

Sec. 6.158. Proceedings in rem.

All proceedings for special assessments shall be proceedings in rem, and no mistake or omission as to the name of any owner or person interested in any lot or parcel of land affected thereby shall be regarded as a substantial mistake or omission.

Sec. 6.159. Grass plot and driveway maintenance.

It shall be the responsibility of the abutting property owner to maintain any grass plot or driveway between the property line and the curb of a paved street.

Sec. 6.160. Council may hold in abeyance certain water and sewer assessments.

(a) The City Council may provide by resolution that assessments levied against abutting lots or parcels of land for water main improvements or sanitary sewer improvements, when in its opinion such improvements may not presently be used by the owner or owners of the abutting lots or parcels of land, may be held in abeyance without the payment of any interest thereon until such time as the Council shall determine that any such assessments shall be paid in accordance with the terms set out in the confirming resolution. A part of the assessments, levied for the improvements herein set out on a street or streets, or portion thereof, may be held in abeyance as herein provided without holding all of said assessments in abeyance.

(b) All statutes of limitations, and particularly the statute of limitations provided for in Chapter 331, Section 1, of Public Laws 1929 (G. S. 160-93) are hereby suspended during the time that any assessment is held in abeyance without the payment of interest, as provided in subsection (a). Such time shall not be a part of the time limited for the commencement of action for the enforcement of the payment of any such assessment, and such action may be brought at any time within ten years from the date of the adoption of a resolution by the Council, determining that such assessment shall be paid in accordance with the original resolution confirming it.

(c) Nothing herein shall be construed to revive any right of action which has heretofore been barred by the statute of limitations.

Sec. 6.161. Abutting property outside city limits.

If any lots or parcels of land abutting any local improvements are located outside the city limits, the Council may continue and delay the levy of assessments against such property until the city limits are extended to include such property, or the Council may provide that no water or sewer service connections shall be made to such property, pending the annexation thereof, until all assessments thereon are paid. Upon annexation, if not paid prior thereto, the Council may levy assessments for such local improvements against such property, and the procedure therefor shall be the same as provided in this charter. Nothing contained in this Section shall be construed to prohibit or restrict the City Council and a property owner from entering into an agreement for payments in lieu of assessments.

Sec. 6.162. Acceptance of deed in lieu of taxes or assessments or both.

When taxes or assessments for local improvements or both are due on real property located in the city, the owner or owners thereof may convey such real property to the city in payment of such taxes or assessments or both; provided, that such conveyance to the city shall not interfere with the lien for taxes due any taxing unit other than the city. Any real property conveyed to the city may be sold by it as provided in this Charter. The acceptance of deeds in satisfaction of taxes or assessments or both and the sales of such property are hereby validated.
(S.L. 1961, Ch. 686, § 21)

Sec. 6.163. Authority to acquire entire lot, block or tract.

Whenever it appears that a portion of a building or other structure must be demolished in order to complete any local improvements, or that the residual portion of a lot, block or tract of land, remaining unused upon the completion of any local improvements, will be substandard according to applicable subdivision, zoning or other requirements pertaining thereto, or, if in the opinion of the City Council, it will become impractical to use the remaining property because of other conditions, the City Council is authorized, but not required, to acquire the entire lot, block, or tract by purchase or condemnation and to provide for the sale or exchange of said residual property as provided by Sections 4.122, 4.123 or 4.124 of this charter.
(S.L. 1961, Ch. 686, § 22; S.L. 1969, Ch. 142, § 15)

Chapter VII

MISCELLANEOUS

SUBCHAPTER A. CLAIMS AGAINST THE CITY

Sec. 7.01. Reserved.

Editor's note—S.L. 1986, Ch. 807, § 7, ratified June 26, 1986, repealed § 7.01 of Ch. VII pertaining to presentation of claims to the city council.

Sec. 7.02. Time of presentation of claims.

No action shall be instituted against the city on account of damages to or compensation for real property used or taken by the city for any public purpose of any kind unless, within two (2) years after such alleged use, the owner, his/her/their executor, administrator, guardian, or next friend shall have given notice in writing to the council of the claim, the notice to set forth the date that the alleged use commenced, a description of the property alleged to have been used, and the amount of damage or compensation claimed.
(S.L. 1975, Ch. 361; S.L. 1986, Ch. 807, § 8; Ord. No. 20-163, § 3, 12-15-20)

Sec. 7.03. Settlement of claims by city manager.

The city manager may settle claims against the city for: (i) personal injury or for damages to property when the amount involved does not exceed the sum of three hundred thousand dollars ($300,000) and does not exceed the actual loss sustained, including loss of time, medical expenses, and any other expense actually incurred, and (ii) the taking of property for rights-of-way in connection with public improvements which the city is authorized by law to make, when the amount involved in any such settlement does not exceed the sum of three hundred thousand dollars ($300,000) and does not exceed the actual loss sustained. Settlement of a claim by the city manager pursuant to this section shall constitute a complete release of the city from any and all damages sustained by the person involved in such settlement in any manner arising out of the accident, occasion, or taking complained of. All such releases shall be subject to the approval of the city attorney.
(S.L. 1961, Ch. 686, § 23; S.L. 1963, Ch. 55, § 12; S.L. 1973, Ch. 213, § 24; S.L. 1981, Ch. 159, § 7; S.L. 1991, Ch. 4, § 4; S.L. 1995, Ch. 680, § 1; S.L. 2004-5, H.B. 1604, eff. 6-14-04)

SUBCHAPTER B. CLAIMS BY THE CITY

Sec. 7.21. Settlement of claims by the city manager.

The city manager is hereby authorized to execute releases of persons, firms and corporations because of damages to personal property belonging to City of Greensboro when the full amount of damages to such property is ascertained and a statement thereof has been furnished to the city manager by the city attorney and the amount of such release does not exceed fifty thousand dollars ($50,000.00). In the event that draft or check is presented to the city which constitutes a release, instead of a regular release form, the city manager is hereby authorized to direct that such draft or check be handled as other payments to the city and, when approved by the city manager, shall constitute a release to the extent stated on the draft or check.
(S.L. 1961, Ch. 686, § 24; S.L. 1963, Ch. 55, § 13; S.L. 1977, Ch. 85, § 2; S.L. 1981, Ch. 159, § 8; S.L. 1995, Ch. 680, § 2)

SUBCHAPTER C. WAIVER OF GOVERNMENTAL IMMUNITY

Sec. 7.41. Authority of city council.

The city council, by causing liability insurance to be provided by the city, is hereby authorized and empowered, but not required, to waive its governmental immunity from liability for any damage by reason of death or injury to person or property proximately caused by the negligent act of an officer, agent or employee of the city when acting within the scope of his/her/their authority and within the course of his/her/their employment. Such immunity is waived only to the

extent of the amount of the insurance, and shall be deemed to have been waived in the absence of affirmative action by the city council.
(S.L. 1961, Ch. 686, § 25; Ord. No. 20-163, § 3, 12-15-20)

Sec. 7.42. Contract of insurance; payment of premiums.

The contract of insurance purchased pursuant to this subchapter must be issued by a company licensed to execute insurance contracts in this state, and must insure the city against liability for any damage by reason of death or injury to person or property proximately caused by the negligent act of any officer, agent or employee of the city when acting within the scope of his/her/their authority and within the course of his/her/their employment. By such act, any company which enters into a contract of insurance as above described waives any defense based upon the governmental immunity of the city from liability. The city treasurer is authorized and empowered to pay, as a necessary expense, the premiums for each insurance out of the general fund of the city.
(S.L. 1961, Ch. 696, § 25; Ord. No. 20-163, § 3, 12-15-20)

Sec. 7.43. Actions for negligence.

Any person sustaining damage, or, in case of death, his/her/their personal representative, may sue the city for the recovery of such damages, and it shall be no defense to any such action that the officer, agent, or employee involved was in pursuance of a governmental, municipal or discretionary function of the city if, and to the extent, the city has insurance coverage, as provided by this subchapter, at the time the cause of action arises. Except as hereinbefore expressly provided, nothing in this subchapter, shall be construed to deprive the city of any defense or to restrict, limit or otherwise affect any defense which the city may have at common law or by virtue of any statute (whether general, special, private or local), and nothing in this subchapter shall be construed to relieve any person sustaining damages, or any personal representative of the same, from any duty to give notice of claim to the city, or to commence any civil action for the recovery of damages within the period of time prescribed by statute. The city's liability insurance shall not be brought to the attention of the trial jury or prospective trial jurors, and, if brought to the attention of the trial jury, an order of mistrial shall be entered. The plaintiff shall be deemed to have waived the right to have a jury determine all issues of law or fact relating to insurance, and the jury shall be absent during any motions, arguments, testimony or announcement of findings of fact or conclusion of law with respect thereto unless the defendant shall ask for a jury trial thereon.
(S.L. 1961, Ch. 686, § 25; Ord. No. 20-163, § 3, 12-15-20)

SUBCHAPTER D. CIVIL SERVICE.

Sec. 7.45. Civil Service Board.

(a) There is hereby established as a part of government of the City of Greensboro a Civil Service Board which shall have the powers and perform the duties specified in this Subchapter with respect to the classified service of the City of Greensboro as defined in this section. The city manager shall recommend, and the city council shall approve, funding for the operational needs of the Civil Service Board in the city's annual budget.

(b) The Civil Service Board (hereinafter "Board") shall consist of five members who shall be appointed as follows: (i) one member who shall be chosen by the city council at a meeting of the council and who shall serve at the pleasure of the council; (ii) one member who shall be elected by the employees of the City of Greensboro Police Department, as defined in this section, at an election held for that purpose and on a normal city workday not less than 10 nor more than 30 days after written notice of the date of the election is provided to those employees; (iii) one member who shall be elected by the employees of the City of Greensboro Fire Department, as defined in this section, at an election held for that purpose and on a normal city workday not less than 10 nor more than 30 days after written notice of the date of the election is provided to those employees; (iv) one member who shall be

chosen by the mutual agreement of the Chief of Police and the Fire Chief; and (v) one member who shall be selected by majority vote of the four other members already selected or elected at a meeting held within 30 days after the members elected by the employees of the City of Greensboro Police Department and the employees of the City of Greensboro Fire Department have taken office. If a member is not elected by majority vote of the four other members, the city council shall appoint a member to the Board. Members of the Board shall serve two-year terms. All members of the Board shall be eligible for successive terms, in the same manner in which they were initially selected or elected, and may serve beyond the end of their respective terms until their successors take office. The chair of the Board shall be appointed annually by the city council, or more often as needed, from among the membership of the Board. The members of the Board shall serve without compensation but may be reimbursed for expenses pursuant to policies adopted by the city.

The city council shall, by ordinance not inconsistent with this section, establish the procedure for the election of the representatives of the employees in the City of Greensboro Police Department and the representatives of the employees in the City of Greensboro Fire Department and provide for meeting the expenses for the elections. The members of the Board must all be qualified voters of the City of Greensboro, not employed by the city, or serving on the city council. In the event of a vacancy on the Board, the vacancy shall be filled by the body or group that chooses the member, a successor to whom is to be chosen in the manner provided in this subsection for the selection of the member.

(c) Former employees of the city shall be eligible to serve as members of the Board provided they have been separated from city employment for a period of not less than seven consecutive years prior to becoming members of the Board. No person shall be eligible to serve as a member of the Board if the person, directly or indirectly, through any corporation, partnership, or other entity, or contract, subcontract, or otherwise benefits financially from a business relationship with the city or if the person has an immediate family member or spouse of the immediate family member who, directly or indirectly, through any corporation, partnership, or other entity, or contract, subcontract, or otherwise benefits financially from a business relationship with the city. No person shall engage or benefit, directly or indirectly, from any contractual work or employment with the city for a period of not less than two years following the end of that person's term as a member of the Board.

(d) The city clerk, or the clerk's designee, shall be the Board Secretary and shall perform all required ministerial functions and duties for the Board, including, but not limited to, the electronic recording of and the preparation of minutes of all Board meetings and hearings, the custody of all Board records, and the posting and issuing of meeting notices to members of the Board and the public in accordance with the Open Meetings Law, Article 33C of Chapter 143 of the General Statutes. The Secretary shall distribute the agenda for regular meetings and the approved minutes for all regular meetings to all classified service employees as defined in this section. Posting the agenda and minutes on an electronic bulletin board or similar location accessible to all employees shall be sufficient compliance with the distribution requirement under this subsection. To assist the Secretary in performing the functions and duties, all Board meetings shall be electronically recorded and transcripts thereof made available to members of the Board upon request and without charge. All other persons shall be entitled to the recordings and records, upon request, except for those items to which disclosure is prohibited by G.S. 160A-168, Chapter 132 of the General Statutes, or other laws governing the privacy or confidentiality of employee or personnel records.

(e) The Board shall meet in January of each year to adopt a regular meeting schedule. The deadline for receiving items for regular Board meetings shall be seven days prior to the meeting. Special meetings may be called by the chair and shall be called upon written request signed by two or more members of the Board and submitted to the Secretary not less than seven days prior to the date of the requested special meeting. The notice for all meetings shall contain

a meeting agenda, which shall include a section for other business to hear and consider any other matters related to the Board's functions and duties, and which may be addressed by any member of the Board and by any person in attendance. Within a reasonable time after a meeting, the Board shall supply the city's Director of Human Resources with notification of any actions, reports, or recommendations made by the Board, and the Human Resources Department shall notify affected members of the classified service of actions, reports, and recommendations made by the Board.

(f) No uniform employees of the city shall be prohibited, directed, or discouraged in any manner by a supervisor from wearing that employee's uniform while in attendance at any meeting of the Board.

(g) The classified service of the city shall include all officers and employees of the City of Greensboro Police Department and all officers and employees of the City of Greensboro Fire Department except the Chief of Police, the Deputy Chief of Police, Assistant Chiefs of Police, the Fire Chief, the Deputy Fire Chief, and Assistant Fire Chiefs.

(h) The Board shall make, and may amend, substantive rules for promoting efficiency in the classified service as authorized in subsection (i) of this section. The rules, and any amendments to the rules, shall be submitted to the council for approval and shall be open to public inspection when filed with the council for approval. The council, after giving members of the classified service and citizens of Greensboro an opportunity to be heard at a public hearing, shall act upon the proposed rules and amendments, and the rules and amendments, when approved by a majority vote of the council, shall be in full force and effect. The Board shall also make, and may amend, procedural rules for the conduct of its official proceedings and functions as provided for by this Subchapter. The council may, before approval, amend the rules or amendments to the rules submitted to it for approval.

(i) The rules authorized by subsection (h) of this section, among other things, may provide:

(1) For the standardization and classification of all positions and employment in the classified service as defined in this section. Such classification into groups and subdivisions shall be based upon and graded according to duties and responsibilities, and so arranged as to promote the filling of the higher grades, so far as practicable, through promotions. The city manager, or the city manager's designee, shall consult representative employees in the police and fire departments to establish criteria to be used to fill each position within those respective departments, including lateral entry positions. If only one respective employee is consulted, he or she shall be a representative chosen by the employees of the respective departments. If a group of two or more employees is established for purposes of this subdivision, at least one-half of the employees shall be chosen by the employees of the respective department. The Board shall have the authority to approve any criteria established and the criteria shall apply only to persons promoted or hired after the effective date of the approval; provided, however, the Board's approval of criteria established shall not apply to hiring or promotional processes initiated prior to the effective date of this Subchapter nor shall it be construed to authorize the Board to make any hiring decisions.

(2) For temporary or part-time employment to meet the transitory or seasonal needs of the city, except no temporary or part-time employment may occur or continue in violation of applicable State or federal law.

(3) For the establishment of a probationary period for new employees prior to employees becoming members of the classified service, except no probationary period or any extension thereof may exceed one year in the aggregate.

(4) For suspension for purpose of discipline, with or without pay, for not longer than 90 days.

(5) For discharge or reduction in rank or compensation after the person to be discharged or reduced has, if he or she so requests, been presented by the person responsible for his or her appointment with the reasons therefore specifically stated in writing and has been given an opportunity to be publicly heard in his or her own defense by the Board, in accordance with subsection (k) of this section. The written reasons for the discharge or reduction and any reply in writing thereto by the officer or employee shall be filed with the Director of Human Resources.

(6) For investigation and keeping a record of the efficiency of officers and employees in the classified service and for requiring markings and reports relative thereto from appointing authorities.

(j) The council, by majority vote of its total membership, the city manager, or the Board, by majority vote of its total membership, may make official investigations concerning the facts with respect to (i) the operation and enforcement of the provisions of this Subchapter, (ii) the rules established pursuant to the authority granted by this Subchapter, and (iii) the condition of the classified service of the city, and may refer such matters to the Board for hearing in accordance with subsection (k) of this section, or for further investigation, as appropriate. Any person or body making any investigation authorized or required by this Subchapter shall have the power to subpoena and require the attendance of witnesses. A copy of the report of the investigation shall be filed with the city clerk and be open for public inspection, subject to the provisions of G.S. 160A-168, Chapter 132 of the General Statutes, or any other law governing the disclosure of public records in this State.

(k) Whenever any member of the classified service is discharged, suspended, reduced in rank, transferred against his or her will, or denied any promotion or raise in pay which he or she would be entitled to, that member shall be entitled to a hearing before the Board to determine whether the action complained of is justified. The Board may also conduct hearings on such matters as may be referred to it pursuant to subsection (j) of this section.

(l) Any member of the classified service who desires a hearing shall file a request for hearing with the city clerk within 10 days after learning of the action or omission of which the member complains, but not before the member has exhausted all remedies provided by the grievance procedures established by ordinance or policy of the city. The grievance procedure shall be concluded within 30 days. If the grievance procedure is not concluded within 30 days, the member may proceed as provided in this subsection. Upon receipt of the request for hearing, the city clerk shall set the matter for hearing before the Board at a date not less than five nor more than 15 days from the clerk's receipt of the request. Except for the time for filing the initial request for hearing with the Board, the Board may extend the time for taking action for cause or by agreement of the parties to the proceeding. Any member of the classified service who requests a hearing as authorized by this Subchapter shall be entitled to be represented at the hearing by his or her attorney. For purposes of the hearings, the Board is authorized to issue subpoenas for the attendance of witnesses or the production of documents.

(m) At the hearing, the burden of proving the justification of the action or omission complained of shall be upon the city, and the member requesting the hearing shall be entitled to inspect and copy any records upon which the city plans to rely upon at the hearing if the records are requested, in writing, by the member or the member's attorney prior to the day set for the hearing.

(n) Within 10 days after the conclusion of the hearing, the Board shall render its decision in writing. If the Board determines the action or omission complained of is not justified, the Board shall order to rescind whatever action the Board has found to be unjustified and may order the city to take such steps as are necessary for a just conclusion of the matter before the Board. The Board's decision shall contain findings of fact and conclusions and shall be based on competent

material and substantial evidence in the record. The Board shall, in writing, immediately inform the city clerk and the member requesting the hearing of the Board's decision.

(o) Within 10 days of receipt of the Board's decision, either party may appeal to the Superior Court Division of the General Court of Justice for Guilford County for a trial de novo. The appeal shall be effected by filing with the Clerk of Superior Court of Guilford County a petition for trial in superior court, setting out the facts upon which the petitioner relies for relief. If the petitioner desires a trial by jury, the petition shall so state. Upon the filing of the petition, the Clerk of Superior Court of Guilford County shall issue a civil summons as in regular civil action, and the sheriff of Guilford County shall serve the summons and petition on all parties who did not join in the petition for trial. It shall be sufficient service upon the city for the sheriff to serve the petition and summons upon the city clerk. Therefore, the matter shall proceed to trial as any other civil action.

(p) By a majority vote of those members present and voting at any of its official meetings, the Board may designate independent legal counsel of its choice to advise or represent the Board, or both, on such occasions and in such matters as the majority of those Board members present and voting deem to be appropriate and necessary. The Board shall establish a roster of attorneys from which it may select counsel for the purpose of advising the Board during or in connection with grievance hearings held pursuant to subsection (k) of this section. The list shall be subject to review and approval by the city attorney as to qualifications and fees. The city shall be responsible for the payment of the professional legal services authorized by this subsection. The use of independent counsel for matters other than grievance hearings held pursuant to subsection (k) of this section shall be limited to 20 hours each year. In order to avoid the appearance of any possible conflict of interest, the Office of the City Attorney shall serve as legal advisor to or attorney for the Board, or both, only for those matters or proceedings when specifically requested to do so in a writing that has been signed by no fewer than four members of the Board.

(q) It shall be the duty of the Board to supervise the execution of the provisions of this Subchapter and the rules adopted pursuant to the authority granted by this Subchapter, and it shall be the duty of all persons in the service of the city to comply with the rules and to aid in their enforcement. Willful or deliberate violation of the provisions of this Subchapter or rules adopted as authorized by this Subchapter by any person shall result in the city taking appropriate disciplinary action up to and including dismissal. Any city employee or any city official who threatens or intimidates other employees from exercising their rights under the provisions of this Subchapter or rules adopted as authorized by this Subchapter shall be subject to the city taking appropriate disciplinary action up to and including dismissal.
(S.L. 2023, Ch. 112, § 9)

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CHARTER COMPARATIVE TABLE

SESSION LAWS

This table shows the location of the sections of the Session Laws contained herein.

S.L Year	Chapter	Section	Section this Charter
1953	847		2.01
1955	314		6.01
1957	525		4.36
1959	525		4.36
	1137	1.01—7.43	1.01—7.43
		6.01	6.01
1961	686	1	2.21
	868	1	5.23
	686	2	2.41
	868	2	5.23
	686	3	2.46
		5	3.23
		6, 7	3.42
		8	4.51
		9	4.64
	868	10	4.91
		11	4.94
	686	12	5.74
		13	5.111
		14	6.11
		15	6.41
		16	6.56
		17	6.84
		18, 19	6.138
		20	6.144
		21, 22	6.162, 6.163
		23	7.03
		24	7.21
		25	7.41
	696	25	7.42
	686	25	7.43
1963	55	1	2.21
	769	1	5.23
	55	1	6.146
		2, 3	2.21
		4	2.73
		5	2.75
		6	3.03
		7	4.32
		8	4.62
		9	4.127
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		12	7.03
		13	7.21
1965	42	1	4.12
		2	4.94
		3—5	4.122—4.124
		6	4.126
		7	4.128
		8	6.61

Year	Chapter	Section	Section this Charter
1967	74	1, 2	2.21
		3	3.03
		4	4.31
		5	4.33
		6, 7	4.111, 4.112
		8	4.125
		9	4.131
	142	9	5.62
	74	10	5.41
		11, 12	5.62
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		14	5.74
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		16	6.87, 6.88
		17—19	Subch. B, Art. 1
		21	Subch. B, Art. 2
		30	1.21
1969	142	1	2.21
		2	3.03
		3	3.81
		4	4.13
		5, 6	4.91
		7	4.111
		8	4.124
		10	5.64
		11	5.72
		12	5.121
		13	6.32
		14	Subch. B, Art. 1
		15	6.163
	141	16	1.21
	142	17	Subch. B, Art. 2
1971	29	1	4.35
	853	1	5.75
	29	2	4.122
		3	5.62
		4	5.65
		5	Subch. B, Art. 1
		6	6.144
		7, 8	6.151, 6.152
1973	213	1	2.21
	700	1	4.53
	784	1	Subch. B, Art. 1
	213	2, 3	2.41, 2.42
		5	2.46
		6	2.61
		7	3.01
		8—10	3.02
		11	3.03
		12	3.21
		13	3.23
		14	4.51
		15, 16	4.63, 4.64
		17	4.111
		18	4.125
		19, 20	5.22, 5.23
		21, 22	5.62

Session Laws Year	Chapter	Section		Section this Charter
		23		5.64
		24		7.03
1974	1052	1		4.54
1975	361			7.02
	100	1		3.21
		2		4.01
		3		4.121
		4		4.125
1977	85	1		4.128
		2		7.21
1979	288	1		5.66
		2		5.121
1981	159	1		3.21
	132	1		3.62—3.65
	159	2		3.22
		3		4.55
		4		4.111
		5		4.113
		6		4.127
		7		7.03
		8		7.21
1986	807	1		4.91
		2, 3		6.61
		4		Subch. B, Art. 1
		5		5.65
		6		6.139
		7, 8		7.01, 7.02
1987	51	1		3.64.1—3.64.3
1989	48	1		4.125(c)
		2		4.121
	466	1		4.129
	896	1		2.71(c)(2)
		2		2.73(g)
		3		2.75(b)
		4		2.76(c)
		4.1		3.23(b)
1991	4	1		2.71(d)
		2		2.76(d)
		3		5.01
		4		7.03
	67	1, 2		3.64, 3.64.1
1993	6	1		4.111
		2		4.125(b)
		3		7.21
1995	680	1		7.03
		2		7.21
2003	134	1		4.111
2004	20	1	Rpld	3.42(c)
2004	5	1		7.03
2008	48	1		2.71—2.74
				2.76
				2.80
2011	111	1		4.21
		2		4.111
	177			6.83
2013	252	2		5.65
		3		5.74

Session Laws Year	Chapter	Section	Section this Charter
2023	112	9	7.45

CHARTER COMPARATIVE TABLE

ORDINANCES

This table shows the location of ordinances amending the Charter.

Ordinance Number	Date	Section	Section this Charter
82-113	12-16-82	1(1)	2.41
			3.01
		1(2), 1(3)	2.41
83-7	2- 7-83	1	2.41
		2	2.43
		3, 4	3.01, 3.02
		5	3.23
84-124	11-15-84	1	2.43
91-61	5- 6-91	1	2.43
01-112	5- 1-01	1	2.43(a)
01-116	5-15-01	1	2.43(a)
15-0151	12-15-15		2.42(1), (3)
			3.01
			3.02(a)
20-163	12-15-20	3	1.61(a)
			2.45
			2.73(b), (e)—(g)
			2.75(a), (c), (d)
			2.76(c)
			2.77(a)—(c)
			2.79(b), (c)
			3.02, 3.03
			3.22(a)
			3.23(b)
			3.64(b)(2), (3)
			3.81
			4.11
			4.13
			4.31(tit.)
			4.32
			4.34, 4.35
			4.51
			4.91(a), (b)(3), (b)(7)
			4.111
			4.123
			4.131
			4.151
			5.21
			5.71
			5.72(c)
			5.74(c)
			5.114
			6.61(a)
			6.81(b)
			6.84
			6.87
			6.137(f)
			6.141(a)(6)
			6.148
			7.02
			7.41—7.43

CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.

The laws embraced in the following chapters and sections shall constitute and be designated and cited as the "Greensboro Code of Ordinances." (Code 1961, § 1-1)

Charter reference—Authority of city to codify, § 3.43.

State law reference—Authority of city to codify, G.S. § 160A-77.

Sec. 1-2. Rules of construction.

In the construction of this Code, and of all ordinances the following rules shall be observed, unless such construction would be inconsistent with the manifest intent of the city council, or the context clearly requires otherwise.

Agencies, officers. The title designation of all departments, commissions, agencies, officers and employees of the city, shall be construed as if the words "of Greensboro, North Carolina" followed it, except as otherwise provided.

City. The term "city" means the City of Greensboro, North Carolina.

Computation of time. In computing any period of time prescribed or allowed by this Code or by order of court, the day of the act, event, default or publication after which the designated period of time begins to run is not to be included. The last day of the period so computed is to be included, unless it is a Saturday, Sunday or a legal holiday, in which event the period runs until the end of the next day which is not a Saturday, Sunday, or a legal holiday. When the period of time prescribed or allowed is less than seven (7) days, intermediate Saturdays, Sundays, and holidays shall be excluded in the computation. A half holiday shall be considered as other days and not as a holiday. Eastern standard time shall be the official time except during that period when what is commonly known as "daylight saving time" is in effect.

State law reference—Similar provisions, G.S. § 1-593.

Council, city council. Whenever the words "council", "city council", "this council" are used, they shall be construed to mean the City Council of the City of Greensboro, North Carolina.

County. The words "the county" or "this county" shall mean the County of Guilford, State of North Carolina.

Delegation of authority. Whenever a provision appears requiring a city officer or employee to do some act or make certain inspections it is to be construed to authorize the head of the department to designate, delegate and authorize subordinates to perform the required act or make the required inspection unless the terms of the provision or section designates otherwise.

Gender. A word importing the masculine gender only shall extend and be applied to females and to firms, partnerships, associations, and corporations as well as to males.

G.S. The designation "G.S." appearing in the state law citations shall refer to the General Statutes of North Carolina, as amended.

Highway. The term "highway," when used herein, shall include any street, alley, highway, avenue or public place or square, bridge, viaduct, tunnel, causeway, and sidewalk lying within the highway right-of-way, in the city, dedicated or devoted to public use.

May. The term "may" is to be construed as being permissive.

Month. The word "month" shall mean a calendar month.

Must. The term "must" is to be construed as being mandatory.

Nontechnical and technical words. Words and phrases shall be construed according to the common and approved usage of the language; but technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in law shall be construed and understood according to such meaning.

Number. Any word importing the singular number only may extend and be applied to several persons and things as well as to one (1) person and thing.

Oath. The word "oath" shall be construed to include an affirmation in all cases in which by law an affirmation may be substituted for an

oath, and in like cases the words "affirm" and "affirmed" shall be equivalent to the words "swear" and "sworn."

Or, and. "Or" may be read "and," and "and" may be read "or" if the sense requires it.

Owner. The word "owner," applied to a building or land, shall include any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety, of the whole or of a part of such building or land.

Person. The word "person" shall extend and be applied to associations, corporations, firms, partnerships and bodies politic and corporate as well as to individuals.

Personal property. The words "personal property" include every species of property except real property as herein defined.

Preceding, following. The words "preceding" and "following" mean next before and next after, respectively.

Property. The word "property" shall include real and personal property.

Public place. The term "public place" shall mean any park, cemetery, school yard or open space adjacent thereto.

Real property. The term "real property" shall include lands, tenements and hereditaments.

Residence. The term "residence" shall be construed to mean the place adopted by a person as his/her/their place of habitation, and to which, whenever he/she/they is absent, he/she/they has the intention of returning. When a person eats at one (1) place and sleeps at another, the place where such person sleeps shall be deemed his/her/their residence.

Roadway. The word "roadway" shall mean that portion of a street improved, designed or ordinarily used for vehicular traffic.

Shall. The term "shall" is to be construed as being mandatory.

Sidewalk. The word "sidewalk" shall mean any portion of the street between the curbline and the adjacent property line, intended for the use of pedestrians, excluding parkways.

Signature or *subscription.* The words "signature" or "subscription" shall include a mark properly witnessed when a person cannot write.

State. The words "the state" or "this state" shall be construed to mean the State of North Carolina.

Street. The term "street," when used herein, shall be construed to embrace all streets, avenues, boulevards, roads, alleys, lanes, squares, bridges, viaducts, tunnels, causeways, and sidewalks lying within the street right-of-way, and all other public highways in the city.

Tense. Words used in the past or present tense include the future as well as the past and present.

Written or *in writing.* The words "written" or "in writing," shall be construed to include any representation of words, letters or figures, whether by printing or otherwise.

(Code 1961, § 1-2; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Similar provisions, G.S. § 12-3.

Sec. 1-3. Catchlines of sections; history notes, etc.; references to Code.

(a) The catchlines of the several sections of this Code in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

(b) The history or source notes appearing in parentheses after sections in this Code are not intended to have any legal effect but are merely intended to indicate the source of matter contained in this section. Cross references and state law references which appear after sections or subsections of this Code or which otherwise appear in footnote form are provided for the convenience of the user of this Code and have no legal effect.

(c) All references to chapters, articles, or sections are to the chapters, articles, and sections of this Code unless otherwise specified.

(Code 1961, § 1-3)

Sec. 1-4. Repeal, expiration and revival of ordinances.

The repeal of an ordinance, or its expiration by virtue of any provision contained therein, shall not affect any right accrued, any offense committed, any penalty or punishment incurred or any proceeding commenced before the repeal took effect or the ordinance expired. When an ordinance

which repealed another shall itself be repealed, the previous ordinance shall not be revived without express words to that effect.
(Code 1961, § 1-5)

State law reference—Effect of repeal, see G.S. § 12-2.

Sec. 1-5. Amendments to Code; effect of new ordinances; amendatory language.

(a) All ordinances passed subsequent to this Code which amend, repeal or in any way affect this Code shall be numbered in accordance with the numbering system of this Code and printed for inclusion herein. In the case of repealed chapters, sections and subsections or any part thereof, by subsequent ordinances, such repealed portions may be excluded from the Code by omission from reprinted pages affected thereby. The subsequent ordinances as numbered and printed or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code and subsequent ordinances numbered or omitted are readopted as a new Code by the city council.

(b) Amendments to any of the provisions of this Code shall be made by amending such provisions by specific reference to the section number of this Code.

(c) In the event a new section not heretofore existing in the Code is to be added, the new section shall be set out in full as desired.

(d) All sections, articles, chapters or provisions desired to be repealed must be specifically repealed by section, article or chapter number, as the case may be.
(Code 1961, § 1-6)

Sec. 1-6. Each day of violation constitutes separate offense.

Each day any violation of this Code or of any ordinance shall continue shall constitute a separate offense for the purpose of constituting a new misdemeanor and also for the purpose of constituting a new civil violation imposing civil penalties where applicable.
(Code 1961, § 1-7)

State law reference—Penalties for ordinance violations, G.S. §§ 14-4, 160A-175.

Sec. 1-7. Severability.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code, since the same would have been enacted by the city council without the incorporation in this Code of any such unconstitutional phrase, clause, sentence, paragraph or section. It is further declared that notwithstanding any change or modification of the North Carolina General Statutes or any other state law, all sections, paragraphs, sentences, clauses and phrases of this Code will remain unaffected and in full force and effect, to the extent such described severable parts of the Code do not conflict with the changes and modifications to the General Statutes or other state law.
(Code 1961, § 1-4; Ord. No. 06-240, § 1, 11-7-06)

Sec. 1-8. Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall be construed to repeal or otherwise affect the validity of any of the following:

(1) Any ordinance promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness;

(2) Any appropriation ordinance or ordinance providing for the levy of taxes or for an annual budget;

(3) Any ordinance annexing territory to the city or discontinuing territory as a part of the city;

(4) Any ordinance designating, or otherwise relating to, city depositories not codified;

(5) Any ordinance granting any franchise, permit or other right;

(6) Any ordinance approving, prescribing or otherwise relating to rates to be charged by utility companies;

(7) Any ordinance approving, authorizing or otherwise relating to any contract or agreement;

(8) Any ordinance accepting, dedicating, improving, vacating or otherwise relating to any specific street or easement;

(9) Any ordinance zoning or rezoning specific property;

(10) Any ordinance accepting any plat of a subdivision;

(11) Any ordinance printed as part of the charter or amendatory of the charter;

(12) Any ordinance adopted for purposes which have been consummated;

(13) Any ordinance which is temporary, although general in effect;

(14) Any ordinance which is special, although permanent in effect;

and all such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length herein.

Sec. 1-9. Code does not affect prior offenses, rights, etc.

(a) Nothing in this Code or the ordinance adopting this Code shall affect any offense or act committed or done, or any penalty or forfeiture incurred, or any contract or right established or accruing before the effective date of this Code.

(b) The adoption of this Code shall not be interpreted as authorizing or permitting any use or the continuance of any use of a structure or premises in violation of any ordinance of the city in effect on the date of adoption of this Code.

Sec. 1-10. Provisions considered as continuation of existing ordinances.

The provisions appearing in this and the following chapters and sections, so far as they are the same as those of ordinances existing at the time of the adoption of this Code shall be considered as a continuation thereof and not as new enactments.

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Chapter 2

ADMINISTRATION

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Sec. 2-18. Adjourned meetings.
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Sec. 2-136. Scope and preamble.
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ARTICLE I. IN GENERAL

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ARTICLE II. CITY COUNCIL*

DIVISION 1. GENERALLY

Sec. 2-16. Public comment period at regular meetings.

The council shall provide at least one (1) period for public comment per month at a regular meeting of the council.
(Code 1961, § 2-1; Ord. No. 89-69, § 1, 5-11-89; Ord. No. 92-13, § 1, 2-13-92; Ord. No. 96-1, § 1, 1-2-96; Ord. No. 97-198, § 1, 12-16-97; Ord. No. 05-103, § 1, 5-3-05; Ord. No. 05-107, § 1, 5-17-05; Ord. No. 07-76, § 1, 5-1-07; Ord. No. 10-185, § 1, 12-7-10; Ord. No. 11-204, § 1, 12-13-11; Ord. No. 17-139, § 1, 12-19-17)

Editor's note—Ord. No. 11-204, § 1, adopted Dec. 13, 2011, changed the title of § 2-16 from "Regular meetings" to "Public comment period at regular meetings". This historical notation has been preserved for reference purposes.

Charter reference—Regular meetings of council, § 3.22.

State law reference—Regular meetings, G.S. § 160A-71.

Sec. 2-17. Special meetings.

Special meetings of the city council may be held on such days and at such hours as may be fixed in the notice thereof given in the manner provided by the city charter or at such times as all members of the council may assemble and consent hereto.
(Code 1961, § 2-2)

Charter reference—Special meetings of council, § 3.22.

State law reference—Special meetings, G.S. § 160A-71.

Sec. 2-18. Adjourned meetings.

Any regular or special meeting of the city council and any adjourned meeting thereof may adjourn to such time prior to the next regular meeting date as may be fixed by the council.
(Code 1961, § 2-3)

State law reference—Adjourned meetings, G.S. § 160A-71.

*__Charter reference—__Council generally, § 3.01 et seq.

State law reference—Council organization and procedure, G.S. § 160A-68 et seq.

Sec. 2-19. Place of meeting.

(a) All regular and special meetings of the city council shall be held in the council chamber of the Melvin Municipal Building; provided, that any regular or special meeting duly organized may adjourn to any other place within the corporate limits and that any such adjourned meeting may, in turn, adjourn to such place within the city limits as may be fixed therefor by a majority of the members present at such meeting; provided, further, that in the event the city council is authorized or required by law to hold a joint meeting with the governing body of another political subdivision of the state, the council may, at its election, meet with the other governing body at a designated place within the area which is subject to the jurisdiction of the other governing body.

(b) If any meeting cannot be held in the council chamber of the city hall, because of its destruction or otherwise, then such meeting shall be held at such place as may be designated by the mayor, or by the mayor pro tem, if the mayor is out of the city or unable to act.
(Code 1961, § 2-4)

Charter reference—Authority to hold joint meeting in area subject to jurisdiction of the other governing body, § 3.22(b).

Sec. 2-20. Business at special and adjourned meetings.

At any special or adjourned meeting of the council any business may be transacted that might be transacted at a regular meeting.
(Code 1961, § 2-5)

Sec. 2-21. Reconsideration of matters previously acted upon.

(a) The city council may reconsider any matter previously acted upon by it subject to the conditions set forth herein. A motion for reconsideration shall be made and acted upon no later than the day of the second regular meeting following the meeting at which such matter was previously considered. In the discretion of the city council, either at the same meeting in which the matter

was favorably reconsidered or at any meeting thereafter, the city council shall finally dispose of the matter by taking another vote thereon.

(b) In the event that there are not a sufficient number of councilmen present at the meeting as required by applicable provisions of law to act favorably on a motion to reconsider any matter arising under the provisions of this section, then the matter shall be reconsidered not later than the day of the next regular meeting at which a sufficient number of councilmen are present to act favorably on such motion to reconsider any matter.

(c) Notwithstanding subsections (a) and (b), any ordinance which received five (5) affirmative votes upon first reading shall automatically be carried over to the next regular meeting of the city council following the meeting upon which such ordinance was first voted upon and shall be subject to a second reading with a subsequent vote to be taken thereon. In the discretion of the city council, either at the same meeting in which there is a second reading or at any meeting thereafter, the city council shall finally dispose of the matter by taking another vote thereon.
(Code 1961, § 2-6; Ord. No. 04-08, § 1, 1-6-04)

Sec. 2-22. Rules of procedure.

Except where otherwise provided by law or ordinance, the procedure of the city council shall be governed by Robert's Rules of Order.
(Code 1961, § 2-7)

Sec. 2-23. Minutes.

A complete and accurate account of all the proceedings of the city council shall be kept. Every resolution or order adopted or made by the council, and every petition submitted to it, which is not set in full in the minutes, shall be filed in an exhibit book and by proper reference shall be made a part of the minutes. The minutes of each meeting shall be submitted at the subsequent meeting, and upon being approved by the council shall be signed by the mayor and by the city clerk.
(Code 1961, § 2-8)

State law reference—Minutes, G.S. § 160A-72.

Sec. 2-24. City council agendas.

(a) The agenda for meetings of the city council shall generally be divided into four (4) parts. The first part shall be known as the "consent agenda"; the second part shall be known as "public hearing agenda" (if any); the third part shall be known as the "general business agenda"; and the fourth part shall be known as the "supplemental agenda".

(b) The city manager and the city clerk (after consultation with the city attorney in appropriate circumstances as determined by the city manager) shall prepare the consent agenda on the basis that each matter: (1) Is considered routine; (2) is well-documented in the agenda packet with appropriate background information; (3) is unlikely to involve comment or participation from the general public; and (4) copies are available to the public indicating the nature of the items included thereon in accordance with N.C.G.S. 143-318.13(c). The intent of the consent agenda is for those items to be moved, seconded, and voted on without discussion or presentation by the staff.

Examples of items which may be included in the consent agenda are:

(1) Approval of the minutes of prior meetings.

(2) Approval of refund or rebate in taxes.

(3) Authorization of tax collector to sell liens on property for delinquent taxes.

(4) Approval of sale of city-owned real estate.

(5) Approval of sale and authorizing bid and purchase contracts for properties in redevelopment area.

(6) Approval of purchases of easements, rights-of-way and other interests in real estate.

(7) Authorizing encroachments into street right-of-way.

(8) Authorizing city attorney to institute condemnation proceedings.

(9) Approval of municipal agreements with the department of transportation.

(10) Approval of agreements with Southern Railway Company for improvements at railroad crossings.

(11) Approval of application and acceptance of federal or state grants.

(12) Adopting concurring ordinances for speed limits on state highway system streets within the corporate limits.

(13) Ordinances making street name changes.

(14) Other ordinances dealing with routine traffic regulations.

(15) Approval of contracts and award of bids for construction projects to the lowest qualified bidder.

(16) Approval of contract change orders and extensions.

(17) Approval of routine amendments to the budget except general fund available fund balance.

(18) Matters of general support which are routine and not controversial.

(19) Report of budget adjustments, change orders and extensions of construction contracts.

(20) Abstracts of votes cast in elections/ referendums.

(c) All matters on the consent agenda shall be considered introduced by general reference to the consent agenda. However, all such matters on the consent agenda shall be approved, adopted, or accepted, as the case may be, upon a single vote of the council. Each matter so approved will appear in the minutes of the council in its proper form showing approval.

(d) No matter requiring a public hearing shall be placed on the consent agenda. On objection from any member of the city council or the mayor, any item included in any consent agenda shall be removed from said consent agenda and considered separately. In addition, if any citizen wishes to be heard on any consent agenda item, he/she/they may be recognized to do so. No item which requires a city council member to abstain shall be placed on the consent agenda.

(e) All other items shall be included in the public hearing, general business agenda, or supplemental agenda and shall be acted upon separately.
(Ord. No. 91-50, § 1, 5-2-91; Ord. No. 00-212, § 1, 12-5-00; Ord. No. 11-204, § 2, 12-13-11; Ord. No. 20-163, § 3, 12-15-20)

Secs. 2-25—2-35. Reserved.

DIVISION 2. ORDINANCES*

Sec. 2-36. Must be proposed in writing and signed.

Every ordinance amending or repealing any ordinance and every new ordinance shall be proposed in writing and shall be signed by the councilman introducing it.
(Code 1961, § 2-13)

Sec. 2-37. Numbering and filing of new ordinances.

The original and signed copy of every new ordinance adopted after the adoption of this Code shall be numbered consecutively and shall be filed in order in a book to be known as the "Original Ordinance Book." Each such original ordinance shall bear the certificate of the city clerk showing its adoption and the date thereof.
(Code 1961, § 2-14)

State law reference—Ordinance book, G.S. § 160A-78.

Secs. 2-38, 2-39. Reserved.

Editor's note—Ord. No. 04-110, §§ 1, 2, adopted July 20, 2004, repealed former §§ 2-38, 2-39 of the Code, which pertained to when ordinances are to be published and filing published copies of ordinances, respectively, and derived from the 1961 Code, §§ 2-15, 2-16.

***Charter reference—**Ordinance procedure, § 3.41 et seq.

State law reference—Ordinances generally, G.S. §§ 160A-76 et seq., 160A-174.

Sec. 2-40. Ordinances to be printed and distributed to city officials.

As soon as practicable after the adoption of any ordinance, the same shall be printed or mimeographed and distributed to the city officials designated by the city manager. The printed or mimeographed ordinance shall show the number thereof above the designation of the number of the chapter and section affected by such ordinance.
(Code 1961, § 2-17)

Sec. 2-41. Effective date of ordinance.

Unless otherwise specified, each ordinance shall become effective upon adoption by the city council.
(Ord. No. 04-170, § 1, 9-7-04)

Sec. 2-42. Standing committees designated; composition; voting.

(a) There shall be elected by the city council standing committees of the council as follows:

(1) Community services committee.

(2) General government committee.

(3) Infrastructure committee.

(4) Public safety committee.

(b) Each committee shall be composed of four (4) members of the city council, to be appointed by the mayor. The chairperson and vice-chairperson of each committee shall be designated by the mayor.

(c) Each member of city council shall be appointed to two (2) committees.

(d) The terms of appointments shall be aligned with the election cycle.

(e) The mayor shall be an ex officio member of the committees designated by this section. The mayor shall vote in the event of a tie. All regular members of the committees shall have full voting rights, and must follow the same voting requirements as are applicable to members of the city council when considering matters coming before the full council. The above voting requirements notwithstanding, members of committees shall have the right to abstain from voting, and when they do so, such actions shall be recorded as abstentions.

(f) The city council reserves the right to place on the council agenda any matter it so chooses, notwithstanding the committee system. If a matter is not on the council agenda, it may be heard upon approval by a majority vote of the council.
(Ord. No. 15-075, § 1, 6-16-15)

Sec. 2-43. Duties and procedures of standing committees.

(a) *Generally.*

(1) Standing committees of the city council shall serve only in an advisory capacity. It shall be their duty to:

a. Consider and make positive, negative, or no recommendation to the city council;

b. Hold public hearings on questions when requested to do so by the council;

c. In collaboration with the city manager, make special studies and submit reports to the council on matters falling within that committee's province; and

d. Meet with the city manager when requested by him/her/them for policy discussions or advisory purposes.

e. The standing committees will remain separate from the functions of the zoning commission and the planning board whose duties will remain unchanged.

(2) Committees may request the city manager to furnish any information or reports desired regarding departmental operations or affairs with which that committee may be concerned.

(3) Committees may be assigned special temporary duties by the city council.

(4) Committees shall meet upon the call of either the mayor or chairperson, or in their absence the vice-chairperson or the city manager.

(5) To ensure the orderly and expeditious handling of petitions and other matters presented to individual council members and to committees of the council for consideration, and to afford the administrative department of the city an opportunity to investigate the facts with respect thereto for the benefit of the committees and the city council, the following procedure shall be adhered to:

a. Requests and petitions received by individual council members shall be routed to the city manager, or to the appropriate department head, for investigation.

b. To save the time of the committees and of the public, the public shall not be invited to appear before a committee until the matter in question has been investigated by the appropriate department and the city manager has reported thereon to the committee.

c. Where a petition or other matter comes before a committee without first having been submitted to the city manager, or the department concerned, for administrative study and recommendations, the committee shall refer it to the city manager for study and recommendations, the city manager shall make his/her/their report thereon to the committee within such time as may be designated by the committee, and the committee shall consider the report and recommendations, along with other information received by it, in arriving at its decision.

(6) Each committee meeting shall be advertised, televised or recorded when possible, and open to the public. Minutes shall be taken at each committee meeting and shall be given to and maintained by the city clerk.

(b) *Community services committee.*

(1) The community services committee shall act in an advisory capacity to the council and shall oversee parks and recreation, neighborhood development, libraries, housing code violations, nuisance ordinances, user fees, policy revisions, contracts, and capital projects.

(2) The city council may impose special or temporary duties upon the community services committee, and either the council or the city manager may request it to consider any proposals, projects or activities which are not the responsibility of another standing committee.

(c) *General government committee.*

(1) The general government committee shall act in an advisory capacity to the council and shall oversee matters of finance, budget, information technology, human resources, human relations, minority/women business enterprise, executive issues, contracts and purchase orders, annual operating budget, budget amendments, annual financial reports, purchase and sale of property, fees, policy revisions, grants requiring a match, capital projects.

(2) The city council may impose special or temporary duties upon the general government committee, and either the council or the city manager may request it to consider any proposals, projects or activities which are not the responsibility of another standing committee.

(d) *Infrastructure committee.*

(1) The infrastructure committee shall act in an advisory capacity to the council and shall oversee matters of inspections and engineering, field operations, planning, transportation, water resources, contracts, budget review, road and alley closures,

utility easements, roadway naming, annexation petitions, ordinance revisions, fees, capital projects.

(2) The city council may impose special or temporary duties upon the infrastructure committee, and either the council or the city manager may request it to consider any proposals, projects or activities which are not the responsibility of another standing committee.

(e) *Public safety committee.*

(1) The public safety committee shall act in an advisory capacity to the council and shall oversee matters of the fire department, Guilford Metro 911, the police department, traffic matters, contracts, grant applications, budget review, ordinance revisions, fees, projects.

(2) The city council may impose special or temporary duties upon the public safety committee, and either the council or the city manager may request it to consider any proposals, projects or activities which are not the responsibility of another standing committee.

(Ord. No. 15-075, § 1, 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Secs. 2-44—2-49. Reserved.

DIVISION 3. BOARD OF TRUSTEES OF THE GREENSBORO PUBLIC LIBRARY

Sec. 2-50. Composition.

The Board of Trustees of the Greensboro Public Library, as originally created is hereby increased from ten (10) members to eleven (11) members effective on and after May 16, 2006. The tenth position will be reserved for the President of the Friends of the Library. The term of office on the Greensboro Public Library Board of Trustees for the President of the Friends of the Library shall be limited to that person's term as president. The eleventh position shall be appointed by the Guilford County Board of Commissioners and shall serve a three-year term and be subject to the city ordinance procedures regarding reappointment.

(Ord. No. 92-64, § 1, 5-4-92; Ord. No. 00-9, § 1, 1-18-00; Ord. No. 06-98, § 1, 5-16-06)

ARTICLE III. OFFICERS AND EMPLOYEES*

DIVISION 1. GENERALLY

Sec. 2-51. Compensation of mayor and council.

The mayor shall receive compensation for services in the amount of twenty-nine thousand, seven hundred thirty-four dollars ($29,734.00) per annum; the mayor pro tem shall receive compensation for services in the amount of twenty-three thousand, three hundred sixty-five dollars ($23,365.00) per annum; and each council member shall receive compensation for services in the amount of twenty-two thousand, eight hundred nine dollars ($22,809.00) per annum.

The mayor, mayor pro tem, and each council member shall receive annual compensation adjustments, only if the city's adopted annual budget includes a merit increase or other increase for city employees. To the extent an annual compensation adjustment is received, the annual increase shall not exceed fifty (50) percent (capped at 1.5 percent increase) of the merit increase or other increase recommended for city employees. The annual adjustments for the mayor, mayor pro tem, and each council member shall be effective on the same date that city employees receive a merit increase or other increases. All compensation for services shall be paid in biweekly installments. The city shall contribute 3.25 percent of each councilmember's base annual compensation into the 401(a) deferred compensation plan. Each councilmember may elect to defer a portion of their annual compensation into the 457(b) deferred compensation plan. Each councilmember is

*__Cross references—__Emergency interim succession, § 9-16 et seq.; personnel, Ch. 21.

__State law reference—__Administrative offices generally, G.S. § 160A-146 et seq.

eligible to enroll themselves and eligible dependents in the city's medical and dental benefit plans.

In addition, there shall be a car allowance of three hundred fifty dollars ($350.00) per month for the mayor, three hundred dollars ($300.00) per month for the mayor pro tem, and two hundred fifty dollars ($250.00) per month for each council member for attending any meetings and for travel expenses within Guilford County.
(Code 1961, § 2-9; Ord. No. 89-169, § 1, 12-4-89; Mo. of 8-16-05; Ord. No. 19-056, § 1, 5-21-19; Ord. No. 23-152, 11-6-2023)

Charter reference—Salary of mayor and councilmen, § 3.03.

Secs. 2-52—2-65. Reserved.

DIVISION 2. MAYOR*

Sec. 2-66. Mayor to be familiar with city matters.

As official head of the city, the mayor shall familiarize himself/herself/themself with and shall keep himself/herself/themself informed as to all matters affecting the government of the city.
(Code 1961, § 2-21; Ord. No. 20-163, § 3, 12-15-20)

Sec. 2-67. Reports to council.

The mayor shall, from time to time, report to the city council on all such matters, not otherwise brought to the attention of the council, as require the consideration of the council.
(Code 1961, § 2-22)

Sec. 2-68. Appointment of committees.

Unless otherwise ordered by the council, the mayor shall appoint all committees authorized by the council.
(Code 1961, § 2-23)

Secs. 2-69—2-80. Reserved.

*__Charter reference—__Mayor and mayor pro tem, § 3.81.

__Cross reference—__Emergency interim succession, § 9-16 et seq.

__State law reference—__Mayor generally, G.S. § 160A-69 et seq.

DIVISION 3. CITY CLERK†

Sec. 2-81. Minutes and council proceedings.

The city clerk shall keep the minutes of all meetings of the city council and shall be responsible for a complete and accurate record of the proceedings of the council with respect to every matter engaging its attention.
(Code 1961, § 2-28)

Sec. 2-82. Custodian of records.

The city clerk shall be the custodian of all minute books, exhibit books, original ordinance books, ordinance publication books, and all other documents, books and records of the city not used in the particular work of any administrative or judicial department of the city government.
(Code 1961, § 2-29)

Sec. 2-83. Copies of rules of boards and commissions.

The city clerk shall keep in his/her/their office a corrected up to date a copy of the rules and regulations of every city board and commission.
(Code 1961, § 2-30; Ord. No. 20-163, § 3, 12-15-20)

Secs. 2-84—2-89. Reserved.

DIVISION 4. CITY MANAGER

Sec. 2-90. Authority of the city manager to execute service contracts and of the city attorney to approve legal service contracts.

The city manager, and his/her/their designees, shall have the authority to approve service contracts in the amount of three hundred thousand

†__Charter references—__City clerk, a charter officer, § 4.01(a); authority to combine offices of city clerk and city treasurer, and assistant city clerk and assistant city treasurer, § 4.01(a)(1); city clerk generally, § 4.151.

__Cross reference—__Emergency interim succession, § 9-16 et seq.

__State law reference—__City clerk generally, G.S. § 160A-171 et seq.

dollars ($300,000.00) and less, on behalf of the city, and the city attorney shall have the authority to approve all legal service contracts, provided that city council shall have approved a sufficient appropriation in the annual budget for the current fiscal years. In the event of a special emergency involving the health and safety of the people or their property, the manager may contract for amounts in excess of his/her/their authority, provided he/she/they notify council as soon as practical, and place the contract on the next agenda for review and ratification.
(Ord. No. 15-075, § 2, 6-16-15; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-243, § 1, 12-6-22)

Editor's note—Ord. No. 15-075, § 2, adopted June 16, 2015, amended § 2-90 in its entirety to read as set out herein. Former § 2-90 pertained to authority of the city manager to execute service contracts and derived from Ord. No. 11-145, § 1, adopted July 19, 2011.

Sec. 2-91. Infrastructure reimbursement agreements.

(a) Pursuant to N.C.G.S. 160A-499, this section authorizes and sets forth the procedures and terms under which the city may approve reimbursement agreements with private developers and property owners for the design and construction of municipal infrastructure that is included on the city's capital improvement plan and serves the developer or property owner. For the purpose of this section, municipal infrastructure includes, without limitation, water mains, sanitary sewer lines, lift stations, stormwater lines, streets, curb and gutter, sidewalks, traffic control devices, greenways, trails, and other associated facilities.

(b) The city manager, or designee, is authorized to negotiate municipal infrastructure reimbursement agreements with private developers and property owners pursuant to this section. In negotiating such agreements, the city manager, or designee, shall determine that:

(1) The cost to the city will not exceed the estimated cost of providing for the municipal infrastructure through either eligible force account qualified labor or through a public contract let pursuant to G.S. 143-128 et seq.; or

(2) The coordination of separately constructed municipal infrastructure with the associated private development would be impracticable.

City approval authority for agreements under this section shall be governed by general city contracting authorizations and delegations.

(c) A municipal infrastructure reimbursement agreement approved pursuant to this section shall require the private developer or property owner party to comply with the requirements of G.S. 143-129 and G.S. 143-128(f) relating to public advertising and bid opening requirements which would be applicable if the construction contract had been awarded by the city.

(d) A municipal infrastructure reimbursement agreement approved pursuant to this section shall require the private developer or property owner party to comply with the city's minority/women's business enterprise program with respect to the design and construction of the municipal infrastructure to be reimbursed by the city.
(Ord. No. 16-41, § 1, 5-17-16)

Secs. 2-92—2-100. Reserved.

ARTICLE IV. FINANCIAL AFFAIRS*

DIVISION 1. GENERALLY†

Sec. 2-101. Director of finance.

(a) The city manager may appoint a director of finance, who may also occupy the office of city treasurer.

(b) It shall be the duty of the director of finance to supervise each and every phase of city finance, including the accounting, tax collection and purchasing functions, the rental and disposal

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***Cross reference—**Licenses, taxation and miscellaneous business regulations, Ch. 13.

†**Charter reference—**Finances generally, § 4.51 et seq.

Cross references—Licenses, taxation and miscellaneous business regulations, Ch. 13; operating street paving fund, § 26-2; operating sidewalk construction fund, § 26-65; water and sewer operating construction fund, § 29-2.

State law reference—Finance generally, G.S. Ch. 159, G.S. § 160A-206 et seq.

of real estate and personal property owned by the city, including the sale of cemetery lots, together with the collection of all fees or charges made by the city for services rendered by it.

(c) It shall also be the duty of the director of finance to see that all obligations owing by the city are promptly paid and discounts received.

(d) The director of finance shall keep himself/herself/themself informed regarding the outstanding indebtedness of the city and shall see that proper bond register entries are at all times accurately maintained, that proper disposition is made of all bonds and coupons which have been paid, and that sufficient funds are provided at the place of payment for the retirement of maturing bonds and interest coupons as the same become due.

(e) The director of finance shall submit to the city manager at regular intervals a report setting forth the financial condition of the city and shall make such recommendations as, in his/her/their opinion, will result in the improvement of its operations.

(Code 1961, § 2-35; Ord. No. 00-213, § 1, 12-5-00; Ord. No. 20-163, § 3, 12-15-20)

Sec. 2-102. Investment of proceeds of the sale of bonds and other surplus funds; depositories.

(a) The mayor, the city manager and the treasurer, acting jointly and without further approval by the council, shall from time to time carefully analyze the amount of cash in the general fund of the city and in all special funds of the city credited to any special purpose, and all proceeds from the sale of bonds heretofore or hereafter issued by the city. When in the opinion of the mayor, city manager and treasurer, it is determined that the cash in any fund is in excess of the amount required to meet current need, the mayor, manager and treasurer may deposit excess funds at interest with an official depository in the city upon terms authorized by applicable laws of the United States and the state, or invest in shares of any savings and loan association organized and licensed under the laws of the state, or in shares of any federal savings and loan association organized under the laws of the United States and having its principal office in this state; or invest excess funds in bonds or certificates of indebtedness or treasury bills of the United States of America, or in bonds, notes or other obligations of any agency or instrumentality of the United States of America when the payment of principal and interest thereon is fully guaranteed by the United States of America, or in obligations maturing no later than eighteen (18) months after the date of purchase from the Federal Intermediate Credit Banks, the Federal Home Loan Banks, the Federal National Mortgage Association, the Bank For Cooperatives or the Federal Land Banks, or in bonds of the city, or in banks of the state, or in certificates of deposit issued by banks or official depositories within the city, or in any form of investments allowed by the state treasurer under North Carolina General Statutes section 147-69. No funds may be invested, however, in building and associations unless and until authorized by the Insurance Commissioner, or in any form of investments allowed by the treasurer pursuant to North Carolina General Statutes § 159-30, or in case of shares of a federal savings and loan association, unless and until authorized by an officer of the Federal Home Loan Bank.

(b) When securities hereinabove mentioned are purchased and sold and it is not deemed practical to transport any or all such securities from the seller to the city and from the city to the seller, the mayor, manager and treasurer are authorized to name a bank or banks with which such securities may be held in a safekeeping account, either in the name of the city or held by the bank's trust department or agent in the city's name. The mayor, manager and treasurer are also authorized to select and designate as its official depositories one or more banks, savings and loan associations, or trust companies as allowed under North Carolina General Statutes § 159-31. Earnings received on deposits and the income from investments, other than the investment of the proceeds from the sale of bonds, unless otherwise required by law, shall be credited to the fund whose cash is deposited or invested. Cash of several funds may be combined for deposit or investment if not otherwise prohibited by law and when such joint deposits or invest-

ments are made, interest earned shall be prorated and credited to the various funds on the basis of the amounts thereof invested, based upon an average periodic balance or some other sound accounting principle. Nothing in this section shall be construed as permitting moneys realized from the investment of the proceeds of the sale of city bonds to be used for any purpose other than the purpose for which they were issued.

(c) The mayor, manager, and treasurer may make deposits in designated depositories to the extent that the depositories have qualified to receive such deposits under the law, and may purchase and sell the securities or investments hereinabove set out privately and without notice. The treasurer shall pay all costs of every nature incident to the purchase and sale of securities.

(d) When the United States Government securities hereinabove mentioned are purchased and sold in New York City, New York, it is not deemed practical to transport any or all of such securities from New York to Greensboro and from Greensboro to New York. The following banks with which such securities may be left in a safekeeping account, either in the name of the city or in the name of a Greensboro bank, are banks which may hold for the city such securities in accounts with the designated New York banks. No security shall be required for the protection of securities or investments thus held for safekeeping.

(e) The North Carolina National Bank may hold city securities in its accounts with the following banks:

(1) Manufacturer's Hanover Bank.

(2) Chemical Bank New York Trust Company.

(3) Morgan Guaranty Trust Company.

(f) The Wachovia Bank and Trust Company may hold city securities in its account with Chase Manhatten Bank. The First Union National Bank may hold city securities in its account with Manufacturer's Hanover Bank and Marine Midland Bank.

(Code 1961, § 2-36; Ord. No. 00-213, § 2, 12-5-00)

Charter reference—Investment of funds, § 4.71.

State law reference—Investment of idle funds, G.S. § 159-30.

Sec. 2-103. Refunds, rebates by director of finance to correct errors.

The director of finance, upon discovering a clerical error or improper charge in any payment made within the preceding three (3) years or to be made to the city for taxes, assessments for local improvements, utility charges, or any other kind of debt owed to the city, is authorized to refund such amount paid or to rebate such amount charged, and the director of finance shall have no liability for making any refund or rebate if he/she/they secures the approval of the city attorney therefor. The director of finance may require such proof of error or improper charge as may be satisfactory to him/her/them in justifying any refund or rebate. Refunds and rebates authorized by this section shall not exceed twenty thousand dollars ($20,000.00) for any one (1) error or improper charge, and a report of all refunds and rebates shall be made to the city council each month.

(Code 1961, § 2-37; Ord. No. 00-213, § 3, 12-5-00; Ord. No. 20-163, § 3, 12-15-20)

Sec. 2-104. Purchasing agent authorized to sell personal property with approval of city manager.

(a) Any personal property not exceeding ten thousand dollars ($10,000.00) in value at the time of sale may be sold by the purchasing agent with the written approval of the city manager. Any personal property exceeding ten thousand dollars ($10,000.00) in value at the time of sale may be sold by the purchasing agent with the written approval of the city manager provided that advertisement for bids has been duly published. In addition, the city manager is authorized to exchange with, lease to, lease from, sell to, purchase from, or enter into agreements regarding the joint use by any other governmental unit of any interest in personal property that the city or other governmental unit may own subject to such terms and conditions deemed to be in the best interest of the city.

(b) In the event the purchasing agent, after satisfactory notice to purchasers, is unable to sell personal property, which in the opinion of the city manager is not salable but should be

disposed of at the city's landfill, the city manager is hereby authorized to direct the purchasing agent to dispose of such personal property at the city's landfill location.

(Code 1961, § 2-42; Ord. No. 00-213, § 4, 12-5-00)

Charter reference—Sale of personal property, § 4.121.

State law reference—Sale and disposition of property, G.S. § 160A-265 et seq.

Secs. 2-105—2-115. Reserved.

DIVISION 2. PURCHASES*

Sec. 2-116. Reserved.

Editor's note—It should be noted that Ord. No. 00-213, adopted on December 5, 2000 repealed section 2-116 in its entirety.

Sec. 2-117. Minority/women's business enterprise participation in city construction, professional services, goods and other services contracts.

This section establishes a minority/women's business enterprise policy to authorize the city manager to adopt and administer a "M/WBE program" for firms that engage in business with the City of Greensboro. The purposes of this section are: (a) to establish a clear policy against discrimination in business transactions and dealings on the basis of race, gender, religion, national origin, ethnicity, age, or disability; (b) to authorize and direct the establishment and administration of narrowly tailored policy and contracting procedures by the city manager to remedy the ongoing effects of identified marketplace discrimination that is adversely affecting the award of prime contracts and subcontracts to minority- and women-owned businesses in city contracts; and (c) to authorize and direct the establishment and administration of narrowly tailored policy and contracting procedures by the city manager to prevent the city from becoming a passive participant in private sector marketplace discrimination that is adversely affecting the formation, growth, and competitiveness of small, minority, and women-owned business enterprises in the city's relevant geographic market from which it routinely purchases goods and services.

The city council finds that in order to avoid becoming a passive participant in private sector commercial discrimination, it is necessary to establish and firmly enforce a clear policy against discrimination in business on the basis of race, gender, religion, national origin, ethnicity, age, or disability. Under this policy, the city shall not contract with business firms that discriminate in the solicitation, selection, hiring, or treatment of vendors, suppliers, subcontractors, or commercial customers. Such a commercial nondiscrimination policy approach has been favorably commented upon by the United States Supreme Court in City of Richmond v. J. A. Croson, 488 U.S. 469, 509-510 (1989), and by other federal courts.

After careful and lengthy consideration of a strong basis in evidence, including, but not limited to, disparity studies conducted by the North Carolina Institute of Minority Economic Development in 1992 and 1997, MGT of America, Inc. in 2012, by Griffin & Strong, P.C., in 2018 and 2024, (the findings and recommendations of the latter having been formally adopted by city council on January 21, 2025), the city council has further determined that it continues to have a compelling interest in assuring that the public funds that are collected from all of its citizens and then spent in city contracting do not serve to finance private prejudice on the basis of race, gender, religion, national origin, ethnicity, age, disability, or any other form of unlawful discrimination. The city council has further considered a full range of narrowly tailored race- and gender-neutral and race- and gender-conscious remedial policy options that were presented to city council on January 21, 2025, and that are legally defensible and effective for addressing identified barriers to the full and equal participation of small and minority-owned businesses in city contracting. By this section, city council authorizes and directs the city manager to adopt and administer an M/WBE program that is based upon this factual predicate and consistent with these identified remedial policy options.

*__Charter reference—__Purchases generally, § 4.111 et seq.

The city council further determines that it is in the best interests of the City of Greensboro to enhance competition on city projects by promoting equal opportunity and the full participation of all segments of its business community in a robust and inclusive marketplace environment that is free from the effects of discrimination. The city is likely to benefit from a discrimination-free marketplace through lower prices for the goods and services it purchases, higher revenues through increased employment opportunities for its citizens, increased business-to-business sales, and a more vibrant local economy.

The city manager or designee(s), are authorized and directed to administer a minority/women business enterprise program ("M/WBE program") for application to the city's procedures for the solicitation, selection, and award of city contracts and subcontracts for construction, professional services, goods and other services. The M/WBE program shall be consistent with the city council's factual findings, and the range of remedial policy options considered by city council, as follows:

(1) It is the policy of the city to provide minorities and women equal opportunity to participate in all aspects of city contracting and purchasing programs, including but not limited to participation in procurement contracts for commodities and services as well as for contracts relating to construction and repair work activities. It is further the policy of the city to prohibit discrimination in business transactions and dealings on the basis of race, gender, religion, national origin, ethnicity, age or disability;

(2) The M/WBE program is narrowly tailored to ensure policy and contracting procedures to remedy the ongoing effects of identified marketplace discrimination that is adversely affecting the award of prime contracts and subcontracts to minority- and women-owned businesses in city contracts; and

(3) The city manager is authorized to assign duties, responsibilities and establish appropriate procedures for administration and implementation of a narrowly tailored policy and contracting procedures to prevent the city from becoming a passive participant in private sector marketplace discrimination that is adversely affecting the formation, growth, and competitiveness of minority- and women-owned business enterprises within the city's relevant geographic market from which it routinely purchases goods and services. The plan shall contain goals, standards and criteria for implementation in accordance with state and federal laws. In addition, the plan shall be subject to review and approval of the city council.

(Ord. No. 13-132, § 1, 10-15-13; Ord. No. 19-10, 2-19-19; Ord. No. 25-005, 1-21-25)

Editor's note—Ord. No. 13-132, § 1, adopted Oct. 15, 2013, amended § 2-117 in its entirety to read as set out herein. Former § 2-117 pertained to minority/women's business enterprise participation in city procurement and construction contracts and derived from the Code of 1961, §§ 5A-35, 5A-36.

Sec. 2-118. Extensions and change orders.

For any contract involving a construction project, the city manager is authorized, in his/her/their sound judgment and discretion, to approve change orders and extensions in such construction contracts up to an amount not exceeding twenty thousand dollars ($20,000.00) for each such change order or extension, or change orders in any amount where a specific emergency exists. Such approval shall be valid provided that the city treasurer has verified the amount of funds available and the approval of the city attorney as to legality has been secured. In order to implement any such change orders and extensions in the manner hereinabove set out, the city manager may further authorize payment and allocation of funds as necessary for the accomplishment thereof. Any change orders and extensions approved hereunder exceeding two thousand dollars ($2,000.00) shall be reported to the city council at its next regular meeting and entered in the minutes. For purposes of this section, "specific emergency" shall mean a sudden unexpected or unforeseeable occurrence which requires immediate corrective action to secure public health and safety.

(Code 1961, § 2-38; Ord. No. 90-149, § 1, 12-13-90; Ord. No. 20-163, § 3, 12-15-20)

Secs. 2-119—2-135. Reserved.

ARTICLE V. BOARDS AND COMMISSIONS*

DIVISION 1. GENERAL RULES FOR BOARDS AND COMMISSIONS

Sec. 2-136. Scope and preamble.

Unless otherwise specifically provided by separate law or ordinance, all boards and commissions established by ordinance shall be governed by this division.

It is the policy of the city council of the City of Greensboro to select citizens from the entire community to serve on boards and commissions taking into consideration gender, race and residence on a geographical basis. It is the intent to select members to boards and commissions on an equitable and proportionate basis representing each of the five (5) councilmanic districts and each of the three (3) at-large seats and the office of the mayor. Based on the above criteria, each member of the city council may make recommendations to the full city council which, in its discretion, shall appoint all members of each board and commission.
(Ord. No. 98-163, § 1, 10-20-98)

Sec. 2-137. Notice of special meetings of boards and commissions.

(a) Special meetings of a board or commission created and established by ordinance of the city council may be called by the chairperson by notice given either verbally or in writing and delivered personally to each member or left at his/her/their residence not less than forty-eight (48) hours prior to the time for the meetings; provided, that the minimum time period for notice to a member may be waived by such member if he/she/they is present at the special meeting.

(b) In addition, the board or commission shall cause written notice of the special meeting, stating its general purpose, to be posted at the door of its meeting place and to be mailed or delivered to each news media which has filed a request for notice with the city clerk and also to any person who has filed a request for notice with the city clerk. Such notices shall be posted and mailed or delivered at least forty-eight (48) hours before the time of the special meeting. All written requests for notice of special meetings shall be renewed annually.
(Code 1961, § 2-46.1; Ord. No. 20-163, § 3, 12-15-20)

Sec. 2-138. Membership—Eligibility to serve.

Except as may be otherwise required by general law or special act, with respect to boards and commissions created by the city council, all members of such boards and commissions

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*__Editor's note—__In addition to the boards and commissions provided for by ordinance or the charter, the following exist:

(1) The *firefighter's relief fund board.* Two (2) members are appointed by the council, two (2) members are elected by the members of the fire department. See G.S. § 118-6.
(2) The *firefighter's retirement board.* One (1) member is elected by council from its membership, two (2) members are elected by the uniformed members of the fire department. See S.L. 1953, Ch. 899, as amended.
(3) The *Greensboro-High Point Airport Authority.* One (1) member is appointed by the council. See 1941 Pub-Loc. & Pvt. L. Ch. 98, as amended S.L. 1969, Ch. 793.
(4) *Housing authority.* Seven (7) members are appointed by the mayor. See Chapter 573 of 1971 Session laws.
(5) *Police emergency reserve fund board.* This board consists of the mayor, the city manager, and the chief of police. See Pvt. L. 1929, Ch. 164, as amended.
(6) *Board of Trustees of the Greensboro Public Library.* The six (6) members who must be residents of the city are appointed by the council. See G.S. § 153A-265.

It should also be noted that the council appoints the three-member board of alcoholic control, (including the chairperson). See Charter, § 5.21.

__Charter references—__General authority to create boards, commissions, etc., § 4.01(b)(2); board of alcoholic control, § 5.21 et seq.

__Cross references—__Board of building appeals, § 6-42; board of electrical examiners, § 6-136; heating examining board, § 6-241; board of plumber examiners, § 6-276; housing commission, § 11-46 et seq.; commission on human relations, § 12-21 et seq.; commission on status of women, § 12-41 et seq.; parks and recreation commission, § 19-16 et seq.; planning board, § 30-9-2.1 et seq.; board of adjustment, § 30-9-6.1 et seq.; redevelopment commission, § 30-9-7.1 et seq.; joint historic properties commission, § 30-9-8.1 et seq.; zoning commission, § 30-9-3.1 et seq.; historic preservation commission, § 30-9-5.1 et seq.

appointed by the city council shall be bona fide adults maintaining permanent residence inside the corporate limits of the city. No member may continue to serve on any such board or commission unless he/she/they remains a resident of the city. Unless otherwise required by ordinance, general law or special act, no employee of the city shall be eligible to serve on any board or commission created by the city council.
(Ord. No. 07-183, § 1, 8-21-07; Ord. No. 20-163, § 3, 12-15-20)

Sec. 2-139. Same—Term of office.

The terms of office of the appointive members of a board or commission shall be three (3) years unless otherwise specified. Members shall not succeed themselves after serving a second full term without an intervening period of one (1) year, and an initial appointment for more than one-half of an unexpired portion of a term shall be considered as appointment for a full term.

Provided every member who is presently serving in his/her/their second or third consecutive term on a board or commission as of 1 October, 1987 shall be entitled to serve out his/her/their present term.
(Ord. No. 88-141, § 1, 10-13-88; Ord. No. 89-120, § 1, 9-5-89; Ord. No. 05-182, § 1, 9-6-05; Ord. No. 20-163, § 3, 12-15-20)

Sec. 2-140. Same—Removal of members for cause.

Appointees will be allowed three (3) unexcused absences per rolling twelve-month period (to coincide with term), after which the appointee will be subject to dismissal. Excused absences are granted by the board or commission based only on (1) written medical justification signed by a duly authorized Doctor of Medicine or (2) due to a family death, emergency, or illness.

The mayor shall inform the member by letter of the basis for removal and the effective date thereof in accordance with the Boards and Commissions Handbook. In addition, the city council may remove a member for any other cause.
(Ord. No. 98-163, § 1, 10-20-98; Ord. No. 99-111, § 1, 7-6-99; Ord. No. 19-039, 4-16-19)

Sec. 2-141. Same—Vacancies.

All members of a board or commission shall hold office until successors are appointed and qualified. Any vacancies resulting during the term of office of any member shall be filled only for the unexpired portion of the term. The time herein fixed for appointment is directory and not mandatory.

Sec. 2-142. Private interest of members.

No member of any board or commission may discuss, advocate or vote on any matter in which he/she/they has a separate, private or monetary interest, either direct or indirect, and no member may discuss before the council or its committees any matter which has been, is, or will be considered by the board or commission on which he/she/they serves, and in which he/she/they has a separate, private or monetary interest, either direct or indirect. Any member who violates this provision may be subject to removal from the board or commission.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 2-143. Officers.

Each board and commission shall elect a chairperson from its members and shall elect a secretary, each of whom shall serve for such time as may be fixed by the board. The secretary may be either a member of the board or commission or an employee of the city. Should the chairperson or secretary be absent at any meeting, the board or commission shall elect a temporary chairperson or secretary to serve at the meeting.
(Ord. No. 20-163, § 3, 12-15-20)

Sec. 2-144. Expenditures and compensation.

A board or commission shall make no expenditure or contract any indebtedness for which the city shall be liable without the approval of the council. Members of a board or commission shall serve without compensation.

Sec. 2-145. Regular meetings.

Each board or commission shall hold meetings regularly at least once each month unless there

is not sufficient business to warrant a meeting; but not more than ninety (90) days shall expire without a regular or special meeting of the board or commission. Regular meetings shall be held on such days and at such hours as may be fixed by rule of board or commission.

Sec. 2-146. Place of meetings; all meetings public.

All regular and special meetings of a board or commission shall either be held in the municipal office building or other place as established by the board or commission. All such meetings shall be open to the public.

Sec. 2-147. Quorum and vote required for recommendation.

For those boards or commissions that serve a quasi-judicial role, a majority of the members who are physically present shall constitute a quorum and the concurrence of at least a majority of those members who are physically present shall be required before any recommendation is made on any matter considered. For all other boards or commissions whose members are appointed by the city council, a majority of the members of the board or commission who are physically or virtually present shall constitute a quorum and the concurrence of at least a majority of those members who are physically or virtually present shall be required before any recommendation is made on any matter considered. If the board or commission refers a matter without a vote and recommendation, the reasons shall be so stated.
(Ord. No. 23-117, § 1, 8-15-23)

Sec. 2-148. Rules of procedure.

Each board or commission shall adopt such rules and regulations as may be necessary for the proper discharge of its duties, which shall be filed with the city clerk.

Cross reference—Copies of rules of boards and commissions to be kept in office of city clerk, § 2-83.

Sec. 2-149. Reports to council.

Each board or commission shall make a report to the council at least annually before August 1, giving information regarding the matters brought before it for consideration and the action taken on those matters.

Secs. 2-150—2-195. Reserved.

DIVISION 2. WAR MEMORIAL COMMISSION

Sec. 2-196. Created.

There is hereby created a commission to be known as the Greensboro War Memorial Commission.
(Code 1961, § 2-234)

Charter reference—General authority to create boards, commissions, etc., § 4.01(b)(2).

Sec. 2-197. Duties.

The duties of the war memorial commission shall be as follows to:

(1) Serve as an advisory group in the operation of the Greensboro War Memorial, and to make recommendations to the council concerning its use, and operation.

(2) Advise the managing director of the Greensboro Coliseum Complex on rules and regulations for the use and operation of the Greensboro War Memorial, including fees for its use, subject to the approval of the council.

(3) Make recommendations as to the initial employment of the managing director of the Greensboro Coliseum Complex, and recommendations concerning policies and procedures as they relate to personnel.

(4) Perform such other duties as may be assigned it from time to time by the council.

(5) Serve as a liaison to the community to promote the activities and events being held at the facility.

(Code 1961, § 2-234; Ord. No. 88-183, § 1, 12-29-88; Ord. No. 03-266, §§ 1, 2, 12-16-03)

Sec. 2-198. Membership.

(a) The war memorial commission shall be composed of eleven (11) regular voting members and three (3) ex officio nonvoting members. The eleven (11) voting members shall be appointed by the city council for terms to begin on August 15, when terms normally expire. One (1) of the seats created in 2012 will be reserved for a resident of the electoral district wherein the Coliseum is located, and the appointment shall be in effect as if the member had been initially appointed as of August 15, 2012. The second seat created in 2012 shall be reserved for the Chair of the Tournament Host of Greensboro Committee ("THOG Committee"), and the term for that seat shall coincide with the chair's service as Chair of the THOG Committee. Appointments for all other seats shall continue to be made in a manner to provide for overlapping and staggered terms of office.

(b) The two (2) honorary ex officio nonvoting members of the commission shall serve in an advisory capacity and may present their expertise, advice and counseling on any matter before the commission.
(Code 1961, §§ 2-235, 2-247; Ord. No. 94-87, § 1, 9-1-94; Ord. No. 12-108, § 1, 9-18-12)

Secs. 2-199, 2-200. Reserved.

ARTICLE VI. CITY DEPARTMENTS

Sec. 2-201. Planning and community development.

That all references in the Greensboro Code of Ordinances to planning and community development shall include planning department and neighborhood development department, and all references to the planning and community development department shall include the planning department and the neighborhood development department.
(Ord. No. 13-115, § 2, 8-20-13)

Sec. 2-202. Prohibition against discrimination in city services.

It is the policy of the city that the city will not discriminate on the basis of sex, race, gender, color, ethnicity, national origin, age, familial status, marital status, military status, political affiliation, religion, physical or mental disability, genetic information, sexual orientation, gender expression, or gender identity in authorizing or making available the use of city facilities or in the delivery of city programs, services or activities.
(Ord. No. 15-011, § 1, 1-6-15)

ARTICLE VII. ENFORCEMENT

Sec. 2-203. Enforcement.

Violations of this chapter shall not be punishable under G.S. § 14-4.
(Ord. No. 15-075, § 3(2-202), 6-16-15)

Secs. 2-204—2-225. Reserved.

ARTICLE VIII. CODE OF ETHICS, GIFT POLICY, AND DISCLOSURE REQUIREMENTS

Sec. 2-226. General principles underlying the code of ethics.

The stability and proper operation of democratic representative government depend upon public confidence in the integrity of the government and upon responsible exercise of the trust conferred by the people upon their elected officials.

Governmental decisions and policy must be made and implemented through proper channels and processes of the governmental structure.

The mayor and council members must be able to act in a manner that maintains their integrity and independence, yet is responsive to the interests and needs of those they represent.

The mayor and council members must always remain aware that at various times they play different roles:

- As advocates, who strive to advance the legitimate needs of citizens.

- As legislators, who balance the public interest and private rights in considering and enacting ordinances, orders, and resolutions.
- As decision-makers, who arrive at fair and impartial determinations in quasi-judicial hearings.

The mayor and council members must know how to distinguish among these roles, to determine when each role is appropriate, and to act accordingly.

The mayor and council members must be aware of their obligation to conform their behavior to standards of ethical conduct that warrant the trust of their constituents. Each official must find within his or her own conscience the touchstone by which to determine what conduct is appropriate.
(Res. of 02-03-2026(1), 2-3-26)

Sec. 2-227. Code of ethics.

The purpose of this code of ethics is to establish guidelines for ethical standards of conduct for the mayor and council members, in compliance with G.S. § 160A-86, and to help determine what conduct is appropriate in particular cases. It should not be considered a substitute for the requirements of applicable law or for an official's best judgment in consultation as appropriate with the city attorney.

(1) The mayor and council members should obey all laws applicable to their official actions. They should be guided by the spirit as well as the letter of the law in whatever they do.

If the mayor or a council member has questions about whether an action or potential action is legal and ethical, the official should seek the advice of the city attorney. They should also endeavor to keep up to date, through the city attorney and other sources, about new and ongoing legal or ethical issues they may face in their official positions. This educational function is in addition to the day-to-day legal advice the mayor and council members may receive concerning specific situations that arise.

For example, the mayor and council members should be familiar with and obey the applicable requirements of the North Carolina General Statutes regarding voting, recusal, conflicts of interest, and gifts or favors from contractors, subcontractors, or suppliers (such as, without limitation, G.S. §§ 14-234, 14-234.1, 14-234.2, 14-234.3, 133-32, 160A-75, and 160D-109), and prohibiting the use of city resources for partisan or political purposes (such as, without limitation, G.S. §§ 160A-169 and 160A-499.3). The mayor and council members should also be familiar with and obey the applicable requirements of the city's Charter and this Code.

(2) The mayor and council members should act with integrity and independence from improper influence as they exercise their official duties. Characteristics and behaviors consistent with this standard include the following:

a. Adhering firmly to a code of sound values.

b. Exhibiting trustworthiness.

c. Using their best independent judgment to pursue the common good as they see it, presenting their opinions to all in a reasonable, forthright, consistent manner.

d. Remaining incorruptible, self-governing, and unaffected by improper influence while at the same time being able to consider the opinions and ideas of others.

e. Treating other council members, city staff, and the public with respect, and honoring the opinions of others even when the council members disagree with those opinions.

f. Showing respect for their offices and not behaving in ways that reflect badly on those offices or the city.

g. Recognizing that they are part of a larger group and acting accordingly.

h. Recognizing that individual council members are not generally allowed to act on behalf of the council but may only do so if the council specifically authorizes it, and that the council must take official action as a body.

(3) The mayor and council members should avoid impropriety in the exercise of their official duties. Their official actions should be above reproach. They should not use their official position for personal gain. To the extent appropriate, they should put the city's interests ahead of their own. Although opinions may vary about what behavior is inappropriate, the mayor and council members will consider impropriety in terms of whether a reasonable person who is aware of all of the relevant facts and circumstances surrounding the person's action would conclude that the action was inappropriate. When appropriate to respond to public misunderstanding, the official should consider publicly disclosing the facts of the situation and the steps taken to resolve it (such as consulting with the city attorney).

(4) The mayor and council members should faithfully perform the duties of their offices. They should act as especially responsible citizens whom others can trust and respect. They should set a good example for others in the community, keeping in mind that trust and respect must continually be earned. They should faithfully attend and prepare for meetings. They should demand full accountability from those over whom the council has authority. They should be willing to bear their fair share of council's workload.

(5) The mayor and council members should conduct the affairs of the council in an open and public manner, in compliance with all applicable laws governing open meetings and public records. Doing so is an important way to be worthy of the public's trust. They should remember when they meet that they are conducting the public's business. They should also remember that local government records belong to the public and not to them nor to city employees.

In order to ensure strict compliance with the laws concerning openness, the mayor and council members should make clear that an environment of transparency and candor is to be maintained at all times in the governmental unit. They should prohibit unjustified delay in fulfilling public records requests. They should take deliberate steps to make certain that any closed sessions held by the council are lawfully conducted and that such sessions do not stray from the purposes for which they are called.

At the same time, the mayor and council members should recognize that, in the course of their official duties, they have access to confidential information and non-public records that should be handled appropriately under applicable law. In many circumstances, applicable law may prohibit the disclosure of such information. This could include, without limitation, personnel information about city employees, information about law enforcement activities, information about economic development projects, information about pending or potential litigation, information subject to the attorney-client privilege, and information obtained pursuant to the terms of a court order (such as an order authorizing the review of body-worn camera recordings). The mayor and council members should not misuse confidential information to obtain any personal benefit. They should not disclose confidential information including, without limitation, the premature disclosure of what transpired in a closed session. They should abide by court orders restricting access to or disclosure of information, subject to their right to lawfully challenge such orders through appeal or other legal procedures. Unless approved by council, the mayor and individual council members are not authorized to waive the attorney-client privilege, and they should not take any action which could waive the attorney-client privilege. (Res. of 02-03-2026(1), 2-3-26)

Sec. 2-228. Gift policy.

(a) *Definitions.*

Extended family means spouse, lineal descendant, lineal ascendant, sibling, spouse's lineal descendant, spouse's lineal ascendant, spouse's sibling, and the spouse of any of these individuals.

Gift means anything of monetary value given or received without valuable consideration. The following shall not be considered gifts:

(1) Anything for which fair market value, or face value if shown, is paid by the official.

(2) Commercially available loans made on terms not more favorable than generally available to the general public in the normal course of business.

(3) Contractual arrangements or commercial relationships or arrangements made in the normal course of non-city business.

(4) Academic or athletic scholarships based on the same criteria as applied to the public.

(5) Anything of value properly reported as required under G.S. ch. 163, art. 22A (North Carolina Campaign Contributions Law).

(6) Expressions of condolence related to a death of an individual, sent within a reasonable time of the death, if the expression is one (1) of the following:

a. A sympathy card, letter, or note.

b. Flowers.

c. Food or beverages for immediate consumption.

d. Donations to a religious organization, charity, the state or a political subdivision of the state, not to exceed a total of two hundred dollars ($200.00) per death per donor.

Official means the mayor or a member of the city council.

(b) *Gift ban.* No official shall knowingly accept a gift, unless the gift falls within one (1) of the exceptions set forth below. A prohibited gift shall be promptly:

(1) Declined;

(2) Returned;

(3) Paid for at fair market value;

(4) Donated to a charity, provided that written notice is given by the official to the city clerk within two (2) weeks of the receipt of the prohibited gift, and the official making the donation shall not claim a tax credit or other financial benefit from having made the donation; or

(5) Donated to the city, provided that written notice is given to the city clerk within two (2) weeks of the receipt of the prohibited gift, and that the gift is accepted on behalf of the city and acknowledged in writing by the city manager.

(c) *Exceptions.* The prohibition on gifts shall not apply to any of the following:

(1) Gifts from the official's extended family or a member of the same household, including without limitation food and beverages for immediate consumption.

(2) Gifts given or received as part of a business, civic, religious, fraternal, personal, or commercial relationship provided that the gift is made under such circumstances that a reasonable person would conclude that the gift was not given to influence or attempt to influence official action, and that the gift does not influence official action.

(3) Anything generally made available or distributed to the general public without charge.

(4) A memento such as a commemorative shovel, plaque, figurine, trinket, or novelty item related to a civic occasion or event, of de minimis value.

(5) Informational materials relevant to the duties of the official.

(6) Food and beverages for immediate consumption in connection with any of the following, so long as the total value of the food and beverages at any event is reasonably valued at less than seventy-five dollars ($75.00):

a. A properly-noticed meeting of the city council.

b. Business, civic, religious, fraternal, commercial, neighborhood, or community meetings, whether the official is attending in their official or private capacity.

(7) Food and beverages for immediate consumption at a gathering of ten (10) or more individuals that is open to the general public, provided that the official pays the same amount, if any, that the general public is charged to attend.

(8) Tickets or admittance to, food and beverages for immediate consumption at, and related transportation for, an event where the official is clearly representing the city and where the city has a legitimate purpose in being represented at the event. By way of illustration but not limitation, this would include events sponsored by the Greensboro Area Convention and Visitors Bureau, the Greensboro Chamber of Commerce, Greensboro Center City Partners, the Piedmont Triad Partnership, the United Way, colleges, universities, and other educational institutions, and similar organizations.

(9) Food and beverages for immediate consumption and related transportation during a conference, meeting, or similar event, provided that it is available to all attendees of the same class as the recipient.

(Res. of 02-03-2026(1), 2-3-26)

Sec. 2-229. Disclosure requirements.

The mayor and council members shall file with the city clerk a financial and personal interest disclosure using the form provided by the city clerk. The form shall be filed by February 1 of each year, and within forty-five (45) days of taking office for any person who takes office between January 1 and November 30. If, after submitting the form, the mayor or a council member, or a spouse, acquires a new ownership interest in a business, or new work for a business or nonprofit organization, or acquires real property, they must file an amendment within forty-five (45) days. The statements required by this section are public records available for inspection and copying by any person during normal business hours.

(Res. of 02-03-2026(1), 2-3-26)

Sec. 2-230. Complaints, investigations and sanctions.

(a) *Complaint.*

(1) Any individual may submit a complaint alleging that the mayor or a council member violated the code of ethics, gift policy, and disclosure requirements for the mayor and city council of the City of Greensboro, North Carolina. A complaint shall be submitted to the city clerk on a form provided by the city clerk. A complaint shall:

a. Identify the complainant by name, home address, telephone number, and email address;

b. State with specificity the facts that form the basis for the alleged violation; and

c. Cite the provision that has allegedly been violated.

(2) Upon receiving a complaint, the city clerk shall forward the complaint to the city attorney for initial review.

(3) The city attorney shall review the complaint to determine whether it provides the information required in subsection (1)a. If the city attorney determines that the complaint fails to provide the information required by subsection (1)a., the complainant shall

be so informed and afforded an opportunity to provide the required information.

(b) *Preliminary review and investigation.*

(1) If the city attorney determines that a complaint provides the required information, the city attorney shall review the complaint to determine whether it:

a. Is frivolous; or

b. Does not state a claim of a violation even if the allegations are true.

In either case, the city attorney shall communicate that conclusion in writing to the complainant and the mayor or, if the mayor is the subject of the complaint, to the mayor pro tempore. In the alternative, the city attorney may refer the complaint to a qualified outside investigator selected at the city attorney's discretion, to make the threshold determination, communicate that conclusion to the city attorney, and take such additional investigative steps as may be warranted under this subsection.

(2) If the city attorney determines that a complaint is not frivolous and may state a claim if the allegations are true, the city attorney shall refer the complaint to a qualified outside investigator selected at the city attorney's discretion. The city attorney may defer the referral of a complaint to a qualified outside investigator when a law enforcement or regulatory agency is investigating the subject matter of a complaint.

(3) The qualified outside investigator shall undertake such investigative activities as they deem reasonably necessary to determine the truthfulness of the factual allegations in the complaint. It is expected that the city and city employees will reasonably cooperate with the qualified outside investigator's requests for information.

(4) At the conclusion of the investigation, the qualified outside investigator shall prepare a report for the city attorney with written findings as to the truthfulness of the factual allegations in the complaint and conclusions as to whether a violation has occurred.

(5) Upon receipt of the report, the city attorney will provide, at the city attorney's discretion,

a. Either the report or a written summary of the report to the mayor and the city council; and

b. Either the report or a written summary of the report to the complainant.

(6) For purposes of this policy, a "qualified outside investigator" is a person or entity with the professional experience and technical expertise reasonably necessary to investigate the subject matter of the complaint, and that does not have an actual or apparent conflict of interest with respect to the complainant, the subject of the complaint, and the subject matter of the complaint. The qualified outside investigator may be compensated for their work and reimbursed for expenses reasonably incurred in the course of the investigation.

(c) *Sanctions.* Upon receipt of written findings and conclusions, the city council may sanction the official who was the subject of the investigation. Potential sanctions include the adoption of a resolution of censure and any other lawful sanction within the council's authority. (Res. of 02-03-2026(1), 2-3-26)

Sec. 2-231. Prohibition on use of city resources for partisan or political purposes.

(a) *General prohibition.* No elected city official shall use or caused to be used any city resources, including but not limited to:

(1) City funds, which include:

a. State and federal funds in possession of or designated for city use; and

b. Payment/debit/credit cards for city accounts;

(2) Supplies;

(3) Media and social media resources;

(4) Equipment including, but not limited to, computers, audio/visual equipment, and telephones;

(5) Real property and facilities; and

(6) City personnel while on duty;

for partisan or political purposes, including but not limited to endorsing or opposing a referendum, election, or a particular candidate for elective office. Such prohibition extends to the use, whether direct or indirect, of GTN and other city-published media resources, including mass (unsolicited) mailings (electronic and physical newsletters, meeting notices, questionnaires, surveys, news releases, facsimiles, posters, flyers, handouts, leaflets and the like) of substantially identical content whether in single or bulk, media buys, advertisements, and automatic telephone "robo" calls, and social media channels.

(b) *Blackout period.* To avoid or minimize the actual or apparent use of city resources for partisan or political purposes, the city hereby imposes a "blackout period." The blackout period shall begin on either:

(1) The first day of the third month before the primary in which the election for mayor and city council is to occur; or

(2) For any particular candidate, when that person publicly announces their candidacy, if earlier.

The blackout period shall end on general election day upon closure of the polls. A candidate is presumed to have "publicly announced their candidacy" by either making such a public announcement, or having their candidacy publicized in local news media or on social media. The presumption can be rebutted if the person demonstrates that the publication of their candidacy was not authorized and a retraction has been requested.

During the blackout period, even if connected with the performance of official duties, images or video of a candidate for mayor or city council on city media, social media, or other city resources should be kept to a minimum. A candidate shall not request or take other action that has the effect of causing the unusual use of the candidate's image or video on city media, social media, or other city resources. "Council conversations" episodes will not be produced or aired on GTN during the blackout period. If it appears that the use of an image or video of a candidate is inconsistent with requirements of this paragraph, staff should seek guidance from the city attorney and deny the request until the matter is considered further.
(Res. of 02-03-2026(1), 2-3-26)

Secs. 2-232—2-250. Reserved.

ARTICLE IX. POLICY ON PROCEDURES AND RULES OF DECORUM

Sec. 2-251. General information.

The North Carolina Building and Fire Safety Code has determined the Katie Dorsett Council Chamber capacity is one hundred seventy (170). All weapons are prohibited. No food, beverages or smoking allowed. Service animals welcomed, all other pets prohibited. (Ordinances 10-6, 18-25, and G.S. 168-4.2)
(Ord. of 02-03-2026(1), 2-3-26)

Sec. 2-252. Public comment schedule.

The City of Greensboro city council encourages resident input. Individuals may speak during the public comment period on the first Tuesday of each month at 5:30 p.m. during the city council meeting. For most up-to-date meeting updates, including time or location changes or cancellations, please visit the city council meeting schedule.
(Ord. of 02-03-2026(1), 2-3-26)

Sec. 2-253. Comment on agenda items.

Individuals may sign up to speak to specific consent or business agenda items. City council meeting agendas are historically posted online,

https://www.greensboro-nc.gov/councilmeetings on Thursday before a Tuesday meeting. Agenda item reference numbers should be indicated as the alphabetical assignment and the number associated with said alphabetic letter. EX: G.1., H.1., I.1. etc.
(Ord. of 02-03-2026(1), 2-3-26)

Sec. 2-254. Deadlines and how to participate.

(a) Speakers shall provide a valid name, address, phone number and email address when registering to speak at a council meeting. The subject will be noted and if it requires action or a request, the city clerk and/or the city manager will note as such and provide steps for any required response or after action.

(b) *Written comment only.* Residents wishing to provide written comments only for public comment period or regarding agenda items, may complete the public speaker form or interact with council council by 5:00 p.m. the day before a council meeting. Comments are provided to city council for consideration prior to the meeting.

(c) *Speak in person.* If residents wish to speak in person during the public comment period, you may sign up in advance by 5:00 p.m. the day before a council meeting using the online form here public speaker form. Residents may also register to speak the day of the meeting when the council chamber opens with the courier and must be signed up by 5:30 p.m.

(d) *Speak via Zoom.* Residents that wish to speak via Zoom, must sign up in advance by 5:00 p.m. the day before a council meeting using the public speaker form. Speakers will be allotted a Zoom link that is unique to that speaker's email address. Zoom links are not to be shared. Any resident that attempts to sign into the Zoom meeting, that has not been properly registered, will not be allowed into the Zoom room. Zoom links will not be provided for residents that wish to observe the meeting. View options are provided in section 2-258, How to watch Greensboro City Council meetings.
(Ord. of 02-03-2026(1), 2-3-26)

Sec. 2-255. Procedures for speaking.

North Carolina law requires that all municipal governing bodies provide at least one (1) public comment period a month during a regular meeting. See G.S. § 160A-81.1. The city council will entertain a public comment period at the first Tuesday of the month meeting during the "public comment period". This portion of the agenda is not intended for public hearings. Sign up for public hearings.

Residents wishing to provide public comment shall adhere to the following procedure:

(1) Complete the public speaker form by 5:00 p.m. the day before the council meeting or register with the courier in the council chamber by 5:30 p.m. the day of the meeting (doors open at 5:00 p.m.).

(2) To be added to the list of speakers, an individual must provide a valid name, physical address, phone number, and email address. Speakers will also be required to acknowledge the rules of decorum as set out by the city.

(3) Speakers may, but are not required to, provide additional information about the topic of discussion. All materials for distribution to city council must be provided to the city clerk via email by 12:00 noon on the day of the meeting (Tory.Frink@greensboro-nc.gov) or to the courier upon arrival (prior to 5:30 p.m.) to the council chamber.

(4) All electronic materials (videos, tapes, CDs) must be emailed to the city clerk by 12:00 noon on the day before the meeting. This requirement is associated with technology security needs, to prevent compromise of the city computer network, and to maintain decorum.

a. *Disclaimer on videos/electronic materials and written handouts.* Speaker may have the city IT team play videos that have already been sent into the city clerk by 12:00 noon the day before the council meeting for IT security protocol check. Any videos, media or supplemental

documents utilized by speakers during the meetings are not reviewed or verified by the city for accuracy, completeness, or authenticity. The city does not endorse or adopt the content and all opinions and views expressed are solely those of the speaker.

(5) The city clerk will provide a list of people that have pre-registered to the council on meeting days. The order in which speakers are called to speak is at the discretion of the mayor or presiding officer.

(6) Speakers will be allotted three (3) minutes each and may not relinquish any remaining time to another speaker. Speakers are limited to three (3) minutes only to speak, play a video, and/or refer to supplemental materials in whatever order the speaker chooses but they will only be allowed three (3) in totality to present. If there are more than twenty-five (25) speakers signed up to speak the time will be reduced to two (2) minutes each.

(Ord. of 02-03-2026(1), 2-3-26)

Sec. 2-256. Rules of decorum.

Public input and participation are of the utmost importance to Greensboro City Council. The council encourages individuals to use the public comment period to bring attention to community concerns and events.

It is the goal of the city council that the Katie Dorsett Council Chamber is a welcoming space and that residents feel empowered to bring issues of concern before their elected officials.

G.S. § 160A-81.11 allows the city council to adopt reasonable rules which govern the conduct of the public comment period, including rules to maintain order and decorum. The rules of decorum, set forth below, are not intended to limit the content of the speaker's message but are instead to ensure that this part of the agenda is conducted in a civil and orderly manner.

(1) The City of Greensboro is committed to promoting an environment that is free of discrimination, bias and bullying. Therefore, speakers shall refrain from personal attacks and/or threats directed toward city council, city staff or members of the public. To maintain a safe space for all speakers, members of the audience or speakers from the podium who intentionally disrupt the meeting or ridicule other speakers will be given a warning, and if unheeded, they will be removed from the meeting. That person will be suspended from in person participation for a minimum of three (3) months. To preserve their right to free speech they can attend virtually by zoom, by phone or may submit comments via email.

(2) Speakers shall be civil and courteous in their language and presentation. Insults, profanity, use of vulgar language or gestures or other inappropriate behaviors that are directed at the council, audience or city staff are not allowed. Speakers that disrupt the meeting in this manner will be given a warning, and if unheeded, will be removed from the meeting as stated in subsection (1).

(3) Speakers shall address council only during the public comment period. Speakers shall not address, direct comments at or respond to members of the audience. Speakers shall not address or direct comments to the staff of the city. Violation of this policy will result in the immediate loss of the rest of the speaker's allotted time.

(4) All electronic devices should be turned off or turned to silent mode. If you must make or receive a phone call, please do so from outside the chamber.

(5) Speakers are allowed to address council at the discretion of the mayor or presiding officer, on consent or business agenda items at both the first and third Tuesday meetings. During the first meeting of the month, time is dedicated for speakers to address council on non-agenda items during the public comment period.

(6) Speakers are allotted three (3) minutes for comments. The mayor or presiding officer may, in their discretion, increase or decrease this time allocation.

(7) Speakers may not share or relinquish any remaining time they have not used to another speaker.

(8) Speakers are only allowed to speak one (1) time during the public comment period.

(9) Public comment is an opportunity for council to hear from residents and not necessarily for a dialogue between speaker and council. It is the intention of council to hear from residents during this time. The subject will be noted and if it requires action or a request, the city clerk and/or the city manager will note as such and provide steps for any required response or after action.

(10) A resident may speak only if they have signed up to speak in accordance with the city's procedures outlined above. Speaker substitutions at the meeting are not allowed.

(11) All speaker written handouts that have not already been provided should be provided to the city clerk or courier prior to 5:30 p.m. to be distributed to council.

(12) Residents are not allowed to approach the council dias, unless invited to do so by city council.

(13) Zoom participants shall mute their microphones until they are called upon to speak. All meeting attendees, including Zoom participants, are expected to respect speakers and council deliberations.

(14) The mayor, or presiding officer, has the authority to interpret and enforce the rules of decorum. Failure to obey these rules may result in the forfeiture of the remaining speaking time. Speakers who engage in egregious or repeated violations will be removed from the meeting as stated in subsection (1).

(Ord. of 02-03-2026(1), 2-3-26)

Sec. 2-257. Policy on ban limits from city council meetings and the building during meeting hours.

All speakers are expected to adhere to established rules of decorum. Any inappropriate or disruptive conduct will result in immediate removal.

(1) First violation. Three-month suspension from in-person participation/attendance in the building during city council meeting hours at the mayor's or presiding officers' discretion.

(2) Second violation. Six-month suspension from in-person participation/attendance in the building during city council hours at the mayor's or presiding officers' discretion.

(3) Third violation. Twelve-month suspension from in-person participation/attendance in the building during city council hours at the mayor's or presiding officers' discretion.

(4) Any issue involving a physical altercation with the speaker, personal attacks or vulgar language toward council or anyone in the audience to include city staff, at the mayor's or presiding officer's discretion may result in an immediate 12-month suspension from the building during city council hours.

(5) Any ban that involves the action any violation of state criminal laws may subject the individual to criminal charges.

(6) Those suspended from in-person participation will retain the ability to attend virtually via Zoom, ensuring their right to free speech. If personal attacks or vulgar language occurs via Zoom, at the mayor or presiding officer's discretion the Zoom will be muted.

(Ord. of 02-03-2026(1), 2-3-26)

Sec. 2-258. How to watch Greensboro City Council meetings.

Greensboro City Council meetings are available:

- City's website: https://www.greensboro-nc.gov/council-meetings

- City's live stream: https://video.isilive.ca/greensboro/live.html
- City's YouTube live stream: https://www.youtube.com/user/CityofGreensboroNC
- Greensboro Television Network (GTN) live on Spectrum channel 13 with a digital cable box, Lumos channel 31, AT&T U-verse channel 99.
- Roku streaming: GTN is available on the Roku streaming platform by going to "add channels" and searching for Greensboro Television Network.

(Ord. of 02-03-2026(1), 2-3-26)

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Chapter 3

RESERVED*

*Editor's note—Ord. No. 91-145, adopted Nov. 27, 1991, repealed Chapter 3 in its entirety, which pertained to advertising and signs. See the Code Comparative Table.

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Chapter 4

ALCOHOLIC BEVERAGES*

Chapter 4	ALCOHOLIC BEVERAGES
Sec. 4-1.	Licenses generally.
Sec. 4-2.	Reserved.
Sec. 4-3.	Licensee liable for acts of agents and employees.
Sec. 4-4.	Gambling.
Sec. 4-5.	Restrictions on employees.
Sec. 4-6.	Toilet facilities to be provided.
Sec. 4-7.	Possession and consumption of malt beverages and unfortified wine.
Sec. 4-8.	Allow the sale of alcoholic beverages beginning at 10:00 a.m. on Sunday.
Sec. 4-9.	Extension of licensed premises.

*__Charter reference—__Board of alcohol control, § 5.21 et seq.

__Cross references—__Licenses, taxation and miscellaneous business regulations, Ch. 13; alcoholic beverage license—retail, § 13-66 et seq.

__State law reference—__Alcoholic beverages generally, G.S. Ch. 18B.

Sec. 4-1. Licenses generally.

(a) Applications for license to sell the malt beverages or unfortified wine shall be made to the tax collector on blank forms prepared and furnished by the city and shall be filed with the chief of police. the application shall contain such information as is deemed necessary to enable the city council to act intelligently upon such application. The application shall be accompanied by the license tax required by the state law and by the bond required by section 4-2.

(b) Upon investigation and recommendation from the chief of police, if it shall be made to appear to the tax collector, and the tax collector shall determine that any licensee or applicant for a license to sell malt beverages or unfortified wine, has violated any provisions of this chapter or the laws of the state regulating the use and sale of alcoholic beverages, wine or malt beverages, by act or conduct of his/her/their own or any act or conduct of his/her/their agents or employees, he/she/they shall:

(1) Refuse to issue a license to such applicant and so notify him/her/them in writing; or

(2) In the case of a license, he/she/they shall notify such licensee in writing that his/her/their license is revoked with a statement of the facts which provide a basis therefor.

Thereafter, the applicant shall have seven (7) days in which to file an appeal with the tax collector and request a hearing before the city council. Upon appeal, the city council shall hold a hearing on the appeal and make a final determination thereof with respect to the application for a license or the revocation thereof. In the case of a licensee, the filing of a timely appeal shall stay the revocation pending hearing and final determination by the council.
(Code 1961, §§ 4-1, 4-2, 4-10; Ord. No. 20-163, § 3, 12-15-20)

Cross reference—Alcoholic beverage privilege license, §§ 13-66, 13-67.

State law reference—City beer and wine retail licenses, G.S. § 105-113.77.

Sec. 4-2. Reserved.

Editor's note—Ord. No. 98-21, § 1, adopted Feb. 17, 1998, repealed former § 4-2, which pertained to bond and derived from Code 1961, §§ 4-3, 4-4.

Sec. 4-3. Licensee liable for acts of agents and employees.

The acts and conduct of the agents and employees of a person licensed to sell malt beverages or unfortified wine in the conduct of the licensed business shall be deemed the acts and conducts of such person.
(Code 1961, § 4-6)

Sec. 4-4. Gambling.

No holder of a license to sell malt beverages or unfortified wine or employee of any such person shall suffer or permit any person to bet upon any game placed on the premises, suffer or permit any dice, cards, raffle, or other game of chance for money, or any form of gambling, or the sale of lottery tickets in the place designated by the license or in any booth, yard, garden, or other place appertaining to the place or connected therewith.
(Code 1961, § 4-5(a))

Sec. 4-5. Restrictions on employees.

No holder of a license to sell malt beverages or unfortified wine or employee of such a person shall employ in carrying on the licensed business any person who has been convicted of a crime involving moral turpitude.
(Code 1961, § 4-5(b))

Sec. 4-6. Toilet facilities to be provided.

(a) Every person holding a license or permit to sell wine or beer or alcoholic beverages for consumption on the premises shall provide separate toilet facilities for the use of male and female patrons, which shall be conveniently located on the premises of such licensee and readily accessible at all business hours. Such toilets shall conform to the state building code and shall be kept in a sanitary condition at all times.

(b) The provisions of this section, relative to toilets for female patrons, shall not apply to any licensee who does not have tables or booths in his/her/their place of business and who has one (1) or the other of the following signs on each door leading into such place of business or within

three (3) feet of such door or doors, "Ladies not invited" or "No tables or accommodations provided for ladies." The letters of such sign shall be at least two (2) inches in height.
(Code 1961, § 4-8; Ord. No. 20-163, § 3, 12-15-20)

Sec. 4-7. Possession and consumption of malt beverages and unfortified wine.

(a) Except as provided by this chapter, it shall be unlawful to possess an open container of, or to consume a malt beverage or unfortified wine, on any public street, sidewalk or any property owned, occupied, or controlled by the city.

Exception: Subsection (a) does not apply to an occupant of a motor vehicle while on a public street, when served at sidewalk cafes permitted in accordance with chapter 26, or when consumed on pedal cars permitted in accordance with chapter 26, or to persons in compliance with article XI, social district, of chapter 26.

(b) It shall be unlawful to possess or to consume malt beverages and unfortified wine on any street, alley or parking lot which is temporarily closed to regular traffic for a special event unless the city manager, in closing the street, alley, or parking lot, makes other provisions for the possession of malt beverages or unfortified wine.

(c) Subsections (a) and (b) shall not apply within a building or premises on city-owned property where appropriate permits have been obtained as required by law for the consumption of alcoholic beverages for the period of time permitted thereunder.

(d) Definitions. As used herein, "malt beverage" or "unfortified wine" shall have the meaning as defined by G.S. Ch. 18B. "Open container" shall mean one whose seal has been broken or a container other than the manufacturer's unopened original container.

(e) Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).
(Code 1961, § 4-13; Ord. No. 95-117, § 1, 9-14-95; Ord. No. 18-099, § 1, 7-17-18; Res. No. 048-24, § 1, 2-20-24)

Sec. 4-8. Allow the sale of alcoholic beverages beginning at 10:00 a.m. on Sunday.

There shall be allowed the sale of malt beverages, unfortified wine, fortified wine, and mixed beverages beginning at 10:00 a.m. on Sunday pursuant to the licensed premises' permit issued under G.S. 18B-1001.
(Ord. No. 17-94, § 1, 7-18-17)

Sec. 4-9. Extension of licensed premises.

(a) A person holding a permit issued under G.S. Articles 10 or 11 of Chapter 18B that allows the on-premises consumption of alcoholic beverages (hereinafter a "permittee") may apply to the City of Greensboro for authorization to expand their licensed premises to utilize an area that is not part of the permittee's licensed premises for the outdoor possession and consumption of alcoholic beverages sold by the permittee. Nothing in this section permits the sale of alcoholic beverages outside the permittee's licensed premises.

(1) As used in this section, the term "licensed premises" means and refers to the fixed permanent establishment, including all areas inside or outside the establishment, for which the permittee received an ABC permit from the ABC commission for the sale, possession, and consumption of alcohol.

(2) As used in this section the term "person" means and refers to an individual, firm, partnership, association, corporation, limited liability company, other organization or group, or other combination of individuals acting as a unit.

(b) In order to receive such authorization, the permittee must comply with all of the following:

(1) If the property to which the premises will be extended (hereinafter referred to as "extended premises") is not owned by the permittee, the owner of the property must provide written permission to the permittee, to be provided to the City of

Greensboro, allowing the use of the extended premises for the purpose set forth in this section.

(2) The permittee must provide written notification of the authorization to extended premises, including the diagram required under subsection (4) of this section and, if applicable, a copy of the written permission required under subsection (1) of this section, to the Greensboro District Office of the Alcohol Law Enforcement Division of the North Carolina Department of Public Safety, the North Carolina ABC Commission, and the chief of police or his/her/their designee.

(3) The permittee shall visibly and vertically mark off the extended premises so a reasonable person could distinguish between the extended premises and any sidewalk, walkway, or public right-of-way.

(4) The permittee shall maintain a diagram on the licensed premises detailing the size and location of the extended premises. The diagram required under this subsection shall have the boundaries of the extended premises clearly marked, specify the types of barriers used to mark the boundaries of the extended premises, and specify the number of tables and seats placed in the extended area.

(5) The extended premises shall not be used to increase the occupant load of the licensed premises. For purposes of this section, "occupant load" is as used in Section 1004 of the 2018 North Carolina Building Code.

(6) The extended premises shall comply with all applicable laws governing accessibility.

(7) Except as allowed under G.S. § 18B-904.1 and/or chapter 26, article XI of the Greensboro Code of Ordinances, or to reenter the licensed premises, a person shall not exit an extended premises with an alcoholic beverage purchased from the permittee.

(8) The permittee shall comply with any additional requirements imposed by the North Carolina ABC Commission through the adoption of rules.

(c) Violations of this section will be enforced as set out in G.S. Chapter 18B, as well as any other applicable statutes or ordinances. In addition to those penalties set forth in G.S. Chapter 18B, a second violation by a permittee shall carry a civil penalty of two hundred fifty dollars ($250.00). In addition to those penalties set forth in Chapter 18B, a third violation by a permittee shall carry a civil penalty of five hundred dollars ($500.00) and will result in revocation of the authorization to extend premises.

(d) Nothing herein shall limit the authority set forth in G.S. § 18B-502. The Alcohol Law Enforcement Division of the North Carolina Department of Public Safety shall have authority, along with local law enforcement, to inspect the extended premises to procure evidence of violations of the ABC law.
(Ord. No. 21-184, § 1, 12-21-21, eff. 3-1-22)

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Chapter 5

ANIMALS*

Article I. In General

Sec. 5-1. Bird sanctuaries.
Sec. 5-2. Applicability of county ordinance.
Sec. 5-3. Animals running at large prohibited.
Sec. 5-4. Dangerous or vicious animals restricted.
Sec. 5-5. Nuisance animals.

*__Charter reference—__Authority for joint animal shelters, § 6.01.

__Cross references—__Nuisances, Ch. 17; animal noise, § 18-41.

__State law references—__Municipal authority to regulate domestic animals, G.S. § 160A-186; municipal authority to regulate the possession or harboring of domestic animals, G.S. § 160A-187; animal protection, G.S. § 19A-1 et seq.

ARTICLE I. IN GENERAL*

Sec. 5-1. Bird sanctuaries.

(a) The area embraced within the corporate limits of the city, the land owned or leased by the city embracing and surrounding the Greensboro Country Park, near the Guilford Battleground, and the area along Reedy Fork Creek from below Lake Brandt down to Lake Townsend at Church Street are designated as bird sanctuaries.

(b) Within a bird sanctuary it shall be unlawful:

(1) To trap, hunt, shoot, or otherwise kill any wild bird; provided that, notwithstanding the provisions of Chapter 18, Article II of this Code, it shall be lawful to trap, or shoot, starlings, English sparrows, pigeons, or similar birds or fowls when such birds or fowls are found to be congregating in such numbers in a particular locality, or building, that they constitute a nuisance or a menace to health or property. Prior to managing such birds or fowl the owner of the property shall obtain all required governmental permits. If such birds or fowl are to be shot it shall be done only by employees of an agency of the federal or state government with pellet rifles, or .22 caliber rifles, or pistols. Prior to the use of such pistols, or rifles, the owner of the building or property where such use is to occur shall notify the adjacent property owners, and occupants, and the Greensboro Police Department Communications Center of the intended use, including the location and the approximate time of day for such use. Such use shall take place any day of the week but Sunday between the hours of 6:00 a.m. and noon. Also, the provisions of subsection (b)(2) hereof shall not apply to prevent such management.

(2) To interfere with, molest, or in any manner harm or damage any bird's nest or bird's eggs within a bird's nest.

(c) The bird clubs of the city may erect such artistic signs giving notice of the regulations provided in this section at such places and of such design as may be approved by the planning board.

(d) Reserved.

(Code 1961, §§ 5-10—5-12; Ord. No. 91-98, § 1, 8-5-91; Ord. No. 01-37, § 1, 3-20-01)

Editor's note—Subsection (d) to § 5-1 has been deleted pursuant to § 2 of Ord. No. 91-98, adopted Aug. 5, 1992, which provided for the automatic repeal of such subsection on Aug. 5, 1993. Prior to repeal, § 5-1(d) excepted certain areas embracing Lake Brandt and Lake Townsend from the areas designated as bird sanctuaries by subsection (a).

State law reference—Bird sanctuaries, G.S. § 160A-188.

Sec. 5-2. Applicability of county ordinance.

Pursuant to the interlocal agreement between Guilford County and the City of Greensboro for the provision of animal control services, the provisions of the most current Guilford County animals ordinance (chapter 5 of the Guilford County Code of Ordinances, hereinafter the "county ordinance") are adopted and incorporated herein by reference and shall be enforced within the corporate limits of the City of Greensboro.

Without limiting the foregoing, select provisions of the county ordinance may be recited in the following sections.

(Ord. of 05-19-2026(3), § 1(Exh. A), 5-19-26)

Sec. 5-3. Animals running at large prohibited.

(a) It shall be unlawful for any person owning or controlling any animal to allow the same to create a nuisance or public danger by running at large. It shall be the duty of animal control and/or law enforcement officers to take up and deliver any domesticated animal (e.g., dog, cat), including fowl and other domestic animals, as defined in the county ordinance, found running at large to the county animal shelter. Each person owning or controlling an animal, including fowl, shall be responsible for taking whatever

*__Editor's note—__Ord. No. 95-18, adopted Feb. 20, 1995, repealed Ch. 5, §§ 5-2, 5-3, 5-21—5-25, 5-41 and 5-42. Prior to repeal, such sections pertained to animals as derived from the Code of 1961, §§ 5-1, 5-3—5-5, 5-20—5-23; Ord. No. 90-91, adopted July 12, 1990; Ord. No. 91-58, adopted May 6, 1991; and Ord. No. 93-7, adopted Feb. 1, 1993.

measures are reasonably necessary for keeping the animal on the owner's premises or under the owner's control when off his premises.

(1) *Restraint of animals.* It shall be unlawful for any person owning or having possession, charge, custody or control of any animal, excluding cats, to keep such animal on or off his premises unless such animal is under sufficient physical restraint such as a leash, bridle, cage or similar device which restrains and controls the animal (subject to the provisions set out in section 5-14 of the county ordinance), within a vehicle or adequately contained by a fence on the premises or other secure enclosure. If the owner possesses and maintains an effective and working invisible fence system to restrain his/her animals, a visible and permanent sign must be on the premises that states an invisible fence system is in use.

(Ord. of 05-19-2026(3), § 1(Exh. A), 5-19-26)

Sec. 5-4. Dangerous or vicious animals restricted.

(a) *General provisions.* It shall be unlawful for any person to own or in any way maintain or harbor any animal which is dangerous or vicious, except as provided in this chapter.

(b) *Enforcement.* If an animal control officer or law enforcement has determined that an animal is dangerous, then the animal control officer or law enforcement officer shall notify the owner immediately in writing. The owner shall turn the animal over to the county animal shelter or to an animal control approved veterinary clinic within twenty-four (24) hours of such notification. After six (6) working days, the county animal shelter or animal control officer shall have the duty and authority to impose one (1) of the following remedies:

(1) Require forfeiture of ownership of the animal(s) to Guilford County; or

(2) Enforce compliance with subsection (e) of this section.

Any animal declared to be a dangerous or vicious animal, by the animal control officer or law enforcement officer, shall not be disposed of for research or experimental purposes. Failure to comply with this section or any parameters herein may result in accessed civil penalties and/or forfeiture of animal(s).

(c) *Appeal.* Any person who owns an animal that has been declared dangerous or vicious by an animal control officer or law enforcement officer shall have the right to appeal this decision to an appellate board in accordance with G.S. § 67-4.1 et seq. The owner of an animal declared dangerous or vicious shall have the right to request a hearing contesting that determination by submitting a written request to the office of the manager or his/her designee within five (5) working days of the animal control officer's or law enforcement officer's determination that the animal is dangerous or vicious. A deposit may be required by the owner equal to the estimated costs, including veterinary care for ten (10) days boarding. Failure to pay said deposit when required shall be deemed a waiver of all rights regarding the animal.

(d) *Hearing procedures.* The county manager or his/her designee, serving as the appeal's hearing officer shall chair an appellate board to conduct a hearing to determine that the animal control officer's or law enforcement officer's determination that the animal is dangerous or vicious should be upheld. The board shall:

(1) Make a determination as to whether or not the animal is dangerous or vicious, or otherwise possess a sufficient risk to the health or personal property of others;

(2) Determine the appropriate means of compliance in accordance with subsection (b) above; and,

(3) Issue such other order of direction as is necessary to enforce compliance with this section.

If the animal is determined, based on the discretion of the board, not to be dangerous or vicious, it shall be returned to the owner. If the board determines the animal to be dangerous or vicious, then the county animal shelter or animal control officer or law enforcement officer shall dispose of the animal in accordance with the determination

of the appeals board. In the event of an appeal of the board's decision to the courts, the animal shall be confined at the county animal shelter pending the appeal. The owner of the animal shall be responsible for paying all boarding, veterinarian, and other expenses associated with keeping the animal during the appeal.

(e) *Enclosures for dangerous or vicious animals.* If an animal has been determined to be dangerous or vicious, as specified in this section, and at the appeals board's discretion, the owner may retain the animal upon satisfying the following conditions. The owner must erect, within thirty (30) days of declaration of dangerous or vicious status by an animal control officer or law enforcement officer, or in the event of an appeal, within fifteen (15) days from the decision of the appeals board a proper structure and display warning signs. This structure must be inspected and approved by a code enforcement official; designated animal control officer; or installed by a qualified professional as meeting the following requirements and standards. (Note: With appropriate findings, the appeals panel may require alternative method(s) of enforcement of equal to or more restrictive than the requirements such forth below.)

(1) The structure must be a minimum size of fifteen (15) feet by six (6) feet by six (6) feet with a floor consisting of a concrete pad at least four (4) inches thick. If more than one (1) animal is to be kept in the enclosure, the floor area must provide at least forty-five (45) square feet for each animal. The walls and roof of the structure must be constructed of welded chain link of a minimum thickness of twelve (12) gauge, supported by galvanized steel poles at least two and one-half (2.5) inches in diameter. The vertical support poles must be sunk in concrete-filled holes at least eighteen (18) inches deep and at least eight (8) inches in diameter. The chain-link fencing must be anchored to the concrete pad with galvanized steel anchors placed at intervals of no more than twelve (12) inches along the perimeter of the pad. The entire structure must be freestanding and not be attached or anchored to any existing fence, building, or structure. The structure must be secured by a child-resistant lock.

(2) A warning sign of at least one hundred twenty (120) square inches must be visible from each exposure of the structure which is visible to any adjoining property. Each sign must have a graphic representation of an appropriate animal such that the dangerousness or viciousness of the animal is communicated to those who cannot read, including young children.

(3) The owner of the animal will be responsible for ensuring that the enclosure is maintained in such a condition as to meet the requirements of this chapter. Failure to maintain or repair the enclosure shall subject the owner to penalty under this chapter.

(4) Prior to inspection of the enclosure by the appropriate personnel as described in (e) above the owner shall pay the current fee for the inspection of an accessory building. The animal shall not be returned to the owner's property until such time as this enclosure and warning signs have been approved. While this structure is being erected, the animal must be boarded at the county animal shelter at the owner's expense. A deposit may be required by the owner equal to the estimated costs, including veterinary care for ten (10) days boarding. Failure to pay said deposit when required shall be deemed a waiver of all rights regarding the animal.

(f) *Confinement, muzzling and control of vicious animals.* It shall be unlawful for any owner or person to keep any vicious animal within the city limits unless it is confined within a secure building or enclosure or unless it is securely muzzled and under restraint by a competent adult who, by means of a leash, chain or rope, has such animal firmly under physical restraint at all times. Failure to comply will result in a civil penalty and/or forfeiture of the animal in accordance with subsection 5-12(b)(1) of the county ordinance.

(g) *Owners of animals deemed dangerous or vicious.* Owner(s) of an animal declared to be dangerous or vicious must immediately notify Guilford County Animal Control, in writing, of any change of address or transfer of ownership of animal(s).
(Ord. of 05-19-2026(3), § 1(Exh. A), 5-19-26)

Sec. 5-5. Nuisance animals.

Animal-related public nuisances, as identified in section 5-10 of the county ordinance are prohibited within the corporate limits of the city.

(1) The actions of an animal constitute a public nuisance when an animal disturbs the rights of, threatens the safety of, or damages a member of the general public, or interferes with the ordinary use and enjoyment of another's property.

(2) It shall be unlawful for any person to own, keep, possess or maintain an animal in such a manner as to constitute a public nuisance. By way of example and not of limitation, the following acts or actions by an owner or possessor of an animal are hereby declared to be a public nuisance and are therefore unlawful:

a. Having an animal that disturbs the rights of, threatens the safety of, or damages a member of the general public, or interferes with the ordinary use and enjoyment of one's property.

b. Allowing or permitting an animal to damage the property of anyone other than its owner/possessor, including, but not limited to, turning over garbage containers, or damaging gardens, flowers, or vegetables, or defecating upon the property of another.

c. Maintaining the animals in an unsanitary environment which results in offensive odors or is dangerous to the animal or the public health, safety or welfare, or a failure to maintain a condition of good order and cleanliness which reduces the probability of transmission of disease.

d. Maintaining the owner's property in a manner that is offensive, annoying or dangerous to the public health, safety or welfare of the community because of the number, type, variety, density or location of the animals on the property.

e. Allowing or permitting an animal to bark, whine, howl, crow or cackle in a long-continued or frequent fashion so as to interfere with the reasonable use and enjoyment of neighboring premises.

f. Maintaining an animal that is diseased and dangerous to the public health.

g. Maintaining an animal that habitually or repeatedly chases, snaps at, attacks or barks at pedestrians, joggers, animals walked on a leash by owners, bicycles or other vehicles.

h. Being repeatedly at large or failing to exercise sufficient restraint necessary to control a dog.

i. Failing to confine a female dog or cat while in heat in a building or secure enclosure in such a manner that she will not be in contact with another dog or cat or attract other animals; provided, this section shall not be construed to prohibit the intentional breeding of animals within an enclosed area on the premises of the owner of the animal which is being bred.

In addition to the remedies identified within the county ordinance, the city may independently seek to enforce animal-related public nuisances via an action for any appropriate equitable remedy, injunction, or order of abatement issuing from a court of competent jurisdiction pursuant to G.S. § 160A-175.
(Ord. of 05-19-2026(3), § 1(Exh. A), 5-19-26)

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Chapter 6

BUILDINGS AND BUILDING REGULATIONS*

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ARTICLE I. IN GENERAL

Sec. 6-1. Status under charter.

This chapter constitutes the second part (technical ordinances) of this Code within the meaning of section 3.43 of the charter.
(Code 1961, § 24-3)

Sec. 6-2. Inspectors' conflict of interest.

It shall be unlawful for an inspector in the building inspection department to engage in any contractual business, such as building, electrical, plumbing, heating or air conditioning, or have any other financial interest in any concern engaging in any of such businesses within the City of Greensboro jurisdiction at any time while holding office as an inspector.
(Code 1961, § 24-4.1; Ord. No. 16-82, § 1, 8-1-16)

State law reference—Conflicts of interest, G.S. § 160A-415.

Sec. 6-3. Energy efficiency rebates.

The energy efficiency rebates identified in this section are designed to encourage energy efficient building practices in the city by offering partial permit fee rebates to the permit holder after project completion and final inspection of certified residential construction and select energy efficient systems and appliances. This program will promote the city's MAP goal to reduce Greensboro's carbon footprint. In order for a permit holder to qualify for any of the energy efficiency rebates identified in this section, all fees for the permit for which the permit holder is seeking a rebate under this section must be paid in full at the time of the issuance of the permit, and an application for the energy efficiency rebate of the permit must be completed at the time of the issuance of the permit. The energy efficiency rebate of the permit fee will be issued upon the request of the permit holder when:

(1) All work done pursuant to the permit has been completed;

(2) The completed work has passed its final inspection or received a certificate of occupancy, as applicable; and

(3) The energy efficient systems or appliances have been certified by the responsible third-party agency.

The energy efficiency rebates shall be as follows:

Residential Structures

Certification Agency	*Rebate*
USGBC Leadership in Energy and Environmental Design (LEED) Certification	50% Rebate of Building Permit Fee (Not to exceed $500.00)
NC HealthyBuilt Home Certification	50% Rebate of Building Permit Fee (Not to exceed $500.00)
USEPA Energy Star Certification	50% Rebate of Building Permit Fee (Not to exceed $500.00)
NAHB Model Green Building Home Guideline Certification	50% Rebate of Building Permit Fee (Not to exceed $500.00)
ICC/NAHB National Green Building Standard Certification	50% Rebate of Building Permit Fee (Not to exceed $500.00)

Systems for Existing Structures

Geothermal Heat Pumps	Electrical Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial) Mechanical Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial)
Photovoltaic Energy Systems	Building Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial) Electrical Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial)
Solar Hot Water Heating	Building Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial) Electrical Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial) Plumbing Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial)
Gray/Rain Water Collection for Flushing Fixtures	Plumbing Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial)
Tankless Hot Water Heating	Electrical Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial) Mechanical Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial) Plumbing Fee: 50% Rebate (not to exceed $40.00 residential or $80.00 commercial)

(Ord. No. 13-126, § 1, 9-17-13; Ord. No. 18-003, § 1, 1-16-18)

Sec. 6-4. Contractor's bond.

(a) For every person required to obtain a permit by section 6-56, section 6-111, section 6-220 or section 6-269, a bond in the amount of two thousand dollars ($2,000.00) shall be on file for the following:

(1) Every person who has a current contractor's license issued by the State of North Carolina and who for a fixed price, commission, fee, or wage, offers or bids to construct, alter, repair or demolish within the city any building, sidewalk, excavation, grading, or other improvement or structure, or any part thereof.

(2) Every person engaged in the business of a plumber, installing plumbing fixtures, piping or equipment, steam or gas fitter, or installing hot-air heating system, or installing electrical equipment, or offering to perform such services.

(3) Every person engaged in the business of construction or engaged in the business as a building contractor or concrete contractor (who is not licensed by the state as a building contractor), sign contractor, sheet metal contractor, roofing contractor, ventilation contractor or insulation contractor.

(b) For every person required to obtain a permit by section 6-56 or section 6-57, a bond in the amount of five thousand dollars ($5,000.00) shall be on file for a demolition contractor or a house moving contractor.

(c) All bonds required by this section shall be approved by the city attorney and conditioned upon:

(1) Holding the city harmless;

(2) Payment of all permit fees;

(3) Good and faithful performance; and

(4) Observance of all laws, ordinances and regulations applicable to such business activity.

(d) In addition, no building, electrical, mechanical, plumbing, demolition or house moving permit shall be issued until such person has filed the required bond.
(Ord. No. 14-086, § 1, 6-17-14; Ord. No. 23-120, § 1, 9-19-23)

Sec. 6-5. Forfeiture of bond upon revocation of permit.

When the permit of any business requiring a bond under the provisions of this article is revoked, the full amount of the bond shall be forfeited to the city.
(Ord. No. 14-086, § 2, 6-17-14)

Secs. 6-6—6-20. Reserved.

ARTICLE II. BUILDING CODE

DIVISION 1. GENERALLY

Sec. 6-21. Scope of code.

The provisions of this article shall be applicable within the city limits as now or hereafter fixed.
(Code 1961, § 24-4)

Sec. 6-22. State building code.

(a) The North Carolina State Building Code as amended and adopted by the North Carolina Building Code Council shall be in effect as modified by the building code council in the City of Greensboro and shall be applicable to all construction activities to which the code applies.

(b) The following technical codes of the North Carolina State Building Code as amended shall be applicable to construction activities:

Administration Code and Policies

Accessibility Code

Building Code (General Construction)

Plumbing Code

Mechanical Code

Electrical Code

Fire Prevention Code

Fuel Gas Code

Residential Code

Modular Construction Requirements

Existing Building Code

Energy Conservation Code

Rehabilitation Code
(Code 1961, §§ 24-1, 24-1.1; Ord. No. 96-66, § 1, 6-4-96; Ord. No. 97-140, § 1, 8-19-97; Ord. No. 99-10, § 1, 1-19-99; Ord. No. 02-23, § 1, 2-19-02; Ord. No. 16-82, § 2, 8-1-16)

State law reference—State building code, G.S. § 143-138.

Sec. 6-23. Fire limits.

(a) Primary fire limits. The primary fire limits shall consist of all property in the city that is shown on a map titled "Primary Fire Limits" on record in the office of the city clerk.

(b) Within the primary fire limits, no wooden building or structure or addition thereto shall hereafter be erected, altered, repaired, or moved (either into the limits or from one place to another within the limits), except upon the permit of the local inspection department approved by the city council and by the commissioner of insurance or his/her/their designee.
(Code 1961, § 24-16; Ord. No. 05-75, 4-5-05; Ord. No. 20-163, § 3, 12-15-20)

Sec. 6-24. Tents and similar temporary structures.

Chapter 24 of the North Carolina Fire Code, as amended, is incorporated.
(Code 1961, § 24-17; Ord. No. 87-135, § 1, 10-5-87; Ord. No. 12-6, § 1, 2-7-12)

State law reference—Fire limits, G.S. § 160A-435 et seq.

Sec. 6-25. Areaways and projections beyond building lines.

Areaways or openings shall not be constructed beyond the building line except on approval of the city council.
(Code 1961, § 24-20)

Sec. 6-26. Vaults under sidewalks.

(a) A vault may be built under the sidewalk only when approved by the city council.

(b) All vaults shall be thoroughly ventilated.
(Code 1961, § 24-21)

Sec. 6-27. Rainwater leaders.

Rainwater leaders shall not extend beyond the building or property line, but shall be built in chases or on the inside of the wall, and shall not empty on any street or sidewalk.
(Code 1961, § 24-22)

Sec. 6-28. Demolition.

In demolishing any structure or part thereof, story after story shall be completely removed. No material shall be placed upon a floor of any building in the course of demolition, and the brick, timbers, and other parts of each story shall be lowered to the ground immediately upon displacement. The materials to be removed shall be properly wetted to lay the dust incident to their removal. A substantial shed covering sidewalks shall be provided prior to the demolition of buildings adjacent to such sidewalks by the person engaged in such demolition.
(Code 1961, § 24-23)

DIVISION 1A. FRATERNITY AND SORORITY HOUSES

Sec. 6-29. Application.

This division shall apply to every fraternity and sorority house as hereinafter defined, within the corporate limits of the City of Greensboro.
(Ord. No. 97-149, § 1, 9-2-97)

Sec. 6-30. Definitions.

Fraternity and sorority house under the terms of this division shall mean any building used as a dwelling and occupied by and maintained exclusively or primarily for college, university, or professional school students who are affiliated with a social, honorary, or professional organization recognized currently or in the past by a college, university, or professional school.
(Ord. No. 97-149, § 1, 9-2-97)

Sec. 6-31. Automatic fire sprinklers in fraternity and sorority houses.

An automatic fire sprinkler system meeting the requirements of NFPA Standard #13 or #13R is required to be installed in each fraternity and sorority house in accord with the compliance deadlines in section 6-32.

In addition, all connections shall be located on the street side of each building, and activation of the sprinkler system shall activate both a local building alarm and a supervisory alarm at a twenty-four (24) hour certified and licensed alarm monitoring service.
(Ord. No. 97-149, § 1, 9-2-97)

Sec. 6-32. Compliance period.

Existing fraternity and sorority houses shall come into compliance with this division within three (3) years of its effective date.

If an existing structure is proposed to be converted to use as a fraternity or sorority house, compliance with section 6-31 shall be required prior to issuance of a certificate of occupancy for use as a fraternity or sorority.

If an existing structure is being used as a fraternity or sorority house and renovations at a

cost exceeding fifty (50) percent of the structure's taxable value are proposed prior to the date on which compliance with this division would otherwise be required, compliance with section 6-31 shall be required prior to a new certificate of occupancy being issued following such renovations.

Existing fraternity and sorority houses are exempt from the compliance period set out in this section if they meet the following conditions:

(1) Have no more than one thousand (1,000) square feet of floor area and are not directly connected to the main building used for sleeping;

(2) Have no facilities used for sleeping;

(3) Have a supervised automatic alarm system installed throughout the building and the alarm system (1) meets applicable National Fire Protection Association standards, (2) includes manual alarm pull stations on each level of the building, and (3) is interconnected to the alarm system of the building with sleeping facilities.

New structures shall be required to comply with the terms of this division before a certificate of occupancy is issued for use as a fraternity or sorority house.
(Ord. No. 97-149, § 1, 9-2-97; Ord. No. 97-154, § 1, 9-16-97)

Sec. 6-33. Automatic sprinkler system not to be disabled.

Upon the occupancy of any new structure as a fraternity or sorority house or upon the completion of the installation of an automatic fire sprinkler system in an existing fraternity or sorority house, no person shall shut off or disable such automatic fire sprinkler system and no owner or resident of such house shall fail to prevent the shutting off or disabling of such a system. Provided, however, that a sprinkler system may be shut off in order to perform maintenance work on the system during the time the qualified maintenance personnel are on the premises performing necessary maintenance work. Such maintenance work shall only be conducted after notice to and approval by the city fire department.
(Ord. No. 97-149, § 1, 9-2-97)

Sec. 6-34. Penalties.

(a) *Criminal penalties.* Violation of any provision of this division shall be a misdemeanor and shall be subject to a fine of three hundred dollars ($300.00) or imprisonment for not more than thirty (30) days.

(b) *Civil enforcement.* Violation of any provision of this division shall also be subject to a civil penalty of two hundred dollars ($200.00) for the first violation. For each day the violation is not corrected, a penalty of fifty dollars ($50.00) per day shall be imposed. If the civil penalty is not paid within ten (10) days after demand for payment is made, civil action may be instituted for recovery of the civil penalty together with all costs. For each day the violation is not corrected, the violator will be guilty of an additional and separate offense and subject to additional civil penalty. The collection of a penalty pursuant hereto shall not foreclose further proceedings for penalties coming due after the date of the filing of a prior proceeding. Civil penalties assessed under this section are considered restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. As such, the amount declared herein is presumed to provide sufficient restoration to the city for its costs.

The assessment of civil penalties herein is not intended to be an exercise of powers delegated to other agencies or entities created by the General Assembly to regulate the proscribed conduct.

(c) Nothing in this section shall preclude the issuance of a criminal summons in lieu of or in addition to the civil penalty citation.
(Ord. No. 97-149, § 1, 9-2-97; Ord. No. 04-165, § 1, 9-7-04)

Secs. 6-35—6-40. Reserved.

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Part A. General Provisions

Sec. 6-41. Enforcement.

The building code shall be enforced by the building inspector, who shall have the power to condemn any building in accordance with law. (Code 1961, § 24-18)

Charter reference—Building inspector, § 5.71.

Secs. 6-42, 6-43. Reserved.

Editor's note—Ord. No. 01-120, §§ 1, 2, adopted May 15, 2001, deleted former §§ 6-42, 6-43 of the Code, which pertained to the board of building appeals and appeals, respectively, and derived from the 1961 Code, §§ 2-83, 2-84, 2-92, 2-93, 2-95, 2-96, 24-5; and Ord. No. 98-164, §§ 1, 2, adopted Oct. 20, 1998.

Sec. 6-44. Stop work orders.

Whenever any building, structure or part thereof is being wrecked or torn down, or is being constructed, erected, altered or repaired in a reckless, careless, or unworkmanlike manner, or in violation of any part of this chapter or any other chapter in force relating to the same subject matter, or in such a manner as to endanger life or property, or not in accordance with the plans approved by the building inspector, the building inspector may order such work of wrecking, tearing down, erection, construction, alteration or repair to be immediately discontinued, and it shall not be resumed until adequate measures are taken for the protection of life and property and satisfactory evidence is offered that further work will be prosecuted carefully, in a workmanlike manner, and in conformity with this article and other ordinances relating thereto. (Code 1961, § 24-15)

State law reference—Stop work orders, G.S. § 160A-421.

Secs. 6-45—6-55. Reserved.

Part B. Permits and Inspections

Sec. 6-56. Permit generally.

(a) No person shall commence or proceed with the construction, alteration, repair, removal or demolition of any single building or other structure or part thereof without a written permit therefor from the building inspector except for building construction that is exempted from permit requirements under the North Carolina State Building Code. The copy of the permit shall be kept on the premises for public inspection during the prosecution of the work and until completion of the same. An identification placard showing the permit number signed by the building inspector shall be conspicuously posted on the site readily visible from the street.

(b) A permit for the demolition, tearing down, or wrecking of any single building or structure or part thereof shall be issued only to the following:

(1) A general contractor licensed by the North Carolina Licensing Board for General Contractors; or

(2) A demolition contractor; or

(3) An owner;

provided that for all commercial demolition, including demolition of noncommercial buildings or structures where the demolition is part of commercial or public use development, the applicant for the permit provides the city with a state-issued National Emission Standards for Hazardous Air Pollutants (NESHAP) number and a state-issued asbestos removal permit, when such permit is required by state law; provided further that for all residential demolition, the applicant provides the city with an asbestos report from a state accredited asbestos inspector which states whether the structure being demolished contains regulated asbestos-containing material (as defined in Title 40 of the Federal Code of Regulations Part 61.141) in combined amounts exceeding two hundred sixty (260) linear feet on pipes or one hundred sixty (160) square feet on other structure components or thirty-five (35) cubic feet off such components where the length or area cannot be measured in linear or square feet.

Any person receiving a permit under this subsection shall, in the performance of the work, comply with the state building code and all other applicable state and local laws, rules and regulations.

(c) No person shall erect, alter or repair any billboard or sign without first securing a permit from the building inspector except for sign construction that is exempted from permit requirements under the North Carolina State Building Code.

(d) All applications for permits required by this article shall be approved or disapproved by the building inspector within a reasonable period from the date of filing thereof. Such applications shall be approved if the work proposed to be done conforms to the requirements of this article, the zoning ordinance, and other ordinances relating thereto.

(e) For failure of a person to apply for and obtain any building permit required prior to commencement of a construction job, there shall be an additional fee in an amount equal to the permit fee itself.

(Code 1961, §§ 24-6, 24-7; Ord. No. 93-47, § 1, 6-3-93; Ord. No. 05-190, §§ 1—5, 9-20-05; Ord. No. 14-086, § 3, 6-17-14; Ord. No. 16-82, § 3, 8-1-16)

State law reference—Permits generally, G.S. § 160A-417 et seq.

Sec. 6-57. Permits to move buildings.

(a) A permit for moving a building shall be issued only in accordance with the following provisions:

(1) The contractor shall contact local utility companies and make provision to assure noninterference with overhead utility lines.

(2) The contractor shall provide a bond of five thousand dollars ($5,000.00) indemnifying the city from any liability in connection with the moving.

(3) The contractor shall not move any building on streets except under escort of a city police officer.

(4) The contractor shall not move any building on city streets except when accompanied by an electrician employed by or as representative of Duke Power Company.

(5) The contractor shall file a report within three (3) days after the house is moved, witnessed by the police officer who escorted the move, stating whether any damage was done and, in the event any damage due to the moving was done, the contractor shall be responsible for such damage.

(b) In addition to the provisions of subsection (a), no building or other structure shall be moved to a location within the city, nor a permit for such move granted, until the owner of the building or structure or the owner of the plot to which it is being moved shall post a bond in an amount deemed by the superintendent of inspections to be sufficient to secure the faithful performance of all repairs, improvements, and other requirements necessary to cause said building or structure, and the plot upon which it is located to comply with all current state and local building codes and applicable zoning and subdivision ordinances. The required bond shall be in cash or shall be secured by the endorsement of a corporate surety licensed under state law to execute such bonds, conditioned that the surety will, upon demand, forthwith make payment to the obligee upon the bond if the owners fail to comply with the terms thereof within a twelve-month period from the date the building or structure is moved from its original plot; provided that the superintendent of building inspections may grant an additional period not to exceed twelve (12) months for completion of the interior portions of the structure if he/she/they finds that the exterior portions were brought into compliance within the original twelve-month period. In the event of an extension of time, the required bond shall remain effective to ensure the faithful performance of all necessary repairs, improvements and other requirements set forth in this section. Such bond shall be on a form approved by the city attorney and shall be filed with the superintendent of inspections. All cash bonds shall be deposited with the city finance officer for safekeeping. Upon the faithful performance of all conditions of the bond the principal amount thereof shall be returned to the obligor. In the event of a default upon the conditions of such bond, the principal amount thereof shall forthwith

be paid over to the city, its agents, and independent contractors for the faithful performance of its conditions. Any balance remaining shall be disbursed according to law.

(c) No permit shall be issued for moving any building classified as substandard from one (1) lot to another lot.
(Code 1961, §§ 27-4(c), 24-8(e), 24-9; Ord. No. 88-21, § 1, 3-3-88; Ord. No. 05-190, § 6, 9-20-05; Ord. No. 20-163, § 3, 12-15-20)

Sec. 6-58. Plans.

(a) There shall be no plans required for one- and two-family residences unless requested by the building inspector. On all other buildings, plans shall be provided in the media, format, and number of sets required by the building inspector. Reviewed plans will be returned to be kept on the job during construction. File sets will be maintained in the building inspector's office. A plot plan showing the location of the structure or structures, and the parking area must be furnished when the application is made for a building permit.

(b) Upon approval of plans and issuance of building permit, the construction work must proceed in accordance with the approved plans, otherwise the building operations will be stopped by the building inspector. Any deviation from the approved plans must be authorized by the approval of revised plans subject to the same procedure established for the examination of the original plans. An additional permit fee may be charged depending on the extent of variation from the original plans.
(Code 1961, § 24-11; Ord. No. 16-82, § 4, 8-1-16)

Sec. 6-59. Additional testing.

When in the opinion of the building inspector it is deemed advisable that building materials be tested in the interest of public safety, an additional fee shall be collected to cover the actual costs of such tests to be made by a recognized testing laboratory.
(Code 1961, § 24-10)

Sec. 6-60. Expiration of permits.

Permits issued for the removal or demolition of any building shall expire by limitation two (2) months after the date thereof. Permits issued for the construction, alteration or repair of any building shall expire by limitation six (6) months after the date thereof if the work authorized by the permit has not been commenced. If, after the commencement of such work, the same is discontinued for a period of twelve (12) months, the permit therefor shall immediately expire. No work authorized by any permit which has expired shall thereafter be done until a new permit therefor is secured.
(Code 1961, § 24-13)

State law reference—Time limits on validity of permits, G.S. § 160A-418.

Sec. 6-61. Inspections generally.

(a) *Notice to building inspector of beginning of work.* The building inspector shall be notified immediately upon the beginning of the construction, alteration, repair or removal of any building for which a permit is required. He/she/they shall be notified not less than twenty-four (24) hours before the beginning of the demolition of any building.

(b) *When to call for inspection.*

(1) *Location and footing inspection:* After all trenches are excavated, all grade stakes are installed, all reinforcing steel and supports are in place and braced before pouring or placement of any concrete. The property lines must be established, or if there is any question as to the location of the building on the property, the builder will furnish a survey made by a licensed surveyor.

(2) *Under-slab inspection:* If applicable, shall be made after all materials and equipment to be concealed by the concrete slab are installed.

(3) *Foundation and crawl space inspection:* After all foundation supports are installed to check foundation supports, crawl space leveling, ground clearances and positive drainage when required.

(4) *Rough-in inspection:* When all building framing, electrical, plumbing, mechanical, or fire protection systems that will be hidden from view in the finished building have been installed and before wall, ceiling finish, or building insulation is installed.

(5) *Building framing inspection:* After the roof (excluding permanent roof covering), wall, ceiling, and floor framing is installed with appropriate blocking, bracing, and firestopping installed. The following items shall be installed and visible for inspection:

(a) Pipes;

(b) Chimneys and vents;

(c) Flashing for roofs, chimneys, and wall openings;

(d) Lintels required to be bolted to the framing for support, and shall not be covered by any exterior or interior wall or ceiling finish material before approval.

(6) *Insulation inspection:* After approved building framing inspection, approved rough-in inspection, and permanent roof covering is installed but before any wall or ceiling covering is installed.

(7) *Final inspection:* After completion of the work authorized under the technical code for each trade.

The final plumbing, electrical, mechanical, and fire inspections must be approved before the final building inspection will be made.
(Code 1961, § 24-12; Ord. No. 16-82, § 5, 8-1-16; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Inspections of work in progress, G.S. § 160A-420.

Sec. 6-62. Access for inspection.

The building inspector and his/her/their assistants shall have the power to enter any public or private property at any reasonable hour in accordance with applicable law for the purpose of enforcing the building code.
(Code 1961, § 24-19; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Administrative search and inspection warrants, G.S. § 15-27.2.

Sec. 6-63. Certificate of compliance.

Upon the completion of any construction, alteration, or repairs authorized by a permit issued hereunder, the building inspector shall inspect the same, and if it has been done in conformity with the state law and with all ordinances relating thereto, he/she/they shall issue a certificate of compliance.
(Code 1961, § 24-14; Ord. No. 16-82, § 6, 8-1-16; Ord. No. 20-163, § 3, 12-15-20)

Editor's note—Ord. No. 16-82, § 6, adopted Aug. 1, 2016, changed the title of § 6-63 from "Certificate of completion" to "Certificate of compliance." This historical notation has been preserved for reference purposes.

State law reference—Certificates of compliance, G.S. § 160A-423.

Sec. 6-64. Fees.

(a) Inspection fees for the construction, alteration or repair of any building or other structure or part thereof shall be based on the total cost of construction, alteration, or repairs, excluding the cost of electrical, heating and air conditioning, gas equipment and plumbing work, and shall be as follows:

For the first $11,000.00	$85.00
For excess above $11,000.00 to $50,000.00 per $1,000.00	3.00
For excess above $50,000.00 to $500,000.00, per $1,000.00	2.00
For excess above $500,000.00, per $1,000.00	1.15
For nonessential inspection at request of owner	45.00
For handicap ramps accessing a single-family dwelling	No Charge

(b) Inspection fees for tents shall be seventy-five dollars ($75.00).

(c) Inspection fees for the removal (demolition) of buildings shall be seventy-five dollars ($75.00).

(d) Inspection fees for moving buildings over city streets on rubber shall be as follows: Initial payment of five hundred dollars ($500.00) which shall be the maximum fee. The actual fee shall be based on actual costs to the city including city

administrative costs, use of materials, public vehicles and other equipment; in the event that the actual costs are less than the above-mentioned fee, the city shall refund the difference.

(e) Inspection fees for mobile homes shall be seventy-five dollars ($75.00).

(f) The total fees due for any permit shall not be less than seventy-five dollars ($75.00).

(g) Inspection fees for erosion control and foundation inspections shall be charged at the rate of one dollar and twenty-five cents ($1.25) per thousand (1,000) to a maximum of five hundred thousand dollars ($500,000.00) of general construction cost for new residential, commercial and additions to commercial construction.

(h) Upon the return of any building permit issued under this division, an amount equal to the minimum building permit fee shall be retained by the building inspector to cover administrative expenses connected with the issuance thereof.

(i) Fee for the first follow-up inspection shall be forty-five dollars ($45.00).

(j) Fee for the second and each follow-up inspection thereafter shall be forty-five dollars ($45.00).
(Code 1961, § 24-8(a)—(d), (g); Ord. No. 87-85, § 1, 7-2-87; Ord. No. 90-30, § 1, 3-1-90; Ord. No. 91-57, §§ 1, 2, 5-6-91; Ord. No. 92-29, § 1, 3-16-92; Ord. No. 94-17, § 1, 4-18-94; Ord. No. 96-66, §§ 2, 3, 6-4-96; Ord. No. 06-140, § 1, 6-20-06; Ord. No. 07-118, § 1, 7-1-07; Ord. No. 14-081, § 1, 6-17-14; Ord. No. 15-0123, § 1, 9-15-15; Ord. No. 16-82, § 7, 8-1-16; Ord. No. 24-103, § 1, 7-16-24; Ord. No. 24-164, § 1, 11-19-24)

Charter reference—Fees, § 5.73.

Secs. 6-65—6-80. Reserved.

ARTICLE III. ELECTRICITY

DIVISION 1. GENERALLY

Sec. 6-81. Reserved.

Editor's note—Ord. No. 96-66, § 9, adopted June 4, 1996, repealed § 6-81 which that this article and the 1960 National Electrical Code should be applicable in the city. Such section was derived from the 1961 Code, § 25-1 and Ord. No. 90-65, § 1, adopted May 3, 1990.

Sec. 6-82. Reserved.

Editor's note—Ord. No. 16-82, § 8, adopted Aug. 1, 2016, repealed § 6-82 in its entirety to read as set out herein. Former § 6-82 pertained to penalty and derived from the Code of 1961, § 25-8.

Sec. 6-83. Purpose and scope.

It is the purpose and intent of this article to provide certain minimum standards, provisions, requirements and inspections of electrical equipment, appliances, and installations covered by the North Carolina Electrical Code on premises or in habitable buildings or structures for the protection of the public safety and interest.
(Ord. No. 16-82, § 9, 8-1-16)

Sec. 6-84. Civil liability.

This article shall not be construed to relieve from or lessen the responsibility of liability of any party owning, operating, controlling or installing any electric wiring, devices, appliances or equipment for damages to person or property caused by any defect therein, nor shall the city be held as assuming any such liability by reason of the inspection authorized herein or the certificate of approval issued as herein provided.
(Code 1961, § 25-34)

Secs. 6-85—6-95. Reserved.

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Part A. General Provisions

Sec. 6-96. Enforcement agency designated.

This article shall be enforced by the city electrical inspection department.
(Code 1961, § 25-8)

Sec. 6-97. General duties of electrical inspector.

It shall be the duty of the electrical inspector:

(1) To enforce all state and local laws governing electrical installations materials.

(2) To issue permits for and to make inspections of all new electrical installations and such other permits and inspections as may be prescribed by the city council.

(3) To grant permits for the installation or alteration of electric wiring, devices, appliances and equipment, and make inspections for all new electrical installations and reinspections as provided in this article.

(4) To keep complete records of all permits issued, inspections and reinspections made, fees collected, and other official work performed in accordance with the provisions of this chapter.

(5) To keep on file a list of inspected and approved electrical materials, devices, appliances and equipment issued by Underwriters' Laboratories, Inc., which list shall be accessible for public reference.

(Code 1961, § 25-3)

Sec. 6-98. Right of entry of electrical inspector; authority to disconnect service; etc.

The electrical inspector shall have the right:

(1) To enter during reasonable hours in accordance with applicable law any building in the discharge of their official duties, or for the purpose of making any inspection, reinspection or test of the installation of electric wiring, devices, appliances and equipment contained therein.

(2) To cut or disconnect any wire in cases of emergency where necessary for safety to life and property.

(3) To disconnect, or order the discontinuance of electrical service to any electric wiring, devices, appliances or equipment found to be dangerous to life or property because it is defective or defectively installed until such wiring, devices, appliances and equipment and their installation have been made safe and approved by the electrical inspector.

(Code 1961, § 25-5; Ord. No. 16-82, § 10, 8-1-16)

State law reference—Administrative search and inspection warrants, G.S. § 15-27.2.

Sec. 6-99. Condemnation of unsafe, etc., installations.

(a) The electrical inspector may condemn any electrical system, or part thereof, units, apparatus, or appurtenances which are not installed, altered, or restored in accordance with the provisions of this article. In the interest of public safety, the electrical inspector shall have the authority to condemn any electrical system or part thereof which is a detriment to safety and require that same be remedied immediately.

(b) If the electrical inspector has reason to believe that an unsafe condition exists in habitable buildings or on premises, they may require the owner or agent thereof to provide for tests, and if defective materials or workmanship are revealed by such test, the owner or agent shall immediately repair the system in accordance with the direction of the electrical inspector.

(Ord. No. 16-82, § 11, 8-1-16)

Sec. 6-100. Stop work order.

Whenever it is found that the installation, alteration, or repair covered by this article is proceeding in violation of this article, a written order to stop work shall be posted on the premises. The stop work order shall pertain to any part or parts of the construction, alteration, or repair of the system which is in violation.

(Ord. No. 16-82, § 12, 8-1-16)

Secs. 6-101—6-110. Reserved.

Part B. Permits and Inspections

Sec. 6-111. Permit and inspection required; exceptions.

No electric wiring, devices, appliances or equipment shall be installed, within or on any build-

ing, structure, or premises, nor shall any alteration or addition be made in any such existing wiring, devices, appliances or equipment without first securing an electrical permit therefor and having an inspection thereof made by the electrical inspector, except as follows:

(1) No permit shall be required for minor repair work, such as the replacement of lamps or the connection of portable devices to suitable receptacles which have been permanently installed.

(2) No permit shall be required for the installation, alteration or repair of electrical wiring, devices, appliances and equipment installed by or for an electrical public service corporation for the use of such corporation in the generation, transmission, distribution or metering of electrical energy, or for the use of such corporation in the operation of signals or the transmission of intelligence.

(Code 1961, § 25-10)

Sec. 6-112. Annual permit for alterations.

In lieu of an individual electrical permit for alteration as required by this division, an annual electrical permit shall, upon application therefor, be issued to any person regularly employing one (1) or more electricians who have qualified with the board of electrical examiners for the maintenance of electric wiring, devices, appliances and equipment on premises owned or occupied by the applicant for the permit. The application for such annual permit shall be made in writing to the electrical inspector and shall contain a description of the premises within which work is to be done under the permit. The person to whom an annual permit is issued shall keep a record of all electric wiring, devices, appliances and equipment installed under such permit, and the electrical inspector shall have access to such record. Each annual permit shall expire on June 30.

(Code 1961, § 25-11)

Sec. 6-113. Property owner's permit.

Any person may be permitted to perform electrical work upon their own property except property intended for rent, sale or gift provided he/she/they first makes application for and obtains a property owner's electrical permit from the electrical inspector for the work contemplated. The electrical inspector shall then issue a permit to the applicant to perform the work for which application was made. Such permit shall extend to the applicant only and shall not authorize the applicant to employ the services of any other person to assist him/her/them unless such other person is duly licensed. The permit granted the applicant shall automatically expire upon completion of the work. All work done under permit shall be subject to regular electrical inspection requirements and fees and shall satisfy all requirements applicable to such work.

(Code 1961, § 25-12; Ord. No. 16-82, § 13, 8-1-16; Ord. No. 20-163, § 3, 12-15-20)

Sec. 6-114. Application.

Application for an electrical permit, other than an annual or property owner's electrical permit, shall be made in writing to the electrical inspector by the person who will install the work. The applicant shall describe the work to be done in the application. The application shall be accompanied by such plans, specifications and schedules as may be necessary to determine whether the installation as described will be in conformity with the requirements of this article.

(Code 1961, § 25-13(a), (b))

Sec. 6-115. Persons eligible.

No electrical permit, except an annual permit or a property owner's permit, shall be issued to any person unless such person is the holder of an electrical contractor's license issued by the state board of examiners of electrical contractors.

(Code 1961, §§ 25-13(a), 25-14(a); Ord. No. 16-82, § 14, 8-1-16)

Sec. 6-116. Issuance.

If it is found that the installation as described in the application made pursuant to the provisions of this division will conform with all legal requirements and if the applicant for an electri-

cal permit has complied with all provisions of this article, a permit for the installation shall be issued.
(Code 1961, § 25-13(c))

Sec. 6-117. Inspections generally.

(a) In this article "inspection" means the necessary scrutiny and checking of an electrical wiring installation to determine whether or not the installation has been made in conformity with state and local laws governing wiring installations and materials.

(b) The electrical inspector shall have and use the necessary instruments and tools for testing each installation as to insulation, continuity, polarity, etc. No roughing-in work will be considered complete until all joints are properly made and the grounding connections have been made. Two (2) inspections shall be made under ordinary circumstances:

(1) The first after roughing-in.

(2) The second, or final inspection, after all devices, appliances and fixtures are installed or hung.

(Code 1961, § 25-19; Ord. No. 16-82, § 15, 8-1-16)

Sec. 6-118. Inspection of concealed wiring and large installation.

When any part of an electrical wiring installation is to be hidden from view by the permanent placement of parts of the building, the person installing the wiring shall notify the electrical inspector, and such parts of the wiring installation shall not be concealed until they have been inspected and approved by the electrical inspector. On large installations, where the concealment of parts of the wiring proceeds continuously, the person installing the wiring shall give the electrical inspector due notice and inspections shall be made periodically during the progress of the work.
(Code 1961, § 25-22)

Sec. 6-119. Notice; time to inspect.

Upon completion of any installation for which a permit and inspection is required by this division, it shall be the duty of the person installing same to notify the electrical inspector, who shall inspect the installation as soon thereafter as practicable.
(Code 1961, § 25-23)

Sec. 6-120. Inspection of work under annual permit.

At regular periods, the electrical inspector shall visit all premises where work may be done under annual permits required by this division and shall inspect all electric wiring devices, appliances and equipment installed under such a permit since the date of their last previous inspection, and shall issue a certificate of approval for such work as is found to be in conformity with the provisions of this article, after the fee required has been paid. Upon inspection, if the alteration is not found to be fully in conformity with the provisions of this article, the electrical inspector shall at once forward to the person a written notice stating the defects which have been found.
(Code 1961, § 25-24; Ord. No. 16-82, § 16, 8-1-16)

Sec. 6-121. Certificate of approval.

(a) Where the electrical inspector finds the installation to be in conformity with the laws of the state governing electrical wiring installations and materials and of this article, he/she/they shall issue an approval release to the utility company furnishing the electrical service.

(b) When a certificate of approval is issued authorizing the connection and use of temporary work, such certificate shall be issued to expire at a time to be stated therein and shall be revocable by the electrical inspector for cause. A preliminary certificate of approval may be issued authorizing the connection and use of certain specific portions of an incomplete installation which shall be revocable at the discretion of the electrical inspector.

(c) It shall be unlawful for any person to make connection from a supply of electricity or to supply electricity to any electrical equipment for the installation of which an electrical permit is required or which has been disconnected or

ordered to be disconnected by the electrical inspector, until such connection has been authorized by the electrical inspector.
(Code 1961, §§ 25-25—25-27; Ord. No. 16-82, § 17, 8-1-16; Ord. No. 20-163, § 3, 12-15-20)

Sec. 6-122. Correction of defects.

Any person shall correct any defect within ten (10) days after having been duly notified by the electrical inspector.
(Code 1961, § 25-14(b); Ord. No. 16-82, § 18, 8-1-16)

Sec. 6-123. Electrical fees for permits and inspections generally.

(a) Before any permit is granted for the installation or alteration of electrical equipment, the person making application for such permit shall pay to the city permit clerk a fee in such amount as specified below, or the fees may be paid to the city permit clerk on or before the tenth day of the month following date of application for permit; provided, that in the event of default in payment of fees, no permit will be issued to or application received from the person in default until such time as the fees are paid in full:

SCHEDULE OF ELECTRICAL PERMIT FEES
(NEW DWELLINGS/COMMERCIAL SERVICES ONLY)

Minimum fee: the total of fees due for any permit shall be not less than eighty-five dollars ($85.00).

	Fees
60 amp service	$ 59.00
100 amp service	74.00
125 amp service	85.00
150 amp service	90.00
200 amp service	99.00
225 amp service	105.00
250 amp service	111.00
300 amp service	116.00
350 amp service	125.00
400 amp service	131.00
Over 400 amp service, per amp	0.10
Construction site office	85.00
Mobile home	85.00
Saw service	85.00
Temporary cut-in	85.00
Billboard	55.00
Signs (all except billboards)	5.00
Meter	10.00
Panel	10.00
Outlets (switches, lighting, outlets, receptacles), each	0.30
Lighting fixtures, each	0.30
Lighting standard (parking lot lighting)	5.00
Transformer KVA (per KVA)	0.50
Motor through 4 HP	10.00
Each additional HP	0.70
Motor control center	15.00
Emergency generator KVA (per KVA)	0.50
UPS systems KVA (per KVA)	0.50
PV systems KVA (per KVA)	0.50
PV panel/meter	10.00
PV inverter	10.00
Control wiring system	20.00
Line transfer switch	10.00
KW through 4 KW	10.00
Each additional KW, each	0.70
X-ray unit	10.00
Fire alarm panel	10.00
Smoke/CO device	0.30
Gasoline dispenser	10.00
Welder	10.00
Unit heater	10.00
Water	10.00
Deep fat fryer	10.00

Ice maker	10.00
Display case	10.00
Walk-in cooler	10.00
Food warmer	10.00
Commercial swimming pool	85.00
Residential swimming pool	65.00
Spa, hot tub, hydromassage tub, each	20.00
Replacement permit	85.00
Clothes dryer	10.00
Range, oven, cook top	10.00
Dishwasher, each	10.00
Disposal, trash compactor, each	10.00
Furnace	10.00
Meter alteration	20.00
Minimum charge	85.00
Miscellaneous	20.00
Extra inspection fee	45.00
Additional extra inspection fee	45.00

(b) Minimum charge for cancelled permits and failure to obtain permits for installation, or failure to obtain required inspections:

(1) Upon the return of any electrical permit issued under this section, an amount equal to the minimum electrical permit fee shall be retained by the inspector to cover administrative expenses connected with the issuance thereof.

(2) For failure of a person to apply for and obtain any electrical permit required prior to commencement of a construction job, there shall be an additional fee in an amount equal to the permit fee itself.

(3) The electrical inspector shall have the authority to collect a fee equal to the minimum charge where the owner or contractor fails to request the inspection required by city ordinance or the North Carolina State Building Code.

(Code 1961, §§ 25-20, 25-21, Ord. No. 87-86, §§ 1, 2, 7-2-87; Ord. No. 90-30, § 2, 3-1-90; Ord. No. 06-140, § 2, 6-20-06; Ord. No. 14-081, § 2, 6-17-14; Ord. No. 16-82, § 19, 8-1-16; Ord. No. 24-103, § 2, 7-16-24)

Charter reference—Fees, § 5.73.

Secs. 6-124—6-135. Reserved.

DIVISION 3. ELECTRICIANS

Sec. 6-136. Reserved.

Editor's note—Ord. No. 16-82, § 20, adopted Aug. 1, 2016, repealed § 6-136 in its entirety. Former § 6-136 pertained to board of electrical examiners and derived from Ord. No. 06-154, § 1, adopted July 18, 2006.

Sec. 6-137. Licensing, etc., generally.

(a) No person shall install, alter, repair, make extensions or connect any fixture or current consuming device (except lamps and appliances connected by means of attachment plug) to any electrical wiring system for which an electrical permit is required, whether employed by an electrical contractor, firm, corporation or otherwise, unless he/she/they is a qualified electrician or works under the direct supervision of a qualified electrical contractor.

(b) No electrical contractor, firm or corporation shall authorize the installation of electrical wiring by any person in violation of subsection (a).

(c) For the purposes of this section a "qualified electrician" shall mean any person:

(1) Who has qualified for a limited electrician's license issued by the state;

(2) Who has qualified for an intermediate electrician's license by the state;

(3) Who has qualified for an unlimited electrician's license issued by the state;

(4) Who has qualified for a single-family detached residential dwelling electrician's license issued by the state;

(5) Who has qualified for a specialty restricted license issued by the state.

(d) No person shall use an expired or revoked electrical license.
(Ord. No. 06-154, § 2, 7-18-06; Ord. No. 16-82, § 21, 8-1-16; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-230, § 1, 10-18-22)

Sec. 6-138. Reserved.

Editor's note—Ord. No. 22-230, § 2, adopted October 18, 2022, repealed § 6-138, which pertained to local licensing and examination of journeymenand derived from Ord. No. 06-154, adopted July 18, 2006; Ord. No. 16-82, adopted August 1, 2016 and Ord. No. 20-163, adopted December 15, 2020.

Sec. 6-139. Restriction on issuance of permits to electrical contractors.

No person shall be issued electrical permits within the city for electrical contracting until they submit evidence that they hold an electrical contractor's license issued by the state.
(Ord. No. 16-82, § 23, 8-1-16)

Editor's note—Ord. No. 16-82, § 23, adopted Aug. 1, 2016, amended § 6-139 in its entirety to read as set out herein. Former § 6-139 pertained to restriction on issuance of electrical contractor's license and derived from Ord. No. 06-154, § 4, adopted July 18, 2006.

Sec. 6-140. Supervision of apprentices.

There shall not be more than two (2) apprentice electricians or helpers working under the direct supervision of each qualified electrician at any time.
(Ord. No. 06-154, § 5, 7-18-06; Ord. No. 16-82, § 24, 8-1-16)

Secs. 6-141—6-155. Reserved.

DIVISION 4. RESERVED*

Secs. 6-156—6-179. Reserved.

*__Editor's note—__Ord. No. 16-82, §§ 25—36, adopted Aug. 1, 2016, repealed Div. 4 in its entirety. Former Div. 4, §§ 6-156—6-167 pertained to antennas and derived from the Code of 1961, §§ 25-39, 25-42, 25-43(a)—(i), 25-44, 25-45.

ARTICLE IV. MECHANICAL SYSTEMS

DIVISION 1. GENERALLY

Sec. 6-180. Civil liability.

This article shall not be construed to relieve from or lessen the responsibility of liability of any party owning, operating, controlling or installing any mechanical or fuel gas systems, devices, appliances or equipment for damages to person or property caused by any defect therein, nor shall the city be held as assuming any such liability by reason of the inspection authorized herein or the certificate of approval issued as herein provided.
(Ord. No. 16-82, § 37, 8-1-16)

Sec. 6-181. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Fuel gas includes all equipment, appliances, and installations covered by the North Carolina Fuel Gas Code.

Licensed mechanical contractor means a person who holds a current license issued by the state board of examiners of refrigeration, plumbing and heating contractors, in accordance with the provisions of G.S. ch. 87, arts. 2 and 5.

Mechanical includes all equipment, appliances, and installations covered by the North Carolina Mechanical Code.
(Code 1961, §§ 27-4, 27-10(a), 27-11(a); Ord. No. 92-65, § 1, 5-18-92; Ord. No. 16-82, § 38, 8-1-16)

Sec. 6-182. Purpose and scope.

It is the purpose and intent of this article to provide certain minimum standards, provisions, requirements and inspections of equipment, appliances, and installations covered by the North Carolina Mechanical and Fuel Gas Code on

premises or in habitable buildings or structures for the protection of the public safety and interest.
(Code 1961, §§ 27-4, 27-5, 27-31; Ord. No. 16-82, § 39, 8-1-16)

Sec. 6-183. Reserved.

Editor's note—Formerly, § 6-183 provided for the applicability of certain state standards re heating, ventilating, air conditioning, etc., systems. Such section, derived from the 1961 Code, § 27-1, was repealed by Ord. No. 96-66, § 9, adopted June 4, 1996.

Sec. 6-184. Use of old or secondhand equipment.

Secondhand equipment must be approved by the mechanical inspector before reuse. All old mechanical or fuel gas equipment must be brought up to current code and obtain the necessary inspections for approval.
(Code 1961, § 27-27(c), (d); Ord. No. 16-82, § 40, 8-1-16)

Secs. 6-185—6-200. Reserved.

Editor's note—Ord. No. 16-82, §§ 41, 42, adopted Aug. 1, 2016, repealed §§ 6-185 and 6-186 in their entirety. Former §§ 6-185 and 6-186 pertained to water problem and welding respectively and derived from the Code of 1961, §§ 27-27(c), (f).

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Part A. General Provisions

Sec. 6-201. General duties of mechanical inspector.

It shall be the duty of the mechanical inspector:

(1) To enforce all state and local laws governing mechanical and fuel gas installations materials.

(2) To issue permits for and to make inspections of all new mechanical and fuel gas installations and such other permits and inspections as may be prescribed by the city council.

(3) To grant permits for the installation or alteration of mechanical or fuel gas appliances and equipment and make inspections for all new mechanical or fuel gas installations and re-inspections as provided in this article.

(4) To keep complete records of all permits issued, inspections and reinspections made, fees collected, and other official work performed in accordance with the provisions of this chapter.

(5) Perform other duties that may be required by the city manager in connection with the administration and enforcement of this article and other applicable mechanical and fuel gas equipment regulations.

(Ord. No. 16-82, § 43, 8-1-16)

Editor's note—Ord. No. 16-82, § 43, adopted Aug. 1, 2016, amended § 6-201 in its entirety to read as set out herein. Former § 6-201 pertained to enforcement generally and derived from the Code of 1961, §§ 27-6, 27-7.

Sec. 6-202. Right of entry of mechanical inspector; authority to disconnect service.

The mechanical inspector shall have the right:

(1) To enter during reasonable hours in accordance with applicable law any building in the discharge of their official duties, or for the purpose of making any inspection, reinspection or test of the installation of mechanical and fuel gas devices, appliances and equipment contained therein.

(2) To disconnect, or order the discontinuance of mechanical or fuel gas devices, appliances or equipment found to be dangerous to life or property because it is defective or defectively installed until such devices, appliances and equipment and their installation have been made safe and approved by the mechanical inspector.

(Ord. No. 16-82, § 44, 8-1-16)

Editor's note—Ord. No. 16-82, § 44, adopted Aug. 1, 2016, amended § 6-202 in its entirety to read as set out herein. Former § 6-202 pertained to entry powers of city officials and derived from the Code of 1961, § 27-8.

State law reference—Administrative search and inspection warrants, G.S. § 15-27.2.

Sec. 6-203. Reserved.

Editor's note—Ord. No. 16-82, § 45, adopted Aug. 1, 2016, repealed § 6-203 in its entirety. Former § 6-203 pertained to appeals and modifications and derived from the Code of 1961, § 27-9.

Sec. 6-204. Condemnation of unsafe, etc., installations.

(a) The mechanical inspector may condemn any mechanical or fuel gas system, or part thereof, units, apparatus, or appurtenances which are not installed, altered, or restored in accordance with the provisions of this article. In the interest of public safety, the mechanical inspector shall have the authority to condemn any mechanical or fuel gas system or part thereof which is a detriment to safety and require that same be remedied immediately.

(b) If the mechanical inspector has reason to believe that an unsafe condition exists in habitable buildings or on premises, they may require the owner or agent thereof to provide for tests, and if defective materials or workmanship are revealed by such test, the owner or agent shall immediately repair the system in accordance with the direction of the mechanical inspector.
(Code 1961, §§ 27-8, 27-23; Ord. No. 16-82, § 46, 8-1-16)

Sec. 6-205. Stop work order.

Whenever it is found that the installation, alteration, or repair covered by this article is proceeding in violation of this article, a written order to stop work shall be posted on the premises. The stop work order shall pertain to any part or parts of the construction, alteration, or repair of the system which is in violation.
(Code 1961, § 27-32)

Secs. 6-206—6-219. Reserved.

Part B. Permits and Inspections

Sec. 6-220. Permits required; exceptions.

A permit shall be obtained from the mechanical inspector for the installation, extension, alteration, replacement, or general repair of any new mechanical or fuel gas system including: furnaces, heat pumps, boilers and/or cooling equipment prior to beginning the work. No permit is required to make minor repairs, minor burner service, filters, or replacement of electrical components to an already installed mechanical or fuel gas system. When heating units including electrical air handlers with strip heat, boilers or heat pump condensers are replaced, a permit shall be secured by a properly state licensed contractor, and the new unit shall be inspected.
(Code 1961, §§ 27-14, 27-17; Ord. No. 92-65, § 2, 5-18-92; Ord. No. 98-57, § 1, 4-21-98; Ord. No. 16-82, § 47, 8-1-16)

Editor's note—Ord. No. 16-82, § 47, adopted Aug. 1, 2016, renumbered § 6-221 as § 6-220.

Sec. 6-221. Property owner's permit.

Any person may be permitted to perform mechanical or fuel gas work upon their own property except property intended for rent, sale or gift provided he first makes application for and obtains a property owner's mechanical permit from the mechanical inspector for the work contemplated. The mechanical inspector shall then issue a permit to the applicant to perform the work for which application was made. Such permit shall extend to the applicant only and shall not authorize the applicant to employ the services of any other person to assist him/her/them unless such other person is duly licensed. The permit granted the applicant shall automatically expire upon completion of the work. All work done under permit shall be subject to regular mechanical and fuel gas inspection requirements and fees and shall satisfy all requirements applicable to such work.
(Ord. No. 16-82, § 48, 8-1-16; Ord. No. 20-163, § 3, 12-15-20)

Sec. 6-222. Persons eligible for permits.

Permits to install mechanical or fuel gas equipment, appliances or installations shall be issued only to licensed mechanical contractors or the owner working on the residence in which he/she/they lives.

Exception: Gas appliances, piping, and heat producing appliances which have no duct system or forced air blower shall be permitted and

installed by a licensed plumbing and/or mechanical contractor or by the owner of the residence in which he/she/they lives.
(Code 1961, § 27-15; Ord. No. 94-126, § 1, 11-21-94; Ord. No. 16-82, § 49, 8-1-16; Ord. No. 20-163, § 3, 12-15-20)

Sec. 6-223. Securing permits for another.

No licensed mechanical contractor shall secure a permit under this division from the mechanical inspector for another person.
(Code 1961, § 27-16; Ord. No. 16-82, § 50, 8-1-16)

Sec. 6-224. Revocation of permits.

At any time during the progress of the installation of mechanical or fuel gas equipment, the mechanical inspector may revoke a permit required by this division for noncompliance with this article.
(Code 1961, § 27-18; Ord. No. 16-82, § 51, 8-1-16)

Sec. 6-225. Inspections required.

All mechanical or fuel gas equipment installations shall be inspected by the mechanical inspector before any part thereof is covered and before such items of gas lines and supply and return lines are set in concrete. All mechanical and fuel gas systems will be inspected in their entirety.
(Code 1961, §§ 27-20, 27-27(b), 27-29; Ord. No. 87-87, § 1, 7-2-87; Ord. No. 92-65, § 3, 5-18-92; Ord. No. 16-82, § 52, 8-1-16)

Sec. 6-226. Final inspection.

Upon completion of any installation for which a permit and inspection is required by this division, it shall be the duty of the person installing same to notify the mechanical inspector, who shall inspect the installation as soon thereafter as practicable.
(Code 1961, § 27-21; Ord. No. 16-82, § 53, 8-1-16)

Sec. 6-227. Final certificate of inspection.

After the final inspection and test of mechanical or fuel gas equipment, if the mechanical inspector approves of the installation, alteration, or repairs, they shall issue a certificate of compliance to the mechanical contractor. A property owner or their agent shall be entitled to a copy of the certificate upon request to the mechanical inspector.
(Code 1961, § 27-25; Ord. No. 16-82, § 54, 8-1-16)

Sec. 6-228. Materials and labor for tests.

All equipment, material, power, and labor necessary for inspection and tests under this article shall be furnished by the mechanical contractor.
(Code 1961, § 27-24; Ord. No. 16-82, § 55, 8-1-16)

Sec. 6-229. Schedule of fees.

(a) Before any permit is granted for the installation or alteration of mechanical or fuel gas equipment, the person making application for such permit shall pay to the city permit clerk a fee in such amount as specified below, or the fees may be paid to the city permit clerk on or before the tenth day of the month following date of application for permit; provided, that in the event of default in payment of fees, no permit will be issued to or application received from the person in default until such time as the fees are paid in full:

	Fees
Air tanks	$ 10.00
Bun warmers	10.00
Clothes dryers	10.00
Coffee urns	10.00
Deep fat fryers	10.00
Extra inspections	10.00
Fire logs	10.00
Gas connections	10.00
Gas house piping	10.00
Gas lights	10.00
Grills	10.00
L.P. gas service	10.00
Meter relocation	10.00
Ovens	10.00
Ranges	10.00

Steam tables	10.00
Water heaters—Fired coil*	10.00
Water storage tanks	10.00
L.P. gas tank	10.00
First followup inspection fee	45.00
Second and each subsequent followup inspection	45.00

*If one (1) contractor does both the plumbing and gas connections for a replacement water heater, the charge is eighty-five dollars ($85.00).

Minimum fee: The total of fees due for any permit shall be not less than eighty-five dollars ($85.00).

(b) [Heat-producing equipment.]

(1) All heat-producing equipment—Gas (natural or liquified petroleum), oil, solid fuels, and electric heat (air distribution systems) shall be inspected and the following fees paid:

	Fees
Wood stoves	$15.00
Floor furnaces	15.00
Space heaters	15.00
Unit heaters, less than 100 B.T.U. (over 100,000 B.T.U., see schedule below)	15.00
Wall heaters	15.00

(2) According to B.T.U. input—Electric heat (air distribution systems), steel and cast iron boilers, hot water and steam systems, conversion burners (automatic firing), heat exchangers, and warm air and cooling systems, and water heaters over one hundred thousand (100,000) B.T.U., gas fired pool heater:

KW	*B.T.U.*	*Fee Schedule*
1 up to 29	Up to 100,000	$15.00
29.1—44	101,000—150,000	17.00
44.1—59	151,000—200,000	19.00
59.1—73	201,000—250,000	23.00
73.1—79	251,000—300,000	25.00
79.1—117	301,000—400,000	28.00
117.1—146	491,000—500,000	31.00
146.1—174	501,000—600,000	34.00
175.1—234	601,000—800,000	38.00
234.1—293	801,000—1,000,000	40.00
	Over 1,000,000: per 500,000 or part thereof	15.00

(3) Nonresidential hood system face area of hood (square feet):

10 or less	$18.00
10.1 to [25]	23.00
25.1 to 50	29.00
50.1 to 75	33.00
75.1 to 100	39.00
Above 100	52.00

(c) Heat pumps and air conditioners, chillers or refrigeration compressor rating—All heat pumps and air conditioners shall be inspected and the following fees paid:

Compressor up to:	
Up to 5 H.P. or tons	$15.00
6—7 H.P. or tons	16.00
8 H.P. or tons	18.00
9 H.P. or tons	20.00
10 H.P. or tons	22.00
12½ H.P. or tons	24.00
15 H.P. or tons	26.00
20 H.P. or tons	35.00
25 H.P.	42.00
Each addition to 5 H.P. or 5 tons or part thereof	15.00

(d) Fan coil units, air handling units with heating and/or cooling coils and ductwork attached, shall be inspected and the following fees paid:

0—6,000 B.T.U.	$ 8.00
6,001—12,000 B.T.U.	10.00

12,001—20,000 B.T.U.	12.00
20,001—30,000 B.T.U.	16.00
30,001—40,000 B.T.U.	18.00
Over 40,001 B.T.U.	25.00

(e) Blower and exhaust systems for dust, stock, flammable, and non-flammable vapor removal and conveying including bathroom exhaust fans:

Motor Horsepower	
0—5 H.P.	$ 8.00
6—10 H.P.	11.00
11—15 H.P.	14.00
16—20 H.P.	17.00
21—25 H.P.	19.00
26 H.P. and over	35.00

(f) Replacement of duct system, renovation, alteration, addition to new or already installed duct system, for comfort heating or cooling:

Truck line (each)	$7.00
Branch line (each)	3.00

(g) Permit fees for installation or replacement of any evaporative cooler in other than residences and multi-family houses, shall be:

0—25 H.P.	$20.00
26 H.P. and over	35.00

(h) Upon the return of any mechanical permit issued under this section, an amount equal to the minimum mechanical permit fee shall be retained by the inspector to cover administrative expenses connected with the issuance thereof.

(i) For failure of a person to apply for and obtain a mechanical permit as required prior to commencement of a job, there shall be an additional fee in an amount equal to the permit fee itself.
(Code 1961, §§ 27-22, 27-30; Ord. No. 87-87, § 1, 7-2-87; Ord. No. 90-30, § 3, 3-1-90; Ord. No. 92-65, § 4, 5-18-92; Ord. No. 93-47, § 2, 6-3-93; Ord. No. 96-66, §§ 4, 5, 6-4-96; Ord. No. 06-140, § 3, 6-20-06; Ord. No. 14-081, § 3, 6-17-14; Ord. No. 16-82, § 56, 8-1-16; Ord. No. 24-103, § 3, 7-16-24)

Cross reference—Fees, § 5.73.

Secs. 6-230—6-240. Reserved.

DIVISION 3. CONTRACTORS, ETC.*

Secs. 6-241, 6-242. Reserved.

Editor's note—Ord. No. 16-82, §§ 57, 58, adopted Aug. 1, 2016, repealed §§ 6-241, 6-242 in their entirety. Former §§ 6-241, 6-242 pertained to heating and refrigeration examining board; and examination of mechanics respectively and derived from Ord. No. 06-154, §§ 6, 7, adopted July 18, 2006.

Sec. 6-243. Supervision of work, etc.

(a) No person shall engage in the business of installing, repairing or altering refrigeration, heating and/or cooling equipment in the city unless the work performed in the course of such business is under the direct supervision of a licensed refrigeration, plumbing or heating and/or cooling contractor, except that repairs may be made by a certified serviceman.

(b) All work must be done under the supervision of a licensed and bonded contractor.
(Code 1961, §§ 27-10(b), 27-27(a); Ord. No. 16-82, § 59, 8-1-16)

Sec. 6-244. Gas lines.

All gas lines must be installed and discontinued by a licensed and bonded contractor.
(Code 1961, § 27-28)

Secs. 6-245—6-260. Reserved.

*__Cross reference—__Licenses, taxation and miscellaneous business regulations, Ch. 13.

State law references—State regulation of plumbing and heating contractors, G.S. § 87-16 et seq.; state regulation of refrigeration contractors, G.S. § 87-52 et seq.

ARTICLE V. PLUMBING*

DIVISION 1. GENERALLY

Sec. 6-261. Civil liability.

This article shall not be construed to relieve from or lessen the responsibility of liability of any party owning, operating, controlling or installing any plumbing devices, appliances or equipment for damages to person or property caused by any defect therein, nor shall the city be held as assuming any such liability by reason of the inspection authorized herein or the certificate of approval issued as herein provided.
(Ord. No. 16-82, § 60, 8-1-16)

Sec. 6-262. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Licensed plumbing contractor means a person who holds a current license issued by the state board of examiners of refrigeration, plumbing and heating contractors, in accordance with the provisions of G.S. ch. 87, arts. 2 and 5.

Plumbing includes all equipment, appliances, and installations covered by the North Carolina Plumbing Code.
(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-263. Purpose and scope.

It is the purpose and intent of this article to provide certain minimum standards, provisions, requirements and inspections of equipment, appliances, and installations covered by the North Carolina Plumbing Code on premises or in habitable buildings or structures for the protection of the public safety and interest.
(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-264. Use of old or secondhand equipment.

Secondhand equipment must be approved by the plumbing inspector before reuse. All old plumbing equipment must be brought up to current code and obtain the necessary inspections for approval.
(Ord. No. 16-82, § 64, 8-1-16)

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Part A. General Provisions

Sec. 6-265. General duties of plumbing inspector.

It shall be the duty of the plumbing inspector:

(1) To enforce all state and local laws governing plumbing installations materials.

(2) To issue permits for and to make inspections of all plumbing installations and such other permits and inspections as may be prescribed by the city council.

(3) To grant permits for the installation or alteration of plumbing appliances and equipment and make inspections for all new plumbing installations and reinspections as provided in this article.

(4) To keep complete records of all permits issued, inspections and reinspections made, fees collected, and other official work performed in accordance with the provisions of this chapter.

(5) Perform other duties that may be required by the city manager in connection with the administration and enforcement of this article and other applicable plumbing equipment regulations.

(Ord. No. 16-82, § 64, 8-1-16)

*__Editor's note—__Ord. No. 16-82, §§ 60—64, adopted Aug. 1, 2016, amended Art. V in its entirety. Former Art. V, §§ 6-262, 6-276—6-278, pertained to similar subject matter and derived from the Code of 1961, § 28-2; Ord. No. 87-88, § 1, adopted July 2, 1987; Ord. No. 90-30, § 4, adopted March 1, 1990; Ord. No. 93-47, § 3, adopted June 3, 1993; Ord. No. 93-86, § 1, adopted July 29, 1993; Ord. No. 96-66, §§ 6—9, adopted June 4, 1996; Ord. No. 06-140, § 4, adopted June 20, 2006; Ord. No. 06-154, §§ 8—10, adopted July 18, 2006; Ord. No. 14-081, § 4, June 17, 2014.

Sec. 6-266. Right of entry of plumbing inspector; authority to disconnect service.

The plumbing inspector shall have the right:

(1) To enter during reasonable hours in accordance with applicable law any building in the discharge of their official duties, or for the purpose of making any inspection, reinspection or test of the installation of plumbing devices, appliances and equipment contained therein.

(2) To disconnect, or order the discontinuance of plumbing devices, appliances or equipment found to be dangerous to life or property because it is defective or defectively installed until such devices, appliances and equipment and their installation have been made safe and approved by the plumbing inspector.

(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-267. Condemnation of unsafe, etc., installations.

(a) The plumbing inspector may condemn any plumbing system, or part thereof, units, apparatus, or appurtenances which are not installed, altered, or restored in accordance with the provisions of this article. In the interest of public safety, the plumbing inspector shall have the authority to condemn any plumbing system or part thereof which is a detriment to safety and require that same be remedied immediately.

(b) If the plumbing inspector has reason to believe that an unsafe condition exists in habitable buildings or on premises, they may require the owner or agent thereof to provide for tests, and if defective materials or workmanship are revealed by such test, the owner or agent shall immediately repair the system in accordance with the direction of the plumbing inspector.

(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-268. Stop work order.

Whenever it is found that the installation, alteration, or repair covered by this article is proceeding in violation of this article, a written order to stop work shall be posted on the premises. The stop work order shall pertain to any part or parts of the construction, alteration, or repair of the system which is in violation.

(Ord. No. 16-82, § 64, 8-1-16)

Part B. Permits and Inspections

Sec. 6-269. Permit and inspection required; exceptions.

A permit shall be obtained from the plumbing inspector for the installation, extension, alteration, or general repair of any plumbing system, in accordance with the provisions of this article; however, the provisions of this article shall not apply to those who make minor repairs or replacements on the house side of a trap to an installed system of plumbing, provided such repairs or replacements do not disrupt the original water supply or the waste or ventilating systems. If a fixture is replaced, a permit shall be secured and the new fixture shall be inspected.

(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-270. Property owner's permit.

Any person may be permitted to perform plumbing work upon their own property except property intended for rent, sale or gift provided he/she/they first makes application for and obtains a property owner's plumbing permit from the plumbing inspector for the work contemplated. The plumbing inspector shall then issue a permit to the applicant to perform the work for which application was made. Such permit shall extend to the applicant only and shall not authorize the applicant to employ the services of any other person to assist him/her/them unless such other person is duly licensed. The permit granted the applicant shall automatically expire upon completion of the work. All work done under permit shall be subject to regular plumbing inspection requirements and fees and shall satisfy all requirements applicable to such work.

(Ord. No. 16-82, § 64, 8-1-16; Ord. No. 20-163, § 3, 12-15-20)

Sec. 6-271. Persons eligible for permits.

Permits to install plumbing equipment, appliances or installations shall be issued only to licensed plumbing contractors or the owner working on the residence in which he/she/they lives.
(Ord. No. 16-82, § 64, 8-1-16; Ord. No. 20-163, § 3, 12-15-20)

Sec. 6-272. Securing permits for another.

No licensed plumbing contractor shall secure a permit under this division from the plumbing inspector for another person.
(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-273. Revocation of permits.

At any time during the progress of the installation of plumbing equipment, the plumbing inspector may revoke a permit required by this division for noncompliance with this article.
(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-274. Inspections required.

All plumbing equipment installations shall be inspected by the plumbing inspector before any part thereof is covered. All plumbing systems will be inspected in their entirety.
(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-275. Final inspection.

Upon completion of any installation for which a permit and inspection is required by this division, it shall be the duty of the person installing same to notify the plumbing inspector, who shall inspect the installation as soon thereafter as practicable.
(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-276. Final certificate of inspection.

After the final inspection and test of plumbing equipment, if the plumbing inspector approves of the installation, alteration, or repairs, they shall issue a certificate of compliance to the plumbing contractor. A property owner or their agent shall be entitled to a copy of the certificate upon request to the plumbing inspector.
(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-277. Materials and labor for tests.

All equipment, material, power, and labor necessary for inspection and tests under this article shall be furnished by the plumbing contractor.
(Ord. No. 16-82, § 64, 8-1-16)

Sec. 6-278. Schedule of fees.

(a) Before any permit is granted for the installation or alteration of plumbing equipment, the person making application for such permit shall pay to the city permit clerk a fee in such amount as specified below, or the fees may be paid to the city permit clerk on or before the tenth day of the month following date of application for permit; provided, that in the event of default in payment of fees, no permit will be issued to or application received from the person in default until such time as the fees are paid in full:

(1) Minimum fee: the total of fees due for any permit shall be not less than eighty-five dollars ($85.00). The following fees shall be charged for inspections:

Air conditioning unit	$ 7.00
Backflow preventer	15.00
Bathtub	7.00
Catch basin	7.00
Dental chair	7.00
Drinking fountain	7.00
Feedwater treatment unit	7.00
Floor drain	7.00
Garbage disposal unit	7.00
Interceptor	7.00
Laundry tray	7.00
Lavatory	7.00
Miscellaneous fixture not otherwise listed	7.00
Roof leaders	7.00
Shower	7.00
Sink	7.00
Trailer coach (each space)	7.00
Urinals	7.00

Washing machine	$7.00
Water closet	$7.00
Water softener unit	$7.00
Water storage tank	$7.00
Electric water heater	$7.00
Fired coil water heater	$7.00
Fired storage water heater	$7.00
Sewer	$7.00
Minimum inspection fee	$85.00
First follow-up inspection fee	$45.00
Second and each subsequent follow-up inspection fee	$45.00

(2) The fees prescribed above shall apply to all old work as well as new and to inspections made necessary by moving any house from one (1) location to another or by raising the house and shall apply when it is necessary for any reason to set, reset or replace any fixture, hot water storage tank, or water heater.

(3) Upon the return of any plumbing permit issued under this section, an amount equal to the minimum plumbing permit fee shall be retained by the inspector to cover administrative expenses connected with the issuance thereof.

(4) For failure of a person to apply for and obtain any plumbing permit as required prior to commencement of a job, there shall be an additional fee in an amount equal to the permit fee itself.

(Ord. No. 16-82, § 64, 8-1-16; Ord. No. 24-103, § 4, 7-16-24)

Sec. 6-279. Drainage below sewer level.

If the owner of any building or structure starts and installs any plumbing fixtures in or above a floor which is below the top of the nearest downstream manhole on the sewer line which serves the building, the city shall not be liable for any damage arising from such installation, and the owner shall be deemed to have released the City of Greensboro from any claim for damage caused by sewage back up into any such plumbing fixtures.

(Ord. No. 16-82, § 64, 8-1-16)

Secs. 6-280—6-299. Reserved.

ARTICLE VI. NONRESIDENTIAL BUILDING CODE*

DIVISION 1. GENERAL PROVISIONS

Sec. 6-300. Short title.

This article shall be known and may be cited and referred to as the "Nonresidential Building Code of the City of Greensboro" and may be referred to within this article as "this code."

(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-301. Purpose.

Pursuant to G.S. § 160D-1129, it is the purpose of this code to establish minimum standards of maintenance, sanitation, and safety relating to nonresidential buildings or structures, in order to protect the health, safety, and welfare of the city and its residents and citizens including but not limited to owners and occupants of nonresidential buildings or structures, and to prevent and remedy the decay and deterioration of nonresidential buildings and structures. This code provides for the repair, closing or demolition of nonresidential buildings or structures as a result of a public necessity caused by conditions that are dangerous to the public health, safety and welfare.

Additionally, where vacant properties are in violation of these standards, such vacant properties pose special risks to the health, safety, and welfare of citizens and to the peace and dignity of the city and therefore require heightened regulatory attention. Pursuant to its general police power, it is the purpose and intent of the city to therefore adopt a registration requirement for vacant properties which exhibit violations of this code, to facilitate collaboration with property owners to ensure adequate maintenance and security of such vacant properties. Additionally, the city desires to deter crime and theft of

*__Editor's note—__This new article VI of chapter 6 is a reorganization and update to provisions previously located in chapter 11, section 11-45. The new article is therefore provided in full below.

materials, to minimize loss of property value to vacant properties and surrounding occupied properties, to reduce risk of damage from fire, flooding or other hazards, and to promote the comfort, happiness and emotional stability of area residents. The registration requirement identified herein is reflected at subsection 6-334(d) of this article.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-302. Applicability; compliance.

(a) The provisions of this code shall apply to all nonresidential buildings or structures which are now in existence or which may be built within the corporate limits of the city.

(b) Every nonresidential building or structure and the premises on which it is situated shall comply with the provisions of this code, whether or not such building or structure shall have been constructed, altered, or repaired before or after the enactment of this code, and irrespective of any permits or licenses which have been issued for the use or occupancy of the building or structure or for the installment or repair of equipment or facilities. This code establishes minimum standards for all nonresidential buildings or structures and does not replace or modify standards otherwise established for the construction, repair, alteration, or use of the building or structure contained therein.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-303. Definitions.

The following words, terms and phrases, when used in this code shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Agent means any person, firm or corporation who is responsible for the management, maintenance, operation, renting, leasing or sale of any property, or who makes application for or seeks a permit or certificate on behalf of the owner of any property or who in any other way represents the owner of the property in any particular case.

Alteration, as applied to a building or structure, means a change or rearrangement in the structural parts or in the exit facilities; as enlargement, whether by extending on a side or by increasing in height; or the moving from one location or position to another; and the term "alter" in its various moods and tenses and its participle refers to the making of an alteration.

Approved, as applied to a material, device or mode of construction, means approved by the inspector under this code or by other authority designated by law to give approval in the matter in question.

Area:

(1) As applied to the dimensions of a building, means the maximum horizontal projected area of the building.

(2) As applied to the dimensions of a room, means the total square footage of floor area between finished walls.

Building means, for the purposes of this code, any structure built for the shelter or enclosure of persons, animals or property of any kind. The term "building" shall be construed as if followed by the phrase "or part thereof."

Close means securing the building or structure so that unauthorized persons cannot gain entrance.

Chief of compliance means the City of Greensboro's Chief of Code Compliance, who has been designated as the public officer to enforce this code.

Demolish means the demolition and removal of the entire building or structure, leaving the property free and clear of any debris and without holes or pockets which may retain water.

Garbage means waste materials including, without limitation, the byproduct of animal or vegetable foodstuffs, paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard waste, tins, metals, mineral matter, glass, crockery, dust and the residue from the burning of wood, coal, coke and other combustible material.

Infestation means the presence, within or around a building or structure, of any insects,

rodents or other pests in such number as to constitute a menace to the health, safety or welfare of the occupants or public.

Inspector means any person who is authorized by the chief of compliance to conduct inspections for the purpose of this code.

Nonresidential building or structure means any building or structure which is used or designed for any purpose other than residential occupancy, including accessory structures.

Owner means any person who alone, jointly, or severally with others:

(1) Shall have title in fee simple to, or hold mortgage or deed of trust in, any nonresidential building or structure, with or without accompanying actual possession thereof; or

(2) Shall have charge, care, or control of any nonresidential building or structure as owner or agent of the owner, or as executor, executrix, administrator, administratrix, trustee or guardian of the estate of the owner. Any such person thus representing the actual owner shall be bound to comply with the provisions of this code and of rules and regulations adopted pursuant thereto, to the same extent as if such person were the owner.

Party in interest means all individuals, associations, and corporations who have interests of record in a nonresidential building or structure and any who are in possession thereof.

Pier means a masonry or other material support extending from the ground and footing to and supporting the building or portion thereof. Pier sizes and spacing shall conform to the specifications of the state building code.

Plumbing means and includes all of the following supplied facilities and equipment: gas pipes, gas-burning equipment, water pipes, mechanical sink grinders, waste pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, shower baths, installed clothes washing machines, catch basins, drains, vents and any other similar supplied fixtures, together with all connections to water, sewer or gas lines.

Premises or *property* may be used interchangeably in this code, with both terms meaning any lot or parcel of land inclusive of any building, structures or improvements located thereon.

State building code means the North Carolina State Building Code or any superseding regulation.

Vacant means that a building or structure has not been used for its intended purpose or for any lawful purpose for a period of at least ninety (90) consecutive days.

Vacant industrial warehouse means any building or structure designed for the storage of goods or equipment in connection with manufacturing processes, which has not been used for that purpose for at least one (1) year and has not been converted to another use.

Vacant manufacturing facility means any building or structure previously used for the lawful production or manufacturing of goods, which has not been used for that purpose for at least one (1) year and has not been converted to another use. (Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Sec. 6-304. Designation and powers of the chief of compliance as public officer.

The chief of compliance is hereby designated as the public officer pursuant to G.S. § 160D-1129 with the authority to exercise the powers prescribed herein.

The chief of compliance is authorized to exercise such powers as may be necessary or convenient to carry out and effectuate the purpose and provisions of this code, including the following powers:

(1) To investigate the conditions of nonresidential buildings and structures in the city to determine whether they have been properly maintained in compliance with the minimum standards

established by this code so that the safety or health of the occupants or members of the general public are not jeopardized;

(2) To enter upon property for the purpose of making examinations and inspections provided that such entries shall be made in accordance with law and in such manner as to cause the least possible inconvenience to the persons in possession, if any;

(3) To obtain a duly issued administrative inspection warrant in accordance with G.S. § 15-27.2, if permission to enter is not granted by the owner, the owner's agent, a tenant, or other person legally in possession of the property;

(4) To administer oaths and affirmations, examine witnesses, and receive evidence;

(5) To appoint and fix the duties of such officers, agents, and employees as may be necessary to carry out the purposes of this code;

(6) To delegate any of their functions or powers under this code to other officers and agents;

(7) To take such action, together with other appropriate departments and agencies whether public or private, as may be necessary to effect compliance of nonresidential buildings or structures which are in an unsafe condition;

(8) To issues notices of violation and impose civil penalties;

(9) To keep a record of the results of inspections made under this code; and

(10) To perform such other duties as may be prescribed by this code.

(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-305. Inspections.

For the purpose of making inspections, the public officer is hereby authorized to enter, examine, and survey, at all reasonable times, any nonresidential building or structure as defined in this code. If entry upon the premises for purposes of investigation is necessary, such entry shall be made pursuant to a duly issued administrative inspection warrant in accordance with G.S. § 15-27.2 or with permission of the owner, the owner's agent, a tenant, or other person legally in possession of the premises.

The chief of compliance may, subject to the approval of city council, adopt an inspection program that is based on complaints from tenants, residents, city employees, or stakeholder groups, that raise concerns about specific properties, based on direct knowledge of violations, visual observation of potential violations, or reasonable cause to believe that violations exist.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-306. Civil liability.

Except as may otherwise be provided by statute or local law or ordinance, no officer, agent, or employee of the municipality charged with the enforcement of this code shall be personally liable for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his/her/their duties under this code. No person who institutes, or assists in the prosecution of, a criminal proceeding under this code shall be liable to damages hereunder unless he/she/they acted with malice and without reasonable grounds for believing that the person accused was guilty of an unlawful act or omission.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-307. Procedure for enforcement.

(a) *Preliminary investigation.* Whenever it appears to the public officer that any nonresidential building or structure has not been properly maintained so that the safety or health of its occupants or members of the general public or abutting buildings or structures are jeopardized for failure of the property to meet the minimum standards established by this code, the public officer shall undertake a preliminary investigation.

(b) *Complaint and hearing.* If the preliminary investigation discloses evidence of a violation of the minimum standards established by this code, the public officer shall issue a complaint and cause it to be served upon the owner of and

parties in interest in such nonresidential building or structure. The complaint shall state the charges and contain a notice that a hearing will be held before the public officer at a place therein fixed, not less than ten (10) days or more than thirty (30) days after the serving of such complaint. The owner or any party in interest shall have the right to correct the violation or to file an answer to the complaint and to appear in person, or otherwise, and give testimony at the place and time fixed in the complaint. Any person desiring to do so may attend such hearing and give evidence relevant to the matter being heard. The rules of evidence prevailing in courts of law or equity shall not be controlling in the hearing before the public officer.

(c) *Procedure after hearing; issuance of order.*

(1) If, after notice and hearing, the chief of compliance determines that the nonresidential building or structure has been maintained in that the property meets the minimum standards established by this code, the chief of compliance shall state in writing findings of fact in support of that determination and shall issue and cause to be served upon the owner thereof a copy of said determination and the matter shall be closed.

(2) If, after notice and hearing, the chief of compliance determines that the nonresidential building or structure has not been properly maintained so that the safety or health of its occupants or members of the general public is jeopardized for failure of the property to meet the minimum standards established by this code, the chief of compliance shall state in writing findings of fact in support of that determination and shall issue and cause to be served upon the owner thereof an order in accordance with the provisions of either subsection (c)(3) or (c)(4) and subject to the limitations set forth in this code.

(3) If the chief of compliance determines that the cost of repair, alteration, or improvement of the nonresidential building or structure would not exceed sixty-five (65) percent of its then current value, then the chief of compliance shall state in writing the findings of fact in support of such determination and issue an order that requires the owner, within a reasonable time specified in the order, but not less than thirty (30) days nor more than ninety (90) days, to either:

a. Repair, alter, or improve the nonresidential building or structure in order to bring it into compliance with the minimum standards established by this code; or

b. Vacate and close the nonresidential building or structure for any use.

(4) If the public officer determines that the cost of repair, alteration, or improvement of the nonresidential building or structure would exceed sixty-five (65) percent of its then current value, then the chief of compliance shall state in writing the findings of fact in support of such determination and issue an order that requires the owner, within a reasonable time specified in the order, but not less than thirty (30) days nor more than ninety (90) days, to either:

a. Remove or demolish the nonresidential building or structure; or

b. Repair, alter or improve the nonresidential building or structure to bring it into compliance with the minimum standards established by this code.

(d) *Extensions of time granted by inspector; additional extensions by chief of compliance.* If, within the time fixed by the inspector for repairing, altering or improving such building, the inspector finds there has been substantial compliance with the provisions of the order or that the owner has filed with the inspector a written request for additional time to make repairs and provides written documentation for the need of additional time, the inspector may extend the time for compliance with the provisions for the order for an additional period of time; however the total time given by an inspector shall not

exceed ninety (90) days. The chief of compliance or their designee may grant additional extensions upon receipt of a written request stating the reasons for the extension, including any written supporting documentation, during the initial period or any extension period granted by the inspector. The grant of any extensions, either by an inspector or by the chief of compliance or their designee, shall be in writing and must state the cause and conditions of the extension, facts demonstrating substantial progress being made toward compliance, and the amount of time allowed by the extension.

(e) *Failure to comply with order; adoption of ordinance by the minimum housing standards commission.*

(1) If the owner fails to comply with an order to repair, alter, or improve or to vacate and close the nonresidential building or structure, the minimum housing standards commission may adopt an ordinance ordering the public officer to proceed to effectuate the purposes of this section with respect to the particular property or properties that the public officer found to be jeopardizing the health or safety of its occupants or members of the general public. The property or properties shall be described in the ordinance. The ordinance shall be recorded in the office of the register of deeds and shall be indexed in the name of the property owner or owners in the grantor index. Following adoption of an ordinance, the public officer may cause the building or structure to be repaired, altered, or improved or to be vacated and closed. The public officer may cause to be posted on the main entrance of any nonresidential building or structure so closed a placard with the following words: "This building is unfit for any use; the use or occupation of this building for any purpose is prohibited and unlawful." Any person who occupies or knowingly allows the occupancy of a building or structure so posted shall be guilty of a Class 3 misdemeanor.

(2) If the owner fails to comply with an order to remove or demolish the nonresidential building or structure, the minimum housing standards commission may adopt an ordinance ordering the public officer to proceed to effectuate the purpose of this section with respect to the particular property or properties that the public officer found to be jeopardizing the health or safety of its occupants or members of the general public. No ordinance shall be adopted to require demolition of a nonresidential building or structure until the owner has first been given a reasonable opportunity to bring it into conformity with the minimum standards established by the governing body. The property or properties shall be described in the ordinance. The ordinance shall be recorded in the office of the register of deeds and shall be indexed in the name of the property owner or owners in the grantor index. Following adoption of an ordinance, the public officer may cause the building or structure to be removed or demolished.

(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-308. Limitations on orders and ordinances—historic landmark or historic district.

Notwithstanding any other provision of law, if the nonresidential building or structure is designated as a local historic landmark, listed in the National Register of Historic Places, or located in a locally designated historic district or in a historic district listed in the National Register of Historic Places and the minimum housing standards commission determines, after a public hearing, that the nonresidential building or structure is of individual significance or contributes to maintaining the character of the district, and the nonresidential building or structure has not been condemned as unsafe, an order issued by the chief of compliance or an ordinance approved by the minimum housing standards commission pursuant to this code may only require that the nonresidential building or

structure be vacated and closed until it is brought into compliance with the minimum standards established by this code.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-309. Same—vacant manufacturing facility or vacant industrial warehouse.

Notwithstanding any other provision of law, an order issued by the chief of compliance or an ordinance approved by the minimum housing standards commission pursuant to this code may not require repairs, alterations, or improvements to be made to vacant manufacturing facilities or vacant industrial warehouse facilities to preserve the original use. The order and ordinance may require such building or structure to be vacated and closed, but repairs may be required only when necessary to maintain structural integrity or to abate a health or safety hazard that cannot be remedied by ordering the building or structure closed for any use.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-310. Abandonment of intent to repair, vacated and closed nonresidential buildings or structures.

(a) If the minimum housing standards commission has adopted an ordinance or the public officer has issued an order requiring the building or structure to be repaired or vacated and closed and the building or structure has been vacated and closed for a period of two (2) years pursuant to the ordinance or order, then the minimum housing standards commission may make findings that the owner has abandoned the intent and purpose to repair, alter, or improve the building or structure and the continuation of the building or structure in its vacated and closed status would be inimical to the health, safety, and welfare of the city in that it would continue to deteriorate, would create fire or safety hazard, would be a threat to children and vagrants, would attract persons intent on criminal activities, or would cause or contribute to blight and the deterioration of property values in the area. Upon such findings, the minimum housing standards commission may, after the expiration of the two-year period, enact an ordinance and serve such ordinance on the owner, setting forth the following:

(1) When the cost to repair the nonresidential building or structure to bring it into compliance with the minimum standards is less than or equal to fifty (50) percent of its then current value, the ordinance shall require that the owner either:

   a. Demolish and remove the nonresidential building or structure within ninety (90) days; or

   b. Repair, alter, or improve the nonresidential building or structure to bring it into compliance with the minimum standards established by this code within ninety (90) days; or

(2) When the cost to repair the nonresidential building or structure to bring it into compliance with the minimum standards exceeds fifty (50) percent of its then current value, the ordinance shall require the owner to demolish and remove the structure within ninety (90) days.

(b) In the case of vacant manufacturing facilities or vacant industrial warehouse facilities, the building or structure must have been vacated and closed pursuant to an order or ordinance for a period of five (5) years before the minimum housing standards commission may take action under this subsection.

(c) The ordinance shall be recorded in the Office of the Register of Deeds for Guilford County and shall be indexed in the name of the property owner in the grantor index.

(d) If the owner fails to comply with the requirements of the ordinance, the chief of compliance shall demolish and remove the nonresidential building or structure.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-311. Methods of service of complaints and orders.

(a) Complaints or orders issued by a public officer under this code shall be served upon persons either personally or by registered or

certified mail so long as the means used are reasonably designed to achieve actual notice. When service is made by registered or certified mail, a copy of the complaint or order may also be sent by regular mail. Service shall be deemed sufficient if the registered or certified mail is refused, but the regular mail is not returned by the post office within ten (10) days after the mailing. If regular mail is used, a notice of the pending proceedings shall be posted in a conspicuous place on the premises affected.

(b) If the identities of any owners or the whereabouts of persons are unknown and cannot be ascertained by the public officer in the exercise of reasonable diligence, and the public officer makes an affidavit to that effect, the serving of the complaint or order upon the owners or other persons may be made by publication in a newspaper having general circulation in the city at least once no later than the time that personal service would be required under the provisions of this code. When service is made by publication, a notice of the pending proceedings shall be posted in a conspicuous place on the premises affected.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-312. Lis pendens.

Any complaint and notice of hearing or order issued pursuant to this code may be filed in the notice of lis pendens in the office of the clerk of the superior court. A copy of the complaint containing a notice of hearing or a copy of the order shall be attached to the lis pendens. When the lis pendens is filed with the clerk, it shall be indexed and cross-indexed in accordance with the indexing procedures of G.S. § 1-117 and it shall be served on the owners of and parties in interest in the building or structure. From the date and time of indexing the complaint and notice of hearing or order, it shall be binding upon the successors and assigns of the owners of and parties in interest in the building or structure. The chief of compliance may cancel the lis pendens upon his determination that the owner of the building or structure has fully complied with the chief of compliance's order.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-313. Costs a lien on the property.

(a) The amount of the cost of repairs, alterations, or improvements, or vacating and closing, or removal or demolition by the public officer shall be a lien against the real property upon which the cost was incurred, which lien shall be filed, have the same priority, and be collected as the lien for special assessment provided in G.S. ch. 160A, art. 10.

(b) The amount of the cost of repairs, alterations or improvements, or vacating and closing, or removal or demolition by the public officer shall be a lien on any other real property of the owner located within the city limits except for the owner's primary residence. The additional lien provided in this subsection is inferior to all prior liens and shall be collected as a money judgment.

(c) If the nonresidential building or structure is removed or demolished by the public officer, the public officer shall offer for sale the recoverable materials of the building or structure and any personal property, fixtures, or appurtenances found in or attached to the building or structure and shall credit the proceeds of the sale, if any, against the cost of the removal or demolition, and any balance remaining shall be deposited in the superior court by the public officer, shall be secured in a manner directed by the court, and shall be disbursed by the court to the persons found to be entitled thereto by final order or decree of the court. Nothing in this section shall be construed to impair or limit in any way the power of the governing body to define and declare nuisances and to cause their removal or abatement by summary proceedings or otherwise.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-314. Minimum housing standards commission to hear appeals.

Where compliance with the order of the chief of compliance, or where the literal application of the provisions of this code, would appear to cause undue hardship on an owner or other party in interest, or when it is claimed that the true intent and meaning of this code or any of the minimum standards or requirements herein have been wrongly interpreted, the owner or other

party in interest may appeal from the order of the chief of compliance to the minimum housing standards commission.

(1) Notice of appeal shall be in writing and filed with the chief of compliance within ten (10) days after service of the order of the chief of compliance. The appeal shall be placed on the agenda for hearing at the first available minimum housing standard commission meeting. In the absence of an appeal, the order of the chief of compliance shall be final.

(2) Upon any such appeal and after a hearing, the minimum housing standards commission may extend the time for compliance with the chief of compliance's order, or vary the application of any provisions of this code in hardship cases when, in its opinion, the enforcement thereof would do manifest injustice and would be contrary to the spirt and purpose of this code or to the public interest, or when, in its opinion, the interpretation of the chief of compliance was wrong and should be modified or reversed. In hardship cases, a hardship peculiar to the appellant must be shown.

   a. Any such decision to extend the time for compliance with an order of the chief of compliance, or to vary the application of any provision of this code or to modify an order of the chief of compliance shall specify in what manner such extension, variation, or modification is made, the conditions upon which it is made, and the reasons therefore.

(3) All decisions of the minimum housing standards commission entered pursuant to this code shall be in writing and shall be promptly filed in the office of the chief of compliance. Such decisions shall be open to public inspection and a certified copy shall be sent by mail, or otherwise, to the appellant.

(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-315. Temporary injunction remedy for aggrieved persons and certiorari review.

(a) Any person aggrieved by an order issued by the chief of compliance or a decision rendered by the minimum housing standards commission may petition the superior court of an injunction restraining the chief of compliance from carrying out the order or decision. The petition shall be filed within thirty (30) days after issuance of the order or rendering of the decision. A hearing on the petition shall be as provided in G.S. §§ 160D-305 and 160D-1208.

(b) Every decision of the minimum housing standards commission pursuant to this code shall be subject to review by the superior court by proceedings in the nature of certiorari instituted within fifteen (15) days of the decision.

(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-316. Ejectment.

If any occupant fails to comply with an order to vacate a nonresidential building or structure, the public officer may file a civil action in the name of the city to remove the occupant. The action to vacate shall be in the nature of summary ejectment and shall be commenced by filing a complaint naming as parties-defendant any person occupying the nonresidential building or structure. The clerk of superior court shall issue a summons requiring the defendant to appear before a magistrate at a certain time, date, and place not to exceed ten (10) days from the issuance of the summons to answer the complaint. The summons and complaint shall be served as provided in G.S. § 42-29. The summons shall be returned according to its tenor, and if on its return it appears to have been duly served and if at the hearing the public officer produces a certified copy of an ordinance adopted by minimum housing standards commission to vacate the occupied nonresidential building or structure, the magistrate shall enter judgment ordering that the premises be vacated and all persons be removed. The judgment ordering that the nonresidential building or structure be vacated shall be enforced in the same manner as the

judgment for summary ejectment entered under G.S. § 42-30. An appeal from any judgment entered under this subsection by the magistrate may be taken as provided in G.S. § 7A-228, and the execution of the judgment may be stayed as provided in G.S. § 7A-227. An action to remove an occupant of a nonresidential building or structure who is a tenant of the owner may not be in the nature of a summary ejectment proceeding pursuant to this subsection unless the occupant was served with notice, at least thirty (30) days before the filing of the summary ejectment proceeding, that the minimum housing standards commission has ordered the public officer to proceed to exercise his duties to vacate and close or remove and demolish the nonresidential building or structure.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-317. Violations; penalty; fees; remedies.

(a) It shall be unlawful for the owner of any nonresidential building or structure to fail, neglect or refuse to repair, alter or improve the same, or to vacate and close or remove or demolish the same, upon order of the chief of compliance duly made and served as herein provided, within the time specified in such order, and each day that any such failure, neglect or refusal to comply with such order continues shall constitute a separate and distinct offense.

(b) It shall be unlawful for the owner or agent of the owner in charge of such nonresidential building or structure with respect to which an order has been issued pursuant to this code, to occupy or permit the occupancy of the same in a dilapidated or deteriorated condition found to be unfit for any use in violation of such order for its repair, alteration or improvement or its vacation, closing or demolition, and each day that such unlawful occupancy continues after the expiration of the time prescribed in the order to repair, alter, improve, vacate, close or demolish such nonresidential building or structure shall constitute a separate and distinct offense.

(c) Any person that fails to comply with any of the provisions of this code shall be subject to an initial civil penalty in the amount of five hundred dollars ($500.00) for the first day of noncompliance and one hundred dollars ($100.00) for each day thereafter until the violation is remedied.

(d) If, within a rolling twelve (12) month period, there is an additional violation of this article at a property, the owner shall be subject to an additional civil penalty of one thousand dollars ($1,000.00) for that violation. For each day the violation is not corrected, a penalty of two hundred fifty dollars ($250.00) per day may be imposed.

(e) These civil penalties may be recovered by the city in a civil action in the nature of debt if the person does not pay the same within thirty (30) days after the initial day of noncompliance.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-318. Alternative remedies.

Enforcement by any remedy provided in this code shall not prevent enforcement by any other remedy provided in this code or in other ordinances or laws.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-319. Conflict with other provisions; severability.

If any provision, standard, or requirement of this code is found to be in conflict with any other ordinance or code of the city, the provision which establishes the higher standard of more stringent requirement for the promotion and protection of health and safety of the citizens of the city shall prevail.

If any section, subsection, paragraph, sentence, clause, or phrase of this division is for any reason held to be invalid, such decision shall not affect the validity of the remaining portions of this division. The city council hereby declares that it would have passed the ordinance from which this division derives, and each section, subsection, paragraph, sentence, clause, or phrase thereof, irrespective of the fact that any one (1) or more sections, subsections, paragraphs, sentences, clauses, or phrases are declared invalid.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Secs. 6-320—6-329. Reserved.

DIVISION 3. MAINTENANCE AND RELATED STANDARDS

Sec. 6-330. Maintenance standards in general.

Only electrical, mechanical and plumbing devices and systems which are (i) intended to be used at the time of inspection; (ii) being used at the time of inspection; or (iii) required by law at the time of inspection are subject to the applicable portions of this code.

Upon discovery of any possible violation related to provisions of the North Carolina State Building Code or the North Carolina Fire Code, including fire protection and life-safety systems, a referral shall be made to the chief building inspector and/or to the Greensboro Fire Department, fire marshal's office, for inspection and enforcement.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-331. External maintenance standards.

(a) *Exit requirements.*

(1) Minimum number of exits shall conform to the requirements of the state building code as applicable.

(2) Every stairway, deck, porch, and balcony, and all appurtenances attached thereto, including without limitation, handrails and guardrails, shall be maintained in a structurally sound condition and compliant with all other applicable standards in this article. Each shall be properly anchored and capable of supporting live or dead loads.

(b) *Electrical facilities.*

(1) No receptacles, ceiling fixtures, or other fixtures shall be hanging loose, unless designed and rated for that purpose.

(2) All switches and receptacles shall be safe.

(3) There shall be no unsafe wiring.

(4) There shall be no drop or extension cords in excess of six (6) feet in length used in place of permanent wiring.

(5) No circuits shall be overloaded.

(6) Fuses shall be sized correctly and not bridged out.

(7) All wiring shall be in accordance with the National Electrical Code.

(8) All breaker boxes, wiring, junction boxes, busways, or other electrical enclosures shall be in good condition and maintained to prevent shock hazard.

(c) *Exterior walls.*

(1) There shall be no unsafe wall conditions such that the plumbline from the top center of studs falls outside the base plate at any point along the wall.

(2) Maximum spacing for studding, providing they show signs of being weak or overloaded, shall comply with the requirements of the state building code.

(3) Studs or other structural members shall be structurally sound and not likely to cause structural weakness in the future.

(4) There shall be no broken or cracked structural members.

(5) All siding shall be reasonably weathertight, with no holes or excessive cracks or decayed boards, or siding material.

(6) There shall be no loose siding.

(7) There shall be no deterioration because of lack of preventative maintenance consisting of painting, waterproofing and repair.

(8) All door fenestration shall be in operable condition.

(d) *Roofs.*

(1) All structural members shall be maintained free from deterioration, and shall be capable of safely supporting the dead and live loads, including rafters and ceiling, or floor joists.

(2) The roof and flashing shall be sound, tight and not have defects which admit water or rain. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior of the structure. Roof drains, gutters, scuppers, and downspouts shall be maintained in good repair, and free from obstructions. Roof water shall not be discharged in a manner that creates a health or safety hazard.

(e) *Porches, vestibules and external covered areas.*

(1) The floor, ceiling, and roof shall be equal to requirements set forth in this code, except sills, joists and floors need not be level if providing drainage of floors; floors need not be weathertight.

(2) Every stairway, deck, porch and balcony, and all appurtenances attached thereto, including, without limitation, handrails and guardrails, shall be maintained in a structurally sound condition and compliant with all other applicable standards in this article. Each shall be properly anchored, and capable of supporting imposed loads.

(f) Windows, where provided, including frames, sash components, and glazing shall be maintained in good condition, with no broken, cracked, or missing glazing.

(g) *Property maintenance.*

(1) *Building structure.* Exterior wood surfaces not inherently resistant to deterioration shall be treated with a protective coating of paint or other suitable preservative with sufficient frequency to prevent deterioration.

(2) *Open areas.* There shall be no heavy undergrowth or accumulation of plant growth which is noxious or detrimental to health, or because it is overgrown, may provide harborage for criminal activity.

(3) *Infestation.* Grounds, buildings and structures shall be maintained free of infestation by rodents, insects and other pests.

(4) *Chimneys and towers.* All chimneys, cooling towers, smoke stacks and similar appurtenances shall be maintained structurally safe and sound, and in good repair. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather coating materials, such as paint or similar surface treatment.

(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-332. Interior maintenance standards.

(a) *In general.* The interior of a structure, including wall and ceiling coverings, and equipment therein shall be maintained in good order, shall be structurally sound, and be in a sanitary condition. Occupants shall keep that part of the building or structure which they occupy or control in a clean and sanitary condition.

(1) *Exit requirements.* Minimum number of exits shall conform to the requirements of the state building code as applicable.

(2) *Plumbing systems and facilities.*

a. In general, all fixtures and piping shall be properly installed and maintained in working order, and shall be kept free from obstructions, leaks and defects. All plumbing shall be capable of performing the function for which such plumbing fixtures are designed. All plumbing fixtures shall be maintained in a safe, sanitary and functional condition.

b. Plumbing fixtures shall have adequate clearance for usage and cleaning.

c. Where it is found that a plumbing system in a building or structure creates an unsafe condition that is hazardous to the occupants, or by reason of inadequate service,

inadequate venting, cross connection, back-siphonage, improper installation deterioration or damage, or for similar reasons, the chief of compliance shall require the defects to be corrected to eliminate the unsafe condition.

(3) *Heating facilities.*

a. Building shall be weatherproof.

b. Heating systems shall be maintained in good order and repair and shall be of sufficient capacity so as to heat all occupied areas in accordance with the state building code.

c. All safety controls and all clearances to combustible materials for electrical equipment which produces heat shall be maintained in effective operation.

d. Other heating facilities, where provided, shall meet the requirements of the state building code.

e. All electric, gas and heating oil heating equipment installed on the property shall be listed by Underwriters' Laboratories, Inc. or American Gas Association and installed in accordance with the provisions of the state building code.

f. All mechanical appliances, including ventilation and air conditioning or cooling systems, or appliances shall be properly installed and maintained in a safe working condition, and shall be capable of performing the intended function.

g. All fuel burning equipment or appliances shall be connected to an approved chimney or vent. Fuel burning equipment and appliances labeled for unvented use are an exception to this requirement.

h. All required clearances to combustible materials shall be maintained.

i. All safety controls for fuel burning equipment shall be maintained in effective operation.

(4) *Electrical facilities.*

a. No receptacles, ceiling fixtures, or other fixtures shall be hanging loose unless designed and rated for that purpose.

b. All switches and receptacles shall be safe.

c. There shall be no unsafe wiring.

d. There shall be no drop or extension cords in excess of six (6) feet in length used in place of permanent wiring.

e. No circuits shall be overloaded.

f. Fuses shall be sized correctly and not bridged out.

g. All wiring shall be in accordance with the National Electrical Code.

(5) *Structural standards.*

a. *Foundation.*

1. Beneath the building or structure there shall be firm ground, which is reasonably dry, properly drained and no water shall be running under the building or structure.

2. There shall be sound footings and adequate bearing.

3. There shall be sound piers and no loose mortar or masonry.

4. There shall be no piers in which the plumbline from the top center falls outside the middle one-third (⅓) of the pier base.

5. There shall be no isolated masonry piers exceeding in height ten (10) times the least dimension of the pier.

6. There shall be no wood stiff-knee piers.

b. *Floors.*

1. Flooring shall be weathertight without holes or excessive cracks which permit air to penetrate rooms.
2. Flooring or floor covering shall be reasonably smooth and not decayed, fire damaged or worn through.
3. There shall be no loose flooring.
4. Floors shall be reasonably level.
5. All structural members shall be maintained free from deterioration, and shall be capable of safely supporting the dead and live loads.

c. *Interior load bearing walls.*

1. There shall be no unsafe wall conditions such that the plumbline from the top center studs falls outside the base plate at any point along the wall.
2. Maximum spacing for studding, providing the studs show signs of being weak or overloaded, shall comply with the requirements of the state building code.
3. Studs or other structural members, including posts and columns, shall be structurally sound and not likely to cause structural weaknesses in the future.
4. There shall be no broken or cracked structural members.

d. *Interior porches, landings and vestibules.*

1. The floor and ceiling shall be equal to the requirements set forth in this code.
2. Every stairway, deck, porch and balcony and all appurtenances attached thereto, including, without limitation, handrails and guardrails, shall be maintained in a structurally sound condition and in good repair.
3. Any interior porch, landing or vestibule shall be properly anchored and capable of supporting live and dead loads.

(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-333. Property maintenance standards.

(a) *Building structure.* Storage of combustible materials is prohibited unless the building or structure is designed for that purpose.

(b) *Open areas.*

(1) Surface and subsurface water shall be appropriately drained to protect buildings and structures and to prevent development of stagnant pools.

(2) Fences, sheds, signs, outbuildings, and other accessory buildings shall be maintained in a safe and functional condition or removed or demolished.

(3) Yards, courts, parking lots, and driveways shall be kept clean and free of physical hazards, garbage, junk, junked vehicles, vehicle parts and other similar material.

(4) There shall be no heavy undergrowth or accumulation of plant growth which is noxious or detrimental to health, or because it is overgrown, may provide harborage for criminal activity.

(5) There shall be adequate lighting to prevent harborage for criminal activity.

(c) *Infestation.* Grounds, buildings and structures shall be maintained free of infestation by rodents, insects and other pests.

(d) *Garbage.* There shall be adequate sanitary facilities and methods for the storage, handling and disposal of garbage generated on or by the property.

(e) *Storm drainage.* Drainage of paved areas, yards, courts and other open areas on the property shall not be discharged in a manner that creates a health or safety hazard.
(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

Sec. 6-334. Vacant buildings or structures.

(a) The interior maintenance standards set forth in section 6-332 shall not apply to vacant nonresidential buildings or structures (or vacant portions thereof if required fire separation exists between the occupied and unoccupied portions of the building or structure) unless one (1) or more of the following serious conditions is present on the property:

(1) Overall conditions present a serious health or safety hazard.

(2) The building or structure is a breeding area for rodents or insects.

(3) The building or structure presents a fire hazard.

(4) The building or structure is structurally unsafe and presents a threat to the safety of code enforcement personnel, fire department personnel and law enforcement officers or members of the general public.

(5) The building or structure is not properly secured to prevent unauthorized access, including by vagrants.

(b) Vacant properties subject to this article shall be maintained in a secure manner as not to be accessible to unauthorized persons. This includes, without limitation, the closure and locking of windows, doors (including but not limited to walk-through, sliding, and garage doors), gates, and any other openings of such size that it may allow a child to access the interior of the property or structures.

(c) If the chief of compliance orders a nonresidential building or structure vacated and closed pursuant to this code, the owner shall board and secure such building or structure in accordance with the guidelines for boarding and securing a building or structure provided by the chief of compliance. Windows and doors which are boarded for longer than six (6) months shall be painted or covered to appear consistent with the remainder of the building exterior.

(1) Notwithstanding the above, buildings or structures located within the city's central business district and/or the downtown business improvement district (BID), shall not have ground floor windows boarded, papered over, or otherwise similarly covered for longer than three (3) months. This applies regardless of whether the building or structure was vacated by the owner or pursuant to an order of the chief of compliance. After such three (3) month period, vacant buildings or structures within the central business district and/or downtown business improvement district (BID) shall have window coverings such as curtains, blinds, or shutters.

(d) If a vacant property is found to be in violation of the standards contained within this article, or if a property becomes vacant while such a violation has not been remedied, the owner of that vacant property shall register the property with the city.

(1) Procedural steps for registration requirement.

a. The city shall send a notice of registration requirement to the property owner concurrently with documentation outlining any violations of this article.

b. The property owner shall register such property within thirty (30) days of the date of the notice of registration requirement, unless the owner demonstrates to the city within that same period that the property is no longer in violation. Extensions may be granted in a manner consistent with the provisions of subsection 6-307(d).

c. The registration information shall be provided in a form approved by the chief of compliance and contain the following information:

1. The name of the property owner;

2. The mailing address, telephone number, and any other contact information of the property owner; and

3. The name, mailing address, telephone number, and any other contact information for a local agent, if the property owner does not have their primary residence or principal place of business within Guilford County or an adjacent county.

d. Any changes in the required information for a registered property shall be reported to the chief of compliance within thirty (30) days of such changes.

e. If, once a property is registered pursuant to this section, there are no documented violations at the property for a period of twenty-four (24) months, the property owner shall not be required to further maintain the registration with the city. Any subsequent violations of this article shall reintroduce the registration requirement.

(2) Enforcement of registration requirement.

a. The registration requirement may be enforced through the issuance of civil penalties as outlined in section 6-317. Each day's continuing violation shall be a separate and distinct offense. These civil penalties may be recovered by the city in a civil action in the nature of debt if the person does not pay the same within thirty (30) days after the initial day of noncompliance.

b. In seeking compliance with this section, the city may pursue any remedies available pursuant to G.S. § 160A-175 including, if necessary, orders of injunction or any appropriate equitable remedy.

c. Any appeal of this registration requirement may be heard by the minimum housing standards commission pursuant to section 6-314.

(Ord. of 03-17-2026(1), § 1(Exh. A), 3-17-26)

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Chapter 7

CABLE COMMUNICATIONS*

Art. I. In General, §§ 7-1—7-3
Art. II. Grant of Franchise, §§ 7-4—7-35
Art. III. Regulation of Franchise, §§ 7-36—7-49
Art. IV. Bonds, Insurance, and Indemnification, §§ 7-50—7-62
Art. V. Design and Construction Provisions, §§ 7-63—7-81
Art. VI. Service Provisions, §§ 7-82—7-97
Art. VII. Books, Records and Reports, §§ 7-98—7-110
Art. VIII. Miscellaneous Provisions, §§ 7-111—7-115

*Editor's note—Section 1 of Ord. No. 94-109, adopted Oct. 24, 1994, repealed former Ch. 7, pertaining to cable television, and enacted a new Ch. 7 as herein set out. Formerly, Ch. 7 consisted of §§ 7-1—7-15 and 7-31—7-38, and derived from the Code of 1961, §§ 25-47—25-63.

Cross reference—Licenses, taxation and miscellaneous business regulations, Ch. 13;

State law reference—Cable television franchises, G.S. § 160A-319.

ARTICLE I. IN GENERAL

Sec. 7-1. Title.

This chapter shall be known and may be cited as the "Greensboro Cable Communications Regulatory Ordinance," and it shall become a part of the ordinances of the city. All ordinances or parts of ordinances in conflict with the provisions of this chapter are hereby repealed.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-2. Purpose.

The City of Greensboro finds that the development of cable communications has the potential of having great benefit and impact upon the people of Greensboro. Because of the complex and rapidly changing technology associated with cable television, the city further finds that the public convenience, safety and general welfare can best be served by exercising regulatory powers which are vested in the city or such persons as the city shall designate. It is the intent of this chapter and subsequent amendments to provide for and specify the means to attain the best possible public interest and public purpose in these matters and any franchise issued pursuant to this chapter shall be deemed to include this finding as an integral part thereof.

Further, it is recognized that cable communications systems have the capacity to provide not only entertainment and information services to the city's residents, but can provide a variety of interactive communications services to institutions and individuals. Many of these services involve city agencies and other public institutions, by providing governmental, educational or health care communications.

For these purposes to the extent practicable, the following goals underlie the regulations contained herein:

(1) Communications services should be made available to all city residents.

(2) The cable communications system should be capable of accommodating both the present and reasonably foreseeable future communications needs of the city.

(3) The cable communications system should be improved and upgraded if necessary during the franchise term so that the new facilities necessary for the operation of this system shall be integrated to the maximum extent possible with existing facilities.

(4) The cable communications system authorized by this chapter shall be responsive to the needs and interests of the local community, and shall provide a wide diversity of information sources and services to the public.

(5) That the public, educational, and governmental needs for access to the cable communications system are met.

(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-3. Definitions.

For the purpose of this chapter the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number. The word "shall" is mandatory and "may" is permissive. Words not defined shall be given their common and ordinary meaning.

Additional services means programming or services for which an additional charge is made beyond the charge for basic subscriber services, including, but not limited to, movies, concerts, variety acts, sporting events, programming sales to satellite dish owners, pay-per-view programs, interactive services, leased access and any other service utilizing any facility or equipment of a cable television system operating pursuant to a franchise granted under this chapter.

Basic cable service shall have the same meaning as specified in the Cable Act.

Basic subscriber radio service means such audio services as the re-transmission of broadcast FM radio signals, shortwave, weather, news, time and other similar audio services and the transmission of cablecast (nonbroadcast) radio signals.

Cable communications system also referred to as "system," means a facility, consisting of a set

of closed transmission paths and associated signal generation, reception and control equipment that is designed to provide cable service which includes video programming and which is provided to multiple subscribers within a community, but such term does not include:

(1) A facility that serves only to retransmit the television signals of one (1) or more television broadcast stations;

(2) A facility that serves only subscribers in one (1) or more multiple unit dwellings under common ownership, control, or management, unless such facility or facilities uses any public rights-of-way;

(3) A facility of a common carrier which is subject, in whole or in part, to the provision of Title II of the Cable Act, except that such facility shall be considered a cable system to the extent such facility is used in the transmission of video programming directly to subscribers; or

(4) Any facilities of any electric utility used solely for operating its electric utility systems.

Channel means frequency band, which is capable of carrying either one (1) standard video signal, a number of audio, digital or other non-video signals or some combination of such signals.

Commence operation means that time and date when operation of the cable communications system is considered to have commenced, which shall be when the system is fully rebuilt or fully constructed.

Commercial subscriber means a subscriber who receives a service in a place of business where the service may be utilized in connection with a business, trade, or profession.

Communications Policy Act or *Cable Act* means the Cable Communications Policy Act of 1984 and the Cable Television Consumer Protection and Competition Act of 1992 as may be amended or succeeded.

Complaint means a verbal or written indication from a subscriber of a problem with any aspect of cable service.

Converter means an electronic device which converts signals to a frequency not susceptible to interference within the television receiver of a subscriber, and any channel selector which permits a subscriber to view all signals delivered at designated converter dial locations at the set or by remote control.

Council means the City of Greensboro City Council.

Days means calendar days unless otherwise specified.

Discrete channel shall mean a channel which can only be received by the person and/or institution intended to receive signals on such channel.

Downstream channel shall mean a channel which is transmitted from the cable communications system headend or other origination point through the cable distribution plant to subscribers.

Drop shall mean a coaxial connection from feeder cable to the subscriber/user television set, radio or other terminal.

Educational channel or *Educational access channel* means any channel specifically for noncommercial educational designated use and which is provided at no charge to the programmer.

Fair market value means the price that a willing buyer would pay to a willing seller for a going concern based on the system valuation prevailing in the industry at the time.

FCC means the Federal Communications Commission and any legally appointed or elected successor.

Franchise means a franchise contract entered into voluntarily by the grantee, containing the specific provisions of the franchise granted, including referenced specifications, applications and other related material. A franchise granted pursuant to this chapter grants the nonexclusive rights to construct, operate and maintain a cable communications system along the streets and public grounds within all or a specified area in the city. Any such authorization, in whatever form granted, shall not mean or include any license or

permit required for the privilege of transacting and carrying on a business within the city as required by other ordinances and laws of the city.

Franchise area means the entire city, or portions thereof, for which a franchise is granted under the authority of this chapter. If not otherwise stated in the franchise, the franchise area shall be the corporate limits of the city, including all territory thereafter annexed to the city.

Franchise fee means the percentage, as specified by this chapter, of the grantee's annual gross revenues from all sources derived from operation of the cable system, including additional services, payable in exchange for the rights granted pursuant to this chapter and the franchise agreement.

Franchisee or grantee means any natural person(s), partnership(s), domestic and foreign corporation(s), association(s), joint venture(s), or organization(s) of any kind which has been legally granted a franchise by the city, and shall include the lawful successor, transferee or assignee of such franchisee or grantee.

Government channel or government access channel means any channel specifically designated or dedicated for noncommercial government use and which is provided at no charge to the programmer.

Grantee means the franchise holder or any lawful successor transferee of said individual, partnership, association, organization or corporation.

Grantor means the City of Greensboro as represented by the city council, or its designee, acting within the scope of its jurisdiction.

Gross annual revenues means all receipts derived directly or indirectly by the grantee, its affiliates, subsidiaries from operation of the cable system, and any person in which the grantee has a financial interest as related to the Greensboro cable system.

Installation shall mean the connection of the system from feeder cable to subscribers' terminal(s).

Institutional access channels means broadband communications channels dedicated to providing services to city, county, state or federal governmental agencies, educational institutions, health care institutions or other nonprofit and profit making organizations.

Leased access channel or *commercial access channel* means any channel designated or dedicated for use by persons unaffiliated with the grantee, at rates in accordance with the Cable Act.

Monitoring means observing a communications signal, or the absence of a signal, where the observer is not a party to the communication, whether the signal is observed by visual or electronic means, for any purpose whatsoever.

Narrowcasting shall mean the ability to distribute cable programming to a particular segment or segments of the cable subscribers.

Notice shall be a written notice addressed to the grantee at its principal office within the city or such other office as the grantee has designated to the city as the address to which notice shall be transmitted to it. In computing notice time, holidays recognized by the city and Saturdays and Sundays shall be excluded.

Plant mile means a linear mile of strand-bearing cable as measured on the street or easement from pole to pole or pedestal to pedestal.

Programmer means any person or entity who or which produces or otherwise provides program material or information for transmission by video, audio, digital or other signals, either live or from recorded tapes or other storage media, to users or subscribers by means of the cable communications system.

Public access channel, community access channel or community channel means any channel designated or dedicated for noncommercial use by the general public or noncommercial organizations which is made available for use without charge to the programmer.

Public property shall mean any real property owned by the city or any other government entity other than a highway, sidewalk, or easement or dedication.

Public rights-of-way or *streets and public grounds* means the surface, the air space above the surface, and the area below the surface of any public street, highway, lane, path, alley, sidewalk, boulevard, drive, bridge, tunnel, park, parkways, waterways, utility easements or other public right-of-way now or hereafter held by the city which shall entitle the city and the grantee to the use thereof for the purpose of installing and maintaining the grantee's cable television system. No reference herein, or in any franchise, to the "streets and public grounds" shall be deemed to be a representation or guarantee by the city that its title to any property is sufficient to permit its use for such purpose, and the grantee shall, by its use of such terms, be deemed to gain only such rights to use property in the city as the city may have the undisputed right and power to give.

Resident means any person residing in the city as otherwise defined by applicable law.

Residential dwelling unit means each home, house, building, or other structure that normally accommodates the living quarters or one (1) family, and each apartment, condominium, or cooperative unit that normally accommodates the living quarters of one (1) family in any multiple-unit building or complex of multiple-unit building; provided, however, that if the grantee has not been granted the authority by an owner or association of owners to extend its facilities to individual apartments, condominiums, and co-operative units within the interior of such multiple-unit building or complex of multiple-unit buildings, then any such multiple-unit building or complex of multiple-unit buildings shall be considered a single residential dwelling unit.

Residential subscriber means a subscriber who receives a service in an individual dwelling unit where the service is not to be utilized in connection with a business, trade or profession.

Sale shall include any sale, exchange, or barter.

School means any public or nonprofit educational institution including primary and secondary schools, colleges and universities, both public and private.

Service area means the entire geographic area within the franchise territory.

State means the state of North Carolina.

Subscriber means any person, firm, corporation or other entity who or which elects to subscribe to, for any purpose, a service provided by the grantee by means of, or in connection with, a cable communications system.

System facilities means the cable communications system constructed for use within the city, without limitation, the headend, antenna, cables, wires, lines, towers, amplifiers, converters, health and property security systems, equipment or facilities located within the corporate limits of the city designed, constructed or wired for the purpose of producing, receiving, amplifying and distributing by coaxial cable, fiber optics, microwave or other means, audio, radio, television and electronic signals to and from subscribers, in the city and any other equipment or facilities located within the corporate limits of the city intended for the use of the cable communications system; provided however, such system facilities excludes building, contracts, facilities, and equipment where its sole use is for providing service to other system facilities located outside the city limits.

Transfer means the disposal by the grantee, directly or indirectly, by gift, assignment, voluntary sale, merger, consolidation or otherwise, of ten (10) percent or more, at one (1) time, of the ownership or controlling interest in the system, or twenty-five (25) percent cumulatively over the term of the franchise of such interests to a corporation, partnership, limited partnership, trust or association, or person or group of persons acting in concert.

Trunk line means the major distribution cable used in cable communications, which divides into feeder lines which are tapped for service to subscribers.

Upstream signal means a signal originating from a terminal to another point in the cable television system including video, audio or digital signals for either programs or other uses such as security alert services, etc.

User means a person or organization utilizing channel or equipment and facilities for the pur-

pose of producing and/or transmission of material, as contrasted with receipt thereof in a subscriber capacity.
(Ord. No. 94-109, § 1, 10-24-94)

ARTICLE II. GRANT OF FRANCHISE

Sec. 7-4. Grant of franchise.

(a) *Grant.* Pursuant to the authority of the City Charter and general statutory laws subject to the terms and conditions set forth herein, the city can grant revocable and nonexclusive franchises, acting pursuant to the state enabling law and the city's applicable charter provisions, ordinances, rules and regulations to construct and operate a cable communications system in, under, over, along, across or upon the streets and public grounds within the City of Greensboro for the purpose of reception, transmission, collection, amplification, origination, distribution or redistribution of audio, video, data, or other signals and for the development of broadband telecommunication services in accordance with the laws of the City of Greensboro, the State of North Carolina, and the United States of America. In exercising rights pursuant hereto, the grantee shall not endanger or interfere with the lives of persons, interfere with any installations of the city, any public utility serving the city or any other person permitted to use the streets and public grounds nor unnecessarily hinder or obstruct the free use of the streets and public grounds. The grant of one franchise does not establish priority for use over the other present or future permit or franchise holders or the city's own use of the streets and public grounds. The city shall at all times control the distribution of space in, over, under or across all streets or public grounds occupied by the cable communications system.

No grant of any franchise shall affect the right of the city to grant to any other person a right to occupy or use the streets, or portions thereof, for the construction and operation of a cable communications system within the city or the right of the city to permit the use of the streets or public grounds of the city for any purpose whatsoever. By accepting a franchise, the franchisee thereby acknowledges the city's right to make such grants and permit such uses. No privilege or power of eminent domain is bestowed on grantee by the grant of a franchise. The city retains the right to exempt systems serving fewer than one thousand (1,000) subscribers from the provisions of this chapter as deemed appropriate by the city at the time a franchise is granted.

(b) *Event of conflict.* In the event of conflict between the terms and conditions of this chapter and the franchise, this chapter shall control.

(c) *General city ordinances.* Any franchise granted by the city is hereby made subject to the general ordinance provisions now in effect and hereafter made effective. Any provisions hereafter made effective shall not materially effect the grantee's rights under this chapter or the franchise. Nothing in the franchise shall be deemed to waive the requirements of the various codes and ordinances of the city regarding permits, taxes, fees to be paid, or manner of construction.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-5. Franchise area.

The franchise area shall be the entire city, or portions thereof, for which a franchise is granted.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-6. Use of public streets and ways.

For the purpose of operating and maintaining a cable communications system in the city, the grantee may erect, install, construct, repair, replace, reconstruct and retain in, on, over, under, upon, across and along the public streets and ways within the city such wires, cables, conductors, ducts, conduits, vaults, manholes, amplifiers, appliances, pedestals, attachments and other property and equipment as are necessary to the operation of the cable communications system, provided, however, that the grantee complies with all design, construction, safety, and performance provisions contained in this chapter, the franchise, and other applicable local ordinances. The grantee shall use its best efforts to also obtain pole attachment agreements for use of any utility poles or other utility facilities required in connection with the provision of services, provided such agreements are available upon reasonable terms and conditions.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-7. Use of city facilities.

At the city's option, the city may require a grantee to utilize city-owned conduit or other facilities for any portion of its cable communications system. The consideration for the use of city conduit or other facilities shall be as stated in the franchise. A reasonable fee for the use of city facilities shall be established in the franchise and may be adjusted every five (5) years for inflation in accordance with increases in the Consumer Price Index.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-8. Use of grantee facilities.

No poles shall be erected by the grantee without prior approval of the city with regard to location, height, type and any other pertinent aspect, which approval shall not be unreasonably withheld. However, no location of any pole of the grantee shall be a vested right and such poles shall be removed, relocated or modified by the grantee at its own expense whenever the city reasonably determines that the public convenience would be enhanced thereby. The grantee shall utilize existing poles and conduits, where possible. The city shall have the right, during the life of the franchise, to install and maintain free of charge upon the poles owned by the grantee, any wire and pole fixtures that do not unreasonably interfere with the cable system operations of the grantee.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-9. Term of franchise.

The term of the franchise shall commence upon execution of the franchise by the city and the grantee and shall continue for a period specified in the franchise, unless sooner terminated as provided herein. The grantee shall have no property right upon the expiration of the franchise term, except as provided by applicable law.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-10. Franchise required.

No cable communications system shall be allowed to occupy or use the streets of the city or be allowed to operate within the city without a franchise.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-11. Franchise nonexclusive.

(a) *Grant.* Any franchise granted pursuant to this chapter shall be nonexclusive. The city specifically reserves the right to (i) grant at any time such additional franchises for a cable communication system as it deems appropriate, and/or (ii) build, operate, and own such cable communication system or systems as it deems appropriate.

(b) *Annexed area.* Any grantee presently operating under a franchise ordinance with the county shall not be required to apply for or obtain a permit under the provisions of this section for operating within the corporate limits; provided the grantee shall operate and comply under the terms of its franchise with the county. In addition, such grantee shall either furnish the city a separate performance bond in the amount of one hundred thousand dollars ($100,000.00) or add the city as the recipient under the existing performance bond filed with the county. Such grantee shall continue to pay its franchise fees to the county so long as said grantee is in operation and serving under the county franchise. Provided, however, no such grantee shall be permitted to extend its operations (or plant) into the city limits of the city as those limits exist on the effective date of this chapter [October 23, 1994] unless such grantee shall acquire a franchise from the city. At such time as such grantee's franchise with the county shall expire, it shall not continue to provide cable television services within the city limits without first having acquired a franchise from the city.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-12. Police and regulatory powers reserved.

The grantee shall comply with all generally applicable laws, ordinances and regulations enacted by the city pursuant to its police powers. Any conflict between the terms of this chapter or the franchise and any present or future lawful exercise of the city's police powers shall be resolved in favor of police powers; provided, however, no such exercise of the police powers shall materially alter the terms and provisions of any franchise granted hereunder.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-13. City's right to perform public works.

Nothing in this chapter shall be in hindrance to the right of the city or any governmental authority to perform or carry on, directly or indirectly, any public works or public improvements of any description. Should the cable communications system in any way interfere with the construction, maintenance or repair of such public works or public improvements, the grantee shall, at its own cost and expense, protect or relocate its cable communications system, or part thereof, as reasonably directed by the city officials or any governmental authority.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-14. Emergency removal of plant.

If at any time, in case of fire or disaster in the city, it shall become necessary in the reasonable judgment of the city to cut or move any of the wires, cables, amplifiers, appliances or appurtenances of the cable communications system, the city shall have the right to do so at the sole cost and expense of the grantee. The grantee shall bear all costs of reinstallation, repair, and other costs resulting from or arising out of the emergency cutting or removal of the cable communications system.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-15. Removal or abandonment.

Upon termination of the franchise by passage of time or otherwise, and unless the grantee transfers the cable communications system to a subsequent grantee approved by the city, the grantee shall remove its supporting structures, poles, transmission and distribution systems, and all other appurtenances from the streets and public rights-of-way and shall restore any property, public or private, to their original condition prior to the installation, erection, or construction of the cable communications system. Restoration of city property, including, but not limited to the public rights-of-way, shall be in accordance with the directions and specifications of all affected departments and agencies of the city and all applicable law. The grantee, at the option and direction of the city, shall accomplish such restoration at its expense. Such removal shall be made with the supervision of the city. If such removal and restoration is not completed within twelve (12) months after the notice by the city delivered in writing to the grantee, all of the grantee's property remaining in the affected public rights-of-way, at the option of the city, shall be deemed abandoned and, at the option of the city, shall become the property of the city. In the event the grantee fails or refuses to remove its system or satisfactorily restore all areas to the condition in which they existed prior to the original construction of the system, the city, at its option, may perform such work and collect the cost thereof from the grantee. No surety on any bond shall be discharged until the city has certified to the grantee in writing that the system has been dismantled, removed, and all other property restored to the satisfaction of the city.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-16. Time is of the essence to this chapter.

Whenever this chapter shall set forth any time for any act to be performed by or on behalf of the grantee, such time shall be deemed to be of the essence. Any failure of the grantee to perform within the time allotted shall be sufficient ground for the city to invoke an appropriate penalty including possible revocation of the franchise, following applicable notices of default and cure procedures provided for herein.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-17. No waiver of rights.

No course of dealing between the grantee and the city nor any delay on the part of the city in exercising any rights hereunder shall operate as a waiver of any such rights of the city or acquiescence in the actions of the grantee in contravention of rights except to the extent expressly waived by the city or expressly provided for in the franchise.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-18. Transfer of ownership or control.

(a) *Transfer of franchise.* Any franchise granted hereunder cannot in any event be sold, transferred, leased, assigned or disposed of, including

but not limited to, by force or voluntary sale, merger, consolidation, receivership or other means without the prior consent of the city, and then only under such conditions as the city may reasonably establish.

(b) *Transfer threshold.* The grantee shall promptly notify the city of any actual or proposed change in, or transfer of, or acquisition by any other party of ownership, or control of the grantee. The word "control," as used herein, is not limited to major stockholders but includes actual working control in whatever manner exercised. A rebuttable presumption that a transfer of control has occurred shall arise upon the disposal by the grantee, directly or indirectly, by gift, assignment, voluntary sale, merger, consolidation or otherwise, of ten (10) percent or more at one (1) time of the controlling interest in the system, or twenty-five (25) percent cumulatively over the term of the franchise of such interests to a corporation, partnership, limited partnership, trust or association, or person or group of persons acting in concert. Except that no consent shall be required for any sale, transfer, or assignment of ownership or control to an entity under common control with grantee, provided that prior to such transfer, the grantee provides to the city verifiable information to establish that such transferee under common control has the financial, legal and technical ability to fully perform all obligations of the franchise.

(c) *City approval.* Every change, transfer, or acquisition of control of the grantee shall make the franchise subject to cancellation unless and until the city shall have consented thereto. For the purpose of determining whether it shall consent to such change, transfer, or acquisition of control, the city may inquire into the legal, financial, character, technical and other public interest qualifications of the prospective transferee or controlling party, and the grantee shall provide the city with all required information. Failure to provide all information reasonably requested by the city as part of said inquiry shall be grounds for denial of the proposed change, transfer or acquisition of control.

(d) *Assumption of control.* The city agrees that any financial institution having a pledge of the franchise or its assets for the advancement of money for the construction and/or operation of the franchise shall have the right to notify the city that it will take control and operate the cable television system. If the financial institution takes possession of the cable communications system, the city shall take no action to effect a termination of the franchise without first giving to the lender written notice thereof and a period of six (6) months thereafter (unless otherwise provided hereinbelow) (i) to allow the financial institution or its agent(s) to continue operating as the franchisee under the franchise; and (ii) to request the city, and for the city to determine whether, to consent to the assignment of the grantees rights, title, interest and obligations under the franchise to a qualified operator. The city acknowledges that in order for the financial institution to realize upon the collateral accorded to it by the loan documents, the financial institution must be entitled to a reasonable period of time after taking possession of the franchise under the loan document to obtain the city's consent to an assignment of the franchise to a qualified operator. The city agrees that such reasonable period of time is six (6) months after the financial institution takes possession of the cable communication system, and, further, agrees that the city shall use its best efforts to decide upon the assignment of the franchise to the new operator proposed by the financial institution within such period of time. The financial institution shall be entitled to such possession and other rights granted under this paragraph until such time that the city determines whether to consent to such assignment (the "extended time"). If the city finds that such transfer, after considering the legal, financial, character, technical and other public interest qualifications of the applicant, is satisfactory, the city will consent to the transfer and assign the rights and obligations of such franchise as in the public interest. During the six-month period or extended time, the financial institution shall enjoy all the rights, benefits and privileges of the grantee under the franchise, and the city shall not disturb such possession by the financial institution, provided the financial institution complies in all respects with the terms and provisions of the franchise and this chapter. The various rights granted to the financial institution under this paragraph are

contingent upon the lender's continuous compliance with the terms and provisions of this chapter and the franchise during the entire aforementioned six-month period or extended time, if applicable. For example, should an agent of the financial institution take possession of the cable communication system pursuant to rights granted to the financial institution under this paragraph and such agent fails to comply with the level of service requirements set forth in this chapter or the franchise, the rights granted to the financial institution under the provisions of this chapter and the franchise shall automatically terminate.

(e) *No waiver of city property rights.* The consent or approval of the city or any other public entity to any transfer of the grantee shall not constitute a waiver or release of the rights of the city in and to the public property or public rights-of-way, and any transfer shall, by its terms, be expressly subordinate to the terms and conditions of this chapter and the franchise.

(f) *Review purchase price.* The city shall be notified of the purchase price of any transfer or assignment of the cable system based on available documents.

(g) *Signatory requirement.* Any approval by the city of transfer of ownership or control shall be contingent upon the prospective controlling party becoming a signatory to the franchise agreement.

(h) *Right of first purchase.* The city reserves the right of first purchase in any sale, transfer, lease, assignment or disposal of the majority interest or more of the cable system serving the City of Greensboro, when such sale, transfer, lease, assignment or disposal of the majority interest or more affects only the system serving Greensboro. If the city decides to exercise this option, it shall give the grantee notice of its intent within ninety (90) days of receipt of notice that the grantee proposes to sell, transfer, lease, assign, or dispose of the system. Should the city exercise this option, the purchase price will be the fair market value. In the event that the city and grantee are unable to agree upon the value of the system, the matter will be submitted to arbitration as specified in section 7-19(a)(6).

(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-19. Rights reserved to the grantor.

(a) *Right to purchase of the system by the city.*

(1) *Right to purchase.* In accordance with the Cable Act, in the event the grantee (a) forfeits and the city terminates the franchise, pursuant to provisions of this chapter and the franchise, or (b) the franchise is not renewed at the normal expiration of the franchise term and the grantee has exhausted all rights to renewal under the Cable Act, the city shall have the right, directly or as an intermediary, to purchase the franchised cable communications system or effect the ownership of the system to another person. In the instance of non-renewal any such acquisition or transfer shall be at fair market value, determined on the basis of the cable system valued as a going concern, but with no value allocated to the franchise itself. If the franchise is revoked for cause, the acquisition or transfer shall be at an equitable price. If the system is purchased at the time of transfer, the acquisition shall be at fair market value. The city shall notify the grantee, in writing, within thirty (30) days, of its intent to acquire the system on its behalf or effectuate the ownership of the system to another person. The purchase price shall be based upon the value of the system determined pursuant to this section.

(2) *Date of valuation.* The date of valuation shall be no earlier than the day following the date of expiration or termination and no later than the date the city makes an offer for the system.

(3) *System valuation.* The value of the cable system shall be determined by a qualified appraiser mutually agreed upon by the city and the grantee. The city shall hire a qualified appraiser. The appraiser shall determine the current worth of the assets pursuant to subsection (a)(1) above. Under no circumstances shall the value under this section be less than the book value of the assets less accumulated depreciation. In the case of termination or non-renewal, no value shall be assigned to the franchise.

(4) *Intent to purchase.* Upon receipt of notice of the city's intent to purchase the system at the value established above, the grantee shall have thirty (30) days within which to accept that valuation as the purchase price of the system. In the event that purchase price is not acceptable, the parties shall have one hundred twenty (120) days in which to negotiate an acceptable purchase price.

(5) *Transfer to city.* Upon exercise of this option, and the payment of the agreed upon sum by the city and its service of official notice of such action upon the grantee, the grantee shall immediately transfer to the city possession and title to all facilities and property, real and personal, of the cable communications system, free from any and all liens and encumbrances not agreed to be assumed by the city in lieu of some portion of the purchase price set forth above; and the grantee shall execute such warranty, deeds or other instruments of conveyance to the city as shall be necessary for this purpose.

(6) *Arbitration.* In the event the city and grantee are unable to agree upon the value of the cable communications system within the time limits set forth above, either party may require by written notice to the other that the value of the cable communications system be submitted to arbitration in the following manner:

a. The city and the grantee shall, within fifteen (15) days after such written notice, each select an arbitrator who shall be a disinterested person with reasonable knowledge and experience relative to the subject to be arbitrated. The two (2) arbitrators thus selected shall immediately thereafter select a third arbitrator who shall likewise be a disinterested person having reasonable knowledge and experience relative to the subject to be arbitrated.

b. The panel of arbitrators shall commence a hearing on the issue of valuation and shall receive all relevant information from the parties.

c. The hearing shall be recorded and may be transcribed at the request of either party. All hearing proceedings, debate and deliberations shall be open to the public and at such times and places as contained in the notice or as thereafter publicly stated, except that if two (2) arbitrators agree, debate and deliberations may be held in closed session.

d. The value of the system as determined by the arbitration panel shall be pursuant to subsection (a)(1) above.

(e) Within thirty (30) days after the close of the hearing, the panel of arbitrators shall prepare the findings and the decision agreed upon by a majority of the panel which shall be filed with the city and served by mail upon the grantee. Should there be no majority decision, the proceedings shall become null and void and shall be started anew, unless the parties extend by mutual agreement the time which the panel of arbitrators has to make a decision.

(f) The expenses of the arbitrators shall be borne by the parties, and the expenses of the third arbitrator and those expenses incurred by the panel as a whole shall be borne equally by the parties.

(7) *Purchase price.* The purchase price shall be the value of the system as determined by the arbitration panel subject to the right of either party to seek a judicial determination of the purchase price subsequent to the decision of the arbitration panel.

(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-20. Franchise renewal.

Upon completion of the term of any franchise granted under the provisions of this chapter, the city, in its sole discretion, may grant or deny renewal of the franchise of the grantee in accordance with the provisions of the Cable Act.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-21. Franchise fees.

(a) [*City findings.*] Because city finds that:

(1) The public rights-of-way to be used by the grantee in the operation of its system within

the boundaries of the franchise area are valuable public properties acquired and maintained by the county, state, and city at great expense to its taxpayers, and

(2) The grant to the grantee to the said streets is a valuable property right without which the grantee would be required to invest substantial capital in right-of-way costs and acquisitions, and

(3) The administration of this chapter or the franchise imposes upon the city additional regulatory responsibility and expense, and

(4) The grantee of any franchise hereunder shall pay to the city a franchise fee in the amount specified in the franchise. This annual franchise payment shall be in addition to any other fee and commence as of the effective date of the franchise. The city shall be furnished a certified statement of said payment by a certified public accountant or the grantee's financial officer, reflecting the total amounts of annual gross revenues from all sources, including but not limited to, itemization of basic tier, premium pay-per-view and additional services, equipment and installation and other charges, advertising, home shopping revenue, and other non-subscriber revenues and the above charges and computations for the period covered by the payment. Upon the request of the city, the grantee shall provide a fully audited financial statement, which contains the Greensboro system, by a certified public accountant. Such audited statement shall be provided for the corporate level nearest to the system level at which such an audit is conducted.

(b) *Franchise fee in addition to other tax or payments.* This payment shall be in addition to any other tax or payment owed to the governments or other taxing jurisdiction by the grantee, unless such tax or payment is deemed a franchise fee under applicable law.

(c) *Acceptance by the city.* No acceptance of any payment by the city shall be construed as a release or as an accord and satisfaction of any claim the city may have for further or additional sums payable as a franchise fee under the provisions of this chapter or for the performance of any other obligation of the grantee.

(d) *Failure to make required payment.* In the event that any franchise payment or recomputed amount is not made on or before the dates specified herein, the grantee shall pay as additional compensation an interest charge, computed from such due date, at the annual rate equal to the commercial prime interest rate of the city primary depository bank during the period that such unpaid amount is owed.

(e) *Payments to be made quarterly.* The franchise fee and any other cost or damages assessed shall be payable quarterly to the City of Greensboro. The grantee shall file a complete and accurate verified statement of all gross revenue within the city during the period for which said quarterly payment is made, and said payment shall be made to the city not later than forty-five (45) days after the expiration of each calendar quarter. Quarterly computation dates are the last day in the months of March, June, September and December.

(f) *City's right to inspection.* The city shall have the right to inspect the grantee and any parent company's income records to determine the franchise fee and the right to audit and to recompute any amounts determined to be payable under the provisions of this chapter. Audits shall be at the expense of the grantee if any such audit finds that grantee has underpaid the franchisee fee by five (5) percent or more. Any additional amount due to the city as a result of the audit shall be paid within thirty (30) days following written notice to the grantee by the city which notice shall include a copy of the audit report.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-22. Forfeiture or revocation.

(a) *Grounds for revocation.* Subject to subparagraph (d) below, the city reserves the right to revoke any franchise granted hereunder and rescind all rights and privileges associated with the franchise in the following circumstances, each of which shall represent a default and breach under the provisions of this chapter and the franchise grant:

(1) If the grantee shall default in the performance of any of the material obligations

under the provisions of this chapter or under such documents, contracts and other terms and provisions entered into by and between the city and the grantee.

(2) If the grantee shall fail to provide or maintain in full force and effect the liability and indemnification coverage or the performance bond as required herein.

(3) If the grantee shall violate any material orders or rulings of any regulatory body having jurisdiction over the grantee relative to this chapter or the franchise.

(4) If the grantee attempts to evade any of the material provisions of this chapter or the franchise or practices any fraud or deceit upon the city or cable subscribers.

(5) The grantee's construction schedule is materially delayed later than the schedule contained in the franchise or beyond any extended date set by the city.

(6) The grantee becomes insolvent, unable or unwilling to pay its debts or is adjudged bankrupt.

(7) Failure to restore service after ninety-six (96) consecutive hours of interrupted service, except when approval of such interruption is obtained from the city.

(8) Material misrepresentation of fact in the application for or negotiation of the franchise or any extension or renewal thereof.

(9) If the grantee ceases to provide services over the cable communications system for any reason within the control of the grantee.

(10) Material failure by the grantee to comply with the access provisions of this chapter or the franchise.

(b) *Effect of circumstances beyond control of grantee.* The grantee shall not be declared at fault or be subject to any sanction under any provision of this chapter in any case in which performance of any such provision is prevented for reasons beyond the grantee's control. A fault shall not be deemed to be beyond the grantee's control if committed by a corporation or other business entity in which the grantee holds a controlling interest whether held directly or indirectly.

(c) *Effect of pending litigation.* Pending litigation or any appeal to any regulatory body or court having jurisdiction over the grantee shall not excuse the grantee from the performance of its obligations under the provisions of this chapter or the franchise unless a regulated agency or court so provide.

(d) *Procedure prior to revocation.*

(1) The city shall make written demand that the grantee comply with any such requirement, limitation, term condition, rule or regulation or correct any action deemed cause for revocation. If the failure, refusal or neglect of the grantee continues for a period of thirty (30) days following such written demand, the city may place its request for termination of the franchise upon a regular council meeting agenda. The city shall cause to be served upon such grantee at least seven (7) days prior to the date of such council meeting, a written notice of this intent to request such termination, and the time and place of the meeting, notice of which shall be published by the city clerk at least once, seven (7) days before such meeting in a newspaper of general circulation within the city.

(2) The council shall hear any persons interested therein, and shall determine in its discretion, whether or not any failure, refusal or neglect by the grantee was with just cause.

(3) If such failure, refusal or neglect by the grantee was with just cause, as defined by the city, the council shall direct the grantee to comply within such time and manner and upon such terms and conditions as are reasonable.

(4) If the council shall determine such failure, refusal, or neglect by the grantee was without just cause, then the council may, by resolution, declare that the franchise of the grantee shall be terminated and bond forfeited unless there be compliance by the grantee within ninety (90) days.

(e) *Disposition of facilities.* In the event a franchise expires, is revoked or otherwise terminated, the city may in its sole discretion, do any of the following:

(1) Purchase the system under the procedures set forth in section 7-19 of this chapter.

(2) Effect a transfer of ownership of the system to another party.

(3) Order the removal of the system facilities from the city. Such removal shall be accomplished in accordance with the requirement of section 7-15.

(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-23. Equal opportunity policy.

(a) *Equal employment and affirmative action programs.* The grantee shall be an equal opportunity/affirmative action employer adhering to all federal, state or municipal laws and regulations. Pursuant to 47 CFR Section 76.311 and other applicable regulations of the FCC, the grantee shall file an equal employment opportunity affirmative action program with the FCC and otherwise comply with all FCC regulations with respect to equal employment/affirmative action opportunities.

(b) *Employment policy.* The grantee shall take affirmative action to employ, during the construction, operation and maintenance of the cable communications system, minorities and females as set forth in the franchise.

(c) *Procurement.* For all services, materials or equipment purchased for the construction, operations or maintenance of the cable communications system, the grantee shall use its best efforts to purchase from competitively priced and otherwise qualified minority-owned, or female-owned businesses located in the City of Greensboro, as set forth in the franchise.

(d) *Local employment and procurement practices.* Whenever possible, all services, personnel, hardware and supplies for the construction, maintenance and operation of the system shall be procured locally when cost and prices are equal to or lower than non-local sources. The grantee shall describe in detail plans and policies for each year of the term of the agreement for utilizing and contracting with the local construction contractors, subcontractors, suppliers, vendors and other business enterprises and persons for services, supplies, equipment, consultation, banking, financial accounting and legal services, insurance and other necessary facilities and services that will be used in establishing, operating, marketing, programming and maintaining the cable communications system.

(Ord. No. 94-109, § 1, 10-24-94)

Secs. 7-24—7-35. Reserved.

ARTICLE III. REGULATION OF FRANCHISE

Sec. 7-36. Regulatory authority.

(a) *On-going regulation.* The city shall exercise appropriate regulatory authority under the provisions of this chapter and applicable law. This authority shall be vested in the council and administered through the city manager or his/her/their designee. The city manager or his/her/their designee shall provide day-to-day administration and enforcement of the provisions of this chapter and any franchise granted hereunder, and shall carry out the city's responsibilities with regard to cable communications.

(b) *Governing requirement.* At all times during the term of the franchise the grantee shall comply with all laws, rules or regulations of the city, state or federal governments, their regulatory agencies or commissions, which are now applicable or may be applicable hereafter to the construction and operation of the cable communications system, including, without limitation, all laws, ordinances, or regulations now in force or hereafter enacted; provided, that any law regulation or ordinance hereafter enacted shall not materially affect the rights under the franchise. Nothing herein shall be deemed a waiver of grantee's right to challenge the validity of any such law, rule or regulation. The grantee shall comply with new laws and regulations, such as the Americans with Disabilities Act.

(c) *Change in law or regulation.* Notwithstanding any other provisions of this chapter to the contrary, the grantee shall comply at all times with all laws and regulations of the local, state and federal government. In the event that any actions of the state or federal government or any agency thereof, or any court of competent jurisdiction upon final adjudication, substantially reduce in any way the power or authority of the city under this chapter or the franchise, or if in compliance with any local, state, or federal law or regulation, the grantee finds conflict with the terms of this chapter, the franchise, or any law or regulation of the city, then as soon as possible following knowledge thereof, the grantee shall notify the city of the point of conflict believed to exist between such law or regulation and the laws or regulations of the city, this chapter and the franchise. The city, at its option, may notify the grantee that it wishes to negotiate those provisions which are affected in any way by such modification in regulations or statutory authority. Thereafter, the grantee shall negotiate in good faith with the city in the development of alternate provisions which shall, to the extent permitted by law, materially maintain the rights of the city as established under the terms of this chapter and the franchise. The city shall have the duty, based upon the results of such negotiations, to modify all of the provisions to such reasonable extent as may be necessary to carry out the full intent and purpose of this chapter and the franchise and the agreements reached in negotiations.

(d) *Reservation of rights for regulation.* The city reserves the right to exercise the maximum plenary authority, as may at any time be lawfully permissible, to regulate the cable communications system, the franchise and the grantee. Should applicable legislative, judicial or regulatory authorities at any time permit regulation not presently permitted to the city, the city, without the approval of the grantee, may engage in any such additional regulation as may then be permissible, whether or not contemplated by this chapter or the franchise, including, without limitation, regulation regarding franchise fees, taxes, programming, rates charged to subscribers and users, consumer protection, or any other similar or dissimilar matter.

(e) *Right of inspection of records.* The city shall have the right to inspect all books, records, reports, maps, plans, financial statements of the grantee and any parent company to the extent such materials are relevant to the grantee's performance of its obligations under the provisions of this chapter and the franchise, and other like materials of the grantee, at any time during normal business hours. The grantee shall provide such information in such form as may be reasonably required by the city for said records.

(f) *Right of inspection of cable facilities.* The city shall have the right to inspect all cable facilities or installation work performed subject to the provisions of the franchise and to make such tests as it shall find necessary to ensure compliance with the terms of this chapter and other pertinent provisions of the law.

(g) *Right of inspection of property.* At all reasonable times, the grantee shall permit examination by any duly authorized representative of the city, of system facilities, together with any appurtenant property of the grantee situated within or without the city.

(h) Right of intervention. The city shall have the right of intervention in any suit or proceeding to which the grantee is party and which is related to this chapter and the franchise, and the grantee shall not oppose such intervention by the city.

(i) Right to require removal of property. Upon denial of renewal of this chapter or the franchise, or upon its revocation or expiration, as provided for herein, the city shall have the right to require the grantee to remove, at its own expense, all portions of the cable communications system required by public necessity from all streets and public ways within the city.

(j) *Franchise nonexclusive.* Any franchise granted pursuant to this chapter shall be nonexclusive. The city specifically reserves the right to (i) grant at any time such additional franchises for a cable communications system as it deems appropriate, and/or (ii) build, operate, and own such cable communication system or systems as it deems appropriate.

(k) *Expense reimbursement to city.* The grantee shall pay the city a sum of money which when added to any application fees received will reimburse all reasonable costs and expenses incurred by it in connection with the granting [of] an initial franchise, including, but not limited to, consultant fees, attorneys' fees, publication fees, travel expenses and all other direct costs. To the extent allowed by law, the grantee shall pay the city a sum of money which will reimburse all reasonable costs and expenses incurred by it in connection with the extending or renewing a franchise, including, but not limited to, consultant fees, attorneys' fees, publication fees, travel expenses and all other direct costs. The city shall submit a detailed schedule of all such costs. Such payment shall be made within thirty (30) days after the city furnishes the grantee with a written statement of such expenses.
(Ord. No. 94-109, § 1, 10-24-94; Ord. No. 20-163, § 3, 12-15-20)

Sec. 7-37. Supervision of franchise.

(a) The city shall have the following regulatory authority:

(1) Administration and enforcement of the provisions of this chapter and any franchise granted hereunder.

(2) Award, renewal extension or termination of a franchise pursuant to the provisions of this chapter, the franchise, and other applicable law.

(3) Consent prior to sale or transfer of any franchise granted hereunder, pursuant to the provisions of this chapter, the franchise and applicable law.

(4) Performance evaluation.

(5) Receive and investigate complaints regarding substandard service and to initiate any action necessary pursuant to this chapter or the franchise or any applicable law or regulation to correct the service deficiencies.

(6) Rate regulation, if applicable.

(b) The city also reserves the right to perform the following functions:

(1) Develop objectives and coordinate activities related to the operation of government channels.

(2) Approve procedures and standards for public, government and educational access and operations and services, including the use of dedicated channels and sharing of public facilities.

(3) Coordinate plans for expansion, interconnection and growth of cable services.

(4) Analyze the possibility of integrating cable communications with other city, state or regional telecommunications networks.

(5) Formulate and recommend long-range telecommunications policy for the city, and determine the future cable-related needs and interests of the community.

(6) Provide the administrative effort necessary for the conduct of performance evaluations, and any other activities required for the administration of this chapter or the franchise.

(7) Monitor grantee's process for handling citizen complaints and periodically inspect and analyze the records related to such complaints.

(8) Receive applications for rate increases, if applicable, and provide staff assistance in the analysis and recommendations thereto.

(9) Monitor grantee's adherence to, operational standards, service requirements and line extension policies as established in this chapter, the franchise and applicable law.

(10) Assure compliance with applicable laws and ordinances.

(11) Arrange tests and analysis of equipment and performance as needed to insure compliance with this chapter and the franchise.

(12) Assure continuity in service.

(13) Receive for examination all data and reports required by this chapter or the franchise.

(14) Represent the city's interest before local, state or federal government agencies in cable communications matters.

(15) Such other regulatory authority as appropriate to carry out the intent of this chapter or the franchise.

(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-38. Rates and charges.

(a) *Schedule filings.* The grantee shall file with the city schedules which shall describe all services offered, all rates and charges of any kind, and all terms and conditions relating thereto. No rates or charges shall be effective except as they appear on a schedule so filed. The grantee shall notify subscribers in writing at least thirty (30) days prior to the implementation of any change in services offered, rates charged, or terms and conditions related thereto, if the change is within the control of grantee.

(b) *Nondiscriminatory rates.* The grantee shall establish rates that are nondiscriminatory. Nothing contained herein shall prohibit the grantee from offering (i) discounts to commercial and multiple-family dwelling subscribers billed on a bulk basis; (ii) promotional discounts; (iii) reduced installation rates for subscribers who have multiple services; (iv) discount for senior citizens and/or low income residents; or (v) any other discounted or promotional rate permitted by law. The grantee's charges and rates for all services shall be itemized on subscribers' monthly bills.

(c) *City regulation.* To the extent that federal or state law or regulation may now, or as the same may hereafter be amended to, authorize the city to regulate the rates for any particular service tiers, service packages, equipment, or any other services provided by the grantee, the city shall have the right to exercise rate regulation to the full extent authorized by law, or to refrain from exercising such regulation for any period of time, at the sole discretion of the city.

(d) Rate regulation of basic tier and charges. The city will follow the FCC rate regulations in "Report and Order, in the Matter of Implementation of Sections of Cable Television Consumer Protection and Competition Act of 1992: Rate Regulation," MM Docket 92-266, FCC 93-177 (released May 3, 1993), or as hereafter revised by the FCC, in its regulation of the basic service rates and charges of the grantee. In connection with such regulation, the city will ensure a reasonable opportunity for consideration of the views of interested parties; and the city attorney, or his/her/their designee, is authorized to execute on behalf of the city and file with the FCC such certification forms or other instruments as are now or may hereafter be required by the FCC rate regulations in order to enable the city to regulate basic service rates and charges.

(e) *Ability to petition.* If applicable, the city shall have the right to petition the Federal Communications Commission or other appropriate agency or organization to obtain rate regulation authority or to petition the federal body to review or regulate rates in the city.

(f) *Free connections.* The grantee shall provide upon request and free of charge the drops set forth in the franchise. The grantee shall discuss the location of each connection with the proper officials of each such institution receiving free connection.

(g) *Credit for service interruption.* In the event that the grantee's service to any subscriber or user of leased channel space is interrupted for twenty-four (24) hours or more consecutive hours, the grantee shall grant expeditiously such subscriber or user a pro rata credit.

(Ord. No. 94-109, § 1, 10-24-94; Ord. No. 20-163, § 3, 12-15-20)

Sec. 7-39. Performance evaluation.

(a) *Annual sessions.* The city and the grantee shall, at the discretion of the city, hold scheduled performance evaluation sessions annually. All such evaluation sessions shall be open to the public.

(b) *Special sessions.* Special evaluation sessions may be held at any time during the term of the franchise at the request of the city.

(c) *Public hearings.* All evaluation sessions held as public hearings shall be open to the public and announced in a newspaper of general circulation. The grantee shall notify subscribers of all such public hearings by announcement on a local origination channel on the system between the hours of 11:00 a.m. and 9:00 p.m. for five (5) consecutive days preceding each session.

(d) *Topics for review.* Topics which may be discussed at any scheduled or special evaluation sessions may include, but not be limited to, system performance and construction, grantee's compliance with this chapter and the franchise, customer service and complaint response, subscriber privacy, services provided, programming offered, service rate structures, if applicable, franchise fees, penalties, free or discounted services, applications of new technologies, judicial and FCC filings, and line extensions.

(e) *Cooperation by grantee.* During the review and evaluation by the city, the grantee shall fully cooperate with the city and shall provide such information and documents relevant to grantee's performance of its obligations under the provisions of this chapter and the franchise as the city may need to reasonably perform its review.

(f) *Response to inquiries.* The city, at any time, may make inquiries concerned with the grantee's performance of its obligations under the provisions of this chapter and the franchise. The grantee shall respond to such inquiries in a timely fashion. (Ord. No. 94-109, § 1, 10-24-94)

Secs. 7-40—7-49. Reserved.

ARTICLE IV. BONDS, INSURANCE, AND INDEMNIFICATION

Sec. 7-50. Performance bond and letter of credit.

(a) *Performance bond.* Prior to the effective date of the franchise, the grantee shall obtain and maintain during the entire term of any franchise and any extensions and renewals thereof, at its cost and expense, and file with the city, a corporate surety bond in an amount specified in the franchise to guarantee the faithful performance of the grantee of all its obligations provided under this chapter and the franchise or a letter of credit. Failure to timely obtain, file and maintain said bond or letter of credit shall constitute a violation within the meaning of this section. Such bond must be issued by a surety and in a form reasonably acceptable to the city.

(b) *Conditions.* The performance bond shall be issued by a surety licensed to do business in North Carolina and shall provide the following conditions:

(1) There shall be recoverable by the city jointly and severally from the principal and surety, any and all fines and liquidated damages due to the city and any and all damages, losses, costs, and expenses suffered or incurred by the city resulting from the failure of the grantee to: faithfully comply with the provisions of this chapter and the franchise; comply with all orders, permits and directives of any city agency or body having jurisdiction over its acts or defaults; pay fees due to the city; pay any claims, liens or taxes due the city which arise by reason of the construction, operation, maintenance or repair of the cable system. Such losses, costs and expenses shall include, but not be limited to, attorneys' fees and other associated expenses.

(c) *Reduction of bond.* Upon written application by the grantee, the city, at its sole option, may permit the amount of the bond to be reduced or waive the requirements for a performance bond if the grantee demonstrates a reasonable basis thereafter. Reductions granted or denied upon application by the grantee shall be without prejudice to the grantee's subsequent applications or to the city's right, at its sole discretion, to require the restoration of the full bond at any time thereafter. However, no application shall be made by the grantee within one (1) year of any prior application.

(d) *Letter of credit.* If a performance bond is not provided, the grantee shall obtain, maintain, and file with the city an irrevocable letter of credit from a financial institution acceptable to the city and licensed to do business in the state in an amount specified in the franchise, naming the city as beneficiary. The form and contents of such letter of credit shall be acceptable to the city and the letter shall be released only upon expiration of the franchise or upon the replacement of the letter of credit by a successor grantee. Failure to obtain the letter of credit or performance bond within the time specified herein shall constitute a violation within the meaning of this section.

(e) *Conditions.* The city may draw upon the letter of credit up to the amount of damage suffered by the city if the grantee fails to: faithfully comply with the provisions of this chapter and the franchise; comply with all orders, permits and directives of any city agency or body having jurisdiction over its acts or defaults; pay fees due to the city; or pay any claims, liens or taxes due the city which arise by reason of the construction, operation, maintenance or repair of the cable system.

(f) *Use of performance bond and letter of credit.* Prior to drawing upon the letter of credit or the performance bond for the purposes described in this section, the city shall notify the grantee in writing that payment is due and the grantee shall have ten (10) days from the receipt of such written notice to make a full and complete payment. If the grantee does not make the payment within ten (10) days, the city may withdraw the amount thereof, with interest and penalties, from the letter of credit or the performance bond.

(g) *Notification.* Within three (3) days of a withdrawal from the letter of credit or performance bond, the city shall send to the grantee, by certified mail, return receipt requested, written notification of the amount, date and purpose of such withdrawal.

(h) *Replenishment of letter of credit and performance bond.* No later than thirty (30) days after [the] mailing to the grantee by certified mail notification of a withdrawal pursuant to paragraph (f) above, the grantee shall replenish the letter of credit or performance bond in an amount equal to the amount so withdrawn unless the grantee has challenged such withdrawal and/or the basis thereafter. Failure to make timely replenishment of such amount to the letter of credit and/or performance bond shall constitute a violation of this chapter.

(i) *Non-renewal, alteration, or cancellation of letter of credit or performance bond.* The performance bond or letter of credit required herein shall be in a form reasonably satisfactory to the city and shall require thirty (30) days' written notice of any non-renewal, alteration or cancellation to both the city and the grantee. The grantee, in the event of any such cancellation notice, shall obtain, pay all premiums for, and file with the city, written evidence of the issuance of replacement bond or policies within thirty (30) days following receipt by the city or the grantee of any notice of cancellation.

(j) *City rights.* The rights reserved to the city with respect to the performance bond or letter of credit are in addition to all other rights of the city, whether reserved by this chapter, the franchise or authorized by law, and no action, proceeding or exercise of a right with respect to such a bond or letter of credit shall affect any other right the city may have.

(k) *Right to require replacement of bonds or insurance.* If the city becomes aware of the financial condition of any bonding or insurance company issuing a performance bond or insurance policy to the grantee as required herein where, if such conditions were known at the time, the city would not have approved the surety of the bond or the city would not have found the form of the bond or the insurance policies satisfactory or if the financial condition of such bonding or insurance company materially change to the extent that such approvals would not have been made, the city, at any time, may require that any such bond or insurance policy be replaced with such other bond or insurance policy consistent with the requirements set forth in this section.

(l) *Insurance for contractor and subcontractors.* The grantee shall provide coverage for any contractor or subcontractor involved in the construction, installation, maintenance or operation of its cable communications system by either obtaining the necessary endorsements to its insurance policies or requiring such contractor or subcontractor to obtain appropriate insurance coverage consistent with this section and appropriate to the extent of its involvement in the construction, installation, maintenance or operation of the grantee's cable communications system.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-51. Liability and insurance.

(a) *Certificate of insurance.* Prior to commencement of construction, but in no event later than sixty (60) days after the effective date of the franchise and thereafter continuously throughout the duration of the franchise and any extensions or

renewals thereof, the grantee shall furnish to the city, certificates of insurance, approved by the city, for all types of insurance required under this section. Failure to furnish said certificates of insurance in a timely manner shall constitute a violation of this chapter.

(b) *Filing.* A certificate of insurance obtained by the grantee in compliance with this section shall be filed and maintained with the city clerk during the term of the franchise.

(c) *No liability limit.* Neither the provisions of this section nor any damages recovered by the city hereunder, shall be construed to or limit the liability of the grantee for damages under any franchise issued hereunder.

(d) *Endorsement.* All insurance policies maintained pursuant to this chapter or the franchise shall contain the following, or a comparable, endorsement:

> It is hereby understood and agreed that this insurance policy may not be modified or canceled by the insurance company nor [may] the intention not to renew be stated by the insurance company until thirty (30) days after receipt by the city's risk manager of a written notice, by registered mail, of such intention to cancel or not to renew.

(e) *State institution.* All insurance policies provided under the provisions of this chapter or the franchise shall be written by companies authorized to do business in the state and approved by the state.

(f) *Names insured.* At any time during the term of the franchise the city may request and the grantee shall comply with such request to include the city as an insured for all insurance policies written under the provisions of this chapter or the franchise.

(g) *Commercial general liability insurance.* The grantee shall maintain, and by its acceptance of any franchise granted hereunder specifically agrees that it will maintain throughout the term of the franchise, general liability insurance insuring the grantee in the minimum [amount] of:

(1) One million dollars ($1,000,000.00) for property damage per occurrence;

(2) Two million dollars ($2,000,000.00) for property damage aggregate;

(3) Five million dollars ($5,000,000.00) for personal bodily injury or death to any one (1) person; and

(4) Ten million dollars ($10,000,000.00) bodily injury or death aggregate per single accident or annual aggregate.

(h) *Policy inclusions.* Such general liability insurance must include coverage for all of the following: occurrence form, premises operations, explosion and collapse hazard, underground hazard, products/completed operations hazard, contractual insurance, broad form property damage, and personal injury.

(i) *Automobile liability insurance.* The grantee shall maintain, and by its acceptance of any franchise granted hereunder specifically agrees that it will maintain throughout the term of the franchise, automobile liability insurance for owned, non-owned, or rented vehicles in the minimum amount of:

(1) Two million dollars ($2,000,000.00) for bodily injury and consequent death, per occurrence;

(2) One million dollars ($1,000,000.00) for bodily injury and consequent death to any one (1) person.

(3) Five hundred thousand dollars ($500,000.00) for property damage per occurrence.

(j) *Worker's compensation and employer's liability insurance.* The grantee shall maintain and by its acceptance of any franchise granted hereunder specifically agrees that it will maintain, throughout the term of the franchise, worker's compensation and employer's liability, valid in the state, in the minimum amount of:

(1) Statutory limit for worker's compensation.

(2) Five hundred thousand dollars ($500,000.00) for employer's liability.

(k) *No limitation on liability.* None of the provisions of this chapter or any insurance policy required herein, or any damages recovered by the city hereunder, shall be construed to excuse the

faithful performance by, or limit the liability of, the grantee under the provisions of this chapter or the franchise for damages either to the limits of such policies or otherwise.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-52. Indemnification.

(a) *Indemnity.* The grantee shall, at its sole cost and expense, fully indemnify, defend and hold harmless the city, its officers, boards and commissions, and city employees against any and all claims, suits, actions, liability and judgments for damages (including, but not limited to, expenses for reasonable legal fees and disbursements and liabilities assumed by the city in connection therewith):

(1) To persons or property, in any way arising out of or through the acts or omissions of the grantee, its servants, agents or employees, or to which the grantee's negligence shall in any way contribute.

(2) Arising out of any claim for invasion of the right of privacy, for defamation of any person, firm or corporation, or the violation or infringement of any copyright, trademark, trade name, service mark or patent, or of any other right of any person, firm or corporation.

(3) Arising out of the grantee's failure to comply with the provisions of any federal, state, or local statute ordinances or regulation applicable to the grantee in its business hereunder.

(b) *Condition.* The foregoing indemnity is conditioned upon the following:

The city shall give the grantee prompt notice of any claim or the commencement of any action, suit or other proceeding covered by the provisions of this section. Nothing herein shall be deemed to prevent the city from cooperating with the grantee and participating in the defense of any litigation by its own counsel at its own costs and expense. Any sum received by the city as liquidated damages shall be deducted from any recovery which the city might have against the grantee under the terms of this section.
(Ord. No. 94-109, § 1, 10-24-94)

Secs. 7-53—7-62. Reserved.

ARTICLE V. DESIGN AND CONSTRUCTION PROVISIONS

Sec. 7-63. Authority to construct.

(a) *Authorization to commence construction and application procedures.* Within thirty (30) days after acceptance by the grantee of a franchise, the grantee shall apply for any needed contracts for pole use. Pole space and other facilities obtained from the city, utilities, and other lawful users of the public way shall be at the cost and expense of the grantee. Within thirty (30) days after completion of the make-ready survey identifying the routes of the system facility, the grantee shall apply for all additional licenses from the state, city, or other necessary parties, such as the railroads, for crossing under or over their property. In any event, all necessary applications for permits, licenses certificates and authorizations shall be applied for in a timely fashion so that such filing and processing shall not interfere with or cause delay with the construction schedule as outlined in the franchise. Failure to make such timely application and timely filing shall constitute a substantial violation of this chapter.

(b) *Power to contract.* Upon grant of a franchise and in order to construct, rebuild, operate and maintain a cable system in the city, the grantee may enter into contracts with any public utility companies or any other owner or lessee of any poles or underground areas located within or without the city; obtain right-of-way permits from appropriate city, state, county, and federal officials necessary to cross or otherwise use highways or roads under their respective jurisdiction; obtain permission from the Federal Aviation Administration to erect and maintain antennas; and obtain whatever other permits a city, county, state or federal agency may require.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-64. Construction and technical standards.

(a) *Compliance with construction and technical standards.* The grantee shall construct, rebuild,

install, operate and maintain its system in a manner consistent with all laws, ordinances, construction standards or guidelines, governmental requirements, FCC technical standards, and detailed technical standards provided for in the franchise. The grantee, through the system, shall provide uniform, strong signals which are free from any significant distortion and interference. The system shall be designed, constructed, operated and maintained for twenty-four-hours-a-day continuous operation. The system shall produce for reception on subscribers' receivers which are in good working order either monochrome or color pictures (providing the receiver is color capable) which are free from any noticeable interference or distortion which would cause any material degradation of video or audio quality.

(b) *State of the art. The grantee shall construct, install operate and maintain its system in accordance with the highest standards of the art of cable communications, such standards to include, but not be limited to, the following:*

(1) The system will be spaced to permit a minimum of 750 MHz operation and will be compatible with cable ready television sets.

(2) The grantee shall maintain its system facilities in a manner which will continue to enable it to add new services and associated equipment as they are developed, available, and proved marketable to subscribers. The new services and associated equipment will be added to the system facilities when they are provided in any other similar sized market and proved economically viable, and are owned by the grantee or parent company and/or owned by other operators in the State of North Carolina and Virginia, excluding experimental and pilot projects, and such services and associated equipment can be offered on the grantees system in an economically viable manner (that is, grantee will be able to earn a profit over the remaining term of the franchise from the provision of such service or equipment).

(c) *City approval of construction plans.* Prior to the erection of any towers, poles or conduits or the upgrade or rebuild of the cable communications system under the provisions of this chapter, the grantee shall first submit to the city and other designated parties for approval a concise description of the facilities proposed to be erected or installed, including engineering drawings, if required, together with a map and plans indicating the proposed location of all such facilities. No erection or installation of any tower, pole, underground conduit, or fixture or any rebuilds or upgrading of the cable communications system shall be commenced by any person until approval therefor has been received from the city, which approval shall not be unreasonably withheld.

(d) *Contractor qualifications.* Any contractor proposed for work of construction, installation, operation, maintenance, and repair of system equipment must be properly licensed under laws of the state, and all local ordinances.

(e) *Minimum interference.* The grantee's system and associated equipment erected by the grantee within the city shall be so located as to cause minimum interference with the proper use of streets, alleys, and other public ways and places, and to cause minimum interference with the rights and reasonable convenience of property owners who adjoin any of the said streets, alleys or other public ways and places. No pole or other fixtures placed in any public ways by the grantee shall be placed in such a manner as to interfere with normal travel on such public way.

(f) *City maps.* The city does not guarantee the accuracy of any maps showing the horizontal or vertical location of existing substructures. In public rights-of-way, where necessary, the location shall be verified by excavation.

(g) *Quality of construction.* Construction, installation, operation, and maintenance of the cable communications system shall be performed in an orderly and workmanlike manner, in accordance with then current technological standards. All cables and wires shall be installed, where possible, parallel with electric and telephone lines. Multiple cable configurations shall be arranged in parallel and bundled with due respect for aesthetic and engineering considerations.

(h) *Construction standards.* The construction, installation, operation, maintenance, and/or removal

of the cable communications system shall meet all of the following safety, construction, and technical specifications and codes and standards:

Occupational Safety and Health Administration Regulations (OSHA);

National Electrical Code;

National Electrical Safety Code (NESC);

National Cable Television Association Standard Code;

AT&T Manual of Construction Procedures (Blue Book);

All federal, state and municipal construction requirements, including FCC Rules and Regulations;

All building and zoning codes, and all land use restrictions as the same exist or may be amended hereafter.

(i) *Right to inspection of construction.* The city or its designee shall have the right to inspect at any time all construction or installation work performed subject to the provisions of this chapter and the franchise and to make such tests as it shall deem necessary to ensure compliance with the terms of this chapter, the franchise and all other applicable law. The grantee shall cooperate fully with the city during all inspections and tests and shall provide access to all equipment, records, and other materials and information necessary for such inspections and tests. Except as otherwise provided by this chapter, the franchise, law, regulation or ordinance, all inspections and tests performed by the city shall be initially at the city's sole cost and expense. If the grantee is found not to be in compliance with the terms of this chapter and all other applicable law, then the grantee must reimburse the city for the costs of such inspections and tests. This reimbursement is not to be considered a part of the franchise fee.

(j) *Antennas.* Any antenna structure used in the cable communications system shall comply with construction, marking, and lighting of antenna structure standards as required by federal and state law or regulation.

(k) *OSHA.* All worker facilities, conditions, and procedures that are used during construction, installation, operation and maintenance of the cable system shall comply with the standards of the Occupational Safety and Health Administration.

(l) *RF leakage.* RF leakage shall be checked at reception location for emergency radio services to prove measurable interference signal combinations are possible. Stray radiation shall be measured adjacent to and proposed aeronautical navigation radio sites to prove no measurable interference to airborne navigational reception in the normal flight pattern. FCC Rules and Regulations shall govern. The system shall cause no measurable interference in TV signal reception to any operating receiver not connected to and serviced by the system.

(m) *Standby power.* The grantee shall maintain equipment capable of providing standby power for a minimum of eight (8) hours for the headend and two and one-half (2½) hours for the distribution system.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-65. System construction schedule.

The franchise shall specify the rebuild or the initial construction timetable. The timetable shall be a monthly schedule.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-66. Extension of service.

The grantee shall provide service to all dwelling units and commercial entities requesting service within the city and any areas annexed to the city within six (6) months of such request under such line extension provisions as provided for in the franchise.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-67. Use of streets.

(a) *Underground installation.* All installations shall be underground in those areas of the city where public utilities providing telephone and electric service are underground at the time of installation. In areas where either telephone or electric utility facilities are above ground at the time of installation, the grantee may install its service above ground, provided that at such time as those facilities are required to be placed underground

by the city or are placed underground, the grantee shall likewise place its services underground without additional cost to the city. Where not otherwise required to be placed underground by the provisions of this chapter or the franchise, the grantee's system shall be located underground at the request of the adjacent property owner, provided that the excess cost over the aerial location shall be borne by the property owner making the request. All cable passing under the roadway shall be installed in conduit.

(b) *Pedestals.* In any case where enclosures housing mini-hubs, switching, or other such equipment are to be utilized along streets and sidewalks, such equipment must be vaulted or otherwise contained in an underground enclosure so as to conform to existing city and utility equipment installation requirements. A certificate of approval from the city, which approval will not be unreasonably withheld, may be required for the location of any pedestal in a public right-of-way.

(c) *Permits.* Prior to construction or alteration of aerial or underground construction in the public right-of-way, however, the grantee shall in each case file plans with the appropriate city agencies, complete use agreements with the utility companies if necessary, obtain all construction permits and receive written approval of the city before proceeding and, if applicable, certificate of appropriateness in the historic district.

(d) *Construction notice.* The grantee shall give appropriate notice to the city and residents within a reasonable period of time of proposed construction, excavation, laying or stringing of cable under streets or on poles, but in no event shall such notice be given less than fourteen (14 days) before such commencement.

(e) *Interference with persons, improvements, public and private property and utilities.* The grantee's system and facilities, including poles, lines, equipment and all appurtenances, shall be located, erected and maintained so that such facilities shall:

(1) Not endanger or interfere with the health, safety or lives of persons;

(2) Not interfere with any improvements the city, county or state may deem proper to make;

(3) Not interfere with the free and proper use of public streets, alleys, bridges, easements or other public ways, places or property, except to the minimum extent possible during actual construction or repair;

(4) Not interfere with the rights and reasonable convenience of private property owners, except to the minimum extent possible during actual construction or repair; and

(5) Not obstruct, hinder or interfere with any gas, electric, water or telephone facilities or other utilities located within the city.

(f) *Restoration to prior condition.* In case of any disturbance of pavement, sidewalk, driveway or other surfacing, the grantee, at its own cost and expense and in a manner approved by the city, shall replace and restore all paving, sidewalk, driveway, landscaping, or surface of any street or alley disturbed, in as good a condition as, or better than, before said work was commenced and in a good workmanlike, timely manner in accordance with standards for such work set by the city. Such restoration shall be undertaken within no more than ten (10) business days after the damage is incurred and shall be completed as soon as reasonably possible thereafter.

(g) *Disconnection and relocation.* The grantee, at its sole cost and expense, shall protect, support, temporarily disconnect, relocate in the same street, or other streets and public grounds, or remove from any street or any other public ways and places any of its property as reason of traffic conditions, public safety, street construction, change or establishment of street grade, or the construction of any public improvement or structure by any city department may necessitate.

(h) *Private property.* The grantee shall be subject to all laws, ordinances or regulations regarding private property in the course of constructing, installing, operating or maintaining the cable communications system in the City of Greensboro. The grantee shall promptly repair or replace all private property, both real and personal, damaged or destroyed as a result of the construction, installation, operation or maintenance of the cable communications system at its sole cost and expense.

(i) *Cooperation with building movers.* The grantee, on the request of any person holding a building moving permit issued by the city, shall temporarily raise or lower its wire to permit the moving of buildings. The expense of such temporary removal, raising or lowering of wires shall be paid by the person requesting the same, and the grantee shall have the authority to require such payment in advance. The grantee shall be given not less than fifteen (15) working days' advance notice to arrange for such temporary wire changes.

(j) *Tree trimming.* The grantee may trim trees or other vegetation owned by the city to prevent branches, leaves or roots from touching or otherwise interfering with its wires, cables, or other structures as approved by the city.

All tree/root trimming or pruning provided for herewith shall be done under the supervision and direction of the appropriate city agency and only with its prior written approval.

All trimming or pruning shall be at the expense of the grantee.

The grantee may contract for such trimming or pruning services with any person approved by the city prior to rendering of such services.

Any and all persons engaged by the grantee to provide tree trimming or pruning services shall be deemed, for purposes of the franchise, an employee or agent of the grantee when engaged in such activity; and in no event shall such person be deemed to be an employee of the city.

If applicable, specific approval shall be received for tree trimming or pruning services in the historic district, which approval shall not be unreasonably withheld.

The grantee shall use its best efforts to obtain the prior permission of the owner of any privately owned trees or other vegetation before it prunes or trims same.

The grantee shall give appropriate notice to the city and residents within a reasonable time of proposed tree/root trimming and pruning, but in no event shall such notice be given less than seven (7) days before such commencement.

(k) *Public property.* Where any damages or alterations occur to the city's water, sewage or drainage lines or to any other municipal structures in the streets during the construction due to the presence, negligence operation or maintenance of the cable communications system, the sole cost of such repairs, including all services and materials, will be billed against the grantee and these charges shall be paid immediately or the city may foreclose on performance bonds or invoke other appropriate sanctions provided for in this chapter.

(l) *Easements.* All necessary easements over and under private property shall be arranged for by the grantee.

(m) *Construction and installation manual.* The grantee shall submit to the city a manual which sets forth the specifications, standards and procedures for construction and installation of its cable communications system. Said manual shall be consistent with the highest standards of the cable television industry and shall, at a minimum, establish procedures to ensure quality work and provide for the safety and protection of residents and property. Said manual shall be included in the franchise.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-68. Erection, removal and common use of poles—Requirements to use existing poles.

Where poles already exist for use in serving the city and are available for use by the grantee, but it [the grantee] does not make arrangements for such use, the city may require the grantee to use such poles and structures if the public convenience would be enhanced thereby and the terms of the use available to the grantee are just and reasonable.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-69. Conduit in downtown area.

(a) *Approval for conduit.* No conduit shall be installed by the grantee in the downtown area without prior approval of the city with regard to location and any other pertinent aspect which approval shall not be unreasonably withheld. However, no location of any conduit of the grantee shall give rise to a vested interest and such con-

duit or structures shall be removed or modified by the grantee at its own expense whenever the public convenience would be enhanced thereby.

(b) *Use of existing conduit.* Where conduit already exists for use in serving the downtown area and is available for use by the grantee, but it [the grantee] does not make arrangements for such use, the city may require the grantee to use such conduit if the public convenience would be enhanced thereby and the terms of the use available to the grantee are just and reasonable. (Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-70. Construction reporting requirements.

(a) *Progress reports.* Within ninety (90) days of the granting of a franchise pursuant to this chapter and bi-monthly thereafter during construction, the grantee shall provide the city with a written progress report detailing work completed to date and a schedule for completion of construction. Such report shall include a description of the progress in applying for any necessary agreements, licenses, or certifications and any other information the city manager may deem necessary. The content and format of the report will be determined by the city manager and may be modified at his/her/their discretion.

(b) *Time frame for reports.* Such written progress reports shall be submitted to the city on a bimonthly basis throughout the entire construction or rebuild process. The city manager may require more frequent reporting if he/she/they determines it is necessary to better monitor the grantee's progress.

(c) *Subscriber information.* Prior to the commencement of any major system construction, the grantee shall produce an informational document to be distributed to all residents of the area to be under construction, which shall describe the activity that will be taking place.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-71. Tests and performance monitoring.

(a) *Completion tests.* Not later than thirty (30) days after any new or substantially rebuilt portion of the system is made available for service to subscribers, and thereafter on the annual anniversary of the effective date of the franchise; the grantee shall conduct technical performance tests to demonstrate full compliance with all technical standards contained in this chapter and the franchise, and the technical standards and guidelines of the FCC.

(b) *Methodology.* Such tests shall be performed by, or under, the supervision of a qualified engineer. A copy of the report shall be submitted to the city, describing test results, instrumentation, calibration, and test procedures and the qualification of the engineer responsible for the tests.

(c) *Test points.* System monitor test points shall be established at or near the output of the last amplifier in the longest feeder line, at or near trunk line extremities. Such periodic tests shall be made at the test points as shall be required by the FCC and/or the franchise.

(d) *FCC tests.* In addition to the performance test reports required herein, a copy of any performance test reports required by the FCC shall be submitted to the city within sixty (60) days of completion.

(e) *City required tests.* Whenever there have been similar complaints made or when there exists other evidence, which, in the judgement of the city, casts doubt on the reliability or quality of the grantee's system, the city shall have the right and authority to compel the grantee to test, analyze, and report on the performance of its system. The city may require additional tests, full or partial repeat tests, different test procedures, or tests involving a specific subscriber's terminal. Reports on such tests shall be delivered to the city no later than thirty (30) days after the city formally notifies the grantee. The report shall include the following information: the nature of the complaints which precipitated the special tests; what system component was tested; the equipment used, and procedures employed in said testing; the results of such tests; and methods by which said complaints were resolved. Said tests and analyses shall be supervised by a qualified engineer who shall sign all records of the special tests and

forward same to the city with a report interpreting the results of the tests and recommending what actions should be taken.

(f) *General maintenance.* The grantee shall maintain wires, cables and all other real and personal property and facilities constituting the cable communications system in good condition, order and repair at all times during the term of the franchise.

(g) *Maintenance log.* The grantee shall maintain an annual log showing the date, approximate time and duration, type and probable cause of all cable communications system outages, whole or partial, due to causes other than routine testing or maintenance. The entries in such log shall be retained by the grantee for one (1) additional year and shall be subject to inspection and copying by the city or its designee during the grantee's regular business hours upon reasonable request.

(h) *Service interruption.* Except where there exists an emergency situation necessitating a more expeditious procedure, the grantee may interrupt service for the purpose of repairing, upgrading or testing the cable communications system, only during periods of minimum use, and when possible, [the grantee shall give] forty-eight (48) hours' notice to affected subscribers.

(i) *Leakage monitoring.* Leakage monitoring shall be conducted by all maintenance technicians on an ongoing basis. The results of said monitoring shall be made available to the city upon request.
(Ord. No. 94-109, § 1, 10-24-94)

Secs. 7-72—7-81. Reserved.

ARTICLE VI. SERVICE PROVISIONS

Sec. 7-82. Services to subscribers and institutions.

(a) *Programming.* Concurrently with the activation of the cable communications system in the city, the grantee shall provide all services to subscribers as described herein.

(1) The system shall carry programming as specified in the franchise. Any such change in programs or services offered shall comply with the conditions and procedures contained in the franchise and shall be reported to the city at least thirty (30) days prior to the proposed implementation. The grantee shall use its best efforts to ensure diversity of programming.

(2) Basic service tier. A basic service tier shall be offered to subscribers throughout the term of this chapter and the franchise to the extent required by law.

(3) Access. The grantee shall provide and maintain the following types of access channels the number of which shall be specified in the franchise:

a. A government access channel which shall be a specifically designated channel for local governmental use and shall be managed, scheduled and programmed exclusively by the city.

b. An educational access channel which shall be a specifically designated channel for use by local public school authorities, and shall be managed, scheduled and programmed exclusively by them.

c. A public access channel which will be a specifically designated channel available on a first-come, first-served, nondiscriminatory basis.

(4) Leased access. The grantee shall make available leased access channels to assure that the widest possible diversity of information sources are made available to subscribers as required by law.

a. Such channels shall be specially designated for leased access use by persons unaffiliated with the grantee, at rates which are fair and reasonable as required by law.

(5) Program guide. The grantee shall provide a cable guide which may be delivered in written or electronic form.

(6) Access services. The grantee shall fully provide, at a minimum, services, facili-

ties and equipment for public, educational, and government access as indicated in the franchise.

(b) *Institutional network.*

(1) The grantee shall provide an institutional network and related services as specified in the franchise.

(c) *Emergency override.* The grantee shall, without charge, provide, service and maintain public emergency transmission facilities to the city, as described in the franchise.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-83. Installations, connections, and other services.

(a) *Standard installations.* Standard installation shall consist of a service not exceeding one hundred fifty (150) feet from a single point or pedestal attachment to the customer's residence. Service in excess of one hundred fifty (150) feet and concealed wiring shall be charged at such cost as exceeds normal installation costs. The desire of the subscriber as to the point of entry into the residence or commercial establishment and location of pedestal shall be observed whenever possible. Runs in building interiors shall be as unobtrusive as possible. The grantee shall use due care in the process of installation and shall repair any damage to the subscriber's property caused by said installation. Such restoration shall be undertaken within no more than ten (10) days after the damage is incurred and shall be completed as soon as possible thereafter.

(b) *Deposits.* Any deposit required by the grantee shall bear interest at a rate of not less than the deposit rate of the bank then utilized by the city.

(c) *Lockout devices.* The grantee, as part of its promotional literature, shall provide to the potential subscriber information concerning the availability of a lockout device for use by a subscriber. The lockout device described herein shall be made available to all subscribers requesting it beginning on the first day that any cable service is provided.

(d) *Reconnection.* The grantee shall restore service to customers wishing restoration of service, provided customer shall first satisfy any previous obligations owed.

(e) *Free disconnection.* Subscribers shall have the right to have cable service disconnected without charge unless otherwise specified in FCC rules. A refund of unused service charges shall be paid to the customer within sixty (60) days from the date of termination of service.

(f) *Downgrade fees.* No downgrade fees shall be handled in accordance with FCC rules.

(g) *Delinquent accounts.* The grantee shall use its best efforts to collect on delinquent subscriber accounts. Service will not be disconnected if a delinquent customer agrees at any time to be placed on a mutually acceptable payment plan to clear the account and makes all payment in a timely fashion. In all cases, the grantee shall provide the customer with at least ten (10) working days' written notice prior to disconnection.

(h) *Subscriber policies.* The grantee shall comply with all subscriber policies in the cable ordinance and the franchise agreement.

(i) *Installation.* The grantee shall install cable to a subscriber within seven (7) business days of request by the subscriber in accordance with the technical standards set forth in the franchise, unless the subscriber requests a later installation.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-84. Service calls and complaint procedures.

(a) *Business office.* The grantee shall establish, operate and maintain in the city a business office, and maintenance and repair facility for the purpose of receiving inquiries, requests and complaints concerning all aspects of the construction, installation, operation, and maintenance of the system and for the payment of subscribers' service charges, and providing facilities for the production of programming. The grantee shall provide all subscribers or users with at least thirty (30) days' prior written notice of a change in business office hours. The business office shall maintain a staff adequate to process complaints, requests for installation, service or repairs, and other business in a timely and efficient manner. The grantee shall add additional telephone lines and service representatives when existing lines are substantially utilized or when a pattern of sub-

scriber complaints reflect a need for additional service employees. Additional offices and payment stations provided by the grantee shall be included in the franchise.

(b) *Telephone service.* The grantee shall have a listed, locally-staffed telephone number for service calls available twenty-four (24) hours a day, seven (7) days a week. Said number shall be made available to subscribers and the general public. The grantee shall provide an unlisted locally-staffed telephone number to the city and utility companies to enable the city or utility companies to reach the grantee in case of emergency on a twenty-four-hour, seven-days-a-week basis.

(c) *Grantee rules.* The grantee shall prepare and file with the city copies of all of its rules and regulations in connection with the handling of inquiries, requests and complaints. The grantee shall, by appropriate means, such as a card or brochure, furnish information concerning the procedures for making inquiries or complaints, including the name, address and local telephone number of the employee or employees or agent to whom such inquiries or complaints are to be addressed, and furnish information concerning the city office responsible for the administration of the franchise, including, but not limited to, the address and telephone number of said office.

(d) *Complaint records.* The grantee shall keep full records in connection with all complaints and requests which require corrective action, excluding complaints related to rates and programming, in connection with the system. Such records shall identify the person contacting the grantee, and the person responding on behalf of the grantee, the subject matter of the contact, the date and time it was received, the resolution of the matter in question or the action taken by the grantee in connection with the contact, and the date and time thereof, and such other information as may be deemed pertinent by the grantee. These records shall be maintained for three (3) years and made available for periodic inspection by the city, subject to privacy provisions of applicable law.

(e) *Equipment service. The grantee shall service or replace all equipment provided by it to the subscriber.*

(f) *Subscriber solicitation.* The grantee shall provide the city with a list of names and addresses of all representatives who will be soliciting within the city and the area in, and the dates within, such solicitations shall take place. Each such representative and all other employees entering upon private property shall be required to wear an employee identification card issued by the grantee and bearing a picture of said representative. The grantee shall notify the general public of its solicitation in a manner calculated to reach residents in the areas to be solicited in advance of such solicitation.

(g) *Sales information.* The grantee shall provide at installation annually and upon request to all prospective subscribers or users with complete written information concerning all services and rates provided by the grantee upon solicitation of service and prior to consummation of any agreement for installation of service. Such sales material shall clearly and conspicuously disclose the price and other information concerning the grantee's least costly service. Such information shall be written in plain English and shall include but shall not be limited to the following: all services, tiers, and rates; deposits, if applicable; installation costs; additional television set charges; service upgrade or downgrade charges; lockout devices; and information concerning the utilization of video cassette recorders (VCRs) with cable service(s) and the cost for hooking up such VCRs so that they function as manufactured.

(h) *Billing practices information.* The grantee shall inform all subscribers annually and all prospective subscribers or users upon request of complete information respecting billing and collection procedures, procedures for ordering changes in or termination of services, and refund policies, upon solicitation of service and prior to the consummation of any agreement for installation of service. Such information shall be written in plain English.

(i) *Response to service complaint.* Calls for repair service shall be acted upon as provided in FCC regulations and/or the franchise. System outages, whole or partial, shall be acted upon immediately. The grantee shall promptly resolve complaints other than requests for repairs. When a

complaint cannot be resolved within three (3) calendar days, the grantee shall provide the affected subscriber or user with an explanation. The grantee shall maintain on a twenty-four-hour basis a team of field technicians to repair outages.

(j) *Unresolved complaints.* Should a subscriber or user have an unresolved complaint after a seven-day period, the subscriber or user shall be entitled to file his/her/their complaint for repair service with the city, which shall have primary responsibility for the continuing administration of this chapter and the franchise and the implementation of complaint procedures. A representative of the grantee shall be available thereafter to meet jointly with the city and the affected subscriber or user, within thirty (30) days after said subscriber or user has filed the complaint, to fully discuss and resolve the matter.

(k) *Information with respect to viewing habits and subscription decisions.* The grantee or its agents or employees shall not make available to any third party, including the city, information concerning the viewing habits or subscription package decision of any individual subscriber or household without obtaining the subscriber's prior written consent. If a court authorizes or orders such disclosure, the grantee shall notify the subscriber within one (1) week prior to such disclosure. The grantee shall provide written notice to each subscriber when equipment is to be installed on the cable communications system which would permit the recording or monitoring of individual viewing habits of such subscriber or household; such equipment shall be installed only after prior written permission has been granted by the subscriber. In no event shall such permission be obtained as a condition of service or continuation thereof. For any sort of transmission to emanate from a subscriber's residence or subscriber household, the subscriber must take some positive action to activate such transmission. In the event the service requested by the subscriber by its nature involves the transfer of information or data from the subscriber or household, including, without limitation, security services or data transfer, the ordering of the service shall be deemed to include the grant of permission by the subscriber or household for the making available of such information to such parties as is necessary for the provision of the service. Written permission shall be obtained from the subscriber prior to further dissemination or distribution by the grantee of such information.

(l) *Subscriber and user contracts.* It is stipulated and agreed by the grantee that section 7-84 and section 7-86 shall be enforceable directly by every aggrieved subscriber or user and by every aggrieved person seeking to become a subscriber or user. The city includes the above referenced sections as part of this chapter pursuant to both its governmental obligations to the residents and institutions of Greensboro, including actual and potential subscribers and users, and as the representatives of such actual and potential subscribers or users. To this end, the grantee agrees to include the following provision in every contract or agreement between the grantee and any subscribers or users entered into after the effective date of the grantee's franchise:

> The subscriber/user as part of this contract, has certain rights of privacy prohibiting the unauthorized monitoring of service and publication of personal information under the control of the grantee, including, without limitation, information regarding program selections or service uses. The grantee shall make available upon the request of the subscriber/user further description of said rights as established in its ordinance and franchise with the City of Greensboro. The grantee further agrees that it will not allege or contend that any actual or potential subscriber or user may not enforce the above referenced sections by reason of lack of privity.

(m) *Subscriber information to be destroyed.* Any information concerning individual subscriber viewing habits or responses, except for information for billing purposes, shall be destroyed within sixty (60) days. Information for billing purposes shall be kept for a minimum of two (2) years unless otherwise required to be kept by law.

(n) *Investigation and remedial action.* For recurrent complaints regarding service deficiencies (other than total or partial loss of service, such as "ghosting," weak audio signal, distortion, and the like), the city manager may require the grantee to investigate and report to him/her/them the causes and cures thereof, and the city manager may also conduct his/her/their own investigation. Thereafter, the city manager may order specified remedial action to be taken within reasonably feasible time limits. If such action is not taken, or is ineffective, or if within thirty (30) days the grantee files with the city a notice of objection to the order, the city may conduct a hearing and may, if the evidence warrants a finding of fault on the part of the grantee, take appropriate action pursuant to the terms of this chapter.
(Ord. No. 94-109, § 1, 10-24-94; Ord. No. 20-163, § 3, 12-15-20)

Sec. 7-85. Operation after termination or expiration of franchise.

(a) *Subscription rights.* It shall be the right of all subscribers to receive continuous, uninterrupted service insofar as their financial obligations to the grantee are honored.

(b) *Failure to provide continuity.* In the event the grantee fails to operate the system for seven (7) consecutive days without prior approval of the city or without just cause, the city may, at its option, operate the system or designate an operator until such time as grantee restores service under conditions acceptable to the city or a permanent operator is selected. If the city is required to fulfill this obligation for the grantee, the grantee shall reimburse the city for all reasonable costs or damages in excess of revenues from the system received by the city that are the result of the grantee's failure to perform.

(c) *Extended operation.* In the event the franchise is terminated, or upon its expiration, the council may require the grantee to continue operation for a period not exceeding twelve (12) months after the date of the grantee's termination or expiration. Thereafter the grantee shall remove, at its own expense, all portions of its cable television system from all streets and public ways to a condition reasonably satisfactory to the city as specified in section 7-14 and section 7-15. The grantee shall maintain a bond and letters of credit pursuant to section 7-50 until the conclusion of all operations under the franchise and this chapter, including the removal of all equipment and facilities.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-86. Protection of subscriber privacy.

(a) *Protection mandatory.* The grantee shall at all times protect the privacy of subscribers, as provided in this chapter and other applicable federal, state, and local laws.

(b) *Notice of privacy provisions.* At the time of entering into an agreement to provide any cable service or other service to a subscriber, and at least once a year thereafter, the grantee shall provide notice in the form of a separate written statement to each subscriber which clearly and conspicuously informs the subscriber of:

(1) The privacy rights of the subscriber and the limitations placed upon the grantee with regard to this chapter hereof and all other applicable federal, state, and local subscriber privacy provisions;

(2) The nature of personally identifiable information collected or to be collected with respect to the subscriber and the nature of the use of such information;

(3) The nature, frequency, and purpose of any disclosure which may be made of such information, including an identification of the types of persons to whom the disclosure may be made;

(4) The period during which such information might be maintained by the cable operator;

(5) The times and place at which the subscriber may have access to such information in accordance with this chapter and other applicable federal, state, and local law;

(6) A request for the subscriber's signature [which] allows for use of personally identifiable information.

(c) *Collection of personally identifiable information prohibited.* The grantee shall not use or permit the use of the cable system to collect personally identifiable information concerning any subscriber, except as necessary to render a cable service or other service provided by the cable operator to the subscriber or if consented to by the subscriber. The grantee shall not install or permit the installation of any special terminal equipment in any subscriber's premises for the two-way transmission of any aural, visual, or digital signals without the prior written consent of the subscriber. The grantee shall not tabulate, nor permit others to tabulate, any subscriber use of the cable system which would reveal the opinions or commercial product preferences of individual subscribers, whether residential or business, or of any occupant or user of the subscriber's premises without written authorization from the subscriber for his/her/their participation in a shop-at-home or similar service. When providing such service, the grantee may tabulate only those responses essential to the functioning of that shopping or other service, and may not use any such tabulation of individual preferences for any other purposes without the subscribers consent. Tabulations of aggregate opinion or preference are permitted, provided the aggregations are sufficiently large to assure individual privacy.

(d) *Disclosure of subscriber information prohibited.* The grantee shall not without the specific written authorization of the individual subscribers involved, sell or otherwise make available to any party, any list which identifies the viewing habits of individual subscribers, or any personal data, social security number, income and other data the company may have on file about individual subscribers, except as necessary to render or conduct a legitimate business activity related to a cable service or other service provided by the cable operator to the subscriber, provided, however, that such disclosure shall not reveal directly or indirectly the extent of viewing or other use by the subscriber of a cable service or other service provided by the cable operator, or the nature of any transaction made by the subscriber over the cable system.

(e) *Notices of monitoring.* The grantee shall report to the affected parties, the city and other appropriate authorities, any instances of monitoring or tapping of the system, or any part thereof, of which it has knowledge, which is not authorized under this section whether or not such activity has been authorized by the grantee. The grantee shall not record or retain any information transmitted between a subscriber or user and any third party, except as required for lawful business purposes. The grantee shall destroy all subscriber or user information of a personally identifiable nature after a reasonable period of time, unless retention of such information is authorized by the affected subscriber or user.

(f) *Polling by cable.* No poll or other upstream response from a subscriber shall be conducted or obtained except as part of a program that contains all explicit disclosure of the nature, purpose and prospective use of the results of the poll or upstream response. The grantee or its agents shall release the results of upstream responses only in the aggregate and without individual references.

(g) *Monitoring devices.* The grantee shall provide written notice to each subscriber when equipment is to be installed on the system which would permit the recording or monitoring of individual viewing habits of a subscriber or household; such equipment shall be installed only after prior written permission has been granted by the subscriber. Such permission may be valid for one (1) year only and may be renewed by permission of the subscriber. In no event shall such permission be obtained as a condition of service or continuation thereof. The grantee shall give each subscriber annual written notice of any such monitoring and of the subscriber's right to terminate the monitoring in accordance with the terms and conditions of the subscriber's contract with the grantee.

(h) *Personally identifiable information.* The grantee shall not predicate regular subscriber service on the subscriber's grant or denial of permission to collect, maintain or disclose person-

ally identifiable information. A subscriber may at any time revoke any permission previously given by delivering to the grantee a written statement of that intent.

(i) *Correction policy.* Each subscriber shall be provided access to all personally identifiable information regarding such subscriber that the grantee collects or maintains or allows to be collected or maintained, and such subscriber shall be provided the opportunity to correct any error in such information.

(j) *Viewing habits.* Any information concerning individual subscriber viewing habits or responses, except for information for billing purposes, shall be destroyed within sixty (60) days of collection. Information for billing purposes shall be kept for a minimum of two (2) years, unless otherwise required to be kept by law.

(k) *System performance.* This section is not intended to prohibit the use or transmission of signals useful only for the control or measurement of system performance.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-87. Rights of individuals.

(a) *Nondiscrimination required.* The grantee shall not deny service, deny access, or otherwise discriminate against subscribers, channel users or general citizens on the basis of race, color, religion, national origin, age, sex, or physical or mental handicaps, provided the subscriber shall pay all applicable fees for the service desired. The grantee shall comply at all times with all other applicable federal, state and local laws and regulations and all executive and administrative orders and rates relating to nondiscrimination which are hereby incorporated and made part of this chapter by reference.

(b) *Fairness of accessibility.* The entire system of the grantee shall be operated in a manner consistent with the principles of fairness and equal accessibility of its facilities, equipment, channels, studios and other services to all citizens, businesses, public agencies and other entities having a legitimate use for the network; and no one shall be arbitrarily excluded from its use; allocation of use of said facilities shall be made according to the rules or decisions of the grantee and any regulatory agencies affecting the same.

(c) *Information accessibility.*

(1) Each individual shall have the right to information concerning the provisions of this chapter and the rules and regulations formulated pursuant to it by the council, the grantee, agent or entity created hereunder or pursuant to this chapter.

(2) Such information as may herein be prescribed will be made available to the public and individual subscribers in such form required for the understanding, including, upon request, the deaf and blind, and in such languages as may be specified by city council if there exists a significant need.

(3) Each document required to be maintained, prepared, filed or submitted under the provisions of this chapter or pursuant to it, except those required and designated confidential by the Federal Communications Commission or other public law or regulation, is a public document, available for public inspection and copying, at the requestor's expense, at the office of the grantee or the city during normal business hours. The charge for such copying shall approximate the cost of mechanical reproduction and shall not include a charge for labor.

(Ord. No. 94-109, § 1, 10-24-94)

Secs. 7-88—7-97. Reserved.

ARTICLE VII. BOOKS, RECORDS, AND REPORTS

Sec. 7-98. Books and records available to the grantor.

(a) *Records.* The grantee shall maintain an office within the franchise territory. The city shall have the right to inspect at any time during normal business hours, all books, records, maps, plans, income tax returns, financial statements,

service complaint logs, performance test results and other like materials of the grantee which relate to the performance of the grantee's obligation under this chapter and the franchise. Access to the aforementioned records shall not be denied by the grantee on the basis that said records contain "proprietary" information, but the city shall treat all such proprietary information to which it is given access as confidential and not copy or disclose it. Notwithstanding the above, the grantor shall be governed by the requirement of Chapter 132, General Statutes of North Carolina relating to public records.

(b) *Review.* The grantee shall permit any duly authorized representative of the city to examine and copy or transcribe any and all maps and other records kept or maintained by grantee or under its control concerning the grantee's performance of its obligations under the provisions of this chapter and the franchise. If any of such maps or

records are not kept in the city, or upon reasonable request made available in the city, and if the city shall determine that an examination of such maps or records is necessary or appropriate to the performance of any of their duties, then all travel and maintenance expenses necessarily incurred in making such examination shall be paid by the grantee.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-99. Reports required.

The grantee shall file the following reports with the city:

(1) *Regulatory communications.* All reports required by the Federal Communications Commission (FCC), including, but not limited to, any annual proof of performance tests and results, equal employment opportunity (EEO) reports, required financial information, and all petitions, applications and communications of all types submitted by the grantee to the FCC, the Security and Exchange Commission (SEC), or any other federal or state regulatory commission or agency, to the extent such reports concern grantee's system in Greensboro.

(2) *Facilities report.* An annual report setting forth the physical miles of plant construction and plant in operation during the fiscal year shall be submitted to the city. Such report shall also contain revisions to the system "as built' maps filed with the city. The annual report shall be provided in February.

(3) *Construction reports.* Construction reports shall be sent to the city within thirty (30) days after the franchise is awarded and bimonthly thereafter for any construction undertaken during the term of the franchise until construction is complete, including the rebuild, as specified in the franchise.

(4) *Proof of performance tests.* Proof of performance test results shall be supplied to the city when sections of the system are rebuilt and annually as required in this chapter.

(5) *Tests required by city.* Technical tests required by the city as specified in this chapter and the franchise shall be submitted within fourteen (14) days of notification.

(6) *Change in service.* A report on any change in programming or service shall be provided to the city thirty (30) days prior to implementation to the extent within control of the grantee.

(7) *Grantee rules.* The grantee's schedule of charges, contract or application forms of regular subscriber service policy regarding the processing of subscriber complaints, delinquent subscriber disconnect and reconnect procedures and any other terms and conditions adopted as the grantee's policy in connection with its subscribers shall be filed with the city and conspicuously posted in the grantee's local office. All such terms and conditions, including schedule of charges, must have been filed with the city prior to their becoming effective. Such rules, regulations, terms and conditions shall not be in conflict with the provisions hereof or applicable state and federal laws, rules or regulations.

(8) *Proof of bonds and insurance.* The grantee shall submit to the city the required performance bond, or a certified copy thereof, and written evidence of payment of required premium, and all policies of insurance required by this chapter, or certified copies thereof, and written notice of payment of required premium.

(9) *Financial reports.* The following financial reports for the franchise area shall be submitted annually to the city ninety (90) days after the end of the grantee's fiscal year:

a. An ownership report, indicating all persons who at any time during the preceding year did control or benefit from all interest in the franchise of one (1) percent or more.
b. An annual, fully-audited and certified income statement from the previous calendar year, including subscriber revenue from each category of service and every source of nonsubscriber revenue.

Prior to transfer or renewal, a fully-audited and certified financial report

from the previous calendar year, including year-end balance sheet; income statement showing subscriber revenue from each category of service and every source of nonsubscriber revenue, line item operating expenses, depreciation expense, interest expense and taxes paid; statement of sources and applications of funds; and depreciation schedule.

c. An annual list of officers and members of the board of the grantee and of any parent corporation.

(10) *Operational reports.* The following system and operational reports shall be submitted annually to the city:

a. A report on the system's technical tests and measurements as set forth herein and in the franchise.
b. A report on programs and services offered by the grantee, including public, educational, government, and leased access.
c. An annual summary of the previous year's activities, including, but not limited to, subscriber totals for each category of service offered including number of pay units sold, new services offered, and the amount collected annually from other users of the system and the character and extent of the service rendered thereto.
d. An annual summary of complaints received and handled in addition to any reports required in the franchise.
e. An annual projection of system and service plans for the future.

(11) *Additional reports.* The grantee shall prepare and furnish to the city at the times and in the form prescribed, such additional reports with respect to its operation, affairs, transactions or property, as may be reasonably necessary and appropriate to the performance of any of the rights, functions or duties of the city in connection with this chapter or the franchise.

(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-100. Records required.

(a) *Mandatory records.* The grantee shall maintain at all times:

(1) A record of all complaints received, excluding complaints regarding rates and programming, and interruptions or degradation of service experience for the preceding period prior to a performance review.

(2) A full and complete set of plans, records and "as built" maps showing the exact location of all cable communication system equipment installed or in use in the city, exclusive of subscriber service drops.

(b) *Other records.* The city may impose reasonable requests for additional information, records and documents related to the grantee's performance of its obligations under this chapter and the franchise from time to time.

(Ord. No. 94-109, § 1, 10-24-94)

Secs. 7-101—7-110. Reserved.

ARTICLE VIII. MISCELLANEOUS PROVISIONS

Sec. 7-111. Public notice.

Minimum public notice of any public meeting relating to this chapter or the franchise shall be governed by local law.

(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-112. Captions.

The captions to sections throughout this chapter are intended solely to facilitate reading and reference to the sections and provisions of this chapter. Such captions shall not affect the meaning or interpretation of this chapter.

(Ord. No. 94-109, § 1, 10-24-94)

Cross reference—Catchlines to sections generally, § 1-3.

Sec. 7-113. Separability.

If any section, sentence, paragraph, term or provision of this chapter is determined to be illegal, invalid or unconstitutional, by any court of competent jurisdiction upon final adjudication or by any state or federal regulatory agency having ju-

risdiction thereof, such determination shall have no effect on the validity of any other section, sentence, paragraph, term or provision hereof, all of which will remain in full force and effect.
(Ord. No. 94-109, § 1, 10-24-94)

Cross reference—Severability of provisions generally, § 1-7.

Sec. 7-114. Grandfather rights.

Nothing contained in this chapter shall be construed to deprive the grantee or the city of any "grandfather" rights in any future amendments to any statute or regulation.
(Ord. No. 94-109, § 1, 10-24-94)

Sec. 7-115. Franchise applications.

(a) *Invitation of applications for a franchise, public notice of "request for proposals."* The city shall invite applications for a cable television franchise which is not a renewal franchise by means of a public notice advertising the availability of its "request for proposals."

(1) The public notice shall contain, but not be limited to:

a. A description of the franchise area which is sought.
b. A statement that a formal "request for proposals" is available to prospective applicants from a city official whose name, address and telephone number are specified.
c. A statement that applications for the franchise must be submitted in writing in the form and manner specified in the "request for proposals" no later than a day certain.
d. A statement that all applications will be made available for public inspection during normal business hours at a specified location.

(b) *Request for proposals.* Prior to inviting applications for any cable television franchise, the city shall prepare a "request for proposals" that shall contain, but need not be limited to, the following:

(1) A description of the cable television system and services desired by the city, including any system specifications established by the city.

(2) A statement specifying the form that all applications shall follow.

(3) A statement indicating the amount of the application fee (if any) to be submitted with the application, and the manner in which such fee is to be submitted.

(4) A statement that all applications must contain the information required by the "request for proposal."

(5) The closing date for the submission of applications.

(6) The name, address, and telephone number of the city official(s) who may be contacted for further information.

(c) *Requirement for public hearing on reasonable notice.* The city shall conduct public hearing prior to awarding any cable television franchise. The hearing shall be preceded by reasonable notice to each of the franchise applicants and to the public, and shall be conducted by the city council in accordance with the following procedures:

(1) There shall be an agenda for the hearing which shall specify the proposal(s) to be considered at the hearing.

(2) Every person who has applied for a cable television franchise shall appear at the hearing either in person or by authorized representative. The application of any applicant not so appearing shall not be further considered, except for good cause shown.

(3) All persons shall be given opportunity to participate in the hearing, but nothing contained herein shall limit the power of the presiding officer to establish reasonable time limits and otherwise limit repetitive statements or questions.

(4) The notice of hearing shall:

a. Conform to all relevant state and local laws and ordinances.
b. Describe the agenda to be considered at the public hearing.
c. Indicate that copies of all franchise applications are available for public inspection during normal business hours at a place to be specified in the notice.

(d) *City discretion.* Subject to the applicable law, the city, at its discretion, may reject any application for a franchise.
(Ord. No. 94-109, § 1, 10-24-94)

Chapter 8

CEMETERIES*

*State law reference—Cemeteries, G.S. §§ 65-37 et seq., 160A-341 et seq.

Sec. 8-1. Perpetual care fund.

A fund, to be known as the perpetual care fund, for the purpose of perpetually caring for and beautifying the city cemeteries is hereby established. The city treasurer may accept gifts and bequests to the fund upon such terms as the donors may prescribe, and there shall be set aside for the fund ten (10) percent of the proceeds of sales of cemetery lots. The principal of the perpetual care fund shall be invested in the same manner as other city funds for the perpetual care of individual lots and for the general purpose of maintaining, improving and beautifying the cemeteries.
(Code 1961, §§ 6-1, 6-2; Ord. No. 92-73, § 1, 6-8-92; Ord. No. 20-086, § 1, 6-16-20)

State law reference—Perpetual care trust funds, G.S. § 160A-347.

Sec. 8-2. Place of burial.

(a) No person shall be buried within the corporate limits of the city other than in cemeteries established and operated prior to July 1, 1957, and no new cemeteries or graveyards shall be opened or established within the corporate limits of the city except by permission of the city council or except as provided in this section.

(b) The burial of a person within the principal structure of a church shall be allowed provided the plans for the crypt or vault are approved by the building inspector and county health officer prior to construction.

(c) The burial of the cremated remains of a person on the grounds of a church shall be allowed provided that:

(1) The grounds are located in a zoning district where both churches and cemeteries are listed as permitted uses in chapter 30 of this Code.

(2) The grounds are occupied by the principal structure of the church.

(3) No burials shall be permitted within any easement or right-of-way.

(4) No burials shall be permitted within thirty (30) feet of any existing or proposed street right-of-way or within twenty (20) feet of any property line.

(5) All burial sites shall be located in an area which was established for such purposes and which has been approved by the director of public works.

(d) Burial of persons under the provisions of subsections (b) and (c) of this section shall be limited to those persons who were ministers or members of the church on which grounds the burial sites are located and the spouses, children and parents of said ministers or members.
(Code 1961, § 6-3; Ord. No. 93-6, § 1, 1-28-93; Ord. No. 93-8, § 1, 2-1-93; Ord. No. 93-39, § 1, 4-29-93)

Sec. 8-3. Lot and grave prices.

(a) *Maplewood Cemetery.* The price per grave space anywhere in Maplewood Cemetery is hereby fixed at one thousand two hundred dollars ($1,200.00) per grave space except for these areas described in subsections (d) and (e) of this section.

(b) *Green Hill Cemetery.* The price per grave space anywhere in Green Hill Cemetery is hereby fixed one thousand two hundred dollars ($1,200.00) per grave space except for those areas described in subsection (e) of this section.

(c) *Forest Lawn Cemetery.* The price per grave space anywhere in Forest Lawn Cemetery, except in mausoleum sections, is hereby fixed at one thousand two hundred dollars ($1,200.00) per grave space except for those described in subsections (d) and (e) of this section. In mausoleum sections, the price per lot is hereby fixed at five thousand dollars ($5,000.00) per lot for mausoleum and crypts and eighteen hundred dollars ($1,800.00) per space for columbarium spaces.

(d) *[Veterans Circle.]* A grave space in Veterans Circle at Forest Lawn Cemetery or Maplewood Cemetery is hereby fixed at six hundred dollars ($600.00) per grave space for the burial of persons who have served as members of military or naval forces of the United States and who have been honorably discharged from the service of the United States.

(e) *Cremation graves.* The price per cremation grave space in any city cemetery is hereby fixed at six hundred dollars ($600.00) per established

cremation space, except for those regular sized and priced grave sites which may contain no more than two (2) urns.

(f) *[Fees for purchase of cemetery lots and graves by non-residents.]* Fees for the purchase of cemetery lots and graves by non-residents will be set at twenty-five (25) percent above the resident price as set forth herein and in the City of Greensboro Schedule of Fees. Notwithstanding the foregoing sentence, the twenty-five (25) percent surcharge shall not apply to purchases of lots and graves by non-residents provided that the lots and graves are used for the burial of persons who resided in the City of Greensboro at the time of their death.

(g) *[Use of revenues and fees.]* Revenues and fees collected pursuant to section 8-3 shall be restricted for the general purpose of maintaining, improving and beautifying the cemeteries.
(Code 1961, § 6-4; Ord. No. 88-83, §§ 1—4, 6-16-88; Ord. No. 90-37, § 1, 3-15-90; Ord. No. 93-46, §§ 1—5, 6-3-93; Ord. No. 95-77, §§ 1—5, 6-29-95; Ord. No. 97-97, § 1, 6-3-97; Ord. No. 99-83, § 1, 6-1-99; Ord. No. 00-100, § 1, 7-1-00; Ord. No. 02-122, §§ 1—5, 6-18-02; Ord. No. 04-100, § 1, 6-22-04; Ord. No. 05-144, § 1, 6-21-05; Ord. No. 08-227, § 1, 8-4-08; Ord. No. 11-133, § 1, 6-21-11; Ord. No. 13-110, § 1, 8-5-13; Ord. No. 19-003, § 1, 1-15-19)

Charter reference—Authority for sale of cemetery lots, § 6.11.

State law reference—Authority of cities to sell cemetery lots, etc., G.S. §§ 65-39, 160A-348.

Sec. 8-4. Fee for cemetery services rendered.

(a) The fee for digging an adult grave in any of the city cemeteries when funeral services are scheduled between the hours of 10:00 a.m. and 3:30 p.m. on Monday through Friday is hereby fixed at eight hundred dollars ($800.00) per grave; the fee for digging a child's grave up to four (4) feet is hereby fixed at four hundred fifty dollars ($450.00) per grave. The fee for digging a grave for interring urns of ashes is hereby fixed at four hundred dollars ($400.00).

(b) Reserved.

(c) The fee for digging a grave in any of the city cemeteries when funeral services are scheduled on a city holiday, weekend or any other time not set forth in subsections (a) or (b) hereof is fixed at one thousand six hundred dollars ($1,600.00) per grave for adults and five hundred fifty dollars ($550.00) for each child's grave. The fee for digging a grave for interring urns of ashes on city holidays, weekends, or times other than set forth in subsection (a) hereof is fixed at nine hundred dollars ($900.00) per grave.

(d) The fee for exhuming bodies in any city cemetery shall be two thousand dollars ($2,000.00) per grave space.

(e) The fee for the installation of a grave marker or monument is fixed at one hundred twenty five dollars ($125.00), provided such marker or monument conforms to the dimensional requirements set forth in section 8-6 of this chapter.

(f) No fee shall be charged for scattering urns of ashes or for services rendered relative to interring caskets or urns in mausoleum vaults.

(g) All fees incident to applications and requests from funeral homes for granting grave spaces, opening graves, or other service shall be payable no later than the fifteenth day of the month following the date of such applications and requests.

(h) Revenues and fees collected pursuant to section 8-4 shall be restricted for the general purpose of maintaining, improving and beautifying the cemeteries.

(i) An additional fee of three hundred dollars ($300.00) is charged for cemetery services provided before 10:00 a.m. or after 3:30 p.m. on Monday through Saturday.
(Code 1961, § 6-5; Ord. No. 88-83, §§ 5, 6, 6-16-88; Ord. No. 90-37, § 1, 3-15-90; Ord. No. 91-68, §§ 1, 2, 6-13-91; Ord. No. 93-46, §§ 6—8, 6-3-93; Ord. No. 96-78, § 1, 7-2-96; Ord. No. 97-97, § 2, 6-3-97; Ord. No. 98-86, § 1, 6-2-98; Ord. No. 99-83, § 2, 6-1-99; Ord. No. 00-100, § 2, 7-1-00; Ord. No. 00-114, § 1, 7-1-00; Ord. No. 02-122, §§ 6, 7, 6-18-02; Ord. No. 05-144, § 2, 6-21-05; Ord. No. 05-174, § 1, 8-16-05; Ord. No.

08-277, § 1, 11-18-08; Ord. No. 11-133, § 2, 6-21-11; Ord. No. 13-92, § 1, 6-18-13; Ord. No. 17-73, § 2, 6-20-17; Ord. No. 19-003, § 2, 1-15-19)

Editor's note—Section 2 of Ord. No. 08-277 states that the ordinance shall become effective on January 1, 2009.

Sec. 8-5. Rules and regulations.

The city manager shall establish rules and regulations for the operation of the city cemeteries. Upon approval by the council, it shall be unlawful for any person to violate any rule or regulation established by the city manager. A copy of the rules and regulations shall be filed with the city clerk.
(Code 1961, § 67)

Sec. 8-6. Height of markings on new gravesites platted on and after May 1, 1974.

Monuments, footstones, or other physical grave markings located within any city-owned cemetery shall not extend above the surface of the ground more than one (1) inch on any cemetery property which is subdivided and platted into gravesites on and after May 1, 1974, except for designated areas of Section 13 in Forest Lawn Cemetery where memorials will be permitted above ground.
(Code 1961, § 6-6; Ord. No. 97-98, § 1, 6-3-97)

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Chapter 9

CIVIL PREPAREDNESS AND EMERGENCIES*

Article I. In General

Sec. 9-1. Restrictions authorized.
Sec. 9-2. Proclamation imposing prohibitions and restrictions.
Sec. 9-3. Evacuation.
Sec. 9-4. Curfew.
Sec. 9-5. Restrictions on possession, consumption or transfer of alcoholic beverages.
Sec. 9-6. Restriction on possession, transportation and transfer of dangerous weapons and substances.
Sec. 9-7. Restriction on access to areas.
Sec. 9-8. Activities, etc., prohibited or restricted.
Sec. 9-9. Removal of prohibitions and restrictions.
Sec. 9-10. Superseding and amending proclamations.
Sec. 9-11. Termination of proclamation.
Sec. 9-12. Exercise of powers in absence or disability of mayor.
Sec. 9-13. Penalty for violation.
Sec. 9-14. Territorial applicability.
Sec. 9-15. Reserved.

Article II. Emergency Interim Succession

Sec. 9-16. Designation of successors.
Sec. 9-17. Qualifications of successors.
Sec. 9-18. Status of emergency interim successor.
Sec. 9-19. Assumption of powers and duties of officer by emergency interim successor.
Sec. 9-20. Recording and publication.

*__State law reference—__North Carolina Emergency Management Act, G.S. § 166A-1 et seq.

ARTICLE I. IN GENERAL*

Sec. 9-1. Restrictions authorized.

(a) A state of emergency shall be deemed to exist whenever during times of public crisis, disaster, rioting, catastrophe or similar public emergency, for any reason, public safety authorities are unable to maintain public order or afford adequate protection for lives, safety or property, or whenever the occurrence of any such condition is imminent.

(b) In the event of an existing or threatened state of emergency endangering the lives, safety, health and welfare of the people within the City of Greensboro or any part thereof or threatening damages to or destruction of property, the mayor or the city council is hereby authorized and empowered under G.S. § 166A-19.22 to issue a public proclamation declaring to all persons the existence of such a state of emergency and, in order to more effectively protect the lives and property of people within the county, to place in effect any or all of the restrictions hereinafter authorized. The mayor or the city council shall fully utilize all available emergency service and management agencies and coordinators.

(c) The mayor or the city council is hereby authorized and empowered to limit by the proclamation the application of all or any part of such restrictions to any area specifically designated or described within the city and to specific hours of the day or night and to exempt from all or any part of such restrictions, while acting in the line of and within the scope of their respective duties, law enforcement officers, firefighters and other public employees, rescue squad members, doctors, nurses, employees of hospitals and other medical facilities; on-duty military personnel, whether state or federal; on-duty employees of public utilities, public transportation companies and newspaper, magazine, radio broadcasting and television broadcasting corporations operated for profit; and such other classes of persons as may be essential to the preservation of public order and immediately necessary to serve the safety, health and welfare needs of people within the City of Greensboro.

(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-2. Proclamation imposing prohibitions and restrictions.

(a) The mayor or the city council by proclamation may impose the prohibitions and restrictions specified in sections 9-3 through 9-8 of this article in the manner described in those sections. The mayor or the city council may impose as many of those specified prohibitions and restrictions as he/she/they finds necessary because of an emergency to maintain an acceptable level of public order and services and to protect lives, safety and property. The mayor or the city council shall recite the findings in the proclamation.

(b) The proclamation shall be in writing. The mayor or the city council shall take reasonable steps to give notice of the terms of the proclamation to those affected by it and shall post a copy of it in the Melvin Municipal Office Building and the county courthouse. The mayor or the city council shall send reports of the substance of the proclamation to the mass communications media which serve the affected area. The mayor or the city council shall retain a text of the proclamation and furnish upon request certified copies of it.

(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-3. Evacuation.

The mayor or the city council may direct and compel the voluntary or mandatory evacuation of all or part of the population of the city; to prescribe routes, modes of transportation and destination in connection with evacuation; and to control ingress and egress of a disaster area, the movement of or amended in a subsequent proclamation which shall be well publicized.

(Ord. No. 15-064, § 1, 6-2-15)

*__Editor's note—__Ord. No. 15-064, § 1, adopted June 2, 2015, amended Art. I in its entirety to read as set out herein. Former Art. I, §§ 9-1 and 9-2, pertained to similar subject matter and derived from the Code of 1961, §§ 2-43, 13-22, and Ord. No. 99-159, § 1, adopted Sept. 21, 1999.

Sec. 9-4. Curfew.

(a) The proclamation may impose a curfew prohibiting in certain areas and during certain periods the appearance in public of anyone who is not a member of an exempted class. The proclamation shall specify the geographical area or areas and the period during each twenty-four-hour day to which the curfew applies. The mayor or the city council may exempt from some or all of the curfew restrictions classes of people whose exemption the mayor or city council finds necessary for the preservation of the public health, safety and welfare. The proclamation shall state the exempted classes and the restrictions from which each is exempted.

(b) Unless otherwise specified in the proclamation, the curfew shall apply during the specified period each day until the mayor or the city council by proclamation removes the curfew.
(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-5. Restrictions on possession, consumption or transfer of alcoholic beverages.

The proclamation may prohibit the possession or consumption of any alcoholic beverage, including beer, wine and spirituous liquor, other than on one's own premises and may prohibit the transfer, transportation, sale or purchase of any alcoholic beverage within the area of the city described in the proclamation. The prohibition, if imposed, may apply to transfer of alcoholic beverages by employees of alcoholic beverage control stores as well as by anyone else within the geographical area described.
(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-6. Restriction on possession, transportation and transfer of dangerous weapons and substances.

(a) The proclamation may prohibit the transportation or possession off one's own premises or the sale or purchase of any dangerous weapon or substance. The mayor or the city council may exempt from some or all of the restrictions classes of people whose possession, transfer or transportation of certain dangerous weapons or substances is necessary to the preservation of the public's health, safety or welfare. The proclamation shall state the exempted classes and the restrictions from which each is exempted.

(b) "Dangerous weapon or substance" means:

(1) Any item described as a "Dangerous weapon or substance" as defined in G.S. § 14-288.1.

(2) Any other instrument or substance that is capable of being used to inflict serious bodily injury or destruction of property when the circumstances indicate that there is some probability that such instrument or substance will be so used.

(3) Any part or ingredient in any instrument or substance included above when the circumstances indicate a probability that such a part or ingredient will be so used.

(4) Except that this article does not authorize prohibitions or restrictions on lawfully possessed firearms or ammunition. As used in this article, "firearm" has the same meaning as it does under G.S. § 14.409.39(2).

(c) If imposed, the restrictions shall apply throughout the jurisdiction of the city or such part thereof as designated in the proclamation.
(Ord. No. 22-121, 6-21-22; Ord. No. 22-150, 7-19-22)

Sec. 9-7. Restriction on access to areas.

(a) The proclamation may prohibit obtaining access or attempting to obtain access to any area designated in the manner described in this section in violation of any order, clearly posted notice or barricade indicating that access is denied or restricted.

(b) Areas to which access is denied or restricted shall be designated by the chief of police and his subordinates or other law enforcement officer when directed in the proclamation to do so by the mayor or the city council. When acting under this authority, the chief of police and his subordinates may restrict or deny access to any area, street, highway or location within the city if that restriction or denial of access or use is

reasonably necessary to promote efforts being made to overcome the emergency or to prevent further aggravation of the emergency.
(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-8. Activities, etc., prohibited or restricted.

The following activities or conditions may be prohibited or restricted:

(1) Movements of people in public places;

(2) The operation of offices, business establishments and other places to or from which people may travel or at which they may congregate; and

(3) Other activities or conditions the control of which may be reasonably necessary to maintain order and protect lives or property during the state of emergency within the area designated in the proclamation.

(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-9. Removal of prohibitions and restrictions.

The mayor or the city council shall by proclamation terminate the entire declaration of emergency or remove any of the prohibitions and restrictions when the emergency no longer requires them.
(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-10. Superseding and amending proclamations.

The mayor or the city council, in his/her/their discretion, may invoke the restrictions authorized by this article in separate proclamations and may amend any proclamation by means of a superseding proclamation in accordance with the procedures set forth in section 9-2.
(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-11. Termination of proclamation.

Any proclamation issued under this article shall expire five (5) days after its last imposition unless sooner terminated in writing under the same procedures set forth in section 9-2 for proclamations.
(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-12. Exercise of powers in absence or disability of mayor.

In case of the absence or disability of the mayor, the mayor pro tem, or such other person as may be designated by the city council, shall have and exercise all of the powers herein given the mayor.
(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-13. Penalty for violation.

Pursuant to G.S. § 14-4 any person violating any prohibition or restriction imposed by a proclamation authorized by this chapter shall be guilty of a class 3 misdemeanor with a maximum fine of $50.00.
(Ord. No. 15-064, § 1, 6-2-15; Ord. No. 22-121, 6-21-22; Ord. No. 22-150, 7-19-22)

Sec. 9-14. Territorial applicability.

This article shall apply within the corporate limits of the City of Greensboro or within the area of the county over which the municipality has jurisdiction to enact general police power ordinances.
(Ord. No. 15-064, § 1, 6-2-15)

Sec. 9-15. Reserved.

ARTICLE II. EMERGENCY INTERIM SUCCESSION*

Sec. 9-16. Designation of successors.

(a) The city manager shall designate for appointive officers, including the city manager, city clerk, city attorney, city tax collector, chief of police, city fire chief, building inspector, coordinator of emergency management agency, director of finance, director of planning, and director of public works, emergency interim successors to these officers.

*__Cross reference—__Council meeting place if city hall destroyed, § 2-19.

(b) The city manager shall review and, as necessary, promptly revise the designations of emergency interim successors to ensure that at all times there is a qualified emergency interim successor for each officer specified.
(Code 1961, § 2-44(a)(2), (a)(3))

Sec. 9-17. Qualifications of successors.

No person shall be designated or serve as an emergency interim successor unless he/she/they may under the constitution and statutes of this state and the charter or ordinances of this city, hold the office of the person to whose powers and duties he/she/they is designated to succeed, but no provision of any ordinance prohibiting an officer or employee of this city from holding another office shall be applicable to an emergency interim successor.
(Code 1961, § 2-44(a)(4); Ord. No. 20-163, § 3, 12-15-20)

Sec. 9-18. Status of emergency interim successor.

A person designated as an emergency interim successor holds that designation at the pleasure of the designator; provided, that he/she/they must be replaced if removed. He/she/they retains his/her/their designation as emergency interim successor until replaced by another appointed by the authorized designator.
(Code 1961, § 2-44(a)(5); Ord. No. 20-163, § 3, 12-15-20)

Sec. 9-19. Assumption of powers and duties of officer by emergency interim successor.

If in the event of an attack any officer named in section 9-16 is unavailable, his/her/their emergency interim successor shall, except for the powers and duty to appoint emergency interim successors, exercise the powers and discharge the duties of such officer. An emergency interim successor shall exercise these powers and discharge these duties only until such time as the lawful incumbent officer or an emergency interim successor higher in rank in order of succession exercises, or resumes the exercise of, the powers and discharge of the duties of the office, or until, where an actual vacancy exists, a successor is appointed to fill such vacancy or is elected and qualified as provided by law. In the event of an attack, or warning of impending attack, or if an emergency is duly declared by the proper state authorities, it shall be the duty of the city manager to give or attempt to give notice to all emergency interim successors. It shall be the duty of all emergency interim successors to report to the location of city government as soon as they have knowledge of an attack or impending attack, regardless of whether notice is received from the city manager.
(Code 1961, § 2-44(b); Ord. No. 20-163, § 3, 12-15-20)

Sec. 9-20. Recording and publication.

The name and address of each duly authorized emergency interim successor shall be filed with the city clerk and each designation, replacement, or change in order of succession of an emergency interim successor shall become effective when the designator files with the city clerk the successor's name, address, and rank in order of succession. The city clerk shall keep on file all such data regarding emergency interim successors and it shall be open to public inspection.
(Code 1961, § 2-44(c))

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Chapter 10

FIRE PREVENTION AND PROTECTION*

Article I. In General

Sec. 10-1. Limitations.
Sec. 10-2. Reward for persons identifying and assisting in the conviction of persons giving false alarm of fire, false report of bomb, tampering with water system, and/or tampering with or discharging any fire protection equipment, or damaging emergency and exit lighting equipment.
Sec. 10-3. Permit for self-service gasoline installation and operation.
Sec. 10-4. Compliance.
Sec. 10-5. Violations and penalties.
Sec. 10-6. Smoking prohibited in specified public places.
Sec. 10-7 Periodic inspections.
Sec. 10-8. Reinspection fees for noncompliance.
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Sec. 10-13. Key box.
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Article II. Fire Prevention Code

Sec. 10-21. Adoption.
Sec. 10-22. Amendments.
Sec. 10-23. Burning of leaves.
Sec. 10-24. Fire official; authority.
Sec. 10-25. Fire hydrant.
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Article III. Response to Hazardous Materials Emergencies; Fees and Charges

Sec. 10-30. Purpose and authority.
Sec. 10-31. Responsibility; fees and charges.
Sec. 10-32. Fire incidents involving hazardous materials.
Sec. 10-33. Definitions.

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*__Cross references—__Buildings and building regulations, Ch. 6; auxiliary fire service, § 21-9; storm water management, Ch. 27; zoning, Ch. 30.

__State law reference—__Fire protection generally, G.S. § 160A-291 et seq.

ARTICLE I. IN GENERAL*

Sec. 10-1. Limitations.

Nothing contained in this chapter shall be construed as applying to the military or naval forces of the United States. In the event of a conflict or inconsistency between any provisions of this chapter and the state building code, the latter shall prevail and supersede any such provision in this chapter.
(Ord. No. 22-141, § 1, 6-21-22)

Sec. 10-2. Reward for persons identifying and assisting in the conviction of persons giving false alarm of fire, false report of bomb, tampering with water system, and/or tampering with or discharging any fire protection equipment, or damaging emergency and exit lighting equipment.

(a) A reward of fifty dollars ($50.00) is hereby authorized to be paid for information leading to the conviction of any person alleged to have made a false report concerning any bomb or any other destructive device, or any person alleged to have turned in a false alarm within the corporate limits of the city by means of any fire alarm systems, telephone or otherwise, or of any person alleged to have unlawfully opened, closed, operated or otherwise tampered with any valves or hydrants which are a part of the water system of the city, or of any person alleged to have tampered with or maliciously discharged any fire protection equipment, damaged any emergency or exit lighting equipment.

(b) The council shall be the sole judge as to who shall entitled to the collection of the reward hereinabove mentioned, and a reward shall be paid only by order of the council from non-tax revenue in the general fund of the city. In the event a reward is claimed by more than one (1) person and the council shall find that more than one (1) person is entitled to receive the reward, the reward of fifty dollars ($50.00) shall be equally divided among those found by the council to be entitled thereto. Not more than one (1) reward of fifty dollars ($50.00) shall be paid for one (1) false alarm, regardless of the number of persons convicted of the giving such false alarm.
(Ord. No. 22-141, § 1, 6-21-22)

Editor's note—Ord. No. 14-6, § 1, adopted Jan. 7, 2014, changed the title of § 10-2 from "Reward for persons convicted of giving false alarm of fire, false report of bomb, tampering with water system" to "Reward for persons identifying and assisting in the conviction of persons giving false alarm of fire, false report of bomb, tampering with water system, and/or tampering with or discharging any fire protection equipment, or damaging emergency and exit lighting equipment." This historic notation has been preserved for reference purposes.

Charter reference—Rewards authorized, § 5.01.

Sec. 10-3. Permit for self-service gasoline installation and operation.

In correlation with the regulations imposed by the fire prevention code relative to the installation and operation of self-service gasoline pumps, all development plans, including installation of safety equipment, site location and proposed methods of operation, shall be subject to review by the fire inspector and the building inspector and in addition shall comply with all standards approved and adopted by the city council. No installation or operation of such self-service

*__Editor's note—__Ord. No. 22-141, § 1, adopted June 21, 2022, amended article I in its entirety to read as herein set out. Former article I, §§ 10-1—10-11, pertained to similar subject matter, and derived from the Code of 1961, §§ 7-1, 7-4, 7-6; Ord. No. 88-61, adopted April 28, 1988; Ord. No. 89-128, adopted September 28, 1989; Ord. No. 89-151, adopted November 16, 1989; Ord. No. 89-37, adopted March 6, 1989; Ord. No. 90-38, adopted March 15, 1990; Ord. No. 90-67, adopted May 17, 1990; Ord. No. 91-142, adopted November 18, 1991; Ord. No. 91-60, adopted May 6, 1991; Ord. No. 93-115, adopted September 20, 1993; Ord. No. 93-60, adopted June 7, 1993; Ord. No. 93-61, adopted June 7, 1993; Ord. No. 93-62, adopted June 7, 1993; Ord. No. 96-130, adopted Oct. 22, 1996; Ord. No. 00-101, adopted June 6, 2000; Ord. No. 02-158, adopted August 20, 2002; Ord. No. 04-168, adopted September 7, 2004; Ord. No. 06-27, adopted February 7, 2006; Ord. No. 07-119, adopted June 26, 2007; Ord. No. 07-180, adopted August 21, 2007; Ord. No. 07-184, adopted August 21, 2007; Ord. No. 08-259, adopted October 7, 2008; Ord. No. 11-126, adopted June 21, 2011; Ord. No. 14-6, adopted January 7, 2014; Ord. No. 14-7, adopted January 7, 2014; Ord. No. 15-090, adopted June 16, 2015; Ord. No. 17-72, adopted June 20, 2017 and Ord. No. 20-163, adopted December 15, 2020.`

gasoline pumps shall be made without obtaining permits required by the fire prevention bureau and the building inspection department.
(Ord. No. 22-141, § 1, 6-21-22)

Sec. 10-4. Compliance.

Compliance with the provisions if this chapter shall be enforced by the fire inspection officer of the Greensboro Fire Department. Failure to comply with any of the regulations of this chapter shall be unlawful and a violation of the fire ordinance and all remedies authorized by law for noncompliance with the fire ordinance, including the issuance of a civil penalty citation, may be exercised to enforce any violation.
(Ord. No. 22-141, § 1, 6-21-22)

Sec. 10-5. Violations and penalties.

(a) Pursuant to G.S. § 160A-175, any person, firm, corporation, or agent who violates any provision of this chapter shall be subject to a minimum civil penalty of one hundred fifty dollars ($150.00). Except as set forth herein, any person, firm, corporation or agent who shall violate any technical provisions of the fire prevention code which creates an imminent safety to life hazards shall be subject to a civil penalty of one hundred fifty dollars ($150.00) per violation. Any person, firm, corporation or agent who shall exceed any lawfully posted occupancy shall be subject to a civil penalty of one hundred fifty dollars ($150.00) per person in excess of the posted occupancy. Any person, firm, corporation or agent who fails to maintain a counting procedure (such as mechanical counters) approved by the fire code official, shall be subject to a civil penalty of one hundred fifty dollars ($150.00) per missing counter or inaccurate counter. Depending on the number of entrances and exits, at least one (1) "in" counter and at least one (1) "out" counter shall be maintained to provide an accurate count of all occupants inside the building at any time. Any person, firm, corporation or agent who shall lock, block or obstruct an exit or fail to timely return a fire protection system to service, shall be subject to a civil penalty of five hundred dollars ($500.00) per exit for a first violation, one thousand dollars ($1,000.00) per exit for a second violation and one thousand five hundred dollars ($1,500.00) per exit for a third and all subsequent violations. Any person, firm, corporation or agent who shall tamper with or maliciously discharge fire protection equipment, or damage any emergency or exit lighting equipment shall be subject to a civil penalty of one hundred fifty dollars ($150.00) for a first violation, three hundred dollars ($300.00) for a second violation and four hundred dollars ($400.00) for a third and all subsequent violations. Any person, firm, corporation or agent who fails to timely submit the Brycer Report by uploading it into the system shall be subject to a civil penalty of five hundred dollars ($500.00) per system, per occurrence. No penalty shall be assessed until the person alleged to be in violation has been notified of the violation by certified mail, return receipt requested, or by personal service (inspection), or by arrest resulting in prosecution. Any fire inspection officer who has a reason to believe that a violation of this chapter or the aforesaid technical provisions of the fire prevention code has been committed shall either send a civil penalty citation to the violator by certified mail or personally deliver such citation to the violator stating the nature of the violation, the penalty to be imposed upon the violator, and shall direct the violator to pay the penalty to the city tax collector's office within fourteen (14) days of receipt. Also, the owner, tenant, or occupant of any building or land or part thereof and any architect, builder, contractor, agent or any other person who participates or acts in concert, assists, directs, creates, or maintains any condition that is volatile of the requirements of this chapter or the aforesaid technical provisions of the fire prevention code, may be held responsible for the violation and subject to penalties and remedies herein provided. Any person, firm, corporation or agent who shall work without permits or is issued a stop work order shall be subject to a civil penalty of five thousand dollars ($5,000.00) for a first violation, seventy-five hundred dollars ($7,500.00) for a second violation, ten thousand dollars ($10,000) for a third violation, fifteen thousand dollars ($15,000.00) for a fourth violation and for all subsequent violations twenty thousand dollars ($20,000.00) with a referral to the North Carolina Department of Insurance and the appropriate licensing board.

(b) For each day the violation is not corrected, the violator will be guilty of an additional and separate offense and subject to additional civil penalty. Civil penalties assessed under this section are considered restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. As such, the amount declared herein is presumed to provide sufficient restoration to the city for its costs.

The assessment of civil penalties herein is not intended to be an exercise of powers delegated to other agencies or entities created by the general assembly to regulate the proscribed conduct.

(c) Pursuant to G.S. § 14-4, any failure to pay the civil penalty assessed under this section within the time prescribed in the citation shall be a class 3 misdemeanor. In such cases, the fire inspection officer shall submit the violation to the magistrate for issuance of a summons or other appropriate criminal process. Nothing in this section precludes the city from seeking both criminal and civil remedies for the same violation, as permitted by law, such that the violator shall be subject to the civil penalties provided by this chapter.

(d) In addition to or in lieu of the penalty, the fire inspection officer or other appropriate authority may seek a mandatory injunction seeking enforcement of this section.

(e) Nothing in this section shall preclude the issuance of an arrest warrant where appropriate.

(f) The chief fire inspection officer shall cause all civil penalty citations to the records of the issuance and disposition of said tickets to be so maintained that they can be accounted for. The director of finance, or his/her/their representative, shall periodically investigate the records for the purpose of determining the disposition of said ticket forms and shall report the results of such investigation to the city manager.
(Ord. No. 22-141, § 1, 6-21-22; Ord. No. 25-098, § 1, 6-17-25)

Sec. 10-6. Smoking prohibited in specified public places.

(a) *Generally.* No person shall smoke or carry a lighted cigar, cigarette, pipe or match or use any spark, flame or fire-producing device in any of the following places:

(1) Elevators, regardless of capacity, for use by the general public.

(2) Public areas of museums, art galleries, public libraries, natural science center, and indoor public recreational centers (other than those facilities owned by the City of Greensboro or any of its agencies or authorities where smoking is prohibited).

(3) Seating areas and adjacent aisles of the theatres.

(4) Retail stores designed and arranged to accommodate more than two hundred (200) persons, or in which twenty-five (25) persons are regularly employed. The prohibition of this subparagraph shall not apply to smoking rooms, restrooms, restaurants, executive offices or beauty parlors in retail stores when specifically approved by the fire inspector by written order to the person having control of the premises upon a finding that such use therein does not constitute a fire hazard.

(5) Duly designated non-smoking area of a restaurant. For this purpose, the owner of every restaurant, whether currently in existence or to be established in the future, with an indoor seating capacity of fifty (50) or more seats shall designate a non-smoking area consisting of at least twenty-five (25) percent of the indoor seating capacity of the restaurant. In areas where smoking is prohibited, existing physical barriers and ventilation systems shall be used to the greatest extent possible to minimize the smoke in adjacent non-smoking areas. Provided, this subparagraph shall not apply to bars and cocktail lounges; nor shall the seating capacity of any bar or lounge located within a restaurant be included in the

calculation of the total seating capacity of the restaurant nor rooms used for private functions or banquets.

(6) In any building owned, leased as lessor, or the area leased as lessee and occupied by the City of Greensboro or any of its agencies or authorities.

(7) Any place in or on a city owned vehicle or in or on a public transportation vehicle owned or leased by the City of Greensboro or any of its agencies or authorities.

(b) *Reserved.*

(c) *Sign removal prohibited.* No person shall remove or deface any placard required to be erected by or under the authority of this section.

(d) *Civil penalty.* Any person violating subsection (a) during the first year from the effective date hereof (1 January 1990) shall be given a warning of violation only. Thereafter, any person who shall violate subsection (a) shall be subject to payment of a civil penalty of twenty-five dollars ($25.00). Any person, or his/her/their agent, having control of any premises or place who knowingly permits a violation of subsection (a) without requesting the violator to comply shall be subject to payment of the civil penalty provided for herein. Any duly authorized local government official is authorized to either send a civil penalty citation to the violator by certified mail or personally deliver such citation to the violator stating the nature of the violation, the amount of the penalty, and directing that the violator pay the penalty to the city tax collector's office within fourteen (14) days of receipt. Civil penalties assessed under this section are considered restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. As such, the amount declared herein is presumed to provide sufficient restoration to the city for its costs.

The assessment of civil penalties herein is not intended to be an exercise of powers delegated to other agencies or entities created by the general assembly to regulate the proscribed conduct.

(e) *Misdemeanor and civil violation.* Pursuant to G.S. § 14-4, any person who violates either subsection (b) or subsection (c) shall be guilty of a class 3 misdemeanor and shall also subject the person in violation to a payment of a civil penalty of twenty-five dollars ($25.00).
(Ord. No. 22-141, § 1, 6-21-22; Ord. No. 25-098, § 1, 6-17-25)

Sec. 10-7 Periodic inspections.

There shall be a charge for periodic inspections to ensure compliance with the fire code. The charges shall be as outlined.

Periodic Inspections			
Occupancies	Up to 499 sq. ft.	$55.00	Per Inspection
	500—2,499 sq. ft.	$75.00	
	2,500—9,999 sq. ft.	$100.00	
	10,000—49,999 sq. ft.	$150.00	
	50,000—99,999 sq. ft.	$250.00	
	100,000—149,999 sq. ft.	$350.00	
	150,000—399,999 sq. ft.	$450.00	
	400,000—499,999 sq. ft.	$550.00	
	500,000—599,999 sq. ft.	$650.00	
	600,000—699,999 sq. ft.	$750.00	
	700,000—799,999 sq. ft.	$850.00	
	800,000—899,999 sq. ft.	$950.00	
Occupancies	900,000—999,999 sq. ft.	$1,050.00	Per Inspection
	1,000,000+ sq. ft.	$1,150.00	

Periodic Inspections			
Residential/Apartments	Residential units up to 15	$35.00	Per inspection
	Residential units greater than 15	$2.30	Per unit/inspection
	Residential high-rises	Varies	Refer to occupancy sq. ft. pricing above

(Ord. No. 22-141, § 1, 6-21-22)

Sec. 10-8. Reinspection fees for noncompliance.

There shall be a charge of one hundred fifty dollars ($150.00) for the first reinspection with violations, three hundred dollars ($300.00) for the second reinspection with violations, and four hundred dollars ($400.00) for each subsequent reinspection of a building or premises which has not been brought into code compliance after the general inspection has been conducted.
(Ord. No. 22-141, § 1, 6-21-22)

Sec. 10-9. Plan review fee.

The fire prevention bureau shall review plans for construction, tanks, fire protection systems, fire alarm systems, industrial processes, and other reviews requiring fire code compliance.

Plans submitted for review shall contain complete information and detail. As specified by reviewers, plans shall be drawn to scale, professionally designed and sealed by a North Carolina registered architect and/or professional engineer.

Charges for plan review on behalf of the city by the fire prevention bureau shall be based upon the following schedule:

Each building, based upon square footage of the building beginning at:

Plan Review			
Automatic Extinguishing System Review	Review of automatic extinguishing system	$150.00	Per Review
Express Review Fee	For first hour	$1,500.00	Per Hour
	Per additional hour in 15 increments	$375.00	Per 15 Minutes
Fire Alarm System Plan	Reviewing fire alarm	$150.00	Per Review
Fire Pump	Reviewing of fire pump	$150.00	Per Review
Fire Resubmittals	Regular Resubmission of Review	$150.00	Per Plan
	Express (Prioritized) Resubmission	$900.00	
Plan	Up to 2,499 sq. ft.	$100.00	Per Review
	2,500—9,999 sq. ft.	$150.00	
	10,000—49,999 sq. ft.	$325.00	
	50,000—99,999 sq. ft.	$450.00	
	100,000—149,999 sq. ft.	$500.00	
	150,000—399,999 sq. ft.	$600.00	
	400,000—499,999 sq. ft.	$700.00	
	500,000—599,999 sq. ft.	$800.00	
	600,000—699,999 sq. ft.	$900.00	
	700,000—799,999 sq. ft.	$1,000.00	

Plan Review			
Plan	800,000—899,999 sq. ft.	$1,100.00	Per Reveiew
	900,000—999,999 sq. ft.	$1,200.00	
	1,000,000+ sq. ft.	$1,500.00	
Sprinkler System Plan	Review of a sprinkler system	$150.00	Per Riser
Standpipe System Review	Review of standpipe	$150.00	Per Review
Tank Plan Review	Plan review of tank	$100.00	Per Tank
TRC Review	Technical review of project	$0.00	Per Review
** Additional hours, after hours, and weekends may have additional charges. **			

(Ord. No. 22-141, § 1, 6-21-22)

Sec. 10-10. Additional permit fees.

There shall be a special fee for issuance of permits and inspection of certain activities by the fire prevention bureau as listed below. Charges for permits shall be based upon the following activities:

Operational Permits			
Additive Manufacturing	Permit to operate	$150.00	Per Location
Aerosol Products & Plastic Aerosol	Permit to operate	$150.00	Per Location
Amusement Building Permit	Permit to operate an amusement attraction	$150.00	Per Attraction
Aviation Facilities	Permit to operate	$150.00	Per Location
Blasting Permit & Inspection	90 days max	$300.00	Per Permit & Inspection
Bonfire/Open Burning Permit	Permit to burn	$150.00	Per Fire
Carnival/Fair Permit	Permit to operate a carnival or fair	$150.00	Per Event
Cellulose Nitrate Film	Permit to operate	$150.00	Per Location
Combustible Dust Producing Operations	Permit to operate	$150.00	Per Location
Combustible Fibers	Permit to operate	$150.00	Per Location
Compressed Gases	Permit to operate	$150.00	Per Location
Cryogenic Fluids	Permit to operate	$150.00	Per Location
Cutting and Welding	Permit to operate	$150.00	Per Location
Dry Cleaning	Permit to operate	$150.00	Per Location
Energy Storage Systems	Permit to operate	$150.00	Per Location
Fireworks/Pyro/Special Effects Event	Initial	$300.00	Per Event
	Subsequent	$150.00	
Fire Performing Permit	Permit to perform with fire	$150.00	Per Event
Flammable/Combustible Liquids	Permit to store and use on property	$150.00	Per Location
Floor Finishing	Permit to operate	$150.00	Per Location
Foster Care Permit	Fee per application	$150.00	Per Inspection
Fruit and Crop Ripening	Permit to operate	$150.00	Per Location
Fumigation & Insecticidal Fogging	Fee per application of fumigation & insecticidal fogging	$150.00	Per Application

Operational Permits			
Gas Powered Vehicles in Building	Permit to allow vehicle to be displayed in-doors	$150.00	Per Vehicle
Hazardous Materials/Facilities	Permit to operate	$150.00	Per Location
High Piled Combustible Stock	Permit to have high piled sock	$150.00	Per Location
Indoor Plant Cultivation	Permit to operate	$150.00	Per Location
Initial ABC License	Inspection for an ABC license permit	$150.00	Per Inspection
Lithium Batteries	Permit to operate	$150.00	Per Location
Lumber Yards and Woodworking	Permit to operate	$150.00	Per Location
Magnesium	Permit to operate	$150.00	Per Location
Mall Buildings	Permit to have a lease building plan	$150.00	Per Plan
Misc. Combustible Storage	Permit to operate	$150.00	Per Location
Mobile Food Preparation Vehicle	Permit to operate	$150.00	Per Location
Motor Fuel Dispensing	Permit to operate	$150.00	Per Location
Organic Coatings	Permit to operate	$150.00	Per Location
Places of Assembly	Permit to operate	$150.00	Per Location
Plant Extraction Systems	Permit to operate	$150.00	Per Location
Pyroxylin Plastics	Permit to operate	$150.00	Per Location
Refrigeration Equipment	Permit to operate	$150.00	Per Location
Rooftop Heliport	Permit to operate	$150.00	Per Location
Scrap Tire Storage	Permit to operate	$150.00	Per Location
Special Events Permit	Issued when an ABC extension or the event exceeds normal business activities; max 12 per year by law	$300.00	Per Location
Special Event Structures	Permit to operate	$150.00	Per Structure
Spraying/Dipping	To permit process	$100.00	Per Application
Tank Removal Permit	Removal of underground/above tank	$100.00	Per Tank
Tent/Membrane Structures Inspection	Inspection for event tent	$150.00	Per Structure
Tire Rebuilding Plants	Permit to operate	$150.00	Per Location
Tradeshows/Exhibits	Permit to operate a tradeshow or exhibit	$150.00	Per Event

Construction Permit Fees			
Energy Storage Systems	Permit to construct	$150.00	Per Permit
Compressed Gases	Permit to construct	$150.00	Per Permit
Cryogenic Fluids	Permit to construct	$150.00	Per Permit
Emergency Responder Radio Coverage	Permit to construct	$150.00	Per Permit
Flammable/Combustible Liquids	Permit to construct	$150.00	Per Permit
Fuel Cell Power Systems	Permit to construct	$150.00	Per Permit

Construction Permit Fees			
Gas Detection System	Permit to construct	$150.00	Per Permit
Gates/Barricades	Permit to construct	$150.00	Per Permit
Hazardous Materials	Permit to construct	$150.00	Per Permit
High Piled Combustibles	Permit to construct	$150.00	Per Permit
Industrial Ovens	Permit to construct	$150.00	Per Permit
LP Gas	Permit to construct	$150.00	Per Permit
Motor Vehicle Repair Rooms, Booths, and Dispensing	Permit to construct	$150.00	Per Permit
Plant Extraction System	Permit to construct	$150.00	Per Permit
Smoke Control/Exhaust Systems	Permit to construct	$150.00	Per Permit
Solar Photovoltaic Power Systems	Permit to construct	$150.00	Per Permit
Special Event Structure	Permit to construct	$150.00	Per Permit
Spraying/Dipping	Permit to construct	$150.00	Per Permit

(Ord. No. 22-141, § 1, 6-21-22; Ord. No. 25-098, § 1, 6-17-25)

Sec. 10-11. Additional inspections.

There shall be an inspection fee for inspections conducted for inspections as outlined below.

Additional Inspections			
*AES (Hood) Performance Test	Testing of kitchen hood	$150.00	Per Test
*Fire Alarm Performance Test	Testing of fire alarm	$150.00	Per Test
*Fire Final Inspection	Projects final inspection	$150.00	Per Inspection
*Flammable/Combustible Line Pressure Test	To pressure test product lines	$150.00	Per Inspection
*Generator Inspection	To test generator	$150.00	Per Inspection
*Miscellaneous Compliance Inspection	Anything not listed above	$150.00	Per Inspection
*Sprinkler/Standpipe/Pump Performance Test	Up to 3 hours	$150.00	Per Test
	Each additional hour over 3	$150.00	Per Additional Hour
*Tank Inspection	Underground or above ground tank inspection	$150.00	Per Tank
3 hours max, $150.00 for each additional hour; if additional inspectors are required, $150.00/hour per inspector			

(Ord. No. 22-141, § 1, 6-21-22)

Sec. 10-12. Compliance inspection fee.

There shall be a compliance inspection fee for inspection(s) conducted above and beyond state mandated requirements for a particular property in the amount of one hundred dollars ($100.00). (Ord. No. 22-141, § 1, 6-21-22)

Sec. 10-13. Key box.

A key box shall be installed on all new construction where a fire alarm system and/or a sprinkler system has been installed, on existing construction where nuisance or repeated alarms occur, on access gates where access is delayed and on any

other occupancy where the fire official deems necessary access is delayed or a delay occurs when returning fire apparatus back to service.

(1) *[Accessibility.]* The fire official shall require a key box to be installed in an accessible location where immediate access is necessary to verify the existence of a fire or other emergency in buildings equipped or required to be equipped with fire detection or fire suppression systems or equipment.

(2) *Where required.* Other than one- and two-family dwellings, all new occupancies served by an internal automatic fire detection or suppression system, having a connection to a central monitoring station facility or other recognized NFPA 72 monitoring method, on all new and existing occupancies on gates where controlled access can delay fire department vehicle response, on all existing facilities where frequent or nuisance fire alarms occur, and on all other agreed upon locations.

(3) *[Specifications for] key boxes.* Approved locks shall be Medico Biaxel level 7 or equivalent and UL 437 listed for "safety key locks". Key vaults shall be listed under UL 1610 standard for central station alarm units for use with UL listed alarm systems, shall be UL listed under UL 1037 standard for antitheft alarms and devices, and shall have a minimum wall thickness of one-fourth (¼) inch and door thickness of one-half (½) inch plate steel. Fully inserted key shall be able to withstand a minimum of fifty (50) inch pounds torque. Key vaults shall have a weatherproof gasket seal neoprene material or equivalent, and shall be masterkeyed. Lock code and key section shall be unconditionally restricted by the key vault manufacturer for use only by the local assigned fire department. All fire department vehicles containing keys shall be recorded and inventoried annually. Lock code restriction shall be traceable to the lock manufacturer and be guaranteed by both the lock manufacturer and the key vault manufacturer. The local fire department shall be in complete control of the rapid key entry system authorization and operation. Entry systems shall utilize approval signatures from the local fire department for release of keys and all lock products from the factory.

(4) *Installation location.* The key box shall be located on the exterior of a structure, at or near the main entrance, at an entrance adjacent to the sprinkler riser where one is present, or at another location where approved by the fire official. Key box shall be installed no less than four (4) feet and no more than six (6) feet above entrance grade and shall be horizontally within five (5) feet of the opening.

(5) *Key vault contents.* The vault shall contain keys for the following:

a. Main entrance door (mixed occupancy and strip shopping center keys shall be provided for occupancies where system control valves or fire alarm panels exist).

b. Alarm rooms.

c. Mechanical/sprinkler control rooms.

d. Fire alarm control panel.

e. Special keys to reset fire alarm initiating devices.

f. Special rooms where specific fire suppression systems reside.

g. Gate access boxes for use in case of power failure.

The owner shall be responsible for providing all up to date keys in the vault at all times.

(6) *Administration.*

a. *New occupancies.* The plan review section shall be responsible for the administration of the program on all new occupancies.

b. *Existing occupancies.* The inspections division, with the assistance of the suppression division, shall be responsible for identifying existing

problem occupancies and other agreed upon situations. The plan review section will provide all start up documentation and maintain a current inventory control list.

(7) *Compliance.* All new construction shall be required to complete the installation of the key boxes per the manufacturers installation requirements prior to the issuance of a final certificate of occupancy. All existing structures, gates, etc., shall have up to six (6) months to install such key boxes. Upon expiration of inspection compliance procedures, property owners shall face existing reinspection fee procedures and other citations for noncompliance.

(Ord. No. 22-141, § 1, 6-21-22)

Secs. 10-14—10-20. Reserved.

ARTICLE II. FIRE PREVENTION CODE

Sec. 10-21. Adoption.

(a) Except as hereinafter amended, the provisions of the North Carolina Fire Prevention Code, current edition, adopted by the North Carolina Building Code Council is hereby adopted and made applicable as the fire prevention and control ordinance of the city. A copy of same shall be on file in the office of the city clerk.

(b) Amendments to the North Carolina Fire Prevention Code, which are adopted and published by the North Carolina State Building Code Council shall be effective on the date prescribed by the North Carolina State Building Code Council.

(c) The North Carolina State Building Code volume that is titled Administration and Enforcement Requirements is hereby referenced for the administration of the North Carolina Fire Prevention Code, current edition for periodic inspection of buildings altered, repaired or rehabilitated in accordance with the Existing Building Code.

(d) Records of all system inspections, tests and maintenance required by the referenced standards shall be maintained on the premises for a minimum of three (3) years and shall be provided to the fire district through a third-party inspection reporting system, at a fee of twelve dollars ($12.00) per system, per annum.

(Code 1961, § 7-2; Ord. No. 00-214, § 1, 12-5-00; Ord. No. 02-22, §§ 1—3, 2-19-02; Ord. No. 13-16, § 1, 2-5-13; Ord. No. 016-69, § 1, 6-21-16)

State law reference—Adoption of technical codes by reference, G.S. § 160A-76.

Sec. 10-22. Amendments.

Before a permit to do blasting in the corporate limits as required under chapter 19 of the fire prevention code shall be issued, the applicant for such permit shall file with the fire prevention bureau evidence of public liability and property damage insurance in the amount of one million dollars ($1,000,000.00) for the payment of all damages to persons or property which arise from, or are caused by, the conduct of any act authorized by the permit upon which any judgment results. Each applicant shall provide proper matting as determined by the fire prevention bureau and request inspection prior to commencing actual blasting operations. The city shall not be responsible for any damage to property or injuries to persons by reason of the issuance of a permit or inspections made incidental thereto.

(Code 1961, § 7-3; Ord. No. 88-62, § 1, 4-28-88; Ord. No. 00-214, § 2, 12-5-00)

Sec. 10-23. Burning of leaves.

The burning of leaves, brush, trash or any other refuse is prohibited within the corporate limits. EXCEPTION: The burning of brush by commercial contractors clearing large open areas properly permitted by the fire prevention bureau and in accordance with local air quality burning regulations.

(Ord. No. 00-214, § 3, 12-5-00)

Sec. 10-24. Fire official; authority.

The fire official has the authority to determine that the gathering of persons inside and/or outside of a structure presents unusual and significant impact on public safety or fire safety, including access to buildings, structures, fire hydrants, fire lanes, or the provision of public safety services. The fire official shall have the authority to order the development of or prescribe a plan for the

provision of safety services which provides a reasonable degree of safety for the attendees and other affected members of the public. Once such a plan is approved by the fire official, it shall be complied with and is enforceable under the provisions of this code and the North Carolina State Building Code.
(Ord. No. 00-214, § 4, 12-5-00)

Sec. 10-25. Fire hydrant.

It is the owner's responsibility to provide fire hydrant coverage to meet the following criteria on all new construction and additions to existing buildings.

(a) A fire hydrant shall be located within five hundred (500) feet of all parts of the building along access roadways with all-weather driving surfaces, distance measured as the fire truck travels.

(b) A fire hydrant shall be located within one hundred fifty (150) feet of the fire department connection, along access roadways with all-weather driving surfaces, distance measured as the fire truck travels.

(c) The fire hydrant shall face the fire department access roadway and shall be within six (6) feet of the curb line.

(d) Fire hydrants shall be located no closer than forty (40) feet to any building that is being protected by that hydrant.

(Ord. No. 00-214, § 5, 12-5-00)

Sec. 10-26. Installation; tanks.

The installation of aboveground tanks storing class I and class II liquids at commercial service stations open to the public shall be prohibited within the corporate limits. EXCEPTION: The storage of K-1 kerosene that complies with Section 907.3.6 of Volume V—North Carolina Fire Prevention Code.
(Ord. No. 00-214, § 6, 12-5-00)

Sec. 10-27. Standards; permits.

The following standards are hereby established as prerequisites for obtaining a permit from the fire prevention bureau for unattended self-service gasoline installations and operations.

(a) Before anyone shall engage in unattended self-service gasoline operations, a permit application must first be secured from the Greensboro Fire Prevention Bureau. If at any time the fire prevention bureau finds the said occupant operating contrary to these rules, then the permit shall immediately be revoked.

(b) Plot and building plans (as applicable) shall be submitted to the fire prevention bureau and building inspections. Such plans shall be approved before construction begins. Required permits for construction and tank installations shall be obtained.

(c) Unattended self-service installations shall comply with all applicable codes, ordinances and standards including the North Carolina State Building Code, North Carolina State Fire Code, NFPA 30 and NFPA 30A.

(d) All unattended self-service gasoline installations shall be located in the proper zoning district. The facility shall be used only for the sale and dispensing of motor vehicle fuels. The sale of liquefied petroleum gases or kerosene is prohibited. Limited vehicle services will be permitted such as air, vacuums and vending for motor oils.

(e) A representative of the fire prevention bureau and the building inspection division shall inspect each facility for compliance with all ordinances and regulations prior to opening for business.

(f) Each installation shall be properly lighted during all periods of darkness.

(g) All wiring and electrical equipment shall comply with the requirements of the National Electrical Code.

(h) Printed safety regulations and operating instructions shall be permanently and conspicuously displayed at all installations. The printed regulations shall include the following:

IN CASE OF FIRE OR SPILL

(1) Use emergency stop switch, located at _____.

(2) Call 911 to report the accident: the phone is located at _____.

WARNING

(1) No smoking.

(2) Turn off the vehicle motor before refueling vehicle.

(3) Stay at the nozzle while refueling vehicle.

(4) No person under sixteen (16) years of age shall be permitted to use any dispensing device.

(5) It is unlawful to dispense gasoline into unapproved containers (including drums).

(6) Approved containers shall be firmly set on the ground and shall not be filled on truck beds.

(7) The use of cellular phones around any fueling station is not permitted.

ANYONE FOUND TO BE IN VIOLATION OF THESE REGULATIONS WILL BE PROSECUTED.

(i) All dispensing devices must be "listed" by an approved testing laboratory. Coin and currency-type devices are prohibited. A "listed" automatic closing type hose nozzle valve with a latch open device shall be provided. A device that causes or requires the closing of the hose nozzle valve before the product flow can be resumed or before the nozzle valve can be replaced in its normal position in the dispenser is required.

(j) A clearly identifiable and easily accessible switch shall be provided at a location remote from dispensing devices, to shut off the power to all dispensing devices in the event of an emergency. The emergency switch shall be more than fifteen (15) feet but less than seventy five (75) feet from the dispenser. Additional emergency controls shall be installed on each group of dispensers or the outdoor equipment used to control the dispensers. Switches shall be manually reset on-site by a company representative.

(k) Fire extinguishers with at least 2A:20BC rating shall be located so that an extinguisher will be within seventy-five (75) feet of each pump, dispenser and underground fill pipe opening. All extinguishers must be visible and easily accessible.

(l) All product storage tanks shall be installed underground.

(m) Dispensers must be at least ten (10) feet from any type V or type VI constructed buildings located on the premises. Dispensers shall be a minimum of ten (10) feet from any adjacent property line or other lessee's leased property line up to which a building is or can be constructed upon, and shall be fifteen (15) feet from any street right-of-way. Sturdy steel posts not less than four (4) inches in diameter, shall be installed adjacent to the dispenser in a manner as to prohibit vehicles from bumping against or damaging such dispensers.

(n) There shall be a telephone located on the premises with the number to be called in case of emergency, prominently posted. Such telephone shall be used to report spills, malfunctions and other hazardous conditions. The telephone at the central location of the owner shall be answered on a twenty-four-hour basis and the operator shall report all hazardous conditions directly to the city communications center. The owner or a responsible representative is required to respond to the facility immediately (not to exceed one (1) hour) for any reported emergency, spill or code violation.

(o) The owners of all such facilities shall be responsible for the enforcement of all safety regulations. All reasonable necessary steps shall be taken to maintain the premises in a clean, orderly, safe and sanitary condition at all times. Inspections shall be made every day by employees of the owner in order to ensure safety of equipment, and individuals who may use the premises.

(p) Provisions shall be made to prevent spilled liquids from flowing into the interior of buildings or endangering other properties.

(q) Those companies using gasoline pumps located upon their own property to serve only their own vehicles may leave said pumps unattended provided they have complied with all other provisions of the fire prevention code; such companies are exempt from the other standards set forth above.

(Ord. No. 00-214, § 7, 12-5-00)

Secs. 10-28, 10-29. Reserved.

ARTICLE III. RESPONSE TO HAZARDOUS MATERIALS EMERGENCIES; FEES AND CHARGES*

Sec. 10-30. Purpose and authority.

The Greensboro fire chief or his/her/their designee shall have the authority to summarily abate, control and contain hazardous materials which are emitted into the environment in such a manner as to endanger the health or safety of the general public or the environment. The fire chief or his/her/their designee shall have the authority to enter public or private property with or without the owner's consent, to respond to such hazardous materials emergencies. The fire chief or his/her/their designee shall determine the type, amount and quantity of equipment and personnel required to adequately abate, control and contain all hazardous materials which are emitted into the environment.

(Ord. No. 89-75, § 1, 6-15-89; Ord. No. 20-163, § 3, 12-15-2020; Ord. No. 20-163, § 3, 12-15-20)

Sec. 10-31. Responsibility; fees and charges.

The property owner and/or the person exercising control over the hazardous materials that create the hazardous material emergency shall be held financially liable for the response, control, containment, equipment and materials costs incurred by the city fire department during the emergency. In incidents involving natural gas/propane leaks, cut lines, and other types of release, the property owner and/or the person performing the work which caused the release shall be held financially liable for the response, control, containment, equipment and materials costs incurred by the city fire department during the emergency. The property owner and/or person exercising control over such hazardous material may provide personnel to assist abatement, removal and remedial measures, provided such personnel have been adequately equipped and trained pursuant to the requirements of state and federal laws. The City of Greensboro shall not be liable for the use of outside personnel. Assistance shall consist of any or all of the following:

(1) Informing fire department personnel of all matters pertaining to the incident.

(2) Supplying emergency response plan information for the site.

(3) Supplying emergency response equipment, personnel and materials.

The city will not charge for abatement, control and containment of hazardous material responses, or fire incidents involving hazardous materials which accrue one hundred seventy-five dollars ($175.00) or less in charges.

The city will charge for abatement, control and containment of hazardous material responses or fire incidents involving hazardous materials

*__Editor's note—__Ord. No. 89-75, § 1, adopted June 15, 1989, purported to amend the Code by adding a new Art. III to Ch. 10. Inasmuch as there already exists an Art. III pertaining to similar subject matter, the provisions of said Ord. No. 89-75 have been construed as amending Art. III in its entirety. Prior to inclusion, Art. III, §§ 10-30—10-32, derived from Ord. No. 89-38, § 1, adopted March 6, 1989.

which accrue more than one hundred seventy-five dollars ($175.00) in charges. In all cases the first one hundred seventy-five dollars ($175.00) of expenses shall not be charged to the person in default.

Charges for hazardous materials emergency response on behalf of the city by the fire department shall be based upon the following schedule:

(1) Engine, quint and rescue apparatus shall be one hundred seventy-five dollars ($175.00) per hour for each apparatus. Charges will be assessed in half-hour increments after the first hour.

(2) Hazardous materials team response (full) shall be three hundred fifty dollars ($350.00) for the initial hour. Charges will be assessed in half-hour increments after the first hour.

(3) Hazardous materials team response (modified) shall be one hundred seventy-five dollars ($175.00) for the initial hour. Charges will be assessed in half-hour increments after the first hour.

(4) Battalion chief response shall be fifty ($50.00) per hour. Charges will be assessed in half-hour increments after the first hour.

(5) Reusable entry suits shall be three hundred seventy-five dollars ($375.00) for each suit.

(6) Monitors shall be fifty dollars ($50.00) for each monitor.

(7) Any other actual costs of abatement, control and containment of hazardous materials other than set out above.

Failure to pay the charges as assessed shall give the city the right to levy a lien upon the land or the premises where the hazardous material emergency arose and the levy shall be collected in the same manner as unpaid taxes pursuant to the authority of G.S. § 160A-193.
(Ord. No. 89-75, § 1, 6-15-89; Ord. No. 99-127, § 1, 8-2-99; Ord. No. 05-145, § 1, 6-21-05; Ord. No. 17-72, § 2, 6-20-17; Ord. No. 25-098, § 1, 6-17-25)

Sec. 10-32. Fire incidents involving hazardous materials.

In fire incidents that involve hazardous materials or an exposure to hazardous materials, no fee will be assessed for resources normally associated with firefighting operations; however, additional fees will be incurred as a result of the use/application of foam required for vapor suppression or hazard mitigation. Fees shall be assessed for those activities and resources (reference section 10-31) associated with the abatement, control and containment of the hazardous materials involvement or exposure which accrues more than one hundred seventy-five dollars ($175.00) in charges.
(Ord. No. 89-75, § 1, 6-15-89; Ord. No. 05-145, § 2, 6-21-05; Ord. No. 17-72, § 3, 6-20-17)

Sec. 10-33. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Full hazardous materials team. Consists of hazardous materials response apparatus, decontamination apparatus and personnel.

Having control over. Shall mean but not be limited to any person using, transferring, storing or transporting a hazardous material immediately prior to release of such hazardous material on to the land or into the air or the waters of the city. (G.S. § 143-215.77)

Hazardous material. Any substance which, when discharged in any quantity, may present an eminent and substantial danger to the public health or welfare or to the environment. (G.S. § 143-215.77, 215.77A)

Hazardous material response. The sending of fire department equipment to abate hazardous materials which endanger the health or safety of persons or the environment.

Modified hazardous materials team. Consists of hazardous materials response apparatus and personnel.

Person. Include individuals, firms, partnerships, associations, institutions, corporations, local governments and the governmental agencies. (G.S. § 143-212)
(Ord. No. 89-75, § 1, 6-15-89; Ord. No. 05-145, § 3, 6-21-05)

Chapter 10.5

HAZARDOUS WASTE MANAGEMENT*

*State law reference—Local hazardous waste regulations, G.S. § 130A-296.

Sec. 10.5-1. Title and purpose.

(a) This chapter shall be known and may be cited as the Greensboro Hazardous Waste Management Regulations. The city council hereby finds and declares that the safe management of hazardous waste is necessary for the protection of the public health and safety of the citizens of the city. It is the purpose of this chapter to establish a process by which those persons desiring to locate a hazardous waste facility may only do so by obtaining a special use permit. It is recognized that the General Assembly of North Carolina has enacted the Hazardous Chemicals Right-to-Know Act [G.S. § 95-173 et seq.], in order to prescribe a safe and uniform system for the disclosure of hazardous chemicals in the work place; and has enacted the Waste Management Act of 1981, as amended, and the Hazardous Waste Treatment Commission Act of 1984, as amended, in order to prescribe a safe and uniform system for the management of hazardous waste. It is the intent of the city council to exercise supplemental local jurisdiction over the stated facilities in a manner consistent with these legislative enactments and pursuant to the powers invested in it by the provisions of North Carolina General Statutes sections 130A-295 and 160A-381, 160A-174, 160A-183, 160A-185, 160A-192 and 160A-193.

(b) The purposes of this chapter are to:

(1) Ensure that hazardous waste facilities are located and managed in a manner consistent with the promotion of public health, safety and welfare.

(2) Ensure that no hazardous waste facility is located within the city's zoning jurisdiction unless a special use permit has been issued by the city council.

(3) Ensure that all applicants seeking to obtain a special use permit to locate a hazardous waste facility in Greensboro shall pay the city an application fee set by the city council.

(4) Ensure that funds are available through the levy of an annual privilege tax and, where appropriate, a gross receipts tax, to compensate the city for overseeing hazardous waste facilities within its jurisdiction.

(Ord. No. 87-44, § 1(23-90), 4-21-87)

Sec. 10.5-2. Definitions.

(a) The definitions contained in North Carolina General Statutes section 130A-290, as amended, and the regulations promulgated pursuant to that Act and contained in 10 N.C.A.C. 10F .0002, et seq., as amended, are hereby adopted by reference and incorporated herein as if fully set forth. The term "hazardous waste facility" shall include, in addition to the definition in North Carolina General Statutes section 130A-290, any facility that treats or disposes of polychlorinated biphenyls (PCBs), as defined in 40 C.F.R. section 761.3, in a manner regulated by and not exempted by 40 C.F.R. sections 761.60—761.80.

(b) For the convenience of readers, the following definitions are set out below:

(1) *Hazardous waste facility* means a facility for the storage, collection, processing, treatment, recycling, recovery or disposal of hazardous waste.

(2) *Hazardous waste* means a solid waste, or combination of solid wastes, as solid waste is defined in North Carolina General Statutes section 130A-290(18), which because of its quantity, concentration or physical, chemical or infectious characteristics may:

a. Cause or significantly contribute to an increase in mortality or an increase in serious irreversible or incapacitating reversible illness; or

b. Pose a substantial present or potential hazard to human health or the environment when improperly treated, stored, transported, disposed of or otherwise managed.

(3) *Hazardous waste treatment facility* means a facility which is established and operated for the recovery, recycling, treatment, storage during collection and prior to treatment, short-term storage after treatment, collection, processing, volume reduction, source separation, or transportation used exclusively in connection with the facility, of hazardous waste; and which facility includes several of the following equipments and processes: Incinerators, rotary kilns, drum handling, washing and crushing facilities, raw

waste tank storage, reduction, neutralization, detoxification, wastewater treatment facilities including settling systems, aerobic digesters, anaerobic digesters, clarifiers, neutralization facilities, solidifying facilities, evaporators, reactions to facilitate "reuse" or recycling, analytical capabilities, and other similar appropriate technologies, activities and processes as may now exist or be developed in the future.

(4) *Hazardous waste long-term storage facility* means any facility or any portion of a facility constructed for storage of the residuals of the treatment of hazardous waste, on or in land.

(5) *Hazardous waste management* means the systematic control of the collection, source separation, storage, transportation, processing, treatment, recovery and disposal of hazardous wastes.

(6) *Long-term retrievable storage* means storage in closed containers in facilities (either above or below ground) with adequate lights; impervious cement floors; strong visible shelves or platforms; passageways to allow inspection at any time; adequate ventilation if underground or in closed buildings; protection from the weather; accessible to monitoring with signs on both individual containers and sections of storage facilities; and adequate safety and security precautions for facility personnel, inspectors and invited or permitted members of the community.

(c) Copies of the above-referenced definitions are available for review by the general public at the office of the fire chief, the department of planning and community development and the various public libraries.
(Ord. No. 87-44, § 1(23-91), 4-21-87)

Sec. 10.5-3. Existing facilities.

Any hazardous waste facility legally existing and operating in the city on April 30, 1987 may continue to operate as long as it continues to hold valid federal or state permits or approvals under which it began operation. Sections 10.5-7 and 10.5-8 shall first apply to existing facilities at the beginning of the city's first full fiscal year after April 30, 1987.
(Ord. No. 87-44, § 1(23-100), 4-21-87)

Sec. 10.5-4. Enforcement and penalties.

(a) *Generally.* The city through its responsible officers shall enforce the provisions of this chapter to ensure and safeguard the public health, safety and welfare.

(b) *Civil penalty.* A civil penalty of not more than five thousand dollars ($5,000.00) may be assessed by the city manager, as the city council's delegate, against any person who violates this chapter or the terms and conditions of a special use permit granted pursuant to this chapter. Each day of a violation shall be treated as a separate offense and shall be subject to the assessment of a civil penalty. Within twenty (20) days after receipt of notice of an assessment, the assessed person must tender payment to the city or submit in writing a statement appealing the assessment and requesting an informal administrative hearing. The statement shall describe the legal and factual issues in dispute. The city council shall conduct a hearing and shall affirm, modify, reverse or remand the city manager's decision. If any civil penalty as finally assessed is not paid, the council shall direct the city attorney to sue to recover the amount of the assessment. The city manager, in assessing a civil penalty, and the city council, in reviewing the assessment, shall take into account:

(1) The amount of hazardous waste involved.

(2) The degree of toxicity, corrosivity, ignitability, and reactivity of the hazardous waste involved.

(3) The degree of care exercised by the violator with respect to the hazardous waste involved, considering the characteristics of such waste.

(4) The degree and extent of harm caused or threatened by the violation.

(5) The extent of deviation from the requirements of this chapter.

(6) The economic benefit of noncompliance to the violator.

(7) The extent of the violator's good faith efforts to comply.

(8) The cost of correcting the harm caused by the violation if correction is possible.

(9) The degree of cooperation by the violator with federal, state and local officials to prevent any harm to public health or the environment.

(10) The violator's history of compliance or noncompliance with this chapter.

(c) *Equitable relief.* The city may seek such equitable remedies as are available, including injunctive relief from the superior court division of the general court of justice for the county, to abate a continuing violation.

(d) *Permit revocation.* If, after inspection, authorized representatives of the city manager find that the conditions or practices for which written notice to correct has been given have not been corrected within the ten-day period, the city manager shall notify the permittee by certified mail to cease and desist all activities until the corrections are made. The cease and desist order shall give notice to appear before the city council to show cause why the permit should not be revoked. The city council may revoke the permit, leave it in effect, or add other conditions as it deems necessary because of the violations. Revocation of any federal or state permit or approval automatically revokes the special use permit issued under this chapter.

(e) *Modification.* If a major modification is required for the state or federal permit or approval of a hazardous waste facility permitted by this chapter or an existing facility under section 29-68, the owner or operator of the facility must apply for a modification of the special use permit under this chapter. A processing fee of two thousand five hundred dollars ($2,500.00) shall be charged for any application for a modification of the special use permit. The planning and community development department shall review the modification under the same procedures employed for initial application and make a recommendation to the city council.

(f) [*Civil penalties considered restorative.*] Civil penalties assessed under this section are considered restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. As such, the amount declared herein is presumed to provide sufficient restoration to the city for its costs.

The assessment of civil penalties herein is not intended to be an exercise of powers delegated to other agencies or entities created by the General Assembly to regulate the proscribed conduct.
(Ord. No. 87-44, § 1(23-95), 4-21-87; Ord. No. 04-168, § 2, 9-7-04)

State law reference—Penalties for ordinance violations, G.S. §§ 14-4, 160A-175.

Sec. 10.5-5. Variances.

Where any variance, waiver or modification of this chapter, chapter 30, or any other applicable city ordinance is sought by an applicant and the city council shall find that strict compliance with the provisions of this chapter would cause an unusual and unnecessary hardship and that the variance, waiver or modification requested would not endanger the public health or safety of city citizens or the natural resources of the city, the city council may vary the requirements. In granting any variance, waiver, or modification, the city council shall require such conditions as will procure, insofar as practical, the objectives of the requirements which are varied or waived. Any variance, waiver, or modification authorized shall be entered in the minutes of the city council together with the circumstances that justify the variance, waiver or modification, and any conditions upon which the same were granted.
(Ord. No. 87-44, § 1(23-99), 4-21-87)

Sec. 10.5-6. Appeals.

Nothing in this chapter shall preclude any applicant from appealing the decision of the city council to the governor's waste management board on the basis of an alleged conflict with standards established by the state which conflict may be deemed to be unreasonable, prohibited and preempted by state law.
(Ord. No. 87-44, § 1(23-101), 4-21-87)

Sec. 10.5-7. Compliance with other standards.

All hazardous waste facilities shall comply with all other applicable sections of this Code and with applicable federal and state statutes and regulations.
(Ord. No. 87-44, § 1(23-98), 4-21-87)

Sec. 10.5-8. Privilege license.

(a) In addition to obtaining the usual business privilege license under chapter 13 of this Code, every person owning or operating a hazardous waste facility shall make application to secure from the city tax department a privilege license for which the license fee shall be in the sum of five hundred dollars ($500.00) annually for each facility.

(b) All licenses issued under these provisions shall be for one (1) year which shall be from the fiscal year beginning July 1 and ending June 30. Licenses issued within a fiscal year shall only be for the period beginning on the date such license is issued and ending the following June 30. A hazardous waste facility shall submit its biennial report as required by 10 N.C.A.C. 10F .00032(b) 264.75 or any reports or notices made within the past year pursuant to 40 C.F.R. Sections 761.60, 761.70, 761.75, or 761.180 to the department of planning and community development at the time application for renewal of the privilege license is made.
(Ord. No. 87-44, § 1(23-96), 4-21-87)

State law reference—Privilege tax, G.S. § 130A-290.

Sec. 10.5-9. Gross receipts tax.

Every person operating a comprehensive hazardous waste facility within the city shall be subject to a gross receipts tax in the amount of one-half of one (0.5) percent as provided in North Carolina General Statutes section 130A-295(b).
(Ord. No. 87-44, § 1(23-97), 4-21-87)

Sec. 10.5-10. Application procedure for special use permit.

(a) Application to locate a hazardous waste facility shall be submitted in accordance with this section.

(b) Applicants requesting a special use permit for a hazardous waste facility shall pay to the city an application fee of five thousand dollars ($5,000.00). Such application fee shall be subject to revision annually by the city council and shall remain in effect until revised.

(c) Applicants requesting a special use permit for a hazardous waste facility shall submit to the department of planning and community development the following information:

(1) A copy of all documents and data supplied to the state and the federal government pursuant to the permitting, approval and notice requirements of the hazardous waste permit program found in 10 N.C.A.C. 10F .0034-Part 270, or of 40 C.F.R. sections 761.60, 761.70, or 761.75.

(2) The names, addresses and telephone numbers (home and office) of designated responsible parties to be contacted for further information or in the event of an emergency during the operation of the facility. This information shall be kept current and revised as changed after a special use permit is granted.

(3) A copy of the contingency plan prepared in accordance with subpart D of 10 N.C.A.C. 10F .0032(b).

(4) A copy of the plan prepared in conjunction with the fire chief incorporating those inspection and training requirements found in 10 N.C.A.C. 10F .0032 subpart B 264.15 and 264.16. This shall be known as the inspection and training plan.

(d) Within forty-five (45) days of receiving all of the information set forth in subsection (c), the department of planning and community development shall seek, as appropriate, the advice or recommendations of the fire department, the police department, the public works department, the county health department, the emergency management assistance agency, and any other city or county agency or department, which the department of planning and community development believes may be appropriate to comment upon the application. Any reports or recommendations of one (1) of these various departments

and agencies shall be returned to the department of planning and community development within thirty (30) days after the department or agency receives the request from the department of planning and community development.

(e) After receipt of all the reports or recommendations from the various other departments and agencies, but no later than seventy-five (75) days from the date of the receipt of the full application, the department of planning and community development shall call a public hearing before the board of adjustment for public comment on the completed application and the reports and recommendations of the various city and county departments. The department of planning and community development shall give notice by regular mail of the time and place of the hearing to the owner and all property owners within one thousand (1,000) feet of the facility's property line. In addition, the notice shall be published in a newspaper of general circulation within the city and county. In addition, notices by way of placard describing the application in brief terms shall be posted upon the proposed site. These notices of public hearing shall be given at least fourteen (14) days prior to the date of the hearing and not more than thirty (30) days prior to the date of hearing. The department of planning and community development may publicize the hearing through additional means it finds appropriate.

(f) After completion of the public hearing, the department of planning and community development and the board of adjustment shall make a recommendation to the city council either to deny, to approve or to approve with conditions the special use permit. Prior to making this recommendation, the department of planning and community development may analyze and document consideration of the following factors which are in addition to the minimum requirements set forth in section 10.5-11 and which can be the basis for a recommendation for denial even if the applicant meets all the minimum requirements.

(1) The risks posed by the proximity of the facility to:

a. Water table levels.

b. Floodplains.

c. Water supplies.

d. Public water supply watersheds.

e. Mines.

f. Natural resources such as wetlands.

g. Endangered species habitats.

h. Parks.

i. Forests.

j. Wilderness areas.

k. Historical sites.

l. People and population centers.

(2) The relationship of the facility's activities to:

a. Groundwater travel time.

b. Soil pH.

c. Soil cation exchange capacity.

d. Soil composition and permeability.

e. Slope.

f. Climate.

g. Other local land uses neighboring the facility.

h. Transportation factors.

i. Aesthetic factors such as the visibility, appearance, and noise level of the facility, potential impact on air quality, existence of seismic activity, and cavernous bedrock.

(3) The owner's and/or operator's past experience with hazardous chemicals or hazardous waste.

(g) The department of planning and community development and the board of adjustment shall make their recommendations to the city council in open meeting and the council shall allow any party to present argument for or against the recommendations. Thereafter, the council in open meeting shall vote to issue, to issue with conditions, or to deny the special use permit.

(h) In the event the city council votes to issue a special use permit, that special use permit shall be made conditional and effective only upon receipt by the applicant of all necessary state and federal permits and approvals.
(Ord. No. 87-44, § 1(23-93), 4-21-87; Ord. No. 20-104, § 1, 7-21-20)

Sec. 10.5-11. Minimum location standards.

An applicant for a special use permit must satisfy the following minimum location standards, as applicable:

(1) Hazardous waste facilities shall be permitted in industrial H districts only.

(2) No hazardous waste facility shall be located inside the city limits within the county designated drinking water supply watersheds, as defined by the state department of human resources and the environmental health division of the county health department.

(3) The access routes over which hazardous wastes are conveyed to or from a hazardous waste facility shall make use only of the truck traffic routes established in section 16.113 and permissible deviations from those routes as described in such section.

(4) All equipment, containers and tanks in which hazardous waste is treated, stored or disposed at hazardous waste facilities shall be located:

a. Aboveground.

b. Upon a base which is free of cracks or gaps and is sufficiently impervious to contain leaks, spills, and accumulated precipitation until the collected material is detected and removed.

c. Surrounded by a dike formed of a material at least as impermeable as concrete (hereinafter referred to as a "containment system"). The containment system shall have no drain and be capable of holding an amount of liquid at least one and one-half (1½) times larger than the amount of hazardous waste held by the largest piece of equipment, container or tank within the containment system and shall be capable of containing a liquid in an amount equal to seventy-five (75) percent of the total volume of hazardous waste held by all equipment, containers or tanks within the containment system. The containment system shall be located within a covered building or under a roofed area to prevent rainwater accumulation.

(5) All containment systems shall be a minimum of one hundred (100) feet from the property line of the facility; except that all containment systems containing hazardous wastes which have ignitable, incompatible or reactive characteristics shall be located a minimum of two hundred fifty (250) feet from the property line of the facility, if the area adjacent to the facility is zoned for any use other than industrial H or is not zoned. In addition, all containment systems shall be a minimum of five hundred (500) feet from the property line of the facility which is adjacent to any area zoned for residential use.

(6) All containment systems for hazardous waste facilities must be surrounded by walls, fences or other artificial and natural barriers at least seven (7) feet in height. The entrance to these containment systems must be controlled at all times and shall bear a placard readily apparent to all parties entering the containment system stating in bold letters "DANGER—HAZARDOUS WASTE—UNAUTHORIZED PERSONNEL KEEP OUT." In addition, each controlled entry point shall be monitored by a twenty-four-hour surveillance system (e.g. television cameras or guards).

(Ord. No. 87-44, § 1(23-92), 4-21-87)

Sec. 10.5-12. Inspection and monitoring.

(a) The city manager shall designate the department or departments to monitor the compliance of any owner or operator of any hazardous

waste facility with the provisions of this chapter, the special use permit granted and any state or federal permits or approvals. In carrying out this responsibility, the city manager shall enlist the involvement of the departments of planning and community development, fire, police, and public works, the county health department, the emergency management assistance agency, and any other city or county agency or department which the city manager believes may be appropriate.

(b) The owner or operator of a hazardous waste facility acknowledges by acceptance of a special use permit the authority and right of the city manager's designees to inspect the facility at any time, without prior notice, for the purposes of determining compliance with the provisions of this chapter, the special use permit granted and any state or federal permits or approvals held by the facility; any failure to permit such inspection shall constitute a violation of this chapter and subject the permittee to the enforcement and penalty provisions in section 10.5-4. The authorized representative of the city manager shall have the right of entry upon any facility where entry is necessary to carry out the provisions of this chapter and shall inspect the facility at least once every six (6) months. If consent for entry is not obtained, an administrative search and inspection warrant shall be obtained pursuant to North Carolina General Statutes section 15-27.2. However, if an imminent hazard exists, no warrant is required for entry upon the premises and the authorized representative shall report the findings of his/her/their inspection to the appropriate state and federal supervisory authorities as soon as he/she/they exits the facility. If the authorized representative believes an imminent hazard exists after his/her/their inspection, he/she/they shall request the state supervisory authority take action to abate the hazard within twenty-four (24) hours; this request shall be oral with written confirmation to follow.

(c) Whenever an authorized representative of the city manager finds that conditions or practices exist at a hazardous waste facility which are not in compliance with this chapter or the special use permit granted, written notice shall be given to the responsible party designated pursuant to this chapter that unless the conditions or practices are corrected or remedied immediately, the permit may be revoked. Notice shall include the date, time and place of any scheduled reinspection by the appropriate representatives of the city manager. Reinspection shall be conducted within ten (10) days. In the event that the authorized representative of the city manager finds that conditions or practices exist at a hazardous waste facility which are not in compliance with the terms and conditions of any state or federal permit or any approval requirements, the representatives shall give immediate notice to the authority responsible for enforcing the terms and conditions which are being violated.

(d) The owner or operator of any hazardous waste facility shall immediately deliver to the director of the department of planning and community development a copy of any notice of noncompliance or revocation by the facility with any state or federal standard or requirement or any notice of noncompliance received by the facility alleging the noncompliance with any state or federal standards or requirements.
(Ord. No. 87-44, § 1(23-94), 4-21-87; Ord. No. 20-163, § 3, 12-15-20)

Sec. 10.5-13. Severability.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this chapter are severable, and if any phrase, clause, sentence, paragraph or section of this chapter shall be declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this chapter, since the same would have been enacted by the city council without the incorporation in this chapter of any such unconstitutional phrase, clause, sentence, paragraph or section.

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Chapter 11

HOUSING CODE*

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ARTICLE I. IN GENERAL

Sec. 11-1. How chapter known and cited.

This chapter shall be known as the "Minimum Housing Code," may be cited as such, and will be referred to herein as "this chapter."
(Code 1961, § 10-1; Ord. No. 00-215, § 1, 12-5-00)

Sec. 11-2. Definitions.

Certain abbreviations, terms, phrases, words, and their derivatives shall be construed as specified in this chapter. Terms, words, phrases, and their derivatives used but not specifically defined in this chapter shall have the meaning specifically defined in the building code, and any terms, words, phrases, and their derivatives used but not specifically defined in either this chapter or the building code shall have the meaning specifically defined in chapter 30.

Alter, repair, bring into compliance or similar words mean that the work is workmanlike and performed in a workmanlike manner.

Apartment house means any building, or portion thereof, which is designed, built, rented, leased, let, or hired out to be occupied, or which is occupied as the home or residence of three (3) or more families living independently of each other in dwelling units.

Area, as applied to the dimensions of a building, means the maximum horizontal prospected area of the building at grade.

Area, as applied to the dimensions of a room, means the total square footage of floor area between finished walls.

Basement means a story with forty (40) percent or more of its cubical contents below finished yard grade.

Building means that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner. The term "building" shall be construed as if followed by the words "or part thereof."

Ceiling height means the clear vertical distance from the finished floor to the finished ceiling.

Common elements means all areas which were conveyed to a home-owners' association in a townhouse development, condominium, cooperatives or planned unit development.

Demolish means the demolition and removal of the entire building leaving the property free and clear of any debris and without holes or pockets which may retain water.

Dwelling means any building or structure, or portion thereof, which is used, or designed or intended to be used for human habitation including living, sleeping, cooking, and eating or any combination thereof and includes accessory structures intended for human habitation.

Dwelling unit means any room or group of rooms located within a building and forming a single habitable unit with facilities which are used or intended to be used for living, sleeping, cooking, and eating.

Exit means a clear and unobstructed way of departure from the interior of a building or structure to the exterior at street or grade level.

Extermination means the control and elimination of insects, rodents, or other pests by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food; by poisoning, spraying, fumigating, trapping, or by any other recognized and legal pest elimination methods approved by the inspector.

Family means any of the following:

(1) An individual or two (2) or more persons related by blood, marriage, or adoption, and may, in addition include not more than two (2) unrelated persons, living together in a dwelling unit.

(2) A group of not more than four (4) persons who need not be related by blood, marriage, or adoption living together in a dwelling unit.

A family includes five (5) or fewer foster children placed in a foster home licensed by the state. "Family" does not include fraternities, sororities, rooming houses or boardinghouses, tourist homes, or family care homes.

Garbage means the animal and vegetable refuse resulting from the handling, preparation, cooking, and consumption of food, including a minimum amount of liquid necessarily incidental thereto.

Habitable room means a room or enclosed floor space used or intended to be used for living, sleeping, cooking, or eating purposes, excluding bathrooms, water closet compartments, laundries, pantries, foyers, communicating corridors, closets, or storage spaces.

Household means all persons who occupy a dwelling unit, (a person living alone or any group of persons sharing a dwelling unit is a household).

Housing means any building, or structure, or part thereof, used and occupied for human habitation or intended to be so used, including any outhouses and appurtenances belonging thereto or usually associated therewith.

Infestation means the presence, within or around a dwelling, of any harmful insects, rodents or other pests.

Inspection means all inspections, examinations, investigations, and similar activities.

Inspection office means the office of the chief of code compliance of the city.

Inspector means any employee of the city who is designated a minimum housing code compliance officer or employees of the city who are designated to enforce the provisions of this chapter or the building code.

Non-residential building or structure means any building or structure which is used or designed for any purpose other than residential occupancy, including accessory structures.

Occupant means any person living, sleeping, cooking, or eating in, or having actual possession of, a dwelling or rooming unit or any person having possession of a space within a building.

Owner means the holder of the title in fee simple and every mortgagee of record.

Parties in interest means all individuals, associations, partnerships, corporations, and others who have interest in a dwelling and any who are in possession or control thereof—as agent of the owner, as executor, executrix, administrator, administratrix, trustee, or guardian of the estate of the owner.

Pier means a masonry support of at least eight (8) inches by twelve (12) inches of solid masonry extending from the ground and footing to and supporting the building or portion thereof. Pier sizes and spacing shall conform to the specifications of the North Carolina Residential Building Code.

Plumbing means the water supply system, the sanitary and storm drainage system, the vent system, the fixtures and traps and shall include their respective connections, devices, appliances and appurtenances within the property lines of the premises.

Public authority means any public authority for housing or any officer who is in charge of any department or branch of the government of the city, the county, or state relating to health, fire, building regulations, or other activities concerning dwellings or buildings in the city.

Public space shall mean that space within any multifamily housing which is open to common use by the occupants and others visiting the premises except in townhouse developments.

Residential building means any building or structure, or portion thereof, which is used, or designed or intended to be used for human habitation including living, sleeping, cooking, and eating or any combination thereof.

Roominghouse or *boardinghouse* means the keeping of persons by a family as an incidental home occupation provided that the capacity (total number of roomers or boarders) shall not exceed one (1) person per seventy-five (75) square feet of the permissible area for said incidental home occupation.

Rooming unit means any room for let within a rooming house.

Rubbish means combustible and noncombustible waste materials except garbage, including but not limited to ashes, wood, coal, coke, and other combustible material, paper, rags, cartons, boxes, excelsior, rubber, leather,

tree branches, yard trimmings, leaves, tin cans, metals, mineral matter, glass, crockery, dust and dirt.

Sagging means the amount of deflection occurring over a span between two (2) supports. A deflection of $1/240$ shall be deemed as a structural defect.

Seriously means that the amount of damage occurring shall be sufficient to decrease the designed strength of the structural member.

Story means that part of a building comprised between a floor and the floor or roof next above.

Structure means that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner. The term "structure" shall be construed as if followed by the words "or part thereof."

Substandard residential building means any building, including any dwelling unit, guest room, or suite of rooms or the premises on which the same is located, or portion thereof, which do not meet the minimum requirements of this chapter.

Tenant means any person who alone or jointly or severally with others occupies a residential building under a lease or holds a legal tenancy in a building.

Unfit for human habitation means any of those certain conditions that exist in any dwelling or building as set forth under sections 1-8 (owner's responsibility for safety of occupants), 11-10 (conditions rendering residential buildings unfit for human habitation, etc.), 11-37 (determination that structures are unfit or substandard), 11-41 (emergency cases) and any other conditions stated in chapter 11.

Violation means when a building or structure fails to meet standards established by this chapter 11.

Workmanlike manner means repairs and alterations shall be performed in accordance with accepted standards of each trade using quality materials and craftsmanship.
(Code 1961, § 10-5; Ord. No. 03-250, § 1, 11-18-03; Ord. No. 05-122, § 1, 6-7-05; Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 18-133, § 1, 10-16-18; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

Cross reference—Building code, § 6-21 et seq.

Sec. 11-3. Findings of fact.

The city council hereby finds and declares that there exist within the city limits residential buildings and accessory structures which are unfit for human habitation due to dilapidation, defects increasing the hazards of fire, accidents or other calamities, lack of ventilation, light or sanitary facilities, and other conditions rendering such buildings unsafe or unsanitary, or dangerous, or detrimental to the health, safety or morals, or otherwise inimical to the welfare of the residents within the city, and that public necessity exists to exercise the police powers of the city to cause the repair and rehabilitation, closing or demolishing of such buildings and structures in the manner provided in this chapter.

The city council further finds that there exists within the city limits abandoned structures that constitute a health or safety hazard as a result of the attraction of insects or rodents, conditions creating a fire hazard, dangerous conditions constituting a threat to children or frequent use by vagrants as living quarters in the absence of sanitary facilities.

The U.S. Census Bureau has forecast that North Carolina's population will increase by more than four million (4,000,000) people between 2000 and 2030 so the city council finds that housing preservation initiatives are warranted rather than relying only on a demolition program. (Code 1961, § 10-2; Ord. No. 05-122, § 2, 6-7-05; Ord. No. 15-0110, § 1, 9-1-15)

Sec. 11-4. Purpose.

The purpose of this chapter is to arrest, remedy, and prevent the decay and deterioration of places of habitation and to eliminate blighted neighborhoods by providing minimum requirements for places of habitation for the protection

of the life, health, welfare, safety, and property of the general public and the owners and occupants of places of habitation.
(Code 1961, § 10-3; Ord. No. 05-122, § 3, 6-7-05; Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15)

Sec. 11-5. Scope.

The provisions of this chapter are applicable to all residential buildings and accessory structures within the city limits, as now or hereafter fixed. Demountable buildings or structures, when used for or intended for the use of human habitation, shall be subject to the applicable provisions of this chapter.
(Code 1961, § 10-4; Ord. No. 05-122, § 4, 6-7-05; Ord. No. 15-0110, § 1, 9-1-15)

Sec. 11-6. Chapter supplemental.

The powers conferred upon the inspector by the provisions of this chapter shall be in addition and supplemental to the powers conferred upon the inspector. Nothing in this chapter shall be construed to impair or limit in any way the power of the inspector to use other lawful remedies for violation of any of the provisions of this chapter. The measures and procedures herein provided for do not supersede or repeal any other measures or procedures which are provided by ordinance or state law for the elimination, repair, or correction of the conditions referred to in section 11-3, but the measures and procedures herein provided for shall be in addition to the same.
(Code 1961, § 10-27(a); Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15)

Sec. 11-7. General owner responsibilities.

An owner remains liable for violations of duties imposed upon him/her/them by this chapter even though:

(1) An obligation is also imposed on the occupants.

(2) The owner has, by agreement, imposed on the occupant the duty of furnishing required equipment or of complying with this chapter.

An owner shall not be responsible for penalties, financial and nonfinancial as set out in sections 11-40 and 11-42, imposed under this chapter for violations caused solely by the acts of tenants, tenants' guests or invitees. Owner shall be responsible for ensuring that the building/dwelling unit is brought into compliance with this Code.
(Code 1961, § 10-14(a); Ord. No. 13-104, § 1, 7-16-13; Ord. No. 20-163, § 3, 12-15-20)

Sec. 11-8. Owner's responsibility for safety of occupants.

(a) In order to protect the health and safety of occupants of a building the owner shall, within forty-eight (48) hours after being notified in writing, repair any broken, burst, frozen or inoperable plumbing pipe or fixtures, including the restoration of water service when the service account is in the name of the owner. (See subsection 11-9(a)(7) for tenant/occupant requirements)

(b) In order to protect the life and safety of occupants of a building the owner shall, within forty-eight (48) hours after being notified in writing, repair any exposed or unsafe wiring.

(c) In order to protect the life and safety of occupants of a building, the owner shall, within forty-eight (48) hours after being notified in writing, repair or replace any unsafe and/or dangerous cooking or heating equipment provided by the owner, including the restoration of necessary utilities for operation of equipment when the utilities accounts are in the name of owner. (See subsection 11-9(a)(8) for tenant/occupant requirements)

(d) In order to protect the life and safety of occupants of a building, the owner shall, within forty-eight (48) hours after being notified in writing, repair or replace fuel storage tanks and/or supply lines provided by the owner which are leaking, improperly supported or dangerous.
(Code 1961, § 10-16; Ord. No. 15-0110, § 1, 9-1-15)

Sec. 11-9. General duties of occupants.

(a) Every occupant of a dwelling unit or an apartment shall:

(1) Keep that part of a dwelling unit or an apartment which he/she/they occupies and controls in a clean and sanitary condition.

(2) Keep all required plumbing and other fixtures in a clean and sanitary condition, and exercise reasonable care in the use and operation thereof.

(3) Be responsible for the extermination of any insects, rodents, or other pests whenever said dwelling unit or apartment is the only one in the residential building infested and the owner has provided a reasonably insect-proof and adequate rodent-proof building.

(4) Dispose of all garbage and other refuse in an approved garbage receptacle; when approved garbage receptacles are not provided by the landlord, it shall be the responsibility of the occupant to provide adequate approved garbage receptacles.

(5) Not place on the premises any material which causes a fire hazard or otherwise endangers the health or safety of any occupants of such building; not place in storage or on the premises any furniture, auto parts, junk, equipment, or material which harbors insects, rodents, or other pests.

(6) Maintain fuel storage tanks and their supports which are furnished by the occupant in a safe and nonhazardous condition; not alter, change or cause damage to existing fuel storage tanks or their supports so as to make the same unsafe or dangerous.

(7) Not occupy any dwelling unit unless running water is provided to the required plumbing fixtures, including the restoration of water and sewer service when the service account is in the name of occupant.

(8) Not place within any structure for use therein any oil-or gas-fired portable or nonvented cook-stove or heater.

(9) Not place on the premises for the use thereon any heating or cooking unit which constitutes a serious fire hazard.

(10) Cause such damage to the dwelling unit or apartment let to him/her/them as to make the same unfit for human habitation.

(11) Maintain necessary utilities for operation of equipment when the utility accounts are in the name of occupant.

(12) Provide any notice of maintenance requests for a leased dwelling consistent with the provisions of G.S. § 42-42.

(b) Upon discovering a violation of subsection (a), the inspector shall, based upon the standards set forth under section 11-10, have the power to order the correction of any such violations within forty-eight (48) hours from date of notice thereof. In the event that the occupant fails to make such corrections, then the inspector shall set a hearing pursuant to the procedures of subsection 11-39(a) and thereafter may again order the correction of any such violations within forty-eight (48) hours from date of service of the order upon the occupant. In the event that the occupant still fails to make such corrections, then the inspector may order the building to be vacated within a reasonable time. The inspector may pursue any other civil action as he deems reasonably necessary in order to effectuate the purposes of this chapter.

(Code 1961, §§ 10-13, 10-15; Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

Sec. 11-10. Conditions rendering residential buildings unfit for human habitation.

(a) The inspector shall determine that a residential building is unfit for human habitation if he/she/they finds that any of the following conditions exist in such building:

(1) Interior walls or vertical studs which seriously list, lean, or buckle to such an extent as to render the building unsafe.

(2) Supporting members or members which show thirty-three (33) percent or more of damage or deterioration, or nonsupporting members, enclosing or outside walls or covering which show fifty (50) percent or more of damage or deterioration.

(3) Floors or roofs which have improperly distributed loads, which are overloaded, or which have insufficient strength to be reasonably safe for the purposes used.

(4) Such damage by fire, wind, or other causes as to render the building unsafe.

(5) Dilapidation, decay, unsanitary conditions, or disrepair which is dangerous to the health, safety, or welfare of the occupants or other people in the city.

(6) Inadequate facilities for egress in case of fire or panic.

(7) Defects significantly increasing the hazards of fire, accident, or other calamities.

(8) Lack of adequate ventilation, light, heating, or sanitary facilities to such extent as to endanger the health, safety, or general welfare of the occupants or other residents of the city.

(9) Lack of proper electrical, heating or plumbing facilities required by this chapter which constitutes a health or a definite safety hazard.

(10) Interior surfaces or building materials with visible microbial growth exceeding approximately ten (10) square feet, microbial growth associated with moisture intrusion (including reoccurring growth); or materials with water damage, elevated moisture, or microbial impacted porous building materials such that cleaning alone is insufficient shall be corrected to standard industry microbial removal and/or cleaning practices, including drying to acceptable moisture levels, and repair of the moisture source. Extensive, complex, or HVAC-related microbial growth shall be remediated by qualified personnel and may require independent third-party evaluation.

(b) Irrespective of the above, a residential dwelling unit shall be construed by the inspector to be unfit for human habitation, and he shall so find if such dwelling unit contains more than five (5) separate types of violations of any of the minimum standards set forth in this chapter.
(Code 1961, § 10-21; Ord. No. 05-122, § 5, 6-7-05; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

Editor's note—Ord. No. 15-0110, § 1, adopted Sept. 1, 2015, changed the title of § 11-10 from "conditions rendering residential buildings unfit for human habitation and declaration of unsafe non-residential building or structure" to "conditions rendering residential buildings unfit for human habitation". This historical notation has been preserved for reference purposes.

Sec. 11-11. Damaging or removal of permanent fixtures.

No person shall damage, mutilate, or remove, nor shall any person suffer, permit, or cause to be damaged, mutilated, or removed any permanent fixtures from any dwelling unit.
(Code 1961, § 10-25(c))

Sec. 11-12. Unlawful to rent or occupy property after expiration of time limits of any orders issued in accordance with chapter 11.

(a) If any order issued and served in accordance with this chapter is not complied with within the time specified therein, it shall be unlawful for any person that had knowledge of the issuance of the order to occupy any portion of the building under order for any purpose. Each day is a separate offense. A placard placed on the building shall have the same effect as a written order delivered to owner or agent.

(b) When the inspector finds that a building is unfit for human habitation within the meaning of this chapter and has notified the owner to such effect and the time limit set by the inspector for the correction of defects and vacating same has expired, it shall be unlawful for any person (including, but not limited to, owner or

owner's agent) to receive rentals, offer for rent, to occupy or to allow others to occupy said building/dwelling unit for any purpose.
(Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15)

Editor's note—Ord. No. 13-104, § 1, adopted July 16, 2013, amended § 11-12 in its entirety to read as set out herein. Former § 11-12 pertained to occupancy, rental, etc., after time limits in orders, etc., expire and derived from the Code of 1961, §§ 10-24(a), 10-25(b).

Sec. 11-13. Unauthorized removal of orders or notices.

No person, without the written consent of the inspector, shall remove or permit the removal of any complaint, notice or order posted in accordance with the provisions of this chapter.
(Code 1961, § 10-25(a))

Secs. 11-14—11-30. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT

DIVISION 1. RESIDENTIAL DWELLINGS*

Sec. 11-31. Enforcement agency generally.

(a) The chief of code compliance is hereby designated the public officer to exercise, by and through his/her/their duly appointed agents, the powers prescribed by this chapter.

(b) The inspector shall have such powers as may be necessary or convenient to carry out and effectuate the purpose and provisions of this chapter, including (without limiting the generality of the foregoing) the following powers in addition to others herein granted:

(1) To investigate residential building conditions in the city in order to determine which buildings therein are unfit for human habitation, being guided in such examinations of buildings by the requirements set forth in this chapter.

(2) To administer oaths, affirmations, and to examine witnesses and receive evidence.

(3) To enter upon and within premises, dwellings, and buildings for the purpose of making examinations and investigations; provided that such entries shall be made in such lawful manner as to cause the least possible inconvenience to the persons in possession. However, no entrance shall be made into the premises without the permission of the person in legal possession thereof, or absent permission without first obtaining an administrative search warrant.

(4) To appoint and fix the duties of such officers, agents, and employees as he/she/they deems necessary to carry out the purposes of this chapter.

(5) To delegate any of his/her/their functions and powers under this chapter to such officers and agents as he/she/they may designate.

(Code 1961, §§ 10-6, 10-23; Ord. No. 03-180, §§ 1, 2, 8-4-03; Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

State law references—Administrative search and inspection warrants, G.S. § 15-27.2; enforcement officer generally, G.S. §§ 160A-443, 160A-448.

Sec. 11-32. Consulting agencies, enforcement coordination, etc.

(a) The inspector shall have authority to request advice and assistance of the city planning board, county planning board, Housing Authority of Greensboro, Redevelopment Commission of Greensboro, fire department, police department, county health department, county fire marshal, and any other public authority he/she/they may deem appropriate, in order to determine those areas of the city in which substandard housing may be prevalent, and shall designate and schedule such areas for comprehensive inspection under this chapter.

(b) The employees of the fire department and police department shall make a report to the inspector of all buildings or structures which

*__Editor's note—__Ord. No. 15-0110, § 1, adopted Sept. 1, 2015, changed the title of Div. 1 from "generally" to "residential dwellings".

are, may be, or are suspected of being unfit for human habitation or a dangerous accessory structure.

(c) It shall be the duty of the city manager to coordinate and set up proper departmental enforcement procedures to carry out the provisions of this chapter and written reports with respect thereto shall be made to the city council within thirty (30) days after the close of each calendar quarter of the fiscal year of the city. The report should contain the following:

(1) The number of active cases at the end of each quarter;

(2) The number of cases brought into compliance during the quarter;

(3) Data on cases granted extensions by the chief of code compliance (beyond the ninety (90) days granted by the inspector);

(4) The number of cases heard by the minimum housing commission during the quarter and a summary of the actions taken by the commission;

(5) The number of outstanding demolition orders pending at the end of the quarter;

(6) The number of houses demolished by the city during the quarter; and

(7) Any other items requested by council.

(Code 1961, §§ 10-7, 10-26(c), 10-27(b); Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

Sec. 11-33. Appeals.

An appeal to the housing commission may be taken from any decision or order of the inspector by any person aggrieved thereby or by any officer, board, or commission of the city. Any appeal from the inspector to the commission shall be taken within a reasonable time as prescribed by the rules of the housing commission, and shall be taken by filing with the inspector and with the secretary of the commission a notice of appeal which shall specify the grounds upon which the appeal is based. Upon the filing of notice of appeal, the inspector shall forthwith transmit to the commission all the papers constituting the record upon which the decision appealed from was made.

(Code 1961, § 10-20)

Charter reference—Appeals, § 5.73.

Cross reference—Housing commission, § 2-176.

State law reference—Similar provisions, G.S. § 160A-446.

Sec. 11-34. Civil liability.

Except as may otherwise be provided by statute or local law or ordinance, no officer, agent, or employee of the municipality charged with the enforcement of this chapter shall be personally liable for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his/her/their duties under this chapter. No person who institutes, or assists in the prosecution of, a criminal proceeding under this chapter shall be liable to damages hereunder unless he/she/they acted with malice and without reasonable grounds for believing that the person accused was guilty of an unlawful act or omission.

(Code 1961, § 10-9; Ord. No. 20-163, § 3, 12-15-20)

Sec. 11-35. Service of complaints and orders.

(a) Complaints or orders issued under this chapter or chapter 6, article 6 (Nonresidential Building Code), by a public officer pursuant to G.S. Ch. 160D (Local Planning and Development Regulation), Art. 11 (Building Code Enforcement) or Art. 12 (Minimum Housing Codes) shall be served upon persons either personally or by registered or certified mail, and, in conjunction therewith, may be served by regular mail. When the manner of service is by regular mail in conjunction with registered or certified mail, and the registered or certified mail is unclaimed or refused, but the regular mail is not returned by the post office within ten (10) days after mailing, service shall be deemed sufficient. The person mailing such complaint or order by regular mail shall certify that fact and the date thereof, and such certificate shall be deemed conclusive in the

absence of fraud. (This section was authorized by Chapter 578 of the 1993 Session of the General Assembly of North Carolina.)

(1) Each owner of rental property located within the city shall authorize a person residing in Guilford County to serve as his/her/their agent for the purpose of accepting service of process pursuant to this chapter. The owner shall provide, on a form supplied by the inspection division, local ordinance section, the authorized agent's name, address and phone number. The owner shall notify the local ordinance enforcement division of any changes in the information provided not less than ten (10) days after such changes have occurred. Service on the owner's designated agent shall be sufficient as service on the owner. Nothing in this section shall be interpreted to require an owner to designate an agent to accept service of process where the owner of the rental property resides within the city.

(b) *Notice of lis pendens.* Upon the issuance of a complaint and notice of hearing or an order related to the complaint or hearing, a notice of lis pendens may be filed pursuant to subsection 11-39(c) and such notice shall be served upon the owners and parties in interest in the building or dwelling at the time of filing.
(Code 1961, § 10-22; Ord. No. 94-73, § 1, 8-15-94; Ord. No. 95-83, § 1, 7-19-95; Ord. No. 97-188, § 1, 11-18-97; Ord. No. 07-28, § 1, 2-20-07; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

State law references—Similar provisions, G.S. § 160D-1206; G.S. § 1-120.2.

Sec. 11-36. Notice to transferee, mortgagee, etc., of notices, etc., effect of notices, etc., on same.

It shall be unlawful for the owner of any building upon whom a notice, complaint, or order has been served to sell, transfer, mortgage, lease, or otherwise dispose thereof until the provisions of the notice, complaint, or order have been complied with, or until such owner shall first furnish to the transferee, lessee, or mortgagee prior to such transfer, lease, or mortgage a true copy of any notice, complaint, or order issued by the inspector and at the same time give written notice to the inspector of the intent to transfer, lease, or mortgage and to whom the transfer, lease, or mortgage is proposed. A transferee, lessee, or mortgagee who had received actual or constructive notice of the existence of a notice, complaint, or order shall be bound by such notice, complaint, or order as of the date of such transfer, lease, or mortgage without service of further notice upon him/her/them.
(Code 1961, § 10-25(d); Ord. No. 20-163, § 3, 12-15-20)

Sec. 11-37. Determination that structures are unfit or substandard.

The inspector shall determine that residential buildings and accessory structures are substandard and unfit for human habitation if he/she/they finds, on the basis of the standards and requirements of fitness set forth in this chapter, that conditions exist in such buildings or accessory structures which are dangerous or injurious to the health, safety or morals of the occupants of such buildings, the occupants of neighboring buildings or other residents of the city; such conditions include (without limiting the generality of the foregoing): Defects therein increasing the hazards of fire, accident, or other calamities; lack of adequate ventilation, light, or sanitary facilities; dilapidation; disrepair; structural defects; and uncleanliness.
(Code 1961, § 10-8; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Standards required, G.S. § 160A-444.

Sec. 11-38. Inspections.

(a) It shall be the duty of the inspector diligently to examine buildings, dwellings, units, and accessory structures located in the city especially in those portions of the city where the conditions described in section 11-3 exist for the purpose of locating and taking action with respect to such buildings, dwellings, units, and structures

as appear to be unfit for human habitation. Reasonable cause to inspect means any of the following:

(1) There has been a complaint that substandard conditions exist within the building or dwelling unit;

(2) There has been a request that the building or dwelling unit be inspected;

(3) The inspection department has actual knowledge of an unsafe condition within the building and/or dwelling unit;

(4) Violations of the local ordinances or codes are visible from the outside of the property; or

(5) As defined in section 11-40.

(Code 1961, §§ 10-14(b), 10-17; Ord. No. 89-58, § 1, 4-27-89; Ord. No. 05-122, § 6, 6-7-05; Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 18-133, § 2, 10-16-18)

Sec. 11-39. Procedures.

(a) *Preliminary investigation; notice and hearing.* Whenever a petition is filed with the inspector by a public authority or by at least five (5) residents of the city charging that any building or accessory structure is unfit for human habitation or whenever it appears to the inspector, upon inspection, that any such building or accessory structure is unfit for human habitation, the inspector shall, if his/her/their preliminary investigation discloses a basis for such charges, issue and cause to be served upon the owner or any parties in interest in such building, a complaint stating the charges and containing a notice that a hearing will be held before the inspector (or his/her/their designated agent) at a place therein fixed within the city, not less than ten (10) days nor more than thirty (30) days after the serving of said complaint.

The owners and parties in interest shall have the right to file an answer to the complaint and to appear in person, or otherwise, and give testimony at the place and time fixed in the complaint; notice of such hearing shall also be given to at least one (1) of the persons signing any petition relating to such building; any person desiring to do so may attend such hearing and give evidence relevant to the matter being heard. The rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the inspector.

(b) *Findings of fact; issuance of inspector's orders to repair, demolish, etc.* If, after such notice and hearing, as provided in subsection (a), the inspector determines that the building under consideration is unfit for human habitation in accordance with the standards herein set forth, he/she/they shall state in writing his/her/their findings of fact in support of such determination, and shall issue and cause to be served upon the owner thereof an order. The order shall require the owner, within a reasonable time fixed by the inspector, but not less than thirty (30) days nor more than ninety (90) days, to make such repairs, alterations or improvements necessary to correct existing violations of the minimum standards and requirements set forth in this chapter; provided that the order shall further state that if the owner does not make the necessary repairs to correct existing violations as specified in the order, the owner shall, within the same reasonable time period, either:

(1) Repair, alter or improve the building to comply with the minimum standards of fitness established by this chapter, if the repair, alteration or improvement ordered would cost less than fifty (50) percent of the present value of the building. Such order may also direct and require the owner to temporarily vacate and close the building while such repairs, alterations, or improvements are being made if continued occupancy during repairs would present a significant threat of bodily harm.; or

(2) Demolish the building if the repair, alteration or improvement ordered would cost an amount equal to or in excess of fifty (50) percent of the present value of the building. However, whenever a dwelling is located in a designated historic district of the city and the historic district commission in a public hearing has determined that the dwelling is of a particular significance or value toward maintaining the character of the district,

and the dwelling has not been condemned as unsafe, the inspector or minimum housing standards commission may issue an order that the dwelling be vacated and closed consistent with G.S. § 160D-949.

(c) *Notice of lis pendens.* The chief of compliance may cause a notice of lis pendens and a copy of the complaint and notice issued under subsection (a) above, as well the findings of fact and order issued under subsection (b) above, to be filed in the office of the clerk of superior court in Guilford County. Such notice shall include the names of the parties to the action, the nature and purpose of the action, and a description of the property to be affected. After the notice of lis pendens is filed and the clerk of court has indexed the complaint and notice of hearing or order, successors and assigns of the owners and all parties with an interest in the affected property shall be bound by the complaint and notice of hearing or order. The filed notice of lis pendens shall remain in full force and effect until cancelled, which cancellation shall not occur until all violations of this chapter have been cured with respect to the affected property and the owner has reimbursed the city for any reimbursable costs or the owner has demolished the affected property or has reimbursed the city for all demolition costs incurred by it.

(d) *Notice to affordable housing agencies.* Whenever an order is made that a dwelling must be vacated and closed or removed and demolished pursuant to the provisions of this chapter, notice of that order shall be mailed at least forty-five (45) days before the inspector may cause such building to be demolished, in order to allow the opportunity for any organization to negotiate with the owner to make repairs, lease, or purchase the property for the purpose of providing affordable housing. The inspector or city clerk shall certify the mailing of the notices, and the certification shall be conclusive in the absence of fraud. Only an organization that has filed a written request for such notices may raise the issue of failure to mail such notices, and the sole remedy shall be an order requiring the inspector to wait forty-five (45) days before causing removal or demolition.

(e) *Extensions of time granted by inspector; additional extensions by chief of compliance.* If, within the time fixed by the inspector for repairing, altering or improving such building, the inspector finds there has been substantial compliance with the provisions of the order or that the owner has filed with the inspector a written request for additional time to make repairs and provides written documentation for the need of additional time, the inspector may extend the time for compliance with the provisions for the order for an additional period of time; however the total time given by an inspector shall not exceed ninety (90) days. The chief of compliance or their designee may grant additional extensions upon receipt of a written request stating the reasons for the extension, including any written supporting documentation, during the initial period or any extension period granted by the inspector. The grant of any extensions, either by an inspector or by the chief of compliance or their designee shall be in writing and must state the cause and conditions of the extension, facts demonstrating substantial progress being made toward compliance, and the amount of time allowed by the extension.

(1) *Exception:* The requirement to submit a written request for an extension of time to the chief of compliance will be waived if the property owner has submitted an application for assistance for any of the housing rehabilitation programs administered by the neighborhood development department's division of housing services or other approved housing rehabilitation programs and is waiting for either approval of the application or the required repairs to be completed.

(f) *Failure to comply with inspector's order.*

(1) *Failure to comply with orders to repair, alter, or improve, or vacate and close.* If the owner of a building fails to comply with order to repair, alter or improve, or to vacate and close the building, the inspector may cause such building to be repaired, altered or improved, or to be vacated and closed or to be demolished; provided, that after the building has become vacant, the inspector may cause

the water service to said building to be discontinued until such time as there is compliance with the order. The inspector shall cause to be posted on the main entrance of any building so closed a placard with the following words:

"This building is unfit for human habitation; the use of occupancy of this building for human habitation is prohibited and unlawful."

(2) *Failure to comply with orders to demolish.* If the owner fails to comply with an order to remove or demolish the dwelling, inspector may cause such dwelling to be removed or demolished; provided, however, that the duties of the inspector as set forth in this subsection shall not be exercised until the housing appeals board shall have by ordinance ordered the administrator to proceed to effectuate the purpose of this section with respect to the particular property which the administrator shall have found to be unfit for human habitation and which property shall be described in the ordinance. No such ordinance shall be adopted to require demolition of a dwelling until the owner has first been given a reasonable opportunity to bring it into conformity with the housing code. Such ordinance shall be recorded in the office of the register of deeds of Guilford County and shall be indexed in the name of the property owner in the grantor index. Unless an appeal is filed with the housing commission in accordance with applicable provisions of law, the inspector shall proceed to vacate and close any such building and cause the discontinuance of water service to the vacant building without further action by the minimum housing standards commission.

(3) If the owner has failed to comply with an inspector's order as provided in subsections (f)(1) and (f)(2) above, the department of code compliance may also, with the assistance of the city attorney's office, petition the Superior Court for an order directing the owner to comply with the inspector's orders, as authorized by G.S. § 160D-1208(e).

(g) *Owner's abandonment of intent to repair, alter or improve.* If a building has been vacated and closed for a period of one (1) year pursuant to an ordinance adopted by the minimum housing standards commission under section 11-39(e)(1) or after the inspector has issued an order or proceedings have commenced regarding a dwelling to be repaired or vacated and closed, then the minimum housing standards commission may find that the owner has abandoned the intent and purpose to repair, alter or improve the dwelling in order to render it fit for human habitation and that the continuation of the dwelling in its vacated and closed status would be inimical to the health, safety, morals and welfare of the municipality in that the dwelling would continue to deteriorate, would create a fire and safety hazard, would be a threat to children and vagrants, would attract persons intent on criminal activities, would cause or contribute to blight and the deterioration of property values in the area, and would render unavailable property and a dwelling which might otherwise have been made available to ease the persistent shortage of decent and affordable housing in this state. Upon such finding, the minimum housing standards commission may (after the expiration of such one (1) year period), enact an ordinance and serve such ordinance on the owner, requiring the owner either:

(1) Repair the dwelling within ninety (90) days, if the repair necessary to render the dwelling fit for human habitation would cost less than fifty (50) percent of the present value of the dwelling; or'

(2) Demolish and remove the dwelling within ninety (90) days if the repair necessary to render the dwelling fit for human habitation would cost an amount in excess of fifty (50) percent of the present value of the dwelling.

Such order shall be recorded in the office of the register of deeds of Guilford County and shall be indexed in the name of the property owner in the grantor index. If

the owner fails to comply with an ordinance adopted under this subsection, the inspector shall effectuate the purpose of the ordinance.

(h) *Liens.* The amount of the cost of such repairs, alterations, improvements, or vacating or closing, or removal and demolition by the inspector shall be a lien against the real property upon which such cost was incurred; said lien shall be filed, have the same priority and be collected or foreclosed upon in the same manner as is provided for special assessment provided in G.S. Ch. 160A, Art. 10. The amount of such costs shall also be a lien against any other real property of the owner located within the city limits or within one (1) mile thereof, except for the owner's primary residence (such lien being inferior to all prior liens and may be collected as a money judgment). The property owner shall have the option of paying for the cost of demolition either in cash or in five (5) equal annual installments with such installments bearing interest at the rate of six (6) percent per annum from the date of the filing of the lien. If any cost is not paid in cash, the first installment, with interest, shall become due and payable thirty (30) days after the date of the filing of the lien, and one (1) subsequent installment and interest shall be due and payable on the same day of the month in each successive year until the cost is paid in full. If any installment with interest is not paid when due, it shall be subject to the same penalties as are now prescribed by law for unpaid assessments, in addition to the interest herein provided for, and, in addition, all of the installments remaining unpaid shall at once become due and payable and the property may be sold in the same manner as now prescribed by law for the sale of land for unpaid taxes. The whole cost of the demolition may be paid at the time of paying any installment by payment of the principal and all interest accrued to that date. All payments received under this section shall be used by the city for implementation of this chapter, including future repairs, alterations, improvements and demolition of other properties.

If the building is removed or demolished by the inspector, he shall sell the materials of such building and any personal property, fixtures or appurtenances found in or attached to the dwelling and shall credit the proceeds of such sale against the cost of demolition, and any balance shall be deposited in the superior court of the county by the inspector, to be secured in such manner as may be directed by such court and disbursed by the court to the persons found to be entitled thereto by final order or decree by such court. If the city contracts for demolition, the contractor shall verify by affidavit that the proceeds from the sale of any salvaged materials, including personal property, fixtures or appurtenances, have been credited against the cost of demolition.

(i) *Cancellation or reduction of demolition and other remediation liens in limited circumstances.*

(1) The city manager may authorize the reduction or cancellation of the amount of the cost of repairs, alterations, or improvements; vacating and closing; securing, or removal or demolition, or other remediation by the administrator which is a lien against the real property upon which the cost was incurred as provided for in this article, or other appropriate provisions of law, in the following circumstances:

a. When the owner of the property completes construction of a dwelling on the property to be used for housing. The owner must also obtain and provide a certificate of compliance from the city inspections department.

b. When the owner of the property conveys the property subject to the lien to a person who completes construction of a dwelling on the property to be used for housing. Completion of construction shall be evidenced by a certificate of compliance issued by the city inspections department.

(2) In its discretion, the city council may reduce or cancel the cost described in this subsection if, when the cost is past due, the owner offers to convey the

property to the city and the city council agrees to accept the deed to the property in payment of the cost.

(3) The city manager shall establish a policy to implement this subsection. The policy shall contain criteria for which owners may apply for the reduction or cancellation of a lien under this subsection. The policy shall include other provisions designed to effectuate the purposes of this subsection. Such other provisions may include time limits for completion of construction of the dwelling, descriptions of covenants to be incorporated in the title to property conveyed to ensure it will be used for residential purposes, and requirements that a lien be in effect for a specified period of time before the manager will consider reducing or canceling a lien under this subsection. For each instance of exercising the authority to reduce or cancel a lien under this subsection, the city manager shall make a record of the reasons why such action is appropriate.

(4) This subsection also applies to liens arising from the enforcement of the state unsafe buildings law, G.S. § 160D-1119 et seq., the city's nonresidential building code, article 6 of chapter 6, and abatement of public health nuisances, G.S. § 160A-193.

(j) Failure on the part of any owner or party in interest to receive or have served upon him/her/them any complaint, notice, or order herein provided for shall not affect or invalidate the proceedings with respect to any other owner or party in interest or any other person.

(k) For the purposes of fixing the value of dwellings, when a building containing multi-family residential structures is inspected pursuant to this chapter, the inspector shall fix a reasonable value of the total building rather than individual dwelling units contained within any such building. The value of the total building shall be used in determining whether the building should be repaired, altered or improved, or demolished and removed. The inspector may fix a reasonable value of any building for the purpose of this section and such value shall be binding, unless the owner protests such value in writing to the inspector within ten (10) days after receipt of an order.

(l) *Alternative remedies.* Nothing in this chapter shall be construed to impair or limit the power of the city to define and declare nuisances and to cause their removal or abatement by summary proceedings, or otherwise, and the enforcement of any remedy provided herein shall not prevent the enforcement of any other remedies provided herein or in other ordinances or laws.

(m) *Conflict with other provisions.* In the event any provision, standard, or requirement of this section is found to be in conflict with any other applicable law, code, or ordinance pertaining to housing, the provision which establishes the higher standard or more stringent requirement for the promotion and protection of the health and safety of the residents of the city shall prevail.

(n) *Reasonable accommodation.* Pursuant to applicable fair housing law, persons with disabilities may seek reasonable accommodation in relation to enforcement actions under this chapter. The city shall consider such accommodation requests and provide for reasonable accommodations that do not create undue hardship, compromise immediate threats to health and safety, or otherwise fundamentally alter the nature of the city's minimum housing code enforcement.

(Code 1961, § 10-18(a)—(g); Ord. No. 89-160, §§ 1—3, 11-30-89; Ord. No. 91-137, §§ 1, 2, 11-14-91; Ord. No. 95-83, § 2, 7-19-95; Ord. No. 96-92, § 1, 7-23-96; Ord. No. 97-39, § 1, 3-18-97; Ord. No. 03-238, §§ 1—5, 10-21-03; Ord. No. 04-167, § 1, 9-7-04; Ord. No. 05-122, § 7, 6-7-05; Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

Cross reference—Unsafe building, § 17-26 et seq.

State law reference—Similar provisions, G.S. § 160D-1203.

Sec. 11-39.1. Requirements for closing and securing substandard buildings.

(a) Every building required to be closed by order of the inspector or minimum housing standards commission pursuant to section 11-39

or 17-29 of this Code shall be closed in accordance with the standards and requirements for closing buildings as stated in the International Property Maintenance Code, Appendix A. Any deviation from the standards stated in Appendix A must be approved by the chief of code compliance or the designee.

(b) Any building closed pursuant to an order of the inspector or minimum housing standards commission must be maintained closed and secure by the owner. If the order of the inspector or minimum housing standards commission to close and secure a building is complied with by the owner thereof and thereafter the building is unlawfully opened, the inspector shall serve the owner with an order to reclose and secure the building within thirty (30) days after service of the order. Any owner who fails to comply with an order to reclose and secure a building within the time required under the order shall be subject to civil penalties prescribed by this chapter.
(Ord. No. 91-137, § 3, 11-14-91; Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

Sec. 11-40. Periodic inspections for hazardous or unlawful conditions; rental property registration for chronic violators.

(a) The inspection department may make periodic inspections, subject to the council's directions, for unsafe, unsanitary, or otherwise hazardous and unlawful conditions in residential buildings or structures within its territorial jurisdiction. However, when the inspection department determines that a safety hazard exists in one (1) of the dwelling units within a multi-family building, which in the opinion of the inspector poses an immediate threat to the occupant, the inspection department may inspect, in the absence of a specific complaint and actual knowledge of the unsafe condition, additional dwelling units in the multi-family building to determine if the same safety hazard exists. The inspection department may make periodic inspections only when there is reasonable cause to believe that unsafe, unsanitary, or otherwise hazardous or unlawful conditions may exist in a residential building or structure. For purposes of this section, the term "reasonable cause" means any of the following:

(1) The property has a history of more than two (2) verified violations of the housing ordinances or codes within a rolling twelve (12) month period;

(2) There has been a complaint that substandard conditions exist within the building or there has been a request that the building be inspected;

(3) The inspection department has actual knowledge of an unsafe condition within the building;

(4) Violations of the local ordinances or codes are visible from the outside of the property.

In conducting inspections authorized under this section, the inspection department shall not discriminate between single-family and multi-family buildings or between owner-occupied and tenant-occupied buildings. In exercising this power, members of the department shall have a right to enter on any premises within the jurisdiction of the department at all reasonable hours for the purposes of inspections or other enforcement action, upon presentation of proper credentials. Nothing in this section shall be construed to prohibit periodic inspections in accordance with state fire prevention code or as otherwise required by state law.

(b) The inspection department may conduct periodic inspections as part of a targeted effort to respond to blighted or potentially blighted conditions within a geographic area that has been designated by the city council. The total aggregate of targeted areas within the city, at any one (1) time, shall not be greater than one (1) square mile or five (5) percent of the land area within the city, whichever is greater. A targeted area designated by the city council shall reflect the city's neighborhood revitalization strategy and consist of property that meets the definition of a "blighted area" or "blighted parcel" as defined in G.S. § 160A-503(2) and G.S. § 160A-503(2a) respectively, except that for purposes of this subsection, the planning and zoning commission is not required to make a determination as to the

property. The city shall not discriminate in its selection of areas or housing types to be targeted and shall:

(1) Provide notice to all owners and residents of properties in the affected area about the periodic inspections plan and information regarding a legislative hearing regarding the plan;

(2) Hold a legislative hearing regarding the plan; and

(3) Establish a plan to address the ability of low-income residential property owners to comply with minimum housing code standards.

(c) The city may not (i) require any owner or manager of rental property to obtain any permit or permission from the city to lease or rent residential real property or to register rental property with the city, except for those individual rental units that have either more than four (4) verified violations in a rolling twelve (12) month period or two (2) or more verified violations in a rolling thirty (30) day period; (ii) Require that an owner or manager of residential rental property enroll or participate in any governmental program as a condition of obtaining a certificate of occupancy; (iii) Levy a special fee or tax on residential rental property that is not also levied against other commercial and residential properties, unless expressly authorized by general law or applicable only to an individual rental unit or property described in subdivision (i) of this subsection and the fee does not exceed five hundred dollars ($500.00) in any twelve (12) month period in which the unit or property is found to have verified violations; (iv) Provide that any violation of a rental registration ordinance is punishable as a criminal offense; or (v) require any owner or manager of rental property to submit to an inspection before receiving any utility service provided by the city. For purposes of this section, the term "verified violation" means all of the following:

(1) The aggregate of all violations of housing ordinances or codes found in an individual rental unit of residential real property during a seventy-two (72) hour period.

(2) Any violations that have not been corrected by the owner or manager within the period of time provided for compliance by the inspector and chief of compliance pursuant to section 11-39.

(d) If the city takes action against an individual rental unit under this section, the owner of the individual rental unit may appeal the decision to the minimum housing standards commission. The commission shall fix a reasonable time for hearing appeals, shall give due notice to the owner of the individual rental unit, and shall render a decision within a reasonable time. The commission may reverse or affirm the action, wholly or partly, or may modify the action appealed from, and may make any decision and order that in the opinion of the commission ought to be made in the matter.

(e) Consistent with the authority granted under G.S. § 160D-1207(c), a property owner shall register any dwelling, or dwelling unit (in the case of multi-family properties), with the code compliance department if that dwelling or dwelling unit has more than four (4) verified violations of this code in a rolling twelve (12) month period, or two (2) or more such verified violations in a rolling thirty (30) day period.

(1) The owner of any residential rental dwelling or dwelling unit required to be registered under this subsection shall complete an application, in a form approved by the chief of code compliance, to register that dwelling or dwelling unit. Registration information shall be updated annually or within thirty (30) days after any changes in information included on the application. If the residential rental dwelling or dwelling unit does not have verified violations for any twelve (12) month period, then it shall be removed from the registration program.

(2) For purposes of this section, "verified violation" shall have the same meaning as reflected in subsection (c) above: the aggregate of all violations of housing ordinances or codes found in an individual rental unit of residential real property during a seventy-two (72) hour period,

and any violations that have not been corrected by the owner or manager within the period of time provided for compliance by the inspector and chief of compliance pursuant to section 11-39.

(3) Whenever a property is required to be registered under this section, the department of code compliance shall serve notice in the manner provided for in section 11-35.

(4) Upon receipt of the notice provided for in subsection (e)(3) above, the owner shall file an application to register the property with the department of code compliance within thirty (30) days from the date the notice was mailed. Applications shall be filed on a form approved by the chief of code compliance.

(5) Failure to timely register a residential rental property subject to this section shall lead to civil penalties pursuant to section 11-42.

(Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 18-133, § 3, 10-16-18; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

State law reference—Similar provisions, G.S. § 160D-1207.

Sec. 11-41. Emergency cases.

(a) In emergency cases where it reasonably appears there is immediate danger to the life or safety of any person or to the safety of other property, unless a dwelling unit unfit for human habitation or a dangerous accessory structure is immediately repaired or demolished, the inspector shall order the structure vacated and cause the immediate repair or demolition of the structure and the cost of such repair or demolition shall be recovered and collected as is provided in subsection 11-39(h).

(b) In emergency cases, the inspector shall have the power immediately to cause to be posted on the main entrance of any building or dwelling unit a placard with words which, in effect, provide notice that the building or dwelling unit has been declared as unsafe and that occupancy for human habitation is prohibited, and further setting forth the reasons therefore.

(c) Upon a showing that a condition in a dwelling poses an immediate threat of danger or harm to the safety of the occupants in such dwelling or dwelling unit, and the condition is not a responsibility of the occupant pursuant to section 11-9, the minimum standards housing commission may adopt an ordinance ordering chief of compliance or his/her/their designee to repair such condition. The owner of and parties in interest in such dwelling or dwelling unit shall be given at least seventy-two (72) hours' notice prior to the making of any repairs or improvements. The amount of the cost of such repairs, alterations or improvements shall be a lien against the real property upon which such cost was incurred, which lien shall be filed, have the same priority and shall be collected as provided by G.S. § 160A-216 et seq.

(d) A place of habitation is immediately dangerous to health or safety if any of the following conditions, as enumerated in G.S. § 42-42(a)(8), are present:

(1) Unsafe wiring;

(2) Unsafe flooring or steps;

(3) Unsafe ceilings or roofs;

(4) Unsafe chimneys or flues;

(5) Lack of potable water;

(6) Lack of operable locks on all doors leading to the outside;

(7) Broken windows or lack of operable locks on all windows on the ground level;

(8) Lack of operable heating facilities capable of heating living areas to sixty-five (65) degrees Fahrenheit when it is twenty (20) degrees Fahrenheit outside from November 1 through March 31;

(9) Lack of an operable toilet;

(10) Lack of an operable bathtub or shower;

(11) Rat infestation as a result of defects in the structure that make the premises not impervious to rodents; or

(12) Excessive standing water, sewage, or flooding problems caused by plumbing leaks or inadequate drainage that contribute to mosquito infestation or mold.

(Code 1961, § 10-26(a), (b); Ord. No. 15-0110, § 1, 9-1-15; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

Sec. 11-42. Fines, fees and penalties for violation of the housing code.

(a) Violations of this chapter shall not be punishable as a misdemeanor or infraction and G.S. § 14-4 shall not apply to violations of this chapter. This section shall apply to all civil penalties assessed on or after January 1, 2014.

(b) Any person who violates any provision of this chapter shall also be subject to a civil penalty of five hundred dollars ($500.00) for the first violation. For each day the violation is not corrected, a penalty of one hundred dollars ($100.00) per day may be imposed.

(c) If, within a rolling twelve (12) month period, there is an additional violation of this chapter at the same dwelling unit, the owner shall be subject to an additional civil penalty of one thousand dollars ($1,000) for that violation. For each day the violation is not corrected, a penalty of two-hundred and fifty dollars ($250.00) per day may be imposed.

(d) Civil penalties assessed under this section are considered restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. As such, the amount declared herein is presumed to provide sufficient restoration to the city for its costs.

The assessment of civil penalties herein is not intended to be an exercise of powers delegated to other agencies or entities created by the general assembly to regulate the proscribed conduct. The inspector shall not assess a civil penalty until the person alleged to be in violation has been notified of the violation by registered or certified mail, return receipt requested, by personal service, or other means reasonably calculated to give actual notice. The collection of a penalty pursuant hereto shall not foreclose further proceedings for penalties coming due after the date of the filing of a prior proceeding.

(e) After a unit has been brought into compliance through the repair of all conditions found to be in violation of this chapter, the total amount of civil penalties issued may be waived or reduced by the chief of compliance or their designee in accordance with a civil penalty waiver or reduction policy to be adopted by the department of code compliance. That policy shall include criteria that considers substantial progress toward timely compliance and the risk of displacement presented to any occupants of the dwelling unit, among other factors. Modification of penalties by the chief of compliance or their designee may be appealed to the minimum housing standards commission in accordance with section 11-49.

(f) Reinspection fees required by this chapter are charged in accordance with the city's schedule of fees and services established by the Greensboro City Council. The City of Greensboro shall not charge a fee for reinspection authorized by this section for any initial inspection of a dwelling unit or for any reinspection during the applicable cure period, including any extension, in the enforcement of this chapter. If the necessary repairs are not made within the applicable cure period, including any extension, the reinspection fees authorized by this section shall be charged.

(g) All civil penalties and inspection fees collected under this chapter shall be used for implementation of this chapter, including future repairs, alterations, improvements and demolition of other properties.

(h) Owners shall not be charged for any violations attributed to tenants cited in section 11-9 of this Code.

(Ord. No. 88-138, § 1, 9-29-88; Ord. No. 95-141, § 1, 11-20-95; Ord. No. 96-92, § 2, 7-23-96; Ord. No. 00-215, § 4, 12-5-00; Ord. No. 04-167, § 7, 9-7-04; Ord. No. 04-244, §§ 1, 2, 12-7-04; Ord. No. 09-180, § 3, 11-10-09; Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. of 04-21-2026(1), § 1(Exh. A), 4-21-26)

Editor's note—Ord. No. 13-104, § 1, adopted July 16, 2013, changed the title of § 11-42 from "Penalties for violations of housing code" to "Fines, fees and penalties for violations of housing code."

DIVISION 2. NON-RESIDENTIAL BUILDINGS AND STRUCTURES

Sec. 11-43. Enforcement and abatement procedure.

(a) As authorized by G.S. ch. 160A, art. 19, pt. 5, the provisions of this section shall apply to all non-residential buildings and structures within the city limits as now or hereinafter fixed.

(b) Unless otherwise provided herein, all procedural requirements and violation provisions of article II division 1 of this chapter shall also apply to non-residential buildings and structures. Notice provided under one (1) division shall constitute notice required under any division of this chapter.

(c) The purpose of this section is to arrest, remedy, and prevent the decay and deterioration of non-residential buildings and structures for the protection of life, health, welfare, safety and property of the general public and the owners and occupants of non-residential buildings and structures.

(d) It shall be the duty of the inspector diligently to examine non-residential buildings and structures located in the city where the conditions described in subsection (e) exist for the purpose of locating and taking action with respect to such non-residential buildings and structures as appear to be unsafe.

(e) An inspector may declare a non-residential building or structure to be unsafe if it appears to the inspector that the building or structure is especially dangerous to life because of its liability to fire or because of bad conditions of walls, overloaded floors, defective construction, decay, unsafe wiring or heating system, inadequate means of egress or other causes.

(f) After an inspector declares a non-residential building or structure unsafe in accordance with subsection (e), the inspector must affix a notice of the unsafe character of the non-residential building or structure in a conspicuous place upon the exterior of the building or structure. If any person shall remove any notice that has been affixed to any building or structure by the inspector, that person shall be guilty of a class 1 misdemeanor. If the owner of the non-residential building or structure that has been declared to be unsafe pursuant to this chapter shall fail to take prompt corrective action, the inspector shall give the owner written notice, by certified or registered mail to his/her/their last known address or by personal service that:

(1) The non-residential building or structure is in a condition that appears to meet one of the following conditions:

   a. Constitutes a fire or safety hazard;

   b. Is dangerous to life, health, or other property;

   c. Is likely to cause or contribute to blight, disease, vagrancy, or danger to children;

   d. Has a tendency to attract persons intent on criminal activities or other activities which would constitute a public nuisance.

(2) That a hearing will be held before the inspector at a designated place and time, not later than ten (10) days after the date of the notice, at which time the owner shall be entitled to be heard in person or through counsel and to present arguments and evidence pertaining to the matter; and

(3) That following the hearing, the inspector may issue such order to repair, close, vacate, or demolish the building or structure as appears appropriate within a period not less than sixty (60) days from the date of the order. However where the inspector finds that there is imminent danger to life or other property, he/she/they may order that corrective action be taken in such lesser period of time as may be feasible.

(g) If the name or whereabouts of the owner cannot after due diligence be discovered, the notice shall be considered properly and adequately served if a copy thereof is posted on the outside of the building or structure in question at least ten (10) days prior to the hearing and a notice of

the hearing is published in a newspaper having general circulation in the city at least once not later than one (1) week prior to the hearing.

(h) Any owner who has received an order under this chapter may appeal from the order to the minimum housing standards commission by giving written notice to the inspector and to the commission within ten (10) days following the issuance of the order. In the absence of an appeal the order of the inspector shall be final.

(i) If an owner shall fail to comply with an order issued pursuant to subsection 11-43(f) from which no appeal has been taken, or fails to comply with an order from the housing commission following an appeal, the city may, in addition to any other remedy provided by law or equity, take action causing the non-residential building or structure to be removed or demolished. The amounts incurred in connection with the removal or demolition shall be a lien against the real property upon which the cost was incurred. The lien shall be filed, have the same priority, and be collected in the same manner as liens for special assessments. All payments received under this section shall be used for the implementation of this chapter, including future repairs, alterations, improvements and demolition of other properties.

If the building or structure is removed or demolished by the city, the city shall sell usable materials of the building and any personal property, fixtures, or appurtenances found in or attached to the building and credit the proceeds of such sales against the costs of removal or demolition. Any balance remaining, if any, shall be deposited with the Guilford County Clerk of Superior Court and shall be disbursed by the court to the person found to be entitled thereto by final order or decree of the court. If the city contracts for demolition, the contractor shall verify by affidavit that the proceeds from the sale of any salvaged materials, including personal property, fixtures or appurtenances, have been credited against the cost of demolition.

(j) Nothing in this chapter shall be construed to impair or limit the power of the city to define and declare nuisances and to cause their removal or abatement by summary proceedings, or otherwise.
(Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 11-44. Reserved.

Sec. 11-45. Reserved.

Editor's note—Section 1, exhibit A of an ordinance adopted March 17, 2026, repealed § 11-45, which pertained to good repair and derived from Ord. No. 19-093, § 1, adopted July 16, 2019. Provisions pertaining to good repair can now be found at ch. 6, art. VI.

DIVISION 3. MINIMUM HOUSING STANDARDS COMMISSION*

Sec. 11-46. Created.

There is hereby created a commission to be known as the Greensboro Minimum Housing Standards Commission.
(Code 1961, § 2-104; Ord. No. 93-141, § 1, 11-15-93)

Sec. 11-47. Membership.

The minimum housing standards commission shall be composed of seven (7) members. Members shall be appointed by the council for terms to expire on August 15.
(Code 1961, § 2-105; Ord. No. 93-141, § 2, 11-15-93)

Sec. 11-48. Powers and duties.

(a) The duties of the minimum housing standards commission shall be as follows:

(1) Study the need for reconditioning or condemnation, and other housing condi-

*__Editor's note—__Ord. No. 93-141, adopted Nov. 15, 1993, changed the name of the "housing commission" to the "minimum housing standards commission," and § 3 of such ordinance provided that said change be made throughout the Code. It should be noted that such change will be made as pages are affected through the supplement service.

Subsequently, Ord. No. 15-0110, § 1, adopted Sept. 1, 2015, renumbered Div. 2 as Div. 3.

Charter reference—Housing commission, § 5.74.

tions within the city, and make recommendations to the council concerning such matters.

(2) Perform such other duties as may be assigned it from time to time by the council.

(3) Hear and determine appeals from decisions of the inspector upon any provision of chapter 11 or articles I and II of chapter 17.

(Code 1961, § 2-104; Ord. No. 93-141, § 2, 11-15-93; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 25-199, § 1, 11-18-25)

Sec. 11-49. Appeals.

(a) An appeal to the minimum housing standards commission may be taken from any decision or order issued pursuant to this chapter by any person aggrieved thereby or by any officer, board, or commission of the city. Any appeal to the commission shall be filed with the secretary of the commission within ten (10) days of the decision or order by filing a written notice of appeal which shall specify the grounds upon which the appeal is based. Upon the filing of notice of appeal, the inspector shall forthwith transmit to the commission all the papers constituting the record upon which the decision appealed from was made.

(b) When an appeal is from a decision of the inspector refusing to allow the person aggrieved thereby to do any act, the decision of the inspector shall remain in force until modified or reversed by the commission.

(c) When an appeal is from a decision of the inspector requiring the person aggrieved to do any act, the appeal shall have the effect of suspending the requirement of the inspector until the hearing thereon by the commission; unless the inspector certifies to the commission, after the notice of appeal is filed with him/her/them, that by reason of the facts stated in the certificate (a copy of which shall be furnished the applicant), a suspension of his/her/their requirement would, in his/her/their opinion, cause imminent peril to life or property, in which case the requirement shall not be suspended except by a restraining order, which may be granted, for due cause shown and upon not less than one (1) day's written notice to the inspector, by the commission or by any judge of the superior court authorized by law to grant restraining orders.

(d) The commission shall fix a reasonable time for the hearing of all appeals and shall render its decisions within a reasonable time. The commission shall have power also in passing upon appeals, in any case where there are practical difficulties or unnecessary hardships in the way of carrying out the strict letter of the housing code, to adapt the application of the code to the necessities of the case to the end that the spirit of the code shall be observed, public safety and welfare secured, and substantial justice done. For all continuances, the commission shall state the reasons and conditions for the continuance.

(e) Upon the hearing of any appeal any party may appear in person or by agent or attorney.
(Code 1961, § 2-113; Ord. No. 93-141, § 2, 11-15-93; Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 11-50. Vote required to reverse inspector.

The concurring vote of four (4) members of the minimum housing standards commission shall be necessary to reverse or modify any decision of the inspector.
(Ord. No. 89-21, § 1, 2-16-89; Ord. No. 93-141, § 2, 11-15-93; Ord. No. 00-215, § 3, 12-5-00; Ord. No. 15-0110, § 1, 9-1-15)

Sec. 11-51. Additional time may be granted to structures of historical significance.

(a) If a structure located within an historic district or other area of the city has historical significance as defined below, the minimum housing standards commission may authorize the time table below to allow the owner or other interested party the opportunity of repairing or securing a buyer for the property. Before the commission grants the additional time, the commission shall find the following:

(1) That the structure is included on the city's inventory of historic architecture, or is determined to be more than fifty (50) years old and of equivalent architectural or historical significance as determined by the Greensboro Historic Preservation Commission; and

(2) That the owner or other individual or agency has indicated interest in actively pursuing the preservation of the structure; and

(3) That in the case of a vacant structure, it has been properly boarded up and made

secure and does not pose an unsafe or hazardous condition, as determined by the inspector.

(b) The commission may grant additional time for the purpose of bringing the property into full compliance as follows:

(1) Up to eighteen (18) months from the date of determination by the commission may be granted to complete the renovation or restoration of the property.

(2) If, at the end of the time granted by the commission, active efforts are being made to complete the work and at least fifty (50) percent of the work is completed, the commission can grant up to twelve (12) months additional time.

(3) Progress reports will be made to the commission within the time period prescribed by the commission. Failure of the property owner to make these reports or to complete the work according to the schedule set by the commission will constitute a violation of this special provision, and all other provisions of the housing code shall apply.

(c) The commission may require periodic progress reports from the owner or contractor.
(Ord. No. 13-104, § 1, 7-16-13; Ord. No. 15-0110, § 1, 9-1-15)

Secs. 11-52—11-55. Reserved.

ARTICLE III. MINIMUM STANDARDS*

Sec. 11-56. International Property Maintenance Code.

The following chapters and index of the International Property Maintenance Code, as copyrighted by the International Code Council, Inc., shall be applicable to those buildings and structures, residential and non-residential, as if fully set forth in this article, with any additions, insertions, deletions and changes, if any, prescribed in this article.

Chapter 1 Administration

Chapter 2 Definitions, except that terms defined in section 11-2 shall take precedence over any conflicting definitions in Chapter 2 of the IPMC

Chapter 3 General Requirements

Chapter 4 Light, Ventilation and Occupancy Limitations

Chapter 5 Plumbing Facilities and Fixture Requirements

Chapter 6 Mechanical and Electrical Requirements

Chapter 7 Fire Safety Requirements

Chapter 8 Referenced Standards

Appendix A

Index

Amendments to the International Property Maintenance Code (IPMC) which are adopted and published by the International Code Council, Inc., from time to time, shall be effective as to this chapter 11 on the effective date prescribed by the International Code Council, Inc. In the event of conflict between the International Property Maintenance Code, including any codes referenced therein in Chapter 8, and any codes adopted by the North Carolina General Assembly and effective and applicable to property located in the City of Greensboro, those North Carolina codes shall control.
(Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 19-093, § 1, 7-16-19)

Sec. 11-57. Same—Amendments.

(a) The following sections of the IPMC are hereby revised:

(1) Section 102.2, Maintenance, Amend the section by adding the following, "Equipment, systems, devices and safeguards installed in a building or structure shall be maintained in accordance with the original installation standards for that

*__Editor's note—__Ord. No. 15-0110, § 1, adopted Sept. 1, 2015, amended Art. III in its entirety to read as set out herein. Former Art. III pertained to similar subject matter and derived from Ord. No. 03-112, §§ 1, 2, adopted May 20, 2003; Ord. No. 04-167, § 8, adopted Sept. 7, 2004; and Ord. No. 13-104, § 1, adopted July 16, 2013.

equipment, system, device or safeguard. Repair of one (1) system in a building or structure shall not require all systems to be upgraded to the current building code, unless there are violations related to those other systems and the North Carolina Existing Building Code would require compliance with the North Carolina Building Code currently in effect."

(2) Section 106.3, Prosecution of violations, Amend the section by deleting the entire section;

(3) Section 302.4, Weeds, Amend the section by deleting the entire section;

(4) Section 302.8, Motor vehicles, Amend the section by deleting the entire section;

(5) Section 302.9, Defacement of property, Amend the section by deleting the entire section;

(6) Section 303, Swimming Pools, Spas and Hot Tubs, Amend the section by deleting the entire section;

(7) Section 304.1.1.6, Unsafe conditions, Amend the section by deleting the phrase, "not plumb and" from line 2;

(8) Section 304.1.1.7, Unsafe conditions, Amend the section by deleting the phrase, "are not plumb and" from line 2;

(9) Section 304.2, Protective treatment, Amend the section by adding the phrase, "requiring paint for protection from the elements" prior to the term "repainted" in line 8 and by deleting the sentence, "Oxidation stains shall be removed from exterior surfaces." in lines 14-15;

(10) Section 304.5, Foundation walls, Amend the section by deleting the phrase, "plumb and" from line 2 and by adding the following sentence, "Walls, vertical studs, partitions, supporting members, sills, joists, rafters, or other basic structural members shall not list, lean, or buckle to such extent as to render the building unsafe."

(11) Section 304.13.1, Glazing, Amend the section by deleting the words "Glazing" and replacing with the words "Glass" in line 1;

(12) Section 304.13.2, Openable windows, Amend the section by adding the sentence, "In non-residential buildings and structures, every window required as a means of egress shall be easily openable and capable of being held in position by window hardware."

(13) Section 304.14, Insect screens, Amend the section by deleting the phrase, "During the period from _____ to _____" and begin the section with the word "Every" and by adding the following sentence, "Exception: Screens shall not be required in non-residential buildings or structures.";

(14) Section 307, Handrails and guardrails, Amend the section by deleting the entire section;

(15) Section 506.3, Grease interceptors, Amend the section by deleting the entire section;

(16) Section 602.3, Heat supply, Amend the section by deleting the phrase, "during the period from _____ to _____" from line 5;

(17) Section 602.4, Occupiable work spaces, Amend the section by deleting the phrase, "during the period from _____ to _____" from lines 2 and 3;

(18) Section 701.2, Responsibility, Amend this section by deleting the phrase, "with these requirements" from line 3 and replacing with the phrase, "with the North Carolina Fire Code" and by deleting the phrase, "with the requirements of this chapter" from lines 5-6 and replacing with the phrase, "with the North Carolina Fire Code";

(19) Chapter 7, Fire Safety Requirements, Amend the chapter by deleting Sections 702 through 705.

(b) The following amendments are made to Chapter 8 of the IPMC:

The following paragraph is added to the chapter:

(1) A structure currently in compliance with all existing North Carolina codes shall not be subject to the provisions of this City of Greensboro Code of Ordinances section 11-45 until such time as (i) it is subject to a complaint and found to be in violation of the IPMC or other existing North Carolina codes, (ii) the use of structure is changed, or (iii) the structure is remodeled, up-fitted or renovated in a way that requires a building permit to be issued prior to work being completed.

(2) A structure will be evaluated in accordance with the North Carolina Building Code in effect at the time the structure was constructed or at the time of the most recent remodel, upfit, or renovation that required a building permit.

(3) In cases where the owner has transferred an obligation of the owner, as referenced in the IPMC, to the tenant by lease, compliance shall be the responsibility of the tenant. A notice of violation or order issued by the public officer shall be issued to the owner until such time as the owner provides a copy of the lease to the city, at which time the notice of violation or order shall be issued to the tenant. The owner shall be copied on all notices and orders which are issued to the tenant.

(Ord. No. 15-0110, § 1, 9-1-15; Ord. No. 19-093, § 1, 7-16-19)

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Chapter 12

HUMAN RIGHTS*

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ARTICLE I. IN GENERAL

Sec. 12-1. Director of human rights.

The director of human rights of the city shall be appointed by the city manager and shall be under the supervision and control of the city manager. It shall be the duty of the director of human rights to:

(1) Supervise and coordinate the functions and activities of the human rights department of the city.

(2) Serve as the executive director to the human rights commission and the commission on the status of women.

(3) Perform such other duties as may be assigned to him/her/them by the city manager.

(Code 1961, § 5A-22; Ord. No. 20-131, 10-6-20; Ord. No. 20-163, § 3, 12-15-20)

Sec. 12-2. Functions and duties of the human rights department.

In the implementation of the duties of the director of human rights, the human rights department shall be responsible for the following additional functions:

(1) To promote and secure mutual understanding and respect by reviewing complaints of unfair treatment and seek voluntary resolution thereof among all citizens in the city.

(2) To receive and investigate complaints of discrimination based on the provisions of this chapter, particularly with respect to the denial of equal access to and discrimination in public accommodations and employment when such denial and discrimination against either individual or group is based on race, religion, color, national origin or sex, and to act as the administrative enforcement body to receive and process fair housing complaints filed under division 5 of this chapter. Throughout this chapter, the term 'sex' shall explicitly include sexual orientation, gender expression, or gender identity. Throughout this chapter, the terms 'race' and 'national origin' shall explicitly include discrimination on the basis of hair texture and hairstyles that are commonly associated with race or national origin.

(3) To resolve any complaint over which it has jurisdiction under the procedures of this chapter, impose civil penalties, and when necessary, seek equitable enforcement remedies pursuant to N.C.G.S. 160A-175 for violations of article IV of this chapter.

(4) To submit periodic reports at regular intervals to the city manager setting forth the activities of the department, the results of any studies and any recommendations which will result in the improvement of human rights.

(5) To conduct research projects, make studies and reports on the status of women and human rights and related social concerns in the city.

(6) To cooperate with federal, state, county and city agencies in an effort to develop harmonious intergroup and interracial relations.

(7) To endeavor to enlist the support of educational and civil leaders for the improvement of intergroup and interracial relations in the city.

(Code 1961, § 5A-23; Ord. No. 91-133, § 1, 10-31-91; Ord. No. 92-116, § 1, 9-3-92; Ord. No. 20-131, 10-6-20; Ord. No. 21-130, 8-31-21)

Secs. 12-3—12-20. Reserved.

ARTICLE II. COMMISSION ON HUMAN RIGHTS*

Sec. 12-21. Created.

There is hereby created a commission to be known as the commission on human rights.
(Ord. No. 20-131, 10-6-20)

*__Editor's note—__Ord. No. 20-131, adopted October 6, 2020, amend the title of Ch. 12, Article II to read as herein set out. Formerly said article was entitled Human Relations.

Charter reference—General authority to create boards, commissions, etc., § 4.01(b)(2).

Sec. 12-22. Membership.

The commission on human rights shall be composed of nine (9) members who shall be appointed by the city council for terms to expire on August 15. All members of the commission shall be bona fide adults maintaining a permanent residence inside the corporate limits of the city. The terms of office of the members of the commission shall be three (3) years.
(Code 1961, §§ 2-253, 2-254; Ord. No. 89-119, § 1, 8-31-89; Ord. No. 18-119, § 1, 9-25-18; Ord. No. 20-131, 10-6-20)

Sec. 12-23. Duties.

The duties of the commission on human rights shall be as follows:

(1) To study and make recommendations concerning problems in any or all fields of human relationship and encourage fair treatment and mutual understanding among all racial and ethnic groups in the city.

(2) To anticipate and discover those practices and customs most likely to create animosity and unrest among racial and ethnic groups and by consultation seek a solution as these problems arise or are anticipated.

(3) To make recommendations to the city council designed to promote good will and harmony among racial and ethnic groups in the city.

(4) To appoint, at its discretion, subcommittees to concern themselves with specific human rights problems. These subcommittees shall be composed of bona fide adult residents of the city but need not be members of the commission; except that the chairperson of each subcommittee must be a bona fide member of the commission. Provided, however, a multicultural committee created by the commission may include adults who are not residents of the city nor is the chairperson of this committee required to be a member of the commission.

(5) To serve as a citizens advisory committee for the purpose of coordinating, studying and making reports concerning citizen involvement in various projects.

(6) To seek and enlist the cooperation of various groups in the city in order to fulfill the purposes of this article.

(7) To receive general statistical reports and studies from the human rights director concerning complaints involving discrimination based on race, color, religion, sex, handicap, familial status, or national origin, and to appoint members to a complaint review committee to assist the human rights director in the complaint review process of complaints involving discrimination under article IV, division 2 of this chapter.

(8) To cooperate with federal, state, county and city agencies in developing presentations in public and private schools, public libraries, museums and other suitable places, on techniques for achieving harmonious intergroup relations within the city.

(9) To enlist the cooperation of the various racial, religious and ethnic groups, community organizations and other groups in the city, in programs and campaigns devoted to eliminating group prejudice and discrimination.

(10) To hold such meetings as the commission may deem necessary or proper to assist in carrying out its functions.

(11) To perform such other duties as may be assigned it from time to time by the city council.

(Code 1961, § 2-252; Ord. No. 90-114, § 1, 8-30-90; Ord. No. 00-216, § 1, 12-5-00; Ord. No. 13-114, § 1, 8-20-13; Ord. No. 19-13, § 1, 2-19-19; Ord. No. 20-131, 10-6-20; Ord. No. 20-163, § 3, 12-15-20)

Cross reference—Boards and commissions generally, § 2-136 et seq.

Secs. 12-24—12-40. Reserved.

ARTICLE III. GREENSBORO COMMISSION ON THE STATUS OF WOMEN*

Sec. 12-41. Created.

There is hereby created a commission to be known as the Greensboro Commission on the Status of Women.
(Code 1961, § 2-350)

Charter reference—General authority to create boards, commissions, etc., § 4.01(b)(2).

Sec. 12-42. Membership.

The commission on the status of women shall be composed of nine (9) members appointed by the city council for terms of two (2) years each expiring on the day of August 15.
(Code 1961, § 2-351; Ord. No. 92-1, § 1, 1-2-91; Ord. No. 016-93, § 1, 8-16-16)

Sec. 12-43. Duties.

The duties of the commission on the status of women shall be as follows:

(1) To work towards the betterment of the status of women as it is affected by employment and educational opportunities, health services, child care services, welfare services, financial services and community leadership opportunities.

(2) To conduct surveys, public hearings, seminars, and informational programs, receive and investigate complaints with the aim of harmoniously resolving these complaints, accumulate information on subjects affecting women, and to prepare a leadership roster of women in the city.

(3) To make recommendations to the city council for action it deems necessary in improving and upholding the opportunities in employment, education, and community services for all people regardless of sex.

(4) To appoint at its discretion, subcommittees to concern themselves with specific problems relating to the status of women.

(5) To perform such other duties as may be assigned it from time to time by the city council.

(Code 1961, § 2-350; Ord. No. 94-105, § 1, 10-3-94)

Secs. 12-44—12-60. Reserved.

ARTICLE IV. DISCRIMINATION IN PUBLIC ACCOMMODATIONS AND EMPLOYMENT†

DIVISION 1. GENERALLY

Sec. 12-61. Declaration of policy.

Recognizing that the practice of discrimination against any individual or group is contrary to good public policy and detrimental to the peace, progress, and welfare of the city, it is hereby declared to be the policy of the city for the promotion of the public health, safety and welfare of the citizens:

(1) To encourage understanding and good will between all persons;

(2) To promote and develop mutual respect among all citizens toward each other;

(3) To encourage the elimination of discriminatory practices between and among its citizens because of race, color, religion, sex, handicap, familial status, or national origin.

(4) To encourage the elimination of discriminatory practices between and among its citizens, it is necessary to interpret the term 'sex' to explicitly include sexual orientation, gender expression, or gender identity.

(5) To encourage the elimination of discriminatory practices between and

*__Cross reference—__Boards and commissions generally, § 2-136 et seq.

†__Charter reference—__Antidiscrimination ordinances, § 3.62 et seq.

__State law reference—__Discrimination, G.S. § 41A-1 et seq.

among its citizens, it is necessary to interpret the terms 'race' and 'national origin' to include discrimination on the basis of hair texture and hairstyles that are commonly associated with race or national origin.

(Code 1961, § 5A-1; Ord. No. 91-133, § 3, 10-31-91; Ord. No. 21-013, § 1, 1-19-21, eff. 7-1-21)

Sec. 12-62. Severability.

Nothing in this chapter shall be interpreted or applied so as to create any requirement, power, or duty in conflict with any existing federal or state law. In the event any section, subsection, subdivision, paragraph, subparagraph, item, sentence, clause, phrase or word of this article is declared or adjudged to be invalid or unconstitutional, such declaration or adjudication shall not affect the remaining provisions of this article, which shall remain in full force and effect as if the portion so declared or adjudged invalid or unconstitutional was not originally a part of this article.

(Ord. No. 21-013, § 1, 1-19-21, eff. 7-1-21; Ord. No. 21-130, 8-31-21)

Secs. 12-63—12-75. Reserved.

DIVISION 2. COMPLAINTS*

Sec. 12-76. Purpose.

The purpose of this division is to provide a standard administrative procedure for processing a complaint of discrimination relating to public accommodations or employment, and request for assistance filed with the human rights department and shall include filing, investigation, findings and conciliation efforts.

(Code 1961, § 5A-24; Ord. No. 91-133, § 4, 10-31-91; Ord. No. 20-131, 10-6-20)

Sec. 12-77. Filing complaint.

Any person claiming to be aggrieved by a discriminatory practice in violation of any provisions of this article may file a written complaint with human rights department within sixty (60) days after the alleged violation occurred, setting forth the facts upon which the complaint is based, and setting forth facts sufficient to enable the human rights department to identify the person against whom the complaint is filed (hereinafter called the respondent). Notice of the complaint (including the date, place and circumstances of the alleged unlawful discriminatory practice) shall be served by the human rights director upon the respondent by certified mail within ten (10) days after filing. The human rights director shall commence an investigation by initiating a review of the allegations set forth in the complaint.

(Code 1961, § 5A-24.1; Ord. No. 20-131, 10-6-20)

Sec. 12-78. Initial investigation and evidentiary hearing.

Not later than thirty (30) days after the complaint is filed, unless for good reason the time is extended for an additional thirty (30) days by the human rights director, the human rights director or his/her/their designee shall conclude the investigation into the allegations of the complaint. During his/her/their investigation, the human rights director may at his/her/their discretion interview any witnesses that he/she/they reasonably believes may have information concerning the allegations of the complaint, including but not limited to, the complainant and the respondent. Once the human rights director has completed his/her/their review, the human rights director shall send all of the evidence collected to both the complainant and the respondent, and the human rights director shall set a date for an evidentiary hearing within thirty (30) days of the date the evidence collected is sent to the complainant and respondent. The complainant and respondent may be represented by counsel, and the human rights director or his/her/their designee shall preside over the evidentiary hearing. Within thirty (30) days of the evidentiary hearing, the human rights director or his/her/their designee shall determine by the preponderance of the evidence whether the respondent has violated any of the provisions of this article.

(Code 1961, § 5A-25; Ord. No. 20-131, 10-6-20; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-130, 8-31-21)

*__Charter reference—__Complaints, etc., § 3.64.1 et seq.

Sec. 12-79. Human rights director finds no violation; appeal to committee.

(a) After the investigation and evidentiary hearing are concluded, if the human rights director finds by the preponderance of the evidence that the respondent did not violate a provision of this article, the human rights director shall notify the complainant and the respondent in writing of his/her/their determination within ten (10) days after such determination has been made. The human rights director shall also notify the parties of the complainant's right to appeal this determination pursuant to subsection 12-79(b).

(b) The complainant, within ten (10) days after receiving a copy of the human rights director's decision that the respondent did not violate a provision of this article, may file a written appeal with the human rights director for review by a complaint review committee, which shall be composed of three (3) members with a minimum of two (2) such members to be from the human rights commission; the remaining member shall either be from the commission on the status of women or from the human rights commission. However, all members shall be appointed by the human rights commission. Upon receiving such appeal, the human rights director shall forward all of the evidence collected during his/her/their investigation to a complaint review committee. The committee shall review the human rights director's decision under the whole record test standard of review and complete its review and determination within thirty (30) days after the appeal is filed. The committee, at its discretion, may set a hearing date for a hearing to be held within thirty (30) days of receiving the case for oral arguments from the parties and/or their attorneys. No new evidence may be received. If the committee finds that the human rights director's decision is supported by competent evidence pursuant to the whole record test standard of review, the committee shall notify the complainant and the respondent in writing of its determination within ten (10) days after such determination has been made, and the committee's decision shall be final. If the committee finds that the human rights director's decision is not supported by competent evidence pursuant to the whole record test standard of review, the committee shall send the matter back to the human rights director for further investigation. The human rights director shall conduct an additional investigation and/or issue a new decision that is supported by competent evidence within thirty (30) days. This new decision is subject to appeal by the aggrieved party pursuant to this section or section 12-80.

(Code 1961, § 5A-26; Ord. No. 91-133, § 5, 10-31-91; Ord. No. 20-131, 10-6-20; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-130, 8-31-21)

Sec. 12-80. Finding by human rights director that respondent violated article; appeal to committee.

(a) After the investigation and evidentiary hearing are concluded, if the human rights director finds by the preponderance of the evidence that the respondent has violated this article, the human rights director shall notify the complainant and the respondent in writing of his/her/their determination within ten (10) days after such determination has been made. The human rights director shall also notify the parties of the respondent's right to appeal this determination pursuant to subsection 12-80(b). The human rights director may endeavor, by conference and conciliation with the parties, to reach a voluntary and amicable solution to the alleged discriminatory practice. Neither the human rights director nor any of the department's employees, shall make public, without the written consent of the complaining party and the respondent, information concerning efforts in a particular case to voluntarily conciliate

an alleged discriminatory practice by conference and persuasion. If a conciliation agreement is reached between the complainant and the respondent, a written agreement, if mutually deemed by all parties to be needed, may be entered into and a copy shall be furnished to the complainant and the respondent and the complaint will be dismissed.

If within thirty (30) days after the conclusion of the investigation and evidentiary hearing, the human rights director is unable to effectuate a voluntary resolution of a complaint where he/she/they have found by the preponderance of the evidence that the respondent violated this article, he/she/they shall impose a civil penalty pursuant to section 12-84 and so advise the complainant and respondent immediately in writing by certified or registered letter.

(b) The respondent may appeal the decision and the imposition of the civil penalty to a complaint review committee by filing a notice of appeal with the human rights director within ten (10) days after the respondent receives the above-mentioned letter. The complaint review committee shall review the human rights director's decision under the whole record test standard of review and complete its review and determination within thirty (30) days after the appeal is filed. The committee, at its discretion, may set a hearing date for a hearing to be held within thirty (30) days of receiving the case for oral arguments from the parties and/or their attorneys. No new evidence may be received. If the committee finds that the human rights director's decision is supported by competent evidence pursuant to the whole record test standard of review, the committee shall notify the complainant and the respondent in writing of its determination within ten (10) days after such determination has been made. The committee's decision is final.

If the committee finds that the human rights director's decision is not supported by competent evidence pursuant to the whole record test standard of review, the committee shall dismiss the complaint and notify the complainant and the respondent in writing of its determination within ten (10) days after such determination has been made. The committee's decision is final.
(Code 1961, § 5A-27; Ord. No. 20-131, 10-6-20; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-130, 8-31-21)

Sec. 12-81. Final letter setting forth information.

In the event the complaint is still unresolved after the culmination of the administrative review procedures as outlined in section 12-78, 12-79 or 12-80 (whichever is applicable in the particular case), within five (5) days the human rights director shall notify the complainant and respondent in writing advising of the alternative remedies available which may include:

(1) Referral of the complainant to the appropriate federal or state agency, and

(2) The right of the complainant to initiate a private right of civil action through application to the superior court division of the general court of justice.

(Code 1961, § 5A-28; Ord. No. 20-131, 10-6-20)

Sec. 12-82. Service of written correspondence.

All written notifications required by this article shall be served either through personal service or mailed by certified or registered mail.
(Code 1961, § 5A-29)

Sec. 12-83. Clarification of purpose; confidentiality.

(a) The authority of the human rights director and complaint review committee shall be to fully administer and enforce the provisions of this article by receiving, investigating, receiving voluntary access to information, attempting to conciliate complaints and assisting in conciliation agreements, issuing civil penalties, and seeking equitable enforcement of the provisions of this article pursuant to N.C.G.S. 160A-175 in the Guilford County Superior Court.

(b) In order to protect the legal rights of the parties involved, any complaint filed pursuant to this article and the results of reviews, investigations or attempts at conciliation in whatever form prepared and preserved, shall be maintained in a confidential and classified manner and shall not be subject to public review except upon application to and a final order issued by the superior court division of the general court of justice finding that the applicant is entitled to the information sought.

(c) All meetings, conferences and reviews held by the human rights director pertaining to a complaint filed pursuant to this article shall be confined only to the parties affected, their counsel and their witnesses.
(Code 1961, § 5A-30; Ord. No. 20-131, 10-6-20; Ord. No. 21-130, 8-31-21)

Sec. 12-84. Civil penalties.

If the human rights director finds by the preponderance of the evidence that the respondent has violated this article, and is unable to effectuate a voluntary resolution of the complaint pursuant to sections 12-79 and/or 12-80, the human rights director shall levy a civil penalty against the respondent in the amount of five hundred dollars ($500.00).

(a) In the case of a continuing violation, each 24-hour period in which the violation continues to exist shall constitute a separate violation. In the event the violator does not pay the civil penalty assessed within 30 days of service of the citation, the civil penalty shall be collected by the city in a civil action in the nature of debt.

(b) In addition to or in lieu of other remedies available by law or set forth by this article, any person violating any provision of this article may be subject to an enforcement action brought by the city under N.C.G.S. 160A-175 for an appropriate equitable remedy, including but not limited to a mandatory or prohibitory injunction commanding the respondent to correct the conduct prohibited under this article. This article is not intended to limit the remedies available to any person under state or federal law.

(c) Respondent may appeal the issuance of the civil penalty by the human rights director as provided for appeals in subsection 12-80(b).
(Ord. No. 21-130, 8-31-21)

Sec. 12-85. Other remedies.

(a) Subject to the provisions of subsection (b) of this section, any aggrieved complainant may, on his/her/their own initiative, apply to the superior court division of the general court of justice for appropriate civil relief including any legal and equitable remedies. If it is determined by the court that a discriminatory practice has occurred in violation of this chapter, the court may issue such order as, in its discretion, is deemed appropriate, including injunctive relief, actual damages and court costs in the case of a prevailing plaintiff.

(b) Within sixty (60) days after the complainant receives written notice from the human rights director pursuant to section 12-81, a civil action may be brought by the complainant against the respondent in the superior court division of the general court of justice, but not otherwise. Nevertheless, no private civil action shall be filed or commenced by the complainant in the superior court for alleged violations of this article unless the complainant has first exhausted the full administrative complainant procedures as required by this division.

(c) Any remedies exercised or charges made hereunder for violations of this article shall be of a civil nature only and the provisions of North Carolina Statutes section 14-4 shall not apply.
(Code 1961, § 5A-31; Ord. No. 91-133, § 7, 10-31-91; Ord. No. 20-131, 10-6-20; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-130, 8-31-21)

Editor's note—Ord. No. 91-133, §§ 6 and 7, adopted Oct. 31, 1991, amended the Code by deleting provisions contained in § 12-84 in their entirety and by renumbering former § 12-85 as § 12-84. The former provisions contained in § 12-84 pertained to the subpoena power of the complaint review committee and/or the executive director in regards to fair housing complaints and derived from the Code of 1961, § 5A-32; Ord. No. 87-138, § 1, adopted Oct. 15, 1987.

Secs. 12-86—12-95. Reserved.

DIVISION 3. PUBLIC ACCOMMODATIONS*

Sec. 12-96. Definition.

In this article "Place of public accommodation" means a business, accommodation, refreshment, entertainment, recreation or transportation facility of any kind whose goods, services, facilities, privileges, advantages or accommodations are extended, offered, sold or otherwise made available to the public.

In this article, the term 'sex' shall be defined to explicitly include sexual orientation, gender expression, or gender identity.

In this article, the terms 'race' and 'national origin' shall be defined to explicitly include hair texture and hairstyles that are commonly associated with race or national origin.
(Code 1961, § 5A-2; Ord. No. 21-013, § 2, 1-19-21, eff. 7-1-21)

Sec. 12-97. Prohibited acts.

(a) No person shall deny an individual the full and equal enjoyment of the goods, services, facilities, privileges, advantages and accommodations of a place of public accommodation because of race, color, religion, sex or national origin.

(b) No person shall print, circulate, post, mail or otherwise cause to be published a statement, advertisement or sign which indicates that the full and equal enjoyment of the goods, services, facilities, privileges, advantages and accommodations of a place of public accommodation will be refused, withheld from, or denied an individual because of race, color, religion, sex or national origin, or that an individual's patronage of or presence at a place of public accommodation is objectionable, unwelcome, unacceptable or undesirable because of race, color, religion, sex or national origin.

(c) No person shall, because of race, color, religion, sex or national origin, intimidate, threaten or coerce another individual for the purpose of interfering with or denying such individual the full and equal enjoyment of a place of public accommodation.
(Code 1961, § 5A-3; Ord. No. 21-013, § 2, 1-19-21, eff. 7-1-21)

Sec. 12-98. Exception.

The provisions of this division shall not apply to a private club or other establishment not, in fact, open to the public.
(Code 1961, § 5A-4)

Secs. 12-99—12-110. Reserved.

DIVISION 4. EMPLOYMENT†

Sec. 12-111. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Because of sex or *on the basis of sex* includes pregnancy, childbirth or related medical conditions. Women affected by pregnancy, childbirth or related medical conditions shall be treated the same for all employment related purposes, including receipt of benefits under fringe benefit programs, as other persons not so affected in their ability or inability to work, and nothing in this division shall be interpreted to permit otherwise. The term 'sex' in this division shall be defined to explicitly include sexual orientation, gender expression, or gender identity.

Discriminatory practice means an act that is prohibited under this division.

Employee means an individual employed by an employer, except that the term "employee" shall not include any person elected to public office in any state or political subdivision of any state by the qualified voters thereof, or any person chosen by such officer to be on such officer's personal staff, or an appointee on the policy-making level or an immediate adviser with respect to the exercise of the constitutional

*__Charter reference—__Antidiscrimination ordinance for places of public accommodations, § 3.62.

†__Charter reference—__Equal employment ordinances, G.S. § 3.36.

or legal powers of the office. The exemption set forth in the preceding sentence shall not include employees subject to the civil service laws of a state government, governmental agency or political subdivision.

Employer means a person who has fifteen (15) or more employees in each of twenty (20) or more calendar weeks in the current or preceding calendar year, and an agent of such a person.

Employment agency means a person regularly undertaking, with or without compensation, to procure employees for an employer, or to procure for employees opportunities to work for an employer, and includes an agent of such a person.

Person includes individuals, associations, corporations, joint stock companies, legal representatives, mutual companies, partnerships, receivers, trusts, trustees, trustees in bankruptcy, unincorporated organizations, any other commercial entities, the city, county, or any governmental entities or agencies.

Race and *national origin* shall be defined to explicitly include hair texture and hairstyles that are commonly associated with race or national origin.

Religion means all aspects of religious observance and practice, as well as belief, unless an employer demonstrates that he/she/they is unable to reasonably accommodate an employee's or prospective employee's religious observance or practice without undue hardship on the conduct of the employer's business.
(Code 1961, § 5A-6; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-013, § 3, 1-19-21, eff. 7-1-21)

Sec. 12-112. Purpose; construction.

The purpose of this division is to secure for all individuals freedom from discrimination in connection with employment because of race, color, religion, sex or national origin. Hence the provisions herein shall be construed to achieve the above-mentioned purpose and to promote just and fair employment practices among employers.
(Code 1961, § 5A-5)

Sec. 12-113. Exemptions.

(a) This division shall not apply to a religious corporation, association or society with respect to the employment of individuals of a particular religion to perform work connected with the carrying on by the corporation, association or society of its religious activities.

(b) It is not a discriminatory practice:

(1) For an employer to employ an employee or an employment agency to classify or refer for employment an individual, or for an employer to admit or employ an individual in the program, on the basis of his/her/their religion, sex or national origin if religion, sex, or national origin is a bona fide occupational qualification reasonably necessary to the normal operation of the business or enterprise.

(2) For a religious education institution, or an educational organization operated, supervised or controlled by a religious institution or organization, to limit employment or give preference to members of the same religion.

(3) For an employer, employment agency or training program:

a. To observe the terms of a bona fide seniority system or any bona fide employee benefit plan, such as retirement, pension or insurance plan, which is not a subterfuge to evade the purposes of this article, except that no such employees' benefit plan shall excuse the failure to hire an individual.

b. To discharge or otherwise discipline an individual for good cause.

(4) For an employer to apply different standards of compensation or different terms, conditions or privileges of employment pursuant to a bona fide seniority or merit system, or a system which measures earnings by quantity or quality of production or to employees who work in different locations, provided that such differences are not the result of an intention to discriminate because of race, color,

religion, sex or national origin; nor is it an unlawful practice for an employer to give and to act upon the results of any professionally developed ability test, provided that such test, its administration or action upon the results is not designed, intended or used to discriminate because of race, color, religion, sex or national origin.

(Code 1961, §§ 5A-11, 5A-12; Ord. No. 20-163, § 3, 12-15-20)

Sec. 12-114. Employers.

It is a discriminatory practice for an employer:

(1) To fail or refuse to hire, to discharge, or otherwise to discriminate against an individual with respect to compensation or terms, conditions or privileges of employment because of the individual's race, color, religion, sex or national origin.

(2) To limit, segregate or classify an employee in a way which would deprive or tend to deprive an individual of employment opportunities or otherwise adversely affect the status of an employee because of race, color, religion, sex or national origin.

(Code 1961, § 5A-7)

Sec. 12-115. Employment agencies.

It is a discriminatory practice for an employment agency to fail or refuse to refer for employment, or otherwise to discriminate against an individual, because of race, color, religion, sex or national origin, or to classify or refer for employment on the basis of race, color, religion, sex or national origin.

(Code 1961, § 5A-8)

Sec. 12-116. Training programs.

It is a discriminatory practice for an employer to discriminate against an individual because of race, color, religion, sex or national origin in admission to or employment in a program established to provide apprenticeship or other training.

(Code 1961, § 5A-9)

Sec. 12-117. Other discriminatory practices.

It is a discriminatory practice for an employer or employment agency to print or publish, or cause to be printed or published, a notice of advertisement relating to employment by the employer or membership in or a classification or referral for employment relating to a classification or referral for employment relating to a classification or referral for employment by the employment agency, indicating a preference, limitation, specification or discrimination based on race, color, religion, sex or national origin; but a notice or advertisement may indicate a preference, limitation, specification or discrimination based on religion, sex or national origin where religion, sex or national origin is a bona fide occupational qualification for employment.

(Code 1961, § 5A-10)

Secs. 12-118—12-130. Reserved.

DIVISION 5. FAIR HOUSING*

Sec. 12-131. Title and purpose.

This division shall be known and may be cited as the "Fair Housing Ordinance of the City of Greensboro." The general purpose of this article is to secure for all individuals within the city freedom from discrimination because of race, color, religion, sex, handicap, familial status, or national origin in the sale, rental or advertising of dwellings, in the provision of brokerage services or in the availability of residential real estate-related transactions. By providing rights and remedies for violation of this division substantially equivalent to the rights and remedies provided by the Federal Fair Housing Act (42 U.S.C. 3601, et seq.).

(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 97-183, § 1, 11-18-97)

*__Editor's note—__Ord. No. 91-133, § 9, adopted Oct. 31, 1991, amended Div. 5 to read as herein set out in §§ 12-131—12-146. Prior to inclusion of said ordinance, Div. 5, §§ 12-131—12-137 pertained to similar subject matter and derived from the Code of 1961, §§ 5A-14—5A-21.

Sec. 12-132. Definitions.

[The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Aggrieved person includes any person who claims to have been injured by a discriminatory housing practice; or believes that such person will be injured by a discriminatory housing practice that is about to occur.

Charge means the statement of facts issued by the City of Greensboro's Human Rights Department under this division upon which the department has found reasonable cause to believe that a discriminatory housing practice has occurred or is about to occur.

Commission means the Human Rights Commission of the City of Greensboro.

Committee means the complaint review committee.

Complaint means a written complaint filed with the City of Greensboro's Human Rights Department in accordance with the provisions of chapter 12, article IV, division 5 of the Greensboro Code of Ordinances.

Complainant means a person(s), including the department, who has filed a complaint with the department under this division.

Conciliation means attempted resolution of issues raised by a complaint or by the investigation of the complaint, through informal negotiations involving the aggrieved person, the respondent, and the department.

Conciliation agreement means a written statement setting forth the resolution of the issues in conciliation.

Covered multifamily dwellings means buildings comprising four (4) or more residential units if the building has one (1) or more elevators; and ground floor residential units in other buildings comprising four (4) or more residential units.

Department means the City of Greensboro's Human Rights Department.

Director means the director of the human rights department.

Director's designee means an employee of the Greensboro Human Rights Department.

Discriminatory practice means an act that is prohibited under this division.

Dormitory means a residential dwelling located on the premises of a college, business college, trade school or university for the purpose of housing students registered and attending such an institution or a private dormitory within the meaning of chapter 30, Greensboro Code of Ordinances.

Dwelling includes any improved or unimproved real property or part thereof which is used or occupied, or is intended, arranged or designed to be used or occupied, as the home or residence of one (1) or more individuals.

Familial status means one (1) or more persons who have not attained the age of eighteen (18) years being domiciled with a parent or another person having legal custody of the person or persons; or the designee of the parent or other person having custody, provided the designee has the written permission of the parent or other person. The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any person who has not attained the age of eighteen (18) years.

Family includes a single individual.

Handicap means with respect to a person:

(1) A physical or mental impairment which substantially limits one (1) or more of such person's major life activities;

(2) A record of having such an impairment; or

(3) Being regarded as having such an impairment, but such term does not include current, illegal use of or addiction to a controlled substance as defined in Section 102 of the Controlled Substances Act (21 U.S.C. 802).

Hearing means a proceeding conducted to receive evidence or argument on a matter before the department.

Person includes one (1) or more individuals, political subdivisions of the state and instrumentalities thereof, including the city or any governmental entity or agency thereof, partnerships, associations, corporations, legal representatives, mutual companies, joint stock companies, trusts, unincorporated organizations, trustees, trustees in bankruptcy, receivers or any other legal or commercial entity.

Race and *national origin* shall be defined to explicitly include hair texture and hairstyles that are commonly associated with race or national origin.

Real estate broker or *salesman* means a person, whether licensed or not, who, on behalf of others, for a fee, commission, salary or other valuable consideration, or who with the intention or expectation of receiving or collecting the same, lists, sells, purchases, exchanges, rents or leases real property, or the improvements thereon, including options, or who negotiates or attempts to negotiate on behalf of others such an activity, or who advertises or holds himself/herself/themself out as engaged in such activities; or who negotiates or attempts to negotiate on behalf of others a loan secured by mortgage or other encumbrances upon real property, or who is engaged in the business of listing real property in a publication, or a person employed by or acting on behalf of any of these.

Residential real estate transaction means the sale or rental of residential dwellings or real estate.

Residential real estate-related transactions means the making or purchasing of loans or providing other financial assistance for purchasing, constructing, improving, repairing or maintaining a dwelling; or secured by residential real estate; or the selling, brokering or appraising of residential real property.

Real property includes buildings, structures, real estate, lands, tenements, leaseholds, cooperatives, condominiums and hereditaments, corporeal and incorporeal, or any interest therein.

Respondent means a person accused of a discriminatory housing practice in a complaint filed pursuant to this division.

Sex shall be defined to explicitly include sexual orientation, gender expression, or gender identity. (Ord. No. 91-133, § 9, 10-31-91; Ord. No. 92-116, § 2, 9-3-92; Ord. No. 20-131, 10-6-20; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-013, § 4, 1-19-21, eff. 7-1-21)

Sec. 12-133. Discriminatory practices prohibited.

It is prohibited to commit or to attempt to commit any act, practice, activity or procedure related directly or indirectly, to the sale or rental of public or private housing, which affects or may tend to affect the availability or desirability of housing on an equal basis to all persons.
(Ord. No. 91-133, § 9, 10-31-91)

Sec. 12-134. Discrimination in housing practices.

(a) It is a discriminatory housing practice for an owner or any other person engaging in a real estate transaction or residential real estate-related transaction, because of the race, color, religion, sex, handicap, familial status, or national origin of a person or of a person residing with that person or of friends or associates of that person:

(1) To refuse to sell, exchange, rent or lease any real property.

(2) To discriminate against a person in the terms, conditions or privileges of a real

estate transaction or in the provision of services or facilities in connection therewith.

(3) To refuse to receive or to fail to transmit a bona fide offer to engage in a real estate transaction from a person.

(4) To refuse to negotiate for a real estate transaction with a person.

(5) To represent to a person that real property is not available for inspection, sale, rental or lease, when in fact it is so available, or to intentionally fail to bring a property listing to a person's attention, or to refuse to permit a person to inspect real property.

(6) To make, print or publish, or cause to be made, printed or published any notice, statement or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation or discrimination based on race, color, religion, sex, handicap, familial status or national origin, or an intention to make any such preference, limitation or discrimination.

(7) To offer, solicit, accept, use or retain a listing of real property for sale, rental or lease with the understanding that a person may be discriminated against in the sale, rental or lease of that real property or in the provision of facilities or services in connection therewith.

(8) For a person for profit, to induce or attempt to induce any person to sell or rent any real property by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, familial status, or national origin or with a handicap.

(9) Every condition, restriction or prohibition, including a right of entry or possibility of reverter, which limits the conveyance, lease, or use or occupancy of real property on the basis of race, color, religion, sex, handicap, familial status, or national origin, is a discriminatory practice and is void, except a limitation of conveyance or use of real property on the basis of religion, held by a religious or charitable organization operated, supervised or controlled by a religious institution or organization and used for religious or charitable purposes.

(10) For any person, because of race, color, religion, sex, handicap, familial status, or national origin, to intimidate, threaten, coerce or interfere with any other individual on account of that person having exercised or enjoyed, or on account of that person having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by this division.

(11) For any person, because of race, color, religion, sex, handicap, familial status, or national origin, to restrict or attempt to restrict the choices of a person by word or conduct in connection with seeking, negotiating for, buying or renting a dwelling so as to perpetuate, or tend to perpetuate, segregated housing patterns, or to discourage or obstruct choices in a community, neighborhood or development.

(12) To refuse to permit, at the expense of a handicapped person, reasonable modifications of existing premises occupied or to be occupied by the person if the modifications are necessary to the handicapped person's full enjoyment of the premises; except that, in the case of a rental unit, the landlord may, where it is reasonable to do so, condition permission for modifications on agreement by the renter to restore the interior of the premises to the condition that existed before the modifications, reasonable wear and tear excepted.

(13) To refuse to make reasonable accommodations in rules, policies, practices, or services, when these accommodations may be necessary to a handicapped person's equal use and enjoyment of a dwelling.

(14) To fail to design and construct covered multifamily dwellings available for first occupancy after March 13, 1991, so that:

a. The dwellings have at least one (1) building entrance on an accessible

route, unless it is impractical to do so because of terrain or unusual site characteristics; or

b. With respect to dwellings with a building entrance on an accessible route:

1. The public and common use portions are readily accessible to and usable by handicapped persons;

2. There is an accessible route into and through all dwellings and units;

3. All doors designed to allow passage into, within, and through these dwellings and individual units are wide enough for wheelchairs;

4. Light switches, electrical switches, electrical outlets, thermostats, and other environmental controls are in accessible locations;

5. Bathroom walls are reinforced to allow later installation of grab bars; and

6. Kitchens and bathrooms have space for an individual in a wheelchair to maneuver.

(15) Otherwise make unavailable or deny housing.

(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 92-116, § 2, 9-3-92)

Sec. 12-134.1. Exemptions.

(a) Nothing in article IV, division 5:

(1) Prohibits a religious organization, association, or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, or national origin;

(2) Prohibits a private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members;

(3) With respect to discrimination based on sex, prohibits the rental or leasing of housing accommodations in single-sex dormitory property to the extent that such a dormitory is segregated based on sex only for the purpose of protecting values of personal modesty or privacy.

(4) Limits the applicability of any reasonable local, state or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling;

(5) Prohibits conduct against a person because such person has been convicted by any court of competent jurisdiction of the illegal manufacture or distribution of a controlled substance as defined in Section 102 of the Controlled Substances Act (21 U.S.C. 802);

(b) Nothing in article IV, division 5, other than sections 12-134(a)(6) and (10), applies to:

(1) The sale or rental of any single-family house by an owner, provided the following conditions are met:

(i) The owner does not own or have any interest in more than three (3) single-family houses at any one (1) time;

(ii) The house is sold or rented without the use of a real estate broker, agent or salesperson or the facilities of any person in the business of selling or renting dwellings. If the owner selling the house does not reside in it at the time of the sale or was not the most recent resident of the house prior to such sale, the exemption in

paragraph (b)(1) of this section applies to only one (1) such sale in any twenty-four-month period.

(2) Rooms or units in dwellings containing living quarters occupied or intended to be occupied by no more than four (4) families living independently of each other, if the owner actually maintains and occupies one (1) of such living quarters as his/her/their residence.

(c) Nothing in article IV, division 5, regarding discrimination based on familial status applies with respect to housing for older persons. As used in this section, housing for older persons means housing:

(1) Provided under any state or federal program that the Secretary of the United States Department of Housing and Urban Development determines is specifically designed and operated to assist elderly persons (as defined in the state or federal program); or

(2) Intended for, and solely occupied by, persons sixty-two (62) years of age or older. Housing satisfies the requirements of this section even though:

(i) There are persons residing in such housing on September 13, 1988, who are under sixty-two (62) years of age, provided that all new occupants are persons sixty-two (62) years of age or older;

(ii) There are unoccupied units, provided that such units are reserved for occupancy by persons sixty-two (62) years of age or over;

(iii) There are units occupied by employees of the housing (and family members residing in the same unit) who are under sixty-two (62) years of age provided they perform substantial duties directly related to the management or maintenance of the housing.

(3) Or, intended and operated for occupancy by at least one (1) person fifty-five (55) years of age or older per unit. Housing qualifies as housing for older persons under this subsection if it satisfies the following requirements:

(i) At least eighty (80) percent of the units in the housing facility are occupied by at least one (1) person fifty-five (55) years of age or older per unit except that a newly constructed housing facility for first occupancy after March 12, 1989, need not comply with this paragraph until twenty-five (25) percent of the units in the facility are occupied; and

(ii) The publication of, and adherence to, policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons fifty-five (55) years of age or older.

(iii) The owner or manager complies with rules issued by the Secretary of the United States Department of Housing and Urban Development pursuant to the Housing for Older Peoples Act of 1995 (24 C.F.R., Part 100, Subpart E - Housing for Older Persons) for verification of occupancy, which provides for verification by reliable surveys and affidavits; and include examples of the types of procedures relevant to the determination of compliance with section 12-134.1(c)(3)(ii). Such surveys and affidavits shall be admissible in administrative and judicial proceedings under this division for the purposes of such verification.

(4) Housing which otherwise satisfies the requirements of section 12-134.1(c)(3) shall not fail to meet the requirement of housing for older persons even though:

(i) On September 13, 1988, under eighty (80) percent of the occupied units in the housing facility are occupied by at least one (1) person fifty-five (55) years of age or older per unit,

provided that at least eighty (80) percent of the units that are occupied by new occupants after September 13, 1988, are occupied by at least one (1) person fifty-five (55) years of age or older.

(ii) There are unoccupied units, provided that at least eighty (80) percent of such units are reserved for occupancy by at least one (1) person fifty-five (55) years of age or over.

(iii) There are units occupied by employees of the housing (and family members residing in the same unit) who are under fifty-five (55) years of age provided they perform substantial duties directly related to the management or maintenance of the housing.

(Ord. No. 92-116, § 4, 9-3-92; Ord. No. 97-183, § 2, 11-18-97)

Sec. 12-135. Discrimination in financial practices.

It shall be unlawful for any person or other entity whose business includes engaging in residential real estate-related transactions to discriminate against any person in making available such a transaction, or in the terms or conditions of such a transaction, because of race, color, religion, sex, handicap, familial status, or national origin. Unlawful conduct under this section includes, but is not limited, as follows:

(1) To discriminate against the applicant because of race, color, religion, sex, handicap, familial status, or national origin.

(2) To use a form of application for financial assistance or to make or keep a record or inquiry in connection with applications for financial assistance which indicates, directly or indirectly, an intent to make a limitation, specification or discrimination as to race, color, religion, sex, handicap, familial status, or national origin.

(3) To fail or refuse to provide to any person, in connection with a residential real estate-related transaction, information regarding the availability of loans or other financial assistance, application requirements, procedures or standards for the review and approval of loans or financial assistance, or providing information which is inaccurate or different from that provided others, because of race, color, religion, sex, handicap, familial status, or national origin.

(4) With respect to a person or entity engaged in the purchasing of loans or other debts or securities which support the purchase, construction, improvement, repair or maintenance of a dwelling, or which are secured by residential real estate, to refuse to purchase such loans, debts, or securities, or to impose different terms or conditions for such purchases, because of race, color, religion, sex, handicap, familial status, or national origin.

(5) With respect to a person or entity engaged in the making of loans or in the provision of other financial assistance relating to the purchase, construction, improvement, repair or maintenance of dwellings or which are secured by residential real estate to impose different terms or conditions for the availability of such loans or other financial assistance because of race, color, religion, sex, handicap, familial status, or national origin.

(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 92-116, § 4, 9-3-92)

Sec. 12-136. Discrimination in the provision of brokerage services.

It is a discriminatory practice for any person or other entity whose business includes engaging in the selling, brokering or appraising of residential real property to deny any person who is otherwise qualified by state law, access to, or membership or participation in, any real estate broker's organization, multiple listing service or other service, organization or facility relating to the business of engaging in real estate transactions, or to discriminate against any person in the terms or conditions of such access, membership, or participation, making available such

services, or in the performance of such services, because of race, color, religion, handicap, familial status, or national origin.
(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 92-116, § 6, 9-3-92)

Sec. 12-137. Other discriminatory practices.

(a) It is a discriminatory practice for any person against whom a complaint has been filed under this division to fail to preserve or to fail to make available to the department or its duly authorized representative any evidence or possible sources of evidence with regard to that complaint.

(b) It is a discriminatory practice for a person, as a party to a conciliation agreement made under this division, to violate the terms of the agreement.

(c) Conspiracy to violate this division is unlawful. It is a discriminatory practice for a person or for two (2) or more persons to conspire to:

(1) Retaliate or discriminate in any manner against a person because that person has opposed a practice prohibited by this division, or because that person has made a charge, filed a complaint, testified, assisted or participated in any manner in any investigation, proceeding, or hearing under this division; or

(2) Aid, abet, incite, compel or coerce a person to engage in any of the acts or practices prohibited by this division; or

(3) Obstruct or prevent a person from complying with the provisions of this division or any order issued thereunder; or

(4) Resist, prevent, impede, or interfere with the department or any of its members or representatives in the lawful performance of a duty under this division.

(Ord. No. 91-133, § 9, 10-31-91)

Sec. 12-138. Acting for another person no defense.

It shall be no defense to a violation of this division by a person that the violation was requested, sought, or otherwise procured by another person.
(Ord. No. 91-133, § 9, 10-31-91)

Sec. 12-139. Provisions for enforcement.

(a) Any aggrieved person or the director on behalf of the department may file a complaint with the department no later than one (1) year after an alleged discriminatory housing practice has occurred or terminated. The complaint may be filed with the assistance of an authorized representative of an aggrieved person, including any organization acting on behalf of an aggrieved person. A complaint may be reasonably and fairly amended at any time.

(b) Each complaint must be in writing and must be signed and affirmed by the aggrieved person filing the complaint, or if the complaint is filed by the director on behalf of the department it must be signed and affirmed by the director. The signature and affirmation may be made at any time during the investigation. The affirmation shall state: "I declare under penalty of perjury that the foregoing is true and correct."

(c) Each complaint shall include, but not be limited to, the following information:

(1) The name and address of the aggrieved person;

(2) The name and address of the respondent;

(3) A description and the address of the dwelling which is involved, if appropriate; and

(4) A concise statement of the facts, including pertinent dates, constituting the alleged discriminatory housing practice.

(d) Upon the filing of a complaint, the director or his/her/their designee shall serve by certified mail or personal service upon each aggrieved person on whose behalf the complaint was filed a notice acknowledging the filing and advising each aggrieved person of the time limits and choice of forums provided under the law.

(e) Within ten (10) days of the filing of a complaint the director or his/her/their designee will serve a notice on each respondent by certified mail or by personal service. The director shall also serve upon respondent a notice identifying the alleged discriminatory housing practice and advising such respondent of the procedural rights and obligations of respondents under this title, together with a copy of the original complaint. A person who is not named as a respondent in a complaint, but who is identified in the course of the investigation under this division, as a person who is alleged to be engaged, to have engaged, or to be about to engage in the discriminatory housing practice upon which the complaint is based may be joined as an additional or substitute respondent by service of a notice on the person under this division within ten (10) days of the identification. Said notice shall further explain the basis for the director's belief that the person whom the notices are addressed are properly joined as a respondent. The respondent may file an answer not later than ten (10) days after receipt of the notice. The answer must be signed and affirmed by the respondent. The affirmation must state: "I declare under penalty of perjury that the foregoing is true and correct."

(f) Within thirty (30) days of the filing of a complaint, the director or his/her/their designee will initiate an investigation. Unless it is impracticable to do so, investigations under this division will be completed within one hundred (100) days of the filing of the complaint. If the investigation is not completed within the one hundred-day period, the aggrieved person and the respondent, shall be notified of the reasons for the delay by certified mail or personal service. At the end of each investigation under this division, a final investigative report will be prepared. The information derived from an investigation, including the final investigative report will be made available to the aggrieved person and the respondent. Following the completion of investigation, the aggrieved person and the respondent shall be notified that the final investigation report is complete and will be provided upon request.
(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 92-116, § 7, 9-3-92)

Sec. 12-140. Powers of the complaint review committee and/or the director of human rights or his/her/their designee.

To effectuate the purposes of this division the committee and/or the director or his/her/their designee shall have the power:

(1) To receive, initiate, investigate, seek to conciliate and conduct hearings on complaints filed under this division, make recommendations to parties named in such complaints, approve or disapprove plans to eliminate or reduce the effects of discriminatory practices, and monitor compliance with such plans.

(2) To adopt rules and regulations for carrying out the administrative and enforcement functions of the Fair Housing Ordinance of the City of Greensboro. Such rules and regulations shall be approved by the human rights commission and shall be adopted, amended or rescinded after the commission holds a public hearing. A copy of the text of the proposed rule, amendment or decision shall be available for public inspection and copying at the office of the department.

(3) To issue a subpoena requiring the attendance and testimony of witnesses; after having first sought voluntary response, the production of evidence, including but not limited to, books, records, correspondence or documents, in the possession or under the control of the person subpoenaed; and access to relevant and material evidence for the purposes of examination and copying.

(4) The subpoena shall state the name, title, capacity and address of its issuer; the authority under which it is issued; the identity of the person or evidence subpoenaed; the name of the person to whom and the place, date and the time at which it is returnable; the nature of the evidence to be examined or copied; and the date and time when access is requested. The complaint review commit-

tee and/or the director may in accordance with this subsection, issue subpoenas and order discovery in aid of investigations and hearings under this division. Such subpoenas and discovery may be ordered to the same extent and subject to the same limitations as would apply if the subpoenas or discovery were ordered or served in aid of a civil action in the general court of justice. A subpoena shall be returnable to the department.

(5) Any person served with a subpoena who fails to comply therewith may, within five (5) days (excluding Saturdays, Sundays and legal holidays) after the date of service of the subpoena upon him/her/them, directly petition the Guilford County Superior Court to revoke or modify the subpoena. For purposes of this section, service shall be made and proof thereof established pursuant to Rule 45 of the North Carolina Rules of Civil Procedure.

(6) Upon the failure of any person to respond or comply with a lawful interrogatory, request for production of documents, or subpoena issued under this section, the director or complaint review committee, as applicable, may apply to the superior court division of the general court of justice for an order requiring such person to respond or comply with the interrogatory, request for production of documents, or subpoena. The court shall have jurisdiction to issue such orders after notice to all proper parties.

(7) Neither a complaint filed pursuant to this article nor the results of the director's or complaint review committee's investigations, discovery or attempts at conciliation, in whatever form prepared and preserved shall be subject to inspection, examination or copying under Chapter 132 of the General Statutes of North Carolina.

(8) The provisions of article 33C of Chapter 143 of the General Statutes of North Carolina [G.S. § 143-318.9 et seq.] shall not be applicable to the activities of the director or complaint review committee, to the extent that it is receiving a complaint or conducting an investigation, discovery or conciliation pertaining to a complaint filed pursuant to this section.

(9) If the director concludes at any time following the filing of a complaint that prompt judicial action is necessary to carry out the purposes of this division, the director may authorize a civil action for appropriate temporary or preliminary relief pending final disposition of the complaint under this division. Upon notification of the need for prompt judicial action, the city on behalf of the complainant shall commence and maintain such an action.

(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 20-131, 10-6-20; Ord. No. 20-163, § 3, 12-15-20)

Sec. 12-141. Conciliation procedures.

(a) During the period beginning with the filing of the complaint and ending with the filing of a charge or the dismissal of the complaint by the director or committee, the director or committee shall to the extent feasible, attempt to conciliate the complaint.

(b) In conciliating a complaint, the director or committee will attempt to achieve a just resolution of the complaint and to obtain assurances that the respondent will satisfactorily remedy any violations of the rights of the aggrieved person, and take such action as will assure the elimination of discriminatory housing practices, or the prevention of their occurrence, in the future.

(c) The terms of a settlement of a complaint will be reduced to a written conciliation agreement. Any conciliation agreement arising out of conciliation efforts by the department or the committee shall be between the complainant and the respondent and shall be subject to the approval of the director. The conciliation agreement shall seek to protect the interests of the aggrieved person, other persons similarly situated, and the public interest. Each conciliation agreement shall

be made public unless the complainant and the respondent otherwise agree and the director or committee determines that disclosure is not required to further the purposes of this division.

(d) A conciliation agreement negotiated by the director or committee may include but is not limited to the:

(1) Sale, exchange, lease, rental, assignment, or sublease of real property to a person;

(2) Extension to all persons of the full and equal enjoyment of the advantages, facilities, privileges and services of the respondent;

(3) Reporting as to the manner of compliance;

(4) Posting of notices in conspicuous places in the respondent's place of business in a form prescribed by the director or the committee; and

(5) Payment to the complainant of actual damages, including compensation for humiliation or embarrassment, and reasonable attorney fees.

(e) At any time, but not later than one (1) year from the date of a conciliation agreement, the director or committee shall investigate whether the terms of the agreement are being complied with by the respondent. Upon deciding that the terms of the agreement are not being complied with by the respondent, the director or committee shall take informal action to seek voluntary compliance with the agreement. If informal action does not result in compliance, the director or committee, shall file a civil action for the enforcement of the terms of the conciliation agreement.
(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 92-116, § 8, 9-3-92)

Sec. 12-142. Reasonable cause determination and effect.

(a) If it is decided by the director that there is no reasonable cause to believe that the respondent has engaged in a discriminatory practice in violation of this division, the director shall issue a short and plain written statement of the facts upon which the director has based the no reasonable cause determination; dismiss the complaint, notify the aggrieved person and the respondent of the dismissal by certified mail or personal service.

(b) If the director determines that reasonable cause exists, the director will immediately issue a charge under this division, on behalf of the aggrieved person, and shall notify the aggrieved person and the respondent of this determination by certified mail or personal service.

(c) *Such charge:*

(1) Shall consist of a short and plain statement of the facts upon which the director has found reasonable cause to believe that a discriminatory housing practice has occurred or is about to occur;

(2) Shall be based on the final investigative report; and

(3) Need not be limited to the facts or grounds alleged in the complaint filed under section 12-139. Provided that the director will not issue a charge based upon facts or grounds not alleged in the complaint unless the record of the investigation shows that the respondent has been given notice and an opportunity to respond to the allegation.

(4) May be amended once as a matter of right prior to the filing of a civil action under section 12-143(c), or pursuant to rules and regulations adopted for administrative enforcement under section 12-143(a) if an election has not been made pursuant to section 12-143(c); provided that the charge shall not be amended based upon facts or grounds not alleged in the complaint unless the record of the investigation shows that the respondent has been given notice and an opportunity to respond to the allegation, and further provided that the director may reopen the investigation under section 12-139 to give the respondent an opportunity to respond to the allegation.

(d) Together with the service of the charge, the director shall provide the aggrieved person and the respondent the following:

(1) Information as to how to make an election under section 12-143(c), and the effect of such an election;

(2) A notice of an opportunity for a hearing under section 12-143(a) at a time and place specified in the notice unless that election is made.

(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 97-183, § 3, 11-18-97)

Sec. 12-143. Administrative and judicial enforcement.

(a) If an election is not made under subsection (c), with respect to a charge filed under section 12-142, the director shall provide for an opportunity for a hearing on the record with respect to said charge. The director shall delegate the conduct of the hearing to the complaint review committee of the human rights commission. The hearing shall be conducted after proper notice to the parties under rules and procedures issued by the director.

(b) With respect to a hearing under this section:

(1) *Rights of parties.* At a hearing under this section each party may appear in person, be represented by counsel, present evidence, cross examine witnesses, and obtain the issuance of subpoenas under section 12-140(c). Any aggrieved person may intervene as a party in the proceeding. The department shall be considered a party in the proceeding without the need to intervene and shall maintain the proceeding on behalf of the aggrieved person.

(2) The director shall have the authority to promulgate rules and regulations providing for expedited discovery.

(3) The complaint review committee shall have the authority to conduct hearings under this section, issue subpoenas under section 12-140(c), conciliate all matters in controversy and enter into binding conciliation agreements, make final findings of fact and conclusions of law, and enter all orders necessary to the conduct of hearings held under this section.

(4) If the complaint review committee finds that a respondent has engaged or is about to engage in a discriminatory housing practice, the complaint review committee shall promptly issue an order for such relief as may be appropriate, which may include actual damages suffered by the aggrieved person and injunctive or other equitable relief and a reasonable attorney's fee to an aggrieved person intervening in the proceeding pursuant to section 12-143(b)(1). Such order may, to vindicate the public interest, assess a civil penalty payable to the City of Greensboro:

a. In an amount not exceeding ten thousand dollars ($10,000.00) if the respondent has not been adjudged to have committed any prior discriminatory housing practice;

b. In an amount not exceeding twenty-five thousand dollars ($25,000.00) if the respondent has been adjudged to have committed one other discriminatory housing practice during the five-year period ending on the date of the filing of this charge; and

c. In an amount not exceeding fifty thousand dollars ($50,000.00) if the respondent has been adjudged to have committed two (2) or more discriminatory housing practices during the seven-year period ending on the date of the filing of this charge;

Except that if the acts constituting the discriminatory housing practice that is the object of the charge are committed by the same natural person who has been previously adjudged to have committed acts constituting a discriminatory housing practice then the civil penalties set forth in subparagraphs b. and c. may be

imposed without regard to the period of time within any subsequent discriminatory housing practice occurred; and except that no such order shall affect any contract, sale, encumbrance, or lease consummated before the issuance of such order and involving a bona fide purchaser, encumbrancer, or tenant without actual notice of the charge filed under this division.

(5) The complaint review committee shall commence the hearing under this section no later than one hundred twenty (120) days following the issuance of the charge, unless it is impracticable to do so. If the committee is unable to commence the hearing within one hundred twenty (120) days after the issuance of the charge, the committee shall notify the director, the aggrieved person on whose behalf the charge was filed, and the respondent, in writing of the reasons for not doing so.

(6) The complaint review committee shall make findings of fact and conclusions of law within sixty (60) days after the end of the hearing under this section, unless it is impracticable to do so. If the committee is unable to make findings of fact and conclusions of law within such period, or any succeeding sixty-day period thereafter, the committee shall notify the director, the aggrieved person on whose behalf the charge was filed, and the respondent, in writing of the reasons for not doing so.

(7) The director shall have the authority to review any finding, conclusion, or order issued under this section not later than thirty (30) days after the finding, conclusion, or order is issued, otherwise the finding, conclusion, or order becomes final.

(8) The director shall cause any findings of fact and conclusion of law made with respect to any final orders for relief under this section, together with a copy of such order, to be served upon each aggrieved person and each respondent in the proceeding.

(9) The department shall make final administrative disposition of a complaint filed under section 12-139(a) within one (1) year of the date of filing of the complaint, unless it is impracticable to do so, in which case the director shall notify the complainant and respondent in writing of the reasons for not doing so.

(c) If a charge is issued, an aggrieved person or respondent may elect to file a civil action in the general court of justice. The election must be made not later than twenty (20) days after the receipt of service of the charge. The person making the election shall give notice to the director and all other complainants and respondents to whom the charge relates. The notification will be filed and served in accordance with the procedures established by the department. If a timely election is made for a civil action in lieu of the administrative hearing, the city shall commence and maintain the civil action seeking relief on behalf of the aggrieved person. If a timely election is not made in accordance with this division, the department shall provide an opportunity for an administrative hearing based on the charge.

(d) Venue for an action filed in the general court of justice is in the county in which the alleged discriminatory housing practice occurred.

(e) In an action brought in the general court of justice for violation of this division, the court may grant any relief, as it deems appropriate, including but not limited to the following:

(1) Award actual and punitive damages;

(2) Reasonable attorney's fees;

(3) Court costs;

(4) Award preventive relief, including a permanent or temporary injunction, restraining order, or other order against the person responsible for a violation of this division as necessary to assure the full enjoyment of the rights granted by this division;

(5) Punitive damages may be awarded.

(6) Civil actions brought in the general court of justice are for trial de novo. The

parties to the action shall have the right to trial by jury as provided for by North Carolina Rules of Civil Procedure.

(7) The above provisions do not preclude the issuance of a criminal summons in lieu of or in addition to a civil penalty. Each violation of any provision of this division shall constitute a misdemeanor, punishable by a fine of not more than three hundred dollars ($300.00) or imprisonment of not more than thirty (30) days.

(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 92-116, § 9, 9-3-92; Ord. No. 97-183, § 4, 11-18-97; Ord. No. 20-131, 10-6-20)

Sec. 12-144. Judicial review and court enforcement of final decision.

(a) *Judicial review.*

(1) Any party aggrieved by a final order for relief under this division granting or denying in whole or in part the relief sought may obtain a review of such order under N.C.G.S. 150B-43 through N.C.G.S. 150B-52.

(2) Notwithstanding such chapter, venue of the proceeding shall be in the county in which the discriminatory housing practice is alleged to have occurred, and filing of the petition for review shall be not later than thirty (30) days after the order is entered.

(b) *Court enforcement of administrative order upon petition by director.*

(1) The director may petition any superior court for the county in which the discriminatory housing practice is alleged to have occurred or in which any respondent resides or transacts business for the enforcement of the order of the complaint review committee and for appropriate temporary relief or restraining order, by filing in such court a written petition praying that such order be enforced and for appropriate temporary relief or restraining order.

(2) The director shall file in court with the petition the record in the proceeding. A copy of such petition shall be forthwith transmitted by the director to the parties to the proceeding before the complaint review committee.

(c) *Relief which may be granted.* Upon the filing of a petition under this section, the court may:

(1) Grant to the petitioner, or any other party, such temporary relief, restraining order, or other order as the court deems just and proper;

(2) Affirm, modify, or set aside, in whole or in part, the order, or remand the order for further proceedings; and

(3) Enforce such order to the extent that such order is affirmed or modified.

(d) Any party to the proceeding before the complaint review committee may intervene in the superior court.

(e) No objection not made before the complaint review committee shall be considered by the court, unless the failure or neglect to urge such objection is excused because of extraordinary circumstances.

(Ord. No. 91-133, § 9, 10-31-91)

Sec. 12-145. Civil action.

Any aggrieved person may file a civil action in court not later than two (2) years after the occurrence or the termination of an alleged discriminatory housing practice, or the breach of a conciliation agreement entered into under this division, whichever occurs last, to obtain appropriate relief as set forth in section 12-143(e) of this division.

(Ord. No. 91-133, § 9, 10-31-91; Ord. No. 92-116, § 10, 9-3-92)

Sec. 12-146. Records; confidentiality.

(a) Every person subject to this article shall make, keep, and preserve records relevant to the determination of whether discriminatory practices have been or are being committed, such records being maintained and preserved in a manner and to the extent required under the Civil Rights Act of 1968 as amended, and any regulations

promulgated thereunder. Nothing in this article shall be interpreted to require the making, keeping, and preserving of records other than and except as required under the Federal Act of 1968, 42 U.S.C.A. § 3601 et seq., and any regulations promulgated thereunder.

(b) In connection with a complaint filed under this division, the committee or director or his/her/their designee, shall have access at any reasonable time to premises, records and documents relevant to the complaint, and the right to examine, photograph, and copy evidence in compliance with the North Carolina Rules of Civil Procedure.

(c) Neither a complaint filed pursuant to this division, nor the results of the committee's investigations, discovery, or attempts at conciliation, in whatever form prepared and preserved, shall be subject to inspection, examination, or copying under Chapter 132 of the General Statutes of North Carolina. Each conciliation agreement shall be public record unless the aggrieved person and respondent otherwise agree and either the department or committee determine that disclosure is not required to further the purposes of this division.

(d) The provisions of Article 33C of Chapter 143 of the General Statutes of North Carolina shall not be applicable to the activities of the committee to the extent that it is receiving a complaint or conducting an investigation, discovery, or conciliation pertaining to a complaint filed pursuant to this division. Administrative hearings pursuant to this division shall not be private, but shall be public.

(e) Nothing that is said or done in the course of conciliation under this division may be made public or used as evidence in subsequent hearings under this division without the written consent of the persons concerned.
(Ord. No. 91-133, § 9, 10-31-91)

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Chapter 13

LICENSES, TAXATION, BUSINESS PERMITS AND MISCELLANEOUS BUSINESS REGULATIONS*

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*__Editor's note—__Ord. No. 15-073, § 1(Exh. A), adopted June 16, 2015, changed the title of Ch. 13 from "Licenses, taxation, business permits and miscellaneous business regulations" to "Licenses, taxation, business permits and miscellaneous business regulations."

__Cross references—__Alcoholic beverages, Ch. 4; cable television, Ch. 7; bicycle registration, § 16-241 et seq.; electricians, § 6-136 et seq.; mechanical contractors, etc., § 6-241 et seq.; plumbers, § 6-276 et seq.; massage parlors, health salons, etc., Ch. 14; railroads, Ch. 23; street shows, exhibitions, etc., § 26-196 et seq.; taxicabs and buses, Ch. 28.

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ARTICLE I. IN GENERAL

Sec. 13-1. Reserved.

Sec. 13-2. Notice of quitting business.

If any wholesale or retail merchant, as defined in G.S. §§ 105-164.3(14) and (23), shall sell out his/her/their business or stock of goods or fixtures or shall quit business for any reason whatsoever, he/she/they shall notify the city manager or his/her/their designee of that fact within forty-eight (48) hours immediately prior to the date he/she/they sells out his/her/their business or stock of goods or fixtures, or quits business.
(Code 1961, § 11-106; Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-3. General duties of keepers of place of amusement.

(a) In this section "business place of amusement" means an establishment open to the public for the purpose of playing games of chance or skill for which some fee, direct or indirect, is charged, including but not limited to pool, billiards, bowling alleys and other similar types of amusements.

(b) No operator or employee of a business place of amusement shall:

(1) Suffer or permit any dice to be thrown for money or for anything of value, or suffer or permit any cards, illegal raffle or other game of chance or any form of gambling in a place or in any booth, yard, garden or other place appertaining to the place or connected therewith.

(2) Suffer or permit the premises to repeatedly become disorderly.

(3) Permit any controlled substance as defined under the North Carolina Controlled Substances Act to be illegally possessed, sold or consumed on the premises.

(4) Suffer or permit any keeley board or any other board or device to be attached to any pool or billiard table operated within the corporate limits of the city.

(5) Violate any provision of chapter 30 with respect to permitted and prohibited uses.

(6) Violate any significant provisions of the building code or fire prevention code affecting public safety.

(c) The acts and conduct of the agents and employees in the conduct of a business place of amusement shall be deemed the acts and conduct of the business.
(Code 1961, §§ 15-1—15-4; Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Cross references—Building code, § 6-21 et seq.; fire prevention code, § 10-21 et seq.

Sec. 13-4. Reserved.

Editor's note—Ord. No. 14-086, § 4, adopted June 17, 2014, repealed § 13-4 in its entirety. Former § 13-4 pertained to contractor's bond and derived from the Code of 1961, § 11-10; Ord. No. 05-191, § 1, adopted Sept. 20, 2005.

Sec. 13-5. Auto races and similar amusements.

Every person operating any ground track or place over which automobiles, midget automobiles, go-carts or motorcycles are driven and operated on such track, ground, or place shall be equipped with an effective noise-suppressing device.
(Code 1961, § 11-111; Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-6. Lighting of drive-in restaurants, curb service, etc.

It shall be unlawful to operate or engage in the business of a drive-in restaurant, grill, or other place where food or beverages are sold or delivered by "curb service," or otherwise sold or delivered, to patrons in automobiles or other vehicles parked on the premises unless the parking area is adequately lighted during all hours when such business is being operated. The term "adequately lighted" as used in this section shall be construed to require two (2) footcandles of light at a height of five (5) feet from the ground in every portion of the parking area. This section shall not apply to drive-in movies or theaters.
(Code 1961, § 11-101)

Sec. 13-7. Junk dealers.

(a) Every junk dealer shall keep a book in which he shall keep an accurate record showing the nature and amount of all junk purchased by him/her/them, the date of purchase and the name of the seller. Such book shall be subject, at all reasonable times, to inspection by the chief of police or by any other proper officer of the city.

(b) Every junk dealer shall each day, (Sundays and holidays excepted) file with the chief of police a complete report showing each and every article purchased or otherwise acquired by him/her/them during the preceding day's business, such report to include the name, sex, color, and address of the person from whom such article was acquired, a description sufficient to identify each article, and the hour and date of receiving the same; provided, however, that such report shall be required only with respect to articles of the following nature: Automobile parts or accessories, hardware, tools, plumbing fixtures, supplies, materials or portions thereof, and electrical fixtures, appurtenances, wires or materials.
(Code 1961, § 11-102; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Administrative search and inspection warrants, G.S. § 15-27.2.

Sec. 13-8. Pawnbrokers.

(a) Every pawnbroker shall keep a book in which he/she/they shall keep an accurate record of every article deposited with him/her/them or received by him/her/them as security, the name and address of the owner, a description of the article sufficient for identification, and the amount advanced or loaned thereon. Such book shall be subject at all reasonable times to inspection by the chief of police or by any other proper officer of the city.

(b) Every pawnbroker shall also file each day (Sundays and holidays excepted) with the chief of police a complete report setting forth each and every article deposited with or received by him/her/them during the preceding day's business; the name, sex, color and address of the owner of each article, a description sufficient to identify each article, the hour and date of receipt thereof, the amount advanced thereon, and the number of the pawn ticket issued to the owner.
(Code 1961, § 11-104; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Administrative search and inspection warrants, G.S. § 15-27.2.

Sec. 13-9. Reserved.

Editor's note—Ord. No. 18-100, § 1, adopted July 24, 2018, repealed § 13-9, which pertained to peanut and popcorn stands and roasters. See Code Comparative Table for complete derivation.

Sec. 13-10. Display of notice concerning coin-operated machine or device.

Every coin-operated machine, equipment or device placed at any location shall have affixed thereto in a conspicuous place identification showing the name and address of the local owner, operator, distributor or other person in charge of such coin-operated machine, equipment or device.
(Code 1961, § 11-108)

Sec. 13-11. Hotels, motels, boardinghouses, roominghouses, tourist homes and tourist courts.

(a) Every person engaged in the business of operating any hotel, motel, boardinghouse, roominghouse, tourist home, tourist court or similar place advertising in any manner for transient patronage, shall at all times keep and maintain therein a guest register in which shall be inscribed the true name and home address of each person renting said room or unit, as well as such person's vehicle description and license plate information. Such register shall be signed by the person renting said room or unit or someone signing by his/her/their authority.

The proprietor of such business shall write opposite such name so registered, the number of each room or unit assigned to and occupied by such guest, together with the date when such room or unit is rented. No person shall be

allowed to occupy any room or unit in said establishment until all of the aforementioned entries have been made in such register.

The register required by this chapter shall be maintained by the proprietor of said business for one (1) year of the date of rental, and subject to inspection at any reasonable time by the city tax collector.

(b) The guest vehicle parking area of any business permitted under this section shall be accessible at all times to any public safety officer in the performance of his/her/their duties.

(c) Penalty. Any violation of this section shall be a misdemeanor, punishable by imprisonment up to thirty (30) days, or a fine of up to one hundred dollars ($100.00), in the discretion of the court.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 17-10, § 1, 1-17-17; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-12. Outdoor advertising.

(a) Every person maintaining signboards, poster boards, printed bulletins, or other outdoor advertisements of any nature shall have imprinted on the same the name of such person, firm, or corporation in sufficient size to be plainly visible and permanently affixed thereto.

(b) The following signs and announcements are exempted from the provisions of this section:

(1) Signs upon property advertising the business conducted thereon.

(2) Notices or advertisements erected by public authority or required by law in any legal proceedings.

(3) Any sign containing sixty (60) square feet or less bearing an announcement of the city advertising itself; provided, the same is maintained at public expense.

(Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-13. Specialty market operator.

(a) *[Specialty market operator.]* Specialty market operator shall mean any person using a location for the purpose of promoting the display or sale of merchandise, wares or other tangible items in connection with a specialty market as defined in G.S. § 105-53.

(b) *Possession of identification.* Upon the request of any customer, state and/or local revenue or law enforcement agent, a specialty market operator shall provide its name and permanent address. If the specialty market operator is not a corporation, he/she/they shall, upon the request of any customer, state and/or local revenue or law enforcement officer or agent, provide a valid drivers license, a special identification card issued under G.S. § 20-37.7, military identification, or a passport bearing a physical description of the person named reasonably describing the specialty market operator. If the specialty market operator is a corporation, it shall, upon the request of any customer, state and/or local revenue or law enforcement officer or agent, give name and registered agent of the corporation and the address of the registered office of the corporation as filed with the North Carolina Secretary of State.

(c) *Specialty market registration list.* A specialty market operator shall maintain a daily registration list of all vendors selling or offering goods for sale at the specialty market. This registration list shall clearly and legibly show each vendor's name and permanent address. Each daily registration list maintained pursuant to this section shall be retained by the specialty market operator for no less than two (2) years and shall, at any time, be made available upon request to any state or local revenue or law enforcement officer or agent.

(d) *Penalty.* It shall be a misdemeanor, punishable by imprisonment of up to thirty (30) days, a fine of up to two hundred dollars ($200.00) or both for a person to:

(1) Knowingly give false information in the application process for a permit or when registering pursuant to subsection (c);

(2) Fail to provide name, address or identification upon request as required by this section, or provide false information in response to such a request.

(e) *Additional penalties.* It shall be a misdemeanor, punishable by imprisonment of up to thirty (30) days, a fine of up to one thousand dollars ($1,000.00) or both for a specialty market operator to fail to comply with subsection (c).
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-14. Specialty market vendor.

(a) A specialty market vendor is a person who transports an inventory of goods to a specialty market and who, at that location displays the goods for sale and sells the goods or offers the goods for sale.

(b) Upon the request of any customer, state or local revenue or law enforcement agent, a specialty market vendor shall provide its name and permanent address. If the vendor is not a corporation, he/she/they shall, upon the request of any customer, state or local revenue or law enforcement agent, provide a valid drivers license, a special identification card issued under G.S. § 20-37.7, military identification, or a passport bearing a physical description of the person named reasonably describing the specialty market vendor. If the vendor is a corporation, it shall, upon the request of any customer, state or local revenue or law enforcement agent, give the name and registered agent of the corporation and the address of the registered office of the corporation, as filed with the North Carolina Secretary of State.

(c) It shall be a misdemeanor punishable by imprisonment up to thirty (30) days, a fine of up to two hundred dollars ($200.00) or both for a person to:

(1) Knowingly give false information in the application process when providing information to a specialty market operator.

(2) Fail to provide name, address, or identification upon request as required by this section, or provide information in response to such request.

(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Secs. 13-15—13-30. Reserved.

ARTICLE II. PRIVILEGE LICENSES FOR SELECT BUSINESSES: BEER, WINE, AND TAXICABS, AND MOTOR VEHICLES MUNICIPAL VEHICLE TAX*

DIVISION 1. GENERALLY

Sec. 13-31. Application of article.

The privilege licenses issued under this article shall apply to persons engaged in the business of selling at retail within the corporate limits of the city malt beverages, including beer, as defined in G.S. § 105-113.68, engaged in the business of dealing in or selling at wholesale beer, lager beer, ale, porter, and other brewed or fermented beverages, unfortified wines or fortified wines, or engaged in the business of keeping or operating taxicabs for hire that is operating or carrying on the businesses which are physically located within the Greensboro city limits.
(Code 1961, § 11-1; Ord. No. 04-84, § 2, 6-15-04; Ord. No. 14-086, § 5, 6-17-14; Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-32. Obtaining license and paying fee required.

Except as allowed by this article, and within the period herein limited, no person shall engage in any business upon which a license tax is imposed by this article without having first paid the proper fee and obtained a license therefor.
(Code 1961, § 11-1)

Sec. 13-33. Reserved.

Editor's note—Ord. No. 15-073, § 1(Exh. A), adopted June 16, 2015, repealed § 13-33 in its entirety. Former § 13-33 pertained to businesses at Greensboro Coliseum and derived from the Code of 1961, § 11-1.

Sec. 13-34. Due dates.

The taxes levied by this article for taxicabs are levied as of July 1 for each fiscal year. On any business which immediately prior to July 1 has

*__Editor's note—__**Editor's note—**Ord. No. 18-100, § 2, adopted July 24, 2018, amended Article II title to read as herein set out. Formerly, such article pertained to privilege licenses.

Charter reference—Authority to license, tax, etc., § 5.41.

been operating under a duly issued license, the license tax shall be due and payable on or before July 1.

The license tax for taxicabs shall be due and payable immediately before such business is begun for any business which is begun on or after July 1.

Beer and wine privilege licenses are levied as of May 1 of each fiscal year. On any business which immediately prior to May 1 has been operating under a duly issued license, the license tax shall be due and payable on or before May 1.

The beer and wine license tax shall be due and payable immediately before such business sells beer or wine for any business which is begun on or after May 1.
(Code 1961, § 11-2; Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-35. Separate businesses.

The payment of any particular license tax imposed by this article shall not relieve the person paying the same for the payment of any other license tax imposed by this article for any other business he/she/they may carry on, unless so provided by the section imposing such tax, it being intended that license taxes prescribed by various sections or subsections of this article applicable to any business shall be cumulative except where otherwise specifically provided. Every person doing business in more than one (1) factory, mill, warehouse, store, stall or stand, or other place of business, shall secure a separate license for each such place of business, unless such places of business are contiguous to each other, communicate directly with and open into each other, and are operated as a unit, and shall pay the prescribed license fee for each such place of business.
(Code 1961, § 11-3; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-36. Applications.

(a) Every application for a license under this article shall be made in writing to the city manager or his/her/their designee upon a form to be provided by the city manager or his/her/their designee. Such application shall be signed either by the applicant or by his/her/their agent, and shall contain the following information:

(1) Complete and exact name under which the business is proposed to be operated.

(2) If the business is proposed to be operated by an individual under any assumed name, the name of such individual and his/her/their address.

(3) If the business is a partnership, the name and address of each partner.

(4) If the business is a corporation, the name and address of the president and of the secretary of the corporation, and the location of the principal office.

(5) Nature of the business for which license is desired.

(6) Proposed location.

(b) In addition, the applicant shall furnish to the city manager or his/her/their designee any other information required by the city manager or his/her/their designee in order to enable him/her/them to determine the proper classification of the applicant and the appropriate license tax.
(Code 1961, § 11-5; Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-37. Term of licenses; refunds.

(a) *Term of license for a taxicab.* A license issued to a new business shall be effective on the day it begins operating and shall expire on June 30 of the city's fiscal year. A business license issued for each subsequent fiscal year shall be effective July 1 and shall expire on June 30 of the city's fiscal year.

Term of beer and wine license. A license to a new business shall be effective on the day it begins operating and shall expire on April 30 of each year. A business license issued for each subsequent year shall be effective May 1 and shall expire on April 30 of each year.

(b) *Tax not abated; no refund.* No license tax shall be abated, nor shall a refund of any part thereof be made, in any case where the licensee

discontinues his/her/their business before the end of the period for which the license was issued.
(Code 1961, § 11-4; Ord. No. 09-73, § 1, 4-21-09; Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Editor's note—Ord. No. 15-073, § 1(Exh. A), adopted June 16, 2015, changed the title of § 13-37 from "Term of licenses; prorations and refunds" to "Term of licenses; refunds." This historical notation has been preserved for reference purposes.

Secs. 13-38—13-42. Reserved.

Editor's note—Ord. No. 15-075, § 1(Exh. A), adopted June 16, 2015, repealed §§ 13-38—13-42 in their entirety. Former §§ 13-38—13-43 pertained to information required where license tax is graduated; determination of license tax based upon number of employees; determination of license tax based upon sales or receipts; final report of sales or receipts; payment of additional tax; final report of franchise holders, respectively, and derived from the Code of 1961, §§ 11-6—11-10.

Sec. 13-43. Procedure if other approval or permit required.

In any case where other approval or permit is required of any licensee, the city manager or his/her/their designee shall not issue a license until such approval or permit has been presented to the city manager or his/her/their designee.
(Code 1961, § 11-11; Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-44. Contents of license; official copies of same.

Every license shall show the name of the licensee, the nature of the business, the location thereof (if it is to be operated at a fixed place), and the time for which issued. The city manager or his/her/their designee shall keep a record of every license issued.
(Code 1961, § 11-12; Ord. No. 94-8, § 1, 2-21-94; Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-45. Display of license.

Every license must be kept prominently displayed at the place of business of the licensee named in the license, or, if the license has not a fixed place of business, such licensee must keep the same displayed on his/her/their chest, hanging from a lanyard or clipped to their garment, so that the name, type of license and date of expiration is visible wherever such business is being operated and where it can be inspected at any time by any proper city official.
(Code 1961, § 11-1; Ord. No. 10-136, § 1, 9-7-10; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-46. Assignments and transfers.

Every license issued under the provisions of this article shall be a personal privilege and shall not be assignable.
(Code 1961, § 11-14; Ord. No. 90-55, § 1, 4-12-90; Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-47. Change in location of business.

Every license issued under the provisions of this article shall be a personal privilege and shall not be assignable.
(Code 1961, § 11-15; Ord. No. 90-55, § 1, 4-12-90; Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-48. Refusal or revocation of licenses generally.

(a) If it shall be made to appear to the city manager or his/her/their designee and the city manager or his/her/their designee shall determine that any licensee or applicant for a license is conducting or desires to conduct a business activity pursuant to his/her/their privilege license which activity is prohibited or unlawful under the state law or would be in violation of any provision of chapter 30 with respect to permitted and prohibited uses or any significant provisions of the building regulations affecting public safety, he/she/they shall:

(1) Refuse to issue a license to such applicant and so notify him/her/them in writing; or

(2) In the case of a licensee, notify such licensee in writing that the license is revoked with a statement of the facts which provide a basis therefor.

(b) Thereafter, in the event of a zoning use violation, the person shall have seven (7) days in which to file an appeal with the planning department and request a hearing before the board of

adjustment. Upon appeal, the board of adjustment shall hold a hearing on the appeal and make a final determination thereof with respect to the zoning use. If the zoning use of the applicant or licensee is found to be in violation of chapter 30, the refusal or revocation shall be upheld.

(c) In the event of any reason other than a zoning use violation, the person shall have seven (7) days in which to file an appeal with the city manager or his designee and request a hearing before the board of adjustment. Upon appeal, the board of adjustment shall hold a hearing on the appeal and make a final determination thereof with respect to the application for a license or the revocation thereof.

(d) In the case of a licensee, the filing of a timely appeal shall stay the revocation pending hearing and final determination by the board of adjustment.

(Code 1961, § 11-16; Ord. No. 97-46, § 1, 4-15-97; Ord. No. 14-44, § 1, 4-1-14; Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-49. Exemptions.

(a) The following businesses are exempt from the requirements of this article as indicated below:

(1) Any not-for-profit business operated for a religious, educational, civic, patriotic, charitable, or fraternal purpose, if the entire gross income of the business is used for religious, educational, civic, patriotic, charitable, or fraternal purpose, is exempt from the requirements of this article unless they conduct sales to the general public, or unless this business includes group homes, day cares or other type of care facilities.

(2) All not-for-profit religious, educational, civic, patriotic, charitable, or fraternal organizations who conduct sales to the general public are exempt from payment of a privilege license tax if the proceeds from this organization's sales are used exclusively for nonprofit purposes. No income shall be provided to any individual conducting these sales and no reimbursement shall be provided other than the cost of the merchandise sold and the actual cost to prepare and market these goods. Persons vending under this article shall file with the city manager or his/her/their designee a letter from the religious, educational, civic, patriotic, charitable, or fraternal organization stating:

a. The name and address of the organization.

b. A list of its principal officers.

c. A brief statement of the religious, educational, civic, patriotic, charitable, or fraternal purpose for which the proceeds shall be used.

d. The names, addresses, locations of the vendors and the dates during which they will vend.

e. A statement of the estimated percentage of proceeds that shall be applied to those purposes after deducting the cost of the merchandise sold and the actual cost to prepare these goods. A statement that no income shall be provided to any individual conducting these sales.

Such vendors shall comply with all provisions of this article but shall not be assessed a privilege license tax.

(3) Any not-for-profit business that operates group homes, day cares or other types of care facilities for a nonprofit religious, educational, civic, patriotic, charitable, or fraternal purpose, is exempt from payment of a privilege license tax, if the entire gross income of the business is used exclusively for nonprofit purposes.

Such businesses shall comply with all provisions of this article but shall not be assessed a privilege license tax.

(b) Every person engaging in any business which is exempt from the payment of license taxes by this section shall secure from the city manager or his/her/their designee a license to

engage in such business, which license shall show upon its face that the licensee is exempt from the payment of a license tax. Nothing in this section shall be construed to exempt the promoter of a project sponsored by a religious, educational, civic, patriotic, charitable, or fraternal organization from the payment of all applicable privilege license taxes, and it shall be unlawful for any person to solicit funds or any kind of property by selling tickets, advertising, or any kind of property or by a direct solicitation upon the representation that the proceeds of such solicitation are for a religious, educational, civic, patriotic, charitable, or fraternal purpose unless the solicitation is duly qualified for a privilege license tax exemption by this section. "Gross income," as used in this section, means gross receipts after the deduction of all applicable federal, state, and local admission taxes.
(Code 1961, § 11-17; Ord. No. 11-77, § 1, 5-3-11; Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-50. Delinquent license tax and penalty.

Each license tax prescribed by this article shall be increased five (5) percent for each month or fraction thereof during which such license tax remains unpaid after it becomes due and payable. The minimum penalty charge shall be five dollars ($5.00) and the maximum shall not exceed twenty-five (25) percent. Upon discovering any business which has been operating within the city without a privilege license as required by this article, the city manager or his/her/their designee is hereby authorized to assess and collect the delinquent privilege license taxes plus penalties due for each taxable year that the same has remained unpaid, not exceeding three (3) years including the current year for which said license tax may be required.
(Code 1961, § 11-18; Ord. No. 90-55, § 2, 4-12-90; Ord. No. 00-217, § 1, 12-5-00; Ord. No. 09-73, § 3, 4-21-09; Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Secs. 13-51—13-65. Reserved.

Editor's note—Ord. No. 14-086, § 6, adopted June 17, 2014, repealed § 13-53 in its entirety, which pertained to forfeiture of bond upon revocation of license and derived from the Code of 1961, § 11-21.
Subsequently, Ord. No. 15-073, § 1(Exh. A), adopted June 6, 2015, repealed §§ 13-51 and 13-52 in their entirety. Former §§ 13-51 and 13-52 pertained to investigative powers of tax collector; and information obtained by tax collector confidential and derived from the Code of 1961, §§ 11-19 and 11-20.

DIVISION 2. LICENSE FOR SPECIFIC BUSINESSES*

Sec. 13-66. Alcoholic beverages—Retail.

(a) Every person engaged in the business of selling at retail within the corporate limits of the city malt beverages, including beer, as defined in North Carolina General Statutes Section 105-113.68 shall pay a license tax of:

(1)	On-premises, per annum . . .	$ 15.00
(2)	Off-premises, per annum . . .	5.00

(b) Every person engaged in the business of selling at retail within the corporate limits of the city unfortified wine, as defined in North Carolina General Statutes Section 105-113.68 shall pay a license tax of:

(1)	On-premises, per annum . . .	$ 15.00
(2)	Off-premises, per annum . . .	10.00

(c) The privilege license tax for retailers of fortified wines shall be the same as for retailers of unfortified wines; retailers of both unfortified and fortified wine shall pay only the license tax rate applicable to unfortified wine.

(d) The rate of license tax levied under this section shall be for the first license issued to one (1) person; for each additional license issued to one (1) person an additional tax of ten (10) percent of the base tax shall be levied, such increase to apply progressively for each additional license issued to one (1) person.

*__Editor's note—__Ord. No. 15-073, § 1(Exh. A), adopted June 16, 2015, amended Div. 2 in its entirety to read as set out herein. Former Div. 2, §§ 13-66—13-120, pertained to similar subject matter. See the Code Comparative Table for complete derivation.

(e) Every person engaged in the business of selling malt beverages and/or unfortified wine must provide proof of ABC permit issued by the NC ABC Commission prior to issuance of a beer and/or wine privilege license.

(Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Cross reference—Alcoholic beverages, Ch. 4.

State law reference—City retail alcoholic beverage license, G.S. § 105-113.77.

Sec. 13-67. Same—Wholesalers.

Every person engaged in the business of dealing in or selling at wholesale beer, lager beer, ale, porter, and other brewed or fermented beverages, unfortified wines or fortified wines, with a place of business located within the corporate limits of the city, shall pay the following tax:

(1)	Beer, lager beer, ale, porter, per annum	$ 37.50
(2)	Fortified wines, unfortified wines, per annum	37.50
(3)	License to sell at wholesale all of the above-mentioned beverages or any of them, per annum	62.50

Every person engaged in the business of dealing in or selling at wholesale beer, lager beer, ale, porter, and other brewed or fermented beverages, unfortified wines or fortified wines must provide proof of ABC permit issued by the NC ABC Commission prior to issuance of a beer and/or wine privilege license.

(Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Cross reference—Alcoholic beverages, Ch. 4.

State law reference—City wholesale alcoholic beverage license, G.S. § 105-113.79.

Secs. 13-67.5—13-98. Reserved.

Editor's note—Ord. No. 15-073, § 1(Exh. A), adopted June 16, 2015, effective July 1, 2015, repealed §§ 13-67.5—13-99 (G.S. § 160A-211).

Sec. 13-99. Motor vehicles.

(a) Each licensed self-propelled motor vehicle that is subject to the property tax of the city under G.S. ch. 105 shall be subject to an annual municipal vehicle tax of thirty dollars ($30.00). This tax shall be levied at the same time and collected and accounted for in the same manner as the property tax on registered motor vehicles collected by the State of North Carolina under the Tag and Tax Together program.

(b) The city shall have all duties and exercise all power for the tax imposed herein as for the property tax except as delegated, in part or in whole, to Guilford County.

(Ord. No. 15-0128, § 1, 10-20-15; eff. 7-1-15; Ord. No. 16-063, § 1, 6-7-16)

Secs. 13-100—13-112. Reserved.

Editor's note—Ord. No. 15-073, § 1(Exh. A), adopted June 16, 2015, effective July 1, 2015, repealed §§ 13-100—13-112 (G.S. § 160A-211).

Sec. 13-113. Taxicabs.

(a) Every person engaged in the business of keeping or operating taxicabs for hire shall pay an annual license tax for each taxicab of fifteen dollars ($15.00).

(b) For each taxicab on which the license tax herein provided is paid the city manager or his/her/their designee shall issue to the owner an appropriate number plate or sticker, which shall not be transferable. Upon satisfactory evidence that the motor vehicle for which a number plate or sticker was issued has been sold, and the number plate or sticker removed therefrom, or that the number plate or sticker has been lost or destroyed, the city manager or his/her/their designee shall issue a duplicate thereof. The number plate or sticker shall be displayed on the taxicab so as to be visible at all times.

(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Cross reference—Taxicabs, § 28-16 et seq.

State law reference—Limitations on above license, G.S. §§ 20-97, 160A-213.

Secs. 13-114—13-135. Reserved.

ARTICLE III. RESERVED*

Secs. 13-136—13-155. Reserved.

*__Editor's note—__Ord. No. 15-073, § 1(Exh. A), adopted June 16, 2015, repealed Art. III in its entirety. Former Art. III, §§ 13-136—13-140, pertained to yard sales and derived from the Code of 1961, §§ 23-6(x) and 23-33.1.

ARTICLE IV. RESERVED*

Secs. 13-156—13-180. Reserved.

ARTICLE V. BUSINESS PERMITS FOR COMMERCIAL SOLICITING, PEDDLING, ITINERANT MERCHANTS, MOBILE FOOD VENDING, AND MASSAGE†

DIVISION 1. GENERALLY

Sec. 13-181. Application of this article.

The business permit issued under this article shall apply to persons operating or carrying on the business of commercial soliciting, peddling, itinerant merchants, mobile food vendors, and massage and bodywork therapy which are physically located within the Greensboro city limits.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 18-100, § 3, 7-24-18; Ord. No. 18-101, § 3, 7-24-18)

Sec. 13-182. Obtaining business permit.

No person shall engage in any business upon which a business permit is imposed by this article without having first obtained a permit.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-183. Due dates.

The business permit required by this article is issued as of July 1 for each fiscal year. On any business which immediately prior to July 1 has been operating under a duly issued business permit, the permit shall be renewed on or before July 1.

The business permit shall be obtained immediately before such business has begun any business activity.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-184. Separate businesses.

The business permit imposed by this article shall not relieve the person for obtaining any other business permit imposed by this article for any other business he/she/they may carry on. Every person doing business in more than one (1) location shall secure a separate permit for each such place of business, unless such places of business are contiguous to each other, communicate directly with and open into each other, and are operated as a unit.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-185. Applications.

(a) Every application for a business permit under this article shall be made in writing to the city manager or his/her/their designee upon a form to be provided by the city manager or his/her/their designee. Such application shall be signed either by the applicant or by his/her/their agent, and shall contain the following information:

(1) Complete and exact name under which the business is proposed to be operated.

(2) If the business is proposed to be operated by an individual under any assumed name, the name of such individual and his address.

(3) If the business is a partnership, the name and address of each partner.

(4) If the business is a corporation, the name and address of the president and of the secretary of the corporation, and the location of the principal office.

(5) Nature of the business for which permit is desired.

(6) Proposed location.

(b) In addition, the applicant shall furnish to the city manager or his/her/their designee any other information required by the city manager

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*__Editor's note—__Ord. No. 15-073, § 1(Exh. A), adopted June 16, 2015, repealed Art. IV in its entirety. Former Art. IV, §§ 13-156—13-159, 13-176—13-180, pertained to open-air sales and derived from the Code of 1961, §§ 23-33.1; 23-33.7(a)—(e), (g), (i); and Ord. No. 11-77, §§ 3, 4, adopted May 3, 2011.

†__Editor's note—__Ord. No. 18-100, § 3, adopted July 24, 2018, amended Article V title to read as herein set out. Formerly, such article pertained to business permit.

__Cross reference—__Business Permit for open-air sales § 13-204(b)(1).

or his/her/their designee in order to enable him/her/them to determine the proper classification of the applicant.

(c) Every solicitor applying for a business permit shall furnish to the city manager or his/her/their designee the name and address of the person whom he/she/they represents, together with a description of the goods or services offered for sale.

(d) Every business or person that prepares or serves food and/or beverages for sale to the general public must provide proof of their Guilford County Health Permit.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-186. Notice of quitting business.

All businesses that sell out their business or stock of goods or fixtures or shall quit business for any reason whatsoever, shall notify the city manager or his/her/their designee of that fact within forty-eight (48) hours immediately prior to the date the business sells out their business or stock of goods or fixtures, or quits business.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-187. Term of business permits.

Term of business permit. A permit issued to a new business shall be effective on the day it begins operating and shall expire on June 30 of the city's fiscal year. A business permit issued for each subsequent fiscal year shall be effective July 1 and shall expire on June 30 of the city's fiscal year.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-188. Procedure if other approval or permit required.

In any case where other approval or permit is required of any permittee, the city manager or his/her/their designee shall not issue a permit until such approval or permit has been presented to the city manager or his/her/their designee.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-189. Contents of permit; official copies of same.

Every business permit shall show the name of the permittee, the nature of the business, the location thereof (if it is to be operated at a fixed place), and the time for which issued. The city manager or his/her/their designee shall keep a record of every permit issued.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-190. Display of business permit.

Every business permit must be kept prominently displayed at the place of business of the permittee named in the permit, or, if the permit has not a fixed place of business, such permit must keep the same displayed on his/her/their chest, hanging from a lanyard or clipped to their garment, so that the name, type of permit and date of expiration is visible wherever such business is being operated and where it can be inspected at any time by any proper city official.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-191. Assignments and transfers.

Every business permit issued under the provisions of this article shall be a personal privilege and shall not be assignable or transferred.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-192. Change in location of business.

No business permit for a fixed location shall be changed so as to cover the conduct of such business at any other place. When a permittee proposes move a business to another location in the city, the permittee, must obtain a new business permit to conduct business at such proposed new location.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Sec. 13-193. Refusal or revocation of business permit generally.

(a) If it shall be made to appear to the city manager or his/her/their designee and the city manager or his/her/their designee shall determine

that any permittee or applicant for a business permit is conducting or desires to conduct a business activity that is prohibited or unlawful under the state law or would be in violation of any provision of chapter 30 with respect to permitted and prohibited uses or any significant provisions of the building regulations affecting public safety, he/she/they shall:

(1) Refuse to issue a business permit to such applicant and so notify him/her/them in writing; or

(2) In the case of a permittee, notify such permittee in writing that the business permit is revoked with a statement of the facts which provide a basis therefore.

(b) In the event of a violation or revocation, the person shall have seven (7) days in which to file an appeal with the planning department and the city manager or his/her/their designee to request a hearing before the board of adjustment. Upon appeal, the board of adjustment shall hold a hearing on the appeal and make a final determination thereof with respect to the zoning use, application for a business permit or the revocation thereof.

(c) In the case of a permittee, the filing of a timely appeal shall stay the revocation pending hearing and final determination by the board of adjustment.

(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-194. Exemptions.

(a) The following businesses are exempt from the requirements of this article as indicated below:

(1) Any not-for-profit business operated for a religious, educational, civic, patriotic, charitable, or fraternal purpose, if the entire gross income of the business is used for religious, educational, civic, patriotic, charitable, or fraternal purpose, is exempt from the requirements of this article unless they conduct sales to the general public, or unless this business includes group homes, day cares or other type of care facilities.

(2) All not-for-profit religious, educational, civic, patriotic, charitable, or fraternal organizations who conduct sales to the general public and the proceeds from this organization's sales are used exclusively for nonprofit purposes. No income shall be provided to any individual conducting these sales and no reimbursement shall be provided other than the cost of the merchandise sold and the actual cost to prepare and market these goods. Persons vending under this article shall file with the city manager or his/her/their designee a letter from the religious, educational, civic, patriotic, charitable, or fraternal organization stating:

a. The name and address of the organization.

b. A list of its principal officers.

c. A brief statement of the religious, educational, civic, patriotic, charitable, or fraternal purpose for which the proceeds shall be used.

d. The names, addresses, locations of the vendors and the dates during which they will vend.

e. A statement of the estimated percentage of proceeds that shall be applied to those purposes after deducting the cost of the merchandise sold and the actual cost to prepare these goods. A statement that no income shall be provided to any individual conducting these sales.

Such vendors shall comply with all provisions of this article.

(3) Any not-for-profit business that operates group homes, day cares or other types of care facilities for a nonprofit religious, educational, civic, patriotic, charitable, or fraternal purpose shall comply with all business permit provisions of this article.

(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 13-195. Enforcement.

Any enforcement actions taken by the city, including, but not limited to, notices of violation, revocations of privilege license, decision of the zoning administrator, or decisions of the city manager or his/her/their designee, while the city was acting under the authority granted to it by the ordinances pertaining to privilege licenses, shall remain in effect and shall be enforced under the provisions of this chapter.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Secs. 13-196—13-200. Reserved.

DIVISION 2. BUSINESS PERMIT FOR SPECIFIC BUSINESSES

Sec. 13-201. Reserved.

Editor's note—Ord. No. 18-043, § 1, adopted April 24, 2018, repealed § 13-201, which pertained to panhandlers and derived from Ord. No. 15-073, § 1(Exh. A), 6-16-15.

Sec. 13-202. Commercial solicitors.

(a) Every person who travels from place to place taking or offering to take orders for the sale of goods for future delivery or for personal services to be performed in the future, regardless of whether samples are displayed or money is collected in advance, and every person who uses or occupies any building or premises for the sole purpose of taking or offering to take orders for the sale of goods for future delivery or for personal services to be performed in the future, regardless of whether samples are displayed or money is collected in advance, shall obtain a business permit.

(b) The business permit shall not apply to any solicitor engaged in interstate commerce, but such solicitor shall secure a business permit appropriately marked to show such an exemption.

(c) No license shall be issued under this section until the applicant has filed a bond in the amount of five hundred dollars ($500.00), approved by the city attorney, conditioned upon the final delivery of the goods ordered or the performance of the services ordered in accordance with the terms of the solicitation, or the return of any deposit or payment. If the gross sales of undelivered goods or services ordered through one (1) solicitor exceeds five hundred dollars ($500.00), the solicitor shall increase the amount of his/her/their bond to cover such sales, such increase to be in increments of not less than two hundred fifty dollars ($250.00).

(d) Every person who solicits or sells door to door at private residences shall submit an application for a business permit and shall submit to a criminal background history check which shall be reviewed by the chief of police or his/her/their designee to determine eligibility of the applicant. A person is not eligible for this business permit or renewal of this business permit if within the most recent ten-year period:

(1) The city manager or his/her/their designee has received information from the executive officer to the chief of police that the person has two (2) or more violations of this chapter;

(2) The city manager or his/her/their designee has received information from the executive officer to the chief of police that the person has been convicted of one (1) or more offenses under the law of any jurisdiction which involve either misdemeanor or felony assault, communicating threats, any sexual offense or abuse involving a minor, any offense determined to be a sexually violent offense, or illegal use of weapons.

(e) Every person who solicits or sells door to door at private residences shall only conduct this activity between sunrise and sunset. He/she/they shall not:

(1) Enter into the residence without the express consent of the person at the residence;

(2) Use profane or abusive language either during the solicitation or following a refusal;

(3) Make any gesture or other form of communication by which a reasonable person would perceive to be a threat;

(4) Refuse to leave the premises immediately upon the request of the person at the residence.

(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 17-9, § 1, 1-17-17; Ord. No. 18-100, § 4, 7-24-18; Ord. No. 18-101, § 1, 7-24-18; Ord. No. 20-163, § 3, 12-15-20)

Cross reference—Peddlers, solicitors, etc., Ch. 20.

Sec. 13-203. Reserved.

Editor's note—Ord. No. 18-100, § 5, adopted July 24, 2018, repealed § 13-203, which pertained to street performers. See Code Comparative Table for complete derivation.

Sec. 13-204. Peddlers, itinerant merchants, and mobile food vendor, motorized or mobile food vendor, pushcart.

(a) *Peddlers.* Every person engaged in business or employed as a peddler shall obtain a business permit for the privilege of peddling goods. A peddler is a person who travels from place to place with an inventory of goods, who sells the goods at retail or offers the goods for sale at retail, and who delivers the identical goods he/she/they carries with him/her/them.

(b) *Itinerant merchant.* Every person who is not a mobile food vendor and is engaged in business as an itinerant merchant shall obtain a business permit for the privilege of engaging in business. An itinerant merchant is a merchant, other than a merchant with an established retail store in the city, who transports an inventory of goods to a building, vacant lot, or other location in the city and who, at that location, displays the goods for sale and sells the goods at retail or offers the goods for sale at retail. A merchant who sells goods, other than farm products, for less than six (6) consecutive months is considered an itinerant merchant unless he/she/they stops selling goods in the city because of his/her/their death or disablement, the insolvency of his/her/their business, or the destruction of his/her/their inventory by fire or other catastrophe. An itinerant merchant is subject to an open-air sales permit as defined in subsection 13-204(b)5.

(1) *Open-air sales.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Principal building means a principal building, as defined in section 30-1, that is not a temporary building or structure;

Temporary building or structure means any building or structure of an impermanent nature or which is designed for use for a limited time, and includes any tent or canopy.

(2) *Exemption.* The provisions of this article shall not apply to the following:

a. Any business exempt under section 13-194 from a city business permit.

b. The sale or display of fruits, vegetables and other farm products intended for human consumption.

c. The sale or display of goods or merchandise by a person, partnership, corporation or other entity at a particular location if such sale or display is conducted in association with such party's sale or display of goods or merchandise at the same location from or in a principal building that is regularly entered by the general public for the transaction of business.

d. Special events as defined in section 26-246 and following.

(3) *Cleanup, etc., upon termination.* Upon termination of a use for which a permit has been granted pursuant to this article, all temporary buildings or structures erected for the purposes of such use, and all trash and debris generated in connection with the use, shall be removed by the licensee or owner of the premises from the premises where the use was conducted.

(4) *Food and beverage sales.* All food and beverage sales shall be first permitted by the Guilford County Health Department.

(5) *Permit required.* No person shall engage at a fixed location in any of the following

activities unless such person, partnership, corporation or other entity shall have first applied for and received the permit provided for in this division:

a. The open-air sale of goods or merchandise, or the open-air display of goods or merchandise for sale.

b. The sale of goods or merchandise from a temporary building or structure, or the display in a temporary building or structure of goods or merchandise for sale.

(6) *Application.* Each application for the permit required by this division shall be filed with the code enforcement officer not less than fifteen (15) calendar days prior to the desired commencement date of the proposed use and shall be upon such form as the building inspector shall approve. Each such application shall include information sufficient to enable the code enforcement officer to determine if the proposed use of a building, structure or land will comply with the following requirements:

a. The period of duration for the use shall not be in excess of thirty (30) calendar days.

b. There shall be adequate restroom facilities available at all times to the employees or other persons engaged on behalf of the applicant in such use.

c. The use shall comply with all requirements of applicable zoning, building, plumbing and fire prevention codes.

d. The use shall be conducted with the permission of the owner of the premises that will be occupied for purposes of the use, and written evidence of such permission shall be filed with the application.

(7) *Issuance and form.*

a. Subject to subsection (b) an application in proper form filed pursuant to this section shall be approved by the code enforcement officer if he/she/they shall find that the requirements set forth in subsection 13-204(b)(6) are met. Each permit issued pursuant to this section shall specify therein the commencement date for the use and the date of expiration of the permit, which date shall be within the thirty-day maximum period of duration permitted under section subsection 13-204(b)(6). If the requirements of subsection 13-204(b)(6) are not met, or if issuance of a permit to the applicant is not permitted under subsection (b), an application for a permit under this section shall be denied by the code enforcement officer.

b. No more than two (2) permits may be issued to the same applicant during any calendar year for a use subject to the provisions of this section, and at least ninety (90) calendar days shall elapse between the issuance of permits to the same applicant, whether or not issued in the same calendar year. For purposes of this subsection, an applicant shall be deemed to include any predecessor business to such applicant, and any person, partnership, corporation or other entity that controls, is controlled by or is under common control with such applicant.

(8) *Prerequisite to business permits; display, etc.* The city shall not issue a city business permit for an activity for which a permit is required by this article until the applicant furnishes a copy of the approved open-air sales permit. The licensee shall have at the location, a copy of the open-air sales permit and any required city business permit. He/she/they shall furnish any official of the city the permits upon request.

(9) *Revocation.* An open-air permit issued pursuant to this section shall be revoked by the code enforcement officer if he/she/

they shall at any time determine either that the use for which such permit was granted is not in compliance with each of the requirements set forth in subsection 13-204(b)(6), or that a permit for such use is not authorized under subsection 13-204(b)(7).

(c) *Mobile food vendor, motorized or mobile food vendor, pushcart.* Every person engaged in business or employed as a mobile food vendor shall obtain a business permit for the privilege of preparing and selling food and/or beverages to the general [public]. Mobile food vendors shall also obtain a mobile food permit as required in the Greensboro Code of Ordinances sections 26-230 through 26-243.

Mobile food vendor, motorized, is a person or persons that prepare or serve food and/or beverages for sale to the general public on a recurring basis from a vehicle mounted or vehicle towed food service establishment designed to be readily moved. This shall include "mobile food unit" as defined in 15A NCAC 18A.2601.

Mobile food vendor, pushcart, is a person or persons that prepare or serve food and/or beverages for sale to the general public on a recurring basis from a mobile piece of equipment or vehicle which serves hot dogs or foods which have been prepared, preportioned, and individually prewrapped at a restaurant or commissary, or which serve food and/or beverages exempt from health department regulations. This shall include "pushcart" as defined in 15A NCAC 18A.2601.

(d) *Exemptions.* This section does not apply to the following:

(1) Peddler, itinerant merchant, or mobile food vendor, who exclusively:

a. Sells farm or nursery products produced by him.

b. Sells crafts or goods made by him/her/them or his/her/their own household personal property.

c. Sells printed material, wood for fuel, ice, seafood, meat, poultry, livestock, eggs, dairy products, bread, cakes, or pies.

d. Is an authorized automobile dealer licensed pursuant to G.S. ch. 20.

(2) A peddler who maintains a fixed, permanent location from which he/she/they makes at least ninety (90) percent of his/her/their sales, but who sells some goods in the city of his/her/their fixed location by peddling.

(3) Itinerant merchant who:

a. Locates at a farmer's market.

b. Is a part of an agricultural fair which is licensed by the commissioner of agriculture pursuant to G.S. § 106-520.3.

c. Sells goods at an auction conducted by an auctioneer licensed pursuant to G.S. ch. 85B.

(4) A peddler who complies with the requirements of G.S. §§ 25A-38 through 25A-42 or who complies with the requirements of G.S. § 14-401.13.

(e) *Person defined.* As used in this section, "person" has the same meaning as in G.S. § 105-164.3(11).

(f) *Display and possession of permit and identification.* An itinerant merchant or mobile food vendor shall keep the permit required by this section conspicuously and prominently displayed so as to be visible for inspection by patrons of the itinerant merchant at the place or locations at which the goods are to be sold or offered for sale. A peddler shall have a permit required by this section with him/her/them at all times he/she/they offers goods for sale and must produce them upon the request of any customer, state or local revenue or law enforcement agent.

Upon the request of any customer, state or local revenue or law enforcement agent, a peddler or itinerant merchant shall provide its name and permanent address. If the peddler, itinerant merchant or mobile food vendor is not a corporation, he/she/they shall, upon the request of any customer, state or local revenue or law enforcement agent, provide a valid drivers license, a special identification card issued under G.S. § 20-37.7, military identification, or a passport

bearing a physical description of the person named, reasonably describing the peddler, itinerant merchant or mobile food vendor. If the peddler, itinerant merchant or mobile food vendor is a corporation, it shall, upon the request of any customer, state or local revenue or law enforcement agent, give the name and registered agent of the corporation and the address of the registered office of the corporation, as filed with the North Carolina Secretary of State.

(g) Reserved.

(h) *Permission of property owner.* An itinerant merchant or a peddler who travels from place to place by vehicle, in addition to other requirements of this section, shall obtain a written statement, signed by the owner or lessee of any property upon which the itinerant merchant or peddler offers goods for sale giving the owners or lessees permission to offer goods for sale upon the property of the owner or lessee, the location of the premises for which the permission is granted, and the dates during which the permission is valid. Further, such statements shall be conspicuously and prominently displayed, so as to be visible for inspection by patrons of the itinerant merchant or peddler, at the places or locations at which the goods are to be sold or offered for sale.

(i) *Penalty.* It shall be a misdemeanor, punishable by imprisonment up to thirty (30) days, a fine of up to two hundred dollars ($200.00) by the police department, or both for a person to:

(1) Fail to obtain a permit as required by this section.

(2) Knowingly give false information in the application process for a permit.

(3) If a person, as an itinerant merchant or mobile food vendor, fails to display the permit as required by this section, or if the person, as a peddler, fails to produce the permit required by this section, or if the person required to do so fails to comply with subsection (h). Whenever satisfactory evidence shall be presented in any court of the fact that a permit was required by this section and such permit was not displayed or produced as required by this section or that permission was required by this section and was not displayed, the peddler or itinerant merchant shall be found not guilty of that violation, provided he/she/they produces in court a valid permit or valid permission which had been issued prior to the time he/she/they was charged with such violation.

(4) Fail to provide name, address, or identification upon request as required by this section, or provide false information in response to such a request.

(j) *Special events.* The permit issued hereunder shall not be transferable for the purpose of a special event as defined in chapter 26 of the Greensboro Code of Ordinances.

(k) *Violations.* If a person applies for or is issued a business permit under this chapter or who asserts that he/she/they is exempt from the provisions of this chapter and the city manager or his/her/their designee receives information that the person has violated any provision of this chapter, the city manager or his/her/their designee shall decline to issue or shall revoke, respectively, that person's business permit or exemption for a period of one (1) year.

(Ord. No. 15-073, § 1(Exh. A), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Cross references—Peddlers, solicitors, etc., Ch. 20; Selling on Streets and Sidewalks, Ch. 26 §§ 26-230 through 26-243.

Sec. 13-205. Individuals practicing and carrying on the business of massage and body work therapy.

(a) Any person practicing the profession of massage and bodywork therapy who has a current state massage and bodywork therapy license issued pursuant to G.S. ch. 90, art. 36, is exempt from a city business permit.

(b) Any business, corporation, LLC, LLP, partnership or individual who hires employees and is not otherwise exempt from licensure that

employs, contracts with, or hires others to perform massage and bodywork therapy, shall be subject to a city business permit.
(Ord. No. 15-073, § 1(Exh. A), 6-16-15)

Cross reference—Massage and Bodywork Therapy, Ch. 14.5.

ARTICLE VI. MISCELLANEOUS COMMERCIAL ACTIVITY: COMMERCIAL STREET PERFORMERS, ETC.

Sec. 13-206. Commercial street performers.

(a) *Definitions.* As used in this section, "perform" or "performance" for commercial purposes, not charitable purposes, means audible or visual entertainment such as, but not limited to, reciting or singing, acting, dancing, miming, pantomiming, playing a musical instrument or performing a theatrical or literary work. "Street performer" means an individual or a group who performs on public property within the City of Greensboro.

(b) *Intent and purpose.* The Greensboro City Council finds and determines the following:

(1) Street performances are distinguished from panhandling activities by the commercial nature of the performer's actions which provide the benefit of a live performance of artistic value in exchange for gratuities given in appreciation of the performance. Therefore, the nature and character of a street performance differs from solicitation of a charitable contribution.

(2) Street performers are engaged in commerce as professional entertainers whose livelihood comes, wholly or in part, from gratuities received in exchange for the artistic value of the performance. Regulation of the commercial performances of street performers would enhance the character and culture of the City of Greensboro.

(3) Street performers have a right to perform on public property, but unregulated street performances are also likely to cause adverse impacts to the community such as: gathering crowds attracted to the entertainment offered in public locations not appropriate for street performances because of insufficient room for crowds; blocked sidewalks; blocked ingress and egress of buildings; the risk of disrupting nearby motor vehicle traffic; interference with the operation of commercial activities; and disturbance of the quiet enjoyment of residents.

(4) G.S. § 160A-178 authorizes a city to enact an ordinance that regulates, restricts or prohibits the business activities of itinerant merchants, salespersons, promoters, drummers, peddlers, or hawkers. G.S. § 160A-174 authorizes a city to enact an ordinance that defines, prohibits, regulates or abates acts, omissions, or conditions detrimental to the health, safety, or welfare of its citizens and the peace and dignity of the city. G.S. § 160A-296(5) gives a city the power to regulate the use of public sidewalks and public streets.

(5) For these reasons, it is the intent of the Greensboro City Council to permit street performances subject to careful regulation in order to reduce or eliminate adverse impacts associated with unregulated or poorly regulated street performances. The purpose of this ordinance is to create a means of regulation which ensures the ability of street performers to perform in public spaces and to promote harmony among street performers, local businesses, permitted event sponsors, residents, and visitors of Greensboro by balancing the interests of performing artists with Greensboro citizens through the careful regulation of street performances.

(c) *Regulations.* Street performers shall comply with the following regulations:

(1) Street performers shall not unreasonably block, or cause the unreasonable blocking of any sidewalk, passageway,

street, or any ingress or egress to any building, structure, driveway or other passage.

(2) Street performers shall not perform on private property without written permission of the property owner. Street performers are required to keep the writing granting such permission on their person during any performance on private property.

(3) No street performer shall make any use in any way of fire, sharp instruments or objects, spray paint, aerosols, firearms (real or simulated), dangerous weapons or any form of harmful chemicals during a street performance.

(4) Street performers shall stay at least seventy-five (75) feet away from other street performers and twenty-five (25) feet from outdoor seating or dining areas. If a citation is issued for violating the seventy-five foot separation, the citation shall be issued to the performer arriving second-in-time.

(5) Street performers shall not commit any violation of chapter 18, article IV, offenses of unreasonable or disturbing sound. A violation of chapter 18, article IV shall not be punishable under this article, but a law enforcement officer may instruct a street performer to cease the chapter 18, article IV violation.

(6) While conducting a street performance, street performers shall not use language or gesture, or display any matter which:

a. Is obscene as prohibited by G.S. § 14-190.1;

b. Incites or urges riot as prohibited by G.S. § 14-288.2;

c. A violation of G.S. § 14-190.1 or G.S. § 14-288.2 shall not be punishable under this article, but a law enforcement officer may instruct a street performer to cease the G.S. § 14-190.1 or G.S. § 14-288.2 violation(s).

(7) Street performers shall not remain at one location for a total duration of more than four (4) hours during any one-day period. When a street performer leaves a location, the street performer shall not return to that location for at least one (1) hour.

(8) No street performer shall claim a greater right to perform at any location over a street performer who arrives first at the same location.

(9) Street performances are not permitted before 10:00 a.m. nor after 11:00 p.m.

(10) Signs used by a street performer shall be in a location at least three (3) feet away from any curb and not in any location which impedes any foot traffic, parking or persons entering or exiting any motor vehicle. Street performers shall remove such signs from any location at the conclusion of their performance. No sign, handbill, flyer or other advertisement shall be left at any location after the conclusion of a performance.

(11) Notwithstanding the provisions of chapter 18, article IV, section 18-50, a street performer or group may use small, portable and self-powered amplification devices for the purpose of conducting a street performance. All street performers will comply with all remaining provisions of chapter 18, article IV of the Greensboro Code of Ordinances.

(d) *Enforcement and penalty.*

(1) Any person who fails or refuses to comply with the regulations contained in this article upon request of a city official or law enforcement officer, shall be guilty of a class 3 misdemeanor punishable by a fine of up to fifty dollars ($50.00). Except as otherwise provided herein, a law enforcement officer shall issue a citation for a violation of this article.

(e) *Applicability.* The provisions of this article do not apply to any person engaged in a special event as that term is defined in Greensboro Code of Ordinances section 26-247.
(Ord. No. 18-100, § 6, 7-24-18)

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Chapter 14

RESERVED*

*__Editor's note__—Ord. No. 01-131, § 1, adopted June 5, 2001, repealed former Ch. 14 of the Code in its entirety, which pertained to massage parlors, health salons, etc. and derived from the 1961 Code, §§ 11-91—11-94, 11-96—11-99; Ord. No. 93-33, §§ 1—4, adopted April 19, 1993; Ord. No. 93-128, §§ 1, 2, adopted Oct. 28, 1993; Ord. No. 95-62, § 1, adopted June 1, 1995; Ord. No. 95-110, § 1 adopted Aug. 31, 1995; and Ord. No. 95-155, §§ 1—9, adopted Dec. 18, 1995.

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Chapter 14.5

MASSAGE AND BODYWORK THERAPY*

Article I. In General

Sec. 14.5-1. Declaration of purpose.
Sec. 14.5-2. Definitions
Sec. 14.5-3. Prohibitions.

Article II. Business Permit Requirements

Sec. 14.5-4. Individuals practicing and carrying on the business of massage and body work therapy.

Article III. Enforcement

Sec. 14.5-5. Fines and revocation.

*__Editor's note—__Ord. No. 13-141, adopted Nov. 12, 2013, amended Ch. 14.5 in its entirety to read as set out herein. Former Ch. 14.5 pertained to similar subject matter and derived from Ord. No. 01-132, § 1, adopted June 5, 2001; Ord. No. 02-123, §§ 1, 2, adopted June 18, 2002.

ARTICLE I. IN GENERAL

Sec. 14.5-1. Declaration of purpose.

The City of Greensboro recognizes that the improper practice of massage and bodywork therapy is potentially harmful to the public. To protect public health, safety, welfare and morals the provisions and regulations of this chapter are ordained for the privilege of carrying on the businesses, trades, or professions wherein massage or other physical manipulation of the human body is carried on or practiced.
(Ord. No. 13-141, § 1, 11-12-13)

Sec. 14.5-2. Definitions

(a) The following definitions shall apply in this chapter:

(1) *Massage and bodywork therapy.* Systems of activity applied to the soft tissues of the human body for therapeutic, educational, or relaxation purposes. The application may include:

a. Pressure, friction, stroking, rocking, kneading, percussion, or passive or active stretching within the normal anatomical range of movement.

b. Complementary methods, including the external application of water, heat, cold, lubricants, and other topical preparations.

c. The use of mechanical devices that mimic or enhance actions that may possibly be done by the hands.

This definition shall include by reference the definition of massage and bodywork therapy as defined in G.S. § 90-622 as amended.

(2) *Massage and bodywork therapist or massagist.* A person engaged in the practice of massage and bodywork therapy as defined above.

(3) *Practice of massage and bodywork therapy.* The application of massage and bodywork therapy to any person for a fee or other consideration. "Practice of massage and bodywork therapy" does not include the diagnosis of illness or disease, medical procedures, chiropractic adjustive procedures, electrical stimulation, ultrasound, prescription of medicines, or the use of modalities for which a license to practice medicine, chiropractic, nursing, physical therapy, occupational therapy, acupuncture, or podiatry is required by law.

(Ord. No. 13-141, § 1, 11-12-13)

Sec. 14.5-3. Prohibitions.

A person/permittee shall not:

(1) Employ, contract with, or hire a person to carry on the practice of massage and bodywork therapy unless such employee, person contracted with, or person hired, has a current state massage and bodywork therapy license issued pursuant to Article 36 of Chapter 90 of the North Carolina General Statutes.

(2) Lease, rent, or otherwise knowingly allow the use of any premises by any person for the purpose of carrying on the profession or business of massage and bodywork therapy unless such lessee, renter, or user is in possession of a current state massage and bodywork therapy license issued pursuant to Article 36 of Chapter 90 of the North Carolina General Statutes.

(3) Employ any person under the age of eighteen (18) years in the operation of a massage business.

(Ord. No. 13-141, § 1, 11-12-13; Ord. No. 15-073, § 1(Exh. B), 6-16-15)

ARTICLE II. BUSINESS PERMIT REQUIREMENTS*

Sec. 14.5-4. Individuals practicing and carrying on the business of massage and body work therapy.

*__Editor's note—__Ord. No. 15-073, § 1(Exh. B), adopted June 16, 2015, amended Art. II in its entirety to read as set

(a) Any person practicing the profession of massage and bodywork therapy who has a current state massage and bodywork therapy license issued pursuant to G.S. ch. 90, art. 36, is exempt from a city business permit.

(b) Any business, corporation, LLC, LLP, partnership or individual who hires employees and is not otherwise exempt from licensure that employs, contracts with, or hires others to perform massage and bodywork therapy, shall be subject to a city business permit.

(c) Any person or entity applying for a business permit for a massage business prescribed herein shall be upon a form approved by the city manager and shall be filed with the city manager or his/her/their designee. Every such application shall be affirmed by the applicant and shall contain the following information:

(1) If the applicant is an individual, the name and residence address of such person. If the applicant is a business, corporation, LLC, LLP, or partnership, the name, residence address, and Social Security Number of all persons having any legal or beneficial interest in such applicant;

(2) The address of the premises where the massage business shall be located. Nothing in this subsection shall prevent a massagist employed by a permitted massage business from performing massages on behalf of that business at locations removed from the physical premises where the massage business is permitted;

(3) A complete statement of all convictions of any person(s) whose name(s) is (are) required to be given in paragraph (c)(1) above, of any crime involving sexual misconduct, including, but not limited to, G.S. §§ 14-177 through 14-202.1 (Article 26, Offenses Against Public Morality and Decency) and G.S. §§ 14-203 through 14-208 (Article 27, Prostitution), of section 46-172, or of any federal statute relating to prostitution, or of any violation of any law or ordinance of any governmental unit concerning or related to the business or profession of massage therapy;

(4) A complete statement of any revocation, by any governmental unit, of any license or permit to operate a massage business or to engage in the business or profession of massage held by any person(s) whose name(s) is (are) required to be given in paragraph (c)(1) above;

(5) A complete statement of any conviction or findings of any person(s) whose name(s) is (are) required to be given in paragraph (c)(1) above, for violation of any statute, law, ordinance, or regulation of any government concerning the operation of a massage business or the business or profession of massage;

(6) The name and address of any massage business or other establishment owned or operated by any person(s) whose name(s) is (are) required to be given in paragraph (c)(1) or profession of massage is carried on within the State of North Carolina;

(7) A description of any other business to be operated on the same premises or on adjoining premises owned or controlled by the applicant;

(d) The city manager or his/her/their designee shall transmit a copy of the application to the police department for an investigative report; to planning department or other appropriate department to determine compliance with all zoning and building regulations and ordinances; and to the fire department to determine compliance with any law relating to fire protection. The police and fire departments and the inspections division shall, within a reasonable time, not to exceed thirty (30) days, report the results of their examinations to the city manager or his/her/their designee. An applicant who, consistent with zoning regulations, lawfully operates the massage business out of the applicant's home and who signs a written statement that the applicant will not perform massage within the

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out herein. Former Art. II pertained to privilege license requirements and derived from Ord. No. 13-141, § 1, adopted Nov. 12, 2013.

home or allow the public to enter the home in connection with the massage business is not required to submit to a building or fire prevention inspection.

(e) Any person or entity applying for a business permit for a massage business shall also be required to submit with the permit application their North Carolina Employer ID number and a list including the name, address, home telephone numbers and North Carolina driver's license number or picture ID issued by the North Carolina DMV of each and every employee, contract worker or hiree who is to perform massage or bodywork therapy, and a copy of the current state massage and body work therapy license issued to each such employee, contract worker, or hiree pursuant to G.S. ch. 90, art. 36, and further that the business permittee shall immediately within fourteen (14) days notify the city manager or his/her/their designee of the City of Greensboro if and when such state license expires and is not immediately renewed, or is revoked, suspended, or otherwise terminated; further and in the case of permit renewals, the applicant shall provide a list of all employees, contract workers and hirees who provided massage therapy on the business premises in the ninety (90) days immediately preceding the date of the application.

(f) During the course of the business permit year, and upon the written request of the city manager or his/her/their designee, permittees will provide a complete and accurate update of the list required in, and by, paragraph (c) and (e) above, including all required information. Such update shall be received in the office of the city manager or his/her/their designee within fourteen (14) calendar days after the permittee receives the written request for same.

(g) The application shall be approved if it is determined that:

(1) The application contains no misstatement of fact;

(2) All persons employed as massagists or who will perform massage hold a valid license to practice massage and bodywork therapy issued by the State of North Carolina;

(3) The applicant, or any person having any legal or beneficial ownership interest in the applicant is over the age of eighteen (18) years and has not been convicted of any crime involving sexual misconduct, including, but not limited to, G.S. §§ 14-177 through 14-202.1 (Article 26, Offenses Against Public Morality and Decency) and G.S. §§ 14-203 through G.S. 14-208 (Article 27, Prostitution), of section 46-172, or of any federal statute relating to prostitution, or of any violation of any law or ordinance of any governmental unit concerning or related to the business or profession of massage therapy within the previous ten (10) years;

(4) The proposed establishment conforms to all requirements of applicable zoning, building, and fire prevention codes; and

(5) The applicant or any person having a legal or beneficial ownership interest in the applicant has not, for the three-year period preceding the application, had a previously issued license or permit for engaging in the business or profession of massage therapy revoked.

(h) Posting of license. Any massagist shall post the North Carolina State Massage and Bodywork Therapy License required by this article in his/her/their work area in a prominent place.

(i) Hours of operation. No business, corporation, LLC, LLP, partnership or individual permitted under this article shall admit customers or prospective customers, or remain open for business, or allow, permit, or condone any massage or treatment of any person upon the premises between the hours of 11:30 p.m. and 5:00 a.m.

(j) No business, corporation, LLC, LLP, partnership or individual not permitted or exempted under this chapter shall engage in any of the following:

(1) Practice of massage and bodywork therapy.

(2) Advertise, represent, or hold out himself/herself/themself to others to be a massage and bodywork therapist.

(3) Use any title descriptive of any branch of massage and bodywork therapy to describe his/her/their practice.

(k) Exemption. Any person exempted from the requirement of a North Carolina Massage and Bodywork Therapy License under G.S. § 90-622 as amended is exempt from article II of this chapter.
(Ord. No. 13-141, § 1, 11-12-13; Ord. No. 15-073, § 1(Exh. B), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

ARTICLE III. ENFORCEMENT

Sec. 14.5-5. Fines and revocation.

(a) A business permit issued pursuant to this chapter shall be issued a notice of violation if any of the following is determined:

(1) That the permittee has violated any requirement of this chapter;

(2) That the permittee, or any agent of the permittee, employs or permits to be on the premises of the applicant's massage business any person practicing the business or profession of massage who has not been licensed by the State of North Carolina or who has not been issued the regulatory permit required by this article, or whose license or permit under this article or under North Carolina General Statutes has been revoked or is currently suspended;

(3) That the permittee violates any zoning, building, or fire prevention ordinance, or if exempted from building or fire prevention inspections, performs massage to a client or for a fee within the home or allows the public to enter the home in connection with the massage business;

(4) That any current employee of the permittee is convicted of any felony in connection with his/her/their employment, or is convicted of any crime involving sexual misconduct, including, but not limited to, the laws indicated in subsection 14.5-4(g)(3) or is convicted or held responsible for any other governmental units' regulations of massages;

(b) Upon the second notice of violation within a twelve-month rolling period, the business permit pursuant to this chapter shall be revoked. Permit revocation shall precipitate and require closure of the business. The rights of the permittee in the event of permit revocation shall be the same as are spelled out in section 13-193 of the Greensboro Code of Ordinances.

(c) A permit issued pursuant to this chapter shall be revoked if any of the following is determined. The rights of the permittee in the event of permit revocation shall be the same as are spelled out in section 13-193 of the Greensboro Code of Ordinances.

That the permittee, or the legal or beneficial owner of any interest in the permittee, is convicted of any crime involving sexual misconduct, including, but not limited to, the laws indicated in subsection 14.5-4(g)(3) or is convicted or held responsible for any other governmental units' regulations of massages;

(d) Permit revocation shall precipitate and require closure of the business. Any permittee permitted under this chapter found in operation after revocation of permit shall be subject to a fine of five hundred dollars ($500.00) each day. Permit revocation or operation without a permit shall precipitate and require closure of the business and further require that no similar use be made of the property during the period of revocation and for six (6) months thereafter. All fines levied under this chapter are due within thirty (30) days of notice of the violation and fine.

(e) The civil penalties provided in this chapter are remedies enforceable by a civil action in the nature of a debt. No violation of this article shall constitute a misdemeanor as provided in G.S. § 14-4.

(f) Any enforcement actions taken by the city, including, but not limited to, notices of violation, revocations of privilege license, decision of the zoning administrator, or decision of the city manager or his/her/their designee, while the city was acting under the authority granted to it by

the ordinances pertaining to privilege licenses, shall remain in effect and shall be enforced under the provisions of this chapter.
(Ord. No. 13-141, § 1, 11-12-13; Ord. No. 15-073, § 1(Exh. B), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Chapter 15

RESERVED*

*__Editor's note—__Ord. No. 91-145, adopted Nov. 27, 1991, repealed Chapter 15 in its entirety, which pertained to mobile homes, motor homes, etc. See the Code Comparative Table.

[The next page is 1109]

Chapter 16

MOTOR VEHICLES AND TRAFFIC*

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Sec. 16-2. Territorial application.
Sec. 16-3. Chapter applicable in alleys.
Sec. 16-4. Application of chapter to public employees.
Sec. 16-5. Application of chapter to bicycles, motorcycles, and animals.
Sec. 16-6. Authorized emergency vehicles—Generally.
Sec. 16-7. Same—Ambulances and casualty-carrying vehicles.
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Sec. 16-10. Putting objects or substances on street or other public place or space.
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Sec. 16-32. General duty of law enforcement officers.
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Sec. 16-71. Civil penalty.
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***Charter reference—**Traffic regulations, § 5.111 et seq.

Cross references—Streets and sidewalks, Ch. 26; abandoned and junked vehicles, § 17-51 et seq.; parades, § 26-156 et seq.; vehicle noise, § 18-41; taxicabs and buses, Ch. 28.

State law references—State traffic regulations, G.S. § 20-138.1 et seq.; municipal authority to regulate traffic, G.S. §§ 20-169, 160A-300 et seq.

Sec. 16-73. Issuance of parking ticket.
Sec. 16-74. Accountability for parking tickets.
Sec. 16-75. Prima facie evidence.
Sec. 16-76. Removal of parking ticket.
Sec. 16-77. Alteration of parking ticket.
Sec. 16-78. Immobilization or impoundment of vehicles having unpaid parking tickets.
Secs. 16-79—16-95. Reserved.

Article III. Vehicle Operation

Sec. 16-96. Reserved.
Sec. 16-97. Stop intersections.
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Sec. 16-99. Driving in restricted lanes.
Sec. 16-100. Left turns as indicated.
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Sec. 16-102. No right turn.
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ARTICLE I. IN GENERAL

Sec. 16-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alley means an alley in which the city owns the fee although others may have rights therein.

Authorized emergency vehicle means any vehicle owned by a federal, state, county, or municipal law enforcement agency and operated by a member thereof, any vehicle owned and operated by a fire department, including any vehicle attached to the Greensboro Lifesaving and Rescue Squad, or any ambulance.

Bicycle means a nonmotorized vehicle with two (2) or three (3) wheels tandem, a steering handle, one (1) or two (2) saddle seats, and pedals by which the vehicle is propelled, or an electric assisted bicycle, as defined in G.S. 20-4.01(7a). (1977, c. 1123, s. 1; 2016-90, s. 13(c).)

Block means the part of a street lying between the nearest intersecting streets on either side.

Business district means the territory contiguous to a street where seventy-five (75) percent or more of the frontage thereon for a distance of three hundred (300) feet or more is occupied by buildings in use for business purposes.

Crosswalk means the part of a roadway ordinarily included within the prolongation or connection of the lateral boundary lines of the adjacent sidewalk at the end of a block, or any part of a roadway indicated for pedestrian crossing by official traffic-control devices.

Electric standup scooter means a device with no more than three (3) 12-inch or smaller diameter wheels, that has handlebars, is designed to be stood upon by the user while riding, and is powered by an electric motor that is capable of propelling the device with or without human propulsion at a speed no greater than twenty (20) miles per hour on a paved level surface.

Electric assisted bicycle means a bicycle with two (2) or three (3) wheels that is equipped with a seat or saddle for use by the rider, fully operable pedals for human propulsion, and an electric motor of no more than seven hundred fifty (750) watts, whose maximum speed on a level surface when powered solely by such a motor is no greater than twenty (20) miles per hour.

In operation means operating in good working condition.

Intersection means the area embraced within the prolongation of the lateral curblines or, if none, then the lateral boundary tines of two (2) or more highways which join one another at any angle whether or not one (1) such highway crosses the other. Where a highway includes two (2) roadways thirty (30) feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. In the event such intersecting highway also includes two (2) roadways thirty (30) feet or more apart, then every crossing of two (2) roadways of such highways shall be regarded as a separate intersection.

Lane means a section of roadway between marked lines or between a marked line and the edge of a roadway, which section is set aside for a single file of vehicular traffic, except a section reserved for parking.

Median means that portion of public right-of-way lying between two (2) roadways and used for the separation of vehicular traffic. A median may be paved or unpaved and may or may not have a raised curb.

Micromobility vehicle means a lightweight, electric-powered vehicle with maximum propulsion speeds of twenty (20) miles per hour or less, including electric assisted bicycles and standup electric scooters.

Motor vehicle means a vehicle which is self-propelled or is designed to run upon the highways and is pulled by a self-propelled vehicle. This does not include mopeds as defined in G.S. 105-164.3 or micromobility vehicles.

Official traffic-control device means a sign, signal, marking, or device, including a parking meter, placed by authority of the governing body of the city for the purpose of regulating vehicular and pedestrian traffic.

Official traffic-control records means any list, engineering plan, map or other written request prepared by authority of the city council.

Park or *parking* means the standing of a vehicle whether occupied or not, on a public highway or street otherwise than temporarily for the purpose of and while actually engaged in receiving or discharging passengers or in obedience to traffic regulations.

Parking meter means any device, mobile phone application, and/or software made available for the purpose of collecting payment for a parking session to be used in regulating traffic.

Private road or *driveway* means a road or driveway not open to the use of the public as a matter of right for the purpose of vehicular traffic.

Roadway means that portion of a highway improved, designed, or ordinarily used for vehicular travel, exclusive of the shoulder. In the event a highway includes two (2) or more separate roadways the term roadway refers to any such roadway separately but not to all such roadways collectively.

Safety zone means a traffic island or other space officially set aside within a highway for the exclusive use of pedestrians and which is so plainly marked or indicated by proper signs as to be plainly visible at all times while set apart as a safety zone.

Shared-use path means a paved pathway for bicycles and pedestrians either paralleling a roadway and located within the right-of-way of said roadway, or located within a public easement or right-of-way other than that of a roadway, and designated by signage as a public trail or greenway.

Sidewalk means the part of a street improved for pedestrian traffic.

Stop line means a line across a roadway or part of a roadway indicating the point behind which vehicles are required to stop in compliance with an official traffic-control device.

Street or *highway* means the entire width between property lines of every way or place of whatever nature, when any part thereof is open to the use of the public as a matter of right for the purpose of vehicular traffic.

System location is the approach to an intersection toward which a photographic, video or electronic camera is directed and is in operation.

Traffic citation means a written or printed notice, issued by the authority of the governing body of this city, informing the person designated that he/she/they has violated a provision of this chapter or a state traffic law and citing him/her/them to appear in county district court to answer for the violation.

Traffic control photographic system is an electronic system consisting of a photographic, video or electronic camera and a vehicle sensor installed to work in conjunction with an official traffic control device and to automatically produce photographs, video or digital images of each vehicle violating a standard traffic control statute or ordinance.

Traffic schedule means a separate schedule which is incorporated into by reference and made a part of this chapter, and which designates certain streets, parts of streets, street areas, or times to which a provision of this chapter applies.

Traffic ticket means a printed ticket, issued by authority of the governing body of this city, informing the person designated that he/she/they has violated a provision of this chapter and notifying him/her/them to appear at or within the designated time at the city tax collector's office to answer for the violation.

Vehicle means every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, excepting devices moved by human power or used exclusively upon fixed rails or tracks; provided that for the purposes of this chapter, bicycles and all micromobility vehicles shall be deemed vehicles.

Vehicle owner is a registered owner identified by the North Carolina Division of Motor Vehicles.
(Code 1961, § 12-1; Ord. No. 00-32, § 1, 2-1-00; Ord. No. 18-142, § 1, 11-20-18; Ord. No. 20-130, 10-6-20; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-122, 6-21-22; Ord. No. 25-100, § 1, 6-17-25)

State law reference—Definitions, G.S. § 20-4.01.

Sec. 16-2. Territorial application.

The provisions of this chapter are in force everywhere within the jurisdiction of this city, unless otherwise stated.
(Code 1961, § 12-6)

Sec. 16-3. Chapter applicable in alleys.

The provisions of this chapter shall apply to alleys to the same extent as the same applies to roadways.
(Code 1961, § 12-8)

Sec. 16-4. Application of chapter to public employees.

The provisions of this chapter apply to the driver of any vehicle owned by or used in the service of the United States government, this state, or any political subdivision of this state, except persons and vehicles actually engaged in street surface work, including street cleaning, and in construction, repairs or maintenance, but not while traveling to or from such work.
(Code 1961, § 12-2)

State law reference—Similar provisions, G.S. § 20-168.

Sec. 16-5. Application of chapter to bicycles, motorcycles, and animals.

Every person riding a bicycle, motorcycle, or animal or driving an animal-drawn vehicle, is subject to the provisions of this chapter, except those which are clearly inapplicable.
(Code 1961, § 12-5)

State law reference—Application of traffic laws to bicycles, G.S. § 20-4.01(49): application of traffic laws to animals and animal-drawn vehicles, G.S. § 20-171.

Sec. 16-6. Authorized emergency vehicles—Generally.

(a) When the driver of an authorized emergency vehicle other than an ambulance or casualty-carrying vehicle is lawfully activating emergency equipment as required by state law, and the nature of his/her/their official duty requires it, he/she/they may:

(1) Park without regard to the provisions of this chapter.

(2) Turn without regard to the provisions of this chapter.

(3) Exceed the speed limits fixed by this chapter.

(4) Ignore traffic-control devices, including traffic lights.

(5) Drive through a funeral procession.

(b) Nothing in this section may be construed to permit the driver of an authorized emergency vehicle to operate in reckless disregard of the safety of others.
(Code 1961, § 12-3; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Special privileges of emergency vehicles and equipment, etc., G.S. § 20-156.

Sec. 16-7. Same—Ambulances and casualty-carrying vehicles.

(a) When the driver of an ambulance or casualty-carrying vehicle is making an emergency run, and is lawfully activating emergency equipment as required by state law, he/she/they may:

(1) Proceed to his/her/their destination and return from his/her/their destination at the speed limit prescribed in the area in which he/she/they is traveling, except that in emergency cases where the life of the casualty patient being transported or to be transported is in immediate danger, he/she/they may exceed any speed limit by not more than ten (10) miles per hour.

(2) Ignore traffic-control devices including traffic lights.

(3) Drive through a funeral procession.

(b) Nothing in this section may be construed to permit the driver of an ambulance or casualty-carrying vehicle to operate in reckless disregard of the safety of others.
(Code 1961, § 12-4; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Special privileges of emergency vehicles and equipment, etc., G.S. § 20-156.

Sec. 16-8. Obstructions to cross-visibility at intersections.

(a) In order to promote and conserve the public health and safety and pursuant to the police powers of the city and the power to prevent and abate public nuisances, it is declared to be a public nuisance for any person owning and/or having the legal control of any land within the corporate limits of the city to maintain or permit upon any such land any fence, sign, billboard, mailbox, shrubbery, tree, natural growth, earthen berm, or any other object, or any combination thereof, which obstructs the view of motorists using any street or approach to any street intersection so as to constitute a traffic hazard or a condition dangerous to the public safety.

(b) The restrictions set forth in this section shall apply to the plan view of the triangular area bounded by the curb (or edges of pavement where there is no curb) upon the street and a diagonal line joining points to the curb (or edge of pavement where there is no curb); the triangular area shall be defined by projecting the curb or edge of pavement for the abutting streets to an imaginary point of intersection. The base lines for the triangle shall be defined by measuring a minimum distance (as indicated in Table 1 below) along the major (nonstop) street and twenty (20) feet along the minor (stop) street from this point of intersection.

TABLE 1.

Speed Limit of Major Street (in miles per hour)	*Distance along Major Street (in feet)*
25	*150*
30	200
35	250
40	300
45	350
Speed Limit of Major Street (in miles per hour)	*Distance along Major Street (in feet)*
25	*150*
50	400
55	500

It shall be noted that the above Table 1 is indicating minimum sight clearance distances. Because of the unusual characteristics in the horizontal and vertical alignments of the roads of Greensboro (with curves and small hills), the distances along the major (nonstop) street will be determined according to the city transportation director or his/her/their designee on a case by case situation.

(c) Within the triangle, and except as provided in subsection (d) below, it shall be unlawful to install, set out or maintain, or allow the installation, setting out, or maintenance of any fence, sign, billboard, mailbox, shrubbery, tree, natural growth, earthen berm, or any other object of any kind which obstructs cross-visibility at a level between thirty (30) inches and ninety-six (96) inches above the average grade of the adjacent street.

(d) The provisions of subsection (c) shall not apply to:

(1) Permanent structures (i.e. buildings, bridge railings, retaining walls).

(2) Existing natural grades of existing streets which, by reason of natural topography, rise thirty (30) or more inches above the average grade of the adjacent streets.

(3) Fire hydrants, public utility poles, street markers, governmental signs, and traffic-control devices.

(e) Where compliance with this section in the foregoing described triangles is insufficient to prevent a potentially dangerous condition, the city transportation director may designate further measures which must be taken by the owner or other responsible person to eliminate such potentially dangerous conditions. Such measures shall be designated to provide an adequate sight and stopping distance for persons approaching the intersection at the prevailing speeds and

may include the removal of obstructions at different heights or in areas outside the triangle established in subsection (b) above.

(f) If the provisions of any other law, ordinance or regulation of the city or of the state shall be in conflict with the provisions of this section, the more stringent provision shall control.

(g) The administration of this section shall be under the direction of the city transportation director or his/her/their designee who shall investigate violations, issue such notices and orders as are required herein, and perform such other duties as may be necessary to the enforcement hereof.

(h) Any obstruction to cross-visibility maintained in violation of this section shall be deemed to be a public nuisance inconsistent with and potentially detrimental to public safety and shall be abated in accordance with the following procedure:

(1) Upon the initial inspection of the intersection, the city transportation director or his/her/their designee shall leave a sight obstruction notice, identifying the obstruction item(s) to be trimmed or removed within the maximum time requirement of ten (10) days, at the premises upon which such obstruction exists.

(2) Following the ten (10) days, if the sight obstruction has not been removed, the city transportation director or his/her/their designee shall cause to be served by personal delivery or registered or certified mail a written notice and order of abatement upon the owner, tenant and-or person having legal control of the premises upon which such obstruction exists. A person who cannot with due diligence be served by personal delivery or registered or certified mail may be served by publication in the manner provided for service of process in G.S. 1A1, Rule 4(j1) of the North Carolina Rules of Civil Procedure.

(3) Such obstruction shall be removed within ten (10) days from the date of receipt, or ten (10) days from the date of the returned certified or registered mail stub or affidavit of publication.

(4) If compliance with such order by any person is disregarded, the city transportation director or his/her/their designee is hereby authorized to enter upon the premises in question and cause the removal and abatement of such obstruction by city services and/or independent contractor.

(5) Any person receiving such notice and order may, within ten (10) days from the receipt thereof, request, in writing, a hearing before the city transportation director or his/her/their designee. The hearing shall be held not later than ten (10) days following the date of the request. The city manager or the city transportation director shall then fix the date of the hearing and notify the person upon whom the notice and order has been served of the time and place of such meeting. If, after such hearing, the city manager or his/her/their designee finds the obstruction in question does in fact, constitute a public nuisance, the city transportation director or his/her/their designee may order that such nuisance be abated within ten (10) days from the date of such order. Upon failure by any person to comply with such order of the city manager or his/her/their designee, the city transportation director or his/her/their designee is hereby authorized to enter upon the premises in question and cause the removal and abatement of such obstruction by city forces and/or independent contractor.

(6) If any person receiving a written notice and order from the city transportation director does not comply with the order or does not respond or acknowledge certified mail attempt and does not request, in writing, a hearing before the city manager or his/her/their designee within said ten (10) days, the city transportation director or his/her/their designee is hereby authorized to enter upon the

premises in question and cause the removal and abatement of such obstruction by city forces and/or an independent contractor.

(7) Upon the completion of such removal and abatement, the city transportation director or his/her/their designee shall deliver to the city tax collector a statement showing the actual cost of the abatement of the unlawful condition plus an additional fee of twenty-five dollars ($25.00) to cover the cost of notice and the cost of collection. The city tax collector shall thereupon mail to the owner of the subject property a bill covering the cost, if with reasonable diligence the name and address of such owner can be ascertained, and the amount of the bill shall become a lien upon said subject property, and if not paid within (30) days shall be collected as in the manner provided for collection of delinquent taxes.

(i) A person who shall maintain or permit any such public nuisance and who shall fail, refuse or neglect to remove, destroy or otherwise eliminate such condition constituting such public nuisance as hereinbefore defined within the period prescribed by the director of public works (or his/her/their designee) or, in the event of an appeal, within the period prescribed by the city manager (or his/her/their designee) shall be guilty of a class 3 misdemeanor pursuant to G.S. § 14-4 with a maximum fine of fifty dollars ($50.00).

(j) In addition to the other remedies provided herein, the city shall be entitled to seek a judicial injunction and order of abatement or other equitable remedy to secure the enforcement of this section, regardless of whether the city manager has held or been requested to hold a hearing or the city manager or city council has declared the condition a nuisance.

(k) The foregoing procedure does not apply in emergency cases where it reasonably appears there is immediate danger to the life or safety of any person or to the safety of other property. In emergency cases, the city transportation director or his/her/their designee shall have the authority to immediately remove such obstruction and the cost of such removal shall be assessed against the property owner. Prior to taking the action, the city transportation director or his/her/their designee shall place a notice of the condition which constitutes a dangerous obstruction on the property giving the property owner two (2) days to remove the obstruction prior to the city's taking action.

(Code 1961, § 12-26; Ord. No. 00-230, §§ 1-6, 12-5-00; Ord. No. 05-163, §§ 1, 2, 7-19-05; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-122, 6-21-22)

Cross references—Nuisances, Ch. 17; vegetation overhanging streets, etc., § 26-13.

Sec. 16-9. Reserved.

Editor's note—Ord. No. 18-102, § 1, adopted August 14, 2018, repealed § 16-9, which pertained to soliciting business, etc., in streets. See Code Comparative Table for complete derivation.

Sec. 16-10. Putting objects or substances on street or other public place or space.

It shall be unlawful to throw, drop or deposit, or cause to be thrown, dropped or deposited on any street, avenue, alley, highway, footway, sidewalk, park, or other public place or space in the city, any object, substance, or waste (including but not limited to, refuse, garbage, ashes, rubbish, building rubbish, dead animals, putrescible matter, paper, drinking cups, broken glass, tacks, brush, grass, weeds, and anything injurious to health). Any person who accidentally drops any such object or substance on a street must immediately remove it, or cause it to be removed. If the item is a vehicle, the procedures set forth in chapters 16 or 17 of these ordinances shall set forth the manner of removal. Any person removing a wrecked or damaged vehicle from a street must remove any injurious substance or hazard left on the street as a result of the damage to the vehicle. Pursuant to G.S. § 14-4(a) a violation of this section shall be a class 3 misdemeanor with a maximum fine of fifty dollars ($50.00).

(Code 1961, § 12-89; Ord. No. 22-122, 6-21-22; Ord. of 10-3-22(3))

Cross reference—Littering, § 25-3.

Sec. 16-11. Riding on part of vehicle not intended for passengers.

(a) It shall be unlawful to ride on a vehicle or any part of a vehicle not designed for the use of passengers.

(b) The provisions of subsection (a) do not apply to an employee engaged in the necessary discharge of a duty or to persons riding within truck bodies in spaces designed for merchandise.

(c) Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-83; Ord. No. 22-122, 6-21-22)

Secs. 16-12—16-30. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT*

DIVISION 1. GENERALLY

Sec. 16-31. Traffic engineer appointment; duties.

The traffic engineer of the city shall be appointed by the city manager and shall be under the supervision and control of the city manager. The traffic engineer shall perform such duties as may be required of him/her/them by the city manager.
(Code 1961, § 2-46; Ord. No. 20-163, § 3, 12-15-20)

Sec. 16-32. General duty of law enforcement officers.

It is the duty of the law enforcement officers of the city to enforce all of the provisions of this chapter and all of the state motor vehicle laws.
(Code 1961, § 12-12)

State law reference—Similar provisions, G.S. § 20-183.

Sec. 16-33. Authority to direct traffic; obedience to directions.

In the event that it becomes necessary for the regulation of traffic or the safety of pedestrians, the law enforcement officers of the city may direct traffic as required. No person may refuse to comply with a lawful order of a law enforcement officer when the order is given under the authority of this section.
(Code 1961, § 12-14(a))

State law reference—Obedience to traffic control officers or law enforcement officers, G.S. § 20-114.1.

Sec. 16-34. Street and sidewalk obstructions.

It is the duty of the law enforcement officers of this city to take all reasonable measures to prevent the obstruction of streets and sidewalks.
(Code 1961, § 12-15)

Sec. 16-35. Accident investigation, etc.

It is the duty of the law enforcement officers of the city to investigate traffic accidents and to obtain prosecution of those persons apparently guilty of violations of this chapter or state motor vehicle laws causing or contributing to those accidents. The owner of any ambulance or wrecker must arrange for the police department to be notified before leaving to answer a call to the scene of a traffic accident.
(Code 1961, § 12-13)

Cross reference—Accident report by motorbuses, § 28-12.

State law reference—Accidents, G.S. § 20-166 et seq.

Sec. 16-36. Issuance of traffic citation.

When it appears that a provision of this chapter or a state motor vehicle law, other than a provision of this chapter or a state motor vehicle law regulating parking, has been violated, the law enforcement officer detecting the apparent violation is authorized to take the suspected violator's name, address, operator's license number, and the state and city registration number of the vehicle involved, and to issue to him/her/them a traffic citation.
(Code 1961, § 12-18; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Warning tickets authorized, G.S. § 20-183.

*__Charter reference—__Traffic bureau, § 5-121.

Sec. 16-37. Accountability for traffic citation.

The chief of police or his/her/their designated official shall be accountable for the receiving and issuing to officers of the police department, uniform traffic citations printed and distributed by the state or issuing a citation electronically. Such accountability shall include recording by citation numbers those citation books received from the state, the issuance of citation books to officers and those citations given the public. Such records shall be maintained and made available until audited by state auditors.
(Code 1961, § 12-17; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-122, 6-21-22)

Sec. 16-38. Permission for oversize vehicles.

The city manager may grant permission to city employees for good cause shown, to move vehicles and equipment of the city over the streets of the city exceeding the size or width set out in chapter 20 of the North Carolina General Statutes.
(Code 1961, § 12-80)

State law references—Special permits for oversize vehicles, G.S. § 20-119; size and load restrictions generally, G.S. § 20-115 et seq.

Sec. 16-39. Vehicle impoundment, redemption, etc.

(a) Law enforcement officers of the city or other city officials designated by the chief of police shall ticket or impound or cause to be impounded the following vehicles:

(1) Vehicles parked within five (5) feet of a fire hydrant in violation of section 16-135.

(2) Vehicles parked in commercial and passenger loading zones indicated by legends F-1, F-2, F-3, F-4, F-5, F-9, F-11 and F-12 under schedule 4 in violation of section 16-146 or 16-147.

(3) Vehicles parked in front of or in the entrance to a public or private alley.

(4) Vehicles parked so as to obstruct a private driveway in violation of section 16-134.

(5) Vehicles other than buses parked in a bus stop in violation of section 16-148.

(6) Vehicles parked in special traffic lanes indicated by legends E-1, E-2, E-3, E-4, E-5, E-6, E-7, E-8, E-9 and E-10 under schedule 4 in violation of section 16-143, 16-144 or 16-145.

(7) Vehicles apparently abandoned on the streets within the fire limits of the city, or on property owned or operated by the city, for a period of forty-eight (48) hours or any other section of the city for a period of seven (7) days.

(8) Vehicles parked within twenty-five (25) feet of a street intersection in violation of the G.S. § 20-162.

(9) The parking of oversized vehicles parked on streets in violation of section 16-161.

(10) Vehicles parked except while receiving or discharging passengers in special waiting lanes indicated by legend F-10 under schedule 4 in violation of section 16-150 established for the purpose of alleviating dangerous traffic congestion.

(11) Vehicles parked upon medians in violation of section 16-115.

(12) Vehicles parked in a controlled residential parking area over the allowed time without a parking permit as indicated by the legend "J" under schedule 4 in violation of section 16-198.

(13) Vehicles parked in a space designated for physically handicapped persons when such vehicle does not display the distinguishing license plate or placard as provided by G.S. § 20-37.6 in violation of section 16-157.

(14) Vehicles parked in an area in which an exhibition show is conducted without the express permission of the person in charge of the exhibition show in violation of section 26-200.

(15) Any vehicles, the operators of which have been arrested if the vehicle cannot be lawfully parked at the scene of arrest, or if the operator refuses to give written

permission to leave the vehicle lawfully parked, or if the vehicle is not placed in the control of a licensed driver of the operator's choice who is present at the scene and is willing to accept responsibility for the vehicle.

(16) Any motor vehicle found parked in a parking lot or garage owned or operated by the city as a public parking lot or garage in violation of section 16-154.

(17) Any motor vehicle found parked in a parking facility owned or operated by the city as a private parking lot in violation of section 16-155.

(18) Vehicles parked during snow removal operations in violation of section 16-163.

(19) Vehicles parked in an on-street parking space, in violation of subsection 16-151.1, which is reserved for law enforcement vehicles.

(20) Not more than one (1) motor vehicle shall be parked in a parking space.

(21) Vehicles parked over a water meter box in violation of subsection 16-135.1.

(22) Vehicles parked so as to obstruct a sidewalk, private driveway, crosswalk, safety zone, or railroad crossing.

(23) Oversized vehicles parked in violation of 16-161 for the third or any subsequent offenses pursuant to section 16-71(a).

(b) The law enforcement officers or other designated city officials shall tow and store or cause to be towed and stored any such vehicle in a suitable place designated by the city.

(c) No vehicle shall be released from impoundment until the person seeking possession of the vehicle shall obtain from the chief of police or his/her/their duly appointed official a signed release authorization form. The release form shall be issued only upon the occurrence of one (1) of the following:

(1) The owner or other person in charge of the vehicle has been provided a hearing to determine the lawfulness of the impoundment and to affix the responsibility for any costs incident to towing and storage; further, that such costs have been paid by either the person or the city.

(2) The owner or other person in charge of the vehicle has been given notice of his/her/their right to a hearing to determine the lawfulness of the impoundment but has elected to waive such hearing and pay all costs incident to towing and storage.

(d) An administrative fee incurred by the city to be determined by the city manager or his/her/their designee incident to towing an impounded vehicle shall be paid by the owner or person in charge of the impounded vehicle to the city. Upon receipt of said administrative costs, the Greensboro Police Records Division shall issue the person a receipt and a claim check authorizing the release of the impounded vehicle upon payment of appropriate towing and storage fees to the wrecker service company. The impounding fees shall be maintained in "appendix A" of the "Standards for Wrecker Service" for the City of Greensboro.

(e) In the event that the owner or person in possession of a vehicle appears after a law enforcement officer or other designated city official has called for towing equipment incident to impounding a vehicle but before the vehicle has been actually removed from the scene, the law enforcement officer or other designated city official may release said vehicle to such person only upon payment to the private towing company so employed of a charge maintained in "appendix A" of the "Standards for Wrecker Service", for the City of Greensboro. However, the officer or official shall advise the owner or other person in charge of the right to the aforementioned hearing prior to any payment. If a hearing is requested without such payment, the vehicle shall be impounded and the owner or other person in charge shall be given a hearing within forty-eight (48) hours. The hearing shall be conducted by the watch commander of the Greensboro Police Department then on duty when the hearing is conducted, or by the executive officer to the chief of police in circumstances where the duties of the watch commander would prevent the hearing to be conducted within a reasonable

period of time. In the event the person desires to make payment immediately in order to obtain possession of the vehicle such person may do so provided he/she/they either signs a waiver of the hearing, or signs a request for a hearing to be held within forty-eight (48) hours. If the hearing officer determines that the towing and impounding were proper then the owner or other person in charge shall be responsible for all such costs incident to towing and storage. Upon payment of any costs affixed by the hearing officer, the owner or other person in charge shall receive the vehicle. If the hearing officer decides that the towing was not proper, the city shall be responsible for such costs or reimbursement where payment has been previously made by the owner or person in charge.

(f) The hearing shall be conducted according to a standard procedure promulgated by the chief of police or his/her/their designee and approved by the city manager. Such procedure shall insure that the owner or other person in charge of any vehicle subject to impoundment under this section shall either be notified personally or be sent notice within seventy-two (72) hours of the towing that such vehicle has been impounded. The notice shall explain the procedure by which the owner or the person in charge may assert his/her/their right to a hearing to determine the propriety of the impoundment and the responsibility for costs incident to impoundment prior to the payment of any costs, lien or fine assessed. If a hearing is not requested within ten (10) days after receipt of notice, the right to a hearing shall be deemed to have been waived.

(g) Law enforcement officers of the city or other city officials designated by the chief of police shall tow or cause to be towed vehicles that the owner/driver require immediate towing services because of traffic safety issues. These towing services will be accomplished by use of the city contract towing system when the owner/driver are unable to expeditiously contact a towing service or urgent necessity requires the removal due to traffic safety issues.

(h) All fees for towing services which may be charged by wrecker service companies contracted to tow vehicles under this article shall be determined in a request for qualifications issued by the city. The schedule of fees issued in the request for qualifications shall be determined by the city manager. Wrecker service companies meeting the requirements maintained in "appendix A" of the "Standards for Wrecker Service" shall be eligible to contract with the city for towing services to be provided under this article. The duration of said contracts shall be three (3) years, and the city may extend any such contract for no more than two (2) one-year increments.

(Code 1961, §§ 12-24, 12-25, 12-46(26), (27); Ord. No. 90-40, § 1, 3-15-90; Ord. No. 91-63, § 1, 5-20-91; Ord. No. 92-158, §§ 1, 2, 12-31-92; Ord. No. 95-82, § 2, 7-19-95; Ord. No. 97-105, §§ 1—4 6-17-97; Ord. No. 03-152, 6-17-03; Ord. No. 03-174, §§ 1, 2, 7-15-03; Ord. No. 03-210, §§ 1—5, 9-16-03; Ord. No. 06-241, § 1, 11-7-06; Ord. No. 07-204, § 1, 9-18-07; Ord. No. 07-239, §§ 1, 2, 10-16-07; Ord. No. 09-132, § 1, 8-3-09; Ord. No. 10-78, § 1, 6-15-10; Ord. No. 12-104, § 1, 9-4-12; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-173, § 2, 11-17-21)

Cross reference—Abandoned and junked vehicles, § 17-51 et seq.

Sec. 16-40. Unlawful removal of impounded vehicle.

It shall be unlawful for any person to remove or attempt to remove from any storage facility designated by the city any vehicle which has been impounded pursuant to the provisions of this Code. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).

(Code 1961, § 12-24.1; Res. No. 048-24, § 1, 2-20-24)

Charter references—Impoundment of vehicles on public property, § 5.111(d); liens for removal of abandoned vehicles from private property, § 6.32.

State law reference—Impoundment of vehicles, G.S. §§ 20-219.2 et seq., 160A-303.

Secs. 16-41—16-50. Reserved.

DIVISION 2. TRAFFIC-CONTROL SIGNS, SIGNALS, DEVICES AND MARKINGS*

Sec. 16-51. Obedience.

Subject to the exemptions granted the driver of an authorized emergency vehicle the driver of every vehicle must obey the instructions of any official traffic-control device when placed in accordance with this chapter. A law enforcement officer may direct all vehicles, including authorized emergency vehicles, without regard to such devices when necessary for the public safety or the regulation of traffic.
(Code 1961, §§ 12-16(c), 12-29; Ord. No. 25-145, 8-19-25)

Sec. 16-52. Placement and maintenance.

(a) The traffic engineer has the duty to place and maintain official traffic-control devices as required by this chapter. In the event that it becomes necessary for the regulation of traffic or the safety of pedestrians, the traffic engineer shall designate and make effective the location of official traffic-control devices upon a determination by him/her/them:

(1) If such a vehicle is to be installed at a particular location, that its installation is necessary in order to control traffic congestion in the interest of public safety; or

(2) If such a device is to be moved or removed from a particular location, that the device is no longer required at such location for control of traffic congestion in the interest of public safety.

(b) In the event that it becomes necessary for the regulation of traffic or the safety or pedestrians, the law enforcement officers of the city may place temporary official traffic-control devices without regard to the other provisions of this chapter.

(c) Vehicular traffic lights described in this section shall be placed as designated in traffic schedule no. 1. Pedestrian signals shall be placed as designated in traffic schedule no. 5. Flashing signals shall be placed as designated in traffic schedule no. 6.

(d) Each location of an official traffic-control device installed pursuant to subsection (a) shall be entered upon the official traffic records under the direction of the city manager and retained permanently in the office of the city clerk.
(Code 1961, §§ 12-14, 12-16(a)(b), 12-31(c), 12-32(b); Ord. No. 20-163, § 3, 12-15-20; Ord. No. 25-145, 8-19-25)

State law reference—Authority to install traffic control signs, devices, etc., G.S. §§ 20-158, 20-158.1, 20-169.

Sec. 16-53. Traffic schedules.

The following traffic schedules, compiled under the direction of the city manager, and inserted in official traffic records and kept on file in the office of the city clerk are adopted and made a part of this chapter:

No. 1.—Intersection control.

No. 2.—Speed control.

No. 3.—Turn control.

No. 4.—Curb restrictions.

No. 5.—Pedestrian signal lights.

No. 6.—Flashing lights.

No. 7.—One-way streets.

No. 8.—Truck routes.

No. 9.—Public off-street parking lots.

No. 10.—Bicycle-sidewalk lanes.

No. 11.—Bicycle-street lanes.

No. 12.—Low speed vehicle (LSV) taxi and alternative passenger vehicle routes.
(Code 1961, § 12-103; Ord. No. 18-099, § 2, 7-17-18; Ord. No. 25-145, 8-19-25)

Sec. 16-54. When required for enforcement.

When a section of this chapter does not state that official traffic-control devices are required, the section is effective without devices being placed to give notice thereof.
(Code 1961, § 12-30; Ord. No. 25-145, 8-19-25)

*__Charter reference—__Traffic control devices, § 5.114.

Sec. 16-55. Unauthorized devices.

It shall be unlawful to display any unauthorized traffic-control device on public streets which directs or purports to direct vehicular or pedestrian traffic. No sign shall be erected which simulates an official traffic-control or warning sign in such a manner as to, or would in any way, confuse or mislead the traffic. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, §§ 12-33, 17-9(f); Ord. No. 22-122, 6-21-22; Ord. No. 25-145, 8-19-25)

Sec. 16-56. Tampering.

It shall be unlawful to alter, remove, or tamper with an official traffic-control device. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-34; Ord. No. 22-122, 6-21-22; Ord. No. 25-145, 8-19-25)

Sec. 16-57. Avoidance.

It shall be unlawful to drive across a sidewalk or through other property for the purpose of avoiding an official traffic-control device. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-35; Ord. No. 22-122, 6-21-22; Ord. No. 25-145, 8-19-25)

Sec. 16-58. Traffic control photographic systems.

(a) *Administration.* Pursuant to G.S. § 160A-300.1, the City of Greensboro shall implement a system to capture violations of and for the civil enforcement of G.S. § 20-158, with a traffic control photographic system that will use photographic images as prima facie evidence of the traffic violations and will authorize the Greensboro Police Department or an agent of the department to issue civil citations.

The Greensboro Police Department shall administer the traffic control photographic program and shall maintain a list of system locations where traffic control photographic systems are installed.

Any citation for a violation of G.S. § 20-158 or other traffic violation, issued by a duly authorized law enforcement officer at a system location shall be treated, pursuant to G.S. § 20-156, as an infraction so long as the system photographic images are not used as prima facie evidence of the violation.

The citation shall clearly state the manner in which the violations may be reviewed. The citation shall be processed by officials or agents of the city and shall be forwarded by personal service or first-class mail to the owner's address as given on the motor vehicle registration.

The Greensboro Police Department shall issue an annual report to the city council containing:

(1) The number of citations issued;

(2) Total fines collected;

(3) Amounts remitted to the Guilford County Board of Education; and

(4) A summary of system performance and crash data at system locations.

(b) *Offense.*

(1) It shall be unlawful for a vehicle to cross the stop line at a system location when the traffic signal for that vehicle's direction of travel is emitting a steady red light, or for a vehicle to violate any other traffic regulation specified in G.S. § 20-158.

(2) The registered owner is presumed responsible for the violation unless the owner submits a sworn affidavit, under penalty of perjury, transferring liability in accordance with G.S. 160A-300.1. Affidavits that fail to identify another party or are unsigned shall not be accepted.

(3) Notwithstanding subsection (2), the owner shall not be responsible for the violation if, within twenty-one (21) days, the owner provides reliable evidence stating that the vehicle involved was, at the time of

the citation, reported as stolen or was being used without authorization. Any affidavit alleging that a vehicle was stolen must be supported by additional evidence such as official insurance or police report information.

(c) *Penalty.* Any violation of this section shall be deemed a civil violation with a fine of fifty dollars ($50.00) that does not constitute a criminal conviction, infraction, or moving violation. The city shall not assess points against a driver's license or report the citation to the North Carolina Division of Motor Vehicles. Failure to pay the fine or to respond to the citation within twenty-one (21) days shall constitute a waiver of the right to contest responsibility for the violation and shall subject the owner of the vehicle to an additional fine of fifty dollars ($50.00). The city may establish procedures for the collection of civil penalties resulting from photographic enforcement program violations and may enforce such penalties by a civil action in the nature of a debt.

In accordance with N. C. Const. art. IX, § 7, ninety (90) percent of the net proceeds collected through the ordinance from which this section is derived shall be remitted to the Guilford County Board of Education. The remaining proceeds may be used for the administration and operation of the traffic control photographic program.

(d) *Nonjudicial administrative hearing.* The Greensboro Police Department, through its traffic enforcement division or a designated contractor, shall administer the automated traffic enforcement program and shall establish an administrative process to review objections to citations or penalties issued or assessed. When a violation of G.S. § 20-158 (failure to stop at a red light) is detected by an automated enforcement system, a notice of violation (NOV) shall be mailed to the registered owner of the vehicle within fifteen (15) days of the violation.

(e) *Request for hearing notice.* A notice requesting a hearing must be filed within twenty-one (21) days from the date the notice of violation was mailed to the vehicle owner, as indicated in the citation record. Any person receiving a notice of violation may contest it through the city's established administrative hearing process. The imposition or collection of any fine shall be stayed until completion of the applicable administrative review process. The hearing officer or appointee shall not be required to apply the North Carolina Rules of Evidence and may base their decision on a preponderance of the evidence standard. The hearing officer or appointee shall issue a written decision within ten (10) days of the hearing. The decisions made by the hearing officer or appointee are final and will be mailed to the owner of the vehicle. The owner of the vehicle will pay the civil penalty within thirty (30) days of the date of the decision or face an additional fifty dollar ($50.00) fine. The decision of the hearing officer or appointee is final and subject only to review by the superior court by writ of certiorari. No civil penalty assessed under this section, including late fees, shall exceed the maximum amounts permitted by G.S. § 160A-300.1.

(f) *Frivolous challenges.* Hearing officers or appointees are authorized to disregard arguments based on challenges to the proprietary code or algorithm of the enforcement system, theoretical legal arguments not grounded in North Carolina statutory or case law, or claims that municipal or state law is invalid due to federal constitutional misinterpretation.

(1) *Fraudulent affidavit penalty.* Any false affidavit shall subject the declarant to a two hundred fifty dollar ($250.00) civil penalty and may be referred for criminal prosecution under G.S. § 14-209 or 14-119.

(2) *Vehicle malfunctions or camera legitimacy.* System reliability is presumed when the equipment is certified by a licensed engineer, and such certification shall suffice for evidentiary purposes under G.S. § 8-45.

(3) All automated enforcement systems shall be reviewed and certified annually by a professional engineer licensed in the State of North Carolina. The certification report shall be retained for evidentiary purposes and available upon request.

(Ord. No. 25-145, 8-19-25)

Secs. 16-59—16-70. Reserved.

DIVISION 3. PARKING VIOLATIONS*

Sec. 16-71. Civil penalty.

(a) Except as hereinafter provided, for each violation as set forth in section 16-73, there shall be a fixed civil penalty charge in the amount of twenty dollars ($20.00). For subsection 16-73(a)(21), expired meter parking, there shall be a fixed civil penalty charge in the amount of twenty dollars ($20.00). For unlawful parking in a restricted handicapped space, there shall be a fixed civil penalty charge in the amount of two hundred fifty dollars ($250.00); provided that if the person charged furnishes proof that at the time the parking ticket was issued, he/she/they was assigned a valid distinguishing handicap license plate or placard but had failed to display it on the vehicle, the fixed civil penalty shall be in the amount of thirty-five dollars ($35.00). For unlawful parking by protruding beyond a designated parking space (subsection 16-73(a)(5)) or parking in a manner that blocks or in any manner interferes with the placing of a motor vehicle in a regular designated public space or the removal of a motor vehicle for any such designated parking space (subsection 16-73(a)(12) but only to the extent it relates to a violation of subsection 16-154(a)) there shall be a fixed civil penalty of twenty dollars ($20.00). For unlawful parking within five (5) feet of a fire hydrant, there shall be a fixed civil penalty charge in the amount of fifty dollars ($50.00). For any person who shall park a vehicle or permit it to stand, whether attended or unattended, upon any public vehicular area, street, highway or roadway in any area designated as a fire lane there shall be a fixed civil penalty charge in the amount of fifty dollars ($50.00). This prohibition includes designated fire lanes in shopping center or mall parking lots and all other public vehicular areas. Provided, however, persons loading or unloading supplies or merchandise may park temporarily in a fire lane located in a shopping center or mall parking lot as long as the vehicle is not left unattended. For unlawful front yard parking (subsection 16-73(a)(22)), there shall be a fixed civil penalty charge in the amount of fifty dollars ($50.00). For unlawful parking of oversized vehicles (subsection 16-161), there shall be a fixed civil penalty charge in the amount of one hundred dollars ($100.00) for the first offense, a fixed civil penalty charge in the amount of two hundred fifty dollars ($250.00) for a second offense committed by the same vehicle within a rolling twelve (12) month period of the first offense, notwithstanding whether the operator or owner of the vehicle is the same for both offenses, and for a third offense and any additional offenses committed by the same vehicle within a rolling twelve (12) month period of the second or more recent offense, notwithstanding whether the operator or owner of the vehicle is the same for any of the previous offenses, the city shall cause the vehicle to be towed pursuant to subsection 16-39.

(1) Vehicles parked so as to obstruct sidewalk, private driveway, crosswalk, safety zone or railroad crossing.

(2) Vehicles parked in commercial and passenger loading zones.

(3) Vehicles parked in front of, in the entrance to, or within five (5) feet in either direction of a public or private alley.

(4) Vehicles parked in front of or within five (5) feet in either direction of a private driveway or road.

(5) Vehicles other than buses parked in a bus stop.

(6) Vehicles parked within twenty-five (25) feet of an intersection.

(7) Vehicles parked on medians.

(8) Vehicles parked overtime in controlled residential parking areas without permits.

(9) Vehicles parked in city-owned parking lot or garage without permit.

(10) Vehicles parked in "No Parking Anytime" zones.

When the owner of a vehicle, or his/her/their agent, makes proper payment of a parking ticket within forty-five (45) days following the date of issuance of the ticket, the obligation thereunto shall be discharged. If such charge has not been paid within the forty-five-day period set out

*__Charter reference—__Traffic bureau, § 5.121.

above, the parking violation ticket shall be deemed to be delinquent and subject to the additional penalties provided for in subsection (b). The parking violation shall have stated thereon that payment is due within forty-five (45) days from date of issue to avoid an additional penalty of twenty-five dollars ($25.00) and court costs. If such charge has not been paid within ninety (90) days, the delinquent parking violation ticket shall be subject to an additional penalty provided for in subsection (b). The parking violation shall have stated thereon that payments delinquent more than ninety (90) days after the date of issue are subject to a penalty of thirty-five dollars ($35.00) and court costs.

(b) The city tax collector may accept payments in full and final settlement of the claim or claims, rights or rights of action which the city may have to enforce such penalties, by civil action in the nature of debt. A failure to pay the penalty within the prescribed time shall subject the offender to a civil action in the nature of debt for the stated penalty plus additional penalties for each separate parking violation ticket, as follows:

(1) A penalty of twenty-five dollars ($25.00) per ticket together with the costs of the action to be taxed by the court if the parking ticket is not paid within forty-five (45) days following the date of issuance of the ticket.

(2) An additional penalty of ten dollars ($10.00) for a total penalty of thirty-five dollars ($35.00) per ticket together with the costs of the action to be taxed by the court if the parking ticket is not paid within ninety (90) days following the date of issuance of the ticket.

(c) A violation listed in section 16-73 shall not constitute a misdemeanor or infraction punishable under G.S. § 14-4, but instead shall be subject to the civil penalties fixed by subsection (a) of this section and the civil remedies provided by G.S. § 160A-175. Any properly designated city official is authorized to take legal action in the nature of a civil suit for the collection of a debt when the civil penalty, including the delinquent civil penalty, has not been paid.

(d) The civil penalties imposed by this section and the proceeds therefrom, as collected by payment, civil action, or otherwise, shall belong to the city and shall be paid into the general fund of the city under such conditions as prescribed by the annual budget.

(e) Each hour a vehicle is parked in the same space following the issuance of a parking ticket shall constitute a separate violation subject to issuance of a new parking ticket and additional civil penalty to be applied to such vehicle.
(Code 1961, § 12-21(a)—(c), (e), (f); Ord. No. 87-50, § 2, 5-4-87; Ord. No. 87-92, § 1, 7-16-87; Ord. No. 90-130, § 2; 10-11-90; Ord. No. 91-127, § 1, 10-17-91; Ord. No. 93-127, § 1, 10-28-93; Ord. No. 97-123, § 1, 7-15-97; Ord. No. 97-138, § 1, 8-5-97; Ord. No. 00-31, § 1, 2-1-00; Ord. No. 10-79, § 1, 6-15-10; Ord. No. 11-125, § 1, 6-21-11; Ord. No. 12-63, § 1, 6-19-12; Ord. No. 13-89, § 1, 6-18-13; Ord. No. 16-11, § 1, 1-19-16; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-173, § 1, 11-17-21; Ord. No. 25-099, § 1, 6-17-25; Ord. of 05-19-2026(1), § 1(Exh. A), 5-19-26)

Sec. 16-72. Computing overtime violations.

The moving of a parked vehicle from one (1) restricted space to another restricted space in the same block is deemed to be one (1) continuous parking period for the purpose of determining overtime parking violations.
(Code 1961, § 12-56)

Sec. 16-73. Issuance of parking ticket.

(a) When one (1) of the following violations has occurred, the law enforcement officer or other person, authorized by and whose enforcement duties are as defined by the chief of police detecting the apparent violation is authorized to take the state and registration number of the vehicle involved, and to place a parking ticket in or on the vehicle involved, or to serve the ticket if the owner or operator is present:

(1) Parking over the specified time limit (sections 16-132, 16-139—16-142, 16-152).

(2) Parking during restricted hours where official parking-control devices are posted (section 16-145).

(3) Parking within twenty-five (25) feet of an intersection (G.S. § 20-162).

(4) Parking within five (5) feet of a fire hydrant or parking a vehicle or permitting it to stand, whether attended or unattended, upon any public vehicular area, street, highway or roadway in any area designated as a fire lane. This prohibition includes designated fire lanes in a shopping center or mall, parking lots, and all other public vehicular areas. Provided, however, persons loading or unloading supplies or merchandise may park temporarily in a fire lane located in a shopping center or mall parking lot as long as the vehicle is not left unattended. (section 16-135).

(5) Protrusion beyond designated parking space (section 16-133).

(6) Parking within five (5) feet of entrance to alley, driveway or private road (section 16-134).

(7) Parking so as to obstruct sidewalk or crosswalk (section 16-134).

(8) Parking within fifty (50) feet of bridge, railroad underpass, or overhead bridge (section 16-136).

(9) Parking within fifty (50) feet of railroad grade crossing (section 16-137).

(10) Parking between edge of roadway and property line (section 16-138).

(11) Parking of oversized vehicles on streets in violation of section 16-161.

(12) Prohibited parking in city-operated parking lots (sections 16-154—16-156).

(13) Parking left side of vehicle to curb on two-way street (section 16-133).

(14) Double parking (section 16-159).

(15) Protrusion into street more than eight (8) feet (section 16-160).

(16) Failure to display city license (section 13-99).

(17) Parking in a controlled residential parking area over the amount of time without a valid residential parking permit (section 16-198).

(18) Parking upon a median strip (section 16-115).

(19) Parking in the following restricted zones:

a. Commercial loading zones (section 16-146).

b. Passenger loading zone (section 16-147).

c. Bus stop (section 16-148).

d. Taxicab stand (section 16-149).

e. Handicapped vehicle parking (section 16-157).

(20) Parking in a prohibited zone (section 16-143).

(21) Expired meter parking (section 16-179).

(22) Vehicles parked on front yards in violation of section 30-11-11 of the land development ordinance (section 16-165).

(23) Parking for the purposes of selling goods, washing, storage, etc. (section 16-162).

(b) Only law enforcement officers and other city officials designated by the chief of police may issue and serve parking tickets. Parking tickets shall be served by placing them on motor vehicle. (Code 1961, §§ 12-19, 12-20; Ord. No. 87-50, § 1, 5-4-87; Ord. No. 92-121, § 1, 9-21-92; Ord. No. 11-125, § 2, 6-21-11; Ord. No. 12-63, § 2, 6-19-12; Ord. No. 16-11, § 2, 1-19-16; Ord. of 05-19-2026(1), § 1(Exh. A), 5-19-26)

Sec. 16-74. Accountability for parking tickets.

The chief of police shall cause all parking tickets to be serially numbered, and shall cause the records of the issuance and disposition of parking tickets to be so maintained that they can be accounted for. The city accountant shall periodically investigate the records for the purpose of

determining the disposition of the parking tickets and shall report the result of his/her/their investigation to the city manager.
(Code 1961, § 12-19; Ord. No. 20-163, § 3, 12-15-20)

Sec. 16-75. Prima facie evidence.

It shall be prima facie evidence in any court in the state that any motor vehicle which was parked in violation of any of the provisions listed in section 16-73 was parked and left upon such street, alley or public way or place by the person in whose name such vehicle is then registered with the state division of motor vehicles.
(Code 1961, § 12-21(d); Ord. No. 87-50, § 2, 5-4-87)

State law reference—Responsibility for parking violations and limitations on penalties, G.S. § 20-162.1.

Sec. 16-76. Removal of parking ticket.

It shall be unlawful to remove a parking ticket from a vehicle or permit it to be removed, except for the purpose of answering the charge for which it was issued. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-22; Ord. No. 22-122, 6-21-22)

Sec. 16-77. Alteration of parking ticket.

It shall be unlawful to alter a parking ticket, and no person may have in his/her/their possession an unlawfully altered ticket. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-23; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-122, 6-21-22)

Sec. 16-78. Immobilization or impoundment of vehicles having unpaid parking tickets.

(a) *Authorized.* The police chief or his/her/their designee may immobilize by the use of wheel locks, or tow and impound, any vehicle which is illegally parked, and for which there are three or more outstanding, unpaid and overdue parking tickets for a period of ninety (90) days. Any such vehicle shall also be deemed to be an abandoned vehicle in violation of article III of chapter 17. However, any parking ticket which is the subject of an approved payment plan, no payment thereunder being delinquent, shall not be considered outstanding, unpaid and overdue for purposes of this section.

(b) *Attachment of wheel lock.* If a wheel lock is attached to a vehicle, a notice shall be affixed to the windshield or other part of the vehicle so as to be readily visible. The notice shall warn that the vehicle has been immobilized and that any attempt to move the vehicle may result in damage thereto. The city shall not be responsible for any damage to an immobilized illegally parked vehicle resulting from unauthorized attempts to free or move that vehicle. An immobilization fee of fifty dollars ($50.00) shall be charged for the removal of the wheel lock. The notice shall also state the total amount of civil penalties due for parking tickets which are overdue and unpaid and attributable to such vehicle, and the fifty dollars ($50.00) immobilization fee to be charged. The address and telephone number to be contacted to pay the charges to have the wheel lock removed shall also be listed.

(c) *Impoundment.*

(1) If the civil penalties due and an immobilization fee of fifty dollars ($50.00) as provided in subsection (b) are not paid within twenty-four (24) hours of the attachment of the wheel lock, such vehicle may be towed and impounded by or at the direction of the police chief or his/her/their designee, to any public or private impoundment lot. If a private contractor tows and stores such vehicle, there shall be imposed against the vehicle the private contractor's actual charges for towing and storing such vehicle; in all other cases there shall be imposed against the vehicle those charges for towing and storage provided by section 16-39.

(2) Once a vehicle has been impounded, the police chief or his/her/their designee shall mail, or cause to be mailed, a notice of impoundment to the registered owner and lienholders, if any are known, at the

address or addresses reported to the city by the state department of motor vehicles.

(d) *Redemption of impounded vehicles.* Upon payment of all civil penalties for unpaid and overdue parking tickets issued for a vehicle and of all other applicable charges authorized by this section, including immobilization, towing and storage fees, the vehicle shall be released from impoundment to the owner or any other person entitled to claim possession of the vehicle.

(e) *Disposition of towed vehicles.* If a vehicle has been towed it may be disposed of in accordance with the provisions of this Code relating to the disposition of abandoned vehicles.

(f) *Request for hearing.* The registered owner or person entitled to possession of any vehicle which has been immobilized or impounded pursuant to this section may submit a request for a hearing to the police chief or his/her/their designee by certified mail within seven (7) days from the receipt of the notice provided for in subsection (c)(2) herein. If a request for a hearing is not made within the allotted time, the right to a hearing shall have been waived. If a hearing is requested, a statement shall be sent to such person to inform him/her/them of the time and place for the hearing, of the basis for the vehicle's immobilization or impoundment, of the rules and regulations governing the hearing, of the opportunity to present evidence as to why such vehicle should not have been immobilized, towed or impounded, and of the right to have counsel present at the hearing. The police chief or his/her/their designee shall serve as the hearing officer, shall conduct a hearing and shall prepare a written report within three (3) days of the hearing stating his/her/their conclusion as to whether the vehicle was properly immobilized, towed or impounded pursuant to this section, and the reasons and evidence underlying his/her/their conclusion. If it is concluded that the vehicle should not have been immobilized, towed or impounded, then any improper charges shall be cancelled, or, if paid, rebated. A copy of the written report shall be furnished to the person who requested the hearing. Any aggrieved party may appeal the police chief's decision to district court by filing appropriate judicial pleadings.

(g) *Identification of vehicles.* For the purpose of determining whether an illegally parked vehicle has had issued against it three (3) or more outstanding, unpaid and overdue parking tickets for a period of ninety (90) days, it shall be sufficient if the license plate number of the illegally parked vehicle and the license plate number of the vehicle having received the tickets are the same.

(h) *Removal of wheel lock.* It shall be unlawful for any person to remove from a vehicle a wheel lock placed thereon pursuant to this section or to remove from impoundment any vehicle placed therein pursuant to this section without all civil penalties and applicable charges having first been paid. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).

(Ord. No. 07-255, § 1, 11-5-07; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-122, 6-21-22)

Secs. 16-79—16-95. Reserved.

ARTICLE III. VEHICLE OPERATION

Sec. 16-96. Reserved.

Editor's note—Ord. No. 22-122, adopted June 21, 2022, repealed § 16-96, which pertained to speed limits and derived from the Code of 1961, §§ 12-62, 12-64, 12-65.

Sec. 16-97. Stop intersections.

When official traffic-control devices are in place indicating stop intersections, it shall be unlawful to drive a vehicle into the intersections designated in traffic schedule no. 1 from the street indicated stop without first bringing it to a complete stop and yielding the right-of-way to all traffic approaching on the intersecting street.
(Code 1961, § 12-67)

State law reference—Authority to erect stop signs and obedience thereto, G.S. § 20-158.

Sec. 16-98. Yield intersections.

When official traffic-control devices are in place indicating yield right-of-way intersections, it shall be unlawful to drive a vehicle into the intersections designated in traffic schedule no. 1 without first slowing down and yielding the right-of-way to any vehicle in movement on the main traveled or through street which is approaching so as to arrive at the intersection at approximately the same time as the vehicle entering the main traveled or through street.
(Code 1961, § 12-68)

State law reference—Erection of yield signs and obedience thereto, G.S. § 20-158.1.

Sec. 16-99. Driving in restricted lanes.

When official traffic-control devices are in place indicating that a roadway lane is restricted to a certain vehicular movement, it shall be unlawful to refuse to obey the indication of the official control devices as designated in traffic schedule no. 3.
(Code 1961, § 12-77)

Sec. 16-100. Left turns as indicated.

In making a left turn at any of the intersections designated in traffic schedule no. 3, the driver of a vehicle must drive to the left of the intersection as indicated by official traffic-control devices within such intersection.
(Code 1961, § 12-69)

Sec. 16-101. No left turn.

When official traffic-control devices are in place prohibiting left turns, it shall be unlawful to make a left turn from the streets designated in traffic schedule no. 3.
(Code 1961, § 12-70)

Sec. 16-102. No right turn.

When official traffic-control devices are in place prohibiting right turns, it shall be unlawful to make a right turn from the streets designated in traffic schedule no. 3.
(Code 1961, § 12-71)

Sec. 16-103. No right turn on red.

When official traffic-control devices are in place prohibiting right turn on red traffic signal, it shall be unlawful to make a right turn from the street approaches designated in traffic schedule no. 3-A. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-71.1; Ord. No. 22-122, 6-21-22)

Sec. 16-104. No turn intersection.

When official traffic-control devices are in place prohibiting any turn, it shall be unlawful to make a turn at the intersections designated in traffic schedule no. 3. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-72; Ord. No. 22-122, 6-21-22)

Sec. 16-105. "U" turns and turning around.

It shall be unlawful to make a "U" turn or turn around, by driving or backing into any street or at any intersection unless such movement can be made in safety and provided that the intersection or street is not regulated by an official traffic-control device prohibiting such turning or backing. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-73; Ord. No. 99-214, § 1, 12-21-99; Ord. No. 22-122, 6-21-22)

Secs. 16-106, 16-107. Reserved.

Editor's note—Ord. No. 22-122, adopted June 21, 2022, repealed §§ 16-106 and 16-107, which pertained to backing in street and one-way streets, respecitvely and derived from the Code of 1961, §§ 12-74 and 12-75

Sec. 16-108. Emerging from private driveway.

It shall be unlawful to drive a vehicle from a private driveway without first bringing it to a complete stop before entering the sidewalk, or before entering the roadway where there is no sidewalk. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-81; Ord. No. 22-122, 6-21-22)

Sec. 16-109. Crossing traffic.

The driver of a vehicle must proceed in the same direction as the nearest lane of traffic when moving from a parked position or moving into a street from any place other than another street. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-82; Ord. No. 22-122, 6-21-22)

Sec. 16-110. Obstructing vehicular or pedestrian traffic.

It shall be prohibited to operate or park a vehicle in such manner as to constitute an obstruction to vehicular or pedestrian traffic. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-61; Ord. No. 22-122, 6-21-22)

Sec. 16-111. Reserved.

Editor's note—Ord. No. 22-122, adopted June 21, 2022, repealed § 16-111, which pertained to driving through funeral procession and derived from the Code of 1961, § 12-79.

Sec. 16-112. Towing or pushing another motor vehicle.

It shall be unlawful to drive a motor vehicle which is towing or pushing another motor vehicle when the space between the two (2) vehicles is greater than twelve (12) feet. It shall be unlawful to drive a motor vehicle which is towing or pushing another vehicle with all four (4) wheels on the street unless another person is in the towed or pushed motor vehicle and is controlling its movement. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-84; Ord. No. 22-122, 6-21-22)

Sec. 16-113. Truck routes.

(a) Definitions.

(1) *Truck.* As used herein the term "truck" or "trucks" shall mean any individual motor vehicle, trailer, trailing unit, or combination thereof which exceeds twenty-six thousand (26,000) pounds gross vehicle weight or has more than two (2) axles, including the steering axle.

(2) *Cargo.* The word "cargo" shall mean any property transported by truck as defined within this section.

(3) *Direction sign.* The term "directional sign" shall mean the customary highway marker designating the highway route number or the specified truck route marker posted on streets as listed on schedule no. 8.

(b) The streets or portions of streets designated in schedule no. 8 are hereby established as truck traffic routes. All "trucks" entering the city destined to any point outside the city and not taking on or discharging within the city limits any goods, wares or merchandise, shall travel exclusively on the truck routes designed in schedule no. 8 and over such portion of the truck routes as shall constitute the shortest and most direct route from the point of entrance into the city and departure from the city.

(c) The operator of a truck originating in the city for a destination outside the city shall, upon commencing his/her/their trip, take the shortest route by distance to the nearest truck route. The operator of said truck shall proceed exclusively on a truck route until said operator leaves the city. Should the shortest route by distance to the city limit be shorter than the shortest route to

the designated truck route, then the operator shall not be required to use the designated truck route in order to leave the city.

(d) The operator of a truck originating in the city with a destination inside the city shall, upon commencing his/her/their trip, take the shortest route by distance to the nearest truck route. The operator of any such truck shall proceed exclusively on such routes designated as truck routes and shall not deviate from such route or routes. In order to reach the operator's destination within the city, a deviation from said truck route shall constitute the shortest by distance and most direct route to the destination.

(e) The operator of a truck originating in the city shall, upon commencing his/her/their trip, take the shortest route by distance to the nearest truck route. Should the length of trip to the operator's destination be shorter than the distance to the nearest truck route, then said operator shall not be required to use the designated truck route.

(f) The operator of a truck upon entering the city shall travel directly by the shortest route by distance to the nearest truck routes. The operator shall, in every instance, follow a truck route. Any deviation from said truck route in order to reach the operator's destination shall constitute the shortest by distance and most direct route to the destination.

(g) The operator of a truck entering the city not on a truck route shall not be required to proceed to the nearest truck route should his/her/their point of destination be closer than the designated truck route. Should he/she/they leave by said route, then he/she/they shall not be required to use the designated truck route. If another route is used to continue in the city, then he/she/they shall proceed to the nearest truck route as described in sections (c) and (d).

(h) It shall be a civil violation to operate any truck except along and over the routes set out in schedule no. 8, except when it is impracticable to do so because of street repairs or other emergency or when necessary to travel on other streets from point of origin or to a destination for the purpose of loading or unloading goods, wares, or merchandise, and then only be such deviation from the nearest truck traffic route as is absolutely necessary to reach such destination.

(Code 1961, § 12-91; Ord. No. 92-84, § 1, 7-2-92; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-122, 6-21-22)

Charter reference—Truck routes, § 5.111(a).

Sec. 16-114. Reserved.

Editor's note—Ord. No. 22-122, adopted June 21, 2022, repealed § 16-114, which pertained to driving into intersections and crosswalks and derived from the Code of 1961, § 12-92.

Sec. 16-115. Prohibited use of curbs and medians.

(a) It shall be unlawful for any person to park or drive a vehicle over, upon or across any curb, central dividing section, unpaved area dividing lanes of travel or any median along or adjacent to a public street except at such driveways, alleyways, or other entrances and exits as are established by public authority. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a fine of not more than twenty-five dollars ($25.00).

(b) The provisions of subsection (a) shall not apply to:

(1) Temporarily disabled motor vehicles, unless such vehicles have been left unattended for at least six (6) hours.

(2) Publicly owned vehicles when such vehicles are being used in an official capacity.

(Code 1961, § 12-57; Ord. No. 22-122, 6-21-22)

Secs. 16-116—16-129. Reserved.

ARTICLE IV. STOPPING, STANDING AND PARKING*

DIVISION 1. GENERALLY

Sec. 16-130. Exemptions for legal holidays.

(a) The following days are hereby designated and established as legal holidays for traffic regulation purposes:

(1) Sundays.

(2) New Year's Day.

(3) Martin Luther King, Jr.'s Birthday (third Monday in January).

(4) Easter Monday.

(5) Memorial Day.

(6) Independence Day.

(7) Labor Day.

***Cross reference—**Parking at exhibition shows, § 26-200.

State law references—Municipal authority to regulate stopping, standing and parking, G.S. § 160A-301 et seq.; stopping, standing and parking generally, G.S. § 20-161 et seq.

(8) Thanksgiving Day and the Friday after Thanksgiving.

(9) Christmas Day.

(b) On each of such days all time limit parking, commercial loading zone restrictions, and passenger loading restrictions shall not be effective unless otherwise specified by ordinance and indicated by appropriate sign.
(Code 1961, § 12-47)

Sec. 16-131. Parking lights on vehicles.

No parking lights need to be displayed on a vehicle parked on a street in accordance with the other provisions of this chapter when there is sufficient light to reveal any person within a distance of two hundred (200) feet on the street.
(Code 1961, § 12-88)

State law reference—Authority to so provide, G.S. § 20-134.

Sec. 16-132. Schedule of restricted or prohibited parking areas; obedience to signs, etc.

In order to enhance safety and mobility along city streets, it is necessary to vary parking restrictions along certain streets as determined by the city manager or his/her/their designee. The city department of transportation shall maintain the official traffic record which consists of either map sheets showing parking restrictions, or a written description of the parking restriction. The city department of transportation shall erect and maintain all required traffic control devices and signs. A copy of the official traffic records shall be maintained by the city transportation department for the office of the city clerk, and, when so maintained and when traffic control devices and signs are properly placed, as notice, it shall be a civil violation for any person to park contrary to or in violation of any of the provisions of the schedule.
(Code 1961, § 12-46(1); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 00-230, § 7, 12-5-00)

Sec. 16-133. Position of parked vehicle.

It shall be unlawful to park a vehicle other than parallel with the curb and headed in the same direction as the nearest lane of vehicular traffic, except in areas where diagonal parking is permitted. On a street which is marked with lines indicating parking spaces, vehicles must be parked completely within the lines, provided, that vehicles longer than a single marked parallel space may occupy not more than three (3) marked parallel spaces.
(Code 1961, § 12-49)

Sec. 16-134. Parking so as to obstruct sidewalk, driveway, etc.

(a) It shall be unlawful to park a vehicle so as to obstruct a sidewalk, private driveway, crosswalk, safety zone, or railroad crossing, provided, that where an employee or agent parks a vehicle in violation of this section, then the person who directs such violation shall also be responsible for the violation.

(b) It shall be unlawful to park a vehicle within five (5) feet in either direction of a private road, alley or driveway.
(Code 1961, §§ 12-40, 12-41)

State law reference—Parking in front of private driveway, G.S. § 20-162.

Sec. 16-135. Parking by fire hydrants and in fire lanes.

It shall be unlawful to park a vehicle within five (5) feet in either direction of a fire hydrant, whether the vehicle is attended or unattended. It shall be unlawful for any person who shall park a vehicle or permit it to stand, whether attended or unattended, upon any public vehicular area, street, highway or roadway in any area designated as a fire lane. This prohibition includes designated fire lanes in shopping center or mall parking lots and all other public vehicular areas. Provided, however, persons loading or unloading supplies or merchandise may park temporarily in a fire lane located in a shopping center or mall parking lot as long as the vehicle is not left unattended.
(Code 1961, § 12-42; Ord. No. 11-125, § 3, 6-21-11; Ord. No. 12-63, § 3, 6-19-12)

Editor's note—Ord. No. 11-125, § 3, adopted June 21, 2011, changed the title of § 16-135 from "Parking by fire

hydrants" to "Parking by fire hydrants and in fire lanes". This historical notation has been preserved for reference purposes.

State law reference—Parking near fire hydrant, G.S. § 20-162.

Sec. 16.135.1 Parking over water meter box.

It shall be unlawful to park a vehicle over a water meter box.

(Ord. No. 09-132, § 2, 8-3-09)

State law reference—City authority to regulate parking, G.S. § 160A-301.

Sec. 16-136. Parking near bridge, railroad underpass, or overhead bridge.

It shall be unlawful to park a vehicle on either side of a street approaching a bridge, railroad underpass, or overhead bridge within fifty (50) feet in either direction of the outer edge of such bridge, railroad underpass, or overhead bridge, and no person may park a vehicle within an underpass.

(Code 1961, § 12-43)

Sec. 16-137. Parking near railroad grade crossing.

It shall be unlawful to park a vehicle on either side of a street approaching a railroad grade crossing within fifty (50) feet in either direction of the nearest rail of such railroad grade crossing.

(Code 1961, § 12-44)

Sec. 16-138. Parking on right-of-way.

It shall be unlawful to park a vehicle between the edge of a roadway and the adjacent property lines.

(Code 1961, § 12-45)

Sec. 16-139. Fifteen-minute unmetered parking.

(a) The areas designated in the official traffic records by legend A-4, A-5, A-6, A-7 or A-8 are established as fifteen-minute parking areas during the hours indicated:

A-4, fifteen-minute parking, 9:00 a.m. to 6:00 p.m. (unmetered).

A-5, fifteen-minute parking, 9:00 a.m. to 9:00 p.m. (unmetered).

A-6, fifteen-minute parking, 6:00 a.m. to 9:00 p.m. (unmetered).

A-7, fifteen-minute parking, 9:00 a.m. to 4:00 p.m. (unmetered).

A-8, fifteen-minute parking, any day of year (unmetered).

(b) It shall be a civil violation to park a vehicle in such areas during the hours indicated for more than fifteen (15) minutes.

(Code 1961, § 12-46(9); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 02-245, § 1, 12-3-02)

Sec. 16-140. Thirty-minute unmetered parking.

(a) The areas designated in the official traffic records by legend B-1, B-2 or B-5 are established as thirty-minute parking areas during the hours indicated:

B-1 thirty-minute parking, 9:00 a.m. to 6:00 p.m.

B-2 thirty-minute parking, 12:00 noon to 6:00 p.m.

B-6 thirty-minute parking, 6:00 p.m. to 9:00 p.m.

(b) It shall be a civil violation to park a vehicle in such areas during the hours indicated for more than thirty (30) minutes.

(Code 1961, § 12-46(10); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-141. One-hour unmetered parking.

(a) The areas designated on the official traffic records by the legend C-4, C-5, C-6, C-7 or C-8 are established one-hour parking areas during the hours indicated:

C-4 one-hour parking, 12:00 noon to 4:00 p.m. (unmetered).

C-5 one-hour parking, 9:00 a.m. to 6:00 p.m. (unmetered).

C-6 one-hour parking, 9:00 a.m. to 4:00 p.m. (unmetered).

C-7 one-hour parking, 12:00 noon to 6:00 p.m. (unmetered).

C-8 one-hour parking, 6:00 p.m. to 9:00 p.m. (unmetered).

(b) It shall be a civil violation to park a vehicle in such areas during the hours indicated for more than one (1) hour.
(Code 1961, § 12-46(11); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-142. Two-hour unmetered parking.

(a) The areas designated on the official traffic records by the legend D-5, D-6, D-7, D-8, D-9 or D-10 are established as two-hour parking areas during the hours indicated:

D-5 two-hour parking, 9:00 a.m. to 6:00 p.m. (unmetered).

D-6 two-hour parking, 9:00 a.m. to 4:00 p.m. (unmetered).

D-7 two-hour parking, 12:00 noon to 6:00 p.m. (unmetered).

D-8 two-hour parking, 12:00 noon to 4:00 p.m. (unmetered).

D-9 two-hour parking, 6:00 p.m. to 9:00 p.m. (unmetered).

D-10 two-hour parking, 7:00 a.m. to 6:00 p.m. (unmetered).

(b) It shall be a civil violation to park a vehicle in such areas during the hours indicated for more than two (2) hours, except as permitted in section 16-198.
(Code 1961, § 12-46(12); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-143. No parking at any time.

The areas designated in the official traffic records by the legend E-1 or E-8 are established as areas in which it shall be a civil violation to park a vehicle at any time. E-8 areas are established as special traffic lanes.
(Code 1961, § 12-46(13); Ord. No. 87-50, § 3 5-4-87)

Sec. 16-144. No parking at any time except on Sunday.

The areas designated on the official traffic records by the legend E-2 are established as areas in which it shall be a civil violation to park a vehicle at any time except on Sunday.
(Code 1961, § 12-46(14); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-145. No parking during certain hours.

(a) The areas designated on the official traffic record by the legend E-3, E-4, E-5, E-6, E-7, E-9 or E-10 are established as no parking areas during the hours indicated:

E-3, no parking, 10:00 p.m. to 6:00 a.m.

E-4, no parking, 7:00 a.m. to 9:00 a.m.

E-5, no parking, 4:00 p.m. to 6:00 p.m.

E-6, no parking, 6:00 p.m. to 6:00 a.m.

E-7, no parking, 12:00 noon to 6:00 a.m.

E-9, no parking, 5:00 p.m. to 6:00 p.m.

E-10, no parking, 9:00 a.m. to 5:00 p.m.

(b) It shall be a civil violation to park a vehicle in said areas during the hours indicated.
(Code 1961, § 12-46(15); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 87-157, § 1, 11-23-87)

Sec. 16-146. Commercial loading areas.

(a) The areas designated in the official traffic records by the legend F-1, F-2, F-3, F-12 or F-18 and F-19 are established as commercial loading areas during the hours indicated:

F-1, loading zone (commercial), 6:00 a.m. to 6:00 p.m.

F-2, loading zone (commercial), 6:00 a.m. to 12:00 noon.

F-3, loading zone (commercial), 6:00 a.m. to 4:00 p.m.

F-12, loading zone (commercial), 9:00 a.m. to 4:00 p.m.

F-18, loading zone (commercial), TRUCKS ONLY LOADING ZONE, trucks fifteen thousand (15,000) pounds or above, sixty (60) minute limit, 6:00 a.m. to 6:00 p.m.

F-19, loading zone (commercial), LOADING ZONE, delivery or drop off/pick up, thirty (30) minute limit, 6:00 a.m. to 6:00 p.m.

(b) There shall be a civil citation issued for any vehicle to park in said areas over the allowed time set forth below.
(Code 1961, § 12-46(17); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 98-38, § 1, 3-17-98; Ord. No. 98-72, § 1, 5-19-98; Ord. No. 08-282, § 1, 11-18-08)

Sec. 16-147. Passenger loading zones.

The areas designated on the official traffic records by the legend F-4, F-5, F-9, F-11 or F-12, are established as passenger loading areas in which it shall be a civil violation to park a vehicle during the hours indicated except while receiving or discharging passengers:

F-4 loading zone (passenger), at all times.

F-5 loading zone (passenger), 4:00 p.m. to 6:00 p.m.

F-9 loading zone (passenger), any day of year.

F-11 loading zone (passenger), 7:30 a.m. to 4:30 p.m., Monday through Friday while school is in session.

F-17 loading zone (passenger), 7:30 a.m. to 9:00 a.m. and 2:00 p.m. to 4:00 p.m., Monday through Friday while school is in session.
(Code 1961, § 12-46(18); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-148. Bus stops.

(a) The areas designated on the official traffic records by legend F-6 are established as bus stops in which it shall be a civil violation for any vehicle, other than a commercial bus, to park. The areas designated in the official traffic records by the legend F-6-1 are established as bus stops in which it is a civil violation to park from 6:00 a.m. to 7:00 p.m. Monday through Saturday.

(b) Other vehicles may park in such areas while receiving or discharging passengers when such action will not interfere with bus operation.
(Code 1961, § 12-46(19); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-149. Taxicab stands.

(a) The areas designated on the official traffic records by the legend F-7 are established as taxicab stands, in which it shall be a civil infraction for any vehicle, other than a taxicab, to park except while receiving or discharging passengers.

(b) The areas designated on the official traffic records by the legend F-8 are established as taxicab stands in which it shall be a civil violation to park any vehicle, other than a taxicab, between the hours of 9:00 a.m. and 7:00 p.m. except while receiving or discharging passengers.
(Code 1961, § 12-46(20), (21); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-150. Waiting lanes.

The areas designated in the official traffic records, schedule no. 4, by legend F-10 are established as waiting lanes. When official traffic-control devices are erected, it shall be a civil violation to park a vehicle except while receiving or discharging passengers when such waiting lane is vacant. It shall be a civil violation to park a vehicle in an intersection or in the sidewalk area while waiting to enter a waiting lane.
(Code 1961, § 12-46(22); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-151. Emergency vehicle parking.

The areas designated in the official traffic records by the legend G-1 are established as emergency vehicle parking areas in which it shall be unlawful to park any vehicle, except emergency parking by an authorized vehicle.
(Code 1961, § 12-46(23); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-151.1. Parking for law enforcement vehicles only.

The on-street parking areas immediately adjacent to the curbline on the south and north sides of the L. Richardson Preyer Federal Building is hereby established as federal, state and local law enforcement vehicle parking areas in which it shall be unlawful to park any other vehicle except for an official federal, state or local law enforcement vehicle.
(Ord. No. 95-82, § 1, 7-19-95)

Sec. 16-152. Four-hour parking.

It shall be a civil violation to park a vehicle in areas designated as four-hour zones from 9:00 a.m. to 6:00 p.m. for a period of time in excess of that provided.
(Code 1961, § 12-46(25.1); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-153. Other limited unmetered parking.

The areas designated in the official traffic records by the legend "I" are designated unmetered parking areas during the period indicated by various numbers.
(Code 1961, § 12-46(25))

Sec. 16-154. Prohibited parking in city-owned or operated parking lot or garage.

(a) It shall be a civil violation and shall constitute a trespass for any person to park a motor vehicle in any parking lot owned or operated by the city as a public parking lot at any place except in a designated parking space or in such manner as to, block or in any manner interfere with the placing of a motor vehicle in a regular designated public space or the removal of a motor vehicle from any such designated parking space.

(b) Parking lots to which this section shall be applicable shall have a sign at each entrance containing language indicating that motor vehicles parked contrary to this section will be towed to storage.
(Code 1961, § 12-46(26); Ord. No. 87-50, §§ 3, 6, 5-4-87)

Sec. 16-155. Prohibited parking in city-owned or operated private parking lots.

(a) It shall be a civil violation and shall constitute a trespass for any person to park a motor vehicle in any parking facility owned or operated by the city as a private parking facility at any place except in a designated parking space assigned to him/her/them by the owner or lessee of such space or in such manner as to block or in any manner interfere with the placing of a motor vehicle in a regular designated parking space or the removal of a motor vehicle from any such designated parking space.

(b) Parking facilities to which this section shall be applicable shall have a sign at each entrance containing language indicating that motor vehicles parked contrary to this section will be towed to storage.
(Code 1961, § 12-46(27); Ord. No. 87-50, §§ 3, 6, 5-4-87; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Off-street parking facilities, G.S. §§ 160A-301(b), 160A-302.

Sec. 16-156. Overtime parking in public offstreet parking facility owned or operated by city.

The city council finds as a fact that traffic congestion in the city is such that the establishment of a system of public off-street parking lots is necessary for the public safety. In accordance with this finding of fact, the off-street parking lots designated in traffic schedule no. 9 constitute a system that will best alleviate traffic congestion in the city. It shall be a civil violation to park any vehicle in any of these parking lots without making proper payment as required in traffic schedule no. 9.
(Code 1961, § 12-46(28); Ord. No. 87-50, §§ 3, 7, 5-4-87)

State law reference—Off-street parking facilities, G.S. §§ 160A-301(b), 160A-302.

Sec. 16-157. Handicapped vehicle parking.

Parking shall be permitted for the physically handicapped as defined by state law in those areas designated for the physically handicapped by the use of a sign or device set forth in the Manual on Uniform Traffic-Control Devices and

clearly marked for the spaces provided. It shall be a civil violation to park or leave standing any vehicle in a space designated for physically handicapped persons when such vehicle does not display the distinguishing license plate or placard as provided in North Carolina General Statutes section 20-37.6 and where appropriate signs or symbols giving notice thereof are erected marking the designated parking space.
(Code 1961, § 12-46(30); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 87-92, § 2, 7-16-87)

Sec. 16-158. Bus operation.

In areas where bus stops are provided, it shall be unlawful to load or unload bus passengers at any place other than a bus stop. When loading or unloading passengers, the driver of a commercial bus must come to a complete stop with the curb side wheels within twelve (12) inches of the edge of the roadway, except in areas where bus stops are not provided or where parked vehicles render it impractical to stop the bus at the curb.
(Code 1961, § 12-48)

Cross reference—Stopping of buses, § 28-129.

Sec. 16-159. Double parking.

It shall be unlawful to park a vehicle on the roadway side of another vehicle stopped at the edge of a roadway.
(Code 1961, § 12-50)

Sec. 16-160. Protrusion into street.

It shall be unlawful to park a vehicle on a street so that any part of the vehicle or its load extends more than eight (8) feet from the edge of the roadway, except in those areas where diagonal parking is permitted.
(Code 1961, § 12-51)

Sec. 16-161. Parking of oversized vehicles.

(a) It shall be unlawful to park any motor vehicles in excess of eighty (80) inches in width or in excess of thirty (30) feet in length, or any trailer, on the streets within the corporate limits of the city at any time except when engaged in loading and unloading, for emergency services or for temporary use at construction sites during the period of active construction.

(b) Subsection (a) does not apply to:

(1) School buses as defined in chapter 20 of the North Carolina General Statutes.

(2) Passenger-carrying vehicles owned or operated by a public governmental agency.

(3) Vehicles providing transportation for paying public passengers, which are designed to transport ten (10) or more passengers.

(Code 1961, § 12-53)

Sec. 16-162. Parking for the purpose of selling goods, washing, storage, etc.

It shall be unlawful to park a vehicle on a street or right-of-way for the primary purpose of:

(1) Displaying the vehicle for sale.

(2) Advertising, except religious and charitable advertising approved in writing by the governing body of the city.

(3) Storage thereof by garages, dealers in motor vehicles, filling station operators, and other persons, when that storage is not incident to the bona fide use of an automobile by its owner. For the purpose of this section, a vehicle shall be deemed to have been left on the street for the principal purpose of storage when that vehicle has been standing in one place for a continuous period of more than seventy-two (72) hours. This provision shall apply to a vehicle which is left standing in front of its owner's residence only when the vehicle has no license plate or has an expired license plate.

(4) Washing, greasing, or repairing, unless the repairs are made necessary by an emergency.

(5) Transferring merchandise or freight from one (1) vehicle to another.

(Code 1961, § 12-54; Res. No. 048-24, § 1, 2-20-24; Ord. of 05-19-2026(1), § 1(Exh. A), 5-19-26)

Cross reference—Selling on streets prohibited, § 26-20.

Sec. 16-163. Snow removal.

It shall be unlawful for any person to allow a motor vehicle to remain parked on a street where official traffic-control devices are in place indicating no parking during snow removal operations. (Code 1961, § 12-25)

Sec. 16-164. Special high impact areas with on-street unmetered parking.

The streets designated in the official traffic records by the legend "K" located in the proximity of the Greensboro War Memorial Coliseum Complex and located within the boundaries of High Point Road on the west, Lee Street on the north, Florida Street on the south, and Aycock Street on the east are established as a special high impact area with on-street unmetered parking. Within these streets, for each violation as set forth in section 16-73, there shall be a fixed civil penalty in the amount of twenty-five dollars ($25.00). The time limits for late payment and an additional penalty of fifty dollars ($50.00) as set out in section 16-71 shall apply. Any vehicle parked in violation of the provisions of section 16-73 may be removed and towed for safekeeping at the owner's expense upon the authority of any city law enforcement officer. The civil penalties established by this section are effective for twenty-four (24) hours of each day of the year including weekends and holidays.
(Ord. No. 90-130, § 1, 10-11-90)

Sec. 16-165. Front yard parking.

It shall be unlawful to park a vehicle on the front yard of any property containing a single-family or two-family dwelling, except on a hard all-weather surface such as asphalt, concrete, brick, CABC (gravel), pervious paving or other approved material in accordance with section 30-11-11 of the land development ordinance. Pursuant to G.S. § 14-4(b), a violation of this section shall result in an infraction with a fine of fifty dollars ($50.00). Each violation shall be a separate and distinct offense subject to the punishment of this section. Any vehicle with three (3) unpaid citations within a 90-day period shall result in the offending vehicle being disabled or towed.
(Ord. No. 16-11, § 3, 1-19-16; Res. No. 048-24, § 1, 2-20-24; Ord. No. 25-027, § 1, 3-4-25)

Secs. 16-166—16-175. Reserved.

DIVISION 2. METERED PARKING*

Sec. 16-176. Generally.

(a) The streets or portions of streets, and such streets or portions of streets as are hereafter added by amendments, indicated in the official traffic records in schedule no. 4 as "metered parking" are found to be in areas or zones in which the congestion of traffic is such that public convenience and safety demand regulation by providing a system of parking meters designed to promote traffic regulations and requiring a reasonable deposit for parking therein. The council further finds that areas and time limitations for parking by the legends on the records are such as will best alleviate traffic conditions in such areas. Legends indicating metered parking in the schedule are as follows:

A-1 15-minute parking, 8:00 a.m. to 6:00 p.m. (metered).

A-2 15-minute parking, 8:00 a.m. to 4:00 p.m. (metered).

A-3 15-minute parking, 12:00 noon to 6:00 p.m. (metered).

A-9 15-minute parking, 6:00 a.m. to 9:00 p.m. (metered).

B-3 30-minute parking, 8:00 a.m. to 6:00 p.m. (metered).

B-4 30-minute parking, 12:00 noon to 6:00 p.m. (metered).

C-1 1-hour parking, 8:00 a.m. to 6:00 p.m. (metered).

C-2 1-hour parking, 8:00 a.m. to 4:00 p.m. (metered).

C-3 1-hour parking, 12:00 a.m. to 6:00 p.m. (metered).

D-1 2-hour parking, 8:00 a.m. to 6:00 p.m. (metered).

D-2 2-hour parking, 8:00 a.m. to 4:00 p.m. (metered).

D-3 2-hour parking, 12:00 noon to 6:00 p.m. (metered).

*__State law reference—__Metered parking, G.S. § 160A-301.

D-4 2-hour parking, 12:00 noon to 4:00 p.m. (metered).

(b) Parking in metered spaces shall be proper only when required payment has been made and only for the time designated as hereinabove set out.
(Code 1961, § 12-46(2); Ord. No. 87-50, § 4, 5-4-87; Ord. No. 91-28, § 1, 3-14-91; Ord. No. 25-100, § 1, 6-17-25)

Sec. 16-177. Installation and maintenance of meters.

The persons designated by the city manager shall mark off proper spaces and install, maintain and make collections from all parking meters in the city. Meters shall contain information relative to parking time allowed and required deposit of coins. It shall be unlawful for any person to tamper with or deface such meter. It shall be a civil violation for any person to park in violation of the instructions thereon.
(Code 1961, § 12-46(3); Ord. No. 87-50, § 5, 5-4-80)

Sec. 16-178. Use of funds.

The funds deposited in parking meters are required and shall be used for the purpose of making parking regulations effective and for the expense incurred by city in the regulation and limitation of vehicular parking and traffic relating to such parking on the streets of the city or to establish off-street parking lots.
(Code 1961, § 12-46(5); Ord. No. 25-100, § 1, 6-17-25)

Sec. 16-179. Illegal parking.

It shall be a civil violation for any person to park a vehicle or to cause, allow, permit, or suffer any vehicle registered in the name of or operated by such person to be parked in a metered space when the parking meter shows illegal parking, or to be parked overtime or beyond the legal parking time provided in this chapter, or to deposit in any parking meter any coin for the purpose of extending the initial parking time for the same vehicle beyond the maximum parking time as indicated on such meter.
(Code 1961, § 12-46(4); Ord. No. 87-50, § 3, 5-4-87)

Sec. 16-180. Fifteen-minute metered parking.

(a) The areas designated in the official traffic records by the legend A-1, A-2, A-3 or A-9 are established as fifteen-minute metered parking areas for the hours indicated:

A-1 15-minute parking, 8:00 a.m. to 6:00 p.m. (metered).

A-2 15-minute parking, 8:00 a.m. to 4:00 p.m. (metered).

A-3 15-minute parking, 12:00 noon to 6:00 p.m. (metered).

A-9 15-minute parking, 6:00 a.m. to 9:00 p.m. (metered).

(b) It shall be a civil violation to park a vehicle in such areas during the hours indicated without making required payment or to park in such areas more than fifteen (15) minutes.
(Code 1961, § 12-46(6); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 91-28, § 2, 3-14-91; Ord. No. 25-100, § 1, 6-17-25)

Sec. 16-181. Thirty-minute metered parking.

(a) The areas designated in the official traffic records by the legend B-3, B-4 or B-5 are established as thirty-minute metered parking areas for the hours indicated:

B-3 30-minute parking, 8:00 a.m. to 6:00 p.m. (metered).

B-4 30-minute parking, 12:00 noon to 6:00 p.m. (metered).

B-5 30-minute parking, 8:00 a.m. to 4:00 p.m. (metered).

(b) It shall be a civil violation to park a vehicle in such areas during the hours indicated without making required payment or to park in such areas more than thirty (30) minutes.
(Code 1961, § 12-46(6.1); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 91-28, § 3, 3-14-91; Ord. No. 25-100, § 1, 6-17-25)

Sec. 16-182. One-hour metered parking.

(a) The areas designated in the official traffic records by the legend C-1, C-2 or C-3 are established as one-hour metered parking areas during the hours indicated:

C-1, one-hour parking, 8:00 a.m. to 6:00 p.m. (metered).

C-2, one-hour parking, 8:00 a.m. to 4:00 p.m. (metered).

C-3, one-hour parking, 12:00 noon to 6:00 p.m. (metered).

(b) It shall be a civil violation to park a vehicle in such areas during the hours indicated without making required payment or to park in such areas more than one (1) hour.
(Code 1961, § 12-46(7); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 91-28, § 4, 3-14-91; Ord. No. 07-250, § 1, 10-5-07; Ord. No. 25-100, § 1, 6-17-25)

Sec. 16-183. Two-hour metered parking.

(a) The areas designated on the official traffic records by the legend D-1, D-2, D-3 or D-4 are established as two and one-half-hour meter parking areas during the hours indicated.

D-1 two-hour parking, 8:00 a.m. to 6:00 p.m. (metered).

D-2 two-hour parking, 8:00 a.m. to 4:00 p.m. (metered).

D-3 two-hour parking, 12:00 noon to 6:00 p.m. (metered).

D-4 two-hour parking, 12:00 noon to 4:00 p.m. (metered).

(b) It shall be a civil violation to park a vehicle in such areas during the hours indicated without making required payment for each hour or fraction thereof, or to park in such areas more than two (2) hours.
(Code 1961, § 12-46(8); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 91-28, §§ 5, 6, 3-14-91; Ord. No. 07-250, § 2, 10-5-07; Ord. No. 25-100, § 1, 6-17-25)

Sec. 16-184. Other limited meter parking.

The areas designated in the official traffic records by the legend "H" are designated metered parking areas during the period indicated by various numbers. It shall be a civil violation to park a vehicle in such areas during the period indicated without making required payment or to park in such areas in excess of the time indicated.
(Code 1961, § 12-46(24); Ord. No. 87-50, § 3, 5-4-87; Ord. No. 25-100, § 1, 6-17-25)

Secs. 16-185—16-195. Reserved.

DIVISION 3. CONTROLLED RESIDENTIAL PARKING AREAS*

Sec. 16-196. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commuter vehicle means a motor vehicle parked in a residential area by a person who is not a resident of any such residential area and who has not obtained a residential parking permit for the particular motor vehicle that is so parked.

Controlled parking residential area means a contiguous or nearly contiguous area containing streets or parts thereof primarily abutted by property which has a specific residential zone (Res) designation in the official traffic records

*__Editor's note—__Ord. No. 22-027, adopted February 15, 2022, amended division 3 in its entirety to read as herein set out. Former division 3, §§ 16-196—16-203, pertained to similar subject matter. See Code Comparative Table for complete derivation.

and designated for restricted residential parking by the traffic engineer pursuant to criteria and procedures established in this division.

Controlled parking traditional neighborhood area means a contiguous or nearly contiguous area containing streets or parts thereof primarily abutted by property which has a specific traditional neighborhood (TN) designation in the official zoning records and designated for restricted parking by the traffic engineer pursuant to criteria and procedures established in this division.

Fiscal year means the period beginning July 1 and ending June 30 of the following year.

Controlled parking permit means a special permit issued hereunder for the privilege of parking on a street designated as a controlled parking area for a period in excess of two (2) hours.
(Ord. No. 22-027, 2-15-22)

Sec. 16-197. Purpose.

The city council finds and declares that it is in the best interest of the city to reduce vehicular congestion on city streets and to facilitate the efficient movement of traffic by providing for parking preferences during certain hours of the day and days of the week within certain designated areas meeting the criteria set forth in this division; that controlled permit parking regulation is necessary to promote the health, safety and welfare of the residents of the city by providing adequate parking spaces for residents, small business owners, and their employees adjacent to or close by their places of residence or small business; that it is in the public interest to reduce hazardous traffic conditions resulting from the use of streets located within congested residential or mixed use areas for the parking of vehicles by persons using such areas to gain access to other places; to protect those areas from excessive noise; to protect the residents of those areas from unreasonable burdens in gaining access to their residences; to preserve the character of those areas as residential or traditional neighborhood districts; to promote efficiency in the maintenance of those streets in a clean and safe condition; to preserve the value of the property in those areas; to preserve the safety of children and other pedestrians and to promote traffic safety, clean air, and the comfort, health, convenience and welfare of the inhabitants of the city.
(Ord. No. 22-027, 2-15-22)

Sec. 16-198. Designation generally; compliance.

(a) Upon approval of the city manager and after following the procedures set out in this division, the traffic engineer is hereby authorized to designate "controlled parking areas" by appropriate signs and recording thereof on the official traffic records in which the parking of vehicles may be restricted on public streets beyond the restricted period at certain times during the day and on designated weekdays, only to vehicles bearing a valid controlled parking permit issued pursuant to this section. This authority shall be in addition to any other authority the traffic engineer may have to regulate the times and conditions of motor vehicle parking on public streets.

(b) In order to determine whether a particular area should be designated as a controlled parking area, the traffic engineer may conduct, upon his/her/their own initiative or upon a petition of a majority of the households in such proposed area, addressed to the city manager, a study to determine if the proposed area meets the criteria set forth above. Following the study, and upon approval of the city manager, the traffic engineer shall determine whether to designate the proposed area under consideration as a controlled parking area or to remove the designation in the case of a previously established controlled parking area. Following the approval by the city manager of the designation of a controlled parking area, the traffic engineer shall cause the regulation to be recorded upon the official traffic records and retained permanently in the office of the city clerk. In addition, the traffic engineer shall cause parking signs to be erected upon public streets in the area, indicating the times, locations and conditions upon which parking shall be by permit only.

(c) The areas designated in the official traffic records, schedule no. 4, legend "J" are designated as controlled parking areas. It shall be a civil violation to park any vehicle in such areas beyond the two (2) hour parking limit except a vehicle which displays a valid, unexpired controlled parking permit.

(d) Designated controlled parking areas may be reviewed from time to time to evaluate need and maintain appropriate boundaries.
(Ord. No. 22-027, 2-15-22)

Sec. 16-199. Eligibility and criteria for establishment.

(a) A residentially zoned area shall be deemed eligible for designation as a controlled parking residential area for controlled permit parking if,

based on objective criteria established in this section, parking therein is impacted by commuter vehicles between 8:00 a.m. and 5:00 p.m., weekdays, except official city holidays.

(b) The following objective criteria shall be used in evaluating the need for restricted parking in a residentially zoned area in accordance with this section. For an area, however big or small, to be eligible for residential permit parking, that area must meet the following criteria:

(1) During any period between the hours of 8:00 a.m. and 5:00 p.m. weekdays, except official city holidays, the number of vehicles parked (or standing), legally or illegally, on the streets in the area is equal to seventy (70) percent or more of the legal on-street parking capacity of the area. For purpose of this criterion, a legal parking space shall be twenty (20) linear feet.

(2) During the same period as in paragraph (1), twenty-five (25) percent or more of the vehicles parked (or standing) on the streets in the area are not registered in the name of a person residing in this area. For purposes of this paragraph, the latest available information from the department of motor vehicles regarding registration of motor vehicles shall be used.

(3) Prior to an area being designated as a residential permit parking area, the following factors shall be considered:

a. The possibility of a reduction in vehicle miles traveled.

b. The likelihood of alleviating traffic congestion, illegal parking, and related health and safety hazards.

c. The proximity of public transportation.

d. The desire and need of the area residents for residential permit parking.

e. The need for parking for periods in excess of two (2) hours for business establishments and the general public for health or commercial business purposes.

f. The need for parking regulation to maintain the residential character of neighborhoods.

(c) Notwithstanding subsections (a) and (b) of this section, the city manager may designate as a new controlled residential parking area in any city block or portion of a city block that is:

(1) Located in area that is zoned for residential uses; and

(2) Where there is a substantial likelihood that persons using districts zoned or used for commercial, industrial or institutional uses will begin to park their vehicles in the contiguous residential blocks as a result of new development.

In order to qualify for a new controlled residential parking area under this section, the following conditions must exist:

a. The new development is projected to generate more than one thousand five hundred (1,500) daily vehicle trips as identified by an approved transportation impact study;

b. The new development is within one-half (½) mile of an existing controlled parking area; and

c. The new development can be shown to be similar in scale and magnitude to an existing development with existing controlled parking areas in surrounding residential blocks.

(d) Notwithstanding subsections (a), (b) and (c) of this section, the city manager may designate a controlled traditional neighborhood parking area in any city block or portion of a city block that is:

(1) Located in area zoned traditional neighborhood (TN); and

(2) The block face of a public street consists of both residential and commercial uses.

(3) Permits may be issued to owners, residents and commercial occupants on the following basis:

a. A minimum of one (1) controlled parking permit per use. Uses in excess of seven hundred fifty (750) square feet shall be eligible for one (1) additional controlled parking permit per seven hundred fifty (750) square feet of use, up to a maximum of three (3) controlled parking permits per use.

(Ord. No. 22-027, 2-15-22)

Sec. 16-200. Issuance of controlled parking permits upon application; term, etc.

(a) Following the official designation of a controlled parking area, the chief of police or his/her/their designee shall issue appropriate controlled parking permits. Upon application a permit shall be issued only to the owner or operator of a motor vehicle who resides or leases non-residential space in a controlled parking area and the lease holders verified employees.

(b) The application for a permit shall contain the name of the owner or operator of the motor vehicle, residential or business address, the motor vehicle's make, model, registration number and the number of the applicant's operator's permit. The motor vehicle's registration and operator's license, may, at the discretion of the city manager or his/her/their designee, be required to be presented at the time of making said application in order to verify the contents thereof. In the event the vehicle is registered at an address other than the local residence, the applicant shall provide other sufficient proof showing occupancy or employment within the designated parking area. The owner or operator of any motor vehicle applying for a controlled parking permit shall have valid motor vehicle license tags unless not legally required to have them. The permit shall be valid for a fiscal year and shall be renewed for each successive fiscal year. After the initial permit has been issued, any renewal thereof shall be submitted no later than August 15 of the applicable current fiscal year. Such renewal shall be issued upon such conditions and procedures as the chief of police shall specify.

(c) It shall constitute a violation of this article for any person to falsely represent himself/herself/themself as eligible for a controlled parking permit or to furnish any false information in an application to the chief of police in order to obtain a residential parking permit.

(d) The city manager or his/her/their designated representative shall issue permits to qualifying applicants without charge. Any permit issued hereunder is nontransferable to another vehicle.

(e) The city manager may make provisions for the issuance of temporary parking permits at no charge to bona fide visitors of residents of a designated controlled parking area.

(Ord. No. 22-027, 2-15-22)

Sec. 16-201. Privileges and restrictions on controlled parking permits.

(a) The holder of a controlled parking permit shall be permitted to stand or park a motor vehicle displaying the permit and operated by him/her/them in any designated controlled parking area during such times and places as the parking of motor vehicles therein is permitted. A controlled parking permit shall not guarantee or reserve to the holder a parking space within a designated controlled parking area.

(b) A controlled parking permit shall not authorize the holder thereof to stand or park a motor vehicle in such places or during such times as the stopping, standing or parking a motor vehicle is prohibited or set aside for specified types of vehicles, nor exempt the holder from the observance of any traffic regulation other than the two (2) hour parking limit within the controlled parking area.

(Ord. No. 22-027, 2-15-22)

Sec. 16-202. Revocation of controlled parking permit.

The city manager or his/her/their designee may revoke the controlled parking permit of any permittee found to be in violation of this division

and, upon written notification thereof, the permittee shall surrender such permit to the city manager or his/her/their designee. Failure, when so requested, to surrender a controlled parking permit so revoked shall constitute a violation of this division.
(Ord. No. 22-027, 2-15-22)

Sec. 16-203. Reserved.

DIVISION 4. VALET PARKING

Sec. 16-204. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this division, except where the context clearly indicates a different meaning:

Valet operator means (a) a person whose business is served by valet parking service, (b) a person who provides valet parking service, and (c) any employee or agent of a person described in (a) or (b) who provides, or participates in the provision of, valet parking service. For purposes of this division, valet operator shall not mean the City of Greensboro or a person acting on behalf of the City of Greensboro.

Valet parking service means accepting possession of a vehicle on the right-of-way for the purpose of parking the vehicle for the operator or retrieving a parked vehicle and returning it to the operator on the right-of-way, regardless of whether a fee is charged. Valet parking shall only be operated in connection with a designated valet parking zone.
(Ord. No. 07-256, § 1, 11-5-07)

Sec. 16-205. Permits.

(a) *Permit required.* No valet parking service is permitted unless a permit allowing such activity has been issued pursuant to this section. The operator shall also be required to obtain a valid privilege license from the city but the tax collector cannot issue such privilege license until the valet parking permit has been obtained.

(b) *Permit application.* An application for a valet parking permit shall be made in writing on a form prescribed by the transportation director. The application must contain the following:

(1) The name, age, business address and residence of the applicant if a natural person; if a corporation, its name, address of its principal office, and the names of its principal officers together with their respective addresses; if a partnership, association, or other unincorporated entity, the names of the partners, or the names of those comprising the association or company with the address of each.

(2) The experience of the applicant in the provision of such services and whether any similar permit in any jurisdiction has ever been revoked, and if so, the circumstances of such revocation.

(3) Whether the applicant or any of its principal officers or employees has ever been convicted of a felony or a violation of any narcotic law, or a crime involving moral turpitude, or conviction of any impaired driving offense.

(4) A written justification of the need for valet parking service by the business to be served.

(5) The uniform or insignia to be used to designate the applicant's employees.

(6) A scale drawing of the location and limits of the proposed valet parking service activities, including an identification of any on-street parking spaces or loading zones that would be affected by the activities.

(7) An operation plan that includes the days and times when valet parking services will be provided.

(8) An indemnity and release form as prescribed by the director.

(9) Proof of insurance as required by the director.

a. Insurance. No permit shall be issued or continued in operation, and no person shall operate a valet parking

service unless and until there is in full force and effect a motor vehicle liability insurance policy insuring such owner and each employee thereof, and unless and until such owner shall file with the city clerk a written certificate of insurance showing that the policy or policies are in effect and that they cannot be cancelled without thirty (30) days written notice to the city clerk. The policy shall cover property damage and bodily injury of not less than one million dollars ($1,000,000) per occurrence.

(10) Any other information reasonably required by the director.

(11) Payment of a non-refundable application fee in the amount of two hundred dollars ($200.00) per location served.

The permit application requirements of this section shall also apply to permit renewals.

(c) *Permitting criteria.* The director shall issue or deny a valet parking permit taking into consideration the following factors:

(1) Whether the application is complete;

(2) The extent to which the valet parking service might unreasonably disrupt the flow of pedestrian and vehicular traffic, including the location of the proposed valet parking service in relationship to traffic control devices;

(3) The extent to which the valet parking service might unreasonably interfere with or impinge upon on-street parking;

(4) The proximity of traditional on-street and off-street parking to the business to be served by the valet parking service; and

(5) The proximity and relationship to any other previously permitted valet parking service.

A permit shall specify (i) the business served; (ii) the location and limits of the valet parking service activities; (iii) the days and times when the valet parking service is permitted; (iv) any additional restrictions or requirements regarding the location or operation of the valet parking service; (v) identification tag requirements for valet operators; (vi) the permit expiration date; and (vii) any other conditions on the permit.

A permit shall not be valid until the applicant has paid a right-of-way use fee established by the director taking into consideration the amount of right-of-way and other public property and facilities occupied by the valet parking service and potential lost meter revenue.

(d) *Authority of the city*. The city reserves the right to determine and designate appropriate street locations and times for the operation of valet parking services. Once the city has determined and designated appropriate street locations and times for the operating of valet services, the service shall be limited to parking or unloading vehicles only at those street locations and times. No cars will be parked in on street parking areas. The city reserves the right to add, modify or eliminate street locations and times at any time in order to protect pedestrian traffic and improve conditions for the flow of motor vehicular traffic.

(e) *Revocation.* The city may revoke a permit issued pursuant to this section for any reason that would justify a refusal to issue the permit originally or by reason of any failure by the permittee to comply with the provisions of this Code.

(f) *Temporary suspension or modification.* The city may temporarily suspend or modify a permit issued pursuant to this section when warranted by traffic conditions and anticipated traffic conditions, such as parades, festivals or other such special events.

(g) *No rights established*. Nothing in this division is intended to establish any legal right to provide a valet parking service or any legal property interest in a valet parking permit.
(Ord. No. 07-256, § 2, 11-5-07)

Sec. 16-206. Violations.

(a) It shall be unlawful for a valet operator to provide or engage in valet parking service without a valid valet parking permit issued pursuant to

this division. A valet parking permit that has expired or that has been suspended or revoked is not a valid permit.

(b) It shall be unlawful for a valet operator to provide or engage in valet parking service in violation of the terms and conditions of a valet parking permit that pertains to the valet parking service.

(c) It shall be unlawful for a valet operator to stop or direct traffic.
(Ord. No. 07-256, § 3, 11-5-07)

Sec. 16-207. Enforcement.

(a) Any person who violates subsection 16-206(a) shall be subject to a civil penalty of five hundred dollars ($500.00) for each day during which such violation occurs.

(b) Any person who violates subsections 16-206(b) or (c) shall be subject to a civil penalty of one hundred dollars ($100.00) for each violation.

(c) A violation of this division shall not constitute an infraction or misdemeanor punishable under G.S. 14-4.
(Ord. No. 07-256, § 4, 11-5-07)

Sec. 16-208. Appeals.

The denial, revocation, or suspension of a valet parking permit, or the issuance of civil penalties, may be appealed within ten (10) days after notice of such action. Appeals shall be heard by the city manager or the city manager's designee. A ruling on appeal is subject to further review in the Superior Court of Guilford County by proceedings in the nature of certiorari. Any petition for writ of certiorari for review shall be filed with the Clerk of Superior Court within thirty (30) days after notice of the decision has been sent to the appellant.
(Ord. No. 07-256, § 5, 11-5-07)

Secs. 16-209—16-220. Reserved.

ARTICLE V. BICYCLES AND MICROMOBILITY VEHICLES*

DIVISION 1. GENERALLY

Sec. 16-221. Impoundment of bicycles and micromobility vehicles.

Any law enforcement officer or parking enforcement employee of this city may impound any bicycle or micromobility vehicle operated or parked in violation of the provisions of this article and retain possession of the same until ownership is established; provided that nothing herein contained shall be construed to limit the authority of law enforcement officers to take into custody any bicycle or micromobility vehicle believed to be stolen.

An administrative fee incurred by the city set by the city manager or his/her/their designee incident to impounding and storing a bicycle or micromobility vehicle shall be paid by the owner or person in charge of the impounded bicycle or micromobility vehicle to the city.
(Code 1961, § 12-97(i); Ord. No. 18-142, § 2, 11-20-18; Ord. No. 20-130, § 3, 10-6-20; Ord. No. 20-163, § 3, 12-15-20)

Sec. 16-222. Use of skateboards, roller skates, and non-motorized scooters.

It shall be unlawful for any person riding on a skateboard, roller skates or non-motorized scooter to ride any of such devices on any street, on the premises of the municipal building or of any municipal parking facility, or to ride any of such devices on any sidewalk located in the central business district of the city. In addition, it shall be unlawful for any person riding on a skateboard, roller skates or a non-motorized scooter to ride any such device on the sidewalks adjacent to South Elm Street between McGee Street and West Gate City Boulevard. Pursuant to G.S.

*__Editor's note—__Ord. No. 18-142, § 2, adopted November 20, 2018, amended Article V to read as herein set out. Formerly, such article pertained to bicycles and play vehicles.

__State law reference—__Bicycles, G.S. § 20-171.1 et seq.

§ 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-86.1; Ord. No. 89-159, § 1, 11-30-89; Ord. No. 18-142, § 3, 11-20-18; Ord. No. 20-130, § 4, 10-6-20; Ord. No. 22-122, 6-21-22)

Sec. 16-223. Use of coasters and toy vehicles.

It shall be unlawful for any person riding on skateboard or roller skates, or riding in or on a coaster, sled, toy wagon, tricycle, or toy vehicle to ride on a roadway except while crossing at a crosswalk or intersection, or while using a street set aside for play purposes from which vehicles are excluded. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-86; Ord. No. 22-122, 6-21-22)

Sec. 16-224. Reserved.

Editor's note—Ord. No. 22-122, adopted June 21, 2022, repealed § 16-224, which pertained to clinging to motor vehicle and derived from the Code of 1961, § 12-85; Ord. No. 20-130, adopted October 6, 2020 and Ord. No. 20-163, adopted December 15, 2020.

Sec. 16-225. Bicycle and micromobility vehicle brakes.

It shall be unlawful to ride a bicycle or a micromobility vehicle on a street unless it is equipped with brakes in good working order adequate to control and stop the movement of the bicycle or micromobility vehicle. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a fine of twenty-five dollars ($25.00).
(Code 1961, § 12-87; Ord. No. 20-130, § 6, 10-6-20; Res. No. 048-24, § 1, 2-20-24)

Sec. 16-226. Reports of bicycle dealers.

Any person engaged in the business of buying secondhand bicycles shall make a daily report to the chief of police, giving the name and address of the person from whom each bicycle is purchased, the description of each bicycle purchased, the frame number thereof, and the city license number, if any. Any person engaged in the business of selling new or secondhand bicycles shall make a daily report to the chief of police giving a list of all sales, the names and addresses of the purchasers, the descriptions of the bicycles sold, including the frame numbers, and the city license numbers, if any.
(Code 1961, § 12-97(h))

Sec. 16-227. Use of bicycles and micromobility vehicles on sidewalks.

It shall be unlawful to drive or ride a bicycle or micromobility vehicle within a sidewalk area in the central business district unless it is at a permanent or temporary driveway. In the interest of public safety, the director shall be authorized to prohibit the operation of bicycles and micromobility vehicles on other sidewalks located in high pedestrian traffic areas. All bicycles and micromobility vehicles shall yield the right-of-way on sidewalks to pedestrians. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-78; Ord. No. 00-230, § 8, 12-5-00; Ord. No. 20-130, § 7, 10-6-20; Ord. No. 22-122, 6-21-22)

Sec. 16-228. Bicycle-street lanes.

The street or portions of streets designated in traffic schedule no. 11 are established as bicycle street lanes for the use of bicycles and micromobility vehicles. When official traffic signs are in place designating a bicycle-street lane, it shall be unlawful for any person to drive, or enter any vehicle (except a bicycle or micromobility vehicle) within a bicycle-street lane as designated by traffic schedule no. 11. Pursuant to G.S. § 14-4 (b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-93; Ord. No. 18-142, § 4, 11-20-18; Ord. No. 20-130, § 8, 10-6-20; Ord. No. 22-122, 6-21-22)

Sec. 16-229. Shared micromobility service permit.

(a) It shall be unlawful for any person or persons to operate a commercial shared micromobility service within any public right-of-way

without first obtaining a permit from the director of transportation and paying the proper fees.

(b) The director of transportation may issue a permit for the operation of a shared micromobility service.

(c) For good cause, the director of transportation may revoke any permit issued under this section. Good cause shall include, but shall not be limited to the following:

(1) Permittee failed to pay a fine imposed by the City of Greensboro within thirty (30) days;

(2) Permittee failed to pay a permit fee within thirty (30) days following notice of nonpayment;

(3) Permittee has violated any statute or ordinance governing operation of the micromobility vehicles; or

(4) Permittee has violated one (1) or more conditions of the permit.

(d) Any authorized employee of the city or designated official may impound any micromobility vehicles found in violation of this section and charge an impound fee.

(e) Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a fine of twenty-five dollars ($25.00).
(Ord. No. 18-142, § 5, 11-20-18; Ord. No. 20-130, § 9, 10-6-20; Res. No. 048-24, § 1, 2-20-24)

Sec. 16-230. Number of riders on a micromobility vehicle.

It shall be unlawful for more than one person to ride upon a micromobility vehicle at a time. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Ord. No. 20-130, § 10, 10-6-20; Ord. No. 22-122, 6-21-22)

Secs. 16-231—16-240. Reserved.

DIVISION 2. BICYCLE REGISTRATION

Sec. 16-241. Required.

The owner of a bicycle operated on a street in the city must register the bicycle; provided, that if the owner is under the age of sixteen (16) years the parent or legal guardian shall be responsible for the registration thereof. The provisions of subsection (a) shall not apply to the owner of a bicycle temporarily operated in or through the city.
(Code 1961, § 12-97(a))

Sec. 16-242. Issuance of number plate and card; duplication of lost, stolen or destroyed plates.

For every bicycle registered the chief of police shall issue to the person registering the same an appropriate number plate, and a registration card. Upon satisfactory evidence that any such registration number has been lost or destroyed, the chief of police shall issue to the owner of such registered bicycle a duplicate thereof.
(Code 1961, § 12-97(d))

Sec. 16-243. Fee.

There shall be no fee for the registration required by this division.
(Code 1961, § 12-97(c))

Sec. 16-244. Term.

The registration of bicycles shall be permanent for the life of the bicycle, subject to the provisions of this division governing transfer of registration. The provisions of this section shall apply to bicycles already registered under the biennial registration system formerly in effect.
(Code 1961, § 12-97(b))

Sec. 16-245. Transfer.

It shall be the duty of every person who sells or transfers ownership of any bicycle to report the sale or transfer by returning to the chief of police the registration card and number plate, together with the name and address of the transferee, and the report must be made within five (5) days of the transfer. It shall be the duty

of the transferee to apply for a transfer of registration within five (5) days of the date of the transfer.
(Code 1961, § 12-97(e))

Sec. 16-246. Display of city number plate.

It shall be unlawful to operate a bicycle, which is required to be registered, on a city street unless there is displayed in a conspicuous place on the bicycle a city number plate. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-97(f); Ord. No. 22-122, 6-21-22)

Sec. 16-247. Removal or alteration of plates.

It shall be unlawful to remove, destroy, mutilate, or alter the number of any bicycle frame licensed pursuant to this section. It shall be unlawful to remove, destroy, mutilate, or alter the number plate or registration card; provided, that nothing herein shall be construed to prohibit the chief of police from stamping numbers on bicycle frames for identification purposes, or from removing or destroying number plates and registration cards if necessary to comply with the provisions of this division. Pursuant to G.S. § 14-4(b) a violation of this chapter shall be an infraction with a penalty of not more than twenty-five dollars ($25.00).
(Code 1961, § 12-97(g); Ord. No. 22-122, 6-21-22)

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Chapter 17

NUISANCES*

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State law reference—Municipal authority to abate public health or public safety nuisances, G.S. § 160A-193.

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ARTICLE I. NUISANCES*

Sec. 17-1. Nuisances prohibited; enumeration.

(a) The following enumerated and described conditions are found, deemed and declared to constitute a detriment, danger and hazard to the health, safety, morals and general welfare of the inhabitants of the city and are found, deemed and declared to be public nuisances wherever the same may exist and the creation, maintenance, or failure to abate any nuisances is hereby declared unlawful. The natural conditions on lands dedicated to and/or accepted by the city as natural stream corridors, floodplain and/or open space which are established in order to preserve natural greenways, vegetative stream buffers, and/or natural connecting networks along floodways, streams and creeks are deemed and declared as exceptions for the purpose of enforcement of this article.

(1) Any condition which constitutes a breeding ground or harbor for rats, mosquitoes, harmful insects, or other pests.

(2) Any place of dense growth of grass, weeds or other noxious vegetation over twelve (12) inches in height, except for ornamental grasses chosen for features like color and form, such as switch grass, pampas grass, fountain grass, and bamboo, and with the following provisions:

a. A parcel consisting of adjacent vacant lots, under the same ownership, will be considered as one (1) lot.

b. Exceptions for lots exceeding one (1) acre in size, or a parcel with combined adjacent vacant lots exceeding one (1) acre in total size, or lots covered with trees:

1. These lots shall be maintained to a depth of twenty (20) feet from the improved road surface for all dense growth and noxious vegetation where the main trunk, main stem, or main shaft is less than one (1) inch in thickness.

2. If and only if the adjacent property is occupied by a dwelling or other structure, lots exceeding one (1) acre, vacant undeveloped lots, or lots covered with trees shall be maintained to a depth of twenty (20) feet from the side and rear property lines for all dense growth and noxious vegetation where the main trunk, main stem, or main shaft of vegetation is less than one (1) inch in thickness.

c. Natural landscape areas and wooded lots shall be allowed under the following conditions:

1. Natural landscape areas and wooded lots shall be maintained and shall not harbor, create nor allow to exist any condition defined as a nuisance or determined by the code enforcement officer to be a condition which poses a health hazard for the general welfare of the public;

2. Natural landscape vegetation shall not overhang into the public right-of-way nor into adjoining properties; and

3. Natural landscape areas shall utilize borders to define the areas. Borders may consist of, but not be limited to, edging material, an edge of low plants, wood, timber, or stone or woodchips.

*__Editor's note—__Ord. No. 13-115, § 1, adopted Aug. 20, 2013, amended Art. I in its entirety to read as set out herein. Former Art. I, §§ 17-1—17-7, pertained to in general and derived from the Code of 1961, §§ 8-20—8-26; Ord. No. 90-39, § 1, adopted March 15, 1990; Ord. No. 92-146, § 1, adopted Dec. 3, 1992; Ord. No. 99-213, § 1, adopted Dec. 21, 1999; Ord. No. 00-218, § 1, adopted Dec. 5, 2000; Ord. No. 00-219, §§ 1—5, adopted Dec. 5, 2000; Ord. No. 01-148, § 1, adopted June 5, 2001; Ord. No. 01-209, § 1, adopted Oct. 16, 2001; Ord. No. 01-209, § 1, adopted Oct. 16, 2001; Ord. No. 01-148, § 1, adopted June 5, 2001.

(3) An open place of concentration of combustible items such as mattresses, boxes, paper, automobile tires and tubes, garbage, trash, refuse, brush, old clothes, rags, or any other combustible materials or objects of a like nature.

(4) An open place of collection of garbage, food waste, animal waste, or any other rotten or putrescible matter of any kind.

(5) Hides, dried or green, provided the same may be kept when thoroughly cured and odorless.

(6) Any furniture, or metal products of any kind or nature openly kept which have jagged edges of metal or glass, or areas of confinement.

(7) Any condition which blocks, hinders, or obstructs in any way the natural flow of water in swales, streams, creeks, surface waters, ditches, or drains, to the extent that standing water is created on the premises.

(8) Structures, remains of structures or lots with a condition that is detrimental, dangerous, or hazardous to the public safety, health and welfare. For purposes of the enforcement of this subsection, this shall be a condition, which consists of one (1), or more, of the following:

a. Glass, metal, or other sharp objects in accessible areas;

b. Unstable structures or trees which may fall or collapse;

c. Holes, excavations, surviving foundations or walls that may collapse or create heights in excess of three (3) feet in areas where they may be scaled;

d. Any substance which is hazardous or harmful to humans or pets; and

e. Any open or accessible utility lines such as natural gas, water, sewer, or electrical.

f. Structures and remains of structures open to the elements, which are a danger to children, or tend to attract vagrants, or persons intent on criminal activities or other activities that would constitute a public nuisance.

g. Structures ordered closed by a code compliance officer, the Minimum Housing Commission or other quasi-judicial authority which are reopened without cause or justification.

Any owner of property, which is in non-compliance with this subsection, may enclose the portions of their property in violation with a secure fence of five (5) feet in height, which prevents the entry of humans until such time as the property is repaired to Code standards or completely demolished and is no longer in a detrimental, dangerous or hazardous state. Such enclosure shall be deemed in compliance with this subsection provided the enclosed nuisance condition does not and will not reach beyond the perimeter of the property.

(9) Obstructions or vegetation in the public right-of-way which a pose danger to the general public.

(10) Appliances, which are designed for indoor use, stored outside, however, these appliances may be kept inside the primary structure or in accessory structures, designed to withstand the elements and having a roof, wall, and door(s).

(11) Household furniture, which is not designed to withstand the elements, stored outside or placed on porches, decks or landings, or in accessory structures, or in yards or any other area which provides a location where insects, rodents, or other vermin may breed or may reasonably be expected to breed. This section shall not prohibit the use of household furniture in a totally enclosed porch, designed to withstand the elements and having a roof, walls, screens, or glass windows.

(12) Any graffiti, as defined in and prohibited by section 18-8 of this Code.

(13) Any littered condition created by leaving materials which are partially or wholly rusted, wrecked, dismantled, junked, discarded, or otherwise in an inoperative condition and which are not completely enclosed within an enclosed structure. Examples of such materials include, but are not limited to, dilapidated furniture, appliances, machinery, equipment, building materials, automotive parts, tires, discarded clothing or household items, or any other items.

(14) Any condition detrimental to the public health which violates the rules and regulations of the county health department or that injures or causes discomfort to the community at large, endangers life, generates disease or has a detrimental effect on the public health, safety and welfare.

(15) Any potholes, obstructions, or similar conditions, which the city shall determine to be a public health or safety hazard, and which is located on private property available for use to the general public.

(16) Any uncontrolled growth and spread, by crossing any lot boundary or parcel of land, either by roots, vegetative growth or seed drop of kudzu, poison sumac, poison ivy, poison oak, or other noxious vegetation or invasive plant as identified by the North Carolina Forest Service or the North Carolina Department of Agriculture.

(b) For the purpose of enforcement of this article, an open place is defined as an area of property or portion thereof that is open, including building openings of residential dwelling units that are open to the exterior, such as attached carports, or porches, and any other exterior portions of properties ordinarily exposed to public view.

(Ord. No. 13-115, § 1, 8-20-13; Ord. No. 15-0113, § 1, 9-1-15; Ord. No. 25-154, § 1, 9-16-25; Ord. of 03-17-2026(1), § 2(Exh. A), 3-17-26)

Sec. 17-2. Notice to abate; emergency abatement by city.

(a) If any person shall violate the provisions of section 17-1, it shall be the duty of the chief of code compliance or their designated representative to give notice to the owner or to any person in possession of the subject property, as provided by section 17-3, directing that all unlawful conditions existing thereupon be abated within ten (10) days from the date of such notice; provided, that if, in the opinion of the chief of code compliance or their designated representative, the unlawful condition is such that it is of imminent danger or peril to the public, then any authorized representative may, without notice, proceed to abate the same, and the cost thereof shall be charged against the property as is provided in section 17-5.

(b) The chief of code compliance or their designated representative may enter upon the premises for the purpose of abating the nuisance and may summarily remove, abate, or remedy any condition in the city limits that is a prohibited nuisance under section 17-1.

(Ord. No. 13-115, § 1, 8-20-13; Ord. No. 15-0113, § 1, 9-1-15; Ord. No. 25-154, § 2, 9-16-25; Ord. of 03-17-2026(1), § 3(Exh. A), 3-17-26)

Sec. 17-3. Service of notice.

(a) The owner of subject property shall be notified of violation of section 17-1 by personal delivery of said notice or by posting in a conspicuous place on the premises affected and by regular and registered or certified mail, return receipt requested. If such registered or certified notice is refused or is returned unclaimed, but the regular mail is not returned by the post office within ten (10) days after the mailing, the service shall be deemed sufficient. The person mailing such order by regular mail shall certify that fact and the date thereof and such certificate shall be deemed conclusive in the absence of fraud. If the name of the owner cannot be ascertained, then the notice shall be served on any person in possession of the subject property.

(b) Any such notice may be served by any code enforcement officer or by any police officer of the city when so authorized through the neighborhood development department.

(c) A city may notify a chronic violator of the city's public nuisance ordinance that, if the violator's property is found to be in violation of the ordinance, the city shall, without further

notice in the calendar year in which notice is given, take action to remedy the violation, and the expense of the action shall become a lien upon the property and shall be collected as unpaid taxes. The notice shall be sent by registered or certified mail. A chronic violator is a person who owns property whereupon, in the previous calendar year, the city gave notice of violation at least three times under any provision of the public nuisance ordinance.
(Ord. No. 13-115, § 1, 8-20-13)

Sec. 17-4. Defect in notice not to affect lien.

Any defect in the method of giving, the notice required by section 17-2, or in the form thereof, or the giving of such notice to an improper person, shall not prevent the city, in any case where the work of abating an unlawful condition upon any property is caused by the city, from collecting the cost thereof from the owner, nor shall it affect the validity of the lien on the property for such cost.
(Ord. No. 13-115, § 1, 8-20-13)

Sec. 17-5. Abatement by city where owner fails to abate.

(a) Upon the failure of the owner or person in possession of any premises to abate any unlawful condition existing thereupon within the time prescribed by section 17-2, it shall be the duty of an authorized code compliance representative to cause the removal and abatement of such unlawful condition therefrom. This representative may enter upon the premises involved for the purpose of abating the nuisance found to exist under this article.

(1) If the city abates graffiti pursuant to this section, in no case shall the city paint or repair any area obscured by graffiti more extensively than where the graffiti itself is located. The city shall not be required to restore the obscured area to its original condition (i.e. color, texture, etc.).

(b) Upon completion of such removal and abatement, the chief of code compliance or their designated representative shall deliver to the city tax collector a statement showing the actual costs of the abatement of the unlawful condition plus an additional fee of twenty (20) percent of the total cleanup costs with a minimum of two hundred dollars ($200.00) to cover the cost of notice and costs of collection as a civil penalty.

(1) If, within a rolling twelve (12) month period after a nuisance is removed and abated pursuant to subsection (b) above, a second violation of this chapter is removed and abated by the city at the same property, the chief of code compliance or their designated representative shall deliver to the city tax collector a statement showing the actual costs of the abatement of the unlawful condition plus an additional fee of thirty (30) percent of the total cleanup costs with a minimum of three hundred dollars ($300.00) to cover the cost of notice and costs of collection as a civil penalty.

(2) If, within a rolling twelve (12) month period after a nuisance is removed and abated pursuant to subsection (b) above, a third violation of this chapter is removed and abated by the city at the same property, the chief of code compliance or their designated representative shall deliver to the city tax collector a statement showing the actual costs of the abatement of the unlawful condition plus an additional fee of fifty (50) percent of the total cleanup costs with a minimum of five hundred dollars ($500.00) to cover the cost of notice and costs of collection as a civil penalty.

(c) Civil penalties assessed under this section are considered restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. As such, the amount declared herein is presumed to provide sufficient restoration to the city for its costs. The assessment of civil penalties herein is not intended to be an exercise of powers delegated to other agencies or entities created by the general assembly to regulate the proscribed conduct. Violations of this article shall not be punishable as a misdemeanor or infraction and G.S. § 14-4 shall not apply to violations of this

chapter. The city tax collector shall thereupon mail to the owner of the subject property a bill covering the cost, if with reasonable diligence the name and address of such owner can be ascertained, and the amount of the bill shall become a lien upon the property, and if not paid within thirty (30) days shall be collected as in the manner provided for the collection of delinquent taxes.

(d) Any city employee charged with enforcements and collection of abatement costs or civil penalties may, in consultation with the appropriate director and city attorney, reduce the penalties or costs assessed, based on criteria set forth in departmental guidelines. Modification of penalties by the director, the designee, or the city attorney may be appealed to the minimum housing standards commission in accordance with section 11-49 of the Code.
(Ord. No. 13-115, § 1, 8-20-13; Ord. No. 15-0113, § 1, 9-1-15; Ord. No. 25-154, § 3, 9-16-25; Ord. of 03-17-2026(1), §§ 2(Exh. A), 3(Exh. A), 3-17-26)

Sec. 17-6. Appeals.

Within the ten-day period mentioned in section 17-2 hereof, the owner of the property where the nuisance exists may appeal the findings of the chief of code compliance or their designated representative to the minimum housing standards commission by giving written notice of appeal to the chief of code compliance or their designated representative. An appeal stays the abatement of the nuisances until a final determination by the commission. In the event no appeal is taken, the chief of code compliance or their designated representative department may proceed to abate the nuisance.
(Ord. No. 13-115, § 1, 8-20-13; Ord. No. 15-0113, § 1, 9-1-15; Ord. of 03-17-2026(1), § 3(Exh. A), 3-17-26)

Sec. 17-7. County health officer may exercise current authority.

It is the intention of this article that any authorized representative of the chief of code compliance or their designated representative shall be primarily responsible for the enforcement of the provisions of this article; but the county health officer shall, in any case where he/she/they deems it advisable to act, have all the authority conferred by this article, and any notice served for the purpose of this article, by, or by authority of the county health officer and any charge made by the county health officer in accordance with the provisions of subsection 17-5(b) shall be as valid as if made by the director of neighborhood development or their designated representative.
(Ord. No. 13-115, § 1, 8-20-13; Ord. No. 20-163, § 3, 12-15-2020; Ord. of 03-17-2026(1), § 3(Exh. A), 3-17-26)

Sec. 17-8. Civil liability for illegal disposal.

(a) *Purpose.* Throughout the city, trash, refuse, rubbish, hazardous wastes, and other unwanted items are being disposed of on or about public and private property, contrary to federal, state, and local laws and regulations, such as, but not limited to, sections 25-6 and 26-11 of this Code (collectively referred to as "illegal disposal"). This article is intended to deter those individuals and businesses who are attempting to avoid paying the costs associated with properly disposing of unwanted refuse and to offset the city's costs to deter these actions and to clean up the resulting environmental and health hazards created thereby. Though North Carolina has criminal provisions addressing illegal disposal, the criminal process is not always efficient at deterring behavior and recuperating the costs associated with this illegal disposal. Therefore, pursuant to G.S. § 160A-185, the city hereby appoints "environmental enforcement officers" and provides enforcement by civil penalties.

(b) *Environmental enforcement officers.* For the purpose of investigating illegal disposal, assessing civil penalties against violators or owners, as provided in subsection (c) below, accepting affidavits to allow an owner to avoid a civil penalty, as allowed in subsection (d) below, and presenting evidence in the event of an appeal, as allowed in subsection (f) below, the city hereby delegates to the city manager the authority to designate the appropriate staff who shall act as environmental enforcement officers.

(c) *Civil penalties.* The civil penalties set out herein may be assessed against any person (hereinafter "violator") who illegally disposes and against the registered owner (hereinafter "owner") of any motor vehicle that is used in the act of illegally disposing, where there is sufficient evidence, such as, but not limited to, photographic evidence of the license tag and the make and model of the vehicle and of the act of illegal disposal. The violator or owner shall be assessed a civil penalty of five hundred dollars ($500.00) for the first occurrence and shall be assessed a civil penalty of one thousand dollars ($1,000.00) for each subsequent offense, regardless of whether different vehicles registered to the same owner are used in separate violations. Civil penalties assessed under this section are considered restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, cure, and/or correct the violation and to provide public education and outreach. As such, the amount declared herein is presumed to provide sufficient restoration to the city for its costs. The assessment of civil penalties herein is not intended to be an exercise of powers delegated to other agencies or entities created by the general assembly to regulate the proscribed conduct. Violations of this article shall not be punishable as a misdemeanor or infraction and G.S. § 14-4 shall not apply to violations of this chapter. The city shall thereupon mail to the violator or to the owner a bill reflecting the civil penalties assessed and, if not paid within thirty (30) days, may be collected as a debt as allowed by law.

(d) *Avoidance of civil penalty.* The owner shall be responsible for the civil penalty issued herein unless successfully appealed, as allowed in subsection (f) below, or unless the owner, within thirty (30) days after notification of the violation, furnishes the environmental enforcement officer which issued the citation either of the following:

(1) An affidavit stating the name and address of the person or company who had the care, custody, and control of the vehicle; or

(2) An affidavit stating that the vehicle involved was, at the time, stolen. The affidavit must be supported with evidence that supports the affidavit, including insurance or police report information.

(e) *Service of notice.* The violator or the owner shall be notified of the assessed civil penalty by personal delivery of said notice or by regular and registered or certified mail, return receipt requested. If such registered or certified notice is refused or is returned unclaimed, but the regular mail is not returned by the post office within ten (10) days after the mailing, the service shall be deemed sufficient. The person mailing such notice of violation by regular mail shall certify that fact and the date thereof and such certificate shall be deemed conclusive in the absence of fraud. Any such notice may be served by any environmental enforcement officer. The civil penalty assessed herein shall not be collectable if notice of the civil penalty is not served in accordance with this subsection within ninety (90) days after the date of the violation.

(f) *Appeal.* Within thirty (30) days of service of the notice of the assessed civil penalty, the violator or owner may appeal issuance of the civil penalty to the minimum housing standards commission by giving written notice of appeal to the chief of code compliance or their designated representative. The appeal before the minimum standards housing commission is limited to determine whether the notice of the civil penalty was properly served and whether the violator participated in illegal disposal or the owner's motor vehicle was used in the act of illegal disposal. The concurring vote of four (4) members of the minimum housing standards commission shall be necessary to reverse the issuance of the civil penalty assessed herein.

(Ord. No. 21-112, § 1, 7-20-21; Ord. of 03-17-2026(1), § 3(Exh. A), 3-17-26)

Secs. 17-9—17-25. Reserved.

ARTICLE II. UNSAFE BUILDINGS*

Sec. 17-26. Declaration and findings.

The city council finds and declares that there exists in the city certain occupied and vacant buildings and other nonresidential structures that constitute a health or safety hazard or both to the citizens of the city as a result of conditions creating a fire hazard, bad condition of walls, over-loaded floors, defective construction, decay, unsafe wiring or heating system, inadequate means of egress, dangerous conditions creating a threat to children, frequent use by vagrants as living quarters, or the attractions of insects or rodents. In order to alleviate these unsafe and dangerous conditions for the health, safety, and welfare of the citizens of the city, a public necessity exists for the repair, closing or demolishing of such buildings and other nonresidential structures.
(Code 1961, § 8-28(a))

Sec. 17-27. Correction of defects.

If the building inspector finds that the conditions of a building or other nonresidential structure constitutes a fire or safety hazard or is dangerous to life, health or other property and he/she/they has notified the owner of these conditions and has also posted the building or nonresidential structure, the owner shall take the necessary measures to correct the unsafe or hazardous conditions found by the building inspector.
(Code 1961, § 10-28(b); Ord. No. 20-163, § 3, 12-15-20)

Sec. 17-28. Appeal.

Any owner who has received an order pursuant to this article may appeal from the order to the housing commission by giving notice of appeal in writing to the inspector within ten (10) days following issuance of the order. In the absence of an appeal, the order of the inspector shall be final. The housing commission shall hear an appeal within a reasonable time and may affirm, modify and affirm, or revoke the order.
(Code 1961, § 10-28(c))

Cross reference—Housing commission, § 11-46 et seq.

Sec. 17-29. Abatement by city—Generally.

(a) If the owner fails to comply with the order of the building inspector to repair, improve, vacate, demolish or close and secure a building or other nonresidential structure after the building inspector has followed the procedures as prescribed by North Carolina General Statutes sections 160A-425 through 160A-430, then the building inspector may cause the building or other nonresidential structure to be closed and made secure. The determination by the building inspector to close and secure the building or other nonresidential structure upon failure of the owner to comply with the order to repair, improve, vacate, close or demolish, shall not be exercised until the housing commission shall, by resolution, order the building inspector to proceed to cause the building or other nonresidential structure to be closed and secured and the resolution shall describe the location of the property.

(b) If the inspector finds a building or structure that is in such a state of disrepair and dilapidation that unless such structure or building is immediately repaired or demolished it would continue to constitute a health or safety hazard and will continue to be dangerous to life, health or other property based upon the standards set forth in subsection (c), he/she/they shall order the owner thereof to demolish the structure or to immediately repair it in such a manner that it meets the minimum requirements of the building code. The owner of the building or structure may appeal the order to repair or demolish by appealing to the housing commission as provided in section 17-28. If the owner fails to repair or demolish the structure as required in the order of the building inspector after the inspector has followed the procedures as prescribed by North Carolina General Statutes sections 160A-425 through 160A-430, then the building inspector may cause the structure to be demolished.

*__Cross references—__Advertising and signs, Ch. 3; buildings and building regulations, Ch. 6; housing code, Ch. 11.

State law reference—Unsafe buildings, G.S. § 160A-425 et seq.

(c) Hazardous conditions requiring immediate repair or demolition shall be met if the building inspector finds all of the following:

(1) The condition of the walls, floor and roof is in such a state of decay or disrepair that they constitute a serious safety hazard.

(2) The cost of repair to bring the building or structure into compliance with the minimum building code of the city would be sixty-five (65) percent or more of the value of the building or structure as it stands at the time of the inspection. The building inspector may use his/her/their own opinion to find that the cost of repair of the building or structure would be sixty-five (65) percent of the value of the structure.

(d) No building or structure shall be caused to be demolished by the building inspector until the minimum housing standards commission shall, by ordinance or other decree, order the building inspector to proceed to cause the building or structure to be demolished and the ordinance or other decree shall describe the location of the property.
(Code 1961, § 10-28(d); Ord. No. 97-45, § 1, 4-15-97; Ord. No. 00-219, § 6, 12-5-00; Ord. No. 15-0113, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 17-30. Demolition lien.

If a building is caused to be demolished by the building inspector pursuant to this article, the amount of the cost for such demolition shall be a lien against the real property upon which such cost was incurred. The lien shall be filed; have the same priority and be collected or foreclosed upon in the same manner as is provided for assessments for local improvements. With respect to the payment and credit of proceeds from sale of materials, the provisions contained in section 11-39, subsection (e) shall be applicable.
(Code 1961, § 10-28(d), (e))

Sec. 17-31. Failure to receive notice.

Failure on the part of any owner or party in interest to receive or have served upon him/her/them any complaint, notice, or order provided for in this article shall not affect or invalidate the proceedings with respect to any other owner or party in interest or any other person.
(Code 1961, § 10-28; Ord. No. 20-163, § 3, 12-15-20)

Secs. 17-32—17-49. Reserved.

ARTICLE III. ABANDONED AND JUNKED VEHICLES*

Sec. 17-50. Authority.

The City of Greensboro hereby finds that regulation of abandoned and junked vehicles is necessary and desirable to protect the health and safety of the residents of the city and to promote and enhance community, neighborhood and city appearance.
(Ord. No. 13-125, § 1, 9-17-13)

Sec. 17-51. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abandoned motor vehicle means any vehicle:

(1) Left upon a street or highway in violation of the law or ordinance regulating or prohibiting parking; or

(2) Left on property owned or operated by the city for a period of not less than twenty-four (24) hours; or

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***Editor's note—**Ord. No. 13-125, § 1, adopted Sept. 17, 2013, amended Art. III in its entirety to read as set out herein. Former Art. III, §§ 17-51—17-59, pertained to similar subject matter and derived from the Code of 1961, §§ 13-20(a)—(d), 13-21(b)—(e), 13.21.1(a), (b), 13-21.3; Ord. No. 89-39, § 1, adopted March 6, 1989; Ord. No. 92-30, § 1, adopted March 16, 1992; Ord. No. 94-100, §§ 1—3, adopted Sept. 29, 1994; Ord. No. 97-5, § 1, adopted Jan. 7, 1997; Ord. No. 00-219, §§ 7, 8, adopted Dec. 5, 2000; Ord. No. 01-148, § 2, adopted June 5, 2001; Ord. No. 04-166, § 1, adopted Sept. 7, 2004.

Cross reference—Motor vehicles and traffic, Ch. 16.

State law reference—Junked and abandoned motor vehicles, G.S. § 160A-303.

(3) Left on any street or highway for longer than seven (7) days or is determined by law enforcement to be a hazard to the motoring public; or

(4) Left on private property without the consent of the owner, occupant or lessee thereof for longer than two (2) hours.

Junked motor vehicle means a vehicle that does not display a current license plate and that:

(1) Is partially dismantled or wrecked; or

(2) Cannot be self-propelled or moved in the manner in which it originally was intended to move; or

(3) Is more than five (5) years old and appears to be worth less than five hundred dollars ($500.00).

Motor vehicle is defined to include all machines designed or intended to travel over land or water by self-propulsion or while attached to any self-propelled vehicle. Use of the term vehicle or trailer in this article shall mean motor vehicle. For purposes of this article, an electric personal assistive mobility device as defined in G.S. § 20-4.01(7a) is not a motor vehicle.
(Ord. No. 13-125, § 1, 9-17-13)

State law reference—Similar provisions, G.S. § 160A-303(b), G.S. § 20-4.01(23) and (49).

Sec. 17-52. Exemptions.

This article does not apply to any vehicle in an enclosed building or any vehicle on the premises of a business enterprise being operated in a lawful place and manner if the vehicle is necessary to the operation of the enterprise, or to any vehicle in an appropriate storage place or depository maintained in a lawful place and manner by the city. No motor vehicle used on a regular basis for business or personal use shall be removed or disposed of pursuant to this article.
(Ord. No. 13-125, § 1, 9-17-13)

State law reference—Similar provisions, G.S. § 160A-303(g) and G.S. § 160A-303.2(b).

Sec. 17-53. Civil, etc., liability.

No person shall be held to answer in any civil or criminal action to any owner or other person legally entitled to the possession of any abandoned, lost or stolen vehicle for disposing of such vehicle as provided in this article.
(Ord. No. 13-125, § 1, 9-17-13)

State law reference—Similar provisions, G.S. § 160A-303(f).

Sec. 17-54. Abandonment prohibited.

It shall be unlawful for the registered owner or person entitled to the possession of the vehicle to allow any abandoned motor vehicle or junked motor vehicle to remain on any public street, public property or private property in violation of this article.
(Ord. No. 13-125, § 1, 9-17-13)

State law reference—Authority to so provide, G.S. 160A-303(a).

Sec. 17-55. Removal generally.

(a) Removal from public streets or public grounds. Any abandoned or junked motor vehicle on the public streets or public grounds may be removed to a city-authorized storage garage or area by or under the direction of a law enforcement officer or a code enforcement officer. Notice of each removal shall be given to the owner of the vehicle as promptly as possible in accordance with the procedure below. The owner of such vehicle, before obtaining possession thereof, shall pay to the city all reasonable costs incidental to the removal, storage and locating the owner of the vehicle.

(b) Removal from private property. Any abandoned or junked motor vehicle on private property may be removed to a city-authorized storage garage or area by or under the direction of a law enforcement officer or a code enforcement officer upon the written request of the owner, lessee, or occupant of the premises.

Any junked motor vehicle upon privately-owned property may be removed to a city-authorized storage garage or area by or under the direction of a law enforcement officer or a code enforcement officer without the written request of the owner, lessee, or occupant of the premises when:

(1) The code enforcement officer declares in writing the vehicle to be a health, safety or fire hazard; or

(2) The code enforcement officer makes a finding, in writing, that the aesthetic benefits of removing the vehicle outweigh the burdens imposed on the private property owner. Such finding shall be based on a balancing of the monetary loss of the apparent owner against the corresponding gain to the public by promoting or enhancing community, neighborhood or area appearance. The following, among other relevant factors, may be considered:

a. Protection of property values;

b. Promotion of tourism and other economic development opportunities;

c. Indirect protection of public health and safety;

d. Preservation of the character and integrity of the community; and

e. Promotion of the comfort, happiness, and emotional stability of area residents.

(c) In determining whether there is a health, safety or fire hazard, the code enforcement officer may take into consideration that the vehicle is found to be:

(1) A breeding ground or harbor for mosquitoes, other insects, rats or other pests; or

(2) A point of heavy growth of weeds or other noxious vegetation over twelve (12) inches in height; or

(3) A point of collection of pools or ponds of water; or

(4) A point of concentration of quantities of gasoline, oil or other flammable or explosive materials; or

(5) One which has areas of confinement which cannot be operated from the inside, such as trunks, hoods, etc; or

(6) So situated or located that there is a danger of it falling or turning over; or

(7) One which is a point of collection of garbage, food waste, animal waste, or any other rotten or putrescible matter of any kind; or

(8) One which has sharp parts thereof which are jagged or contain sharp edges of metal or glass; or

(9) A condition or circumstance which exposes the general public to safety, health or fire hazards.

(d) It shall be unlawful for the registered owner or person entitled to the possession of an abandoned vehicle or junked motor vehicle, or for the owner, lessee or occupant of the real property upon which an abandoned vehicle or junked motor vehicle is located to leave or allow the vehicle to remain on the property after the vehicle has been ordered removed.

(e) When a junked motor vehicle is removed from privately-owned property, the person who has requested such vehicle to be removed may be required to pay or otherwise indemnify the city for any expenses incurred by reason of its removal, storage or sale thereof.

(Ord. No. 13-125, § 1, 9-17-13)

State law reference—Removal authorized, G.S. § 160A-303(c).

Sec. 17-55.1. Penalties for violations.

Any person who violates any provision of this article shall be subject to assessment of a civil penalty in the amount of twenty-five dollars ($25.00) for the first violation, fifty dollars ($50.00) for the second violation, one hundred dollars ($100.00) for the third violation, and two hundred dollars ($200.00) for the fourth and each succeeding violation. The enforcement of civil penalties levied hereunder shall be in accordance with the procedures set out in section 30-5-5, assessment of civil penalties, of the Greensboro Land Development Ordinance. Civil penalties assessed under this section are considered restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. As such, the amount declared herein is presumed to provide sufficient restoration to the city for its costs. Violations of this article shall

not be punishable as a misdemeanor or infraction and G.S. § 14-4 shall not apply to violations of this chapter.

The assessment of civil penalties herein is not intended to be an exercise of powers delegated to other agencies or entities created by the general assembly to regulate the proscribed conduct.
(Ord. No. 13-125, § 1, 9-17-13; Ord. No. 15-0113, § 1, 9-1-15)

Sec. 17-56. Pre-tow notice.

(a) Any junked or abandoned vehicle in violation of this article may be removed to a city-authorized storage garage or area by or under the direction of a law enforcement officer or a code enforcement officer. Such motor vehicle shall be towed after notice is provided by posting a warning notice on the vehicle. Such notice shall be affixed to the windshield or some other conspicuous place on the vehicle. That notice shall state that the vehicle will be removed on a specified date, no sooner than seven (7) days after the notice is affixed to the vehicle, unless the vehicle is brought into compliance by the owner or legal possessor prior to that time. The notice shall also state the procedure the owner must follow to request a probable cause hearing before the towing.

(b) The requirement that notice be affixed to any vehicle at least seven (7) days prior to removal may be omitted in those circumstances where the vehicle impedes the flow of traffic or otherwise to maintain or protect the public safety and welfare.
(Ord. No. 13-125, § 1, 9-17-13)

Sec. 17-56.1. Post-tow notice.

(a) Whenever a vehicle with a valid registration plate or vehicle identification number is towed hereunder, the authorizing person shall notify the last known address of the following:

(1) A description of the vehicle.

(2) The place from which the vehicle may be released.

(3) The violation.

(4) The procedure the owner must follow to have the vehicle returned to him/her/them.

(5) The procedure the owner must follow to request a probable cause hearing on the towing.

(b) If the vehicle has a state registration plate or registration, notice shall be given to the owner within twenty-four (24) hours; if the vehicle is not registered in this state, notice shall be given to the owner within seventy-two (72) hours. This notice shall, if feasible, be given by telephone. Whether or not the owner is reached by telephone, notice shall be mailed to his/her/their last known address unless he/she/they or his/her/their agent waives this notice in writing.

(c) Whenever a vehicle with neither a valid registration plate nor vehicle identification number is towed as provided in hereunder, the authorizing person shall make reasonable effort to determine the last-known registered owner of the vehicle and to notify him/her/them of the information listed in subsection (b). Reasonable efforts shall be presumed if the requirements of section 17-56 or 17-56.1 have been followed.
(Ord. No. 13-125, § 1, 9-17-13; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Similar provisions, G.S. §§ 160A-303(c), 20-219.11(a), (b).

Sec. 17-57. Hearing.

(a) The owner or any other person entitled to claim possession of the vehicle towed pursuant to this article may request a hearing either before towing or after towing of the motor vehicle. The only issue at this hearing is whether or not the city can demonstrate probable cause to tow the motor vehicle. The request shall be filed with the code enforcement officer, and he/she/they shall set the hearing within seventy-two (72) hours of receiving the request. The owner or any other person entitled to claim possession of the vehicle shall be notified of the time and place of the hearing, the specific grounds for the classification of the vehicle as an abandoned vehicle or a junked vehicle, and the reason for removal of the vehicle. The chief of code compliance or their designee shall be the hearing officer.

(b) The owner and any other interested parties may present evidence at the hearing and may cross-examine all parties.

(c) If the hearing is pre-tow and the hearing officer finds that the city has probable cause, the motor vehicle will be removed and the cost for removal will become a lien on the motor vehicle. If the hearing officer finds that probable cause does not exist, the city will not tow the vehicle and no costs shall be charged.

(d) If the hearing is post-tow and the hearing officer finds that the city had probable cause, the lien for cost of removal shall remain. If the hearing officer finds that probable cause did not exist, the lien shall be extinguished.

(e) The hearing officer shall prepare a written report within five (5) days of the hearing stating his/her/their conclusion concerning whether the vehicle was in violation of this article and the reasons and evidence upon which the conclusion has been based. The owner or any other person entitled to claim possession of the vehicle shall be notified of this decision by regular mail.

(f) Any aggrieved party may appeal the hearing officer's decision to board of adjustment by filing an appeal in writing within fifteen (15) calendar days after the date of the report of the hearing officer, but not thereafter.

(g) At any stage in the proceedings, including before the probable cause hearing, the owner or other person entitled to possession may obtain possession of the vehicle by:

(1) Paying the towing fee and costs incident to such fee; or

(2) Posting a bond for double the amount of the towing fee.

(Ord. No. 13-125, § 1, 9-17-13; Ord. No. 14-43, § 1, 4-1-14; Ord. No. 20-163, § 3, 12-15-20; Ord. of 03-17-2026(1), § 3(Exh. A), 3-17-26)

State law reference—Hearing required, G.S. § 160A-303(d) and G.S. § 160A-303.2(d)

Sec. 17-57.1. Administrative search and inspection warrants.

The code enforcement officer is authorized to secure an administrative search and inspection warrant, as provided by G.S. 15-27.2, in order to conduct any necessary inspection of the premises on which an abandoned motor vehicle or junked motor vehicle may be located and to obtain evidence to determine whether there is any violation of any provisions of this article.
(Ord. No. 13-125, § 1, 9-17-13)

Sec. 17-58. Sales, etc., of impounded vehicles.

(a) Should the owner of a motor vehicle or any other person entitled to claim possession of the vehicle impounded under this article fail or refuse to pay the costs provided for in section 17-55 or should the identity or whereabouts of such owner be unknown and unascertainable after a diligent search has been made by a law enforcement officer or the code enforcement officer, and after notice as described herein to him/her/them at last-known address and to the holder of any lien of record in the office of the division of motor vehicles, the code enforcement officer or a designated law enforcement officer may after holding the vehicle thirty (30) days, dispose of the same by public sale after proper notice.

(b) Notice of public sale, whenever required in this section, shall include:

(1) The name and address of the person having legal title and of any lienholder to the vehicle.

(2) The name of the person with whom the city has dealt, if different.

(3) A description of the vehicle.

(4) The amount due.

(5) The place, date and time of the sale.

(c) The notice shall, not less than twenty (20) days prior to sale, be:

(1) Sent to the division of motor vehicles.

(2) Mailed to the person having legal title and to the person with whom the city dealt, if different, and to each lienholder.

(3) Posted at the courthouse in the county where the sale is to be held.

(4) Published once a week for two (2) consecutive weeks in a newspaper of general

circulation with the date of the last publication being not less than five (5) days prior to sale. The notice of sale need not be published if the vehicle has a market value of less than three thousand five hundred dollars ($3,500.00), as determined by the schedule of values adopted by the commissioner of motor vehicles under G.S. 105-187.3.

(d) Failure of the person having legal title to, or a lien on, the vehicle to request a hearing as provided in this article or to appear at any sale as provided in this section, shall be deemed to have waived any objection to the sale.

(e) The proceeds of the sale shall be applied as follows:

(1) Payment of reasonable expenses incurred by the city and its towing contractor prior to and in connection with the sale. Expenses of sale include, but are not limited to, reasonable storage and boarding expenses after giving notice of sale. Provided the total sales price exceeds five hundred dollars ($500.00), ten (10) percent of the sales price shall be submitted to or retained by the city as payment for administrative expenses of the sale.

(2) Payment of the obligation secured by the lien.

(3) Any surplus, after payment of reasonable sale expenses and the obligation secured by the lien, shall be paid to the person entitled thereto; but when such person cannot be found, the surplus shall be paid to the clerk of superior court of the county in which the sale took place, to be held by the clerk for the person entitled thereto.

(f) Whenever any abandoned motor vehicle or abandoned junk motor vehicle is removed from public or private property as provided in this article in order to defray the costs of towing, storage, publication and administrative services, the owner of the vehicle shall pay a fee of one hundred seventy-five dollars ($175.00) if such owner claims the vehicle prior to advertising for public auction; a fee of two hundred dollars ($200.00) shall be paid for release of the vehicle if it has already been advertised for public auction.

(g) Whenever any such vehicle shall remain unsold for a period of thirty (30) days from and including the day when the same shall have been delivered under the direction of any municipal officer charged with the keeping or sale of the same, any such vehicle may be destroyed, removed or otherwise disposed of by such municipal officer.
(Ord. No. 13-125, § 1, 9-17-13; Ord. No. 15-0113, § 1, 9-1-15; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Sale, etc., G.S. § 160A-304(d).

Sec. 17-59. Disposition of junk vehicles with owner's consent.

A law enforcement officer or code enforcement officer may, with the consent of the owner of a vehicle, remove and dispose of any motor vehicle as a junk motor vehicle regardless of the value, condition or age of such vehicle and without compliance with the notice, hearing or sale procedures in this article.
(Ord. No. 13-125, § 1, 9-17-13)

ARTICLE IV. UNSAFE OCCUPANCY

Sec. 17-60. Purpose.

The city council finds and declares that repeated violations of the posted maximum lawful occupancy limits established under the terms of the fire prevention code constitute a detriment, danger and hazard to the health, safety, morals and general welfare of the inhabitants of the city resulting in hazardous conditions for the occupants of the building, including overloaded floors, inadequate means of egress and hindrance of access by public safety personnel in times of danger. Repeated overcrowded conditions are hereby found, deemed and declared to be the public nuisance of unsafe occupancy wherever the same may exist. The creation, maintenance, or failure to abate such nuisance is hereby declared unlawful.
(Ord. No. 14-0299, § 1, 8-19-14)

Sec. 17-61. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

(a) "Owner" means and refers to any person or entity which owns, leases, uses or otherwise occupies a space for any non-residential purpose.

(b) "Subtenant" means and refers to any person or entity which subleases or uses a space from an owner, which shall specifically include event promoters, agents or other persons or entities who assert a right of use of a space.

(c) "Space" means and refers to any building, or portion of a building, which is or may be posted with a maximum lawful occupancy limit pursuant to the fire prevention code.

(d) "Overcrowding" means and refers to any condition in which the number of persons in a space exceeds the maximum number of persons who may lawfully occupy the space.
(Ord. No. 14-0299, § 1, 8-19-14)

Sec. 17-62. Violations.

(a) It is a violation of this article for an owner and/or subtenant to permit three (3) or more occurrences of overcrowding by at least ten (10) percent or more persons within any three-hundred-sixty-five-day period.

(b) It is a violation of this article for an owner and/or subtenant to permit two (2) or more occurrences of overcrowding by at least ten (10) percent or more persons within any three-hundred-sixty-five-day period, where each such occurrence also included a violation of the fire prevention code for defective fire prevention equipment, or locked or obstructed means of egress from the space.

(c) It is a violation of this article for an owner and/or subtenant to permit two (2) or more occurrences of overcrowding by at least twenty-five (25) percent or more persons within any three-hundred-sixty-five-day period.

(d) It is a violation of this article for an owner and/or subtenant to permit one (1) or more occurrences of overcrowding by at least fifty (50) percent or more persons within any three-hundred-sixty-five-day period.
(Ord. No. 14-0299, § 1, 8-19-14)

Sec. 17-63. Abatement.

(a) The city shall enforce this article by seeking abatement and other equitable remedies which may be imposed by a court of competent jurisdiction as allowed in G.S. § 160A-175. The terms of such order of abatement sought by the city may include:

(1) The right of the city to order the cessation of all business at the location where the nuisance occurs for a minimum period of twenty-four (24) hours to a maximum period of ten (10) days upon the discovery of any subsequent overcrowding condition at the location, without further judicial notice, hearing or action;

(2) That such order may remain in effect for at least a twelve-month period; and

(3) That such order shall be enforced by any law enforcement officer having jurisdiction to enforce state and local laws within the City of Greensboro.

This subsection does not preclude the city from seeking other terms of abatement or injunctive relief which may be appropriate under the circumstances.
(Ord. No. 14-0299, § 1, 8-19-14)

ARTICLE V. COVID-19 PANDEMIC RESTRICTIONS

Sec. 17-64. Purpose.

The city council finds and declares that, as identified by public health organizations, agencies and officials, coronavirus disease 2019 ("COVID-19") presents a global health pandemic or unprecedented proportions. This disease has had a substantial adverse impact within the City of Greensboro and constitutes a detriment, danger and hazard to the health, safety and welfare of

the inhabitants of the city, often causing severe illness and death. Physically crowded conditions within offices and businesses in the city significantly contribute to disease spread. Therefore, crowded indoor conditions where persons are not able to remain a sufficient physical distance apart and which violate the reduced occupancy limits contained in various executive orders issued by the governor, are hereby found, deemed and declared to be the public nuisance wherever the same may exist. The creation, maintenance, or failure to abate such nuisance is hereby declared unlawful.
(Ord. No. 20-156(20-0860), § 1, 12-1-20)

Sec. 17-65. Prohibitions.

All offices and businesses in the city are hereby ordered to comply with the reduced occupancy limits contained within North Carolina Governor Cooper's various executive orders regarding the COVID-19 pandemic.

Specifically, the mass gathering prohibitions expressed initially in Section 5.1 of Executive Order No. 169 and amended in subsequent executive orders are applicable within the city's corporate limits. Any city official or employee, so designated by the city manager, shall be empowered to cite for violation of this article, any office or business or person determined to be in control of such facility in the city that has been functioning in violation hereof.
(Ord. No. 20-156(20-0860), § 1, 12-1-20)

Sec. 17-66. Violations.

An office or business found to have been in violation of the reduced occupancy limits expressed herein shall be cited and fined one-hundred dollars ($100.00) for each person found to be on the premises or within any structure in excess of the limits imposed for such premises or structure.
(Ord. No. 20-156(20-0860), § 1, 12-1-20)

Secs. 17-67—17-69. Reserved.

ARTICLE VI. CRIMINAL NUISANCE ABATEMENT

Sec. 17-70. Purpose.

The purpose of this article is to remove criminal activity from areas of the City of Greensboro using the abatement of criminal nuisances process identified in G.S. ch. 19, art. 1.
(Ord. of 05-19-2026(2), § 1(Exh. A), 5-19-26)

Sec. 17-71. Jurisdiction.

The provisions of this article shall apply within the corporate limits of the City of Greensboro.
(Ord. of 05-19-2026(2), § 1(Exh. A), 5-19-26)

Sec. 17-72. Declaration of a criminal nuisance.

Any condition defined as a nuisance in G.S. ch. 19 shall be defined herein as a nuisance and shall be prohibited within the corporate limits of the city.

Without limiting the foregoing, such nuisances shall include:

(1) The erection, establishment, continuance, maintenance, use, ownership or leasing of any building or place for the purpose of assignation, prostitution, gambling, illegal possession of sale of alcoholic beverages, illegal possession or sale of controlled substances as defined in the North Carolina Controlled Substances Act, or illegal possession or sale of obscene or lewd matter, as defined in G.S. ch. 19, shall constitute a nuisance. The activity sought to be abated need not be the sole purpose of the building or place in order for it to constitute a nuisance.

(2) The erection, establishment, continuance, maintenance, use, ownership or leasing of any building or place wherein or whereon are carried on, conducted, or permitted repeated acts which create and constitute a breach of the peace shall constitute a nuisance.

   a. *Breach of the peace* means repeated acts that disturb the public order including, but not limited to, homicide, assault, affray, communicating threats, unlawful possession of dangerous or deadly weapons, and discharging firearms.

(3) The erection, establishment, continuance, maintenance, use, ownership or leasing of any building or place wherein

or whereon are carried on, conducted, or permitted repeated activities or conditions which violate a local ordinance regulating sexually oriented businesses so as to contribute to adverse secondary impacts shall constitute a nuisance.

(4) The erection, establishment, continuance, maintenance, use, ownership, or leasing of any building or place for the purpose of carrying on, conducting, or engaging in any activities in violation of G.S. § 14-72.7 (Chop shop activity).

(5) The building, place, vehicle, or the ground itself, in or upon which a nuisance as defined in subsection (1), (2), or (3) of this section is carried on, and the furniture, fixtures, and contents, are also declared a nuisance, and shall be enjoined and abated as hereinafter provided.

(6) No nuisance action under this article may be brought against a place or business which is subject to regulation under G.S. ch. 18B (Regulation of Alcoholic Beverages) when the basis for the action constitutes a violation of laws or regulations under that chapter pertaining to the possession or sale of alcoholic beverages.

(Ord. of 05-19-2026(2), § 1(Exh. A), 5-19-26)

Sec. 17-73. Responsibility for administration and enforcement.

The city police department is hereby charged with the administration and enforcement of this article.

(Ord. of 05-19-2026(2), § 1(Exh. A), 5-19-26)

Sec. 17-74. Complaints, investigation, and enforcement.

(a) The city shall, upon notice from any citizen or public official, investigate to determine whether a criminal nuisance as defined in this article exists. The chief of police may present the initial findings of an investigation to the city manager and the city attorney to assist in the determination of whether a criminal nuisance exists and what steps may be taken to achieve abatement of an identified nuisance in accordance with the laws of the state.

(b) Upon the determination that a nuisance as defined herein exists, the city may pursue the matter through the judicial process and seek abatement, injunction, civil penalty, and forfeiture as deemed necessary and set forth in G.S. §§ 19-2.1 et seq.

(Ord. of 05-19-2026(2), § 1(Exh. A), 5-19-26)

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Chapter 18

OFFENSES AND MISCELLANEOUS PROVISIONS

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Article V. Reserved

ARTICLE I. IN GENERAL

Sec. 18-1. Failure to leave premises.

(a) It shall be unlawful for any person in or about or on the grounds surrounding any railway station, any public library, bus station or terminal, church building or grounds, school building or grounds, fire station or fire training building or grounds, or any building or grounds used in connection with the city's water system, or the premises of any municipal parking garage or other public off-street parking facilities to fail to leave such premises when requested to do so by the owner or occupant of same or his/her/their designee.

(b) It shall be unlawful for any person to occupy municipal parking garage or other public off-street parking facilities in such a way as to obstruct or interfere with the free passage into or out of the facility.

(c) It shall be unlawful for any person in or about or on the grounds surrounding any municipal parking garage or other public off-street parking facilities to consume alcohol, illegal drugs, or engage in disorderly conduct as defined by state statute.

(d) Penalty. Pursuant to G.S. § 14-4 any person who violates this section shall be guilty of a class 3 misdemeanor with a maximum fine of fifty dollars ($50.00).
(Code 1961, § 13-10; Ord. No. 10-171, 11-16-10; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22)

State law reference—Trespass, G.S. § 14-126 et seq.

Secs. 18-2, 18-2.5. Reserved.

Editor's note—Ord. No. 22-123, adopted June 21, 2022 and subsequently by Ord. No. 22-15, adopted July 19, 2022, repealed §§ 18-2 and 18-2.5, which pertained to injuring, defacing, etc., city-owned property and assaulting, injuring, taunting law enforcement agency animal, respectively, derived from the Code of 1961, § 13-16 and Ord. No. 95-101, adopted August 3, 1995.

Sec. 18-3. Interfering with, disturbing, etc., survey markers, etc.

No person shall interfere with, disturb or injure the city's primary traverse point system, or any cast-iron cover or apparatus connected therewith. In this section "primary traverse point" means any one (1) of the three hundred (300) concrete monuments or blocks about four (4) inches square across the top and eighteen (18) inches long, the top of which is about six (6) inches below the surface of the ground, which blocks are placed principally in sidewalks and grass plots in the city, and indicated by cast-iron covers bearing thereon the inscription "PTP," the purpose thereof being to control the city survey.
(Code 1961, § 13-17)

Sec. 18-4. Minibikes and motorcycles on vacant property.

It shall be unlawful for any person to ride, drive, or otherwise negotiate a minibike, motorcycle, motorized trail bike, or other self-propelled vehicle, not including automobiles and trucks, on unpaved rights-of-way, except in those cases when the paved area is blocked to the movement of traffic, vacant lots and vacant areas, except when the owners thereof give specific permission for such use and those areas of parks owned by the city not designated as a street or trail for self-propelled vehicular use. Pursuant to G.S. § 14-4 any person who violates this section shall be guilty of a class 3 misdemeanor with a maximum fine of fifty dollars ($50.00).
(Code 1961, § 13-25; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22)

Sec. 18-5. Sanitation of ponds, water accumulations, etc.

(a) Every owner and every person in possession of any lake, pond, pool or other body of water maintained and used for manufacturing, commercial or any similar useful purpose, shall keep the same free from stagnation and free from the accumulation therein of debris of every kind and in such condition at all times that the lake, pond, pool or other body of water will not be dangerous to public health.

(b) It shall be unlawful to maintain or permit to remain on any premises any lake, pond, pool or other standing water which is wholly or partly stagnant, or which is liable to breed mosquitoes.

(c) It shall be unlawful to allow water to pond continuously on any premises except where such ponding is allowed or caused for some useful purpose. Wherever water ponds on any premises, not for some useful purpose but in such a way as to constitute a nuisance, the owner and person in possession thereof shall either provide proper drainage therefor or shall fill up such portion of the premises as is covered by such water; provided that where the premises are filled up, natural drainage through the lot shall not be obstructed, provisions being made if necessary for drainage through such portion of such premises by means of underground waterways. In any case where it is impracticable by means of an open ditch or ditches to keep any premises drained in such way as to prevent the ponding of water and the creation of a menace to health, the owner and the person in possession of such premises shall subdrain such premises with drainage tile.

(d) No privy, pigpen or stable of any kind shall be permitted to stand so near any stream, ditch or drain of any kind that the droppings therefrom will run into such stream, ditch or drain or in any way poison or contaminate the water therein; nor shall the urine from any privy be allowed to fall or be emptied into any stream, ditch or drain.

(e) It shall be unlawful to use any stream or watercourse to carry off water from any kitchen sink, bathtub or privy, or to carry off any fluid of an offensive or dangerous nature. No water or refuse from any industrial, commercial or institutional process, including uncontaminated water used for heating or cooling, shall be discharged in any stream or watercourse by any person until such person has obtained the appropriate local, state and federal permits.

(f) *Notice to abate; abatement by city.* If any person shall violate the provisions of section 18-5, it shall be the duty of the director of water resources or designated representative to give notice to the owner or to any person in possession of the subject property, as directed by section 18-6 (c), directing that all unlawful conditions existing thereupon be abated within ten (10) days from the date of such notice; provided, that if, in the opinion of the director of the director of water resources or designee, the unlawful condition is such that it is of imminent danger or peril to the public, then any authorized city representative may, without notice, proceed to abate the same, and the cost thereof shall be charged against the property as is provided in section 18-6 (e).

(Code 1961, §§ 9-13—9-15, 9-17, 9-18; Ord. No. 00-220, § 1, 12-5-00)

Sec. 18-6. Banks of bodies of water to be kept free of accumulations of debris that block, hinder, or obstruct in any way the natural flow of water.

(a) Every owner and/or person in possession of any premises across or through which any stream or open ditch runs, or on which any body of water is impounded, shall keep the banks and edges of the stream, ditch or body of water free and clear of accumulations of debris which might block, hinder, or obstruct the waterway, including the floodplain.

(b) *Notice to abate; abatement by city.* If any person shall violate the provisions of section 18-6(a), it shall be duty of the director of water resources or designated representative to give notice to the owner or to any person in possession of the subject property, as directed by section 18-6(c), directing that all unlawful conditions existing thereupon be abated within ten (10) days from the date of such notice; provided, that if, in the opinion of the director of water resources or designee, the unlawful condition is such that it is of imminent danger or peril to the public, then any authorized city representative may, without notice, proceed to abate the same, and the cost thereof shall be charged against the property as is provided in section 18-6(e).

(c) *Service of notice.* The owner of subject property shall be notified of violation of section 18-5 and/or 18-6 (a) by personal delivery of said notice or by registered or certified mail, return receipt requested. If such notice is refused or is returned unclaimed, then said property shall be posted with notice. If the name of the owner cannot be ascertained, then the notice shall be served on any person in possession of the subject

property, or, if there is no person in possession of it, by posting the notice on the subject property. If any such property is owned by a corporation, the notice shall be served upon the registered agent or, in the absence thereof, notice shall be served upon the corporation. Any such notice may be served by any authorized representative of the water resources department or by any police officer of the city when so authorized through the water resources department.

(d) *Defect in notice not to affect lien.* Any defect in the method of giving, the notice required by section 18-5 and/or 18-6, or in the form thereof, or the giving of such notice to an improper person, shall not prevent the city, in any case where the work of abating an unlawful condition upon any property is caused by the city, from collecting the cost thereof from the owner, nor shall it affect the validity of the lien on the property for such cost.

(e) *Abatement by city where owner fails to abate.* Upon the failure of the owner or person in possession of any premises to abate any unlawful condition existing thereupon within the time prescribed by section 18-5 and/or 18-6, it shall be the duty of an authorized water resources representative to cause the removal and abatement of such unlawful condition therefrom. Upon the completion of such removal and abatement, the director of water resources or his/her/their designated representative shall deliver to the city tax collector a statement showing the actual cost of the abatement of the unlawful condition plus an additional fee of ten (10) percent of the total clean up costs with a minimum of one hundred dollars ($100.00) to cover the cost of notice and cost of collection. The city tax collector shall thereupon mail to the owner of the subject property a bill covering the cost, if with reasonable diligence the name and address of such owner can be ascertained, and the amount of the bill shall become a lien upon the subject property, and if not paid within thirty (30) days shall be collected as in the manner provided for the collection of delinquent taxes.
(Code 1961, § 9-16; Ord. No. 00-220, § 2, 12-5-00; Ord. No. 20-163, § 3, 12-15-20)

Sec. 18-7. Public auctions of jewelry and novelties.

(a) It shall be unlawful to sell, dispose of, or offer for sale in the city at public auction, or cause or permit to be sold, disposed of, or offered for sale in the city at public auction, any gold, silver, plated ware, precious stones, watches, clocks, jewelry, or novelties, whether the same shall be the property of such person selling the same, or whether it shall be so sold by such person as agent or employee of another.

(b) Subsection (a) does not apply to the following:

(1) Judicial sales or sales by executors or administrators.

(2) Sales by or on behalf of licensed pawnbrokers or unredeemed pledges in the manner provided by law.

(3) Sales of stock on hand of any person that shall, for a period of one (1) year next preceding the sale, have been continuously in business in the city as a retail merchant of jewelry and novelties, provided that the sale at public auction shall be held on successive days, Sundays and legal holidays excepted, and shall not continue for more than thirty (30) days within the period of one (1) year.

(4) Sales that are bona fide closing out sales, after which the business is to be discontinued.

(Code 1961, § 11-100)

Sec. 18-8. Graffiti—Generally.

(a) *[Graffiti defined.] Graffiti* shall mean writings, drawings, inscriptions, figures, or marks of paint, ink, chalk, dye or other similar substances on public or private building, sidewalks, streets, structures, or places which are not authorized or permitted by the property owner or possessor. For the purpose of this chapter, graffiti shall include drawings, writings, markings, or inscriptions regardless of the content or the nature of materials used in the commission of the act. However, it shall not be construed to prohibit temporary, easily removable chalk or other water soluble markings on public or private sidewalks,

streets or other paved surfaces which are used in connection with traditional children's activities, such as drawings, or bases for stick ball, kick ball, handball, hopscotch or similar activities, nor shall it be construed to prohibit temporary, easily removable chalk or other water soluble markings used in connection with any lawful business or public purpose or activity.

(b) *Graffiti prohibited.* It shall be unlawful for any person to write, paint, inscribe, scratch, scrawl, spray, place or draw graffiti of any type on any public or private building, streets, sidewalks, structure or any other real or personal property. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). In addition to any other punishment imposed, the court shall order the person convicted of a violation of this section to make restitution to the victim for the damage or loss suffered by the victim as a result of the offense. The court may determine the amount, terms, and conditions, of the restitution.

(c) *Severability.* The provisions of this section shall be deemed severable. If any portion of this section is deemed unconstitutional, it shall not affect the constitutionality of any other portion of this section.
(Ord. No. 99-68, § 1, 5-4-99; Res. No. 048-24, § 1, 2-20-24; Ord. No. 25-154, § 4, 9-16-25)

Sec. 18-9. Reserved.

Editor's note—Ord. No. 25-154, § 5, adopted Sept. 16, 2025 repealed § 18-9, which pertained to same—providing notice to property owners or their agents or managers and derived from Ord. No. 99-68, § 2, adopted May 4, 1999; and Ord. No. 20-163, § 3, adopted Dec. 15 2020.

Sec. 18-10. Activities and other trespasses on, and around, the city's watershed lakes.

(a) It shall be unlawful for any person to conduct any recreational activity upon any city property abutting the city's watershed lakes. By way of illustration, and not limitation, it shall be unlawful for any person to swim, fish, or ride, drive, or otherwise operate a minibike, bicycle, trail bike, all terrain vehicle or other motorized, or non-motorized, vehicle in such areas; except that bicycles, walking and jogging are allowed on posted trails where specifically permitted, within the land surrounding said lakes. No activity of any kind is allowed, at any time, on exposed lakebeds or lake banks.

(b) The penalty for violation of this section shall be a civil penalty in the amount of two hundred fifty dollars ($250.00) for each violation. Each and every violation shall constitute a separate and distinct offense. In addition, any person violating this section shall be subject to all applicable punishment, penalties and equitable relief provided for in G.S. § 160A-175. Nothing in this section shall prohibit the enforcement of any relevant criminal laws.
(Ord. No. 02-174, § 1, 9-3-02)

Secs. 18-11—18-20. Reserved.

ARTICLE II. OFFENSES AGAINST PUBLIC SAFETY*

Sec. 18-21. Discharging firearms.

(a) Pursuant to G.S. § 14-4 any person who fires any pistol, gun or other firearm within the city shall be guilty of a class 3 misdemeanor and shall be fined not more than one hundred dollars ($100.00).

(b) Subsection (a) does not apply:

(1) In shooting galleries.

(2) To the discharge of duty by law enforcement officers.

(3) Where pursuant to the written permission of the city manager blank cartridges may be discharged during historical re-enactments, during theatrical or like performances, or military or similar displays in accordance with the noise ordinance and on land that is zoned to permit such use.

(4) To any person twenty-one (21) years of age or older using an exploding projectile device approved by the North Carolina Wildlife Commission for the purpose of

*__State law reference—__Offenses against public safety, G.S. § 14-278 et seq.

dispersing of birds, fowl, or other wildlife and which device does not have the capacity to physically harm such bird, fowl or other wildlife. The person shall exercise due care in the use of the device so as not to cause injury to persons or damage to another's property. Prior to the use thereof, the person using the device shall notify his/her/their adjacent property owners (or lessees) and the Greensboro Police Department Communications Center of the intended use, including the location and the approximate time of day for use. Such a device shall not be used between the hours of 11:00 pm. and 8:00 a.m. any day of the week.

(Code 1961, § 13-3; Ord. No. 94-63, § 1, 7-28-94; Ord. No. 95-8, § 1, 1-17-95; Ord. No. 95-53, § 1, 5-15-95; Ord. No. 06-32, § 1, 2-21-06; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22)

Editor's note—Former subsection (b)(3) to § 18-21 has been deleted per instruction to the city. Prior to repeal, § 18-21(b)(3) provided an exception to subsection (a) for hunters authorized to hunt in certain areas embracing Lake Brandt, Lake Higgins and Lake Townsend. See also the editor's note following § 5-1. Subsequently, Ord. No. 06-32, § 1, adopted Feb. 21, 2006, added new provisions as § 18-21(b)(3).

Sec. 18-22. Projectiles; archery ranges.

No person shall, within the corporate limits of the city, or within any area owned or leased by the city, shoot or project any stone, rock, shot or other hard substance by means of a slingshot, bean shooter, shot shooter, air rifle, popgun, bow or other similar contrivance; provided, that archery shooting may be engaged in on such grounds as may be set aside and approved therefor by the city manager, and designated as archery ranges. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). Nothing in this section shall in any manner limit or interfere with fishing in Lake Brandt, Lake Higgins or Lake Townsend or prohibit the firing of air rifles in established galleries.

(Code 1961, § 13-15; Res. No. 048-24, § 1, 2-20-24)

State law reference—Authority to restrict discharge of pellet guns, G.S. § 160A-190.

Sec. 18-23. Police emergency lines.

(a) The chief of police or other police officer in charge at the scene shall have authority to provide barricades, ropes, signs, or other means of restraint at the scene of any parade, fire, accident, disturbance, crime scene, natural or artificial disaster or emergency, or any large gathering of people.

(b) It shall be unlawful for any person other than a law enforcement officer, firefighter, or other person having official business at the scene, to cross a duly established police emergency line without express permission of a police officer at the scene. Pursuant to G.S. § 14-4 any person who violates this section shall be guilty of a class 3 misdemeanor and shall be fined not more than one hundred dollars ($100.00).

(Code 1961, § 13-14; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22)

Charter reference—Power to establish police emergency lines, § 4.32.

Sec. 18-24. Concealed handguns prohibited.

(a) *Concealed carry of handguns prohibited at city buildings and athletic fields.* In accordance with N.C.G.S. § 14-415.11(c) and N.C.G.S. § 14-415.23, carrying a concealed handgun is prohibited in all city buildings and their appurtenant premises. Carrying a concealed handgun is also prohibited at city athletic fields and their appurtenant facilities during organized athletic events for which a person or organization scheduled the athletic field for use with the City of Greensboro Parks and Recreation Department. The term "during" shall be construed to mean the period of time in which such athletic field is used for the organized athletic event and a one-hour period before and after that athletic event. This prohibition shall apply to the following city athletic fields:

Ball Field at Allen Middle School

Basketball Court at Arlington Park

Ball Field at Barber Park

Disc Golf at Barber Park

Basketball Court at Benbow Park

Basketball Court at Bingham Park
Multi-purpose Court at British Woods Park
Multi-purpose Court at Brown Bark Park
Ball Fields at Carolyn Allen Park
Multi-purpose Court at College Park
Basketball Court at Cumberland Park
Basketball Court at Douglas Park
Ball Field at Folk Center Park
Basketball Court at Gillespie Park
Ball Fields at Glenwood Center Park
Multi-purpose Court at Greenhaven Park
Multi-purpose Court at Greentree Park
Tennis Court at Greenway Park
Basketball Court at Hampton Park
Ball Field at Hampton Park
Multi-purpose Court at Hannaford Park
Ball Field at Heath Park
Ball Field at Henry Street Park
Tennis Court at Hester Park
Ball Field at Hester Park
Multi-purpose Court at Hillsdale Park
Basketball Court at Hunter Hills Park

Ball Fields at Jaycee Park

Basketball Court at Jaycee Park

Ball Field at Joe Davis Park

Basketball Court at King's Forest Park

Basketball Court at Kirkwood Park

Tennis Courts at Lake Daniel Park

Ball Field at Latham Park

Ball Field at Leonard Center Park

Ball Field at Lewis Center Park

Ball Field at Luper Park

Ball Field at Market Street Park

Multi-purpose Court at Mayer Park

Ball Field at Mitchell Street Park

Ball Field at Nocho Park

Ball Field at Old Peck Park

Tennis Court at Peeler Center Park

Basketball Court at Peeler Center Park

Ball Field at Peeler Center Park

Multi-purpose Court at Random Woods Park

Ball Field at Revolution Park

Tennis Court at Shannon Hills Park

Ball Field at Shannon Hills Park

Basketball Court at Shannon Woods Park

Ball Field at Sheridan Park

Pickleball Courts at Smith Center Park

Multi-purpose Court at Southmont Park

Basketball Court at Spring Valley Park

Basketball Court at Steelman Park

Basketball Court at Sussman Street Park

Multi-purpose Court at Sussman Street Park

Ballfield at Warnersville Center Park

Basketball Court at Warnersville Center Park

Basketball Court at Windsor Center Park

Ball Field at Woodlea Acres Park

Tennis Court at Woodlea Acres Park

(b) *Concealed carry of handguns prohibited at athletic facilities.* Carrying a concealed handgun is also prohibited at any city facility used for athletic events, which shall include all gymnasiums and the following facilities:

The War Memorial Stadium Complex

Sprayground at Barber Park

Sprayground at Keeley Park

Interactive Fountain at LeBauer Park

Dudley High School Tennis Courts

Page High School Tennis Courts

Golf Course at Bryan Park Complex

Soccer Fields at Bryan Park Complex

Tennis Courts at Bryan Park Complex

Tennis Courts at Latham Tennis Center

Tennis Courts at Spencer Love Tennis Center

Gillespie Golf Course

(c) *Concealed carry of handguns prohibited at swimming pools.* Carrying a concealed handgun is also prohibited at city swimming pools, including any appurtenant facilities used for dressing, storage of personal items, or other uses relating to city swimming pools.

(d) *Punishment.* Pursuant to G.S. § 14-4 any person who violates this section shall be guilty of a class 3 misdemeanor and shall be fined not more than one hundred dollars ($100.00).

(e) *Secure storage of handguns in vehicles permitted.* The provisions of subsections (a), (b), (c) and (d) of this section shall not prohibit a person who is lawfully permitted to carry a concealed weapon, while bearing said permit in his or her possession, from securing and keeping a handgun in a locked vehicle within the trunk, glove box or other enclosed compartment or area within or on a motor vehicle.

(f) *Posting of signs required.* The city manager or his/her/their designee is hereby authorized and instructed to post conspicuous signage at appropriate locations on or within each building or portion of a building owned, leased, operated, occupied, managed or controlled by the city, as

well as the appurtenant premises to such buildings, indicating that carrying a concealed handgun is prohibited therein as provided by state law.

(g) *Location of signs.* Signs on buildings, facilities, pools and fields shall be visibly posted at or near the exterior of each entrance by which the general public can access the building. The city manager or his/her/their designee shall exercise reasonable discretion in determining the number and appropriate location of signs to be placed on or within appurtenant premises of such buildings, facilities, pools and fields.

(h) *Exemptions.* This prohibition shall not apply to the following persons:

(1) Officers and enlisted personnel of the armed forces of the United States when in discharge of their official duties as such and acting under orders requiring them to carry weapons;

(2) Civil officers of the United States while in the discharge of their official duties;

(3) Officers and soldiers of the militia and the National Guard when called into actual service;

(4) Officers of the state, or of any county, city or town, charged with the execution of the law of the state, when acting in the discharge of official duties; and

(5) Sworn law enforcement officers when off duty if such weapon is carried in compliance with regulations of their agency, as provided by state law.

(Ord. No. 95-134, § 1, 11-2-95; Ord. No. 12-18, § 1, 3-21-12; Ord. No. 14-8, § 1, 1-7-14; Ord. No. 18-125, § 1, 10-16-18; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22)

Sec. 18-25. Deadly weapons prohibited.

(a) *Definitions.* For purposes of this section, "deadly weapon" means any gun, rifle, pistol or other firearm of any kind, any explosive as defined in N.C.G.S. 14-284.1, any knife or dagger, any BB gun, air rifle, air pistol or any other weapon specified in N.C.G.S. 14-269, 14-269.2 or 14-288.8. This section shall not apply to an ordinary pocket knife carried in a closed position. As used in this section, "ordinary pocket knife" means a small knife, designed for carrying a pocket, which has its cutting edge and point fully enclosed by its handle and that may not be opened by a throwing, explosive or spring action.

(b) *Possession.* It shall be unlawful for a person to possess, on or about his/her/their person, either concealed or otherwise, any deadly weapon as defined above, while on the premises of any city-owned or operated building, including the appurtenant premises or in any city-owned park. This prohibition does not apply to such weapon which is otherwise lawfully stored within a motor vehicle.

(c) *Penalty.* Pursuant to G.S. § 14-4 any person who violates this section shall be guilty of a class 3 misdemeanor and shall be fined not more than one hundred dollars ($100.00).

(d) *Exemptions.* The provisions of this section shall not apply to the following persons:

(1) Personnel of the armed forces of the United States when in discharge of their official duties and acting under orders requiring them to carry weapons.

(2) Civil officers of the United States and other states, while in the discharge of their official duties;

(3) Officers and soldiers of the state militia and national guard when called into actual service and under orders requiring them to carry weapons;

(4) Licensed security guards and company police or other person specifically authorized by law to carry firearms on such premises while acting within the scope of their authority pursuant to their employment;

(5) A person who possesses such weapon only while recovering same from or delivering same to the evidence section of the Greensboro Police Department;

(6) A person engaged in a function or activity which is specifically authorized by the city as an approved educational or

recreational activity or by a city employee as necessary in performing particular duties of employment.

(Ord. No. 96-102, § 1, 8-20-96; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22)

Sec. 18-26. Security alarm systems—Definitions.

(a) *Alarm* means any electronic or mechanical device which emits any signal, whether electronic, audible, silent or recorded and which is designed, intended or used for the detection of an unauthorized intrusion or an attempted intrusion into a building, structure or premises or to signal an actual or attempted robbery. "Alarm" shall include any device which initiates a telephone call and delivers a recorded message to any emergency telephone number assigned to the police communications center of the City of Greensboro; any procedure by which a third party telephones any emergency telephone number and requests police service on the basis of having received an automatic alarm signal from a subscriber of such person or an alarm business represented by such person; or an audible signal or siren that when sounded is detected by a third party that results in a police response.

(b) *Subscriber* means any person, firm, corporation or partnership owning or leasing an alarm system, or on whose premises an alarm system is maintained for the protection of such premises or property.

(c) *False alarm* means any alarm signal communicated by any means that solicits police response and to which:

(1) The responding officer finds no evidence of unauthorized intrusion, attempted unauthorized intrusion, robbery, or attempted robbery; or

(2) Police response was canceled by the alarm subscriber or his/her/their agent. The cancellation of the alarm must take place prior to the officer's arrival to the scene of the reported alarm. The officer cannot be cancelled once he/she/they arrives on scene. If the alarm is determined to be false and the alarm subscriber or the alarm monitor cancellation arrives after the officer arrives, then the false alarm will be counted towards the twelve-month infraction period.

False alarms include negligently activated signals; signals which are the result of faulty or malfunctioning equipment; improperly installed or maintained equipment, signals activated to test the alarm system that have not been approved by the police department; and signals which are purposely activated to summon police personnel in nonemergency situations.

(Ord. No. 89-40, § 1, 3-6-89; Ord. No. 10-80, § 1, 6-15-10)

Sec. 18-27. Same—False alarms.

(a) *First alarm.* If, within any twelve-consecutive-month period, the police department responds to one (1) false alarm at the same premises or location, the chief of police or his/her/their designee, shall send a letter to the subscriber informing him/her/them of the false alarms and requesting that he/she/they initiate action to stop further false alarms and informing him/her/them of the consequences of continued false alarms, specifically the civil penalty fee. There will be no fee assessed for the first false alarm within a twelve-consecutive-month period.

(b) *Second false alarm.* Beginning with the second false alarm, a civil ticket shall be issued for each additional false alarm.

(c) *Alarm tests.* Alarms activated during alarm system testing procedures shall not be considered false alarms if the subscriber first notifies and receives permission from the police department to test the system.

(d) *Continuing audible alarms.* All audible alarms shall be equipped with an automatic reset device that will reset and cease to sound the alarm after thirty (30) minutes from the time officers arrive at the alarm location, due to failure of the alarm to reset shall constitute a violation of this section. The subscriber shall reimburse the city for each violation of a continuing alarm activation at a rate of ten dollars ($10.00) per violation.

(Ord. No. 89-40, § 1, 3-6-89; Ord. No. 10-80, § 1, 6-15-10; Ord. No. 14-082, § 1, 6-17-14; Ord. No. 20-163, § 3, 12-15-20)

Sec. 18-28. Same—Issuance of tickets and civil penalties.

Any city official authorized by the chief of police may issue to the known owner of or person having control of any place of business or residence a civil penalty citation giving notice of the violation of section 18-27 herein. Any such official shall be authorized to secure the name and address of the owner or person in control of the place of business or residence found to be in violation of exceeding the number of alarms allowed.

Citations so issued may be delivered in person or mailed by registered mail to the person charged if he/she/they cannot readily be found. Each citation issued shall impose upon the owner or person in charge a civil penalty of fifty dollars ($50.00) for the second fine; one hundred dollars ($100.00) for the third through fourth fine; two hundred fifty dollars ($250.00) for the fifth through ninth fine; and five hundred dollars ($500.00) for ten (10) or more fines within a twelve-month-continuous period, up to which shall be paid to the city tax collector within fourteen (14) days of receipt in full satisfaction of the assessed civil penalty. If the civil penalty is not paid within the time prescribed in the citation, the appropriate personnel of the city may initiate a civil action in the nature of debt to collect such civil penalty. (Ord. No. 89-40, § 1, 3-6-89; Ord. No. 10-80, § 1, 6-15-10; Ord. No. 14-082, § 2, 6-17-14; Ord. No. 20-163, § 3, 12-15-20)

Sec. 18-29. Ban on registered sex offenders from city parks and recreation facilities.

(a) *Prohibition.* No person registered with the State of North Carolina and any other state or federal agency as a registered sex offender, including, but not limited to the sex offender registry established pursuant to N.C.G.S. Ch. 14, Art. 27A, shall enter into or upon any public park or recreation facility owned, operated or maintained by the city.

(b) *Penalties.* Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). Each entry into a public park, regardless of the time period between such entries, shall constitute a separate offense under this article.

(c) *Definitions.* For purposes of this section, the following definitions shall apply:

Official meeting. A meeting that is required to be open to the public by the Open Meetings Law, N.C.G.S. Ch. 143, Art. 33C.

Public park. Any publicly owned, leased, operated or maintained property that is designated as a park by the city including any adjacent public parking area as well as the driveway, entrance way or pedestrian walkway used by the public to access the public park or recreation facility.

Recreation facility. Any publicly owned, leased, operated or maintained property that is designated as a recreation facility by the city including any adjacent public parking area as well as the driveway, entrance way or pedestrian walkway used by the public to access the recreation facility.

Registered sex offender. An individual who is registered by any state or federal agency as a sex offender and/or whose name is published or required to be published on any state or federal sex offender registry, including, but not limited to the North Carolina Sex Offender and Public Protection Registry established pursuant to N.C.G.A. Ch. 14, Art. 27A.

(d) *Signage required.* The city manager or his/her/their designee shall be charged with posting this regulation at the entrances to each public park and recreation facility within thirty (30) days of the passage of this article.

(e) *Limited exceptions.*

(1) *Official meetings.* A registered sex offender who has the right to be present at an official meeting shall have the limited privilege of entering on and into a park or recreation facility for such time as is necessary to attend said meeting or function, but any form of loitering or lingering shall be a violation of this section.

The privilege shall only extend to those parts of the park and/or recreation facil-

ity that are commonplace for meetings of that kind and any registered sex offender found outside of those parts shall be punished as outlined in this section 18-29.

(2) *Polling place.* When such recreation facility is used as a polling place for an election, the registered sex offender may enter for the facility for the limited purpose of voting if he/she/they qualifies to do so at that polling place.

(f) *Severability.* If any section, subsection, paragraph, sentence, clause, phrase or portion of this section is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed severable and such holding shall not affect the validity of the remaining portions hereof.
(Ord. No. 08-248, 9-16-08; Res. No. 048-24, § 1, 2-20-24)

Secs. 18-30—18-40. Reserved.

ARTICLE III. OFFENSES AGAINST PUBLIC PEACE AND ORDER*

Sec. 18-41. Reserved.

Editor's note—Ord. No. 07-253, §§ 1, adopted Nov. 5, 2007, repealed § 18-41, which pertained to unnecessary noises, and derived from Code 1961, § 13-12; Ord. No. 91-91, § 3, adopted July 15, 1991; Ord. No. 92-55, § 1, adopted April 22, 1992; Ord. No. 93-52, § 1, adopted June 3, 1993; Ord. No. 96-79, § 1, adopted July 2, 1996; Ord. No. 97-59, §§ 1, 2, adopted May 6, 1997.

Sec. 18-41.1. Reserved.

Editor's note—Ord. No. 07-253, §§ 1, adopted Nov. 5, 2007, repealed § 18-41.1, which pertained to responsibility for noise violations, and derived from Ord. No. 97-59, §§ 1, 2, adopted May 6, 1997; Ord. No. 04-176, § 1, adopted Sept. 7, 2004.

Sec. 18-42. Disturbing athletic contest.

It shall be unlawful for any person to go upon the playing area of any athletic field or court upon which an athletic contest is in progress, except the officials of the contest and persons authorized by said officials. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).
(Code 1961, § 13-5; Res. No. 048-24, § 1, 2-20-24)

Sec. 18-43. Indecent behavior in public places.

It shall be unlawful for any person to commit the act of sexual intercourse in any public park, or playground owned, leased, or operated by the city, or on any sidewalk, or on any public street or on any street or roadway in any public park or playground owned or operated by the city. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). In this section "public street" includes any street or way that has been dedicated as such, regardless of whether or not it is actually used as a public street.
(Code 1961, § 13-8; Res. No. 048-24, § 1, 2-20-24)

Sec. 18-44. Blocking or impeding street or highway, public sidewalk, and public passageway access.

(a) Purpose and intent. The city has the general authority and control over all public streets, sidewalks, and other ways of public passage within its corporate limits, except those ways of public passage that are owned or maintained by the State of North Carolina. The city has the duty to keep such streets, sidewalks, and other ways of public passage open for travel and free from unnecessary obstructions. G.S. 160A-296. This ordinance prohibits actions that block or impede the safe passage of pedestrians and vehicles on public sidewalks and streets.

(b) Definitions. The following words, terms, and phrases when used in this section shall have the meanings set forth in this subsection, unless the context of their usage clearly indicates another meaning:

(1) *Block* means any person, object, objects preventing at least thirty-six (36) linear and contiguous inches of clear access to freely pass through a public street or

*__State law references—__Disorderly conduct in public buildings, G.S. § 143-345.2; disturbing religious assembly by certain exhibitions, G.S. § 14-200.

highway, public sidewalk, public passageway, or entrance or exit to a building.

(2) *Impede* means to render the use of a public street or highway, public sidewalk, public passageway, or entrance or exit to a building unreasonably difficult or dangerous, including the following actions:

i. Weaving or darting through, around, and in between multiple occupied vehicles, whether the vehicle is stopped or in travel, for a purpose other than passage to a sidewalk. This (i) subsection is meant to prohibit walking through a street parallel to the sidewalk but not meant to prohibit crossing lanes of a street to reach occupied vehicles when a stop light is red;

ii. Placing or throwing a tangible thing on or inside an occupied vehicle that is on the street, except if an occupant requests that the acting individual deliver the tangible thing to an occupant or consents to such exchange;

iii. Standing, sitting, or lying down on the portion of a traffic island that is less than six (6) feet wide, except where using the traffic island to cross the street or during an emergency; or

iv. Sitting or lying down upon a public street or highway, public sidewalk, public passageway, or entrance or exit to a building, or sitting or lying down upon a blanket, chair, stool or any other object placed upon a public street or highway, public sidewalk, public passageway, or entrance or exit to a building between the hours of 7:00 a.m. to 9:00 p.m. Monday through Thursday and between the hours of 7:00 a.m. to 12:00 a.m. Friday and Saturday.

(3) *Sidewalk* means the part of a public street improved for pedestrian traffic.

(4) *Street* means the entire width between property lines of every way or place of whatever nature, when any part thereof is open to the use of the public as a matter of right for the purpose of vehicular traffic. The terms "street" and "highway" are synonymous.

(5) *Traffic island.* A raised portion of the street in between lanes of traffic intended to separate lines of traffic or guide traffic, not to hold people or provide pedestrian refuge. A traffic island may be commonly called a median. For the purpose of this section, a traffic island is any raised part of the street meant to separate lanes of traffic that is less than six (6) feet in width. Width is measured as the length of the traffic in the direction of pedestrian travel if the pedestrian is traveling perpendicular to the street.

(6) *Vehicle* means every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, excepting devices moved by human power or used exclusively upon fixed rails or tracks; provided, that for the purposes, of this chapter bicycles shall be deemed vehicles.

(c) It shall be unlawful for an individual to block or impede the use of a public street or highway, public sidewalk, public passageway, or entrance or exit to a building.

(d) If an object or objects shall block the sidewalk or public passageway, a law enforcement officer or his designee shall promptly dispose of the object(s) where practicable.

(e) It shall be unlawful for an individual to block or impede the entrance or exit to a building served by a public sidewalk, street or highway unless otherwise granted permission by the owner or tenant. Permission granted by the owner may be evidenced by verbal or written confirmation of permission from the owner or tenant.

(f) It shall be unlawful to sleep on public street or highway, public sidewalk, public passageway, or entrance or exit to a building.

(g) It shall be unlawful to camp on any public street or highway, public sidewalk, public passageway, or entrance or exit to a building. For the purposes of this section, "to camp" is defined as "any place where bedding, sleeping bags, or other material used for bedding purposes, or any stove or fire is placed for the purpose of maintaining a temporary place to live."

(h) Nothing in this subsection shall be interpreted to prohibit the exchanging of objects into and out of vehicles where the vehicle is stopped or parked according to traffic laws and no blocking or impeding of a street or sidewalk occurs. Where an individual is engaged in lawful activity on the sidewalk and such activity evokes a response by a third party that is in violation of this section or any other ordinance or state law, the individual engaged in lawful activity shall not be in violation of this section.

(i) This section shall not apply to actions taken by first responders; or to actions taken in response to an emergency or to prevent an accident.

(j) This section shall not apply to persons or entities granted a permit by the city for purposes, including, but not limited to, under chapter 26 of this Code.

(k) This section shall not apply to acts to the extent they are allowed by, and done in conformity with, a permit issued by a governmental person.

(l) This section shall not apply to impeding a public street or highway, public sidewalk, public passageway or the entrance or exit of an adjoining building due to a medical emergency.

(m) No action punishable under G.S. § 20-174.1 shall be punishable under this section. This section shall only apply to public streets or highways, public sidewalks, public passageways, and the adjoining entrances or exits to a building within the city's corporate limits for which authority and control is not vested in the North Carolina Board of Transportation.

(n) Pursuant to G.S. § [14-4] any violation of this section shall be a class 3 misdemeanor punishable by a fine of up to fifty dollars ($50.00). (Ord. No. 18-102, § 2, 8-14-18; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22; Ord. of 10-3-22(1); Ord. No. 24-168, § 1, 12-3-24)

Editor's note—Ord. No. 18-102, § 2, adopted August 14, 2018, amended § 18-44 in its entirety to read as herein set out. Former § 18-44, pertained to loitering. See Code Comparative Table for complete derivation.

State law reference—Standing, sitting or lying upon streets or highways, G.S. 20-174.1. Pursuant to state statute, standing, sitting, or laying down upon streets or highways is unlawful.

Sec. 18-45. Urinating or defecating in public.

(a) It shall be unlawful for any person to urinate or defecate on any public place, sidewalk, street, alleyway or right-of-way, or in any public building except in designated water closets or toilet facilities, or on any private property. Having the written permission of the owner or person in lawful possession shall constitute an affirmative defense to the charge or urinating or defecating on private property.

(b) Penalty. Pursuant to G.S. § 14-4, a violation of this section shall be a class 3 misdemeanor punishable by a fine of up to fifty dollars ($50.00). (Ord. No. 10-172, 11-16-10; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22)

Sec. 18-46. Reserved.

Editor's note—Ord. No. 18-102, § 3, adopted August 14, 2018, repealed the former § 18-46, and enacted new §§ 18-46.1, 18-46.2. The former § 18-46 pertained to loitering for the purpose of engaging in drug-related activity. See Code Comparative Table for complete derivation.

Sec. 18-46.1. Solicitation and distribution of items in public parking garages and public parking lots prohibited.

(a) *Solicitation permitted.* Solicitation, where not otherwise prohibited herein or by State law, is allowed in the public spaces of Greensboro.

(b) *Purpose and intent.* It is the purpose of this section to provide for the health, safety and welfare of the residents of the city through the proper management of the city's municipally

owned parking garages and parking lots. The city is authorized to operate a parking enterprise to furnish parking services to the city and its citizens.

(1) The city council finds that municipal owned or operated parking garages and parking lots are not traditional public forums for First Amendment purposes and that the city may regulate conduct and use of the parking garages and parking lots through adequate and reasonable rules. The statutory authority is found in G.S. §§ 160A-174 and 160A-312.

(2) The city finds it necessary to restrict certain activities, including solicitation and distribution within public parking garages and parking lots because of the increased potential for accidents in parking garages and parking lots, limited space for individuals walking to vehicles and engaging in transactions associated with solicitation and distribution, and due to the potential for individuals accessing their cars to feel a heightened level of intimidation when approached by a solicitor or distributor.

(c) *Definitions.* The following words, terms, and phrases when used in this section shall have the meanings set forth in this subsection, unless the context of their usage clearly indicates another meaning:

(1) *Public Parking Garage and Parking Lot* means lots, garages, or portions of lots or garages, owned or operated by the City of Greensboro which have the sole purpose of providing vehicular parking. On-street parking, including diagonal on-street parking, is not considered a garages or lot. The word "deck" has the same meaning as the word "garage."

(2) *Enter or entry.* For the purpose of this section, entry into a parking garage or parking lot shall mean entry onto the paved parking portion where it's the sole intended purpose is the parking of vehicles.

(d) *Offense.* It shall be unlawful to:

(1) Enter a public parking garage or parking lot for the purpose of soliciting for or distributing within the parking garage or parking lot any of the following: Money, contributions, signatures, leaflets, or pamphlets for any purpose or use; and

(2) Engage in the intended solicitation or distribution.

(e) *Exemption for sidewalks and landscaped areas through and adjacent to parking garages and parking lots.* The prohibition under this subsection does not restrict solicitation or distributions on public sidewalks or landscaped areas that run through or immediately adjacent to a public parking garage or lot where such sidewalk or landscaped area is a path for movement other than for the purpose of getting to and from a vehicle in the parking garage. However, any solicitation along such sidewalk or landscaped area shall be confined to the sidewalk or landscaped area, and no solicitor or distributor shall follow physically an individual off the sidewalk or landscaped area and through the publicly owned parking garage or parking lot where the individual has declined the solicitation or distribution.

(1) This subsection is further clarified below, through example, as it applies to the public parking lots located at Elm St. and McGee St. and Elm St. and Greene St. (referred to as the "Elm Street Lots"). This clarification applies in the same manner to all parking lots and parking garages with the same or similar features:

i. The Elm Street Lots are comprised of paved parking areas immediately adjacent to two (2) commercial buildings, surrounded by sidewalks providing access to the street (the "surrounding sidewalks"), and with one large sidewalk running directly through the middle of the paved parking areas such that parking is allowed on either side of that middle sidewalk (the "middle sidewalk"). Many pedestrians, including those parking a vehicle, use the middle

sidewalk. The prohibition in this subsection shall not apply to any individual using the middle sidewalk or the surrounding sidewalks, even where the individual is soliciting or distributing to a person who is standing on the paved portion of the Elm Street Lots. The prohibition in this subsection does apply if the individual soliciting or distributing leaves the surrounding sidewalk or middle sidewalk, enters into the paved parking area with the intent to continue soliciting or distributing, and either engages in the soliciting or distributing or continues to engage in the soliciting or distributing when the individual being engaged has declined the solicitation or distribution. This prohibition is intended to prevent persons who have declined the solicitation or distribution from being followed from the sidewalk to their vehicles or from being approached and engaged in the paved parking areas while accessing their vehicles.

(f) *Designation of public parking garage and parking lots.* Public parking garage and parking lots shall be designated by clearly posted signs. The city shall maintain and provide upon request a list of public parking garages and parking lots, currently titled "Traffic Schedule 9, Public Off-Street Parking Lots."

(g) *Other solicitation prohibited by state law.* This section shall not apply to any type of solicitation or distribution regulated, prohibited, or punishable under other applicable state law.

(h) *Exceptions.* This section shall not apply to any parking garage or parking lot adjacent to or used as the designed parking for a polling place during the time when city owned property is used by the Guilford County Board of Election as a polling place. This section also shall not apply when an event is taking place within the public parking garage or parking lot due to a permit granted by the city.

(i) *Penalty.* Pursuant to G.S. § 14-4, a violation of this section shall be a class 3 misdemeanor punishable by a fine of up to fifty dollars ($50.00). (Ord. No. 18-102, § 3, 8-14-18; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22)

Sec. 18-46.2. Harassment in public spaces prohibited.

(a) *Purpose and intent.*

(1) The city is enabled, pursuant to G.S. § 160A-174, to protect the health, safety and welfare of its citizens and to ensure the peace and dignity of the city. It is the intent of council in enacting this ordinance to recognize the rights of all citizens while at the same time protecting the coexistent rights for all citizens to enjoy safe and convenient travel in public spaces free from harassment. In the course of public hearings and debates regarding solicitation and safety in public spaces in Greensboro, the city recognizes that the dangerous effects of harassment may occur in the commission of or completely separate from an act of solicitation, where such conduct occurs in public spaces and includes following a person or cornering a person for the purpose of intimidating that person.

(2) The current state laws on stalking and harassment do not protect individuals who are harassed in public spaces where such harassment is confined to a single occasion but is also dangerous or intimidating. Such harassment causes intimidation and fear and may result in an interaction with dangerous or violent consequences. Free and safe passage on city sidewalks and streets is necessary. Therefore, the following ordinance intends to address harassment on sidewalks and streets by penalizing the following conduct.

(b) *Definitions.* The following definitions apply in this section:

(1) *Public space* means streets, sidewalks, alleys, and other public property, as well as city-owned and city-controlled property.

(2) *Reasonable person* means a reasonable person in the same or similar circumstances.

(c) *Offense.* A person is guilty of harassment in a public space if the person:

(1) Knowingly and intentionally performs either of the following with no legitimate purpose:

i. Following an individual in or about a public space with the intent of threatening, intimidating, or causing fear for personal safety; or

ii. Surrounding an individual or intentionally and physically directing the individual's movement through or in a public space with the intent of threatening, intimidating, or causing fear for personal safety. This subsection includes crowding or cornering an individual with the intent of threatening, intimidating, or causing fear for personal safety and without that individual's consent as the individual is actively engaging or attempting to use an automated teller machine or parking meter and the individual must stand within the public space to access the automated teller machine or parking meter;

(2) The conduct described in subsection (c)(1)(i) or (ii) is directed at an individual in the individual's presence; and

(3) The person continues the conduct described in subsection (c)(1)(i) or (ii) after the individual to whom the conduct is directed has made a negative verbal response or taken action that a reasonable person would understand as a negative response.

(d) *Penalty.* Pursuant to G.S. § 14-4, a violation of this section shall be a class 3 misdemeanor punishable by a fine of up to fifty dollars ($50.00). (Ord. No. 18-102, § 4, 8-14-18; Ord. No. 22-123, 6-21-22; Ord. No. 22-151, 7-19-22)

Sec. 18-47. Sale of drug stem intended for illegal drug use.

(a) The sale of drug stems intended for illegal use is deemed and declared to constitute a detriment, danger and hazard to the health, safety, morals and general welfare of the inhabitants of the city and is declared to be a civil violation subject to civil penalty.

(b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Controlled substance means any substance controlled by the North Carolina Controlled Substances Act as set forth in G.S. 90-86 et seq.

Drug stem means objects that facilitate the ingestion and/or inhalation of crack cocaine, crank methamphetamine or any other controlled substance as defined by the North Carolina Controlled Substances Act. A "drug stem" is further defined as a two- to six-inch-long tube, one-eighth-inch to three-quarter-inch in diameter and that is made of glass, metal or ceramic or any other material. Drug stems include, but are not limited to, glass vials or tubes which may contain novelty items of insignificant value or may contain items that are not, in the normal course of business, packaged in such a manner.

Sell and *sale* mean the commercial transfer of ownership, possession or use of a drug stem in the regular course of wholesale or retail business for consideration of any type.

(c) *Determination.* In determining whether an object is a drug stem, the following factors, in addition to all other relevant evidence, may be considered:

(1) Statements by any person, owner, or by anyone in control of the object concerning its use.

(2) Prior convictions, if any, of any person, owner, or of anyone in control of the object, for violation of the federal or state controlled substances acts.

(3) The proximity of the drug stem, in time and space, to a controlled substance.

(4) The existence of any residue of a controlled substance on the drug stem.

(5) The proximity of the drug stem to other drug paraphernalia as defined by the North Carolina Drug Paraphernalia Act as set forth in G.S. 90-113.20 et seq.

(6) Instructions, oral or written, provided with the drug stem concerning its use.

(7) Descriptive materials accompanying the drug stem explaining or depicting its use.

(8) Advertising concerning its use.

(9) The manner in which the drug stem is displayed for sale.

(10) The existence and scope of legitimate uses of the drug stem in the community.

(11) Expert testimony concerning whether the drug stem is primarily used for introducing a controlled substance into the human body.

(12) The intent of the owner or other person in control of the drug stem to deliver it to persons whom he/she/they knows or reasonably should know intends to use the object to facilitate a violation of the North Carolina Controlled Substances Act.

(13) Direct or circumstantial evidence of the ratio of sales of the object to the total sales of the business enterprise.

(d) *Sale of drug stem.* It is a violation of this section for any person or retail establishment to sell, or to possess with intent to sell, a drug stem knowing that it will be used to ingest, inhale or otherwise introduce into the human body a controlled substance.

(e) *Defense.* It is a defense to a violation of this section that the drug stem is primarily designed and used for a legitimate purpose unrelated to the ingestion of a controlled substance into the human body.

(f) *Enforcement.* The enforcement to this section is vested in the Greensboro Police Department.

(g) *Penalty; additional remedies.* The penalty and remedies for violation of this section shall be as follows:

(1) *Civil penalty; injunctive relief.* Any person who violates any subsection of this section shall be subject to a civil penalty of one hundred dollars ($100.00) for each violation or injunctive relief to restrain the person from continuing the violation or threat of violation, or both injunctive relief and a civil penalty. Upon application for injunctive relief and a finding that a person is violating or threatening to violate any subsection of this section, the superior court shall grant injunctive relief to restrain the violation. Failure to pay the civil penalty or file an appeal within thirty (30) days after notification of the violation shall result in an additional penalty of one hundred dollars ($100.00). The city shall establish procedures for the collection of the civil penalties and may enforce the penalties by a civil action in the nature of a debt.

Civil penalties assessed under this section are considered restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. As such, the amount declared herein is presumed to provide sufficient restoration to the city for its costs.

The assessment of civil penalties herein is not intended to be an exercise of powers delegated to other agencies or entities created by the General Assembly to regulate the proscribed conduct.

(2) *Continuing violations.* Each day of violation of any subsection of this section shall constitute a separate offense.

(3) *Forfeiture of drug stem.* Any item sold or possessed with the intent to sell by any person, after a court has adjudicated such an item to constitute drug paraphernalia as defined by this section, shall be subject to forfeiture of the drug stem to the city upon order of the court entered in any injunction proceedings instituted under the authority of this section or in a separate forfeiture action instituted by the city.

(4) *Responsible parties.* The owner or occupant of any land, building, structure, sign, use of land, or part thereof, and any contractor, employee, agent, or other person who participates or acts in concert, assists, directs, creates, or maintains any condition that is in violation of this section may be held responsible for the violation and subject to the civil penalties and remedies provided herein.

(g) *Nonjudicial administrative hearing.* The City of Greensboro shall establish an administration process to review objections to citations or penalties issued or assessed. A notice requesting a hearing to review objections shall be filed within thirty (30) days after notification of the violation. The individual desiring a hearing must post a bond equal to the amount of the civil penalty at the time of the request for a hearing. The determination of the hearing officer will be final. The decision of the hearing officer shall be hand delivered or mailed to the violator. Whenever the decision of the hearing officer upholds the civil penalty violation, the violator shall pay the civil penalty of one hundred dollars ($100.00) within thirty (30) days after the final determination as indicated by the date on the determina-

tion. The hearing officer's decision is subject to review in the superior court of the county by proceedings in the nature of certiorari.
(Ord. No. 05-79, § 1, 4-19-05; Ord. No. 20-163, § 3, 12-15-20)

ARTICLE IV. OFFENSES OF UNREASONABLE OR DISTURBING SOUND

Sec. 18-48. Intent.

The provisions hereinafter contained are enacted for the purpose of preventing noise disturbances or unreasonably loud noise and are enacted pursuant to the authority granted in G.S. § 160A-184. Above certain levels or durations and during specific times of day unreasonably loud noise, or noise disturbance, is detrimental to health, safety and welfare of the citizenry and the individual's right to peaceful and quite enjoyment. It is the policy of the city to prohibit noise disturbances or unreasonably loud noise from all sources, subject to its police power, in order to secure and promote the public health, comfort, convenience, safety, welfare, and prosperity of the citizens of Greensboro. Nothing in this article is intended to deter individuals from lawfully exercising the individual right of freedom of speech and commerce, or any other freedom guaranteed under the Constitutions of the United States of America or of the State of North Carolina, and nothing in this article is intended to unreasonably limit or restrain commercial or industrial enterprise.
(Ord. No. 12-31, § 1, 4-16-12)

Editor's note—Ord. No. 12-31, § 1, adopted April 16, 2012, amended § 18-48 in its entirety to read as set out herein. Former § 18-48 pertained to preamble and derived from Ord. No. 07-253, § 3, adopted Nov. 5, 2007.

Sec. 18-49. Unlawful noises and sounds.

Except as set out in section 18-53 and otherwise notwithstanding any other provision of this article, it shall be unlawful for any person or persons to make, permit, continue, cause to be made, or to create any unreasonably loud or disturbing noise in the city which does annoy, disturb, injure, or endanger the comfort, repose, health, peace or safety of persons or causes damage to property or business. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).

For purposes of this section, the following definitions shall apply:

(a) *Unreasonably loud.* Noise which is substantially incompatible with the time and location where created or heard to the extent that it brings about an actual or imminent interference with peace, rest, or good order.

To determine whether a noise is unreasonably loud, the following factors incident to such noise are to be considered: Time of day; proximity to residential structures; whether the noise is recurrent, intermittent or constant; the volume and intensity; whether the noise has been enhanced in volume or range by any type of mechanical means; and the nature and zoning of the area.

(b) *Disturbing.* Noise which is perceived by a person of ordinary sensibilities as interrupting the normal peace and calm of an area.

(c) *Downtown business district*. That district of the city as defined in section 26-232.
(Ord. No. 07-253, § 3, 11-5-07; Res. No. 048-24, § 1, 2-20-24)

Sec. 18-50. Unlawful noise producing activities.

Notwithstanding any other provision of this article the following acts and activities are declared to be unreasonably loud and disturbing in violation of section 18-48, but this enumeration shall not be deemed to be exclusive.

(a) *Blowing horns.* Sounding any horn, whistle or signal device on any automobile, motorcycle, bus or other vehicle or railroad train, except as a danger signal or as required by law, creating any unreasonably loud or disturbing sound or sounding such device for an unreasonable period of time.

(b) *Radios, record players, etc.* Playing any radio, television set, record player, or

musical instrument as to annoy or disturb the quiet, comfort or repose of any person of normal sensibilities in any dwelling, motel, hotel, apartment, or any type of residence.

(c) *Sound-producing equipment in vehicles.* Playing any radio, tape recorder, cassette player, compact disc, or other similar device for reproducing sound located on, or in, any motor vehicle on a public street, highway, or within, the motor vehicular area of any public or private parking lot or park, or drive through, if the sound generated is audible at a distance of thirty (30) feet from sound producing equipment.

(d) *Pets.* Keeping any animal or bird, which, by causing frequent or long continued noise, disturbs the comfort and repose of any person in the vicinity.

(e) *Use of vehicles.* Using any automobile, motorcycle, or vehicle so out of repair, altered, maintained, or operated in such manner as to create unreasonably loud or disturbing noise including, but not limited to, engaging in jackrabbit starts, spinning tires, racing engines, or other such operation.

(f) *Blowing whistles.* Blowing any steam whistle attached to any stationary boiler except as a warning of danger.

(g) *Compressed air devices.* Using any mechanical device operated by compressed air unless the noise created thereby is effectively muffled and reduced.

(h) *Building operations.* Erection, demolition, alteration, or repair of any building (including excavation and grading), in a residential district between the hours of 6:00 p.m. and 7:00 a.m. of any day or in any district other than a residential district between the hours of 10:00 p.m. and 7:00 a.m. of any day.

(i) *Noises near schools, etc.* Creating noise on any street, or public way, or near any school, institution of learning, library, or sanitarium, or court while the same is in session, or adjacent to any hospital, rest home, nursing home, or any real property owned by a religious institution during services, or which otherwise interferes with the working of such institution.

(j) *Bells or gongs.* Sounding any bell or gong which disturbs the quiet or repose of persons in the vicinity.

(k) *Blowers, engines.* Operation of any noise-creating blower, power fan, steam engine, or any internal combustion engine, the operation of which causes noise due to the explosion or expansion of operating gases or fluids, unless the noise emitted there from is sufficiently muffled and the engine is equipped with a muffler device in good working condition and designed to manufacturer's specifications and sufficient to deaden such noise, which causes annoyance to the public or disturbs the rest and quiet of persons on adjacent premises or within the vicinity.

(l) *Appliances and other mechanical devices.* The operation of any noise-producing appliance or other mechanical device which, due to operational deficiencies, malfunction or other type of disrepair, causes noises which unreasonably annoy the public or disturb the rest and quiet of persons on adjacent premises or within the vicinity.

(m) *Vehicular loudspeakers or amplifiers for commercial purposes.* The use of mechanical loudspeakers or amplifiers on, or in, automobiles, trucks, airplanes or other vehicles for advertising or other commercial purposes.

(n) *Street vendors.* Street vendors cannot use sound or permit the sounding of any device which produces noise or operate any loudspeaker, public address system, radio, sound amplifier or similar device to attract the attention of the public.

(o) The operation on public property or on public vehicular areas of any sound amplifier which is part of, or connected to, any radio, stereo receiver, compact disc player,

cassette tape player, or other similar device when operated in such a manner as to be plainly audible at a distance of thirty (30) feet from the building, structure, or vehicle in which it is located, except when such operation is a part of a protest or rally permitted under chapter 26, article IX.

(p) The operation on public property of any sound amplifier which is part of, or connected to, any microphone, radio, stereo receiver, compact disc player, cassette tape player, or other similar device when operated in such a manner as to be plainly audible at a distance of thirty (30) feet from the amplifier, except when such operation is a part of a protest or rally permitted under chapter 26, article IX.

(Ord. No. 07-253, § 3, 11-5-07; Ord. of 10-3-22(2))

Sec. 18-50.1. Same—Outside sound-producing activities.

(a) Except as otherwise permitted under this article, it shall be unlawful between the hours of 11:00 p.m. and 7:00 a.m. of the following day for any person, business or entity to play, operate, use or cause to be played, operated or used, any sound amplification device, amplified musical instrument or sound reproduction device which creates or reproduces audible sound outside any building or structure.

(b) The prohibition in this section shall not include the use of a television set at commercial eating establishments with a principal use designation as a restaurant or brewpub by the City of Greensboro Land Development Ordinance between the hours of 11:00 p.m. and 2:00 a.m. of the following day, and which is being operated using only audio speakers within the chassis of said television which are components included as part of the original manufacture of the television; provided, that the volume of said television does not exceed 70 dB(C). Measurements of sound emanating from any television set will be taken from a place or position which is as close to the source of the sound as the measuring officer can reasonably stand or reach.

(c) The prohibition in this section shall not include the use of a music system with exterior speakers at commercial eating establishments with a principal use designation as a restaurant or brewpub by the land development ordinance between the hours of 11:00 p.m. and 2:00 a.m. of the following day; provided, that the volume of said music system does not exceed 70 dB(C). Measurements of sound emanating from any music system will be taken from a place or position which is as close to the source of the sound as the measuring officer can reasonable stand or reach.

(d) The prohibition in this section shall not include the use of an audio communications system at facilities with drive-through service windows.

(e) The prohibition in this section shall not include the use of a music system with exterior speakers or outside televisions at principal uses other than those designated as commercial eating or drinking establishments by the City of Greensboro Land Development Ordinance, which includes as examples, but is not limited to, convenience stores, truck stops, service stations (fuel), or automobile sales or service businesses. The outdoor sound permitted under this section will not be plainly audible beyond the property line of the business using the music system.

(f) The prohibition in this section shall not take effect at 11:00 p.m. on:

(1) New Year's Eve (December 31), and will instead commence at 2:00 a.m. on New Year's Day (January 1);

(2) Saint Patrick's Day (March 17), and will instead commence at 2:00 a.m. on March 18;

(3) Independence Day (July 4), and will instead commence at 2:00 a.m. on July 5;

(4) Halloween (October 31), and will instead commence at 2:00 a.m. on November 1;

(5) The Friday, Saturday and Sunday immediately preceding Memorial Day (final Monday of May); or

(6) The Friday, Saturday and Sunday immediately preceding Labor Day (first Monday of September).

(; Ord. No. 13-119, § 2, 9-17-13)

Editor's note—Ord. No. 13-119, § 1, adopted Sept. 17, 2013, changed the title of § 18-50.1 from "Same—Commercial establishments with outside sound-producing activities" to "Same—Outside sound-producing activities". This historic notation has been preserved for reference purposes.

Sec. 18-51. Sounds impacting residential life.

It is unlawful for anyone within the city limits to cause, or allow, the emission of sound from any source or sources which impact dwellings and other residential property. A noise disturbance shall be presumed to exist where the sound or noise caused by any activity exceeds the maximum lawful decibel limits specified in the residential decibel limits table herein at a property boundary of the structure within the zoning districts shown below which is used, wholly or in part, as a residential dwelling. To the extent the decibel limits in this section may conflict with any other section of this article, the decibel limits in this section shall supersede such other limits.

Residential Decibel Limits Table

Zoning Districts	*Daytime (7:00 a.m. to 11:00 p.m.)*	*Nighttime (11:00 p.m. to 7:00 a.m.)*
All Residential, TN	70 dB(C)	65 dB(C)
Mixed Use, PUD	85 dB(C)	75 dB(C)

(Ord. No. 07-253, § 3, 11-5-07; Ord. No. 12-31, § 3, 4-16-12; Ord. No. 13-105, § 2, 7-16-13; Ord. No. 13-119, § 2, 9-17-13)

Sec. 18-52. Measurement of sound.

(a) *Measurement of sound.* For the purpose of determining dB(C) as referred to in this Code, the noise shall be measured on the C-weighting scale on a sound level meter of standard design and quality having characteristics established by the American National Standards Institute (ANSI).

(b) *Measurement techniques.* Measurement of sound shall be made according to these standards:

(1) Sound measurements shall be conducted at that time of day or night when the suspect noise source is emitting sound.

(2) The sound level measurement shall be determined as follows:

a. Set the sound level meter on the "C" weighted filter at slow response.

b. Where possible the measurement should be made with clear view to the source of the sound.

c. All measurements shall be taken at or within the nearest residential property line occupied by the complainant, unless otherwise stated in the Code. For multifamily structures, including apartments, condominiums, or other residential arrangements where boundary lines cannot readily be determined or do not exist, measurements shall be taken from any point abutting the exterior of the complainant's residential unit.

(3) Measurements recorded shall be taken so as to provide a proper representative of the noise being measured. The microphone shall be positioned facing the noise source and so as not to create any unnatural enhancement or diminution of the measured noise. A windscreen for the microphone shall be used. Using the C-weighting and slow response switch settings, the operator takes four (4) consecutive readings of thirty (30) seconds each. Any decibel reading which exceeds the allowed decibel limits is a violation of this article.

(c) *Training of personnel.* The operator of a sound level meter, but not persons assisting the operator with non-technical aspects of sound level measurement, must have received special training in sound measurement from an expert, or experts, in sound measurement and must have received training in the use of the sound

level meter used. The chief of police of the city shall prescribe minimum training standards for such operators.

(d) *[Enforcement.]* In the enforcement of this article, an enforcement officer may be required to exercise judgment in determining if a particular noise is sufficiently loud or otherwise so offensive that it would substantially interfere with persons occupying nearby public or private property. When making such determinations, the enforcement officer may consider the following and other relevant factors:

(1) The volume of the noise.

(2) The intensity of the noise.

(3) Whether the nature of the noise is usual or unusual.

(4) Whether the origin of the noise is natural or unnatural.

(5) The type and intensity of ambient noise, if any.

(6) The nature and zoning of the area in which the noise is heard.

(Ord. No. 07-253, § 3, 11-5-07; Ord. No. 12-31, § 4, 4-16-12; Ord. No. 13-105, § 3, 7-16-13)

Editor's note—Ord. No. 13-105, § 3, adopted July 16, 2013, changed the title of § 18-52 from "Measurement of sound" to "Measurement of sound and enforcement factors."

Sec. 18-53. Non-commercial free speech

Notwithstanding any other provisions of this article, in the exercise of noncommercial free speech loudspeakers, or amplifiers, may be used without permit, subject to the following conditions:

(a) It shall be unlawful for any person to speak into, or cause any sound to emanate from, a loudspeaker or amplifier within the corporate limits of the city, when such loudspeaker or amplifier is so adjusted that the voice or sound is amplified to the extent that it is audible at a distance in excess of one hundred fifty (150) feet from such loudspeaker or amplifier.

(b) No wires or other materials or connections for the transmission of power or for other purposes shall be placed on any street, sidewalk, public easement or way, or on the ground in any public park or public place. Any such wires, materials or connections shall be placed not less than seven (7) feet above the street, sidewalk or ground except at the point of connection to the loudspeaker or amplifier.

(Ord. No. 07-253, § 3, 11-5-07)

Sec. 18-54. Exceptions from the article.

In the interest of public safety and convenience the following are exempted from the application of this article:

(a) Emergency work made necessary to restore property to a safe condition; or required to protect persons or property from danger or potential danger; or work by private or public utilities when restoring utility service.

(b) Street construction activity performed by, or on behalf of, a government agency on public streets; provided that all equipment is operated in accordance with the manufacturer's specifications and is equipped with all legally required noise-reducing devices in proper operating condition. Blasting and pile driving on street projects are exempted under this exception only to the extent that they are carried on between the hours of 7:00 a.m. and 10:00 p.m., Monday through Saturday.

(c) Noises from activities of, or specifically authorized by, the State of North Carolina or the United States Government, or any of their agencies; or public or private educational institutions and schools. This provision shall not exempt collegiate fraternities or sororities from compliance with the provisions of this article.

(d) Non-amplified crowd noises resulting from religious activities and entertainment or sports activities organized and conducted by churches.

(e) Noises resulting from activities at public or commercial entertainment venues with

a seating capacity of seven thousand (7,000), or more, between the hours of 7:00 a.m. until 12:00 midnight.

(f) Emergency pressure relief valves; the operation of horns, sirens, or other emergency warning devices being used in emergency circumstances according to law.

(g) The bells, chimes, or calls to services of churches, synagogues, temples, mosques, or other religious structures.

(h) Organized fireworks displays carried on under the supervision of licensed experts with written authority from the Guilford County Board of Commissioners. Such displays shall be exempt only between the hours of 12:00 noon and 10:00 p.m., every day except the Fourth of July on which day they are exempt from 12:00 noon until 12:00 midnight.

(i) Noise from electrical generators or water pumps during time of or other electrical power outages.

(j) Noise from governmental vehicles providing public utility and sanitation services.

(k) Yard and garden maintenance equipment including, but not limited to, mowers, tillers, leaf blowers, edgers, and weed eaters from 7:00 a.m. until 10:00 p.m.

(l) Parades, festivals, or other events in the downtown business district for which a city permit is issued.

(m) Noise from authorized uses of public and private parks in the downtown business district.

(Ord. No. 07-253, § 3, 11-5-07; Ord. No. 09-159, 9-15-09)

Sec. 18-55. Enforcement responsibility for control of excessive noise.

(a) *Primary enforcement responsibility.* The chief of police of the city, or his/her/their departmental designee, shall have primary enforcement responsibility for noise and sound control pursuant to this Code.

(b) *Powers of arrest or citation.* Any police officer shall issue a citation for any violation under this article, except they may arrest for instances when:

(1) The alleged violator refuses to provide the officer with such person's, or owner's, name and address and any proof thereof as may be reasonably available to the alleged violator; or

(2) The alleged violator refuses to cease such illegal activity after being issued a citation; or

(3) Any person interfering with the enforcement activities of the officer.

(Ord. No. 07-253, § 3, 11-5-07; Ord. No. 20-163, § 3, 12-15-20)

Sec. 18-56. Noise enforcement officer.

The noise enforcement officer, acting as the chief's designee, shall have the following duties:

(a) Training;

(b) Equipment maintenance and development of a quality assurance plan;

(c) Public education and assistance;

(d) Advisory functions;

(e) Pre-testing;

(f) Coordinating with other city departments with reference to land use planning and noise environmental impact assessments;

(g) Coordination of enforcement with other law enforcement agencies;

(h) Monitoring noise complaints; and

(i) Other duties as assigned by the chief.

(Ord. No. 07-253, § 3, 11-5-07)

Sec. 18-57. Interference with enforcement officer.

It shall be unlawful to interfere with an authorized officer in the exercise of his, or her, duties including, but not limited to enforcement and taking sound level measurements. Pursuant

to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).
(Ord. No. 07-253, § 3, 11-5-07; Res. No. 048-24, § 1, 2-20-24)

Sec. 18-58. Penalties.

(a) *Warning.* The city shall issue a warning notice for the first violation of this article committed by any person.

(b) *Penalties.* Any person who commits more than one (1) violation of this article shall be subject to a two hundred dollar ($200.00) civil penalty for the second violation and three hundred fifty dollars ($350.00) for a third violation. Any person who commits more than three (3) violations of this article, or two (2) violations of this article within one (1) year's time, shall be subject to a five hundred dollar ($500.00) civil penalty. The city may also seek injunctive relief or abatement to enforce this article for any person who willfully commits three (3) or more violations of this article within a one-year period. The civil penalties provided in this article are remedies enforceable by a civil action in the nature of a debt. Any person desiring to appeal a citation or penalty issued under this article may request a nonjudicial, administrative hearing with the chief of police, or his/her/their designee. The request for hearing must be filed within thirty (30) days after notification of the violation. The determination of the hearing officer is final, subject to review only in the Superior Court of Guilford County by proceedings in the nature of certiorari.

(c) *Violations constituting an imminent danger to the public health or safety.* Pursuant to G.S. § 160A-193, if any commercial establishment shall cause a violation of this article which causes an imminent danger to the public health or safety, the noise enforcement officer is authorized to order any commercial establishment with outside sound-producing activities to immediately cease all outside sound-producing activities. The noise enforcement officer is further authorized and empowered to order and direct the closure of any commercial establishment which fails to comply with said order for a 24-hour period.
(Ord. No. 07-253, § 3, 11-5-07; Ord. No. 12-31, § 5, 4-16-12; Ord. No. 20-163, § 3, 12-15-20; Res. No. 048-24, § 1, 2-20-24)

Sec. 18-58.1. Owner and occupant responsibility for noise violations.

(a) Pursuant to G.S. § 14-4, any person responsible for causing a violation of this article on or at any commercial establishment shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00) and shall be liable for any civil remedy which may be imposed by this article. Pursuant to G.S. § 14-4, any person in charge of, and physically present, at any commercial establishment shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00) and liable for any civil remedy which may be imposed by this article. It is no defense to either civil or criminal liability of the person in charge of a commercial establishment that a violation of this article was caused by a tenant, guest, invitee, permittee or licensee.

(b) The owner of any commercial establishment causing a violation of this article who is not present at the time the violation occurred shall be liable only for such civil remedy which may be imposed by this article which shall include any order issued by the noise enforcement officer to cease all outside sound-producing activities, or cease operation of the commercial establishment for a 24-hour period.

(c) Pursuant to G.S. § 14-4, the owner of any commercial establishment causing a violations of this article within a 24-hour period of time shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00) and liable for any civil remedy which may be imposed by this article, without regard to whether the owner of the commercial establishment was physically present at the commercial establishment when the violation occurred, provided that the owner had received prior notice of each preceding violation.
(Ord. No. 07-253, § 3, 11-5-07; Ord. No. 12-31, § 6, 4-16-12; Res. No. 048-24, § 1, 2-20-24)

Sec. 18-59. Reserved.

ARTICLE V. RESERVED*

*__Editor's note—__Ord. No. 13-106, § 1, adopted July 3, 2013, repealed Art. V in its entirety and enacted a new Art. V to read as set out herein. Section 3 of such ordinance states, "That this article shall remain effective for sixty (60) days upon adoption." Therefore, article V has been deleted. Former Art. V, §§ 18-60—18-66 pertained to youth protection.

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Chapter 19

PARKS AND RECREATION*

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*__Charter reference—__Power to establish, regulate, etc., recreational facilities, § 6.41.
__State law reference—__Recreation programs, G.S. § 160A-350 et seq.

ARTICLE I. IN GENERAL

Sec. 19-1. Park rules and regulations.

The city manager shall establish rules and regulations for the operation of municipal public parks and recreation areas. Upon approval by the council, it shall be unlawful for any person to violate any rule or regulation established by the city manager. A copy of the rules and regulations shall be filed with the city clerk.
(Code 1961, § 13-13.1)

Sec. 19-2. Parks, botanical gardens and greenway operations.

(a) This section is applicable for all parks in the central business district (CB), parkland adjacent to designated greenways, regional parks, and botanical gardens. This section shall supersede all other ordinances in conflict with the provisions of this section.

(b) The city manager may delegate the implementation and enforcement of any or all provisions of this section to the applicable park operator.

(c) Alcoholic beverages.

(1) It is prohibited for any person to possess, consume, or to display publicly any beer, wine, liquor or ale or any other alcoholic beverages at any park, botanical garden, or other departmental facility, except within certain designated areas of the park or garden, as designated by the city manager or designee.

(2) It is prohibited for any person under the influence of intoxicating beverages to enter or remain in any park or botanical garden or on any greenway.

(3) In order to sell or dispense beer, wine, liquor, or ale within a park or botanical garden, the person or entity must obtain any permits or licenses required by the North Carolina Alcoholic Beverage Control Commission (ABC) or other local, state, or federal agencies.

(4) Beer, wine, liquor, or ale sold or dispensed from permitted vendors shall be in the original manufacturer's container or in such other containers approved by either the city manager or designee or the North Carolina Alcoholic Beverage Commission.

(5) Beer, wine, liquor, or ale purchased off-site may not be brought into the park or botanical garden without the prior written approval of the city manager or designee.

(d) Mobile food vendors. Mobile food vendors shall be subject to all requirements of division 2 of article VIII of chapter 26 of the Code of Ordinances, except as provided herein:

(1) Mobile food vendors may only park and operate in designated areas of the park or botanical garden or in designated areas on streets adjacent to the park, garden, or greenway.

(2) Mobile food vendors may not park or operate within fifty (50) feet of the main entrance of a restaurant during the restaurant's business hours, unless the restaurant gives written permission to the vendor.

(3) Mobile food vendors may not park within five (5) feet of driveways, sidewalks, utility boxes, handicap ramps, building entrances or exits, or emergency call boxes.

(4) Mobile food vendors may not park within ten (10) feet of any fire hydrant or fire escape.

(5) Mobile food vendors may not operate between the hours of 3:00 a.m. and 7:00 a.m.

(6) In addition to obtaining a mobile food vendor permit from the city, mobile food vendors shall obtain an operating permit from the park operator or the director of the department of parks and recreation, as applicable.

(7) The city manager or designee shall determine the selection process for awarding operating permits, the duration of the permit, and the fees that may be

charged or revenue sharing agreements. Any revenue derived from the issuance of operating permits shall be deposited in an appropriate fund and used to off-set operating and maintenance costs of the park, botanical garden, or greenway.

(Ord. No. 016-75, § 1, 6-21-16)

Sec. 19-3. Safety equipment at city skate parks and pump tracks.

(a) No person shall ride or use a skateboard, inline skates, or freestyle bicycle at any skate park facility or pump track facility owned or operated by the city unless that person is wearing a helmet, elbow pads and knee pads.

(b) Violations of this section shall be deemed an infraction pursuant to G.S. § 14-4 punishable by a fine of up to twenty-five dollars ($25.00).

(c) Any person violating this section may be prohibited from further use of the facility.

(Ord. No. 17-6, § 1, 1-17-17)

Secs. 19-4—19-15. Reserved.

ARTICLE II. PARKS AND RECREATION COMMISSION*

Sec. 19-16. Created.

There is hereby created a commission to be known as the Greensboro Parks and Recreation Commission.

(Code 1961, § 2-138)

Charter reference—General authority to create boards, commissions, etc., § 4.01(b)(2).

Sec. 19-17. Membership.

The parks and recreation commission shall be composed of nine (9) members who shall be appointed by the council for terms to expire as of August 15.

(Code 1961, § 2-139)

*__Cross reference—__Boards and commissions generally, § 2-136 et seq.

Sec. 19-18. Duties.

The duties of the parks and recreation commission shall be as follows:

(1) To formulate a park and recreation program for the city.

(2) To serve the city in an advisory capacity in the formulation of park and recreation budget and policy.

(3) To adopt rules and regulations for the operation of the World War I Memorial Stadium on Bagley Street, subject to the approval of the council.

(Code 1961, § 2-138)

Secs. 19-19—19-35. Reserved.

ARTICLE III. REGULATION OF TREES ON PUBLIC LANDS†

Sec. 19-36. Definitions.

[For the purpose of this article, the following words, terms and phrases shall have the meanings respectively ascribed to them, unless the context clearly indicates otherwise:]

Canopy tree is herein defined as a species of tree which normally grows to a mature height of forty (40) feet or more with a minimum mature crown width of thirty (30) feet.

Emergency tree removal is herein defined as an event to alleviate an imminent hazard to the health, safety, and welfare of the city and its citizens.

Park trees are herein defined as trees, shrubs, bushes and all other woody vegetation in public parks, dedicated floodplain and open space, all areas owned by the city, and all areas to which the public has free access as a park.

†__Editor's note—__Ord. No. 90-143, §§ 1 and 2, adopted Nov. 19, 1990, repealed former provisions contained in Art. III to read as herein set out in §§ 19-36—19-45.3. Prior to inclusion of said ordinance, Art. III, §§ 19-36—19-39 pertained to the Youth Planning Board and derived from the Code of 1961, §§ 2-65—2-67, 2-77.

Street trees are herein defined as trees, shrubs, bushes and all other woody vegetation on land lying between property lines on either side of all streets, avenues, or ways within the city.

Topping is defined as the severe cutting back of limbs to stubs larger than three (3) inches in diameter within the tree's crown to such a degree as to remove the normal canopy and disfigure the tree.
(Ord. No. 90-143, § 2, 11-19-90; Ord. No. 95-55, § 1, 5-15-95)

Sec. 19-37. Staff responsibilities.

(a) It shall be the policy of the city through designated staff to maintain and protect existing trees on city property, rights-of-way, and easements.

(b) It shall be the responsibility of the director of the parks and recreation department, or his/her/their designee, to study, investigate, counsel, develop and update annually a written plan for the care, preservation, pruning, planting, replacing, removal or disposition of trees and shrubs in parks, along streets and in other public areas.

(c) Such plan will be presented annually to the parks and recreation commission, and upon its acceptance and approval shall constitute the official comprehensive city tree plan for the City of Greensboro.

(d) The director, or his/her/their designee, when requested by the city manager, shall consider, investigate, make findings, report and recommend upon any special matter coming within the scope of this work.
(Ord. No. 90-143, § 2, 11-19-90; Ord. No. 95-55, § 2, 5-15-95; Ord. No. 20-163, § 3, 12-15-20)

Sec. 19-38. Street tree standards.

The parks and recreation director shall maintain the official street tree plan which incorporates the street tree species permitted, classes of size, spacing requirements and distance to be planted from curbs, curblines and sidewalks. Prior to the planting of street trees, each person must apply and obtain a written permit from the parks and recreation director, or his/her/their designee. All plantings shall be in accordance with the official street tree plan which is on file in the office of the director of parks and recreation and which is incorporated herein and made a part hereof.
(Ord. No. 90-143, § 2, 11-19-90; Ord. No. 20-163, § 3, 12-15-20)

Sec. 19-39. Distance from street corners.

No street tree shall be planted contrary to the provisions of section 16-88 of the Greensboro Code of Ordinances which regulates sight distance at intersections.
(Ord. No. 90-143, § 2, 11-19-90)

Sec. 19-40. Utilities.

No street trees or park trees other than those species listed in the official street plan shall be planted under or within twenty (20) lateral feet of any overhead utility wire, or over or within ten (10) lateral feet of any underground water line, sewer line, transmission line or other utility; provided, this section shall be not applicable to the Central Business District of Greensboro.
(Ord. No. 90-143, § 2, 11-19-90)

Sec. 19-41. Public tree care.

(a) The city shall have the right to plant, prune, maintain and remove trees, plants and shrubs within the squares and public grounds and the public rights-of-way of all streets as may be necessary to ensure public safety or to preserve or enhance the symmetry and beauty of such public grounds.

(b) The parks and recreation director, or his/her/their designee, may remove or cause or order to be removed, any tree or part which by reason of its nature is injurious to sewers, electric power lines, gas lines, water lines, or other public improvements, or is infected with any injurious fungus, insect or other pest.

(c) This section does not prohibit the planting of street trees by adjacent property owners provided that the selection and location of said trees is in accordance with the official street tree

plan and an application filed in accordance with section 26-24 of the Greensboro Code of Ordinances.

(d) The city or any public or private utility company with which the city has a maintenance agreement shall utilize the Shigo method of pruning which is currently the most widely accepted method of pruning. The city may recommend other pruning techniques based upon specific needs and/or the development of improved methods.
(Ord. No. 90-143, § 2, 11-19-90; Ord. No. 95-55, § 3, 5-15-95; Ord. No. 20-163, § 3, 12-15-20)

Sec. 19-41.1. Policy on tree removal.

(a) At least thirty (30) days in advance of removal, the city shall notify owners of property located within one hundred (100) feet of any tree to be removed from city-owned property. For purposes of this section, city-owned property includes street rights-of-way and medians, but excludes city-owned utility easements, side and tail ditches, drainageways and open space routinely maintained by city staff or by any public or private utility company with which the city has a maintenance agreement. Also curb cuts and/or new street construction or widening being installed as part of private development are excluded. Notification shall include:

(1) A description of the extent of proposed tree removal;

(2) The location of affected city property or right-of-way, including a map; and

(3) The appeal process.

(b) For city construction projects that require approval by the city council, tree removal notification will be included in the construction project notice and city council hearing notice that is sent to property owners.

(c) In the event of emergency tree removal, the need for notification prior to tree removal shall be waived. Determination of emergencies shall be made by designated staff within each city department in consultation with staff of the parks and recreation department, if appropriate.

(d) The city shall encourage the replanting of canopy trees on city property. When a tree is removed from city property, an appropriate tree shall be planted in general proximity to the tree removed, if reasonably possible. All replacement trees shall be a minimum of two (2) inches caliper at time of planting.
(Ord. No. 95-55, § 4, 5-15-95)

Sec. 19-41.2. Appeal process.

(a) The parks and recreation commission shall appoint a subcommittee consisting of citizens, members of the parks and recreation commission and appropriate city staff, including, but not limited to, parks and recreation staff, engineering staff, private citizens, arborists, and landscape architects. It shall be the responsibility of the subcommittee to acquire appropriate information in reference to the tree removal and provide an explanatory response to the appellant.

(b) Any person directly affected by any proposed tree removal may appeal by filing notice within ten (10) days from the date of the notification.

(c) Appeals must be submitted to the director of parks and recreation and also, in the case of city construction projects, to the director of the department from which the notification was received.

(d) The subcommittee shall hear the appeal at their monthly meeting and respond in writing within five (5) days following a decision.

(e) A citizen may appeal the action of the subcommittee to the parks and recreation commission who shall act to resolve this issue as currently defined in section 19-45.3 of this article.

(f) A citizen may consult with professionals including, but not limited to, horticultural specialists, arborists, or landscape architects, to assist in presenting their case regarding the appeal (e.g., that a tree is not diseased.)

(g) A citizen may appeal the decision of the parks and recreation commission to the city council by filing notice with the city clerk within ten (10) days from the date of notification. The decision of the city council shall be final.
(Ord. No. 95-55, § 4, 5-15-95)

Sec. 19-42. Tree topping.

It shall be unlawful for any person, firm or city department to top any street tree or park tree without specific authorization from the director of parks and recreation, or his/her/their designee. Such authorization may be granted for trees severely damaged by storms or other causes or certain trees under utility wires or other obstructions where other pruning practices are impractical.
(Ord. No. 90-143, § 2, 11-19-90; Ord. No. 20-163, § 3, 12-15-20)

Sec. 19-43. Pruning, corner clearance.

(a) Every owner of any tree overhanging any street or right-of-way within the city shall prune the branches so that such branches shall not obstruct the light from any street lamp or obstruct the view of any street intersection and so that there shall be a clear space of eight (8) feet above the surface of the street or sidewalk.

(b) Said owners shall remove all dead, diseased or dangerous trees, and all broken or decayed limbs which constitute a menace to the safety of the public.

(c) The city shall have the right to prune any tree or shrub on private property when it interferes with the proper spread of light along the street from a street light or interferes with visibility of any traffic control device or sign.
(Ord. No. 90-143, § 2, 11-19-90)

Sec. 19-44. Dead or diseased tree removal on private property.

(a) The city shall have the right to cause the removal of any dead or diseased trees on private property within the city when such trees harbor injurious fungus, insect or other pest which constitutes a potential threat and damage to other trees within the city.

(b) The director of parks and recreation, or his/her/their designee, will notify in writing the owners of such trees. Removal shall be done by said owners at their own expense within sixty (60) days after the date of service of notice.

(c) In the event of failure of owners to comply with such provisions, the city shall have the authority to remove such trees and charge the cost of removal against the owners.
(Ord. No. 90-143, § 2, 11-19-90; Ord. No. 20-163, § 3, 12-15-20)

Sec. 19-45. Removal of stumps.

All stumps of street trees and park trees shall be ground down or otherwise partially or entirely removed so that the top of the stump shall not project above the surface of the ground.
(Ord. No. 90-143, § 2, 11-19-90)

Sec. 19-45.1. Interference with city tree policy.

It shall be unlawful for any person to prevent, delay or interfere with the parks and recreation department, or any of its agents, while they are engaged in and about the planting, cultivating, mulching, pruning, spraying, or removing of any street trees, park trees, or trees on private grounds, as authorized in this article.
(Ord. No. 90-143, § 2, 11-19-90)

Sec. 19-45.2. Arborists license and bond.

It shall be unlawful for any person or firm to engage in the business or occupation of pruning, treating, or removing street or park trees within the city without first applying for and procuring a license and bond pursuant to sections 13-86 and 13-4 of the Greensboro Code of Ordinances.
(Ord. No. 90-143, § 2, 11-19-90)

Sec. 19-45.3. Review by parks and recreation commission.

The parks and recreation commission shall have the right to review the conduct, acts and decisions of the parks and recreation director, or his/her/their designee. Any person may appeal from any ruling or order of the parks and recreation director, or his/her/their designee, to the parks and recreation commission, which may hear the matter and make final decision.
(Ord. No. 90-143, § 2, 11-19-90; Ord. No. 20-163, § 3, 12-15-20)

ARTICLE IV. RESERVED*

Sec. 19-46—19-49. Reserved.

*__Editor's note—__Ord. No. 22-242, § 1, adopted November 15, 2022, repealed article IV, §§ 19-46—19-49, which pertained to the Greensboro Bryan Park Golf Commission and derived from Ord. No. 89-154, adopted November 30, 1989; Ord. No. 99-158, adopted September 21, 1999; Ord. No. 04-09, adopted January 6, 2004 and Ord. No. 20-163, adopted December 15, 2020.

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Chapter 20

RESERVED*

*__Editor's note—__Ord. No. 18-103, adopted August 14, 2018, repealed Ch. 20, which pertained to peddlers, solicitors, panhandlers, itinerant merchants, etc. and derived from Ord. 18-101, § 2, 7-24-18.

[The next page is 1411]

Chapter 21

PERSONNEL*

*Charter reference—Personnel, § 4.91 et seq.
Cross reference—Officers and employees, § 2-51 et seq.
State law reference—Personnel generally, G.S. § 160A-162 et seq.

Sec. 21-1. Purpose.

It is the purpose of this chapter to establish a centralized personnel system under the city manager by which all matters relating to personnel shall be administered. It is the intent of the council to establish an equitable and uniform system of personnel administration, to place municipal employment on a merit basis to the end that the best qualified persons available shall constitute the city service.
(Code 1961, § 14-1)

Sec. 21-2. Personnel officer.

The city manager shall be the chief personnel officer and shall appoint and may suspend and remove all city employees, and heads of departments, except for the city attorney, who shall be appointed by and serve at the pleasure of city council. The city manager may in his/her/their discretion employ consultants of any kind when needed. The manager shall report to the city council every appointment and removal of a department head at the next council meeting following the appointment or removal.
(Code 1961, § 14-2; Ord. No. 11-146, § 1, 7-19-11; Ord. No. 20-163, § 3, 12-15-20)

Sec. 21-3. Duties of city manager.

(a) The city manager shall be responsible for all phases of personnel administration not specifically reserved for the council, and shall perform all duties essential to effective personnel administration.

(b) The manager shall administer all personnel programs which may be activated, such as classification and compensation plans, retirement systems, testing and training programs, grievance procedures, and service rating systems; and he/she/they shall establish and make available for review by the council and inspection by city employees and the public, such personnel rules, plans, and procedures necessary or desirable to implement the provisions of this chapter and carry out the intent of the council.
(Code 1961, § 14-3; Ord. No. 20-163, § 3, 12-15-20)

Sec. 21-4. Classified service.

The classified service shall include all regular full-time employees of the city except officers elected by the council or by the people, or appointed by the governor of the state and such other employees as may be designated by the city manager; provided, however, that all employees of the city other than those elected by the people shall be subject to the provisions of this chapter and any rules which may be established under its authority.
(Code 1961, § 14-4)

Sec. 21-5. Qualifications for appointment.

(a) Appointments to positions within the city service shall be made on the basis of merit and fitness, and in accordance with the provisions of this chapter and any rules which may be established under its authority.

(b) The city manager may prescribe reasonable general and minimum qualification standards for all positions within the city service as well as specific occupationally-related qualifications for any class of positions, and may use any such requirements as the basis for rejecting or refusing to examine an applicant.

(c) The city manager shall prescribe the form of application and the information to be contained thereon, and may utilize such valid tests, examinations and investigations as he/she/they deems necessary to determine the fitness of an applicant for a particular position.

(d) Non-discrimination policy. The policy of the city is to foster, maintain, and promote equal employment opportunity. The city shall select employees on the basis of an applicant's suitability for the job and award them, with respect to compensation and opportunity for training and advancement, including upgrading and promotion, without regard to sex, race, gender, color, ethnicity, national origin, age, familial status, marital status, military status, political affiliation, religion, physical or mental disability, genetic information, sexual orientation, gender expression or gender identity except where certain physical and mental requirements are bonafide occupational qualifications.

(e) Implementation of policy. All personnel responsible for recruiting and employment will continue to review regularly the implementation of this personnel policy and relevant practices to assure that equal employment opportunity based on reasonable job-related job requirements is being actively observed to the end that no employee or applicant for employment shall suffer discrimination because of sex, race, gender, color, ethnicity, national origin, age, familial status, marital status, military status, political affiliation, religion, physical or mental disability, genetic information, sexual orientation, or gender identity.
(Code 1961, § 14-5; Ord. No. 15-012, § 1, 1-6-15; Ord. No. 20-163, § 3, 12-15-20)

Sec. 21-6. Probationary period.

All original and promotional appointments shall be probationary and for such a period as may be prescribed by the city manager.
(Code 1961, § 14-6)

Sec. 21-7. Bonds required of certain officers.

(a) The city treasurer, the city clerk and deputy treasurer, the city collections manager, the city accounting manager and the assistant city accounting manager shall be required to execute in favor of the city proper bonds with good and sufficient sureties in the amount of one hundred thousand dollars ($100,000.00) each, conditioned upon the faithful performance of the duties and a true accounting of all funds of the city which may come into their hands, custody or control. A new bond shall be furnished annually and a certificate of renewal of the existing bond shall not be considered a new bond. The responsibility for securing the execution of said bonds shall devolve upon the city manager and the city manager shall be custodian of the bonds.

(b) A blanket honesty position bond in the amount of twenty-five thousand dollars ($25,000.00) shall be obtained covering all officers and employees of the city, except those covered in subsection (a). Such bond shall be conditioned upon the true accounting of all funds of the city which may come into the hands, custody, or control of such officers or employees. The bonds may be obtained on a three-year basis, in which event an excess public employees' honesty blanket bond in the amount of twenty-five thousand dollars ($25,000.00) shall be obtained. The city clerk shall be responsible for securing the bond hereby required and shall see that the bond is continually kept in force and effect.

(c) The form of all bonds herein required shall be approved by the city attorney. Any corporate surety company licensed and authorized to do business in the state shall be acceptable as surety on any and all such bonds. The premium on all bonds required of city officers and employees by this section shall be paid by the city.
(Code 1961, § 14-7; Ord. No. 00-221, § 1, 12-5-00)

Sec. 21-8. Political activity.

(a) No officer, agent, or employee of the city shall:

(1) Become a candidate for nomination, election, or appointment to political office for a position in the City of Greensboro or Guilford County.

(2) While on duty or in the workplace: use her, or his, official authority or influence for the purpose of interfering with or affecting the result of an election or nomination for political office; coerce, solicit, or compel contributions for political or partisan purposes by another employee; or actively campaign for a candidate or for a partisan issue.

(3) Be required as a duty or condition of employment, promotion, or tenure of office to contribute funds for political or partisan purposes.

(4) Use city funds, supplies, equipment, official uniforms, the city logo or seal for partisan or political purposes.

(b) Nothing in subsection (a) shall be construed to prevent any employee from becoming or continuing to be a member or officer of a political party, or while off duty from attendance at a political meeting, or from enjoying the freedom from all interference in casting her, or his, vote.
(Ord. No. 93-109, § 1, 9-2-93; Ord. No. 18-141, § 1, 11-20-18)

Sec. 21-9. Auxiliary fire and police service.

The city manager is authorized to appoint, organize, recruit, train, and equip auxiliary police officers and auxiliary firefighters for the city.
(Code 1961, § 14-9; Ord. No. 20-163, § 3, 12-15-20)

Charter reference—Auxiliary firefighters and police officers, § 4.35.

Sec. 21-10. Classification plan.

The city manager shall establish, administer, and maintain a current plan of classification of all positions in the classified service, and shall allocate and reallocate positions to classes on the basis of kind and level of duties and responsibilities.
(Code 1961, § 14-10)

Sec. 21-11. Compensation plan.

(a) The city manager shall establish, administer, and maintain a current plan of compensation for all positions in the classified service, and shall assign and reassign positions and classes of positions to the pay grades created by the compensation plan.

(b) Salaries or compensation of city officers and employees are hereby fixed in amounts with the positions and pay grades established in the compensation plan or as the same may be amended. The annual budget adopted by the council and amendments thereto, together with the appropriations shall constitute the approval and control by the council of salaries or compensation.
(Code 1961, § 14-11)

Chapter 22

RESERVED*

*Editor's note—Ord. No. 91-145, adopted Nov. 27, 1991, repealed Chapter 22 in its entirety, which pertained to planning and development. See the Code Comparative Table.

[The next page is 1525]

Chapter 23

RAILROADS*

*Cross references—Licenses, taxation and miscellaneous business regulations, Ch. 13; streets and sidewalks, Ch. 26.
State law reference—General authority of city relative to railroad crossings, G.S. § 160A-298.

Sec. 23-1. Signals at crossings; malfunctions.

(a) The public works department of the city shall be responsible for official traffic-control signs, traffic signals and pavement markings and cross bucks at grade level railroad crossings pursuant to the direction of the city council.

(b) All railroad companies shall afford protection to the public by maintaining official gates and flashing devices installed at all grade level crossings used by them within the city limits. If the traffic-control devices are temporarily out of order the railroad company shall within a reasonable time after malfunction, or immediately upon notification of malfunction, have the crossing protected by a flagman who shall give ample warning to persons using the street or highway of the approach of a train until such time as the train has passed the crossing; provided however, that during hours of darkness, a flare or lighted signal shall be maintained at the crossing during the entire passage of the train. These precautions shall continue until the signal system is properly restored to service.

Sec. 23-2. Consent of council to lay tracks; track specifications.

No railroad company or private person shall construct any track or tracks, side track or side tracks or switches in the public right-of-way without petitioning and obtaining the consent of city council. All such railroad companies and private persons shall submit plans for the location of any line or lines of railway in the public right-of-way to the city for its approval before beginning any work. New railroad crossings at street grade and all privately owned industrial siding tracks which are new or are to be relocated shall be constructed of rubber or high density polyethylene or a material approved by the director of public works.

Sec. 23-3. Relocation of tracks; cost to be borne by company.

In case of change of location or grade of any street or public alley in the city, any railroad company having tracks or switches on, across or along such street or public alley shall relocate and share equally with the city the expense of relocating such tracks or switches as directed by the public works director. The cost of maintaining and repairing such areas after construction shall be borne by the railroad company.

Sec. 23-4. Tracks to be level with the street.

Railroad tracks in or crossing streets within the city shall be constructed and maintained by the owner, lessee or operator thereof in such a way that the top of the rail shall be on a level with the surface of the street and such track or rail shall not be raised or lowered without the consent of the public works director. Space within such track shall be constructed by the owner, lessee or operator of the same on a level with the tops of such tracks. If there be any change in a grade, the owner, lessee or operator thereof shall give thirty (30) days' notice to the city and all costs for material shall be borne by the owner, lessee or operator with the labor for asphalting for the street surface to be provided by the city. If, however, a prefabricated grade crossing is installed, the city will provide the material and the railroad will provide the labor. Where the prefabricated grade crossing has been requested by the city and installed by the railroad and is in need of repair, the railroad will do the repair and bill the city for the actual cost of materials only. Any work done under this section must be installed to meet the satisfaction of the city and is subject to inspection and acceptance by the city.

Sec. 23-5. Railroads to keep crossings in good repair.

Every railroad whose tracks cross any streets in the city shall fix and keep in good repair and condition such crossing in the space covered by its right-of-way in accordance with the directions of the public works director and the city council.

Sec. 23-6. Streets to be kept in good repair by company.

All railroad companies and all persons using any part of the streets shall keep in repair and good condition all paving and other permanent

improvements laid within, between and on each side (that is, over the entire width or parts of the streets which they have been, or will hereafter, be required to pave or improve) of any track or tracks belonging to or used by them on any and all streets in the city. Whenever any railroad company or person is ordered in writing by the city council, or its designee, to repair or put in proper condition any part of the paving or permanent improvements laid as aforementioned within, between or along any track, such repairs and the putting of the street in proper condition so as not to interfere with traffic or the use of the street shall be done by the companies or persons using the tracks within the time specified by giving written notice to the city council or its designee. The cost of maintaining and repairing such areas shall be borne by the railroad company or private owner.

Sec. 23-7. Roadbed and tracks to be kept in good repair.

All railroad companies shall so construct and keep in repair their roadbeds and tracks so as not to interfere with or render inconvenient travel or traffic over the streets and sidewalks where such roadbed or tracks are located.

Sec. 23-8. Drainage to be maintained.

Every railroad company whose tracks extend within the limits of this city shall keep the ditches or gutters on both sides of and between such tracks on its right-of-way clear of grass, weeds, trash, garbage and filth of every kind and so graded that the water will not stink or become stagnant in such ditches or along such tracks.

Sec. 23-9. Reserved.

Editor's note—Ord. No. 02-182, § 1, adopted Sept. 17, 2002, deleted former § 23-9 of the Code, which pertained to obstructing street crossing and derived unamended from the original Code.

Sec. 23-10. Duty to remove obstructions to traffic.

It shall be the duty of all persons, railroad or other companies to clear the streets and sidewalks of any material or obstruction placed upon them by any persons or companies or of any of their employees when the same interferes with or impedes the travel or traffic on any street.

Sec. 23-11. Crossings to be opened in case of fire or emergency.

It shall be the duty of all railroad companies and the engineers and employees of all railroad companies in the city when any engine, train or train of cars are across or on any street upon the approach of firefighting or other emergency vehicles to disconnect or remove such cars or train and to clear the street crossing immediately to allow the fire or other emergency vehicles to pass without any delay.

Secs. 23-12—23-17. Reserved

Editor's note—Ord. No. 22-124, adopted June 21, 2022, repealed §§ 23-12—23-17, which pertained to unauthorized persons prohibited from boarding trains while in motion; playing or loitering about railroad property prohibited; bicycle riding or walking on right-of-way restricted; damaging crossing gates; avoiding crossing gates or lights and leaving locomotives and cars within one hundred feet of grade crossing.

Sec. 23-18. Bulkheads at end of tracks.

Every railroad maintaining any tracks which ends at or near any street or alley in the city shall maintain a suitable and safe bumping block or bulkhead at the end of every such track.

Sec. 23-19. Signalized intersections.

(a) At each railroad grade crossing protected by crossing gates or flashing lights or both, and which, in the judgement of the city, are located in such close proximity to any intersection controlled by vehicular traffic signals so as to pose a safety hazard to vehicular traffic flow; the railroad shall, at no cost to the city, provide an appropriate actuated train detection circuit. Such circuit shall be activated at a time prior to the train's arrival at the crossing so as to provide adequate time for vehicular traffic to clear the crossing and remain activated until such time that the train has safely passed the grade crossing.

(b) The railroad shall not install or cause to be installed any signs, gates, flashing lights or other equipment which obstructs the visibility of motorists to vehicular traffic signals or other official traffic-control devices.

Chapter 24

RESERVED*

*Editor's note—Ord. No. 91-145, adopted Nov. 27, 1991, repealed Chapter 24 in its entirety, which pertained to soil erosion and sedimentation control. See the Code Comparative Table.

[The next page is 1643]

Chapter 25

SOLID WASTES*

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*__Editor's note—__Ord. No. 96-37, § 1, adopted Apr. 16, 1996, repealed Ch. 25 and enacted new provisions which pertained to the same subject matter, designated as §§ 25-1—25-22, herein set out. Prior to repeal, former Ch. 25 was derived from the 1961 Code, §§ 8-1—8-14, and subsequently amended (see the Code Comparative Table beginning on page 2809 for more complete derivation).

__Cross references—__Hazardous waste management, Ch. 10.5; nuisances, Ch. 17; storm water management, Ch. 27; water, sewers and waste disposal, § Ch. 29.

__State law references—__Authority to regulate, collect, etc., solid wastes, G.S. §§ 160A-192, 160A-303.1; solid waste management program, G.S. § 130A-290 et seq.

ARTICLE I. IN GENERAL

Sec. 25-1. Purpose.

The purpose of this chapter is to promote, protect, and preserve the health, safety and general welfare of the people of the City of Greensboro and to provide safe and sanitary disposal of municipal solid waste in such a manner as to protect human health, the environment and preserve our natural resources.
(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 07-120, § 1, 6-26-07; Ord. No. 08-186, § 1, 6-17-08)

Sec. 25-2. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed in this section, except where the context clearly indicates a different meaning:

Alcohol Beverage Commission (ABC) recycling container means the wheeled automated container owned by the city and provided for the collection of ABC recyclable materials (glass bottles, aluminum cans, plastic bottles) as in accordance with House Bill 1518.

Ashes means residue resulting from the burning of wood, coal, coke or other combustible material.

Attached unit means two (2) or more units sharing a common wall (excluding floor and ceiling) which each unit generates no more garbage per week than can be placed or stored in a maximum of two (2) automated containers totaling a combined capacity of no more than one hundred eighty (180) gallons when accumulated between collections.

Automated recycling container means the brown wheeled automated container owned by the city and provided for the collection of recyclable materials as defined in the city's "Recycle Greensboro" program.

Automated refuse container means the green wheeled refuse container owned by the city and provided for the collection of wet and dry garbage.

Building material means lumber, brick, stone, dirt, carpet, plumbing materials, plaster, concrete, floor coverings, roofing material, gutters and other materials or substances accumulated as a result of new construction, repairs, remodeling, or additions to existing structures or accessory structures or demolition of such.

Bulk trash means items too large to fit into an automated refuse container, such as large household furnishings, mattresses, box springs, dismantled swing sets (with concrete removed, clothesline poles (with concrete removed), lawn equipment (i.e. mowers, wheelbarrows), and similar large household items.

City means the City of Greensboro, North Carolina.

City manager means the person or persons designated by the city council to perform duties and responsibilities as chief executive officer for the City of Greensboro.

Collection means the act of removing solid waste from a point of generation to an approved disposal site.

Collection on private property means the act of removing solid waste from private developments for an additional fee from a point of generation to an approved disposal site. Collection shall be made at a mutually established location approved by the property manager and the solid waste manager or his/her/their designee for automated collection and rear packer collection.

Construction/demolition debris means solid waste generated solely from the construction, remodeling, repair, or demolition operations on pavement, and buildings or structures. C&D waste does not include municipal and industrial wastes that may be generated by the on-going operations at buildings or structures.

Construction/demolition debris landfill means a sanitary landfill that is limited to receiving construction/demolition debris as defined by 15A NCAC 13B.0532 (8) in North Carolina Solid Waste Management rules.

Curb line means the line or edging along a street bordered by the street that forms part of the gutter.

Environmental services director means the person or persons designated by the city manager

to perform duties and responsibilities as department head over the solid waste disposal division.

Foul odors mean offensive odors emanating from, but not limited to, solid waste.

Garbage (dry) means the accumulation of any nonrecyclable articles from households or businesses, such as discarded clothing, toys, small appliances, sweepings, rags, packaging materials, which is associated with the operation of stores or offices but not associated with the production, distribution, warehousing, construction, or manufacturing of a product.

Garbage (wet) means animal and vegetable refuse resulting from the handling, preparation, cooking and consumption of food, including a minimum amount of liquid necessarily incident thereto.

Hazardous waste: The following is an explanation of hazardous waste as published in the North Carolina Hazardous Waste Management Law adopted for the Federal Environmental Protection Agency (EPA). For the purposes of this chapter, the definition "hazardous waste" has been condensed. The terms defined are not inclusive of all items specified by the EPA regulations. Hazardous waste is defined as potentially dangerous byproducts of our highly industrialized society which cannot be handled, treated or disposed of without special precautions. It includes ignitable, corrosive, reactive and toxic waste such as acetone, gasoline and industrial alcohol, alkaline cleaners, acids, cyanide and chlorine, arsenic, pesticide wastes, paint, caustics, infected material, offal, fecal matter (human and animal), and explosives.

Industrial waste means all waste, including solids, semisolids, sludge and liquids created by factories, processing plants or other manufacturing enterprises.

Inert debris means solid waste that is composed of material that exhibits non-leaching characteristics such as uncontaminated soils, concrete, brick, concrete block, gravel and rock, and untreated and unpainted wood.

Infectious waste means a solid waste capable of producing an infectious disease. Examples of waste designated as infectious are: microbiological waste, pathological waste, blood products, improperly packaged sharps and all other waste as defined in the medical waste management regulation under 15A NCAC 13B.1200 in North Carolina Solid Waste Management rules.

Litter means any discarded man-made materials including, but not limited to, solid waste materials, industrial materials, household trash, business trash, building materials, scrap materials and hazardous waste as such terms are defined in this chapter and not properly containerized or prepared for collection and disposal.

Physical disability means a medical condition, verified by a registered physician, that makes an individual physically unable to bring the automated refuse/automated recycling container to the curbside for collection and where there is no one else residing in the household capable of taking the containers to the curbside.

Premises means lots, sidewalks, rights-of-way, grass strips or curbs up to the edge of the pavement of any public street.

Private street means a street not open to public use, on private property, and not maintained by any governmental agency.

Private property means all of that property as described and set out in an owner's deed including, but not limited to, yards, grounds, driveways, entrances or passageways, parking areas, storage areas, vacant land, bodies of water and including sidewalks, grass strips, one-half of alleys, curbs or rights-of-way up to the edge of the pavement of any public street.

Public street means the entire width between property lines, whatever nature, when any part thereof is dedicated or open to the use of the public as a matter of right for the purpose of vehicular or pedestrian traffic.

Public property means all that property except private property as herein defined, including but not limited to highways, streets, parks, recreation areas, sidewalks, grass strips, medians, curbs or rights-of-way up to the edge of the pavement of any public street or body of water.

Public right-of-way means land that is dedicated or otherwise legally established for public use.

Recyclables means items included in the city's "Recycle Greensboro" recycling program that includes but is not limited to selected glass, newsprint and accompanying inserts, magazines, aluminum, cardboard and other items determined to be recyclable by the solid waste manager.

Refuse means the accumulation of any solid waste.

Regulated medical waste means blood and body fluids in individual containers in volumes greater than twenty (20) ml, microbiological waste and pathological waste that has not been treated pursuant to 15A NCAC 13B.1207.

Sanitary landfill means a facility for the disposal of solid waste on land in a sanitary manner in accordance with the North Carolina Solid Waste Management Rules.

Single business unit means any single nonresidential unit that generates no more garbage per week than can be placed or stored in a maximum of two (2) automated containers totaling a combined capacity of no more than one hundred eighty (180) gallons when accumulated between collections, such as a dental office, medical office, insurance office or an other business in which the major activity is providing a service or is clerical in nature and does not in itself produce a product.

Single-family residential unit means any dwelling place occupied by one (1) family.

Solid waste means accumulations consisting of any combination of business trash, wet or dry garbage, household trash, bulk items, yard waste and recyclables.

Solid waste collection manager means the person or persons designated by the city manager to perform duties and responsibilities assigned by this chapter to the solid waste collection manager.

Solid waste disposal facility means any sanitary landfill, construction/demolition debris landfill, solid waste transfer station, materials recovery facility or any other facility operated for the processing and/or disposal of solid waste.

Solid waste disposal manager means the person or persons designated by the city manager to perform duties and responsibilities assigned by this chapter to the solid waste disposal manager.

Solid waste transfer station means a facility were solid waste is received for processing and transporting to a landfill, solid waste treatment facility or other solid waste disposal facility.

Stationary recycling container means any city approved container of a minimum capacity of six (6) cubic yards and having a maximum capacity of eight (8) cubic yards, made of watertight construction, and constructed so that the container can be emptied mechanically by means of a front loading recycling vehicle for the purpose of collection of recyclable material as defined in the city's "Recycle Greensboro" program.

Stationary packing unit means any city approved container of a minimum capacity of six (6) cubic yards and having a maximum capacity of eight (8) cubic yards, made of watertight construction, that contains a packing mechanism and an internal or external power unit, and constructed so that the container can be emptied mechanically by means of a front loading refuse vehicle for the purpose of collection of wet and dry garbage.

Stationary refuse container means any city approved container of a minimum capacity of six (6) cubic yards and having a maximum capacity of eight (8) cubic yards, made of watertight construction, and constructed so that the container can be emptied mechanically by means of a front loading refuse vehicle for the purpose of collection of wet and dry garbage.

Unit means one (1) single-family residence or an individual apartment, motel, mobile home, townhouse, patio house, condominium; cluster home unless otherwise specified by the city.

Wastes means all useless, unwanted, or discarded materials resulting from industrial, commercial, agricultural and residential activities.

Yard waste means grass, weeds, leaves, tree trimmings, plants, shrubbery prunings, and such other similar materials which are generated in the maintenance of yards and gardens, and which are collected separately from other solid waste materials, and placed at the curbside and taken to a compost facility for recycling.
(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 05-50, § 1, 3-1-05; Ord. No. 07-120, § 2, 6-26-07; Ord. No. 08-186, § 2, 6-17-08; Ord. No. 20-163, § 3, 12-15-20)

ARTICLE II. MUNICIPAL COLLECTION SERVICES

Sec. 25-3. Rules and regulations authorized.

The city manager may make such rules and regulations not inconsistent with this chapter as he/she/they deems advisable to safeguard the health and welfare of the citizens of the city in the disposal of garbage, ashes and other refuse.
(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 20-163, § 3, 12-15-20)

Charter reference—Rules authorized, § 6.81(b).

Sec. 25-4. Ownership of materials.

Wet and dry garbage, recyclable materials, yard waste, bulk trash, and large appliances which are properly placed by an owner or occupant of a property at curbside for collection, are deemed to be abandoned by such person(s) and become the property of the city or its authorized agent.
(Ord. No. 96-37, § 1, 4-16-96)

Sec. 25-5. Unauthorized collection prohibited.

(Reserved)

Sec. 25-6. Littering.

(a) It shall be unlawful to throw, place or deposit any refuse in any street, public place or on any private property within the city limits, except in city issued or approved containers as provided in this chapter, or as approved by the city manager or his/her/their designee.

(b) It shall be unlawful to place stumps or any other organic materials on any property, public or private, except in those specific areas designated for such use by the city manager or his/her/their designee.

(c) It shall be unlawful for any person to dump or deposit at any city owned or operated sanitary landfill, any hazardous refuse or liquids or any material that is banned from sanitary landfills as listed in section 25-16.

(d) No solid waste or any other waste or offensive or disease-producing material shall be dumped in any lot or space within the city limits for the purpose of filling, or for any other purpose, without the consent of the city manager or his/her/their designee and the approval of the county environmental health division.
(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 20-163, § 3, 12-15-20)

Sec. 25-7. Refuse to be promptly removed.

No refuse that has become decayed or that shall otherwise be a menace to health or cleanliness shall be allowed to remain in any dwelling house, hotel, boardinghouse, cafe, restaurant, lunch stand, fruit stand, meat market, store or other building or on any premises for longer than forty-eight (48) hours.
(Ord. No. 96-37, § 1, 4-16-96)

Sec. 25-8. Transportation of refuse by private persons.

It shall be unlawful to commercially collect, handle, haul or transport on any of the streets, public ways (alleys) or places of the city, any refuse without obtaining the necessary licenses to do work in the city.
(Ord. No. 96-37, § 1, 4-16-96)

Sec. 25-9. Refuse not collected by the city.

(a) Waste from the cleaning and dressing of any fish, flesh or fowl conducted by a commercial operation, such as fish markets, meat processing plants or other businesses of this nature will not be collected by the city.

(b) No building materials or refuse from building operations, construction materials or remodeling projects generated/performed by a professional contractor will be collected by city forces. The contractor is responsible for disposal.

(Solid waste forces will collect building materials from small remodeling projects done by the homeowner; up to (2) 32-gallon container capacity per project)

City forces will not collect yard waste and yard debris from large landscape projects performed by landscaping companies unless the yard waste meets solid waste code (sec. 25-13 (f) 1-2).

Large quantities of roofing material may be placed in the curb line for collection by the Greensboro Department of Transportation. Residents should contact the Greensboro Department of Transportation for collection.

(c) Animal or human excreta will not be collected by city forces.

(d) Neither infectious waste nor hazardous waste will be collected by city forces.

(e) Tires, lead acid batteries, paints and lubricants shall not be collected by city forces.

(f) Oxygen tanks and other medical equipment; propane tanks, all oil tanks used for household purposes; parts of campers, boats, camper shells, trailers; automotive parts, including but not limited to motors, doors, fenders, car seats or batteries from a residentially used premises, etc. shall not be collected by the city forces.

(g) City forces reserve the right not to service any authorized container that is contaminated and/or does not meet code requirements.
(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 00-222, § 1, 12-5-00)

Sec 25-10. Refuse from outside corporate limits.

No refuse, collected outside the corporate limits of the city, shall be disposed of at any city solid waste disposal facility, except as provided for in the solid waste disposal facility's permit to operate, issued by the North Carolina Department of Environment and Natural Resources.
(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 07-120, § 3, 6-26-07; Ord. No. 08-186, § 3, 6-17-08)

Sec. 25-11. Collection routes and schedules.

The solid waste manager shall establish collection routes and schedules and may alter these routes and schedules from time to time. The solid waste manager may establish and revise from time to time a policy relating to the number of times per week the city will collect solid wastes from various classifications of premises and the maximum number of solid waste containers that the city will service on any one (1) premises. No owner or occupant of any premises shall prohibit or prevent weekly solid waste collection services at the premises.
(Ord. No. 96-37, § 1, 4-16-96)

Sec. 25-12. Service for persons who are physically disabled.

Special collection services for the physically disabled shall be available as outlined under the solid waste management operating plan.
(Ord. No. 96-37, § 1, 4-16-96)

Sec. 25-13. Curbside collection service.

City-served curbside collection services will be provided under the following conditions:

(a) *Curbside collections scheduling.* City-served curbside collection services will be provided once a week on a day designated for collection by the solid waste manager or his/her/their designee. The day designated will be the same for all collection services offered by the solid waste management division. Solid waste shall not be placed at the curbside prior to the day preceding the scheduled collection day.

(a1) *Eligiblity for service under this section.* All single family residents and single business units shall be eligible for service under this section. Additionally, the owner or owners of attached units in the same

complex, are eligible to receive service under this section provided the following conditions are met:

(1) The units share a common wall only; and

(2) The units sharing the common wall have a driveway servicing only the attached units; and

(3) The units have sufficient service yard necessary to accommodate the city approved containers utilized to perform this service; and

(4) The unit generates no more garbage per week than can be placed or stored in a maximum of two (2) automated containers totaling a combined capacity of no more than one hundred eighty (180) gallons when accumulated between collections; and

(5) The unit is accessible over streets and bridges possessing a capacity and dimensions capable of bearing city vehicles performing the services described in this section as determined by the director of environmental service or his/her/their designee. The bearing capacity must be certified by a professional engineer and transmitted to the director of environmental service or his/her/their designee for determination.

(b) *Approved solid waste containers.* Eligible customers shall use only city-approved containers for all solid waste removal by the city. The following provisions shall be complied with:

(1) *Automated collection system.* Where the automated system is in use for the collection of wet and dry garbage and recyclables, the city approved automated containers shall have the capacity of approximately (90) gallons. The city shall provide one (1) ninety-gallon container for wet and dry garbage and one (1) ninety-gallon approved container for recyclables. Should this not be sufficient storage between collections, the resident or business may purchase from the city one (1) additional automated container of either type for a fee. Businesses generating in excess of two (2) each ninety-gallon automated containers (in excess of one hundred eighty (180) gallons per week) of wet or dry garbage or of recyclables must convert to at least a six-yard stationary container (dumpster).

(2) *Non-automated collection system.* All households and businesses not part of the automated collection system shall provide approved containers for all solid waste for removal by the city. Wet and dry garbage containers shall have a capacity of no more than thirty-two (32) gallons. The following provisions shall be complied with:

a. Containers shall be cans made substantially of metal or plastic. Cans shall have tight-fitting covers and strong handles and the covers shall be kept on at all times except when cans are being filled or emptied. Plastic bags serving as approved containers for solid waste collection by city forces shall be properly secured at the bag opening with a twist tie or other means to eliminate any spillage of contents.

b. Plastic bags to be used as wet and dry garbage containers shall be constructed from film made from high quality polyethylene or similar product. Bags shall withstand normal service handling when filled to a maximum weight of fifty (50) pounds when securely closed with a twist tie.

(c) *Placement of containers.*

(1) In order to collect solid waste, the owner or occupant of each business, or household shall place all solid waste in approved containers and place such solid waste containers between the curb or traveled portion of the street and the property line closest to the curb of the premises from which the same is placed at or before 7:00 a.m., on the day fixed for collection. Solid waste will be collected and removed on the day fixed therefore by the solid waste manager. Public notice shall be given of any change of collection day. City collection personnel shall not provide service if denied reasonable access by parked vehicles, equipment, fixed objects, low hanging wires or other obstructions.

(2) The following rules shall apply for the removal of solid waste:

a. No wooden boxes, barrels, or any other wooden receptacle, or any other receptacles except approved containers shall be used for collection of wet or dry garbage or recyclables. Solid waste collectors shall be required to remove all such wooden boxes and other receptacles, if so used.

b. For the purpose of collection, placement of containers will be at ground level, and the use of underground containers will not be permitted save those existing prior to November 1, 1982.

(d) *Removal of containers following collection.*

(1) All containers or carriers placed on any street to be emptied shall, within twelve (12) hours after the contents thereof are emptied and collected, be removed from such street to the rear of the premises by the owner or occupant of the premises from which such container came to a storage place provided for that purpose, which storage place shall be nearer to the house or building located on the premises than to any street abutting such premises or to any lot line.

(2) No solid waste containers or any form of movable carriers shall be placed, kept or left on any street for any purpose whatsoever on Saturday or before dusk on Sunday.

(3) Any solid waste container or any form of movable carrier placed or found in violation of this section will be deemed a public health hazard and reported to the county environmental health division and be subject to the fine outlined in this chapter.

(4) It shall be unlawful to willfully break or cause damage to any city owned automated container. Any person or entity violating this section shall be required to purchase a replacement container from the city and may also be subject to the civil penalties as outlined in this chapter.

(e) *Spilled materials.* Spilled materials or overflow not caused by city collection crews shall be cleaned up immediately after such spillage or overflow by the property owner or occupant. Spilled solid waste materials caused by city collection crews shall be cleaned up immediately after such spillage occurs by said crew.

(f) *Yard waste collection service.*

(1) Yard waste collection shall be provided to residential units and small businesses served by the automated curbside collection system as approved by the solid waste manager or designee. Yard waste collection shall be provided once a week. Residential units having refuse stationary containers (dumpsters) which are serviced by the city may also receive yard waste

service if the yard waste is properly prepared as referenced below and brought to the city curb line.

Yard waste collection will not be provided to commercial establishments or industries.

(2) Yard waste shall be separated from all other refuse prior to collection. Collection forces shall collect yard waste as stated in subsection (f)(1) above so long as it is properly prepared or containerized and in compliance with these regulations.

a. Grass clippings, small shrubbery clippings, leaves, and other small lawn debris shall be collected at the curbside provided that they are placed in biodegradable paper bags purchased by resident, or carts provided by the city for yard waste collection. Such biodegradable paper bags shall be in good condition and of such size and weight that when full, do not weigh more than fifty (50) pounds each and are such that one (1) person can easily pick up each bag, one (1) at a time, for disposal. Biodegradable paper bags shall be secured when placed at the curbside for collection. No personal containers, other than biodegradable bags, may be used. Clear plastic bags may be used for yard waste through March 1, 2024.

b. Limbs and large shrubbery to be collected by city collection forces shall be no longer than five (5) feet in length and tied in bundles not to exceed fifty (50) pounds in weight and placed in an orderly manner at the curb. Binding used to secure the bundles shall be strong enough to sustain fifty (50) pounds in weight. Other yard waste items not suitable for tying in bundles must be placed in an approved container.

c. Paper biodegradable bags, bundled limbs, and city provided carts are limited to a total of ten (10) per household except from November 1 to the second Wednesday in February, when fifteen (15) are allowed.

d. City forces will not collect yard waste and yard debris from large landscape projects performed by landscaping companies unless the yard waste is properly prepared as stated in paragraph 25-13(f)(1) through (f)(2).

e. Tree trunks or tree stumps that cannot be readily loaded by two (2) people will not be collected by city collection forces.

f. Loose leaves shall not be collected by city forces. Leaves shall be bagged or containerized in approved containers, effective March 1, 2024.

(g) *Large appliance (white goods) collection.* Collection of large appliances (white goods) shall be provided as follows:

(1) White goods collection will be provided to residential units and small businesses served by the automated curbside collection system as approved by the solid waste manager or designee.

(2) White goods collection will not be provided to commercial establishments or industries.

(3) White goods collection will not be provided to residential units where a landlord/property owner provides the appliances.

a. Appliance collection will be provided to individual tenants

for appliances they personally own (those not supplied by the landlord) if the residential complex has refuse stationary containers (dumpsters) which are serviced by the city.

b. Appliances individually owned by a tenant will only be collected if the appliance is brought to the closest city curb line. Appliances can not be placed near or in any stationary container (dumpster). All other collection procedures as outlined in this section must be adhered to.

(4) Appliance collection shall be provided once per week.

(5) Residents must call the solid waste management division in order to schedule an appointment for appliance collection.

(h) *Bulk trash.*

(1) Bulk trash collection shall be provided to residential units and small businesses served by the automated curb side collection system as approved by the solid waste manager or designee.

Bulk trash collection shall be provided once per week.

Residential units having refuse stationary containers (dumpsters) which are serviced by the city may also receive bulk trash service if the bulk trash is properly prepared as referenced below and placed at the closest city curb line.

Bulk trash service will not be provided to large commercial establishments or industries.

a. Bulk trash shall be placed to the curb by 7:00 a.m. on the collection day to assure pickup.

b. Bulk trash must be separated from all other refuse prior to collection.

c. Bulk trash that cannot be readily loaded by two (2) people or is too large to be placed in the collection vehicle will not be collected by city forces.

d. All glass in windows, doors, mirrors and other items with large expanses of glass must have the glass taped with an "X" mark so it will not shatter in the collection process.

e. Gasoline and/or oil must be removed from all lawn equipment prior to collection.

f. Oxygen tanks and other medical equipment; propane tanks; all oil tanks used for household purposes parts of campers, boats, camper shells, trailers; automotive parts, including but not limited to motors, doors, fenders, car seats or batteries from a residentially used premise, etc. shall not be collected by the city forces.

g. Carpet and padding shall be collected provided the carpeting is rolled and tied in sections no longer than five (5) feet so that two (2) individuals can easily pick up the sections for disposal.

h. Overflow volumes of wet and dry garbage will not be collected as bulk trash.

i. No building materials or refuse from building operations, construction materials or remodeling projects generated by or performed by a professional contractor will be collected by city forces. The contractor is responsible for disposal.

(Solid waste forces will collect building materials from small remodeling projects done by

the homeowner; up to two (2) thirty-two-gallon container capacity per project)

j. Off-street special collection of bulk trash is available for an extra fee. Notification must be made to the solid waste management division in order to schedule an appointment for service.

(2) The solid waste manager or his/her/their designee shall have the authority to require items to be prepared for ease of collection and to assure the safety of the employees performing the collection task. Any item not prepared properly may be refused for collection at the solid waste manager's or his/her/their designee's discretion.

(3) Owners/customers who become eligible for service under this Section as of March 1, 2005 shall receive it as resources become available to perform the service but in no event later than March 1, 2007.

(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 00-222, § 2, 12-5-00; Ord. No. 05-50, § 3, 3-1-05; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 23-117, § 1, 8-15-23, effective 3-1-24)

Sec. 25-14. Stationary container collection services (dumpster service).

City served residential units and businesses not otherwise eligible for curbside service will be provided collection through the use of city approved stationary containers under the following conditions:

(a) *Stationary container collections scheduling.* City served stationary container collection services will be provided in accordance with the solid waste collections division operating plan as designated by the solid waste manager or his/her/their designee. Variations must be approved by the solid waste collection manager or his/her/their designee.

(b) *Approved stationary containers.* All owners eligible for this service shall provide a city approved stationary container for service by city collection vehicles. The container capacity shall not be less than six (6) cubic yards nor greater than eight (8) cubic yards and shall not exceed eight thousand (8,000) pounds of gross weight when filled.

(c) *Placement of containers.* The required stationary container shall be located to permit convenient and safe access by the servicing vehicle and shall be aesthetically pleasing. The container location shall permit access using all-weather streets and alleys of adequate strength and to reasonably minimize excessive walking distances for tenants and occupants. Site construction shall be in conformance with the drawing titled "Stationary Container Location Standards" contained in "Dumpster Pad Standards Drawing No. D-2075." The location of the container shall be placed in a manner as to allow the service vehicle operator to service the container, backup and depart without having to exit the vehicle or make unnecessary maneuvers. Approval for city collection will not be made if safe and reasonable access is denied by gates, fixed objects, low hanging wires, or other obstructions.

(d) *Spilled materials.* Spilled materials or overflow not caused by city collection crews shall be cleaned up immediately after such spillage or overflow by the property owner or occupant. Spilled solid waste materials caused by city collection crews shall be cleaned up immediately after such spillage occurs by said crew.

(e) *Conditions for commercial collection for residential units.*

(1) The owner or owners of a residential unit or units in the same complex, not otherwise eligible for service under section 25-13, shall install

and maintain city approved stationary containers according to the following specifications:

a. There shall be a minimum of one (1) six-cubic yard stationary refuse container for each aggregate of residential units

which contains eight (8) through sixteen (16) living units.

b. There shall be a minimum of one (1) eight-cubic yard stationary refuse container for each aggregate of residential units which contains seventeen (17) through twenty-four (24) living units.

c. Additional stationary refuse containers shall be installed and maintained as a minimum in the same ratio as herein set forth in subparagraphs (a) and (b) where an aggregate of residential units contains twenty-five (25) or more.

(2) Applicability to new customers. All of the provisions of this section shall apply to all new construction, alterations or conversion of residential units for which any building permit shall be or has been issued after April 16, 1996 where the residential unit(s) that is not eligible for service under section 25-13; and no building permit shall be issued after April 16, 1996, for construction, alteration or conversion of a building or group or complex of buildings falling within the application of this section unless and until a plan approved in writing by the director of environmental services or designee as showing adequate provision for installation of containerization of refuse as required by this section shall be furnished by the owner or developer; and no such residential unit(s) to which this section applies shall be constructed, altered or converted after April 16, 1996, without providing for the use and maintenance of stationary refuse containers under the specifications in this section.

(3) Applicability to existing buildings, stationary containers; individual city approved containers; automated service. The association, agent or owners representing residential units not otherwise eligible for service under section 25-13 and for which building permits were issued prior to December 1, 1984, may install stationary refuse containers under the same regulation as new customers or, if they were not a part of the stationary container collection program, they may choose collection of individual city approved containers, provided the containers are placed in the location approved by the solid waste manager or his/her/their designee and all units are receiving the same type of service. If permits were issued prior to the above stated date for only a portion of a development, the remainder of the units built and platted in the phase may have the same rights and privileges. Charge for individual private collection service shall be outlined under section 5-21.

(4) Stationary recycling containers. To participate in the "Recycle Greensboro" program, variations outlined in subsection (e)(1)a, b, and c of this subsection must be approved by the solid waste manager or his/her/their designee.

(5) Stationary packing units providing equivalent storage capacity to that required under subsection (e)(1)a, b, and c of this subsection are permitted. Weight of containers shall not exceed the lifting capacity of loading arms on collection vehicles, eight thousand (8,000) pounds maximum.

(f) *Conditions for stationary container collection for nonresidential use.*

(1) Business unit. For a business unit or a group of units in the same complex not otherwise eligible for service under section 25-13, stationary refuse containers shall be provided by the owner or owners at

such business or complex according to the provisions as set forth in subsection (e)(1) through (5). This section shall apply to all business units existing as of April 16, 1996. The provisions as set forth in subsection (e)(1) through (5), shall apply on all attached business units existing on December 1, 1984.

(2) Business unit. Where refuse accumulates at any business unit, place or location in quantities of more than two (2) ninety-gallon automated refuse containers (one hundred eighty (180) gallons) between collections, the owner or owners in charge shall be required to provide a stationary refuse container. The size of the container shall be determined by the solid waste manager or his/her/their designee.

(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 00-222, § 3, 12-5-00; Ord. No. 05-50, § 2, 3-1-05; Ord. No. 07-120, § 4, 6-26-07; Ord. No. 08-186, § 4, 6-17-08; Ord. No. 20-163, § 3, 12-15-20)

ARTICLE III. MUNICIPAL DISPOSAL SERVICES

Sec. 25-15. Ownership of materials.

Although material, except hazardous waste or unauthorized waste, delivered to a city solid waste disposal facility for disposal is deemed to have been abandoned by the owner and therefore becomes the property of the city or its authorized agent, the Federal Comprehensive Environmental Response and Compensation and Liability Act (CERCLA), and NC Senate Bill 111 (G.S. § 130A-294) hold that the generator of the waste retains the liability in the event that a cleanup of the solid waste disposal facility is required and that the responsibility can be divided among the generators of the waste.

(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 07-120, § 5, 6-26-07; Ord. No. 08-186, § 5, 6-17-08)

Sec. 25-16. Unauthorized disposal.

(a) No refuse, collected outside the corporate limits of the city, shall be disposed of at any city solid waste disposal facility, except as provided for in the solid waste disposal facility's permit to operate, issued by the North Carolina Department of Environment and Natural Resources.

(b) It shall be unlawful to place waste in any place other than the specified area designated for the placement of such waste as permitted by the State of North Carolina Department of Environment and Natural Resources.

(c) In accordance with the Solid Waste Management Act of 1989 as amended (G.S. Ch. 130A), it shall be unlawful to dispose of the following materials in any city owned solid waste disposal facility:

(1) Whole tires (except solid forklift tires);

(2) White goods (refrigerators, ranges, water heaters, washing machines, dishwasher, clothes dryers and similar domestic and commercial large appliances);

(3) Lead acid batteries;

(4) Liquids;

(5) Hazardous waste;

(6) Asbestos;

(7) Contaminated soil, explosives, volatile chemicals, etc.

(8) Any container of five-gallon capacity or greater unless both ends are removed;

(9) Any material that has the propensity for producing a foul odor;

(10) Aluminum beverage cans;

(11) Large farm animals (i.e. cattle, horses, etc.); or any other material deemed unlawful as described in the North Carolina Solid Waste Management Rules as amended.

(12) Regulated medical waste.

(13) Oyster shells.

(14) (Effective January 1, 2008) Beverage containers from establishments holding a NC ABC Permit.

(15) (Effective October 1, 2009) Motor vehicle oil filters.

(16) (Effective October 1, 2009) Recyclable rigid plastic containers.

(17) (Effective October 1, 2009) Wooden pallets for disposal in a sanitary landfill.

(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 07-120, § 6, 6-26-07; Ord. No. 08-186, § 6, 6-17-08)

Sec. 25-17. Securing of loads and littering.

Solid waste disposal facility users shall comply with the following in order to be authorized to use any solid waste disposal facility owned by the city. Failure to comply will result in being denied access and use of the solid waste disposal facility.

(1) Material that is prone to blowing out of the vehicle during transit must be properly secured or covered to prevent littering.

(2) Inert debris must be kept within the bed of the truck, and the truck must have a closed tailgate.

(3) Yard waste, large tree limbs, tree trunks, stumps or bulk trash (as defined in this Code) must be securely tied down and within the reasonable confines of the vehicle body.

(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 07-120, § 7, 6-26-07; Ord. No. 08-186, § 7, 6-17-08)

Sec. 25-18. Load inspections and removal of unauthorized items.

(a) All solid waste disposal facility users are subject to waste screening. Failure to allow a load to be screened for hazardous waste or unauthorized waste will result in the load being banned from disposal in any solid waste disposal facility owned and operated by the city. In addition, notification shall be made to state solid waste management officials, as provided by North Carolina Solid Waste Management Rules.

(b) Random load inspection of loads shall be carried out by the solid waste disposal manager or his/her/their designee to prohibit hazardous waste and unauthorized waste from coming into the solid waste disposal facility.

(c) Loads that are found to contain hazardous waste or unauthorized waste shall remain the possession of the hauler and therefore all cleanup and removal of such hazardous waste or unauthorized waste shall be the sole responsibility of the hauler. The hauler should immediately notify all required state and federal regulatory agencies for proper remediation.

(d) Waste determination. Special waste or waste from industrial processes must be approved for disposal prior to delivery to a city solid waste disposal facility. The solid waste disposal manager or his/her/their designee can require details of the process, constitute list, laboratory analysis and other relevant information in order to determine suitability for disposal at a city solid waste disposal facility.

(e) The city will reject any waste for disposal at a city solid waste disposal facility that the solid waste disposal manager or his/her/their designee determines may pose a threat to human health or the environment.

(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 07-120, § 8, 6-26-07; Ord. No. 08-186, § 8, 6-17-08; Ord. No. 20-163, § 3, 12-15-20)

Sec. 25-19. Types of disposal.

It shall be unlawful to dispose of waste at a city solid waste disposal facility in any area other than the specific area designated for the disposal of that type of waste. It shall be unlawful to dispose of household garbage, organic waste, furniture, plastic, paper, cloth, or any other waste prohibited by North Carolina General Statute, in the construction and demolition area. The construction and demolition area shall be used only for the disposal of solid waste generated solely from the construction, remodeling, repair, or demolition operations on pavement, and buildings or structures. C&D waste does not include municipal and industrial wastes that may be generated by the on-going operations at buildings or structures (15A NCAC 13B.0532 (8)). Anyone violating this section shall be responsible for the removal of said waste and subject to a civil penalty as outlined in this chapter.

(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 00-222, § 4, 12-5-00; Ord. No. 07-120, § 9, 6-26-07; Ord. No. 08-186, § 9, 6-17-08)

Sec. 25-20. Safety.

All solid waste disposal facility users and vehicles must obey all traffic signs, signals and directions of solid waste disposal personnel on any solid waste disposal facility owned and operated by the city.
(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 07-120, § 10, 6-26-07; Ord. No. 08-186, § 10, 6-17-08)

ARTICLE IV. FEES AND CIVIL PENALTIES

Sec. 25-21. Types of fees.

(a) *Solid waste monthly fee.* A monthly fee of five dollars and fifty cents ($5.50) shall be assessed to all property units eligible for curbside collection service in accordance with section 25-13 of this chapter. This fee shall be used for the purposes of curbside collection, processing and disposal of refuse, yard waste, bulk waste, and recycling materials. The effective date of the ordinance from which this section is derived is July 1, 2025.

(b) *Stationary container program.* There is hereby established a charge for commercial collection of wet and dry garbage, and recycling materials from stationary containers.

(1) *Scheduled commercial refuse collection fees.* Fees shall become effective on and after July 1, 2025.

a. The fee for one (1) time per week shall be one hundred sixty-three dollars ($163.00) per month for each stationary container and stationary packing unit.

b. The fee for two (2) times per week shall be two hundred forty-seven dollars ($247.00) per month for each stationary container and three hundred twenty-one dollars ($321.00) per month for each stationary packing unit.

c. The fee for three (3) times per week shall be two hundred ninety-three dollars ($293.00) per month for each stationary container and four hundred fifty-nine dollars ($459.00) per month for each stationary packing unit.

d. The fee for four (4) times per week shall be three hundred twenty-seven dollars ($327.00) per month for each stationary container and five hundred ninety-eight dollars ($598.00) per month for each stationary packing unit.

e. The fee for five (5) times per week shall be three hundred sixty-six dollars ($366.00) per month for each stationary container.

f. The fee for six (6) times per week shall be three hundred ninety-three dollars ($393.00) per month for each stationary container.

(2) *Unscheduled commercial refuse collection fees.* Fees shall be sixty dollars ($60.00) per collection for stationary containers and seventy-five dollars ($75.00) per collection for stationary packing units. Fees shall become effective on and after July 1, 2013.

(3) *Commercial recycling collection fees.* Fees shall become effective on and after July 1, 2025.

a. The fee for one (1) time per week shall be one hundred dollars ($100.00) per month for each stationary container and stationary packing unit.

b. The fee for two (2) times per week shall be one hundred thirteen dollars ($113.00) per month for each stationary container and stationary packing unit.

c. The fee for three (3) times per week shall be one hundred twenty-seven dollars ($127.00) per month for each stationary container and stationary packing unit.

d. The fee for four (4) times per week shall be one hundred forty-seven

dollars ($147.00) per month for each stationary container and stationary packing unit.

e. The fee for five (5) times per week shall be one hundred sixty-two dollars ($162.00) per month for each stationary container and stationary packing unit.

f. The fee for six (6) times per week shall be one hundred seventy-three dollars ($173.00) per month for each stationary container and stationary packing unit.

(4) *Unscheduled commercial recycling collection fees.* Fees shall be thirty-five dollars ($35.00) per collection for stationary containers and stationary packing units.

(5) *Stationary container rental.* The monthly rental fee for each stationary container shall be sixty-two dollars ($62.00) per month. Fees shall become effective on and after July 1, 2023.

(6) *Alcohol beverage commission (ABC) recycling container collection fees.* The collection fee for ABC recycling containers located in the municipal service district shall be thirty-five dollars ($35.00) per month and outside the municipal service district shall be fifty dollars ($50.00) per month. Fees shall become effective on and after July 1, 2025.

(7) *Alcohol beverage commission (ABC) recycling container purchase.* Additional ABC recycling containers may be purchased. The cost shall be sixty-five dollars ($65.00) per blue recycling container. Fees shall become effective on and after July 1, 2025.

(c) *Reserved.*

(d) *Special off-street bulk trash service.* For special services in the removal of bulk trash from private property, the cost of such service shall be one hundred twenty-five dollars ($125.00) not to exceed one (1) city truckload, paid by the person being served on condition that the city truck is accessible to the pickup point and the bulk trash is prepared in accordance with provisions set forth in this chapter. Fees shall become effective on and after July 1, 2022.

(e) *Additional automated refuse and recycling container.* A maximum of one (1) additional automated refuse and one (1) automated recycling container may be purchased. The cost shall be sixty-five dollars ($65.00) per automated recycling container and sixty-five dollars ($65.00) per automated refuse container. Fees shall become effective on and after July 1, 2022.

(f) *Solid waste disposal fees.* Fees shall become effective on and after July 1, 2024.

(1) Refuse, per ton (twelve dollars ($12.00) minimum): Forty-eight dollars ($48.00)

(2) Refuse delivered in cars, SUVs, passenger van, and pickup trucks with no trailer, per load: Fifteen dollars ($15.00)

(3) Refuse delivered in cars, SUVs, passenger van, and pickup trucks with hand unload trailers, per load: Twenty dollars ($20.00)

(4) Refuse delivered in cars, SUVs, passenger van, and pickup trucks with dump trailers, per ton: Forty-eight dollars ($48.00)

(5) Shredded tires:

Grind ten (10) inches or under, per ton: Forty-four dollars ($44.00)

Grind over ten (10) inches, per ton: Seventy-five dollars ($75.00)

(6) Refuse requiring special handling, per ton: One hundred fifty dollars ($150.00)

(Refuse that requires the presence of solid waste disposal personnel at disposal for security measures and wastes that is bailed or bulky that requires special handling.)

(7) Stumps [greater than forty (40) inches], per ton: Thirty-one dollars ($31.00)

(8) Yard waste destined for the compost facility, per ton: Forty dollars ($40.00)

(9) Veterinary disposal fee per carcass: Five dollars ($5.00)

(10) In addition to the fees set forth in this article, the city will collect any fee or tax assessed on solid waste disposal by the county, state or federal government.

(g) *Reserved.*

(h) *Fee schedule for construction and demolition debris landfill.* Fees shall become effective on and after July 1, 2025.

(1) C&D, per ton (twelve-dollar ($12.00) minimum): Thirty-eight dollars ($38.00)

(2) C&D delivered in cars, SUVs, passenger van, and pickup trucks with no trailer, per load: Fifteen dollars ($15.00)

(3) C&D delivered in cars, SUVs, passenger van, and pickup trucks with hand unload trailers, per load: Twenty dollars ($20.00)

(4) C&D delivered in cars, SUVs, passenger van, and pickup trucks with dump trailers, per ton: Thirty-eight dollars ($38.00)

(i) *[Collection of fees.]* In addition to the fees set forth in this article, the city will collect any fee or tax assessed on solid waste disposal by the county, state or federal government.

(j) *Emptying contaminated recycling container as trash.* There is hereby established a charge for the emptying of a recycling dumpster as trash. The cost of such service shall be one hundred dollars ($100.00) per dumpster, such cost to be charged upon the second and all such subsequent collections. For purposes of this section, trash shall mean any item(s) not included in the city's "Recycle Greensboro" recycling program.

(k) *Cart roll back fee.* There is hereby established a charge for properties that leave recycling and/or refuse containers at the curb after their service day. The cost of such service shall be twenty-five dollars ($25.00) per occurrence after one (1) courtesy roll back. Fees shall become effective on and after July 1, 2022.

(l) *Non-requested bulk trash service.* For special collections that fall outside of the parameters outlined in section 25-13(h), a fee of two hundred fifty dollars ($250.00) would be charged to the property owner per truckload collected. Prior to material collection and fee, the owner would be notified and have fourteen (14) days to correct the issue as outlined in section 25-22, enforcement and civil penalties. Fees shall become effective on and after July 1, 2022.

(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 96-63, § 1, 6-4-96; Ord. No. 97-4, § 1, 1-7-97; Ord. No. 97-89, § 1, 6-3-97; Ord. No. 97-92, §§ 1, 2, 6-3-97; Ord. No. 97-93, § 1, 6-3-97; Ord. No. 97-90, §§ 1, 2, 6-3-97; Ord. No. 97-91, §§ 1, 2, 6-3-97; Ord. No. 98-87, § 1, 6-2-98; Ord. No. 99-84, § 1, 6-1-99; Ord. No. 00-102, § 1, 6-15-00; Ord. No. 00-222, § 5, 12-5-00; Ord. No. 01-134, § 1, 6-5-01; Ord. No. 02-120, §§ 1, 2, 6-18-02; Ord. No. 03-148, §§ 1, 2, 6-17-03; Ord. No. 04-87, § 1, 6-22-04; Ord. No. 07-120, § 11, 6-26-07; Ord. No. 08-186, § 11, 6-17-08; Ord. No. 10-81, § 1, 6-15-10; Ord. No. 13-38, § 1, 3-19-13; Ord. No. 13-93, § 1, 6-18-13; Ord. No. 14-083, § 1, 6-17-14; Ord. No. 17-74, § 1, 6-20-17; Ord. No. 19-085, § 1, 6-18-19; Ord. No. 19-092, § 1, 7-16-19; Ord. No. 20-078, § 1, 6-16-20; Ord. No. 22-140, § 1, 6-21-22; Ord. No. 23-082, § 1, 6-20-23; Ord. No. 24-089, § 1, 6-18-24; Ord. No. 25-101, § 1, 6-17-25)

Sec. 25-22. Enforcement and civil penalties.

(a) *Duty to comply and notice.* When an official of the solid waste management division finds a violation of any provision(s) of this chapter, he/she/they shall notify the owner or occupant of the premises of the violation by posting a notice on the front door or by hand delivery to such person. Such person shall be required to remedy the violation within fourteen (14) days or else be subject to civil penalty as set out below. In addition, upon failure to remedy the violation, the official of the solid waste management division may proceed to correct the violation and impose the civil penalty against the owner or occupant as hereinafter set out.

(b) *Civil penalty assessment.* Any person who violates any provision of this chapter shall be subject to an assessment of a civil penalty in the amount of seventy-five dollars ($75.00) for each violation.

(c) *Service of citation.* After being notified as set forth under subsection (a) above and upon failure to remedy the violation within the

prescribed time, a civil penalty shall be invoked in the form of a citation stating the nature of the violation, the amount of the civil penalty, and directing the violator to pay the civil penalty within fifteen (15) days from the date of the citation. Such citation shall be served by either first class mail, personal service or posted at the front door. Any of these methods of service shall be conclusively presumed to be valid, and no owner or occupant shall refuse service of the citation.

(d) *Nonpayment.* If payment is not received within fifteen (15) days, in addition to other remedies for violation of this chapter, a civil action may be instituted in the nature of a debt to collect the civil penalties and court costs as may be assessed.

(Ord. No. 96-37, § 1, 4-16-96; Ord. No. 20-163, § 3, 12-15-20)

Chapter 26

STREETS AND SIDEWALKS*

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***Charter reference—**Roads and streets generally, § 6.51 et seq.

Cross references—Motor vehicles and traffic, Ch. 16; railroads, Ch. 23; stormwater management, Ch. 27; taxicabs and buses, Ch. 28.

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ARTICLE I. IN GENERAL

Sec. 26-1. Special assessments in corner lots.

The city shall bear a part of the cost of paving or the construction of sidewalks in areas zoned for residential or apartment use when such paving or sidewalks are constructed abutting a corner lot, used as a single lot. In this section "corner lot" means any lot which is adjacent to the intersection of two (2) streets or the corner of one (1) continuous street where the angle caused by such corner is between eighty (80) and one hundred (100) degrees. The portion of such cost of paving or sidewalk construction to be borne by the city shall be in accordance with the following formula:

(1) In the event that neither of the streets abutting a corner lot, used as a single lot, has ever been paved, such lot shall be exempt from assessment for the paving improvement along side of such lot to the extent of twenty (20) percent of the first one hundred and fifty (150) feet thereof or thirty (30) feet, whichever is less. Thereafter, upon the paving of the intersecting street on which such lot abuts, such lot shall be exempt from assessment for the paving of the street to the extent of fifty (50) percent of the frontage on such street or thirty (30) feet, whichever is less.

(2) In the event that the street along side of a corner lot, used as a single lot, is paved, and the intersecting street is to be paved, such lot shall be exempt from assessment for the paving of the intersecting street to the extent of fifty (50) percent of the frontage thereon or thirty (30) feet, whichever is less.

(3) In the event a street in front of a corner lot, used as a single lot, has been paved and the street along side of such lot is to be paved, the lot shall be exempt from assessment for the paving improvement along side of such lot to the extent of forty (40) percent of the frontage on such street or sixty (60) feet, whichever is less.

(4) In the event that neither of the streets abutting a corner lot, used as a single lot, has sidewalks, such lot shall be exempt from assessment for the sidewalk improvement along side of such lot to the extent of twenty (20) percent of the first one hundred fifty (150) feet thereof or thirty (30) feet, whichever is less. Thereafter, upon the construction of sidewalks on the intersecting street, on which such lot abuts, such lot shall be exempt from assessment for the sidewalk improvement on said street to the extent of fifty (50) percent of the frontage on such street or thirty (30) feet, whichever is less.

(5) In this section "paved streets" means streets that are completely paved with curb, gutters and asphaltic or concrete wearing surface. In the event the existing pavement is not complete with curb and gutters, or if the street has curb and gutters and is not completely paved with standard asphaltic or concrete wearing surface, then one-half of the exemption as specified in this section shall apply.

(6) In the event that the street alongside of a corner lot, used as a single lot, has sidewalks and sidewalks are constructed on the intersecting street, such lot shall be exempt from assessment for the sidewalks on said intersecting street to the extent of fifty (50) percent of the frontage thereon or thirty (30) feet, whichever is less.

(7) In the event a street in front of a corner lot, used as a single lot, has sidewalks and sidewalks are to be constructed on the intersecting street, said lot shall be exempt from assessment for the sidewalk improvement alongside of such lot to the extent of forty (40) percent of the frontage thereon or sixty (60) feet, whichever is less.

(Code 1961, § 18-42)

Charter reference—Special assessments, § 6.131 et seq.

State law reference—Special assessments, G.S. § 160A-216 et seq.

Sec. 26-2. Street paving by assessment.

(a) There is established a street paving account which shall be known as the "operating street paving fund" as distinguished from the

present bond assessment accounts receivable. The fund is perpetual in its nature and shall be operated in the manner provided in this section.

(b) The council shall determine what streets or portions of streets shall be paved, and shall likewise determine the manner in which such paving shall be done and the type of paving, and shall likewise determine the amount of costs incident to paving which shall be borne by the abutting property owners. The cost of paving, as the term is used in this section, shall include the cost of rough and fine grading of all necessary drains, curbing and guttering, together with the paving itself, and all incidental expenses such as engineering, inspection and interest during construction.

(c) The assessment formula for streets shall be set at a rate that recovers fifty (50) percent of the construction cost; except that curb and gutter improvements shall be exempt from any assessment if the primary purpose for the curb and gutter installation is the construction of an adjacent sidewalk or sidewalks.

(d) Any funds advanced by the city for street paving from sources other than street paving bonds shall be carried in the account set up by this section, and the payment of any assessments, together with interest on such assessments, levied for street paving where bond funds are not involved shall be paid into the account set up by this section. Such funds shall be used only for street paving purposes. Any funds hereafter appropriated for street paving purposes in the city budget shall likewise be credited to the account set up by this section and shall be used only for street paving purposes.

(e) Upon receiving notice of completion of a street improvement project, city council shall confirm all assessment obligations in said project and shall call for advertisement of same in a local newspaper published at least weekly and which is generally available to Greensboro citizens. Such advertisement shall run within forty-five (45) days following the date of confirmation and shall inform that all listed assessment obligations may be fully satisfied, without interest, if payment-in-full of the total principal balance is received by the tax collector within ninety (90) days following the date of confirmation.

(f) Assessment accounts not paid in full within ninety (90) days following the confirmation date shall be scheduled for payment in substantially equal installments, plus interest on the whole unpaid principal balance. Such interest shall be computed from the date of confirmation at a rate fixed in the assessment resolution, with said rate not exceeding the maximum allowed by law. The first installment shall become due and payable no later than one (1) year (three hundred sixty-five (365) days) following confirmation, with subsequent installments being due and payable on the regular and sequential cycle of the installment frequency (monthly, quarterly, semi-annually or annually) elected by the obligee(s) and with the final installment being due and payable by not later than one hundred twenty (120) months after the confirmation date.

If the obligee expresses no preference as to payment frequency the assessment obligation will be scheduled for payment in ten (10) annual installments. Upon approval of the tax collector, the frequency of payment for existing assessment accounts may be changed for the economic and budgetary convenience of the obligee, with the first such change being granted without charge and with subsequent changes being granted with a transaction fee of thirty-five dollars ($35.00).

(g) At any time after the first ninety (90) days in the life of an assessment account the full principal balance may be paid in full with all accrued interest and without early payoff penalty. (Code 1961, § 18-24; Ord. No. 88-31, § 1, 3-17-88; Ord. No. 99-96, §§ 1, 2, 6-15-99; Ord. No. 02-126, § 1, 6-18-02; Ord. No. 11-21, § 1, 2-1-11)

Charter reference—Special assessments, § 6.131 et seq.

State law reference—Special assessments, G.S, § 160A-216 et seq.

Sec. 26-3. Repair of streets.

Section 26-2 refers only to new construction. Repairing of streets shall be done by the city. (Code 1961, § 18-25)

Sec. 26-4. Temporary right-of-way (TROW) encroachments.

(a) It shall be unlawful to obstruct or block, impede or place any object or thing having the potential to obstruct, block, or impede any city street sidewalk, or right-of-way without a written permit therefore from the city manager or his/her/their designee. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). Construction or maintenance activities performed by or on behalf of the City of Greensboro is excluded from this section. A permit issued pursuant to chapter 26, division 3, "street and sidewalk cafes" satisfies the requirement as set forth herein, and such a permit is exempted from the fees as set forth in paragraph (b) of this section.

(b) The fees quoted herein shall be required for TROW encroachment permits to obstruct, block or impede city streets, sidewalks, and/or rights-of-way.

(1) *Application fee.* An application fee of fifteen dollars ($15.00) will be required to submit an application for an encroachment permit. This fee shall be waived for applications to extend an existing permit for which an application fee has already been paid.

(2) *Requirements and specifications.* Encroachment permit holders will conduct all encroachment activities in accordance with the requirements and specifications found in the City of Greensboro Work Area Traffic Control Handbook (WATCH) and the Manual on Uniform Traffic Control Devices.

(3) *Fee structure.* Encroachment fees are based on the street classification, number of encroachments, time of day, and the duration of the encroachment. TROW encroachment fees will be assessed per day. The fees listed below are based on a single encroachment. These fees will be multiplied by the number of encroachments and the number of days to compute the total fees for the permit.

a. *Travel lane encroachment fees.* Peak hours shall be from 7:00—9:00 a.m. and 4:00—6:00 p.m., Monday through Friday. Street classifications are determined by the Greensboro Urban Area Thoroughfare Plan.

- Major thoroughfares (non-peak): Thirty-five dollars ($35.00) per day per lane.
- Major thoroughfares (peak): Seventy dollars ($70.00) per day per lane.
- Other city streets (non-peak): Ten dollars ($10.00) per day per lane.
- Other city streets (peak): Twenty dollars ($20.00) per day per lane.

b. *Sidewalk, loading zone, and parking space encroachments in central business district (CBD).*

- Sidewalks: Ten dollars ($10.00) per day per sidewalk.
- Unmetered on-street parking spaces/loading zones: Fifty cents ($0.50) per parking space per hour or five dollars ($5.00) per parking space per day.
- Metered parking spaces: Fifty cents ($0.50) per parking space per hour or five dollars ($5.00) per parking space per day.

c. *Sidewalk, loading zone, and parking space encroachments in other districts.*

- Sidewalks/shoulders: Two dollars ($2.00) per day per sidewalk/shoulder.
- On-street parking spaces/loading zone: Two dollars ($2.00) per day per space/zone.

(c) Permit revocation. Failure to follow conditions of the TROW encroachment permit will result in the permit being revoked by city transportation director or designee by written notice.

(Ord. No. 11-127, § 1, 6-21-11; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-141, 9-21-21; Res. No. 048-24, § 1, 2-20-24)

Editor's note—Ord. No. 11-127, § 1, adopted June 21, 2011, amended § 26-4 in its entirety to read as herein set out.

Former § 26-4 pertained to obstructing streets or sidewalks—generally and derived from the Code of 1961, § 18-58 and Ord. No. 92-32, § 1, adopted March 16, 1992.

Sec. 26-5. Protection of obstructions or openings.

Every person causing or allowing any obstruction or opening on any street or sidewalk shall protect the same in compliance with the city's work area traffic-control handbook published by the traffic and transportation division.
(Code 1961, § 18-59)

Sec. 26-6. Openings to be filled.

All openings made in any public alley, street or sidewalk shall immediately upon the accomplishment of the purpose for which the same was made, be completely filled up, and the surface thereof shall be made flush with the adjacent surface of the street. Any hard surface removed will be replaced by the city. Every day during which any such opening remains unfilled in violation of the provision of this section shall constitute a separate offense and the opening in the alley, street, or sidewalk shall remain the responsibility of the person making the opening until the surface is replaced by the city, in those cases where hard surface has been removed.
(Code 1961, § 18-60)

Sec. 26-7. Permit for placing material in streets.

It shall be unlawful to place any brick, stone, lumber, sand or other building material upon any of the streets or sidewalks of the city without having first obtained from city manager or his/her/their designee permission in writing therefor and then only under such reasonable restrictions as may be prescribed by him/her/them for the public safety.
(Code 1961, § 18-61; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-8. Fences, steps and similar obstructions.

(a) It shall be unlawful to build, erect, construct or place or maintain any fence, steps, wall or any other structures in or over any of the streets, street rights-of-way, or sidewalks of the city. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). Fences or similar structures may be allowed in street rights-of-way under the following conditions:

(1) Any fence or similar structure which encroaches into a street, street right-of-way or sidewalk and which is preexisting on or before January 15, 1981, will be allowed to be maintained if it has been determined by the city manager or his/her/their designee that such encroachment is erected in such a manner so as not to cause:

a. A public nuisance.

b. Impairment of sight distance for motorists.

c. Unreasonable interference with the use by the public generally.

d. Interference with the use of the right-of-way by the city or a utility company for a public purpose. The owner shall execute a waiver to the city assuming any liability for injury to persons or damage to property caused as a result of the presence of the encroachment and shall indemnify and save the city harmless from any loss of any kind or manner arising out of the erection or maintenance of the encroachment within the right-of-way.

(2) Any owner who desires to erect a fence or other similar structure in the street right-of-way after January 15, 1981, shall submit a written application to the city manager or his/her/their designee. If it is determined by the city manager or his/her/their designee prior to construction that none of the four (4) conditions set forth in subsection (a) above will occur, the owner will be issued a permit to erect such encroachment provided that he/she/they executes a waiver to the city similar in form to that required under paragraph (1).

(3) Under either of the conditions set forth in paragraph (1) or (2) above, the owner shall also agree to remove the encroachment upon reasonable notice in the event any of the four (4) conditions set out in paragraph (1) become applicable. In addition, the city or any utility company shall have the right, if so needed by the city or any utility company for a public purpose, to enter upon the right-of-way and remove the encroachment from the right-of-way upon forty-eight (48) hours' prior notice to the property owner, and the cost of such removal shall be charged to the owner of the property; provided, in the event of an emergency requiring the immediate removal of the encroachment, the forty-eight-hour notice shall not be required, and the costs of such removal shall be charged against the property owner.

(b) In no event shall any fence or similar structure under this section exceed six (6) feet in height nor be less than five (5) feet from the curb or if there is no curb, less than ten (10) feet from the edge of the pavement. Nevertheless, should the fence impair sight distance for motorists, as determined by the traffic engineer, the height of the fence shall be reduced accordingly.
(Code 1961, § 18-62; Ord. No. 11-130, § 1, 6-21-11; Ord. No. 20-163, § 3, 12-15-20; Res. No. 048-24, § 1, 2-20-24)

Sec. 26-9. Display of flags; protection of flags.

(a) It shall be lawful for property owners or tenants to display the American flag upon the sidewalk in front of their places of business and residences provided:

(1) A one and one-half-inch iron pipe eight (8) inches long is sunk into the sidewalk not more than one (1) foot from the curbline and permanently located therein.

(2) The pipe is provided with a removable metal cover with which it shall be covered when not used to hold a flag staff.

(b) The top of the pipe and the removable metal cover when in place covering said pipe shall not protrude above the surface of the sidewalk and the work of installing the pipe shall be under the supervision of the city manager or his/her/their representative.

(c) Between sunrise and sunset on days and occasions when duly authorized by proclamation or call of the mayor or acting mayor, or on other days when the flag is customarily displayed, an American flag four (4) by six (6) feet in dimensions may be displayed upon a pole twelve (12) feet in length. The pole shall be removable, but shall rest when the flag is so displayed in the permanent pipe on the sidewalk.

(d) No person shall injure, tear down, deface, soil or otherwise mutilate or destroy any flag flying, or any flag staff standing, or any pipe or cover therefor installed in the sidewalk as provided in this section.
(Code 1961, § 18-1; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-10. Protection of streets and sidewalks under construction.

It shall be unlawful to ride, lead or drive, or cause to be ridden, led or driven any horse or other animal, or drive or cause to be driven any automobile or other vehicle upon any street or sidewalk when the same is barricaded and under process of construction or in any other manner cause any damage to such street or sidewalk. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).
(Code 1961, § 18-27; Res. No. 048-24, § 1, 2-20-24)

Sec. 26-11. Littering.

It shall be unlawful for any person to throw any garbage, peelings or miscellaneous litter upon any of the sidewalks in the city or upon the floors of any churches, public halls, theaters, buses or other public places. It shall be unlawful for any person to place, drop or throw any litter, garbage, refuse, grass, shrubbery, tree clippings, bottles, cans, or containers of any kind upon any median strip, alleyway, street or street right-of-

way, park or grass strip, or upon the private premises of another without permission of the owner or person in control of such premises, or upon any public property. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). The provisions of this section do not apply to those materials required to be placed for collection on the grass or park strip by chapter 10 of this Code.
(Res. No. 048-24, § 1, 2-20-24)

Cross reference—Littering, § 25-3.

State law references—Littering, G.S. § 14-399 et seq.; authority to regulate, collect, etc., solid wastes, G.S. §§ 160A-192, 160A-303.1.

Sec. 26-12. Property owners to clean certain sidewalks.

It shall be the duty of the owner or occupant of any store, office or other place of business to keep the sidewalks in front of his/her/their place of business clean. If the sidewalks are cleaned between the hours of 6:30 p.m. and 12:00 midnight, the refuse from the same may be swept into the street, but if cleaned during any other period, the refuse shall be taken up and placed in a metal receptacle to be provided by the owner or occupant and disposed of in the same manner as garbage.
(Code 1961, § 18-2; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-13. Overhanging vegetation; mowing of grass.

(a) Every owner and every occupant of any premises shall keep the sidewalk abutting such premises free from overhanging shrubbery, weeds or grass and keep any grass plot adjacent to such sidewalk neatly mowed.

(b) Every owner and occupant of any premises shall maintain that area of the street right-of-way between the edge of the traveled roadway or curbline and the adjacent property line in a reasonably safe condition and to remove dangerous trees, plantings, shrubbery, limbs, weeds or other obnoxious growth and accumulations from such area of the street right-of-way.

(c) Notwithstanding subsection (b), the city manager, through the department designated by him/her/them, may cause the removal of any shrubbery and trees from street right-of-way and may also cause the removal of dangerous plantings and limbs from such right-of-way.
(Code 1961, § 18-3; Ord. No. 20-163, § 3, 12-15-20)

Cross references—Nuisances, Ch. 17; visual obstructions to traffic, § 16-8.

Sec. 26-14. Removal of ice and snow; placement on streets, etc.

(a) The owner of every lot abutting a paved sidewalk upon which ice may in any manner accumulate from any source other than snow, hail, sleet and other similar accumulation, shall remove such ice from the sidewalk on or before 10:00 a.m. each day.

(b) The owner of every lot abutting a paved sidewalk shall remove snow, hail, sleet and other similar accumulation from such sidewalks within twenty-four (24) hours after the snow, hail, sleet or other similar accumulation ceases to fall. Where any lot or building on such lot is leased or rented the tenant or lessee thereof shall remove such snow, hail, sleet or other similar accumulation within the time hereinafter set out. In the event a lot or building houses or contains more than two (2) tenants or lessees, the owner of the property, if such manages the property, or if such owner does not manage the property, the manager thereof or person who collects the rent, shall remove the snow, hail, sleet or other similar accumulation within the above time limit. It shall be unlawful for the person charged with the duty to remove ice, snow, sleet, hail or other similar accumulation to fail or neglect to remove same within the time limit.

(c) It shall be unlawful for any person to cause to be moved, pushed, scraped, shoveled or thrown any ice or snow from private property into the traveled portion of any street right-of-way in such a manner as to impede the normal movement of traffic on the street.
(Code 1961, § 18-4)

Sec. 26-15. Removing dirt from streets.

It shall be unlawful to remove sand, dirt, loam, sod, clay, gravel or other materials from any of the streets, alleys or sidewalks; provided, that this section shall not apply to lot owners who are repairing or constructing sidewalks under the specifications prescribed by the city.
(Code 1961, § 18-6)

Sec. 26-16. Drainage across sidewalks prohibited.

(a) It shall be unlawful to pour or allow drainage from lots or premises abutting on any sidewalk to be poured on the surface of said sidewalk, surface drainage following unusually hard rains excepted. It shall be unlawful to run, or allow to run, by pipes or otherwise, any sewage, water or liquids of any kind upon any street or sidewalk within the city.

(b) Subsection (a) shall not apply to rainwater properly conducted across the sidewalk to the gutter of the street.
(Code 1961, § 18-8)

Sec. 26-17. Alleys in fire limits to have storm sewers.

Every alley within the fire limits of the city, as defined in section 6-23, shall be provided with storm sewers by the owners of such alleys or by persons having the permanent right to use or right-of-way over such alleys. Such storm sewers shall be connected to a proper perimeter drain, or other approved drain, and shall provide a suitable drain underneath the sidewalk to carry the water to the gutter or a storm sewer main and shall be so constructed and maintained as to prevent the flow of water onto the sidewalk abutting such alley. Plans and specifications for such storm sewers shall be submitted to and approved by the city manager before construction is commenced.
(Code 1961, § 18-68)

Sec. 26-18. Drainage at motor vehicle service establishments.

Every place of business at which motor vehicles are stored, parked, serviced, repaired, or washed shall have arrangements for the disposal of all water, mud, grease, and other waste on the premises and shall provide such place of business with necessary perimeter drains installed and maintained in such manner as to prevent the flow of water, mud, grease and other waste onto any sidewalk. Plans and specifications for the improvements mentioned in this section shall be submitted to and approved by the city manager or his/her/their designee before construction is commenced. The requirements of this section shall apply to all new construction and shall likewise apply when major improvements are made to existing structures or to the area surrounding existing structures, and to replacement of existing structures. The requirements also apply when the driveways into existing places of business are in need of repair or replacement.
(Code 1961, § 18-67; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-19. Writing on or painting streets or sidewalks.

(a) It shall be unlawful for any person to write, paint or place upon any of the streets or sidewalks of the city any words, letters, numbers, pictures or advertisements of any kind. This subsection shall not apply to official traffic devices placed there by local authorities.

(b) Under the standards established below, the painting of house numbers on street curbs in residential areas will be permitted. The owner of a residence may apply for a permit from the building inspector for the purpose of painting his/her/their house number on the street curb immediately adjacent to his/her/their property. Permits will be issued for the purpose of painting house numbers on city-maintained street curbs under the following conditions:

(1) Only the house number, not the complete street address may be painted.

(2) The numbers shall not exceed four (4) inches in height.

(3) The numbers must be painted by the use of a template, no freehand lettering being allowed.

(4) The type of numbers shall be Gothic (single-stroke and vertical) and may not be Old English, Old Roman or anything other than numerical numbers.

(5) The paint shall be an approved durable paint and shall be restricted to black and white colors only.

(Code 1961, § 18-9; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-20. Reserved.

Editor's note—Section 3 of Ord. No. 93-77, adopted July 19, 1993, repealed § 26-20, pertaining to selling on streets or sidewalks prohibited; sale from vehicles, as derived from § 18-11, of the 1961 Code, Ord. No. 89-145, § 1, adopted Nov. 2, 1989.

Sec. 26-21. Taking of photographs prohibited.

It shall be unlawful to use the streets or sidewalks of the city for the purpose of operating a photographer's business whereby photographs are snapped or made of passersby and a card, ticket, tag, emblem or other thing is given to any person who may by the payment of a sum of money obtain a photograph or picture.

(Code 1961, § 18-14)

Sec. 26-22. Public meetings on streets and sidewalks; prohibited areas designated.

An individual may conduct a public meeting or deliver an address on a street or sidewalk of the city subject to the following conditions to ensure safety:

(1) That the speaker is located a minimum of fifty (50) feet away from a street corner.

(2) That the speaker not interfere with the orderly movement of vehicular and pedestrian traffic.

(3) That the speaker not become so loud in his/her/their speech nor violent in his/her/their movements as to annoy or frighten persons using the streets or sidewalks.

(Ord. No. 17-7, § 1, 1-17-17)

Editor's note—Ord. No. 17-7, § 1, adopted Jan. 17, 2017, amended § 26-22 in its entirety to read as set out herein. Former § 26-22 pertained to permits for conducting public meetings and derived from the Code of 1961, § 18-12.

Sec. 26-23. Entrance to parking lots to be kept clean.

It shall be the duty of the owner or occupant of any place of business, using or making available for others to use any off-street parking lot or facility, to keep the street and sidewalk entrances to such lot or facility clean and free from dirt, gravel and mud. In addition to other remedies, the city manager or the person designated by the city manager may, in the event that weather conditions are such as to cause vehicles using such lots or facilities to deposit dirt or mud on the street or sidewalk in such quantity as to cause damage to the surface of the street or sidewalk or to make the street or sidewalk unfit or dangerous for use by pedestrians or other vehicles, cause such entrance to be closed until conditions warrant the reopening thereof.

(Code 1961, § 18-15)

Sec. 26-24. Permit for planting, pruning, etc.

Any person desiring to plant, rearrange or remove any planting upon or within any street right-of-way within the city shall, prior to such planting, rearranging or removing, secure a written permit therefor from the city manager. The written permit shall designate the location, character of proposed planting or removal or the nature of the proposed works. No permit shall be issued for any planting in that part of a street lying between the edge of a roadway, or curbline, and the adjacent property line.

(Code 1961, § 18-16)

Charter reference—Tree protection, § 5.66.

Sec. 26-25. Removal of barricade prohibited.

It shall be unlawful to remove or cause to be removed any barricade placed by authority of the city upon any street or sidewalk. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).

(Code 1961, § 18-28; Res. No. 048-24, § 1, 2-20-24)

Sec. 26-26. Parking lot operators to provide curb, fence or other obstruction.

The operators of every parking lot on which automobiles are parked or stored, shall provide a suitable curb, fence, or other obstruction abutting the sidewalk portion of such lot which will effectively prevent automobiles from being driven across sidewalks at any point other than regular authorized driveways.
(Code 1961, § 18-66)

Sec. 26-27. Street flushing and street sweeping fees.

In instances where street flushing or sweeping is necessary in certain areas due to construction activities in order to keep the street clean and free from dirt, gravel and mud, the city shall provide street flushing or sweeping services, and there shall be a fee charged to the general contractor in control of the construction site in the amount of two hundred dollars ($200.00), plus fifty dollars ($50.00) per hour or part thereof in excess of one (1) hour. Double rates apply on holidays and non-business hours.
(Ord. No. 93-48, § 1, 6-3-93; Ord. No. 07-121, § 1, 6-26-07)

Secs. 26-28—26-40. Reserved.

ARTICLE II. RESERVED*

Secs. 26-41—26-60. Reserved.

ARTICLE III. SIDEWALK OR DRIVEWAY CONSTRUCTION OR REPAIRS

DIVISION 1. GENERALLY

Sec. 26-61. Compliance with chapter.

All sidewalks and driveways hereafter laid in the city on street right-of-way by property owners shall conform to the provisions of this chapter. Any sidewalk or driveway constructed according to the provisions of this chapter shall constitute a standard sidewalk or driveway.
(Code 1961, § 18-29)

Sec. 26-62. Stop work orders.

In case of the failure of the contractor of the property owner laying the sidewalk to conform to the requirements of this chapter, the inspector or other official of the public works department exercising supervision over the work shall have authority to require the immediate stopping of the work. An appeal from any requirement of such inspector or other official may be taken to the city manager.
(Code 1961, § 18-36)

Sec. 26-63. Removal of defective work.

The city inspector or other official exercising supervision over the work shall have authority to and shall require the removal of any sidewalk or portion thereof laid under the provisions of this chapter which does not conform to the requirements of this chapter. Both the property for which the sidewalk is being laid and the contractor therefor shall be liable for the removal of such defective sidewalk or portion thereof. No property owner or contractor shall neglect or refuse to remove such defective sidewalk or portion thereof and to replace the same with sidewalk constructed according to the requirements of this chapter.
(Code 1961, § 18-37)

Sec. 26-64. Certificate of completion.

Upon the completion and final inspection of any sidewalk laid under the provisions of this chapter, if the same is approved, the city manager shall issue to the property owner for whom the sidewalk was built a certificate showing such approval if requested by the property owners. No such certificate shall exempt such property owner or his/her/their contractor, if any, for liability for the removal of any portion of such sidewalk subsequently found to be defective.
(Code 1961, § 18-39; Ord. No. 20-163, § 3, 12-15-20)

*__Editor's note—__Ord. No. 11-112, § 1, adopted June 21, 2011, repealed Art. II, §§ 26-41—26-43, which pertained to building numbering and derived from the Code of 1961, §§ 18-17—18-19.

Sec. 26-65. Special assessments.

(a) There is established a sidewalk construction account which shall be known as the "operating sidewalk construction fund," as distinguished from the present bond assessment accounts receivable. The fund is perpetual in its nature and shall be operated in the manner provided in this section.

(b) The council shall determine what streets or portions of streets and which side of streets shall be provided with sidewalks, and shall likewise determine the amount of costs incident to such sidewalk construction which shall be borne by the city and the amount of such costs which shall be borne by the abutting property owners; however, curb and gutter improvements shall be exempt from any assessment if the primary purpose of the curb and gutter installation is the construction of an adjacent sidewalk or sidewalks.

(c) In no case shall the amount to be borne by the property owner exceed three dollars ($3.00) per foot for five-foot sidewalk construction and five dollars ($5.00) per foot for driveway construction. The maximum costs shall include installation of sidewalk or driveway and any excavation or removal of trees or drainage that may be required. Any adjustment to steps or retaining walls or other structures in conflict with the sidewalk shall be replaced by the owner or assessed against the property at actual cost.

(d) The assessments shall be payable in five (5) equal annual installments, which installments will bear interest at the rate of six (6) percent per annum from the date of confirmation of the assessment roll; provided, that any such assessment may be paid in full in cash without the addition of interest within thirty (30) days from the date of publication of the notice of the confirmation of the assessment roll. The first of the installments with interest thereon shall become due and payable thirty (30) days after the publication of the notice hereinabove required to be published, and one (1) subsequent installment with interest thereon shall be due and payable on the same day of the same month of each successive year until the assessments have been paid in full.

(e) Any funds advanced by the city for sidewalk construction from sources other than bonds shall be carried in the account set up by this section, and the payment of any assessments, together with interest on such assessments, levied for sidewalk construction where bond funds are not involved shall be credited to the account set up by this section. Such funds shall be used only for sidewalk construction or repair purposes. Any funds appropriated for sidewalk construction purposes in the city budget shall likewise be credited to the account set up by this section and shall be used only for sidewalk construction or repair purposes.

(Code 1961, § 18-26; Ord. No. 11-21, § 2, 2-1-11)

Charter reference—Special assessments, § 6.131 et seq.

State law reference—Special assessments, G.S. § 160A-216 et seq.

Sec. 26-66. Specifications and requirements for sidewalks and driveways.

All sidewalks and driveways shall be laid and constructed under the specifications and requirements as set out by the city manager and on file in the office of the city clerk, which specifications and requirements are hereby adopted and made a part of this chapter as if set out in full.

(Code 1961, § 18-30)

Sec. 26-67. Protection when work is stopped.

When work on a sidewalk is stopped before being completed, a board shall be placed at right angles to the sidewalk for the full depth of the concrete, such board to be used as a header for the fresh concrete until the work is resumed, when the board shall be removed.

(Code 1961, § 18-35)

Sec. 26-68. Cleaning up.

Immediately after the completion of sidewalk construction or repairs, the owner or his/her/their contractor shall remove all unused material, refuse and dirt placed by him/her/them on or in the vicinity of the work or resulting from its prosecution. All parking and grass plots adjacent

to the portion of such sidewalk where such work was done shall be evenly graded and left in a neat and workmanlike condition.
(Code 1961, § 18-38; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-69. Removal of unnecessary driveways.

All driveways serving property the use of which has been changed to purposes not requiring driveway facilities, and all driveways now serving business property as a means of ingress and egress, when changed to a use not requiring driveway facilities, shall be removed by the owner of the property, the curbing reset and the sidewalk relaid to the correct grade. In the event the property owner fails to make such change within thirty (30) days after the change in use of the property, the city shall, thirty (30) days after final notice to the property owner by the city manager, proceed with the resetting of the curb and the relaying of the sidewalk. The cost thereof shall be assessed against the property.
(Code 1961, § 18-40)

Sec. 26-70. Driveways to be carried to property line if curb is removed.

Whenever a driveway location can be ascertained before the curb and gutter are laid on new construction, the curb will be dropped at the location desired subject to the restrictions of this chapter. It shall be the responsibility of the property owner to notify the city manager, in writing, the location of such driveways. In the event that a driveway is desired where the curb is existing, the property owner or contractor must obtain a permit to remove the curb and build the driveway as provided in section 26-66 and the driveway must then be continued to the property line.
(Code 1961, § 18-41)

Sec. 26-71. Cross access.

(1) *Description and intent.*

(a) Cross-access is an easement or service drive providing vehicular access between two (2) or more contiguous sites/land-uses so that motorists and/or pedestrians do not need to reenter the public street system to gain access to an adjacent site/land-use, or to provide safer vehicular movements as determined by the transportation director.

(b) Cross-access between adjacent properties reduces vehicular conflicts between motorists on the main street and motorists entering and leaving driveways. Reduced traffic conflicts result in fewer accidents and improved traffic flow on the main street. The intent of this section is to provide for cross-access between land-uses that front major/minor thoroughfares so that patrons leaving one (1) land-use may access adjoining land-uses without having to reenter a busy public street system.

(c) It is not the intent of this section to reduce the number of driveways beyond what is already allowed in other sections of the driveway manual.

(2) *Cross-access is required in the following circumstances:*

(a) All new commercial, industrial, and office developments, or additions to existing developments of over three thousand (3,000) square feet of gross floor area; all uses of land without buildings involving more than forty thousand (40,000) square feet; all multi-family developments; and all nonresidential subdivisions, including group developments and integrated multiple use developments that front thoroughfares and collectors must be designed to provide cross-access to above mentioned developments. Any instance where a traffic signal is involved, cross access shall be provided.

(b) Review and approval of cross access shall be the responsibility of the technical review committee. Request for modification of this requirement may be considered by the transportation director.

(3) *Cross-access not required.* Cross-access is not required when the subject adjacent properties have one (1) or more of the following conditions or barriers:

(a) the properties do not have common frontage along the same street;

(b) significant topography differences in existing or proposed conditions;

(c) significant natural features;

(d) vehicular safety factors;

(e) existing cross-access provisions;

(f) other safety and security factors; or

(g) existing infrastructure obstructions.

(4) *Easement recordation.* A cross-access easement must be recorded on the final plat for property involving a subdivision, or recorded by separate instrument when no plat is proposed.

(5) *No obstruction of access.* All cross access must be built to the property line (or lease line). An accessway may not be blocked off, parked in, or otherwise "obstructed" unless approved by the transportation director.

(6) *Parking requirement relief.* Where a required cross-accessway eliminates otherwise required parking spaces, parking space requirements may be reduced by the number of spaces lost to the provision of the cross-accessway.

(7) *Perimeter landscaping requirement relief.* Where a required cross-accessway eliminates otherwise required perimeter landscape planting area, perimeter tree and shrub requirements may be reduced by the length of the perimeter affected by the provision of the cross-accessway.

(8) *Joint maintenance.* When a cross-access easement is created to serve more than one (1) lot, an owners association or binding contract is required for the purpose of maintenance.

(9) *Property owner cooperation.* Applicants are not required to seek cooperation or permission from the adjacent property owner.
(Ord. No. 21-155, § 1, 11-1-21)

Secs. 26-72—26-85. Reserved.

DIVISION 2. PERMIT

Sec. 26-86. Required.

No sidewalk or driveway shall be laid, except under contract with the city, without a permit therefor.
(Code 1961, § 18-31)

Sec. 26-87. Application.

Before any sidewalk or driveway on any street is laid by any property owner, the contractor therefor shall file with the permit clerk a written application for the construction of such sidewalk or driveway. Such application shall show the name of the owner of the property abutting such proposed sidewalk or driveway, the location and extent thereof, and the name of the contractor who proposes to construct it.
(Code 1961, § 18-33)

Sec. 26-88. Persons eligible.

No permit for the construction of any sidewalk or driveway shall be issued except to a person bonded as required by ordinance.
(Code 1961, § 18-32; Ord. No. 15-073, § 1(Exh. D), 6-16-15)

Sec. 26-89. Fee.

Before the permit required by this division is issued, there shall be paid by the contractor a fee therefore as follows:

(1) For each driveway, eighty-five dollars ($85.00).

(2) For a sidewalk:

a. The minimum charge is eighty-five dollars ($85.00).

b. If the sidewalk has an area of over one hundred seventy (170) square yards, the fee is fifty cents ($0.50) per square yard.

(Code 1961, § 18-34; Ord. No. 94-18, § 1, 4-18-94; Ord. No. 13-91, § 1, 6-18-13; Ord. No. 14-084, § 1, 6-17-14; Ord. No. 25-102, § 1, 6-17-25)

Secs. 26-90—26-105. Reserved.

ARTICLE IV. EXCAVATIONS

DIVISION 1. GENERALLY

Sec. 26-106. Scope.

This article shall apply to the cutting of streets and sidewalks for any purpose other than the laying of water or sewer connections, the cutting of streets for such connections being governed by the provisions of chapter 29.
(Code 1961, § 18-47; Ord. No. 00-223, § 1, 12-5-00)

Secs. 26-107—26-120. Reserved.

DIVISION 2. PERMIT

Sec. 26-121. Required.

(a) It shall be unlawful to make any opening in any street or sidewalk of the city without a permit therefor issued by the city manager or his/her/their designee. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). No permit is required where the work is performed under a contract with the city but in the event that it becomes necessary to such work that a sidewalk or street must be wholly or partially obstructed, the person shall notify the city manager or his/her/their designee, the public works department and the police department at least two (2) hours before obstructing the sidewalk or street, unless prevented by a sudden emergency.

(b) As a condition to the issuance of a permit for any land disturbing activity which is in, or would impact upon, a city owned or maintained right-of-way, the applicant shall be responsible for restoration of the disturbed areas to current written city policies and procedures. The permit holder shall indemnify and hold the city harmless from any damage or loss incurred by the city or others as a result of injury to person or property whether caused by him/her/them, his/her/their employees, agents or contractors including but not limited to breakage of lines, conduits, or utilities of any sort, sink holes, and cracked pavement. Such permit holder shall repair any such damage caused or reimburse the city for total costs of repair in the event the city causes the repair either involuntarily or at its election.

(c) In the event the actions of the permit holder result in a hazardous materials emergency in accordance with section 10-31 of the Greensboro Code of Ordinances, the permit holder shall also be responsible for all costs associated with such hazardous materials response whether located within or outside the city's right-of-way.
(Code 1961, § 18-49; Ord. No. 00-224, § 1, 12-5-00; Ord. No. 20-163, § 3, 12-15-20; Res. No. 048-24, § 1, 2-20-24)

Sec. 26-122. Application.

Any person desiring to make any opening in any street or sidewalk shall make written application therefor, which application shall show the location of the proposed opening, the purpose thereof and the approximate number of square yards of surface to be cut. Such application shall be accompanied by the fee required by section 26-123 [any fees required by the city].
(Code 1961, § 18-50)

Note—See editor's note, section 26-123.

Sec. 26-123. Reserved.

Editor's note—Ord. No. 00-223, § 1, adopted December 5, 2000, repealed former section 26-123 which pertained to fees required for repairing street, driveway and sidewalk openings.

Secs. 26-124—26-135. Reserved.

ARTICLE V. UTILITY COMPANY POLES, CONDUITS, ETC.*

Sec. 26-136. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Company includes any corporation, partnership or person.

*__Charter reference—__Utility easements, § 4.128(b).

Line of poles means a single set of poles set the usual distance apart along any street.
(Code 1961, § 18-73)

Sec. 26-137. Permit for placing utilities in streets.

No electric, telegraph, or telephone poles or conduits, or gas conduits shall be placed on or in any street in the city without a permit therefor obtained from the city. No permit shall be issued for the erection of poles on a street where there is already a line of poles on such street for the purpose of supporting electric, telegraph or telephone wires.
(Code 1961, §§ 18-74, 18-75)

Sec. 26-138. Removal on order of city.

When ordered by the city manager or his/her/their designee, a public utility company shall, at its own expense, remove or relocate any of its poles, wires, pipes, conduits, or other structures, the removal or relocation of which is made necessary by the widening, relocating, regrading, or otherwise improving the streets, or which is made necessary in order to provide for the installation of city water mains, sanitary sewers, storm sewers, or traffic-control devices.
(Code 1961, § 18-74; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-139. Liability of city for damages to utility lines in street.

The city shall not be responsible for any damages to utility company lines in the street area.
(Code 1961, § 18-74)

Sec. 26-140. Separate lines of wires on same poles allowed by agreement.

Whenever any electric, telephone or telegraph company shall desire to place wires along any street upon which it does not have a line of poles, and there are poles along said street owned by another company, then such companies may maintain their wires upon the same poles. If an agreement cannot be reached between the company owning the line of poles on any street and another company desiring to use such poles, then the companies may submit the question of compensation and other pertinent matters in controversy to three (3) disinterested person for arbitration, or they may submit the matter to the council for determination.
(Code 1961, § 18-76)

Sec. 26-141. Care and inspection of poles.

It shall be the duty of the owner of all poles supporting electric, telephone or telegraph wires in the city to keep the poles in safe condition and for that purpose to inspect the same once every three (3) months.
(Code 1961, § 18-77)

Sec. 26-142. Use of poles and underground conduits for city purposes.

One (1) duct in all underground conduit systems shall be provided for the city free of charge for the city's police and fire alarm telegraph system and traffic-control system when required, and the city shall have the use of any and all poles on streets for the same purpose.
(Code 1961, § 18-78)

Sec. 26-143. Metal poles required in certain streets.

Only metal poles for the support of electric, telephone or telegraph wires shall be placed upon the following streets:

Battleground Avenue, from Greene Street to Lindsay Street.

Bellemeade Street, from Eugene Street to Elm Street.

Church Street, from Washington Street to Summit Avenue.

Commerce Place, from Market Street to Bellemeade Street.

Davie Street, from South Elm Street to Summit Avenue.

Elm Street, from Lee Street to Smith Street.

Eugene Street, from Lindsay Street to McGee Street.

Exchange Place, from Federal Place to Greene Street.

Federal Place, from Washington Street to Spring Garden Street.

Friendly Avenue, from Eugene Street to Murrow Boulevard.

Greene Street, from Smothers Place to Lindsay Street.

Lindsay Street, from Eugene Street to Church Street.

Market Street, from Cedar Street to Murrow Boulevard.

McGee Street, from Eugene Street to Asheboro Street.

Mebane Street, from Davie Street to Church Street.

Murrow Boulevard, from Friendly Avenue to Market Street.

Smothers Place, from Elm Street to Spring Garden Street.

Spring Garden Street, from Smothers Place to Federal Place.

Sternberger Place, from Eugene Street to Greene Street.

Summit Avenue, from Elm Street to Church Street.

Sycamore Street, from Blandwood Avenue to Eugene Street.

Sycamore Street, from Greene Street to Davie Street.

Washington Street, from Eugene Street to Church Street.

(Code 1961, § 18-79)

Secs. 26-144—26-155. Reserved.

ARTICLE VI. PARADES

DIVISION 1. GENERALLY

Sec. 26-156. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Parade means any parade, march, ceremony, or procession of any kind, in or upon any street, sidewalk, or other public place owned or under the control of the city.

Parade permit means a written authorization as required by this article.
(Code 1961, § 12-90(a))

Sec. 26-157. Exceptions.

(a) *Generally.* This article shall not apply to:

(1) Funeral processions supervised by a licensed mortuary.

(2) Any governmental agency acting within the scope of its functions.

(3) Picketing on the sidewalks.

(b) *Individual residence picketing prohibited.* Provided, in order to promote residential privacy and tranquility, it shall be unlawful for any person to picket solely in front of, before or about the residence or dwelling of any individual.
(Code 1961, § 12-90(b)(1); Ord. No. 90-144, § 1, 11-19-90)

Sec. 26-158. General responsibility of participants and persons in charge.

(a) Participants in a parade are required to abide by this article and the terms of the parade permit. Willful violation thereof is unlawful. Pursuant to G.S. § 14-4, a willful violation of this chapter, or any part thereof, shall be a class 3 misdemeanor and may also be enforced through the issuance of a civil penalty of a maximum of

two hundred fifty dollars ($250.00) as provided by G.S. 160A-175(f). This subsection will not apply to section 26-161(c).

(b) The person designated in the application as responsible for the physical conduct of the parade shall be responsible for monitoring the conduct of the participants in the parade. Upon actual notice of any violation, given to the responsible person by a law enforcement officer on the scene of said parade, such person shall make immediate bona fide attempts to correct the violation. It shall be unlawful for such responsible person to refuse to make such bona fide attempts to correct the violation. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor and a fine of fifty dollars ($50.00).

(c) The person designated by the applicant as the person responsible for the physical conduct of the parade shall be physically present and accept responsibility for compliance with any and all terms of the parade permit as set forth in this section.
(Code 1961, § 12-90(e)(3), (g); Res. No. 048-24, § 1, 2-20-24)

Sec. 26-159. Times allowed.

No person may conduct or otherwise participate in any parade except during daylight hours.
(Code 1961, § 12-90(b))

Sec. 26-160. Route.

(a) Every parade shall follow the route designated and approved by the city manager.

(b) Persons who otherwise meet the requirements for a parade permit and who receive a parade permit are entitled to exercise their First Amendment rights in all areas of the city; however, in order to better protect such participants and the citizens of the city and the property of such citizens, and to facilitate the flow of the parade and of traffic in general, certain streets and thoroughfares in all areas of the city have been designated as routes which the participants may use for the parade. These streets and thoroughfares are designated in schedule A which is hereby adopted and placed on file as a part of the official records in the office of the city clerk. The applicant who secures a parade permit shall request the area of the city through which he/she/they wishes to conduct the parade in accordance with those streets set forth in schedule A. After the applicant has made known the general area in which he/she/they wishes to conduct the parade, the city manager shall approve the specific streets and thoroughfares that are to be used for the parade and the route of the parade. The city manager shall make this determination from the schedule in each case.

(c) The applicant may request a route deviation from those streets listed in schedule A. The applicant shall set forth the basis or reasons for the necessity of the deviation in the written request. The city manager shall approve a deviation in the route if he/she/they finds that the conditions set forth in paragraph (1) or (2) below are met:

(1) There will be reasonable and safe access along the deviated route. There will be no impeding pedestrian or traffic congestion in the area because of the numbers of participants and numbers of residents living within the area. The deviated route does not present a clear danger to children in congested residential areas based upon lack of sidewalks, the narrow width of the streets and the numbers of participants and/or motor vehicles involved. After considering the distance to be traveled, duration of the parade, number of intersections which will be crossed during the parade, accessibility of emergency vehicles, availability of sidewalk areas to accommodate pedestrian traffic, and the number of participants, spectators and residential citizens living adjacent to the route, adequate provision can be made for the safe and orderly movement of the parade and of other traffic, pedestrian and vehicular, contiguous to the deviated route.

(2) Simultaneously with the filing of the application by the applicant, a petition signed by a majority of the residents whose dwellings immediately abut the

proposed route deviation shall be submitted on a form provided by the city requesting such route deviation.

(Code 1961, § 12-90(d)(1), (d)(2), (e)(5); Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-161. Weapons.

(a) No firearms or dangerous weapons of any kind, as defined by state law, may be possessed contrary to G.S. 14-277.2. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor and a fine of fifty dollars ($50.00).

(b) Subsection (a) does not apply to the following persons while acting lawfully and within the scope of their duties and authority:

(1) Law enforcement officers.

(2) Officers and soldiers of the armed forces, militia, and National Guard.

(3) Students of military science in an accredited program.

(4) Park rangers, animal control officers.

(Code 1961, § 12-90(e)(1); Res. No. 048-24, § 1, 2-20-24)

State law reference—Weapons at parades prohibited, G.S. § 14-277.2.

Sec. 26-162. Signs.

No hand-carried signs or poster transported in such parade shall be of greater density than eight-ply .030-inch thickness cardboard. No support for such sign or poster shall be of a metallic substance nor thicker than one (1) by three-fourths (¾) inches. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor and a fine of fifty dollars ($50.00).

(Code 1961, § 12-90(e)(2); Res. No. 048-24, § 1, 2-20-24)

Cross reference—Signs at public events, § 3-110.

Sec. 26-163. Interference.

No person shall unreasonably hamper, obstruct, impede or interfere with any parade assembly or with any person, vehicle, or animal participating or used in a parade. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).

(Code 1961, § 12-90(e)(6); Res. No. 048-24, § 1, 2-20-24)

Secs. 26-164—26-175. Reserved.

DIVISION 2. PERMIT

Sec. 26-176. Required.

It shall be unlawful for any person to engage in, participate in, aid, form or start any parade unless a permit shall have been obtained from the city manager. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).

(Code 1961, § 12-90(b); Res. No. 048-24, § 1, 2-20-24)

Sec. 26-177. Application.

(a) A person seeking issuance of a parade permit shall file an application with the city manager on forms provided by the city.

(b) An application for a parade permit shall be filed with the city manager not less than fifteen (15) calendar days before the time when it is proposed to conduct the parade. A permit may be issued if filed less than fifteen (15) calendar days before the time for commencement of the parade when the city manager finds that: There is no conflict in schedule with some other event and that the time for filing is sufficient to prepare for the parade pursuant to the standards set forth in section 26-179.

(c) The application for a parade permit shall set forth the following information:

(1) The name, address and telephone number of the person seeking to conduct such parade.

(2) If the parade is proposed to be conducted for, on behalf of, or by an organization, the name, address and telephone number of the headquarters of the organization, and of the authorized and responsible heads of such organization.

(3) The name, address and telephone of the person who will be the parade chairperson and who will be responsible for its conduct.

(4) The date when the parade is to be conducted and the hours when such parade will start and terminate.

(5) The proposed route to be traveled, the starting point, and the termination point.

(6) The approximate number of persons who, and animals and vehicles which, will constitute such parade; the type of animals and description of the vehicles.

(7) The location by streets and designation by time of an assembly area of such parade.

(8) If the parade is designed to be held by, and on behalf of, or for any person other than the applicant, the applicant for such permit shall file with the city manager a communication in writing from the person proposing to hold the parade, authorizing the applicant to apply for the permit in his/her/their behalf.

(9) The person or persons to be in charge of the activity and who will accompany it and carry the permit at all times.

(10) Any additional information which the city manager shall find reasonably necessary to a fair determination as to whether a permit should be issued.

(d) The application shall be accompanied by the payment of a processing fee in the amount of twenty-five dollars ($25.00).
(Code 1961, § 12-90(c); Ord. No. 89-41, § 1, 3-6-89; Ord. No. 91-72, § 1, 6-17-91; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-178. Waiver agreement.

The applicant for a parade permit shall file with the city manager a waiver signed by said applicant releasing and saving the city and its employees harmless for any claims, actions, and lawsuits, arising out of the conduct of the parade, excepting injuries or damages proximately caused by the city.
(Code 1961, § 12-90(e)(4))

Sec. 26-179. Issuance standards.

The city manager shall issue a parade permit when, from a consideration of the application and from such other information as may otherwise be obtained, he/she/they finds that:

(1) Adequate provision can be made for the safe and orderly movement of the parade and of other traffic, pedestrian and vehicular, contiguous to its route.

(2) Adequate provision can be made for police protection which will not require diversion of so great a number of police officers of the city to police properly the lines of movement and the areas contiguous thereto as to prevent normal police protection to the city.

(3) The applicant for the parade permit has agreed to abide by the standards set forth in this article which are necessary measures to promote the safety and welfare of the community.

(Code 1961, § 12-90(d)(3); Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-180. Notice of rejection.

The city manager shall act upon the application for a parade permit within seventy-two (72) hours, excluding weekends, after the filing thereof. If the city manager disapproves the application he/she/they shall notify the applicant, stating the reason for his/her/their denial of the permit.
(Code 1961, § 12-90(f); Ord. No. 20-163, § 3, 12-15-20)

Secs. 26-181—26-195. Reserved.

ARTICLE VII. STREET SHOWS, EXHIBITIONS, ETC.

DIVISION 1. GENERALLY

Sec. 26-196. Definition.

In this article "exhibition show" means an exhibition or show where merchandise, wares or other tangible items are displayed for show

and/or sale either out-of-doors or in a building occupied in whole or part for a period not to exceed one (1) week.
(Code 1961, § 12-90.1(A); Ord. No. 15-073, § 1(Exh. D), 6-16-15)

Sec. 26-197. Sponsor of the show to be nonprofit organization.

No permit shall be issued under this article unless the exhibition show is totally sponsored by a nonprofit organization conducting the exhibition show for charitable, cultural, religious or civic purposes. No sale of arts, crafts or other tangible items shall be permitted within the street or sidewalk area except under the auspices and control of the organization receiving the permit. Such organization shall be fully responsible for compliance with rules, regulations and ordinances of the city with respect to the exhibition show being conducted pursuant to a permit issued.
(Code 1961, § 12-90.1(B))

Sec. 26-198. Times allowed.

No person may conduct or otherwise participate in an exhibition show except between 7:00 a.m. and 11:00 p.m.:

(1) Provided however, that set-up and/or break-down activities may occur outside these hours subject to the restrictions concerning unnecessary loud, and disturbing noises as set forth in section 18-41.

(2) Provided further that the city manager may extend the times allowed by this section pursuant to the following criteria:

a. The proximity of the show to residential structures;

b. The nature of the use and zoning of the area;

c. Nature of any noise or traffic to be produced;

d. The need of city streets or property for other uses;

e. Availability or fire and police protection;

f. Availability of sanitation and clean-up for the extended hours;

g. Other activities or events in the vicinity.

(3) The extension of hours may be upon such reasonable terms and conditions as determined by the manager.

(Code 1961, § 12-90.1(A); Ord. No. 04-25, § 1, 2-17-04; Ord. No. 05-178, § 1, 8-16-05)

Sec. 26-199. Duration.

Where the exhibition show is to be conducted pursuant to a permit issued under this division, such exhibition show may not extend for more than seven (7) successive days without an intervening period of at least one (1) week.
(Code 1961, § 12-90.1(F))

Sec. 26-200. Traffic regulations.

It shall be unlawful to operate or leave parked any motorized vehicle of any type, including motorcycles and minicycles, upon any street or public vehicular area wherein an exhibition show is conducted pursuant to permit issued under this article without the express permission of the person in direct charge of the exhibition show. Pursuant to G.S. § 14-4(b), a violation of this section shall result in an infraction with a fine of twenty-five dollars ($25.00).
(Code 1961, § 12-90.1(G); Res. No. 048-24, § 1, 2-20-24)

Secs. 26-201—26-210. Reserved.

DIVISION 2. PERMIT

Sec. 26-211. Required.

No person shall engage in, participate in, aid, form or commence any exhibition show in or upon any street, sidewalk or other public place in the city unless a permit shall have been obtained from the city manager. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).
(Code 1961, § 12-90.1(A); Res. No. 048-24, § 1, 2-20-24)

Sec. 26-212. Application.

(a) A person seeking issuance of a permit for an exhibition show shall file an application with the city manager on forms provided by the city.

(b) An application for an exhibition show permit shall be filed with the city manager not less than seventy-two (72) hours excluding weekends and holidays, before the time when it is proposed to conduct the exhibition show. The application for an exhibition show shall set forth the following information:

(1) The name, address and telephone number of the organization applying for a permit.

(2) The names and addresses of its principal officers and management.

(3) The purpose for which any receipts derived from such exhibition show are to be used.

(4) The name and address of the person or persons who will be in direct charge of the exhibition show.

(5) An outline of the type of exhibition show and the hours of operation.

(6) The amount of any special wages, fees, commissions or expenses to be expended or paid to anyone in connection with the exhibition show.

(7) A full statement of the character and extent of the charitable, religious, educational or civic work being done by the applicant organization within the city.

(8) The name and portions of the street or streets to be closed for the purpose of displays and conducting the exhibition show or the specific name and area of any city park or other public place in which the exhibition show is to be conducted.

(9) Any additional information which the city manager shall find reasonable and necessary to a fair determination as to whether a permit should be issued.

(Code 1961, § 12-90.1(C))

Sec. 26-213. Standards for issuance.

The city manager shall issue a permit for exhibition show upon a finding that the application meets the qualifications in this article, that the exhibition will not unduly inconvenience or interfere with the orderly movement of traffic in the area involved, that property owners in the area are not unduly deprived of access to their property, that the exhibition will not unduly interfere with normal business activity within the area of the street occupied by the exhibition; and that emergency vehicles will not be denied access to any person or property, and that adequate cleanup arrangements have been made. In addition, if the exhibition show is to be located in a park or other public place, the city manager must be satisfied that adequate provisions and recommendations can be made for conducting the exhibition show.

(Code 1961, § 12-90.1(D))

Sec. 26-214. Notice of rejection or withdrawal of permit.

The city manager shall act upon the application for an exhibition show permit within forty-eight (48) hours (excluding weekends and holidays) after the filing thereof. If the city manager disapproves the application, he/she/they shall notify the applicant stating the reasons for his/her/their denial of the permit. A permit issued may be withdrawn in the event of any violation of conditions, misstatement of fact in the application or in instances where the health or safety of the citizens will be adversely affected.

(Code 1961, § 12-90.1(E); Ord. No. 20-163, § 3, 12-15-20)

Secs. 26-215—26-229. Reserved.

ARTICLE VIII. SELLING ON STREETS AND SIDEWALKS

DIVISION 1. GENERALLY

Sec. 26-230. Selling on streets or sidewalks prohibited; sale from vehicles.

(a) It shall be unlawful to display, store, sell or offer for sale any goods, wares, merchandise or any other tangible items on any street or sidewalk

within the city. Sidewalks shall mean any portion of property maintained by the city for pedestrian traffic. Except that pursuant to division 2 of this chapter, pushcart mobile food vendor sales shall be permitted on sidewalks adjacent to and upon property zoned central business,"CB", provided a permit is obtained as required.

(b) Farm produce, dairy products, ice cream (which shall include yogurt, gelato, and similar items), flowers, wood for fuel, printed matter, T-shirts, jewelry, clothing and pictures may be sold from vehicles lawfully parked on a street under the following conditions:

(1) That such sales shall not be made on:

Aycock Street.
Battleground Road.
Bellemeade Street.
Benbow Road.
Benjamin Parkway.
Bennett Street.
Bessemer Avenue.
Burlington Road.
Church Street.
Clifton Road.
College Road.
Cone Boulevard.
Cornwallis Drive.
Creek Ridge Road.
Davie Street.
Dolley Madison Road.
Dudley Street.
Edgeworth Street.
Edwardia Driver.
Elm Street.
Elm-Eugene Street.
English Street.
Eugene Street.
Fisher Avenue.
Fleming Road.
Florida Street.
Fordham Boulevard (I-40).
Franklin Boulevard.
Freeman Mill Road.
Friendly Avenue.
Greene Street.
Groometown Road.
High Point Road.
Hilltop Road.
Holden Road.
Industrial Avenue.
Lake Jeanette Road.
Lawndale Drive.
Lee Street.
Lindsay Street.
Lovett Street.
Market Street.
Martin Luther King Jr. Drive.
Meadowood Street.
Meadowview Road.
Merritt Drive.
McGee Street.
Muirs Chapel Road.
Murrow Boulevard.
N.C. 68.
New Garden Road.
O. Henry Boulevard (U.S. 29).
Old Battleground Road.
Patterson Street.
Patton Avenue.
Phillips Avenue.
Pinecroft Road.
Pisgah Church Road.
Pleasant Garden Road.
Preddy Boulevard (I-85).
Randleman Road.
Regional Road.
Smith Street.
Spring Street.
Spring Garden Street.
Sullivan Street.
Summit Avenue.
U.S. 220.
Vandalia Road.
Vanstory Street.
Washington Street.
Wendover Avenue.
Westridge Road.
Willoughby Road.
Yanceyville Road.

(2) That such vehicle shall be parked not longer than two (2) hours in any one (1) block during the same day.

(3) That such sales may not be made within five hundred (500) feet, measured along the edge of the nearest street, of the city curb market on Yanceyville Road between the hours of 6:00 a.m. and 2:00 p.m.

every day of the week or any school ground or public recreational area for children.

(c) Exhibition shows conducted pursuant to Article VII of this chapter shall be exempt from the requirements of this section in areas which are properly zoned for retail sales.

(d) It shall be unlawful to park any vehicle, motor vehicle, boat, or trailer on any city street or sidewalk for the purpose of displaying or offering such vehicle for sale in a residentially zoned area except that a person may park his/her/their own vehicle for sale in front of his/her/their own residence. It shall be unlawful for any person to park a vehicle on a city street or sidewalk in front of property he/she/they neither owns nor lives upon for the purpose of displaying or offering the vehicle for sale.

(e) (1) Any person who violates subsection 26-230(a) or (d) shall be subject to assessment of a civil penalty in the amount of fifty dollars ($50.00) per violation per day. A separate penalty shall be assessed for each separate location of unlawful conduct or condition and for each separate vehicle parked unlawfully. Each day a violation continues shall be a separate violation subject to assessment of a civil penalty, but the civil penalty per location or per vehicle in the same location shall not exceed five hundred dollars ($500.00).

(2) Prior to assessment of any civil penalty for violation of subsection 26-230(a) or (d), the person in violation shall be served with a notice of violation that specifies and describes the nature of the violation and that explains what is necessary to end the violation and to comply with all applicable ordinances and laws. Service shall occur by certified mail, personal delivery or by conspicuous posting at the person's last known place of residence. In the case of an unlawfully parked vehicle, in addition to the stated methods of service, service may be obtained by tagging any such vehicle with the notice of violation.

(3) Any person served with a notice of violation or any person whose vehicle is tagged with a notice of violation, shall have two (2) days from the date of service to bring an end to the violation and to comply with all applicable ordinances and laws. If the violating condition is not corrected within two (2) days, the above-described civil penalty shall be assessed for the violation starting on the day the notice of violation was issued (the date of the notice of violation). If the violating condition is corrected on or before the second day following service, a civil penalty of fifty dollars ($50.00) (one (1) single violation) shall be assessed. Any civil penalty assessment under this section shall be in the form of a citation which shall be served in a manner authorized by G.S. § 1A-1, Rule 4(j) for the service of a civil summons. If an assessed penalty is not paid within thirty (30) days following service of the citation, the city may institute a civil action for recovery of the civil penalty.

(4) In the case of an unlawfully parked vehicle that remains unlawfully parked five days after notice of violation was served, the city may tow and store the vehicle which shall be released to the owner only after the vehicle owner has (i) been notified of the towing within seventy-two (72) hours after ownership is known by the city, (ii) been advised of his/her/their right to a hearing to determine the lawfulness of the towing, (iii) either been given the aforementioned hearing within forty-eight (48) hours of the owner's request for a hearing or signed a written waiver of the right to a hearing and (iv) paid all assessed civil penalties and storage fees to the city, provided that the owner shall not pay penalties or storage fees and shall be reimbursed for such penalties or fees he/she/they actually paid if, after a hearing, the hearing officer determines the towing was improper. If the owner does not request a hearing within ten (10) days after notice of towing is served, the right to a hearing shall be

deemed to have been waived. Hearings to determine the lawfulness of towing shall be conducted according to a standard procedure promulgated by the city department head in charge of enforcement of this chapter and approved by the city manager.

(5) Civil penalties assessed under this section are considered to be restorative; intended to provide compensation to the city for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. As such, the amounts declared herein are presumed to provide sufficient restoration to the city for its costs.

(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 93-77, §§ 1, 2, 7-19-93; Ord. No. 06-57, § 1, 3-21-06; Ord. No. 06-243, §§ 1—3, 1-1-07; Ord. No. 12-131, § 1, 11-7-12; Ord. No. 20-163, § 3, 12-15-20)

DIVISION 2. MOBILE FOOD VENDORS*

Sec. 26-231. Mobile food vendor sales.

It shall be lawful for mobile food vendors to sell or offer for sale food or beverages only under the conditions set forth herein.

(Ord. No. 11-78, § 1, 5-3-11; Ord. No. 12-131, § 1, 11-7-12)

Editor's note—Ord. No. 11-78, § 1, adopted May 3, 2011, amended § 26-231 in its entirety to read as set out herein. Formerly, said section pertained to pushcart sales in the downtown business district. See the Code Comparative Table.

Sec. 26-232. Definitions.

The following words, terms and phrases, when used in this division shall have the meanings ascribed to them in this section, except where the content clearly indicates another meaning:

Beverages shall mean drinkable, nonalcoholic liquids prepared for immediate human consumption and may be served only in cans, Styrofoam or plastic cups.

Canopy shall mean an umbrella that is attached to the pushcart.

Food shall mean food prepared for immediate human consumption, including condiments and prepackaged foods, all as allowed by the North Carolina Department of Human Resources, Division of Health Services.

Mobile food unit shall mean a vehicle-mounted, vehicle-towed, or vehicle-carried, food service establishment designed to be readily moved and which is defined in 15A NCAC 18A.2601.

Mobile food vendor shall mean a person or persons that prepare or serve food and/or beverages for sale to the general public on a recurring basis from a vehicle-mounted, vehicle-towed or vehicle-carried food service establishment designed to be readily moved and shall be either a motorized mobile food vendor, pushcart mobile food vendor, nonprofit on-premises mobile food vendor, or a nonprofit off-premises mobile food vendor.

Motorized mobile food vendor shall mean a person or persons that prepare or serve food and/or beverages for sale to the general public on a recurring basis from a "mobile food unit" as defined in 15A NCAC 18A.2601.

Nonprofit on-premises mobile food vendor shall mean a nonprofit organization, as defined in the Greensboro Code of Ordinances section 13-194, which conducts or permits mobile food vendor sales within the real estate owned by their not-for-profit organization or conducts or permits sales within the principal place of business of their nonprofit organization.

Nonprofit off-premises mobile food vendor shall mean a nonprofit organization, as defined in the Greensboro Code of Ordinances section 13-194, which conducts or permits mobile food vendor sales outside the real estate owned by their not-for-profit organization or conducts or permits sales outside the principal place of business of their nonprofit organization.

Pushcart shall mean any mobile piece of equipment or vehicle from which a pushcart mobile food vendor conducts sales and is defined in 15A NCAC 18A.2601.

**Editor's note—*Ord. No. 12-131, § 1, adopted Nov. 7, 2012, changed the title of Div. 2 from "Pushcart sales" to "Mobile food vendors".

Pushcart mobile food vendor shall mean a person or persons that prepare or serve food and/or beverages for sale to the general public on a recurring basis from a mobile piece of equipment or vehicle which serves hot dogs or foods which have been prepared, preportioned, and individually prewrapped at a restaurant or commissary, or which serve foods and/or beverages exempt from health department regulations.

Vendor shall mean a person who hawks, peddles, sells or offers for sale food.
(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 08-179, § 1, 6-17-08; Ord. No. 11-78, § 2, 5-3-11; Ord. No. 12-131, § 1, 11-7-12; Ord. No. 15-073, § 1(Exh. D), 6-16-15)

Sec. 26-233. Mobile food vendor permit required.

It shall be unlawful for any mobile food vendor to sell, or offer for sale, any food or beverage without first obtaining a mobile food vendor permit pursuant to this section from the city manager, or his/her/their designee. A person, business, or entity who violates this section shall be subject to a civil penalty of one hundred dollars ($100.00).

All mobile food vendors shall maintain permits required by the Guilford County Health Department or the applicable health department of the resident county of the mobile food vendor, and comply with all North Carolina Department of Human Resources, Division of Health Services regulations.
(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 08-179, § 2, 6-17-08; Ord. No. 11-78, § 3, 5-3-11; Ord. No. 12-131, § 1, 11-7-12; Ord. No. 15-073, § 1(Exh. D), 6-16-15; Res. No. 048-24, § 1, 2-20-24)

Editor's note—Ord. No. 15-073, § 1(Exh. D), adopted June 16, 2015, changed the title of § 26-233 from "Permit required" to "Mobile food vendor permit required." This historical notation has been preserved for reference purposes.

Sec. 26-234. Mobile food vendor permit application.

The mobile food vendor permit required shall be issued only after the issuance of an appropriate business permit in accordance with chapter 13 of this Code. Application shall be accompanied by payment of a fifty-dollar ($50.00) permit fee annually for each mobile food vendor, motorized or mobile food vendor, pushcart for which the permit is sought.

The application for a mobile food vendor permit shall include:

(1) The name, home and business address of the applicant, the name and address of the owner of the vending business, or of the pushcart to be used in the operation of the vending business if other than the applicant;

(2) A description of the types of food and beverages to be sold;

(3) A description (including the size) and a photograph of any pushcart, trailer, or vehicle to be used in the operation of the business, including, if applicable, the license and registration number of any vehicle used in the operation of the business to restock or transport a pushcart;

(4) Two (2) prints of a full-face photograph taken not more than thirty (30) days prior to the date of the application of any person who will sell or offer for sale any food or beverage within the city;

(5) A copy of any approval required by the Guilford County Health Department pursuant to the rules governing the sanitation of restaurants and other food handling establishments, 10 NCAC ch. 10, subch. 10A, and any other approval required by a governmental unit for the preparation and service of food;

(6) Proof of an insurance policy, issued by an insurance company licensed to do business in the State of North Carolina, protecting the permittee and the city from all claims for damages to property and bodily injury, including death, which may arise from operations under or in connection with the permit. Such insurance shall name the city as additional insured and shall provide that the policy shall not terminate or be canceled prior to the expiration date without thirty (30) days' advance written notice to the city. Such insurance shall afford minimum

limits of one hundred thousand dollars ($100,000.00) per person bodily injury, three hundred thousand dollars ($300,000.00) per occurrence bodily injury, and twenty-five thousand dollars ($25,000.00) per occurrence property damage.

All items listed in the mobile food vendor permit application are required annually for renewal of permit.

(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 08-179, § 3, 6-17-08; Ord. No. 11-78, § 4, 5-3-11; Ord. No. 12-131, § 1, 11-7-12; Ord. No. 15-073, § 1(Exh. D), 6-16-15)

Editor's note—Ord. No. 15-073, § 1(Exh. D), adopted June 16, 2015, changed the title of § 26-234 from "Permit application" to "Mobile food vendor permit application." This historical notation has been preserved for reference purposes.

Sec. 26-235. Issuance of mobile food vendor permit.

Not later than thirty (30) days after the filing of a completed application for a mobile food vendor permit, the applicant shall be notified by the city manager, or his/her/their designee, of the decision on the issuance or denial of the permit. The manager, or his/her/their designee, shall consider the standards set forth in this chapter in determining whether to grant a permit. If the permit is denied, the applicant shall be provided with a statement of the reasons therefore, which reasons shall be entered in writing on the application, and the mobile food vendor permit fee, in excess of twenty-five dollars ($25.00) shall be refunded. Mobile food vendor permits issued pursuant to this section shall be for a twelve-month period and shall expire on June 30, except if the mobile food vendor permit is issued after the expiration of eight (8) months of the current fiscal year, the permittee shall be required to pay one-half (½) the fee prescribed. No permit fee shall be abated, nor shall a refund of any part thereof be made, in any case where the permittee discontinues his/her/their business before the end of the period for which the permit was issued. The original business permit and decal shall be displayed at all times during the operation of the vending business where it can be inspected at any time by any proper city official. Business permits and decals are non-transferable.

(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 15-073, § 1(Exh. D), 6-16-15; Ord. No. 20-163, § 3, 12-15-20)

Editor's note—Ord. No. 15-073, § 1(Exh. D), adopted June 16, 2015, changed the title of § 26-235 from "Issuance of permit" to "Issuance of mobile food vendor permit." This historical notation has been preserved for reference purposes.

Sec. 26-236. Prohibited conduct.

No mobile food vendor shall:

(1) Vend within three hundred (300) feet of any church, while such church is holding a religious service.

(2) Vend on any paved or traveled portion of a street or on any sidewalk where vending is otherwise prohibited or located in any city-owned parking space, or any handicapped space, fire lane, or loading area; or any grass or landscaped area, except that pushcart mobile food vendors shall be permitted on sidewalks adjacent to and upon property zoned central business, "CB".

(3) Vend between the hours of 3:00 a.m. and 7:00 a.m.

(4) Leave any pushcart or mobile food unit unattended on a city right-of-way or street.

(5) Store, park or leave any pushcart or mobile food unit overnight on any right-of-way or sidewalk.

(6) Sell food or beverages for immediate consumption unless the vendor has available for public use their own, or a public, litter receptacle which is adequate and available for the vendor's patron's use and being no more than ten (10) feet distant from the pushcart or mobile food unit.

(7) Leave any location without first picking up, removing and disposing of all trash or refuse including products spilled on the sidewalk within twenty (20) feet of the push cart location.

(8) Allow any items relating to the operation of the vending business to be placed anywhere other than in, on or under the pushcart except that pushcart mobile food vendors may place hand-squeezed lemonade/orangeade manufacture and sales on the top surface of a single cooler.

(9) Set up, maintain or permit the use of any table, crate, carton, rack, or any other device to increase the selling or display capacity of the pushcart.

(10) Solicit or conduct business with persons other than pedestrians.

(11) Sell anything other than that which the vendor is permitted to vend.

(12) Sound or permit the sounding of any device which produces noise, or use or operate any loudspeaker, public address system, radio, sound amplifier or similar device to attract the attention of the public. All mobile food vendors shall be subject to and comply with the standards of the City of Greensboro Noise Ordinance, "Offenses of Unreasonable or Disturbing Sound", the City of Greensboro Outdoor Lighting Ordinance and other applicable City of Greensboro rules and regulations.

(13) Vend without the insurance coverage specified in this article.

(14) Violate any federal, state, county or city law or regulation that pertains to food, beverages or the preparation or selling thereof.

(15) No vendor selling from a pushcart shall:

a. Vend within ten (10) feet of an entranceway to any building or fifty (50) feet from an open business.

b. Vend within fifty (50) feet of any driveway entrance to a police or fire station, or within ten (10) feet of any other driveway or of any alley.

c. Vend within ten (10) feet of the crosswalk at any intersection.

d. Vend within twenty (20) feet of any bus stop sign.

e. Vend within ten (10) feet of any fire hydrant or fire escape.

f. Allow the pushcart or any other item to rest upon, against or hang from any building or structure lawfully placed on public property, without the owner's permission.

g. Vend within one hundred (100) feet of any other pushcart.

h. Vend within fifty (50) feet of a sidewalk café that is open.

i. Pour waste products, (including hot water and drainage from coolers) down a storm drain.

(16) Provided further, it shall be unlawful for any person to maintain any pushcart upon any right-of-way or sidewalk which impedes, endangers, or interferes with the travel upon or use of the right-of-way or sidewalk. In the event it becomes necessary for the regulation of traffic or the safety or convenience of pedestrians, any law enforcement officer of the city may direct vendors to move to another location. No person may refuse to comply with a lawful order of a law enforcement officer when the order is given under the authority of this section.

(17) No vendor selling from a mobile food unit shall:

a. Vend within fifty (50) feet of the main entrance of a restaurant during the restaurant's business hours, unless the restaurant gives written permission to the vendor.

b. Vend within five (5) feet from any driveway, sidewalk, utility box or vault, handicapped ramp, building entrance or exit or emergency call box.

c. Vend within ten (10) feet of any fire hydrant or fire escape.

d. Pour waste products, (including hot water and drainage from coolers) down a storm drain.

(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 93-30, 4-1-93; Ord. No. 97-189, § 2, 11-18-97; Ord. No.

04-230, § 1, 11-22-04; Ord. No. 08-179, § 5, 6-17-08; Ord. No. 11-78, § 5, 5-3-11; Ord. No. 12-131, § 1, 11-7-12; Ord. No. 15-073, § 1(Exh. D), 6-16-15)

Sec. 26-237. Size requirements.

Pushcarts that operate on sidewalks or pedestrian walkways shall not exceed forty two (42) inches in width and seventy-seven (77) inches in length (hitch is included in length). No pushcart, exclusive of the canopy, shall exceed sixty (60) inches in height, nor shall any canopy be less than seventy-eight (78) inches in height at its lowest point nor ninety (90) inches in height at its highest point.
(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 08-179, § 6, 6-17-08; Ord. No. 13-35, § 1, 2-5-13)

Sec. 26-238. Safety requirements.

All mobile food vendors shall comply with the following requirements:

(1) All equipment installed shall be secured in order to prevent movement during transit and to prevent detachment in the event of a collision or overturn.

(2) All utensils shall be stored in a manner to prevent their being hurled about in the event of a sudden stop, collision or overturn. A safety knife holder shall be provided by the vendor to avoid loose storage of knives and other sharp or bladed instruments.

(3) Compressors, engines, generators, batteries, battery chargers, gas-fueled water heaters, and similar equipment installed on a pushcart and used in the storage, preparation or vending of food shall be installed so as to be accessible from outside the pushcart.

(4) All health rules and regulations in 10 NCAC ch. 10, subch. 10A as amended, or as otherwise required by law.

(5) Leave five (5) feet of unobstructed sidewalk for pedestrian passage. All applicable regulations pursuant to the Americans with Disabilities Act must be met.

(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 08-179, § 7, 6-17-08; Ord. No. 11-78, § 7, 5-3-11; Ord. No. 12-131, § 1, 11-7-12)

Sec. 26-239. Not-for-profit exemption.

Nonprofit on-premises mobile food vendors shall be exempt from sections 26-233, 26-234 and 26-235 of Greensboro Code of Ordinances and those vendors permitted by these nonprofits shall be exempt as well at the premises of the nonprofit.

Nonprofit off-premises mobile food vendors shall be exempt only from the fee in section 26-234 of Greensboro Code of Ordinances.
(Ord. No. 11-78, § 9, 5-3-11; Ord. No. 12-131, § 1, 11-7-12; Ord. No. 15-073, § 1(Exh. D), 6-16-15)

Sec. 26-240. Vendor's permit not required.

Mobile food vendors who sell within a special event venue as defined in the Greensboro Code of Ordinances section 26-247 are exempt from the requirements of this division.
(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 12-131, § 1, 11-7-12)

Sec. 26-241. Wholesale delivery.

The provisions of this division shall not be construed to prohibit the wholesale or delivery of products to stores or markets.
(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 11-78, § 10, 5-3-11)

Sec. 26-242. Mobile food vendor permit denial, suspension and revocation.

Any mobile food vendor's mobile food vendor permit may be denied, suspended or revoked for fraud or misrepresentation in the application for the permit or in the conduct of the business, for conduct of the business in such a manner as to create a public nuisance, or constitute a danger to the public health, safety, welfare, or morals, or for conduct which is contrary to the provisions of this division. Any mobile food vendor whose

permit is denied, suspended or revoked pursuant to this section shall not be granted a new permit for a period of thirty (30) days for the first offense and twelve (12) months for the second offense.

(Ord. No. 15-073, § 1(Exh. D), 6-16-15)

Editor's note—Ord. No. 15-073, § 1(Exh. D), adopted June 16, 2015, amended § 26-242 in its entirety. Former § 26-242 pertained to permit denial, suspension and revocation and derived from Ord. No. 90-79, § 1, adopted June 14, 1990; Ord. No. 11-78, § 11, adopted May 3, 2011; and Ord. No. 12-131, § 1, adopted Nov. 7, 2012.

Sec. 26-243. Penalty.

Any person violating any provision of this article shall be guilty of a misdemeanor and, upon conviction, shall be punished by fine not to exceed two hundred dollars ($200.00), or by imprisonment for a period not to exceed thirty (30) days, or a combination of any of the penalties listed.

(Ord. No. 90-79, § 1, 6-14-90; Ord. No. 08-179, § 8, 6-17-08)

DIVISION 3. STREET AND SIDEWALK CAFES

Sec. 26-244. Downtown street and sidewalk cafes.

(a) *Permit generally*. Notwithstanding any other provision of this Code, the city manager or his/her/their designee may issue permits to restaurants as defined herein for the serving of food and beverages on city sidewalks and pedestrian ways in the area of the city known as the Downtown Sidewalk Cafe District as herein described.

(b) *Definitions.* The following definitions shall apply in this division:

Downtown sidewalk cafe district. The downtown sidewalk cafe district shall mean that part of the City of Greensboro, which is included within and bounded as follows: Fisher Avenue on the north; Gate City Boulevard on the south; Murrow Boulevard on the east; and Spring Street on the west.

The downtown sidewalk cafe district shall include the sidewalks on both sides of the boundary streets and an area extending therefrom for a distance of one hundred fifty (150) feet to form the exterior boundary of the district.

Establishment. An establishment engaged in the business of regularly and customarily selling food and or beverages, primarily to be consumed on the premises, including businesses that are referred to as restaurants, cafeterias, cafes, lunch stands, grills, snack bars, fast food businesses, bars, grills and other establishments, such as drug stores, which have a lunch counter or other section where food is sold to be eaten on the premises. This definition does not include pushcart sales covered under division 2, pushcart sales, of this chapter.

Pedestrian way. An improved walk or passageway intended for use by pedestrians, but not adjacent to any city street.

Restaurant operator. The person, partnership, limited liability company, firm, or corporation operating a restaurant and associated sidewalk cafe. As used in this section, this definition includes the owner, and manager if different from the owner, of the restaurant and associated sidewalk cafe.

Sidewalk. That improved portion of a public street between the curb line or the lateral lines of a roadway if there is no curb, and the adjacent property line that is intended for the use of pedestrians.

Street. The entire width between property lines of every way or place of whatever nature, when any part thereof is open to the use of the public as a matter of right for the purpose of vehicular traffic. For the purposes of this division, this term refers to city-maintained streets.

(c) *Application*. Any establishment desiring to operate a street or sidewalk cafe shall prepare and file an application with the city manager or their designee which shall contain the following information.

(1) The name, address, and telephone number of the establishment desiring to operate a street or sidewalk cafe.

(2) The name, address, and telephone number of the establishment operator.

(3) The type of food, beverage, or food product to be sold and served at the street or sidewalk cafe.

(4) The hours of operation of the establishment and the proposed hours of operation of the street or sidewalk cafe.

(5) A scaled site plan showing the section of the street, sidewalk or pedestrian way to be used for the street or sidewalk cafe, the section to be kept clear for pedestrian and fire access, and depicting the proposed placement of tables, chairs, barricades, umbrellas, trash receptacles, and other structures and furnishings on the street or sidewalk or pedestrian way. In no case shall a street or sidewalk café violate the provisions of N.C.G.S. 20-174.1.

(6) Proof of an insurance policy, issued by an insurance company licensed to do business in the State of North Carolina, protecting the permittee and the city from all claims for damages to property and bodily injury, including death, which may arise from operations under or in connection with the permit. Such insurance shall name the city as additional insured without a municipal exclusion and shall provide that the policy shall not terminate or be canceled prior to the expiration date without thirty (30) days advance written notice to the city. Such insurance shall afford minimum limits of one hundred thousand dollars ($100,000.00) combined for property and bodily injury and three hundred thousand dollars ($300,000.00) aggregate annually.

(7) A copy of all permits and licenses issued by the county, state or the city, including health and ABC permits and business licenses and permits, necessary for the operation of the restaurant business, or a copy of the application for the permit if no permit has yet been issued. This includes any permits or certificates issued by the city, or other governmental authority for exterior alterations or improvements to the establishment.

(8) A sworn statement describing any violation by the establishment operator of any laws, regulations, or ordinances relating to the possession, sale, consumption, or transportation of intoxicating beverages or controlled substances during the five (5) years immediately preceding the date of the permit application.

(9) Such additional information as may be requested by the city manager or their designee to determine the compliance with this section.

(d) *Issuance of permit.* No permit for the operation of a street or sidewalk cafe may be issued unless the application is complete and the following requirements are met:

(1) The street or sidewalk cafe must be associated with an operating establishment such that it is under the same management and shares the same food preparation facilities, rest room facilities and other customer convenience facilities. The street or sidewalk cafe must be operated under the same name as the associated establishment and may be open or operated only at times when the establishment is open for business.

(2) The operation of the street or sidewalk cafe must be clearly incidental to the associated establishment. The seating capacity of the sidewalk cafe may not be more than fifty (50) percent of the interior seating capacity of the associated restaurant.

(3) The placement of tables, chairs, and other furnishings as shown in the drawing submitted with the site plan must be done in such manner that at least five (5) feet of unobstructed space remains on the sidewalk or pedestrian way for the passage of pedestrians. No fire exits, hydrants, FDC or lanes may be blocked and must remain clear at all times. All applicable regulations pursuant to the Americans with Disabilities Act/PROWAG must be met.

(4) The establishment seeking to operate a street or sidewalk cafe must front on and open onto the street, sidewalk or pedestrian way proposed for use. The placement of tables, chairs and other furnishings may extend beyond the frontage of the associated establishment. With the written permission of the adjoining property owner and tenant the street café may extend onto the abutting property but may not extend beyond a mid-block crossing, curb cut, alleyway or vehicular entrance.

(5) The area designated for the street or sidewalk cafe shall be physically separated from the remaining sidewalk by visible, detectable barricades with a height of at least thirty six (36) inches and no more than forty-two (42) inches. The barricades must be ADA compliant and be constructed of materials of a finished quality, including but not limited to wrought iron, planters, picket fences or other similar material.

(6) The barricades shall be anchored. The tables, chairs and other furnishings used in the street cafe shall not be anchored. Street cafes shall be separated from the adjoining travel lane by an approved traffic barrier. Street or sidewalk cafes that require the installation of ramps, railings or structures must meet engineering standards appropriate for the intended use. All applicable regulations pursuant to the Americans with Disabilities Act/ PROWAG must be met.

(7) Except as elsewhere permitted by the Code, the operation or furnishing of the street or sidewalk cafe shall involve no permanent alteration to any city street, sidewalk or pedestrian way or to the exterior of the associated establishment.

(8) The operation of the street or sidewalk cafe shall at all times be in accordance with the requirements of this subsection (d). At the direction of the city manager or their designee, any improperly placed or improperly sized furniture or barricade shall be removed.

(9) Each street or sidewalk cafe shall provide adequate trash receptacles for its patrons within the perimeters of the barricades. At the end of each business day and during operating hours the operator shall remove all trash and debris of any sort from the area within the barricade and between it and the curb or travel lane, and in addition shall remove from the street or sidewalk alongside and abutting properties any trash or debris originating as a result of the operation of the street or sidewalk cafe.

(e) *Alcoholic beverages.* Notwithstanding any other provisions of the City Code, alcoholic beverages may be served at street or sidewalk cafes provided the following requirements are met:

(1) The street or sidewalk cafe shall be part of an establishment and shall otherwise be authorized, permitted, or licensed under the state law and City Code to serve and sell alcoholic beverages for on-premises consumption.

(2) The portion of the street or sidewalk cafe where alcohol is or may be served shall be enclosed by a visible, detectable barricade and shall have not more than two (2) points of ingress and egress to the sidewalk.

(3) The street or sidewalk cafe must be included as part of the permitted premises for which an ABC permit is issued pursuant to N.C.G.S. 18B-1001, or other state law, for the purpose of applying and enforcing state laws regarding the sale or consumption of alcoholic beverages.

(4) Signs shall be posted and visible at all exit points from the street or sidewalk cafe, that it is unlawful to remove alcoholic beverages from the premises.

(5) The establishment operator shall not have violated any law, regulation, or ordinance relating to the possession, sale, transportation, or consumption of intoxicating beverages or controlled substances for the

three (3) years preceding the commencement of the sale of alcoholic beverages at the street or sidewalk cafe.

(6) No outdoor bars or alcoholic beverage preparation is allowed within the street or sidewalk cafe except that unfortified wine may be decanted at a table.

(f) *Denial*. A permit may be denied if it is found that the granting of the permit would not be in the public interest. Any applicant denied a permit to operate a street or sidewalk cafe shall receive a written statement, outlining the grounds on which the denial is based.

(1) The applicant may appeal the denial of the permit to the city council within fifteen (15) working days after the date of the written denial and the city council may take such action as it shall find necessary. The findings and determination of the city council shall be final.

(g) *Permit revocation.* The city manager may revoke a permit issued pursuant to this section, if they find that the establishment operator has:

(1) Deliberately misrepresented or provided false information in the permit application.

(2) Violated any law, regulation, or ordinance regarding the possession, sale, transportation or consumption of intoxicating beverages or controlled substances.

(3) Operated the street or sidewalk cafe in such a manner as to create a public nuisance or to constitute a hazard to the public health, safety, or welfare; including failure to keep the street or sidewalk cafe area clean and free of refuse and trash.

(4) Failed to maintain any health, business, ABC, or other permit or license required by law.

(5) Operated the restaurant or street or sidewalk cafe in violation of this division or of any city, county, state, or federal law, ordinance, or regulation.

(6) Failure to maintain required ADA pedestrian access free from obstructions.

Before the revocation of a permit, the city manager or their designee shall notify the permit holder of the intent to revoke the permit in writing and the reasons therefor and shall afford the permit holder a reasonable opportunity to appear and be heard on the question of such revocation. After the hearing, the city manager or their designee shall notify the permit holder in writing of this decision and the reasons therefor. A decision to revoke a permit may be appealed to the city council within fifteen (15) working days in accordance with the provisions of subsection (f).

(h) *Reservation of rights*. The city reserves the right to require any street or sidewalk cafe established pursuant to this article to cease part or all of its operation in order to allow for construction, maintenance, or repair of any street, sidewalk, utility, or public building by the city, its agents, or employees, or by any other governmental entity or public utility.

(i) *Term transfer, renewal*. Permits issued in accordance with the provisions of this section shall:

(1) Be issued for a period of two (2) years beginning on the first day of the month following the date of issuance.

(2) Be in addition to any other permit required pursuant to this Code.

(3) Not be transferable or assignable, to include when the business or property is sold and the new owner or tenant operates a similar establishment.

(4) Renewal of the permit must be requested thirty (30) days prior to expiration. Renewals will be issued for a period of two (2) years.

(Ord. No. 97-189, § 1, 11-18-97; Ord. No. 08-234, § 1, 8-19-08; Ord. No. 15-073, § 1(Exh. D), 6-16-15; Ord. No. 20-163, § 3, 12-15-20; Ord. No. 21-141, 9-21-21)

Sec. 26-245. Reserved.

ARTICLE IX. SPECIAL EVENTS

Sec. 26-246. Purpose; scope and intent.

(a) Recognizing that special events enhance the quality of life for residents and visitors alike, it is the purpose of the city council to establish a

structured process for permitting the use of public facilities not otherwise covered in the City Code, including, but not limited to, adequate time for receiving and acting upon the application for the staging of outdoor special events conducted by the private sector to use city streets, facilities or services, or to conduct events that occupy, impact or consume public resources as a result of the congregation of people.

(b) Given the close proximity of residential and commercial areas, the city council must balance the quiet enjoyment of one's residence in relationship to the commercial purposes that sustain and promote our tourist economy and recover costs related to the event, such costs include, but are not limited to: personnel, equipment and supplies, sanitation (litter, debris and human wastes), wastewater, utilities, park maintenance and restoration - including long-term degradation - and park monitoring.

(c) It is the intent of the council to recognize the rights of all citizens to engage in protected free speech expression activities and yet allow for the least restrictive and reasonable, time, place and manner regulation of those activities within the overall context of rationally regulating commercial special events that have an impact upon public facilities and services. Persons failing to secure such a permit under this article, however, will not be entitled to the benefits provided by this article, including but not limited to, the right to erect stages, barricades, utility poles, booths, tents, or other temporary structures, or the use of amplified devices, parked vehicles or of permanent structures, or to the assistance of city personnel in carrying out their event, or their exclusive or reserved use of the facility unless otherwise authorized by some other ordinance or law.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-247. Definitions.

As used in this article:

Building means any temporary or permanent structure as defined by the Greensboro Zoning Code or any structure built for support, shelter, or enclosure of persons, animals, chattels, or property of any kind.

Commercial special event means any special event organized and conducted by any person or entity that does not qualify as a tax-exempt non-profit organization.

Demonstration means any formation, procession or assembly of persons which, for the purpose of expressive activity, is:

(1) To assemble or travel in unison on any street in a manner that does not comply with normal or usual traffic regulations or controls; or

(2) To gather at a public park or other public area

Event organizer means any person who conducts, manages, promotes, organizes, aids or solicits attendance at a commercial or non-commercial special event.

Expressive activity includes conduct, the sole or principal object of which is the expression dissemination or communication by verbal, visual, literary or auditory means of opinion, views or ideas and for which no fee or donation is charged or required as a condition of participation in or attendance at such activity. It includes public oratory and distribution of literature, and picketing.

Facility use permit means a permit issued under the authority of the city manager for temporary or reserved use or occupation of a pubic facility or an area of public land, for a defined period of time and said use does not adversely

impact city resources, due to the anticipated congregation of people in such numbers or in such location as identified.

Festival means a thematic, organized, site-specific celebration, performance, exhibition or competition occurring upon public or private property, or a combination of private and public property, during which commerce occurs, for a defined period of time, advertised and promoted outside the City of Greensboro, that will have an impact on city resources, due to the anticipated congregation of people in such numbers or in such location as identified.

Goods means wares, personal property, merchandise or any other similar item or object than is generally sold.

Gross revenues means the sum of all revenues received by an event organizer for a special event, including, but not limited to, cash receipts, licensing, sponsorship, television, advertising and similar revenues, and concessions.

Non-commercial special event means any special event organized and conducted by a person or entity that qualifies as a tax-exempt non-profit organization.

Parade means any march, race, presentation, ceremony, pageant or procession of any persons and conveyances of any sort moving upon any public street or sidewalk of the city, which does not comply with normal traffic regulations.

Sidewalk means that portion of a highway, other than the roadway, set apart by curbs, barriers, markings or other delineation for pedestrian travel.

Signage means any sign, pennant, flag, banner, inflatable display, or other attention-seeking device.

Special event can mean:

(1) Any organized formation, parade, procession or assembly consisting of persons, and which may include animals, vehicles or any combination thereof, which is to assemble or travel in unison on any street which does not comply with normal or usual traffic regulations or controls; or

(2) Any organized assemblage, not meeting the criteria for a facilities use permit, of persons at any private or public property or public park which is to gather for a common purpose under the direction and control of a person; or

(3) Any other organized activity conducted by a person or group for a common or collective use, purpose or benefit which involves the use of, or has an impact on, other public property or facilities and the provision of city public safety services in response thereto.

Examples of special events include but not limited to filming, concerts, parades, circuses, fairs, festivals, block parties, community events, mass participation, sporting competition such as, marathons and running events, bicycle races or tours, or spectator sports such as, football, basketball and baseball games, or golf tournaments.

Special event permit means a permit issued under this article.

Special event venue means that defined area identified on a submitted site plan approved by special events coordinator for which a special event permit has been issued.

Street means a public right-of-way, or way or place of whatever nature, publicly maintained and open to use of the public for purposes of vehicular or pedestrian travel. *Street* includes highways, alleyways, sidewalks and any other public area that accommodates vehicular or pedestrian traffic.

Tax-exempt non-profit organization means an organization that is exempted from payment of income taxes by federal or state law and which has been in existence for a minimum of six (6) months preceding the date of application for a special event permit.

Vendor means any person who sells or offers to sell, any goods, food, or beverages within a special event venue, including the event organizer or any person who contracts with the event organizer for space within the special event venue in order to vend goods.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-248. Special event permit required; facility use permits; parade permits.

(a) Except as provided in this article, no person or persons shall conduct, promote, manage, aid, or solicit attendance at a special event on public property or on private property, or on a combination of private and public property, any event of such magnitude as to impact public safety, traffic, or the health, safety and welfare of the residents or the invitees, unless that person shall have obtained a special event permit from the special events coordinator, based upon a complete application detailing the particulars of the event.

(b) The city special events coordinator, or designee, is authorized to recommend the granting of facility use permits and parade permits, and to determine when a proposed facility use rises to the level of a special event permit, based upon an evaluation of public impact or consumption of public resources, location, anticipated attendance, and purpose.

(c) The city special events coordinator shall consider all special event permits for events occurring within the city limits of the city pursuant to the procedures established in this article. The special events coordinator shall determine the special event venue, set reasonable boundaries, balancing the special event requirements and public health, safety, and welfare.

(d) The special events coordinator shall coordinate the issuance of a special event permit with other public agencies through whose jurisdiction or property the event or portion thereof occurs and to issue a special event permit upon the concurrence of other public agencies involved. The special events coordinator is authorized to establish administrative and operational policies to issue both the special event permit and the facility use permit. On an annual basis, or as requested, the manager shall report a listing of facility use permits, parade permits and special event permits to council. Special event permits involving the occupation of a public street, except for temporary use of a public street for parade or facility use permit, in accordance with section 26-4 of this chapter, shall be approved by the special events coordinator.

(e) Outdoor vending events permits, not associated with any special event, facility use or parade permit or noise variance request may be granted under the restrictions of section 30-3-3.5 (temporary event permit) of the Greensboro Code of Ordinances.

(f) All other licenses, permits and fees as required by Chapter 13 of the Greensboro Code of Ordinances.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-249. Exceptions to special event permit requirement.

(a) A special event permit is not required for any activity listed in section 26-230 (pushcart sales).

(b) Although not required to get a special event permit, an event organizer of an activity exempted pursuant to section 26-196 (exhibition shows) and section 26-230 (pushcart sales) is required to comply with general regulations governing public safety or health.

(c) The following activities are exempt from the special event permit requirement:

(1) Funeral services and processions;

(2) Activities solely conducted by the City of Greensboro;

(3) Lawful picketing on sidewalks;

(4) Demonstrations that do not involve the use of vehicles, animals, fireworks, pyrotechnics or equipment (other than sound equipment), provided that:

a. No fee or donation is charged or required as a condition of participation in or attendance at such demonstration; and

b. The special events coordinator is notified at least forty-eight (48) hours in advance of the commencement of the demonstration; and

(5) Facilities use permit; and

(6) Outdoor vending license.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-250. Issuance of a special event permit does not obligate city services.

(a) Issuance of a special event permit does not obligate or require the city to provide city services, equipment or personnel in support of an event.

(b) City services, equipment, or personnel for commercial special events may be provided, based upon cost recovery.

(c) Cost recovery for non-commercial events may be waived only if the council finds that a public purpose will be served. A public purpose is served if all four (4) of the following factors are met:

(1) The event is organized and conducted by a tax-exempt non-profit organization which operates from or provides services within the City of Greensboro or County of Guilford; and

(2) The event provides an identified benefit to the general public; and

(3) The event includes participation by the general public (notwithstanding an admission or participation fee); and

(4) Provision of city services will result in improved crowd or event control and general public safety, and does not diminish or detract from the normal level of service for its citizens, based upon the evaluation, advice and approval of the manager.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-251. Priority of special event permit issuance.

Except for events sponsored by the city, which have first priority, and wherever possible, priority shall be given for the issuance of a special event permit to local tax-exempt non-profit organizations operating in and providing services to the citizens of the City of Greensboro or the County of Guilford. Except for events sponsored by the city, which have first priority, and whenever possible, priority shall be given for the issuance of a special event permit to larger acreage events over smaller acreage events. Priority shall be given for the issuance of special events that do not abut a residential area.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-252. Use of city seal or name.

The issuance of a permit shall not be considered an endorsement of a special event by the City of Greensboro. It shall be unlawful for any person to represent, hold out, promote or publish to another that the city name or city seal is an endorsement of the event without specific city council action authorizing such endorsement.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-253. Time for filing application for special event permit or facility use permit; time limit for notifying special events coordinator.

(a) Except for special events at the Greensboro Coliseum, an application for a special event permit shall be filed with the city special events coordinator not less than sixty (60) calendar days, or thirty (30) days for a residential street closing, nor more than two (2) years, before the time when it is proposed to conduct the special event. The application shall be reviewed by such city departments as designated by the special events coordinator. Departmental comments shall be provided to the special events coordinator.

(b) Applications for facility use permits at city public facilities shall be submitted in accordance within the time limits and procedures established for such facilities.

(c) Any person organizing a demonstration shall notify the special events coordinator not less than forty-eight (48) hours before the time when it is proposed to conduct the demonstration.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-254. When application for special event permit is deemed complete.

An application for a special event permit is deemed completed when the applicant has pro-

vided all of the information required in section 26-191 including a site plan and any additional information required by the city special events coordinator, and the application has been approved by any city departments designated by the city special events coordinator. The special events coordinator shall return any incomplete application to the applicant.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-255. Date of special event not confirmed until permit issued.

Notwithstanding the special events coordinator's acceptance of a completed application, no date shall be considered confirmed until a special event permit is issued at the direction of city special events coordinator together with and any other documents deemed necessary. The special events coordinator will require the applicant to demonstrate that the applicant has notified abutting property owners of the proposed time and place of the special event.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-256. Content of special event permit application.

The application for a special event permit shall include the following, when applicable to the nature of the event:

(1) The name, address and telephone number of the applicant; and

(2) A certification that the applicant will be financially responsible for any city fees or costs that may be imposed for the event; and

(3) The name, address and telephone number of the event organizer, if any, and the chief officer of the event organizer, if any; and

(4) If the special event is designed to be held by, on behalf of, or for any organization other than the applicant, the applicant for the special event permit shall file a written communication from such organization:

a. Authorizing the applicant to apply for the special event permit on its behalf; and

b. Certifying that the applicant will be financially responsible for any costs or fees that may be imposed for the event; and

(5) A copy of the tax exemption letter issued for any applicant claiming to be a tax-exempt non-profit organization; and

(6) A statement of the purpose of the special event; and

(7) A statement of fees to be charged for the special event; and

(8) The proposed signage, boundaries, location, map, dates, times, routes, alternative routes, staging areas, reviewing, parking, or disbanding stands or areas; and

(9) The approximate number of persons and kinds and number of animals, structures or vehicles that will participate in the special event, and the parking plan for the vehicle; [and]

(10) Plan for trash removal; [and]

(11) The number of bands or other musical units and the nature of any equipment to be used to produce sounds or noise; and

(12) The number and location of portable sanitation facilities; and

(13) Other equipment or services necessary to conduct the event with due regard for participant and public health and safety; and

(14) The number of persons proposed or required to monitor or facilitate the special event and provide spectator or participant control and direction for events using city streets, sidewalks, or facilities; and

(15) Provisions for first aid or emergency medical services, or both, based on event risk factors; and

(16) Insurance and surety bond information; and

(17) Any special or unusual requirements that may be imposed or created by virtue of the proposed event activity; and

(18) Relevant information on the location, number and names of vendors, and the types of goods or services being intended to be marketed within the boundaries of the special event; [and]

(19) Any other information required by the city special events coordinator.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-257. Conditions affecting the issuance of a special event permit.

(a) The city special events coordinator may recommend that the manager, or designee, approve the issuance of a special event permit, when all of the following conditions are met:

(1) The event will not substantially interrupt public transportation or other vehicular and pedestrian traffic in the area of its route, including specifically the displacement of vehicular parking into adjacent or neighboring commercial areas not part of the venue, or into adjacent or neighboring residential areas.

(2) The event will not cause a conflict with construction or development in the public right-of-way or at a public facility.

(3) The event will not block traffic lanes or close streets during peak commuter hours on weekdays or weekends, as determined by the special events coordinator.

(4) The event will not require the diversion of a great number of police employees from their normal duties, thereby preventing reasonable police protection to the remainder of the city.

(5) The concentration of persons, animals or vehicles will not unduly interfere with the movement of police, fire, ambulance, and other emergency vehicles on the streets.

(6) The event will move from its assembly location to its disbanding location expeditiously and without stopping en route.

(7) The event will not substantially interfere with any other special event or demonstration for which a permit has already been granted or with the provision of city services in support of other scheduled events or unscheduled governmental functions such as visits of chiefs of state.

(8) The event will not have unmitigatable adverse impact upon residential or business access and traffic circulation in the same general venue.

(9) If the event is a marathon, it will not occur within thirty (30) calendar days of another marathon.

(b) To make the determination under this section, the special events coordinator shall consider pedestrian and traffic circulation and parking, traffic volume and population density, time of year, and neighboring or adjacent zoning uses.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-258. Consideration of approval and reasons for denial of a special event permit.

(a) The city special events coordinator may deny a special event permit to an applicant who has not:

(1) Provided a sufficient traffic plan or for sufficient traffic controls by persons appropriately trained, certified or appointed pursuant to state law which enables the control of traffic; or

(2) Provided for an adequate parking plan that does not displace vehicle into neighboring or adjacent non-participating commercial or residential areas; or

(3) Provided sufficient monitors and a security plan for crowd control and safety; or

(4) Provided sufficient safety, health or sanitation equipment, services or facilities that are reasonably necessary to ensure that the event will be conducted with due regard for public safety and sanitation; or

(5) Provided sufficient off-site parking or shuttle service, or both, when required to minimize any substantial adverse impacts on general parking and traffic circulation in the vicinity of the event; or

(6) Provided sufficient signage information upon which approval can be granted; or

(7) Met all of the requirements for submitting an application for a special event permit; or

(8) Provided the notice required under section 26-255.

(b) The city special events coordinator may also deny a special event permit when:

(1) Due to the inadequate internal security or deficient security plan of the event organizer given the projected attendance, or the time, place or manner of conducting the event, the event will create the possibility of violent disorderly conduct likely to endanger public safety or to result in significant property damage; or

(2) The event may violate public health or safety laws; or

(3) The event fails to conform to the requirements of any law; or

(4) The applicant demonstrates an inability or unwillingness to conduct an event pursuant to the terms and conditions of this article; or

(5) The applicant has failed to conduct a previously authorized or exempted special event in any jurisdiction in accordance with law or the terms of a permit, or both; or

(6) The applicant has not obtained the approval of any other public agency within whose jurisdiction the special event or portion thereof will occur; or

(7) The applicant has failed to provide an adequate first aid or emergency medical services plan based on event risk factors; [or]

(8) The applicant has failed to comply with any term of this article, or with any condition of a special event permit previously issued to the applicant.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-259. Denial of a special event permit and appeal to the review committee.

To the extent the denial of a special events permit is capable of appeal, any appeal permitted must be made in writing to the review committee, within thirty (30) days of the adverse decision. The review committee shall include the city manager or designee, the chief of police or designee, the fire chief or designee and the tax collector or designee.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-260. Display of special event permit or facility use permit is required.

A copy of the special event permit or facility use permit shall be displayed on location or in the special event venue in the method prescribed by the city special events coordinator applicable to the particular event and shall be exhibited upon demand of any city official.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-261. Contents of special event permit.

A special event permit shall always be accompanied by the site plan approved by the city special events coordinator and shall contain the following information or conditions:

(1) The location of the special event venue, which may be identified by a map attached to the special event permit;

(2) The date, assembly area, time for assembly and starting time of the special event;

(3) The specific route plan to the special event;

(4) The minimum and maximum speeds of the special event;

(5) The number and types of persons, animals and vehicles, the number of bands, other musical units and equipment capable of producing sound, if any, and limitations thereon pertaining to noise abatement;

(6) The portion of the street and sidewalk that is to be occupied by the event and the location of reviewing or audience stands, if any;

(7) The number and location of traffic controllers, monitors, other support personnel and equipment and barricades to be furnished by the special event organizer;

(8) The area and time for disbanding;

(9) Conditions or restrictions on the use, sale or free distribution of alcoholic beverages and authorization for and conditions of the exclusive control or regulation of vendors and related sales activity by the event organizer during the special event;

(10) Provisions for any required emergency medical services;

(11) The size, manufacturer and location of any temporary buildings or structures to be erected specifically for the special event and removed immediately following the special event;

(12) Such other information and conditions as are reasonably necessary for the conduct of the special event and the enforcement of this article, including the requirement for the on-site presence of the event organizer or its designated representative for all event coordination and management purposes; and

(13) As a condition of the issuance of a special event permit, the applicant shall be required to make adequate provisions, which may include security deposits in an amount determined by the special events coordinator, for cleaning-up the area or route of the event both during and upon completion of the event and to return the area or route to the same condition of material preservation and cleanliness as existed prior to the event.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-262. Special events coordinator's action on special event permit application.

(a) The special events coordinator shall recommend final action upon a completed application for a special event permit as soon as practicable, but no later than fifteen (15) working days from the receipt of a complete application.

(b) The special events coordinator is not required to recommend final action on an incomplete or untimely special event permit application.

(c) The special events coordinator is not required to process more than one (1) application for a special event permit per applicant during any two-week period.

(d) The special events coordinator is not required to recommend final action upon two (2) or more special event permit applications submitted by the same applicant unless two (2) or more weeks shall have elapsed between the respective dates of submission of each.

(e) Final action on a completed special event permit application shall consist of one (1) of the following:

(1) Issuance of a special event permit in accordance with the terms of application;

(2) Issuance of a special event permit in accordance with the terms of the application, as modified by mutual agreement between the special events coordinator and the applicant; or

(3) Denial of the special event permit applications by the special events coordinator, with the reason(s) for denial.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-263. Insurance required to conduct special event; hold harmless.

(a) The event organizer of a special event must possess or obtain comprehensive general liability insurance from no less than an A-rated company to protect against loss from liability imposed by law for damages on account of bodily injury and property damage arising from the event. Insurance coverage must be maintained for the duration of the event. Notice of cancellation shall be provided immediately to the city. When applicable, the city may require proof of workers compensation and auto liability insurance.

(b) Except as provided in section 26-263(c), comprehensive general liability insurance coverage required by section 26-263(a) shall be in a combined single limit of at least one million dollars ($1,000,000.00).

(c) The insurance required by section 26-263(a) shall encompass all liability insurance requirements imposed for other permits required under other sections of this Code and is to be provided for the benefit of the public and not as a duty, express or implied, to provide insurance protection for spectators or participants. The event organizer's current effective insurance policy, or copy, along with necessary endorsements, shall be filed with the special events coordinator at least thirty (30) calendar days before the event, unless the special events coordinator for good cause modifies the filing requirements.

(d) No permit is valid until the applicant shall provide adequate insurance as required by this section.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-264. Revocation of special event permit.

(a) Any special event permit may be revoked if the city special events coordinator determines:

(1) That the event cannot be conducted without violating the standards or conditions for special event permit issuance; or

(2) The event is being conducted in violation of any condition of the special event permit; or

(3) The event poses a threat to health or safety; or

(4) The event organizer or any person associated with the event has failed to obtain any other permit required pursuant to this Code; or

(5) The special event permit was issued in error or contrary to law; or

(6) The facts or assertions in the application have been falsified or misrepresented.

(b) Notices of revocation shall be in writing and specifically set forth the reasons for the revocation.

(c) If there is an emergency requiring immediate revocation of a special event permit, the special events coordinator or the police chief or the fire chief or their respective designees may notify the permit holder verbally of the revocation and the permit holder shall immediately comply with any order of the police chief, fire chief or their respective designees.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-265. Cost recovery for special events.

(a) For any special event requiring expenditure of public resources, the city shall charge for the actual cost of:

(1) A reasonable fee for city personnel involved in permit processing, event traffic control, fire safety or other facility or event support; and

(2) Other non-personnel expense.

Special events jointly sponsored by the city are exempt from such charges.

(b) The special events coordinator shall require the payment of fees required pursuant to section 26-265, or a reasonable estimate thereof at the time the completed application is approved, unless the special events coordinator, for good cause extends time for payment.

(c) If the event organizer fails to comply with section 26-265, the event organizer will be billed for actual city costs for clean up and repair of the area or route occasioned by the event. If the event organizer failed to comply with a previously issued special event permit, the event organizer shall deposit adequate surety in the form of cash or letter of credit drawn on a local bank.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-266. Commercial special events pay a flat fee.

(a) In addition to cost recovery to be determined by the special events coordinator, an event organizer of a commercial special event using any portion of public property must pay the city any standard fees for such use.

(b) An event organizer of a commercial special event shall make payment for the flat fee no later than thirty (30) calendar days prior the event.
(Ord. No. 05-110, § 1, 5-17-05)

Secs. 26-267, 26-268. Reserved.

Sec. 26-269. Enforcement authority; restorative penalties.

The special events coordinator is authorized to administer and enforce the provisions of this article and may exercise any enforcement powers as set forth in law. Any person violating any provision of this article shall be subject to a civil penalty in the amount of two hundred fifty dollars ($250.00) for the first violation and an additional fifty dollars ($50.00) for each day the violation is not corrected. Penalties under this article are considered restorative; intended to provide the city with compensation for costs associated with the city's program to monitor, control, prosecute, cure and/or correct the violation. Violations of any other section of the Greensboro Code of Ordinances, state or local fire code, state or local building code or any other rule or regulation may result in the imposition of additional restorative penalties. Any citizen or organization subjected to such penalty shall have the right to appeal to an independent hearing officer by procedures established by the special events coordinator.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-270. Authorized special event vendors.

(a) The issuance of a special event permit does not confer upon the permit holder or event organizer the right to control and regulate the sale of goods, food and beverages within the special event venue, such sales must comply with the terms and conditions of the special event permit and city and county rules and regulations.

(b) Vendors authorized to sell goods, food, or beverages in the special event venue shall display their authorization in the manner required by applicable law. Only vendors displaying the required authorization shall be allowed to sell goods, food, or beverages in the special event venue.

(c) The issuance of a special event permit does not relieve any person from the obligation to obtain any other permit or license required pursuant to the Greensboro Code, or other laws, including but not limited to health codes.

(d) The issuance of any other permit or license issued pursuant to this Code does not relieve any person from the obligation to obtain a special event permit pursuant to this article. Specifically, existing peddler and itinerant merchant business permits issued under section 13-204 of the Greensboro Code of Ordinances are not transferable for use in the special event.

(e) It is unlawful for any person to sell, resell, or offer to sell or resell, any goods, food or beverages within the special event venue, except in the manner as set forth in the application approved by the special events coordinator.
(Ord. No. 05-110, § 1, 5-17-05; Ord. No. 15-073, § 1(Exh. D), 6-16-15)

Sec. 26-271. Strict liability offenses.

Violations of this article shall be subject the violator to liability regardless of intent.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-272. Unlawful to conduct or promote attendance at special event without permit.

(a) It is unlawful to conduct a special event without a special event permit as required pursuant to this article.

(b) It is unlawful for any person to conduct, promote or manage any special event for which a special event permit has not been issued or revoked.
(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-273. Unlawful selling of tickets to special event within special event venue.

It is unlawful for any person to sell for profit, or offer to sell for profit, any ticket of admission to a special event within a special event venue, except:

(1) From any ticket office, booth, or other similar place established and maintained for the purpose of selling tickets; and

(2) With the express authorization of the special events coordinator pursuant to a special event permit.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-274. Unlawful to display signs in special event venue except as permitted.

It is unlawful for any person to place, post, paint, erect, display, secure, or maintain any sign or banner pertaining to the special event unless pre-approved by the special events coordinator, based upon the application and permitting process. The number of signs, sign face size, height, location and duration of display shall be addressed in the application. No sign shall obstruct a sight triangle or be placed within ten (10) feet of the boundary line of the property serving as the venue.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-275. Unlawful to interfere with a permitted facility use, special event or demonstration.

It shall be unlawful for any person to obstruct, impede or interfere with any authorized assembly, person, vehicle or animal participating in a demonstration or an event for which a special event permit has been issued.

(Ord. No. 05-110, § 1, 5-17-05)

Sec. 26-276. Cost recovery for unlawful special event.

Whenever a commercial or non-commercial special event is conducted without a special event permit when one is required, or an event is conducted in violation of the terms of an issued special event permit, or an event exceeds the needs identified in the application, the event organizer shall be responsible for, and the special events coordinator shall charge the event organizer for, all city costs incurred for personnel and equipment for a public safety response caused or necessitated by the adverse impacts of the event, or the violation of the special event permit, upon public safety.

(Ord. No. 05-110, § 1, 5-17-05)

Secs. 26-277—26-281. Reserved.

ARTICLE X. ALTERNATIVE PASSENGER VEHICLES

Sec. 26-282. Purpose and intent.

(a) The transportation of people within and around the downtown business district and high density urban areas by means of vehicles is a matter which affects the public interest. Due to the high volume of pedestrian, bicycle and vehicular traffic in Greensboro, it is necessary to regulate the operation of select types of passenger vehicles not classified as taxicabs, buses, or low speed vehicle taxicabs on city streets. The public interest requires operators of alternative passenger vehicles be properly qualified persons, that the vehicles, themselves, be fit for their intended purpose, that vehicle use be limited to designated areas, and that the safety and welfare of passengers and the general public be adequately protected.

(b) The purpose of this chapter, therefore, is to establish an alternative passenger vehicle (APV) ordinance, which:

(1) Defines which alternative vehicular modes utilized for the commercial purpose of transporting passengers may operate on city streets;

(2) Defines requirements for permitting of alternative passenger vehicle businesses and drivers of such vehicles;

(3) Regulates the operations of alternative passenger vehicles on city streets;

(4) Restricts the streets on which the vehicles may operate within and adjacent to the central business district;

(5) Establishes standards that the vehicles, owners, and operators must meet; and,

(6) Promotes the safety and welfare of passengers and the general public.

(Ord. No. 18-099, § 3, 7-17-18)

Sec. 26-283. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alternative passenger vehicle means any pedal car providing transportation services within or adjacent to the central business district.

Alternative passenger vehicle business means the business of operating one (1) or more alternative passenger vehicle(s) for profit or not-for-profit.

Owner means any person engaged in an alternative passenger vehicle business and holding legal right to possession and management, to one (1) or more vehicles being operated as an alternative passenger vehicle.

Driver or *operator* means any person who actually drives or operates an alternative passenger vehicle on the streets of the city and who is responsible for the safe operation of the vehicle, including but not limited to the steering and braking and maintaining compliance with all state and local traffic regulations.

Alternative passenger vehicle permit means the right and privilege granted by the City of Greensboro for the operation of an alternative passenger vehicle business incorporating the use of one (1) or more alternative passenger vehicles within the corporate limits of the city.

Driver's permit means the written authority granted by the city for a driver to operate an alternative passenger vehicle in the City of Greensboro.

Pedal car means a non-motorized four (4) or more wheeled bicycle-like vehicle that transports passengers on saddle type seats with designated room for storage and is either human powered by five (5) or more passengers not including the operator or by a motor capable of propelling the vehicle in the absence of human power.

(Ord. No. 18-099, § 3, 7-17-18)

Sec. 26-284. Alternative passenger vehicle permit application.

(a) No permit for the operation of an alternative passenger vehicle business may be issued unless the application is complete.

(b) If the applicant is a corporation, limited liability company, partnership or such other business entity, the person who will be acting as principal in charge of the business to be licensed shall sign the application and all owners of the business entity shall meet all of the requirements for individual applicants.

(c) The application shall be submitted to the city manager or his/her/their designee.

(d) The applicant shall truthfully and fully provide the information requested on the application, including but not limited to:

(1) The applicant's full name and residence address;

(2) The applicant's date of birth;

(3) The applicant's driver's license and number;

(4) The name of the business entity applying for an alternative passenger vehicle permit;

(5) A list of each authorized driver, including name, address date of birth, and driver's license number;

(6) Certification that all drivers shall complete a training program as required by section 26-289;

(7) A photograph of each alternative passenger vehicle to be operated by the alternative passenger vehicle business;

(8) Proof of a comprehensive general liability insurance policy or comparable pedicab liability insurance policy, issued by an insurance company licensed to do busi-

ness in the State of North Carolina, protecting the permittee and the city from all claims for damages to property and bodily injury, including death, which may arise from operations under or in connection with the permit. Such insurance shall name the city as additional insured and shall provide that the policy shall not terminate or be cancelled prior to the expiration date without thirty (30) days advance written notice to the city. The policy shall provide coverage in an amount not less than one million dollars ($1,000,000.00) per occurrence.

(9) Such additional information as may be requested by the city manager or his/her/their designee to determine compliance with this section.

(Ord. No. 18-099, § 3, 7-17-18; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-285. Issuance of alternative passenger vehicle permit.

(a) Within thirty (30) days after the filing of a completed application for an alternative passenger vehicle permit, the applicant shall be notified by the city manager, or his/her/their designee, of the decision on the issuance or denial of the permit. The manager, or his/her/their designee, shall consider the standards set forth in this article in determining whether to grant a permit. If the permit is denied, the applicant shall be provided with a statement of the reasons therefore, which reasons shall be entered in writing on the application.

(b) Upon payment of the applicable fee, alternative passenger vehicle permits issued pursuant to this article shall expire on June 30 of the subsequent year. Applications approved after the expiration of eleven (11) months of the current fiscal year shall be issued permits for the upcoming fiscal year.

(c) No permit fee shall be abated, nor shall a refund of any part thereof be made, in any case where the permittee discontinues his/her/their business before the end of the period for which the permit was issued.

(d) Fees.

(1) The fee for an alternative passenger vehicle business is fifty dollars ($50.00) which shall be paid on an annual basis.

(2) The fee for an alternative passenger vehicle is fifteen dollars ($15.00) per vehicle which shall be paid on an annual basis.

(e) A permit decal will be issued for each approved alternative passenger vehicle. The alternative passenger vehicle permit decal shall be displayed at all times during the operation of the alternative passenger vehicle where it can be inspected at any time by any proper city official.

(f) Permits and decals are non-transferable.

(Ord. No. 18-099, § 3, 7-17-18; Ord. No. 20-163, § 3, 12-15-20)

Sec. 26-286. Alternative passenger vehicle permit denial, suspension and revocation.

(a) Any alternative passenger vehicle permit may be denied, suspended or revoked for fraud or misrepresentation in the application for the permit or in the conduct of the business, for conduct of the business in such a manner as to create a public nuisance, or constitute a danger to the public health, safety, welfare, or morals, or for conduct which is contrary to the provisions of this chapter.

(b) Any alternative passenger vehicle business whose permit is denied, suspended or revoked pursuant to this section shall not be granted a new permit for a period of thirty (30) days for the first offense and twelve (12) months for the second offense.

(Ord. No. 18-099, § 3, 7-17-18)

Sec. 26-287. Driver's permit required.

A pedal car driver shall apply for and secure a driver's permit in accordance with the requirements and procedures, including but not limited to those pertaining to denial, suspension, and revocation of chapter 28, article II, division 4, taxicab drivers' permit. For the purposes of this section, the references to "taxicab" in section 28-66 through section 28-76 shall be deemed to

refer to "pedal car". Pedal car drivers are exempt from the taxicab drivers dress code requirements of section 28-67.
(Ord. No. 18-099, § 3, 7-17-18)

Sec. 26-288. Areas of operation.

(a) Alternative passenger vehicles shall be permitted to operate only on streets or portions of streets designated in traffic schedule 12B in accordance with section 16-53. Requests to operate on streets not designated in traffic schedule 12B must be approved by the city transportation director.

(b) Operation of alternative passenger vehicles shall be specifically prohibited:

(1) On any street, highway, or thoroughfare with a posted speed limit greater than thirty-five (35) miles per hour;

(2) On any sidewalk, pedestrian walkway, greenway or city park except as otherwise specified;

(3) In any spaces upon the streets that have been established as taxicab stands or other prohibited areas;

(4) On any street closed in connection with an approved special event permit unless approved to operate in conjunction with the event by the city and permit holder; and

(5) When weather conditions are sufficiently adverse or inclement as to endanger passengers or the public.

(c) Alternative passenger vehicles are not permitted to stop, stand, or park on public property except as follows:

(1) At a traffic light/signal;

(2) In a legal parking space, provided that the fee for occupying said space is paid, if applicable;

(3) In loading/unloading zones; or

(4) On any portion of a public street, alley, plaza, park, or similar public place that may be designated as parking for alternative passenger vehicles.

(d) Designated areas, routes, parking, and loading/unloading zones may be established, modified, or prohibited by the city manager as deemed necessary for the protection of the public safety, health, and welfare.
(Ord. No. 18-099, § 3, 7-17-18)

Sec. 26-289. Standard operating regulations.

No person shall drive or operate an alternative passenger vehicle upon the streets of the City of Greensboro and no owner shall permit it to be so driven or operated unless the vehicle is operated in compliance with all of the requirements of this section.

(a) No owner shall operate an alternative passenger vehicle business without an alternative passenger vehicle permit.

(b) All alternative passenger vehicles shall conspicuously display a valid alternative passenger vehicle permit decal on the windshield or other prominent location on the vehicle body.

(c) An alternative passenger vehicle business shall prepare a training program for its drivers covering at minimum, the safe operation of alternative passenger vehicles, customer service policies, and the requirements of this article. All drivers must complete the training program before operating an alternative passenger vehicle.

(d) No driver under the age of 18 shall operate an alternative passenger vehicle.

(e) No driver shall operate an alternative passenger vehicle unless that person has a current valid North Carolina driver's license.

(f) No driver shall drive an alternative passenger vehicle without first having obtained a driver's permit from the city's taxicab inspector in accordance with section 26-287.

(g) An alternative passenger vehicle driver shall at all times, while operating the vehicle, prominently post and display in such vehicle, so as to be visible to the

passengers therein, his/her/their driver's permit to drive or operate an alternative passenger vehicle. Such permit shall contain a photograph of the driver. The driver's permit shall be and remain the property of the city. In the event such permit is lost or stolen, such loss shall be immediately reported to the chief of police or his/her/their designee and a new permit obtained.

(h) No driver shall operate, or cause to be operated, an alternative passenger vehicle in an unsafe condition.

(i) No driver shall operate an alternative passenger vehicle in excess of fifteen (15) miles per hour.

(j) Alternative passenger vehicles are only permitted to be driven or operated in the city on designated streets or thoroughfares. No alternative passenger vehicle may be driven or parked on a sidewalk.

(k) A driver shall not stop to load or unload passengers or their belongings in travel lanes, intersections of any street, crosswalks, or in any manner or other location that would be considered unsafe. No driver shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets.

(l) Alternative passenger vehicles shall stay to the far right of the traveled portion of the road and yield the right-of-way to overtaking motor vehicles.

(m) A driver shall have in his/her/their possession proof of insurance and a valid state driver's license. These documents shall be made available upon request of law enforcement, an authorized city license inspector, or traffic control agent.

(n) A driver shall operate the alternative passenger vehicle in compliance with all applicable federal, state, and local traffic laws, ordinances, or other applicable regulations and in a manner so as to assure the safety of persons and property.

(o) A driver shall not consume any alcoholic beverages while on duty or operate an alternative passenger vehicle while impaired in any manner to any threshold.

(p) All alternative passenger vehicles shall be maintained by the alternative passenger vehicle business so as to be well painted and have an appearance free of damage or deterioration, and a safe operational condition.

(q) An owner, operator, or driver shall inspect on a daily basis all alternative passenger vehicles and all equipment at the time of departure from and return to the alternative passenger vehicle business' place of vehicle storage.

(r) Alternative passenger vehicles shall be subject to inspection by the city department of transportation or the Greensboro Police Department.

(s) All alternative passenger vehicles shall have the trade name and phone number of the business conspicuously displayed on the vehicle.

(t) A driver shall obey and comply with any lawful order or direction of any police officer, traffic control agent, or license inspector, and shall refrain from the use of any profane language or from interference with such officials while in the performance of their duties.

(u) No driver shall allow a passenger or other individuals to drive their alternative passenger vehicle.

(v) No driver shall operate an alternative passenger vehicle unless all passengers are seated in a seat designated for that purpose.

(w) No driver shall permit more passengers to be carried in an alternative passenger vehicle than the vehicle's normal seating capacity.

(x) No driver shall permit any passenger twelve (12) years of age or younger to ride in an alternative passenger vehicle unaccompanied by an adult.

(y) A driver shall actively and affirmatively manage the behavior of the passengers of the alternative passenger vehicle so that that their behavior remains law-abiding during the excursion, both while the vehicle is in motion and at a stop. Behavior which shall be prohibited and prevented includes specifically, but is not limited to, indecent exposure, disorderly conduct, public urination, and littering.

(z) No music or amplified sound shall be played, nor yelling or conversation be conducted, in such a manner that it would violate chapter 18, article IV, offenses of unreasonable or disturbing sound.

(aa) An alternative passenger vehicle business shall adopt and operate a system for the collection, storage, and return of personal property left on-board an alternative passenger vehicle.

(bb) Advertisements shall only be allowed on or affixed to the manufactured body of the alternative passenger vehicle. No banners, poles, flags, detached signs, or any other addition or object may be attached to an alternative passenger vehicle.

(cc) The driver of a alternative passenger vehicle shall remain on the vehicle or immediately adjacent to the vehicle at all times when such vehicle is upon the public streets; except that, when reasonably necessary, a driver may be absent from the vehicle for not more than ten consecutive minutes when the vehicle is in a legal parking space.

(dd) The operator or owner of any alternative passenger vehicle shall immediately report to the police any accident arising in connection with the operation of the vehicle, which report shall be in writing and shall contain full information as to the time and place of the accident, the name of the driver of the vehicle, the owner of the vehicle, the name or names of persons injured or killed, the names and addresses of witnesses, the approximate amount of property damage done and a further report of the cause of such accident.

(Ord. No. 18-099, § 3, 7-17-18)

Sec. 26-290. Additional operating conditions for pedal cars.

(a) All pedal car passengers consuming alcohol shall be of legal age.

(b) No glassware of any kind, except that which is secured in a designated storage area, shall be allowed on a pedal car including but not limited to bottles, receptacles or drinking glasses.

(c) No alcoholic beverages other than beer, wine, hard cider, or malt-based beverages may be consumed by passengers of a pedal car.

(d) Alcoholic beverages as defined in this section may only be consumed in plastic or foam cups.

(e) Only alcohol supplied by passengers shall be permitted on a pedal car. A driver may not provide an alcoholic beverage to a passenger for a fee or as part of the passenger transport service.

(f) A driver shall not permit passengers to exit the pedal car with an open container of alcoholic beverage.

(g) No pedal car passenger shall exit the pedal car with an open container of alcoholic beverage.

(h) The pedal car driver shall properly dispose of all trash.

(i) No pedal car driver shall permit more than two (2) persons in addition to the driver to be in the center aisle while the vehicle is in motion.

(j) All passengers not in the center aisle must remain seated and strapped into a seat while the pedal car is in motion.

(k) Operating hours of pedal cars shall be specifically prohibited between the hours of 12:00 a.m. and 8:00 a.m. all days of the week and between 4:00 p.m. and 6:00 p.m. on weekdays, excluding national holidays. Upon the approval

of a written request made to the city department of transportation, the prohibition of hours of operation may be waived for special events.

(l) Pedal cars shall not be operated within designated bicycle lanes, but shall instead move with traffic like motor vehicles.

(m) The primary location of the pedal car business, passenger meeting area, loading, and vehicle storage shall be located on private property in a designated area zoned for commercial uses and must not impede any drive aisles or required parking spaces.

(n) Rides must be prearranged and fares agreed prior to the commencement of each tour. Pedal cars are prohibited from picking up additional passengers after a tour has departed from its point of origin.
(Ord. No. 18-099, § 3, 7-17-18)

Sec. 26-291. Pedal car safety and equipment standards.

(a) All pedal cars must meet the following equipment and safety standards:

(1) A maximum length of twenty (20) feet, a maximum width of eight (8) feet six (6) inches, and a maximum height of twelve (12) feet;

(2) Unibody frame construction;

(3) Four (4) or more wheels;

(4) Rubber on all wheels;

(5) Seatbelts for passengers, sufficient to securely tether passengers to their seats;

(6) A fully operational horn or bell;

(7) A standard, functional speedometer, exposed to view;

(8) Easily accessible emergency equipment, including a multi-functional fire extinguisher and a fully stocked first-aid kit;

(9) Headlights that have a beam of at least three hundred (300) feet;

(10) Flashing taillights that are visible from at least five hundred (500) feet;

(11) Mirrors affixed to the pedal car to reflect to the driver a view of at least two hundred (200) feet from the rear of the pedal car;

(12) Brake lights affixed to the rear of the pedal car that must be visible at a distance of at least two hundred (200) feet from that rear of the pedal car and must be illuminated at all times during darkness;

(13) Turn signals affixed to the front and rear of the vehicle;

(14) Working running lights along the outermost parts of the front, sides, and rear of the vehicle so as to make the vehicle clearly visible to motorists at night;

(15) Hydraulic, mechanical disk, or drum brakes that are unaffected by wet conditions and that control the front and rear of the pedal car;

(16) Body painted with bright, reflective paint;

(17) If electric motor assistance is installed, it must meet all manufacturer standards and be inspected by a certified mechanic on an annual basis.

(b) Trailers are prohibited from being attached to pedal cars.

(c) Any pedal car not in compliance with the minimum requirements of this section may be cited and placed immediately out of service. Any vehicle which has been so removed from service shall not be returned to service until such vehicle has been approved by the city's taxicab inspector for resumption of service.
(Ord. No. 18-099, § 3, 7-17-18)

Secs. 26-292—26-299. Reserved.

ARTICLE XI. SOCIAL DISTRICT

Sec. 26-300. Purpose and intent.

(a) Pursuant to the provisions of G.S. § 160A-205.4, et seq, one or more social districts may be created within the city and the city hereby creates and designates the following social districts:

(1) Downtown Greensboro Social District which is designated as shown on a map dated December 9, 2021; the map is available in the office of the city clerk, and signage and/or markings shall be posted clearly delineating the boundaries of the social district.

(2) State Street Social District which is designated as shown on a map dated December 7, 2022; the map is available in the office of the city clerk, and signage and/or markings shall be posted clearly delineating the boundaries of the social district.

(b) The Downtown Greensboro Social District and the State Street Social District shall be created, designated, and managed in accordance with the requirements contained in G.S. § 160A-205.4 and Chapter 18B.

(c) Pursuant to G.S. § 14-4, any person who violates this article, and any person who aids, abets, encourages, assists in, or contributes to such violation, shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).
(Ord. No. 21-185, § 1, 12-21-21, eff. 3-1-22; Ord. No. 22-264, § 1, 12-20-22; Res. No. 048-24, § 1, 2-20-24)

Sec. 26-301. Definitions.

Non-permittee means and refers to a person holding no ABC permits issued by the North Carolina Alcoholic Beverage Control Commission.

Permittee means and refers to a person holding any of the following ABC permits issued by the North Carolina Alcoholic Beverage Control Commission established under G.S. § 18B-200:

(1) An on-premises malt beverage permit issued pursuant to G.S. 18B-1001(1).

(2) An on-premises unfortified wine permit issued pursuant to G.S. 18B-1001(3).

(3) An on-premises fortified wine permit issued pursuant to G.S. 18B-1001(5).

(4) A mixed beverages permit issued pursuant to G.S. 18B-1001(10).

(5) A distillery permit issued pursuant to G.S. 18B-1100(5).

Person means and refers to an individual, firm, partnership, association, corporation, limited liability company, other organization or group, or other combination of individuals acting as a unit.

Premises means and refers to a fixed permanent establishment, including all areas inside or outside the permitted establishment, where the permittee has control through a lease, deed, or other legal process.

Social district means and refers to a defined outdoor area in which a citizen may consume alcoholic beverages sold by a permittee. This term does not include the permittee's licensed premises or an extended area allowed under G.S. § 18B-904(h).
(Ord. No. 21-185, § 1, 12-21-21, eff. 3-1-22; Ord. No. 22-264, § 1, 12-20-22)

Sec. 26-302. Application.

(a) The provisions and terms contained in this article shall be applicable between the hours of 12:00 p.m. and 9:00 p.m., Monday through Sunday. At all other times, the provisions and terms contained in this article are not in effect and all provisions of state and local laws concerning the possession and consumption of alcohol shall be in full force and effect.

(b) Any alcoholic beverage purchased for consumption in a social district shall (i) only be consumed in that social district and (ii) be disposed of before the person in possession of the alcoholic beverage exits that social district unless the person is reentering the licensed premises where the alcoholic beverage was purchased. Pursuant to G.S. § 14-4, any person who violates

this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). (Ord. No. 21-185, § 1, 12-21-21, eff. 3-1-22; Ord. No. 22-264, § 1, 12-20-22; Res. No. 048-24, § 1, 2-20-24)

Sec. 26-303. Requirements for sale of alcoholic beverages.

A permittee located in or contiguous to a social district may sell alcoholic beverages for consumption within that social district in which it is located in or contiguous to in accordance with the following requirements:

(1) The permittee shall only sell and serve alcoholic beverages on its licensed premises.

(2) The permittee shall only sell alcoholic beverages for consumption in the social district in which it is located in a container that meets all of the following requirements:

a. The container clearly identifies the permittee from which the alcoholic beverage was purchased.

b. The container clearly displays a logo or some other mark that is unique to the social district in which it is sold.

c. The container is not comprised of glass.

d. The container displays, in no less than 12-point font, the statement, "Drink Responsibly—Be 21."

e. The container shall not hold more than sixteen (16) fluid ounces.

(3) The permittee shall not allow a person to enter or reenter its licensed premises with an alcoholic beverage not sold by the permittee.

(Ord. No. 21-185, § 1, 12-21-21, eff. 3-1-22; Ord. No. 22-264, § 1, 12-20-22)

Sec. 26-304. Requirements for possession and consumption of alcoholic beverages.

The possession and consumption of an alcoholic beverage in a social district is subject to all of the following requirements:

(1) Only alcoholic beverages purchased from a permittee located in or contiguous to the social district may be possessed and consumed in that social district.

(2) Alcoholic beverages shall only be in containers meeting the requirements set forth in section 26-303 of this article.

(3) Alcoholic beverages shall only be possessed and consumed during the days and hours set forth in section 26-302 of this article.

(4) Nothing in this subdivision shall be construed as authorizing the sale and delivery of alcoholic beverage drinks in excess of the limitation set forth in G.S. § 18B-1010.

(5) A person shall dispose of any alcoholic beverage in the person's possession prior to exiting the social district in which the beverage was purchased unless the person is reentering the licensed premises where the alcoholic beverage was purchased.

(6) A participating non-permittee business is required to always display the uniform sign during the times when the social district is active as to whether the business allows for patrons to enter their business with alcohol.

(7) All permittee and non-permittee businesses that are part of a social district and allow customers to bring alcoholic beverages onto their premises are required to clearly post signage on any exits that do not open to the social district indicating that alcoholic beverages may not be taken past that point.

(8) During the days and hours when the social district is in effect as set forth in section 26-302, a non-permittee business that allows customers to bring alcoholic

beverages onto its premises is required to allow law enforcement officers access to the areas of the premises accessible by customers.

(9) Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00).

(Ord. No. 21-185, § 1, 12-21-21, eff. 3-1-22; Ord. No. 22-264, § 1, 12-20-22; Res. No. 048-24, § 1, 2-20-24)

Sec. 26-305 Exceptions.

When a special event (as that term is used in article IX of this chapter) is held pursuant to the issuance of a special event permit (as that term is used in article IX of this Chapter) the terms of the special event permit supersede the provisions of this article within the boundaries of the special event. Any alcohol purchased within the boundaries of the special event may not be taken outside of the special event, even if the alcohol is to be taken from the boundary of the special event into the boundary of a social district. Pursuant to G.S. § 14-4, any person who violates this section shall be guilty of a class 3 misdemeanor with a fine of fifty dollars ($50.00). (Ord. No. 21-185, § 1, 12-21-21, eff. 3-1-22; Ord. No. 22-264, § 1, 12-20-22; Res. No. 048-24, § 1, 2-20-24)

Sec. 26-306. Severability.

If any section, phrase, sentence or portion of this article is held void, invalid, unconstitutional or unenforceable for any reason by any court of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof.
(Ord. No. 21-185, § 1, 12-21-21, eff. 3-1-22)

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Chapter 27

RESERVED*

*__Editor's note—__Ord. No. 10-163, §1, adopted Nov. 9, 2010, repealed ch. 27 in its entirety. The former ch. 27 pertained to stormwater management ordinance and derived from Ord. No. 94-22, § 1, adopted May 2, 1994; Ord. No. 99-35, § 1, adopted Mar. 15, 1999; Ord. No. 99-97, § 1, adopted June 15, 1999; Ord. No. 00-46, § 1, adopted Mar. 3, 2000; Ord. No. 00-54, §§ 1, 3—6, adopted Apr. 4, 2000; Ord. No. 00-225, §§ 1—3, adopted Dec. 5, 2000; Ord. No. 01-79, § 2, adopted Apr. 3, 2001; Ord. No. 02-103, § 1, adopted June 18, 2002; Ord. No. 03-151, § 1, adopted June 17, 2003; Ord. No. 04-169, §§ 1—7, adopted Sept. 7, 2004; Ord. No. 08-213, §§ 1—3, adopted July 15, 2008; Ord. No. 09-9, §§ 1, 2, adopted Jan. 6, 2009; Ord. No. 09-57, §§ 1, 3—10, 12—28, adopted Apr. 7, 2009.

Refer to section 30-12-7 of the land development ordinance for stormwater management requirements.

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Chapter 28

TAXICABS AND BUSES*

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ARTICLE I. IN GENERAL

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ARTICLE II. TAXICABS*

DIVISION 1. GENERALLY

Sec. 28-16. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Certificate of public convenience and necessity means a certificate issued by the City of Greensboro allowing the holder of the certificate to operate a taxicab or a taxicab service. Each person engaged in the business of operating a taxicab service shall make an application to the City of Greensboro for a certificate. There must be a vehicle registered to each certificate. The titled owner of each vehicle must be the same person whose name is listed on the certificate. A certificate is a license to operate a taxicab service and is non-transferable. A certificate must be surrendered to the City of Greensboro upon demand by the city. Once an applicant receives a certificate, the certificate must be renewed one (1) time per year. Certificates must be displayed in a location visible to passengers.

Driver or *operator* means any person who actually drives or operates a cab or taxicab on the streets of the city for hire. No person shall drive or operate a taxicab unless licensed by the City of Greensboro.

Firm means an owner engaged in the operation of taxicabs under a tradename.

Meter means a time and/or distance measuring device used for the purpose of calculating fares. A meter may be a taximeter, or other device typically used as an industry standard that keeps an accurate calculation of the fare to be charged.

Owner means any person engaged in a taxicab service and holding legal right to possession and management, to one (1) or more vehicles being operated as a taxicab. No person shall operate as an owner unless licensed by the City of Greensboro.

Taxicab means a passenger motor vehicle plying for hire for which public patronage is solicited and which is so designed as to seat comfortably not more than nine (9) persons.

Taximeter means a mechanical device which is installed in a taxicab for the purpose of computing the fare for a trip upon the basis of distance traveled, waiting time, or both.
(Code 1961, § 20-1; Ord. No. 17-27, § 1, 3-21-17)

Secs. 28-17—28-30. Reserved.

DIVISION 2. CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY

Sec. 28-31. Required.

It shall be unlawful to operate a taxicab business within the corporate limits of the city without first having applied for and obtained a certificate of convenience and necessity therefor from the city council.
(Code 1961, § 20-2)

Sec. 28-32. Application.

(a) Any person desiring a certificate of convenience and necessity for the operation of a taxicab shall file with the chief of police, or his/her/their designee, a sworn application therefor, in duplicate, on forms provided by the chief of police. Every application for a certificate of convenience and necessity shall be accompanied by the sum of one hundred dollars ($100.00) to defray the cost of the investigation to be made of the applicant. Every application must be renewed one (1) time per year on or before the date the application was issued. There shall be no charge for the annual renewal. There must be a certificate of convenience and necessity for each taxicab

*__Cross reference—__Privilege license on taxicabs, § 13-113.

__State law reference—__Taxicab regulations authorized, G.S. § 160A-304.

operated within the City of Greensboro. An application must be activated by placing a vehicle into service within 90 days of the application date.

(b) The application will contain the following information:

(1) The name and address of the person, partnership, business, firm or corporation, or proposed partnership, business, firm or corporation. The name and address of the person or persons who own, operate, or manage the business, and in the event that the applicant be an existing corporation, a copy of the articles of incorporation, and a copy of the corporate filing from the North Carolina Secretary of State.

(2) The number of vehicles actually owned and the number of vehicles actually operated by such applicant on the date of such application, if any, or anticipated number of same to be readily available for service.

(3) Whether there are any unpaid or unbonded judgments or records against such applicant, and if so, the title of all actions and the amount of all judgments unpaid or unbonded.

(4) The make, type, year of manufacture, and passenger capacity of the taxicab for which this application for a certificate of public convenience and necessity is made.

(5) Court record of applicant. If applicant is a person, partnership, business firm or corporation or proposed person, partnership, business, firm or corporation, the court record of any owners, operators, managers, officers, directors, and supervising employees thereof, including general manager, if any. The city council shall not issue a certificate of convenience if court records do not comply with the requirements of section 28-70, paragraphs (a)(2) and (a)(3).

(6) An accurate description of the proposed or actual taxicab operation, including size and description of building to be utilized; off-street storage facilities; color scheme of taxicabs; use of radio transmitters and receivers for both base and mobile units; use of cell phones; use of internet applications; maintenance of vehicles; use and location of call boxes, availability and source of employees and drivers; recording and office equipment; and any other information necessary in order for the council to evaluate the applicant's ability to provide and maintain taxicab service as required under this article.

(7) Such other information as the council may, in its discretion, require.

(c) Any fees or costs incurred by the city in the investigation of the applicant shall be borne by the applicant.
(Code 1961, § 20-4; Ord. No. 90-54, § 1, 4-12-90; Ord. No. 00-155, § 1, 6-6-00; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-33. Determination of public convenience and necessity.

(a) The city council shall determine whether public convenience and necessity require the issuance of certificates of convenience and necessity. Additional certificates of convenience and necessity as authorized by the council, and any other certificate vacancies which may occur, may be issued by the city council when the council finds that public necessity and convenience require the operation of additional taxicabs upon the streets.

(b) Annually or in its discretion at more frequent intervals, the council shall review, study and analyze the public need for additional taxicabs and, upon finding by the council that public necessity and convenience require the operation of additional taxicabs, other than those for which certificates are presently outstanding, additional certificates shall be declared available and applications may be filed during a certain period of time as prescribed by the city council; certificates shall then be awarded in accordance with the procedure set forth in this division.

(c) For the purpose of determining the need for increased or improved taxicab service, the chief of police shall, annually, or at the will of the council, conduct a survey to determine the adequacy of taxicab service in the city. The survey shall include the following:

(1) Total number of cabs then licensed and in actual operation on the streets.

(2) The number of filled and unfilled telephone requests for taxicab service made during average twenty-four-hour periods.

(3) The demand for taxicab service at taxicab stands that is filled and unfilled.

(4) The average waiting time of persons at taxicab stands and of those persons requesting service by telephone before service is available to them.

(5) The adequacy of taxicab service provided at railroad stations, bus terminals, and other transportation terminals.

(6) The number and availability of qualified full-time and part-time drivers to operate existing taxicabs.

(Code 1961, § 20-3)

Sec. 28-34. Issuance standards and procedures.

(a) In determining whether public convenience and necessity require the operation of a taxicab or taxicabs and in issuing certificates for which applications are made, the council shall consider in addition to the information set forth in the applications:

(1) Whether the demand of the public requires additional taxicab service.

(2) The adequacy of existing mass transportation, and taxicab service.

(3) The financial responsibility, experience and quality of service being rendered, if any, by each applicant.

(4) The total number of certificates held by each applicant.

(5) The ability to provide continuity of service regarding certificates surrendered by associates of applicant.

(6) The ability of each applicant to earn a fair return on the capital invested.

(7) The number, kind and type of equipment.

(8) The ability of each applicant to provide an efficient level of service.

(9) The survey and recommendation of the chief of police.

(10) Any other considerations as in the opinion of the council will tend to improve taxicab service in the city and which will assist in determining whether public necessity and convenience require the operation of additional taxicabs.

(11) In order to operate a taxicab business or firm, an owner shall have a minimum of seven (7) cabs in rotation.

(b) The council shall not issue a certificate of convenience and necessity to any applicant unless the council is satisfied that the applicant is qualified pursuant to the provisions of this chapter, and shall conform to and comply with the provisions, terms and conditions of this article, including section 28-70, paragraphs (a)(2), (3), and the applicant has been determined to meet the following requirements:

(1) The applicant is at least eighteen (18) years of age or is otherwise legally emancipated.

(2) The applicant has not entered a plea of guilty or no contest to nor has been convicted of:

a. A violation of any federal or state statute relating to prostitution or gambling laws, or the use, possession, or sale of a controlled substance within five (5) years preceding the application;

b. A violation of any federal or state statute relating to transporting or selling or possessing intoxicating liquors within five (5) years preceding the application;

c. A felony within five (5) years preceding the application;

d. Any crime which may reasonably be interpreted as involving moral turpitude or is so offensive to the public morals or of a sexual perversion as to justify the conclusion that the applicant is not of good moral character, including but not limited to those offenses listed in Chapter 14, Article 26 and Article 27 of the North Carolina General Statutes, relating to offenses against public morality and decency and crimes related to prostitution within five (5) years preceding the application;

e. A violation of any state statute relating to operating an automobile while under the influence of alcohol or drugs, or when the amount of alcohol in the blood meets or exceeds a specifically prohibited level, or when the operation of a vehicle has been directly and visibly affected by the operator's consumption of alcoholic beverages within five (5) years preceding the application.

(3) The applicant is not an habitual user of drugs or intoxicating liquors.

(4) There are no unpaid and unbonded judgments of record against the applicant; or, if unpaid and unbonded judgments of record exist, the applicant has established and maintained regular periodic payments in discharge of the liability, which payments are designed to discharge the liability within a reasonable period of time considering the amount of the liability.

(5) Reserved.

(6) The applicant has demonstrated the ability to purchase insurance as required by this chapter.

(7) The applicant has demonstrated the ability to place in service within ninety (90) days of the issuance of the certificate a vehicle adequate to provide and maintain the quality of service required by this chapter and meeting all of the requirements of this chapter for a taxicab.

(8) The applicant has demonstrated the ability to establish within ninety (90) days of the issuance of the certificate, a depot, terminal, or other base of operation for receiving of requests for taxicab service and the dispatching of taxicabs in response to requests for service adequate to provide and maintain the quality of service required by this chapter, and has demonstrated the ability to obtain within ninety (90) days of the issuance of the certificate the necessary recording and office equipment and other necessary equipment and things adequate to provide and maintain the quality of service required by this chapter and sufficient to comply with all of the provisions of this chapter including all the record keeping and reporting provisions.

(9) The applicant has registered properly with the state the correct and true owner's name of any vehicle intended to be operated pursuant to the certificate.

(10) There has not been a revocation of any certificate of convenience and necessity previously issued to the applicant within the twelve (12) months preceding application.

(11) Issuance of the certificate to the applicant will not result in the applicant holding such number of certificates or such percentage of all issued certificates that a pernicious effect on competition will result or that the quality of service to the public sought and required by the provisions of this chapter will be impaired.

The applicant shall provide to the council or its designee any and all facts, evidence, information or documents within the possession or control of the applicant or available to the applicant that shall be reasonably related to the determination of the qualifications of the applicant and as the council or its designee shall request. Further, the submission of the application shall constitute a waiver of all applicant's privileges and rights of

privacy with respect to any document in existence reasonably related to the determination of the applicant's qualifications and shall serve as an authorization to the council or its designee to make inquiry of any person or entity, and to receive any oral or written reports from any person or entity, regarding any facts, evidence or information reasonably related to the determination of the applicant's qualifications. The applicant shall sign any separate written authorization that any person or entity shall require prior to the release of any documents or information concerning the applicant.

(c) The issuance of new certificates of convenience and necessity shall be done as the need arises. All of those persons interested in obtaining a certificate of convenience and necessity shall submit an application under section 28-32. Council or its designee shall review the applicants to determine whether or not the applicants meet the requirements of this chapter. If it is determined that an applicant meets the requirements of this chapter, the applicant will be placed on a list in chronological order.

(d) If the council or its designee finds that one (1) is more qualified than the other applicants after considering the requirements of this chapter, then the applicant who is more qualified shall be awarded the certificate of convenience and necessity. However, if after reviewing the applications the council or its designee feels that some of the applicants are equally qualified, a list of the equally qualified applicants shall be maintained in prioritized order based upon the date and time of application, and each certificate will be awarded according to the sequence of a certificate of convenience and necessity available. Any certificate of convenience and necessity available shall be awarded according to the priority of the applicant on the list, when council or its designee finds the applicants to be equally qualified.

(e) If any person shall refuse the offer of a certificate of convenience and necessity from the council or fails, refuses, or neglects to furnish such additional service within ninety (90) days after the certificate is offered him/her/them, the council or its designee shall withdraw the certificate of convenience and necessity.

(f) Certificate of convenience and necessity, when granted, shall be issued in the name of the city by the city manager or his/her/their designee.
(Code 1961, §§ 20-2, 20-4.1; Ord. No. 88-122, § 1, 9-1-88; Ord. No. 90-54, §§ 2—4, 4-12-90; Ord. No. 00-155, §§ 2, 3, 7-31-00; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 18-144, § 1, 12-18-18; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-35. Term.

An existing certificate of convenience shall be renewed one (1) time per year. Such renewal shall occur on or before the date of the prior year's renewal. There shall be no charge for the annual renewal. Taxicab certificates of convenience and necessity shall not be transferable from one (1) vehicle to another, but upon the acquisition of a replacement vehicle, the certificate for the original vehicle shall be surrendered to the chief of police or designated assistant, and a new certificate shall be issued for the newly acquired vehicle after the vehicle complies with all the requirements of section 20-8.
(Code 1961, § 20-2; Ord. No. 17-27, § 1, 3-21-17)

Sec. 28-36. Revocation.

(a) The chief of police or his/her/their designee shall have the right to revoke any certificate of convenience and necessity issued by him/her/them upon a finding, after notice, that the owner of such certificate of convenience and necessity is not rendering the public generally regular and proper service, as defined herein, or has violated any of the provisions of this article, or has so conducted himself/herself/themself or his/her/their taxicab business that a certificate of convenience and necessity would not have been issued to him/her/them pursuant to section 28-32.

(b) In determining whether the owner of a certificate of convenience and necessity is rendering the public generally regular and proper service, the chief of police or his/her/their designee shall consider the following factors: information provided by the trip sheet records for the taxicab; the odometer mileage of the taxicab; the regularity of taxicab inspection over a period of six (6) consecutive months; compliance in providing the information on a quarterly basis as required by

section 28-92; and any other information relevant to the quality of taxicab service being provided by the holder of such certificate.

(c) In the event the owner/operator is out due to sickness or injury, the six-month period referred to above may be extended until such time as the owner/operator is able to return to work.

(d) The holder of such revoked certificate of convenience and necessity shall have the right of appeal to the city council; such appeal shall be in the nature of certiorari. Such notice of appeal must be made within ten (10) days from the decision of the chief of police or his/her/their designee.

(e) Vehicle resembling a taxicab. It shall be unlawful for any person to operate a vehicle, which is not a licensed taxicab, with painting or markings that would cause a reasonable person to believe that such vehicle is a taxicab. A city taxicab that ceases to be authorized as a taxicab shall have its colors and markings removed, changed, or altered so as not to resemble a taxicab before any operation in the city and may not be visible from any public way, until such removal, change, or alteration, is completed.
(Code 1961, § 20-4.2; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-37. Transfer, etc.

Certificates of convenience and necessity are not transferable. Only the city council shall have the authority to issue or reissue a certificate of convenience and necessity which has been revoked pursuant to this chapter, or which has been surrendered by any holder of a certificate of convenience and necessity, or upon the death, insolvency or bankruptcy of the owner or the sale of the equipment or the quitting of business by such owner, or if the owner is a corporation, upon the transfer of the majority of the stock to any other person. All such certificates of convenience and necessity shall immediately revert to the city to be held until such time as applications are filed and additional certificates awarded pursuant to the requirements of this chapter.
(Code 1961, §§ 20-2, 20-5)

Sec. 28-38. Display.

Upon issuance a certificate of convenience and necessity shall be prominently displayed in the taxicab to which it was issued.
(Code 1961, § 20-4.1)

Secs. 28-39—28-50. Reserved.

DIVISION 3. VEHICLE PERMIT ISSUED BY CITY OF GREENSBORO PRIVILEGE LICENSE OFFICE

Sec. 28-51. Required.

It shall be unlawful for any holder of a certificate of convenience and necessity to operate or permit to be operated any taxicab upon the streets of the city without first having applied for and received a taxicab vehicle permit from the City of Greensboro Privilege License Office for the operation of each vehicle engaged as such.
(Code 1961, § 20-6; Ord. No. 17-27, § 1, 3-21-17)

Sec. 28-52. Application.

Separate applications must be made for each taxicab vehicle permit on a form approved by the chief of police and requiring substantially the following information:

(1) The full name and address of owner.

(2) Full description of the vehicle, make, type, year of manufacture, engine number, color scheme, lettering and marks, and its seating capacity exclusive of the driver.

(3) The name and address of the firm, if any, from which operated and a statement to the effect that public liability and property damage insurance, as required by this chapter, has been filed with the police chief or his/her/their designee.

(Code 1961, § 20-7; Ord. No. 88-122, § 2, 9-1-88; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-53. Transfer.

Taxicab vehicle permits shall not be transferable from one (1) vehicle to another but upon the requiring of a replacement vehicle the permit for

the original vehicle shall be surrendered to the chief of police or designated assistant, and a new vehicle permit be issued for the newly acquired vehicle after the vehicle complies with all the requirements of section 20-8.

Sec. 28-54. Vehicle inspector—Generally.

(a) After filing an application for a vehicle permit to operate a taxicab, the owner thereof must submit and present each vehicle for which an application has been made to the chief of police or his/her/their designated assistant, at a place and time to be fixed by the chief of police, or such designated assistant for an inspection of the brakes, lights, horn, tires, all other safety features of the vehicle, a road test of the vehicle, an inspection and test of the taximeter, and for the inspection of the interior of the cab or taxicab with respect to the general condition of the upholstering, rugs, or floor covering, the general cleanliness thereof and an inspection of the exterior condition of the vehicle which must be free of torn, flaking or protruding metal which could constitute a safety hazard.

(b) At the time of inspection or at any time during the term of the vehicle permit, the discovery of any inaccuracy in any of the vehicle safety features or other items required to be inspected or tested by this section, the taxi inspector shall cause the taxicab to be removed from service until the taxicab has been repaired and complies with the requirements of this section. The owner or operator of such vehicle so removed from service may appeal such action to the city manager or his/her/their designee but the vehicle shall remain out of service pending the decision of the city manager.

(c) It shall be unlawful for the owner or operator of any motor vehicle operating as a taxicab to operate said motor vehicle upon the streets of the city unless the motor vehicle is equipped with at least two (2) sets of seat safety belts for the front seat, and at least three (3) sets of seat safety belts for the rear seat of the taxicab.
(Code 1961, § 20-8; Ord. No. 90-54, § 6, 4-12-90; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-55. Same—Certificate of inspection; issuance; posting.

If, upon examination of the vehicle for which an application for a taxicab vehicle permit has been made, it is found by the chief of police or his/her/their designated assistant to be in proper condition, he/she/they shall issue and cause to be affixed to the windshield of the vehicle a certificate of inspection of the sticker type in the form approved by the chief of police. The sticker shall be effective for two (2) months of the calendar year. Before the expiration of such certificate, every taxicab owner shall be sent written notice from the chief of police, or his/her/their designated assistant, of the requirements to submit all vehicles operated by the (owner) for reinspection at a designated time and place as provided in section 28-54 and a new inspection certificate shall be issued in accordance with the provisions of this section. No taxicab shall be operated on the streets of the city without displaying an effective certificate of inspection.
(Code 1961, § 20-9; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

Secs. 28-56—28-65. Reserved.

DIVISION 4. DRIVERS' PERMIT

Sec. 28-66. Required.

No person shall drive or operate any taxicab carrying passengers for hire from place to place within the corporate limits, or to points within a radius of five (5) miles thereof, unless that person shall have first applied to the chief of police or his/her/their designee and secured the approval of a driver permit to operate a taxicab.
(Code 1961, § 20-33; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Authority to require drivers' permit, G.S. § 160A-304(a).

Sec. 28-67. Application.

(a) The application required of applicants for a permit to drive a taxicab, shall be made upon forms furnished by the city for such purposes and shall, among other things, state the name,

address, physical condition, physical description, former employers, court records, and state license number.

(b) The application shall be signed and sworn to by the applicant. The applicant shall further appear at the police department for the purpose of having his fingerprints taken, at which time he/she/they shall submit two (2) prints of a two-inch by two-inch full-face photograph of a type to be approved by the city manager.

(c) That pursuant to the authority granted to the city, by North Carolina General Statute 160A-304, each applicant shall submit to having his/her/their fingerprints taken in a form acceptable to the North Carolina State Bureau of Investigation and the Federal Bureau of Investigation, for a required statewide and national criminal record check of applicants for a taxicab driver permit.

(d) All applicants submitting an application for a taxicab driver's permit do agree that they accept the city's taxicab driver's dress code. Applicants agree to be clean and neat in appearance and will not wear flipflops, tank shirts, or shorts while on duty as a taxicab driver.
(Code 1961, § 20-34; Ord. No. 04-142, §§ 1, 2, 8-2-04; Ord. No. 04-201, § 1, 10-21-04; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-68. Persons eligible.

A person is ineligible to apply for the permit required by this division for one (1) year following the date of any revocation or suspension of sixty (60) days or more of his/her/their driver's license for convictions of moving violations and for five (5) years following the date of conviction for driving under the influence of alcohol or drugs, or a substantially equivalent statute.
(Code 1961, § 20-34; Ord. No. 18-104, § 1, 8-21-18; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-69. Investigation and issuance.

The chief of police shall investigate the facts stated in the application for the permit required by this division and shall report his/her/their findings and recommendations to the city manager, and upon the approval of the city manager, he/she/they shall issue a permit. Any fees or costs incurred by the city by any part of the investigation shall be paid by the permit applicant.
(Code 1961, §§ 20-34, 20-35; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-70. Issuance standards; hearing, etc., or denial.

(a) The chief of police or his/her/their designee shall approve the application for the permit required by this division unless he/she/they finds:

(1) The applicant has not reached the age of eighteen (18) years or older, or is otherwise not legally emancipated.

(2) The applicant had an order entered continuing prayer for judgment, has entered a plea of guilty or no contest, or been convicted of:

a. A violation of any federal or state statute relating to prostitution or gambling laws, or the use, possession, or sale of a controlled substance within five (5) years preceding the application;

b. A violation of any federal or state statute relating to transporting or selling or possessing intoxicating liquors within five (5) years preceding the application;

c. A felony within five (5) years preceding his/her/their application;

d. Any crime which may reasonably be interpreted as involving moral turpitude or is so offensive to the public morals or of a sexual perversion as to justify the conclusion that the applicant is not of good moral character, including but not limited to those offenses listed in Chapter 14, Article 26 and Article 27 of the North Carolina General Statutes, relating to offenses against public morality and decency and crimes related to prostitution within five (5) years preceding the application.

e. A violation of any state statute relating to operating an automobile while under the influence of alcohol or drugs, or when the amount of alcohol in the blood meets or exceeds a specifically prohibited level, or when the operation of a vehicle has been directly and visibly affected by the operator's consumption of alcoholic beverages within five (5) years preceding the application.

(3) The applicant is an habitual user of drugs or intoxicating liquors.

(4) The applicant is physically or mentally incapable of operating a taxicab or has been treated for any mental disorder, heart attack, epilepsy, or diabetes in a six-month period prior to filing his/her/their application; provided, any applicant who has been treated for any mental disorder, heart attack, epilepsy, or diabetes shall have a written opinion from a physician or psychiatrist, or both, stating that the applicant is physically capable and mentally competent to operate a taxicab, and that the applicant has been free from such recurrence for the past six (6) months. Such medical statement shall accompany said application.

(5) The applicant has made a material false statement in the application for a permit knowing it to be false; or has knowingly omitted required information; the applicant shall not be allowed to submit another application for a permit to drive a taxicab for a period of ninety (90) days.

(b) Upon denial or failure to approve the application, the applicant shall be entitled to a hearing by the city manager or other designated official if within ten (10) days the applicant files a written request for a hearing with the city manager. The hearing shall be held and a decision thereon shall be made within fifteen (15) days after the request, and notice of the decision shall be served upon the applicant in person or by registered mail.

(Code 1961, § 20-36; Ord. No. 90-54, § 5, 4-12-90; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-71. Temporary driver permit.

The chief of police or his/her/their designee may issue a nonrenewable, temporary driver permit to any applicant whose court record, as compiled in the county for the year preceding his/her/their application, meets the requirements of section 28-71 of this chapter. This temporary driver permit shall be valid for a maximum of forty-five (45) days from issue or until his/her/their driver permit has been issued or denied pursuant to section 28-71, whichever period first expires.

(Code 1961, § 20-35.1; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-72. Expiration and renewal.

Taxicab driver's permits shall expire on March 1 of each year. Any persons desiring to renew a driver's permit shall file a new application at least thirty (30) days prior to the expiration date.

(Code 1961, § 20-34; Ord. No. 17-27, § 1, 3-21-17)

Sec. 28-73. Posting; to remain property, etc., of the city; replacement.

The driver or operator of every taxicab shall at all times, while operating the taxicab, prominently post and display in such taxicab, so as to be visible to the passengers therein, his/her/their driver's permit to drive or operate a taxicab. Such permit shall contain a photograph of the driver or operator. The driver's permit shall be and remain the property of the city. In the event such permit is lost or stolen, such loss shall be immediately reported to the chief of police and a new permit obtained.

(Code 1961, § 20-39; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Authority to require display, G.S. § 160A-304(a).

Sec. 28-74. Suspension.

(a) Except for those violations for which revocation is authorized, the chief of police, or his/her/their designee, shall suspend the permit of any person to drive a taxicab upon finding that the permittee has been convicted of, or has entered a

plea of guilty or nolo contendere to, a violation of the motor vehicle laws of the state or chapter 16, or violated any of the provisions of this article.

(b) Upon the first conviction or plea of guilty or nolo contendere, the holder of the permit shall be notified in writing by the taxicab inspector that the same is a matter of permanent record on file in the office of the clerk of court. Upon a second conviction or plea of guilty or nolo contendere within any twelve-month period, the permit shall be suspended for ten (10) days. Upon a third conviction or plea of guilty or nolo contendere within any twelve-month period, the permit shall be suspended for thirty (30) days. For the fourth offense within the same calendar year, the permit shall be revoked.

(c) Upon suspension, a notice thereof shall be served by registered letter upon the permittee. The permittee shall have to surrender the permit immediately but shall have ten (10) days from the receipt of such notice to request in writing that he/she/they have a hearing to determine the basis for the suspension. It shall be unlawful for the person to whom the permit was issued to fail to return the permit to the chief of police. If no hearing is requested, the suspension shall be effective for the period previously designated by the chief of police or his/her/their designee. If a hearing is requested, the city manager or his/her/their designee shall hold such hearing and a decision thereon shall be made within ten (10) days thereafter. Notice of the decision shall be served upon the permittee. Upon the effective date of any suspension, the permittee shall immediately return the permit to the taxicab inspector. No hearing shall be held by the city manager or his/her/their designee or other designated officials unless within ten (10) days from the time of service of the notice of suspension (exclusive of Saturdays, Sundays, and holidays) the permittee files a written request with the city manager. If a request is filed, the hearing shall be held and decision thereon shall be made within ten (10) days thereafter, and notice of the decision shall be served upon the permittee. At the expiration of the suspension period, the permit shall be returned to the permittee, who shall be entitled to the immediate use thereof.

(Code 1961, §§ 20-38, 20-39; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-75. Revocation.

(a) At any time after the issuance of a permit to any person to drive a taxicab, the chief of police or his/her/their designee shall revoke the permit:

(1) If he/she/they finds that the person holding the permit has made a material, false statement in the application for the permit, knowing it to be false.

(2) If he/she/they finds that the person holding the permit is physically or mentally incapable of operating a taxicab in a safe manner; provided, if the person holding the permit has been treated for any mental disorder, heart attack, epilepsy, or diabetes, such person shall submit to the city manager a written opinion from a physician or psychiatrist, or both, stating that the person holding the permit is physically and mentally competent to operate a taxicab and has been free from such recurrence for a period of six (6) months.

(3) If he/she/they finds that the person holding the permit has been convicted of or has entered a plea of guilty or a plea of nolo contendere to:

a. A felony.

b. A violation of any federal or state statute relating to the possession or sale of intoxicating liquors.

c. A violation of any federal or state statute relating to the use, possession, or sale of controlled substances.

d. A violation of any state statute relating to operating an automobile while under the influence of alcohol or drugs, or when the amount of alcohol in the blood meets or exceeds a specifically prohibited level, or when the operation of a vehicle has been directly and visibly affected by the operator's consumption of alcoholic beverages.

e. A violation of any state or federal statute relating to prostitution or gambling.

f. Any crime which may reasonably be interpreted as involving moral turpitude or is so offensive to the public morals, or of a sexual perversion as to justify the conclusion that the applicant is not of good moral character, including but not limited to those offenses listed in North Carolina General Statutes articles 26 and 27 [G.S. §§ 14-177 et seq., 14-203 et seq.].

g. A fourth violation, within any period of twelve (12) months, of the motor vehicle laws of the state, or the traffic ordinances of the city, or any of the provisions of this article.

(b) When grounds for revocation exist, the taxicab inspector shall by registered letter give notice to the holder of such permit that the permit is revoked and must be immediately surrendered. It shall be unlawful for the person to whom the permit was issued to fail to return same to the chief of police. The holder of such permit will have ten (10) days from the receipt of such notice to request in writing a hearing with the city manager or his/her/their designee, but such permit is revoked pending such appeal. If no hearing is requested within the allotted time, any appeal is considered waived at the expiration of the ten-day period. If such hearing is requested and the revocation is affirmed following the hearing, the holder of such permit has ten (10) days from the termination of the hearing to give written notice of appeal to the city council, but such permit shall be in revocation pending such hearing.

(c) The council hearing of any appeal shall be in the form of certiorari. If council finds that revocation is justified, holder may not reapply for a taxicab permit for a minimum of six (6) months.

(Code 1961, §§ 20-37, 20-39; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Grounds for permit revocation, G.S. § 160A-304(a).

Sec. 28-76. Appeals to city council.

(a) Any person denied a permit to operate a taxicab by the city manager, or any person who has had his/her/their permit to operate a taxicab revoked or suspended by the city manager shall have the right to appeal to the city council. Such appeal shall be in the nature of certiorari, but any suspension or revocation remains in effect until after such appeal is heard and a decision rendered.

(b) Notice of such appeal shall be served in writing upon the city manager within ten (10) days from the proposed effective date of the revocation or suspension.

(Code 1961, § 20-40; Ord. No. 20-163, § 3, 12-15-20)

Secs. 28-77—28-90. Reserved.

DIVISION 5. OPERATIONAL RULES AND REGULATIONS

Sec. 28-91. Insurance.

(a) Any owner, before operating any taxicab under the provisions of this article, shall procure and file with the police chief or his/her/their designee a policy or policies of liability insurance with a reliable and responsible insurance company, authorized to do business in the State of North Carolina, as required by North Carolina General Statutes section 20-280.

(b) The policy shall contain a clause obligating the insurance company to give fifteen (15) days' written notice to the police chief or his/her/their designee prior to the cancellation of such insurance on any vehicle. The permit shall ipso facto be revoked by the lapse, cancellation or termination of the policy of insurance, unless the same shall have been renewed or replaced, or a new policy obtained and filed by the owner as herein required.

(c) Such liability policy shall contain a provision that the insolvency or bankruptcy of the person insured shall not release the insurance company from payment of damages for injuries sustained, or death by wrongful act, or loss incurred, and in case of recovery against the insured on account of any such injury, death or loss that the insurance company will pay on account of the judgment recovered in any such action an amount equal to but not exceeding the

amount of the policy or of the judgment, and that the statute of limitation, as fixed by the state law, shall govern time within which the policy may be sued upon to enforce such judgment.
(Code 1961, § 20-26; Ord. No. 88-122, §§ 3, 4, 9-1-88; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-92. Reports by certificate holder.

Each holder of a certificate of convenience and necessity shall report to the city taxi inspector, on a quarterly basis, the following information:

(1) The total number of cabs then licensed and in actual operation on the streets.

(2) The number of filled and unfilled telephone requests for taxicab service made during average twenty-four-hour periods.

(3) The number and availability or qualified full-time and part-time drivers to operate existing taxicabs.

(Code 1961, § 20-3.1)

Sec. 28-93. Shared taxicab service.

(a) In this section "shared taxicab service" means the type of taxicab service which can be used by two (2) or more unassociated passengers at a time and who have either a different origin or a different destination or both and which service is provided at a rate which is less than the rate which would normally be charged to each such person for his/her/their individual travel distance. Each passenger shall have his/her/their own fare recorded on a shared taxicab meter at the start of his/her/their individual trip.

(b) Shared taxicab service shall only be conducted as provided in this section.

(c) Any holder of a certificate of convenience and necessity may apply to the chief of police or his/her/their designee for a special permit which will authorize said holder to operate a shared taxicab service. Only a holder of such special permit may operate taxicab service pursuant to a shared-ride program. No driver of a taxicab shall carry any other person than the passenger first employing such taxicab without the consent of the passenger.

(d) Any person making application for the special permit shall present to the chief of police or his/her/their designee a detailed program for providing shared taxicab service which shall outline:

(1) The fare to be charged each passenger calculated on a schedule of distance traveled.

(2) The method for providing notice to each passenger that the rate of travel is at the reduced rate of shared taxicab service.

(3) A description of the method for transporting each passenger by the shortest route possible considering different origins and/or destinations.

(e) The chief of police or his/her/their designee shall not issue such special permit unless he/she/they finds that the applicant has devised a shared taxicab service program which will result in a passenger being charged a lesser fare than he/she/they would have been charged without the shared taxicab service rate.

(f) Permits issued pursuant to this section shall be valid for the same period of time as the certificate of convenience and necessity.

(g) The chief of police or his/her/their designee shall have the right to revoke any special permit issued by him/her/them upon a finding, after notice, that the holder of such special permit is not rendering the public the level of service required by this section. The holder of such revoked special permit shall have the right of appeal. Such appeal shall be in the nature of certiorari. Notice of any appeal must be made within ten (10) days from the decision of the city manager.
(Code 1961, § 20-13; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Shared ride services allowed, G.S. § 160A-304(a).

Sec. 28-94. Daily record of calls and trips.

(a) Every dispatcher and telephone operator receiving calls for taxicab service within the city shall keep a daily record of all calls received from persons requesting transportation, including the time such a call was received, number of taxicabs

dispatched, and the time the taxicab driver picked up the passenger. Such record shall be open to inspection at all times by the police department.

(b) Every owner, driver, and operator of taxicabs within the city shall keep a daily record of all calls received from persons requesting transportation. The driver of every such vehicle shall keep a record of his/her/their trips, including origin, destination, fare charged, time the driver received the passenger, the time the driver completed the trip, and the fare received at the completion of the trip. Such information shall be recorded on his/her/their trip sheet immediately upon the completion of each trip. Such record shall be open to inspection at all times by the police department, and the trip sheets shall be filed chronologically by car and date at the central taxicab office of the operating association within ninety-six (96) hours from first day of use and shall remain on file at the central taxicab office for a period of three (3) months. Every taxicab driver after receiving a call from the dispatcher to pick up a passenger shall notify the dispatcher immediately after picking up the passenger of the time such passenger was picked up.

(Code 1961, § 20-14; Ord. No. 20-163, § 3, 12-15-20)

State law reference—Administrative search and inspection warrants, G.S. § 15-27.2.

Sec. 28-95. Limitation on hours of driving.

It shall be unlawful for any driver of any taxicab to continue on active taxicab duty for more than twelve (12) hours, meal time included, during any twenty-four-hour period. Each driver shall enter the time of commencing active duty and ending active duty upon the record provided for in section 28-94.

(Code 1961, § 20-15)

Sec. 28-96. Distinctive vehicle color scheme and markings required.

(a) Subject to the approval of the chief of police or his/her/their designee, each taxicab association or firm shall adopt a color scheme or identifying markings for painting or for identifying its taxicabs (distinct from that of any other association or firm) and shall file such identification, identifying design, monogram or other insignia thereof with the chief of police. All additional, new or replacement vehicles put in operation by such association or firm shall comply with the color scheme, or identification design, monogram, or other insignia selected. Whether the vehicles are replaced or not, all taxicabs of each association or firm shall conform to the color scheme, design, monogram, or other insignia chosen and filed. No color scheme, design, monogram or other insignia selected shall be used and shall not be accepted and filed by the chief of police if it in any way infringes upon, or would be confused with the color scheme, design, monogram or insignia of another association or firm previously filed, and no vehicle covered by the terms of this article shall be licensed, nor shall a taxicab vehicle permit be issued therefore whose color scheme, identifying design, monogram, or insignia to be used thereon shall, in the opinion of the city manager, conflict with, imitate, or be confused with any color scheme, identification, design, monogram or insignia on file by an association or firm already operating.

(b) A name identifying the association or firm, taxicab number and telephone number shall be painted with permanent paint or appear on a permanent decal on both sides and rear of each cab, with letters and numbers four (4) inches high or greater. The taxi cab number must be displayed on all four sides of the vehicle. The cab number on the rear shall be at a location to be designated by the taxicab inspector. There shall be painted on each side of the taxicab in letters and numbers at least three (3) inches high the basic mileage rates. The color to be used for lettering and numbers shall be of sharp contrast to color or surface paint to which this is applied, so as to be easily visible at a reasonable distance, especially at nighttime with street lights. No lettering or numbers shall be acceptable which have been painted upon a sheet of metal or other material which, in turn, can be removed or detached to conceal the identification of the company or taxicab number.

(Code 1961, § 20-19; Ord. No. 17-27, § 1, 3-21-17; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-97. Receiving and discharging passengers.

It shall be unlawful for any taxicab driver to receive or discharge passengers in the roadway, but shall pull up as near as practical to the right-hand curb or in the absence of a curb, to the extreme right-hand side of the roadway, or to the extreme right or left-hand side of the roadway on one-way streets, and there receive or discharge passengers; nor shall any driver permit any passenger to enter or leave any taxicab by way of the door or side thereof nearest to the traveled portion of the roadway for the purpose of taking on or discharging the passenger.
(Code 1961, § 20-20)

Sec. 28-98. Two doors for passengers required.

(a) It shall be unlawful to operate any motor vehicle upon the streets of the city as a taxicab unless the motor vehicle is equipped with at least two (2) doors for passengers to enter and leave the car, exclusive of the door or doors serving the driver or front seat.

(b) The provisions of subsection (a) shall not apply to a vehicle licensed as a taxicab when such vehicle is used exclusively in the conveyance of employees over fixed routes under contract with the employer and the employer pays all charges in connection with such conveyance, and the body type of the vehicle used as a taxicab meets the approval of the employer.
(Code 1961, § 20-21)

Sec. 28-99. General prohibited practices.

(a) It shall be unlawful:

(1) *Refusal to transport passengers.* For the driver to refuse to transport any orderly person applying to him/her/them for transportation within the limits of the city when the taxicab has not been previously engaged by another; provided that the provisions of section 28-93 are complied with.

(2) *Parking.* For a driver to park a taxicab in any limited parking area of the city except as provided in chapter 16.

(3) *Unauthorized passengers.* For a driver to transport in a taxicab any person, male or female, who is not a bona fide passenger.

(4) *Passenger seating.* For a driver to transport in a taxicab more than two (2) passengers in the front seat or more than four (4) passengers in the rear seat at the same time.

(5) *Illegal use of a cab.* For a driver, on or off-duty, to knowingly permit a taxicab to be used for any illegal act listed in North Carolina General Statutes articles 26 and 27 [G.S. §§ 14-177 et seq., 14-203 et seq.], or to transport any person in a taxicab to any place used for such purposes, or to acquire and transport in a taxicab any alcoholic beverage for another, or to transport any person to any place where alcoholic beverages are illegally dispensed or stored.

(6) *Lost property.* For a driver to fail, refuse, or neglect to preserve any property left in a taxicab by any passenger, and to deliver it to the manager of the taxicab association, who shall report the same to the police department within twenty-four (24) hours thereafter.

(7) *Light and ventilation.* For a driver to fail, refuse, or neglect to keep the taxicab he/she/they is operating or driving clean, sufficiently ventilated, and efficiently lighted at night, so as to provide ample light for passengers entering or leaving the taxicab.

(8) *Deviating from direct route.* For a driver to fail, refuse, or neglect to proceed with all reasonable dispatch by the nearest practicable route to the destination of the first person applying to him/her/them for transportation unless the person has granted permission to take on or wait for additional passengers.

(9) *Solicitation.* For any person to solicit passengers for a taxicab except the driver thereof when sitting upon the driver's seat of the vehicle.

(10) *Illegal rates.* For a driver to charge or attempt to charge a passenger a greater or lesser rate of fare than that which is posted in the vehicle as required by this article.

(b) Upon a second conviction of the provisions of this section, the driver's permit of the violator shall be affected as provided in section 28-74.
(Code 1961, § 20-22; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-100. Vehicle upholstery.

It shall be unlawful for the owner or operator of any motor vehicle operating as a taxicab to operate same upon the streets of the city unless the taxicab upholstery is in good repair.
(Code 1961, § 20-8; Ord. No. 17-27, § 1, 3-21-17)

Sec. 28-101. Taximeter—Required; specifications; operation.

(a) No person may operate a taxicab upon a street in the city unless the taxi is equipped with a taximeter of a design approved by the chief of police. In order to be approved, a taximeter must show, in figures which are plainly visible to a passenger, the amount of the fare. Each taximeter shall be installed in a sealed, tamper-proof, flexible shaft and housing, and shall be equipped with a tamper-proof switch and electric system so designed that when the taximeter is in operation during a paid trip, the electric light indicator on the top of the taxicab will not be turned on, and when the taximeter is not in operation and the taxicab is for hire, the electric light indicator on the top of the taxicab shall be turned on.

(b) No taxicab shall be operated while occupied by a person other than the driver with the signal affixed to such taximeter in such a position as to denote such vehicle is not employed or in such a position as to denote that it is employed at a rate of fare different from that which is required by this article.
(Code 1961, § 20-10)

Sec. 28-102. Same—Repair and inspection.

(a) No person may operate a taxicab upon a street in the city after the seal is broken on the taximeter, after the installation of a new or different taximeter, or after any repairs or alterations are made to the taximeter or to the taxicab, if the repairs or alterations to the taxicab will affect the operation of the taximeter in any manner, until the taximeter has been submitted to a taximeter repair mechanic designated by the chief of police for inspection and test for accuracy. The taximeter repair mechanic shall cause a seal to be affixed to all taximeters that pass inspections.

(b) In addition, every taximeter used in the operation of taxicabs shall be subject to inspection at any time by the taxicab inspector. Upon the discovery of any inaccuracy in a taximeter, the operator thereof shall remove or cause to be removed from service the vehicle equipped with the taximeter until such taximeter shall have been repaired and accurately adjusted.

(c) No person shall use or permit to be used upon any taxicab a taximeter which shall be in such condition as to be more than five (5) percent from absolute accuracy.
(Code 1961, § 20-11)

State law reference—Administrative search and inspection warrants, G.S. § 15-27.2.

Sec. 28-103. Rates and charges.

(a) No person operating a taxicab upon a street in the city may charge for each trip in excess of three dollars and eighty cents ($3.80) for the first one-seventh mile or fraction thereof; forty cents ($0.40) for each additional one-seventh mile or fraction thereof; forty cents ($0.40) for each sixty-second period, or fraction thereof, of waiting time; ten cents ($0.10) for each piece of hand luggage in excess of three (3); one dollar ($1.00) for each trunk; and twenty cents ($0.20) for each bag or sack in excess of four (4). The term "bag or sack" shall mean a minimum size equivalent to a six-barrel sack having a dimension of seven (7) inches by twelve (12) inches wide and being seventeen (17) inches in height. The maximum rates shall not be affected by the number of passengers carried,

but not more than six (6) passengers may be carried at one (1) time. A sign setting forth these maximum rates shall be posted inside taxicab at a conspicuous place where it will be visible to passengers. The operator of the taxicab shall not reset the taximeter until the fare is paid.

(b) When requested by a passenger, every driver shall give a numbered receipt showing the owner's name, date, permit number, and the amount of fare charged.
(Code 1961, § 20-12; Ord. No. 88-74, § 1, 6-2-88; Ord. No. 94-116, § 1, 11-7-94; Ord. No. 04-45, § 1, 4-6-04; Ord. No. 08-226, § 1, 8-4-08; Ord. No. 22-235, 11-1-22)

State law reference—Rate regulation authorized, G.S. § 160A-304(a).

DIVISION 6. DOWNTOWN LOW SPEED VEHICLE TAXICABS

Sec. 28-104. Low speed vehicle taxicabs business licenses and vehicle permits.

(a) *Business licenses.*

(1) Unless otherwise stated herein, low speed vehicle (LSV) taxicabs shall comply with articles I and II of this chapter.

(2) A person shall not operate a LSV taxicab company in the city without having first obtained a business license from the city.

(3) Each applicant for a business license to operate a LSV taxicab company shall comply with the requirements of this article and pay an annual business license fee.

(4) A LSV taxicab company business license is a privilege and not a right. A LSV taxicab business license shall be subject to suspension or revocation of its business license for failing to comply with the requirements of this article.

(b) *Vehicle Permits.*

(1) Upon the payment of a fifteen dollar ($15.00) fee per LSV taxicab, a permit decal will be issued for each approved LSV taxicab.

(2) The permit decal shall be displayed at all times during the operation of the LSV taxicab where it can be inspected at any time by any proper city official.

(3) Permits and decals are non-transferable.
(Ord. No. 18-099, § 4, 7-17-18)

Sec. 28-105. Area of operation.

LSV taxicabs shall be permitted to operate only on streets or portions of streets designated in traffic schedule 12A.
(Ord. No. 18-099, § 4, 7-17-18)

Sec. 28-106. Storage of low speed vehicle taxicabs.

The storage site for LSV taxicabs must comply with all applicable zoning regulations and restrictions.
(Ord. No. 18-099, § 4, 7-17-18)

Sec. 28-107. Fare charged for services.

Any fare charged by a LSV taxicab shall be on a per person, per ride basis and shall be clearly posted.
(Ord. No. 18-099, § 4, 7-17-18)

Sec. 28-108. Driver's permit.

No person shall operate a LSV taxicab unless they have obtained a driver's permit issued pursuant to division 4, taxicab driver's permit, of this chapter.
(Ord. No. 18-099, § 4, 7-17-18)

Sec. 28-109. Low speed vehicle identification and equipment.

(a) Each LSV taxicab shall bear on each side in letters of not less than two-inches in height, the name of the company, phone number of the company, a unit number, and may, in addition, include an identifying design which has been approved by the police chief or his/her/their designee.

(b) Each LSV taxicab must registered with the North Carolina Department of Motor Vehicles and shall comply with the safety standards in 49 C.F.R. § 571.500 and shall be equipped with:

(1) Headlamps;

(2) Turn signal lamps (front and rear);

(3) Tail lamps;

(4) Stop lamps;

(5) Reflex reflectors;

(6) Mirrors on the driver's side and either exterior on passenger's side or interior;

(7) A parking brake;

(8) A windshield;

(9) A Vehicle Identification Number (VIN);

(10) Seat belts; and

(11) An alert sound.

(Ord. No. 18-099, § 4, 7-17-18; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-110. Conduct of drivers.

A driver of LSV taxicabs shall at all times:

(1) Act in a reasonable, prudent, safe and courteous manner;

(2) Not permit a person not possessing a vehicle for hire license to operate the LSV taxicab or exercise control over the LSV taxicab;

(3) Not permit more passengers to be carried in an LSV taxicab than the number of approved seatbelts installed in the LSV taxicab, and at no time shall the driver allow passengers to ride in any area of the LSV taxicab not specifically designed or designated as a seat;

(4) Not permit any passenger twelve (12) years of age or younger to ride in the LSV taxicab unaccompanied by an adult;

(5) Travel only roads with speed limits that do not exceed thirty-five (35) miles per hour as shown on Traffic Schedule 12A;

(6) Not operate an LSV taxicab in excess of the posted speed limit;

(7) Not operate an LSV taxicab while under the influence of intoxicating beverages or drugs;

(8) Observe and obey all state and local traffic laws and regulations;

(9) Not permit a passenger to stand or ride on any part of the LSV taxicab other than the designated seating area while the LSV taxicab is motion, and to advise the passengers that they must be seated with seat belts fastened except when loading or unloading;

(10) Wear a seatbelt at all times the LSV taxicab is operation;

(11) Not permit the consumption of alcohol, or possession of open containers by passengers.

(Ord. No. 18-099, § 4, 7-17-18)

Secs. 28-111—28-120. Reserved.

ARTICLE III. BUSES

DIVISION 1. GENERALLY

Sec. 28-121. Definition.

In this article "motor bus" means an automobile or other self-propelled vehicle, except interurban bus or bus of which the utilities commission has exclusive jurisdiction, which is used on regular routes on the streets of the city for the purpose of conveying passengers at a fixed rate, is hereby defined to be a motor bus.

(Code 1961, § 20-45)

Sec. 28-122. Scope.

Each motor bus is subject to this article.

(Code 1961, § 20-45)

Secs. 28-123—28-125. Reserved.

Editor's note—Ord. No. 91-146, § 1, adopted Dec. 12, 1991, amended the Code by deleting provisions contained in §§ 28-123—28-125. Said provisions pertained to the inspection, mechanical condition, cleanliness and heating and air conditioning of buses and derived from the Code of 1961, §§ 20-46—20-48.

Sec. 28-126. Notices required on buses.

Every operator of a motor bus hereunder shall keep posted in a conspicuous place on the outside of each bus a notice showing its permit number and route, which notice, whenever such bus is being operated for the purpose of transporting passengers, shall be kept clearly visible both day and night, and shall be lighted at night. The operator shall also post in a conspicuous place on the inside of each bus a notice of the charge made for the transportation of passengers.
(Code 1961, § 20-49)

Sec. 28-127. Passengers to ride inside of bus.

It shall be unlawful to set a motor bus in motion while any person is standing or sitting on the running board, fender or step thereof, or while any person is standing or sitting on the body thereof, and no person shall stand or sit upon the fender or running board of any motor bus or occupy a position outside of the body thereof while such motor bus is in motion.
(Code 1961, § 20-50)

Sec. 28-128. Accidents to be reported.

The operator of any motor bus shall immediately report to the chief of police any accident arising in connection with the operation of the bus, which report shall be in writing and shall contain full information as to the time and place of the accident, the name of the driver of the bus, the owner of the bus, the name or names of persons injured or killed, the names and addresses of witnesses, the approximate amount of property damage done and a further report of the cause of such accident.
(Code 1961, § 20-51)

Sec. 28-129. Where required to stop.

All motor buses operating in the city, when stopping at or near any street crossing or intersection to take on or discharge passengers, shall stop at designated places, parallel to the curb and within twelve (12) inches of the curb.
(Code 1961, § 20-52)

Sec. 28-130. Stopping in intersections.

It shall be unlawful to stop any motor bus, except when necessary to avoid injury to person or property, on any street crossing or in any street intersection or in a travel lane within one hundred fifty (150) feet of an intersection.
(Code 1961, § 20-53)

Sec. 28-131. Stopping at railroad grade crossings.

Any company operating any motor bus in the city, and every person in charge of such motor bus, shall cause the same to be stopped before going upon any railroad track crossing at grade, and a careful examination shall be made by the person in charge of such motor bus before it goes upon or attempts to pass over the crossing to make certain that no train, locomotive or other railroad rolling stock is approaching the crossing.
(Code 1961, § 20-54)

Sec. 28-132. Speed limit.

It shall be unlawful to drive motor buses at a greater rate of speed than posted.
(Code 1961, § 20-55)

Sec. 28-133. Failure to pay fare.

It shall be unlawful for any person, except persons entitled to free transportation to ride upon any motor bus, taxicab or other public conveyance without paying therefor the fare prescribed or allowed by law. Any person who violates this section shall be subject to a civil penalty of fifty dollars ($50.00).
(Code 1961, § 20-56; Res. No. 048-24, § 1, 2-20-24)

Sec. 28-134. Smoking.

It shall be unlawful to smoke in any motor bus while the same is being used for the transportation of passengers unless the same is equipped with a special compartment for smoking and the person smoking occupies such compartment.
(Code 1961, § 20-57)

Sec. 28-135. Explosives, etc., prohibited in buses.

It shall be unlawful to transport in or on any motor bus any inflammable or explosive articles, such as liquid nitrogen, dynamite, fireworks, petroleum oil in packages, phosphorus or other dangerous combustible articles.
(Code 1961, § 20-58)

Secs. 28-136—28-150. Reserved.

DIVISION 2. PERMIT

Sec. 28-151. Required.

Every person before operating any motor bus upon the streets of the city for the transportation of passengers for compensation, within the purview of this article, shall first obtain from the council a special permit for the operation thereof, in accordance with the provisions of this division.
(Code 1961, § 20-63)

Sec. 28-152. Application.

(a) Every person desiring or proposing to operate a motor bus within the city, shall file with the city clerk a written application for a permit, which application shall set forth the following information:

(1) The street, streets or avenues over which, and the fixed terminal and regular route upon which and over which, the applicant proposes to operate.

(2) A schedule of operation showing the time of arrival and departure from terminal and intermediate points.

(3) A schedule of tariff showing the fares to be charged between the several points or localities to be served.

(4) The seating capacity of the motor bus proposed to be operated by the applicant, the size and number of seats in such bus, and a general description of the style and equipment of such bus.

(5) The name, age, residence and business address of the applicant if he/she/they is an individual, or of each partner if the applicant is a partnership, or if the applicant is a corporation, the location of the principal office of the corporation, and the name and address of the president and the secretary of the corporation.

(b) The application shall be verified as to the truth of the statements therein contained by the oath of the person making such application if he is an individual, by one (1) of the partners if the applicant is a partnership, and by an officer of the corporation if the applicant is a corporation.
(Code 1961, § 20-64; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-153. Costs to accompany application.

Each application for a bus permit shall be accompanied by a certified check payable to the city to cover the cost of advertising the notice of public hearing in the amount of ten dollars ($10.00).
(Code 1961, § 20-65)

Sec. 28-154. Public hearing on application.

Upon the filing of any application for a permit under the provisions of this division the city council shall fix a time and place for a hearing on such application, and a notice of the date and place of the public hearing shall be advertised at least once in a daily newspaper of general circulation published in the city, at least ten (10) days prior to the date of the public hearing. At the time specified in the notice, or at the time to which such hearing may be continued, a public hearing upon the application shall be held by the council.
(Code 1961, § 20-66)

Sec. 28-155. Determination by council as to issue.

(a) In passing upon any application for permit under this division, the council shall take into consideration the reliability of the applicant, his/her/their court record, and any and all other

matters tending to qualify or disqualify such applicant for rendering a safe and efficient motor bus service in the city.

(b) The council shall further take into consideration, and shall determine whether the public convenience and necessity require the granting of such permit.

(c) The council may thereupon issue the permit as applied for, or may issue it with modifications, or may refuse it, all as the public convenience and necessity may require.

(d) If in the opinion of the council, the equipment proposed to be used by the applicant is unsafe or dangerous, or if the street, streets or avenues over which such applicant proposes to operate any motor bus will be rendered unsafe for public use by the operation thereon of a regular motor bus, or if the applicant is morally irresponsible, then in any of such events, the council shall decline to grant such permit.
(Code 1961, § 20-67; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28-156. Form and contents.

Every permit issued by authority of this division shall be in writing and shall show the following:

(1) Name of grantee.

(2) Designation of route or routes over which motor buses are to be operated.

(3) Schedule of trips for each route.

(4) General description of size and character of motor buses authorized to be used on each route.

(Code 1961, § 20-68)

Sec. 28-157. Change in permit.

Upon application of the grantee, any of the matters embraced in section 20-68 may be changed by the council; provided, however, that no substantial increase or decrease in the length of any route or any substantial change in any other of said matters shall be made by the council without a public hearing thereon as provided by section 28-154. The council may authorize trial changes in section 28-156, paragraphs (2) and (3) for a period not to exceed ninety (90) days, and, unless a written request signed by ten (10) or more adult interested persons is filed with the council during said period requesting a public hearing thereon, the authorized changes shall become permanently effective, unless the council has established standards of patronage for the trial period which are not met, in which case the route or schedule in effect prior to the trial period shall continue in effect.
(Code 1961, § 20-69)

Sec. 28-158. Revocation.

(a) Any permit granted under the provisions of this division may be revoked either in whole or in part by the council whenever in its opinion the operation of the motor bus permitted under the permit is unduly interfering with the use by the public of any street, streets or avenues over which the motor bus is being operated.

(b) Any such permit may also be revoked by the council upon the failure of the grantee to maintain such bus in such a safe and efficient manner as to provide adequately for the proper service of transporting passengers over the authorized route or routes, or upon failure of the grantee to maintain the schedule provided by the council, or upon the violation by the grantee of any of the provisions of this article, or at any time when in the judgment of the council public interest or necessity may require.

(c) Before any permit granted under the provisions of this division is revoked, the grantee therein shall have an opportunity to appear before the council and answer any charges made against him/her/them, as the basis for the proposed revocation.
(Code 1961, §§ 20-70, 20-71; Ord. No. 20-163, § 3, 12-15-20)

Secs. 28-159—28-164. Reserved.

DIVISION 3. GREENSBORO TRANSIT ADVISORY COMMISSION*

Sec. 28-165. Creation and purpose.

*__Editor's note—__Ord. No. 19-038, § 1, adopted April 16, 2019, repealed the former Div. 3, §§ 28-165—28-173, and

There is hereby created a commission to be known as the Greensboro Transit Advisory Commission, (hereinafter, "GTAC" or "Commission"). The purpose of the commission shall be to advise the City of Greensboro Department of Transportation and City Council on policies and procedures which will advance a safe, efficient, reliable and efficient public transportation system for the City of Greensboro and its immediate environs.
(Ord. No. 19-038, § 1, 4-16-19)

Sec. 28-166. Membership.

The commission shall be composed of nine (9) members appointed by the city council. Members shall serve for a term of three (3) years, with the possibility of reappointment for one additional three-year term, and they shall continue to serve until their successors are appointed and qualified.
(Ord. No. 19-038, § 1, 4-16-19)

Sec. 28-167. Territorial jurisdiction.

The jurisdiction of the commission shall extend to all local public passenger transportation with fixed routes operating within the city and within ten (10) miles outside of the corporate limits of the city as now or hereafter established.
(Ord. No. 19-038, § 1, 4-16-19)

Sec. 28-168. Duties.

The duties of the commission shall be as follows:

(1) Advise the Greensboro Department of Transportation (GDOT) and city council with regard to transit system policies and safety matters including routes, ridership policies, transit fares, accessibility modes, customer amenities and operating policies.

(2) Receive input from the citizenry and the ridership of the system involving public transit issues and make appropriate recommendations to GDOT and the city council.

(3) Recommend to GDOT and the city council rules and procedures governing public transit programs, equipment and facilities, regulatory guidelines, service improvements, hours of operation, and security.

(4) Recommend strategies to promote public utilization of the transit system.

(5) In conjunction with GDOT, develop short and long range service plans and associated capital improvement plans.

(6) It is the intent that all matters affecting the governance and operation of the public transit system, including the annual budget thereof, shall be considered by the commission and recommendations thereon made to the city council through the city manager. Nothing contained herein shall prohibit the city council from acting without the commission's recommendation.

(Ord. No. 19-038, § 1, 4-16-19)

Sec. 28-169. Officers.

The members of the commission shall elect a chair from among the members of the commission, and the chair shall serve for such time as may be fixed by the commission. In addition, the commission shall elect a vice-chair and a secretary, each of whom shall serve for such time as may be fixed by the commission. Roberts Rules of Order, most recent edition, shall be followed to the extent possible in the conduct of meetings.
(Ord. No. 19-038, § 1, 4-16-19)

Sec. 28-170. Reserved.

Sec. 28-171. Effect on existing franchise.

Existing franchises granted by the city shall continue in full force and effect until legally terminated; further, all ordinances and resolutions of the city regulating bus operations and taxicabs shall continue in full force and effect until otherwise amended or repealed.
(Ord. No. 19-038, § 1, 4-16-19)

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enacted a new Div. 3 as set out herein. The former Div. 3 pertained to Greeensboro Transit Authority. See Code Comparative Table for complete derivation.

Sec. 28-172. Termination.

The city council reserves the right to terminate the existence of the commission at any time.
(Ord. No. 19-038, § 1, 4-16-19)

Sec. 28-173. Meetings.

The commission shall hold meetings on a monthly or more often basis as required at times and place to be established by it. All meetings shall be open to the public; however, the commission members may meet in closed session under those circumstances permitted by G.S. Ch. 143. The chairperson, or in his/her/their absence the vice chairperson, may call special meetings upon a forty-eight-hour notice. A majority of the regularly appointed commission members shall be required for the commission to take action.
(Ord. No. 19-038, § 1, 4-16-19; Ord. No. 20-163, § 3, 12-15-20)

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Chapter 28.1

TELECOMMUNICATIONS*

Art. I. Telecommunications Preamble, §§ 28.1-1—28.1-3
Art. II. Franchise, §§ 28.1-4—28.1-31
Art. III. Regulation of Franchise, §§ 28.1-32—28.1-44
Art. IV. Bonds, Insurance and Indemnification, §§ 28.1-45—28.1-58
Art. V. Design, Construction Provisions, §§ 28.1-59—28.1-75
Art. VI. Service Provisions, §§ 28.1-76—28.1-88
Art. VII. Reports, Franchise Applications and Miscellaneous, §§ 28.1-89, 28.1-90

*Charter reference—Tax on franchises, power of city to levy, § 4.61.
Cross references—Cable communications, Ch. 7; annual report of franchise holders business privilege licenses, § 13-42.

ARTICLE I. TELECOMMUNICATIONS PREAMBLE

Sec. 28.1-1. Regulation of telecommunications.

This chapter shall be known and may be cited as "Greensboro Telecommunications Chapter," and it shall become a part of the ordinances of the city.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-2. Purpose.

The city finds that the development of telecommunications has the potential of having great benefit and impact upon the city. Because of the complex and rapidly changing technology associated with telecommunications, the city further finds that the public convenience, safety and general welfare can best be served by exercising licensing and regulatory powers which are vested in the city or such persons as the city shall designate. It is the intent of this chapter and subsequent amendments to provide for and specify the means to attain the best possible public interest and public purpose in these matters and any franchise issued pursuant to this chapter shall be deemed to include this finding as an integral part thereof.
(Ord. No. 95-60, 6-1-95; Ord. No. 10-139, § 1, 9-7-10)

Sec. 28.1-3. Definitions.

For the purpose of this chapter the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number. The word "shall" is mandatory and "may" is permissive. Words not defined shall be given their common and ordinary meaning.

Franchise means a franchise contract entered into voluntarily by the grantee, containing the specific provisions of the franchise granted, including referenced specifications, applications and other related material. A franchise granted pursuant to this chapter is a license which grants the nonexclusive rights to construct, operate and maintain a telecommunications system along the streets and public rights-of-way within all or a specified area in the city. Any such authorization, in whatever form granted, shall not mean or include any license or permit required for the privilege of transacting and carrying on a business within the city as required by other ordinances and laws of the city.

Franchise area means the entire city, or portions thereof, for which a franchise is granted under the authority of this chapter.

Franchise fee shall be the annual charge assessed by the city to allow a telecommunication provider to install telecommunications systems in the streets and rights-of-way in the city and to provide telecommunications services, and service-related activities, payable in exchange for the rights granted pursuant to this chapter and the franchise agreement.

Grantee means any natural person(s), partnership(s), domestic and foreign corporation(s), association(s), joint venture(s), or organization(s) of any kind which has been legally granted a franchise by the city, and shall include the lawful successor, transferee or assignee of such grantee.

Grantor means the City of Greensboro as represented by the city council, or its designee, acting within the scope of its jurisdiction.

Long distance network service means those telecommunications services provided by grantee beyond the local telephone service area, which do not terminate or originate in Greensboro.

Notice shall be a written notice addressed to the grantee at its principal office or such other office as the grantee has designated to the city as the address to which notice shall be transmitted to it. In computing notice time, holidays recognized by the city and Saturdays and Sundays shall be excluded.

Private line service means those telecommunication services provided solely by grantee to facilities of the grantee for the grantee's own use.

Public property shall mean any real property owned by the city or any other government entity other than public rights-of-way or streets.

Public rights-of-way or *streets* means the surface, the air space above the surface, and the area below the surface of any public street, highway, lane, path, alley, sidewalk, boulevard, drive, bridge or tunnel, now or hereafter held by the city which shall entitle the city and the grantee to the use thereof for the purpose of installing and maintaining the grantee's telecommunications system. No reference herein, or in any franchise, to the "public rights-of-way or streets" shall be deemed to be a representation or guarantee by the city that its title to any property is sufficient to permit its use for such purpose, and the grantee shall, by its use of such terms, be deemed to gain only such rights to use property in the city as the city may have the undisputed right and power to give.

Service related activity means any activity or function associated with the distribution or provision of telecommunications service over the telecommunications system, including without limitation, repair service, use of facilities or converters, billing charges, advertising, installation, disconnects or reconnects of service, collecting bad debts, converters, or sale of merchandise in Greensboro.

Telecommunications services means and includes: The provision of dark fiber transmission or any electromagnetic communications including but not limited to voice, image, data and any other information, by means of but not limited to wire, cable, including fiber optical cable, microwave, radio wave or any combinations of such media, and the resale or leasing of any such service.

Telecommunications service includes but is not limited to value added services, alternate operator service, telephone service originating and terminating within the city, a pro rata share of toll telephone service originating or terminating within the city, and teletypewriter or computer exchange service, including but not limited to residential and business service, directory assistance, pay telephones, cellular mobile telephone, personal communications services, or telecommunication service, specialized mobile radio, interstate services, video dialtone service, pagers and paging service, including any form of mobile two-way communication. Grantee shall not provide a cable system as defined by Section 602 of the Cable Communications Policy Act of 1984 (47 U.S.C. Section 522).

Telecommunications system means the telecommunications system constructed for use within the city, without limitation, the headend, antenna, cables, fiber optics, wires, lines, towers, amplifiers, lasers, converters, modems, health and property security systems, equipment or facilities located in the public right-of-way within the corporate limits of the city designed, constructed or wired for the purpose of producing, receiving, amplifying and distributing by coaxial cable, fiber optics, microwave or other means, and electronic signals to and from subscribers in the city and any other equipment or facilities located within the corporate limits of the city intended for the use of the telecommunications system.

Transfer means the disposal by the grantee, directly or indirectly, by gift, assignment, voluntary sale, merger, consolidation or otherwise, of ten percent (10%) or more at one (1) time of the ownership or controlling interest in the system, or twenty-five percent (25%) cumulatively over the term of the franchise of such interests to a corporation, partnership, limited partnership, trust or association, or person or group of persons acting in concert.
(Ord. No. 95-60, 6-1-95; Ord. No. 99-70, § 1, 5-18-99; Ord. No. 10-139, § 1, 9-7-10)

ARTICLE II. FRANCHISE

Sec. 28.1-4. Grant of franchise.

(a) *Grant.* Pursuant to the authority of the City Charter and general statutory laws subject to the terms and conditions set forth herein, the city can grant revocable and non-exclusive franchises, acting pursuant to the state enabling law and the city's applicable Charter provisions, ordinances, rules and regulations to construct and operate a telecommunications system in, under, over, along, across or upon the streets and public rights-of-way within the city for the purpose of reception, transmission, collection, amplification, origination, distribution or redistribution of electronic signals and for the development of telecommunication services in accordance with the laws

of the city, the State of North Carolina, and United States of America. In exercising rights pursuant hereto, grantee shall not endanger or interfere with the lives of persons, interfere with any installations of the city, any public utility serving the city or any other person permitted to use the streets and public rights-of-way nor unnecessarily hinder or obstruct the free use of the streets and public rights-of-way. The grant of one (1) franchise does not establish priority for use over the other present or future permit or franchise holders or the city's own use of the streets and public rights-of-way. The city shall at all times control the distribution of space in, over, under or across all streets or public rights-of-way occupied by the telecommunications system.

No grant of any franchise shall affect the right of the city to grant to any other person a right to occupy or use the streets, or portions thereof, for the construction and operation of a telecommunications system within the city or the right of the city to permit the use of the streets or public rights-of-way of the city for any purpose whatever. By accepting a franchise, the franchisee thereby acknowledges the city's right to make such grants and permit such uses. No privilege or power of eminent domain is bestowed on grantee by the grant of a franchise.

Any telecommunications system located in the streets and public rights-of-way on the effective date of this chapter [Ord. No. 95-60, June 28, 1995], shall obtain a franchise from the city, pursuant to section 28.1-9 of this chapter, within one hundred and twenty (120) days, unless such timeframe is extended by the city.

(b) *General city ordinances.* Any franchise granted by the city is hereby made subject to the general chapter provisions now in effect and hereafter made effective. Nothing in the franchise shall be deemed to waive the requirements of the various codes and ordinances of the city regarding permits, taxes, fees to be paid, or manner of construction.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-5. Franchise area.

The franchise area shall be the entire city, or portions thereof, for which a franchise is granted.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-6. Use of public rights-of-way and streets.

For the purpose of operating and maintaining a telecommunications system in the city, the grantee may erect, install, construct, repair, replace, reconstruct and retain in, on, over, under, upon, across and along the public streets and rights-of-way within the city such wires, cables, conductors, ducts, conduits, vaults, manholes, amplifiers, appliances, pedestals, attachments and other property and equipment as are necessary to the operation of the telecommunications system, provided, however, that grantee complies with all design, construction, safety, and performance provisions contained in this chapter, the franchise, and other applicable local chapters. The grantee shall use its best efforts to also obtain pole attachment agreements for use of any utility poles or other utility facilities required in connection with the provision of services, provided such agreements are available upon reasonable terms and conditions.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-7. Use of grantee facilities.

No poles shall be erected by the grantee without prior approval of the city with regard to location, height, type and any other pertinent aspect, which approval shall not be unreasonably withheld. However, the location of any pole of the grantee shall not be a vested right with respect to the city and such poles shall be removed, relocated or modified by the grantee at its own expense whenever the city reasonably determines that the public convenience would be enhanced thereby. Grantee shall utilize existing poles and conduits, where practicable. The city shall have the right, during the life of the franchise, to install communications facilities and maintain free of charge upon the poles or other above-ground facilities owned by the grantee. Where the installation of such facilities by the city requires the adjustment of franchisee's facilities on any pole or other above-ground facility (whether owned by franchisee, another company, the city, or another person), such adjustment shall be made by franchisee at a reasonable charge to the city.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-8. Term of franchise.

The term of the franchise shall commence upon execution of the franchise by the city and the grantee and shall continue for a period specified in the franchise, unless sooner terminated as provided herein. Grantee shall have no property right upon the expiration of the franchise term, except as provided by applicable law.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-9. Franchise required.

No telecommunications system shall be allowed to occupy or use the streets and public rights-of-way of the city or be allowed to operate within the city without a franchise.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-10. Franchise nonexclusive.

Grant. Any franchise granted pursuant to this chapter shall be nonexclusive. The city specifically reserves the right to (i) grant at any time such additional franchises for a telecommunication system as it deems appropriate, and/or (ii) build, operate, and own such telecommunications system or systems as it deems appropriate.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-11. Police and regulatory powers reserved.

Grantee shall comply with all generally applicable laws, chapters and regulations enacted by the city pursuant to its police powers. Any conflict between the terms of this chapter or the franchise and any present or future lawful exercise of the city's police powers shall be resolved in favor of police powers.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-12. City's right to perform public works.

Nothing in this chapter shall be in hindrance to the right of the city or any governmental authority to perform or carry on, directly or indirectly, any public works or public improvements of any description. Should the telecommunications system in any way interfere with the construction, maintenance or repair of such public works or public improvements, the grantee shall, at its own cost and expense, protect or relocate its telecommunications system, or part thereof, as reasonably directed by the city officials or any governmental authority. In such instances, the city shall give the grantee reasonable notice to the extent practicable. This provision shall not preclude the grantee from being eligible for reimbursement from governmental authorities other than the city.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-13. Emergency removal of plant.

If at any time, in case of fire or disaster in the city or other emergency, it shall become necessary in the reasonable judgment of the city to cut or move any of the wires, cables, amplifiers, appliances or appurtenances of the telecommunications system, the city shall have the right to do so at the sole cost and expense of grantee. The grantee shall bear all costs of reinstallation, repair, and other costs resulting from or arising out of the emergency cutting or removal of the telecommunications system. The city shall consider all other measures prior to cutting the system.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-14. Removal or abandonment.

Upon denial of renewal, revocation, or expiration of the franchise, grantee, at the city's discretion, shall remove all supporting structures, poles, transmission and distribution systems, and all other appurtenances from the streets and public rights-of-way and shall restore any property, public or private, to their original condition prior to the installation, erection, or construction of the telecommunications system. In the event of removal, restoration of city property, including, but not limited to, the public rights-of-way, shall be in accordance with the directions and specifications of all affected departments and agencies of the city, and all applicable law. The grantee shall accomplish such restoration at its expense. Such removal shall be made with the supervision of the city. If such removal and restoration is not completed within twelve (12) months after the notice by the city delivered in writing to grantee, all of the grantee's property remaining in the affected public rights-of-way shall, at the option of the city,

be deemed abandoned and shall, at the option of the city, become the property of the city. In the event the grantee fails or refuses to remove its system or satisfactorily restore all areas to the condition in which they existed prior to the original construction of the system, the city, at its option, may perform such work and collect the cost thereof from the grantee. No surety on any bond shall be discharged until the city has certified to the grantee in writing that the system has been dismantled, removed, and all other property restored to the satisfaction of the city.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-15. No waiver of rights.

No course of dealing between the grantee and the city nor any delay on the part of the city in exercising any rights hereunder shall operate as a waiver of any such rights of the city or acquiescence in the actions of the grantee in contravention of rights.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-16. Transfer of ownership or control.

(a) *Transfer of franchise.* Any franchise granted hereunder cannot in any event be sold, transferred, leased, assigned or disposed of, including but not limited to, by force or voluntary sale, merger, consolidation, receivership or other means without the prior consent of the city, and then only under such conditions as the city may reasonably establish. Except that no consent shall be required for any sale, transfer, or assignment of ownership or control to an entity under common control with grantee, provided that prior to such transfer, grantee provides to the city verifiable information to establish that such transferee under common control has the financial, legal and technical ability to fully perform all obligations of the franchise.

(b) *Transfer threshold.* The grantee shall promptly notify the city of any actual or proposed change in, or transfer of, or acquisition by any other party of ownership or control of the grantee. The word "control" as used herein is not limited to major stockholders but includes actual working control in whatever manner exercised. A rebuttable presumption that a transfer of control has occurred shall arise upon the disposal by the grantee, directly or indirectly, by gift, assignment, voluntary sale, merger, consolidation or otherwise, of ten percent (10%) or more at one time of the controlling interest in the system, or twenty-five percent (25%) cumulatively over the term of the franchise of such interests to a corporation, partnership, limited partnership, trust or association, or person or group of persons acting in concert. Except that no consent shall be required for any sale, transfer, or assignment of ownership or control to an entity under common control with grantee, provided that prior to such transfer, grantee provides to the city verifiable information to establish that such transferee under common control has the financial, legal and technical ability to fully perform all obligations of the franchise.

(c) *City approval.* Every change, transfer, or acquisition of control of the grantee shall make the franchise subject to cancellation unless and until the city shall have consented thereto. For the purpose of determining whether it shall consent to such change, transfer, or acquisition of control, the city may inquire into the legal, financial, character, technical and other public interest qualifications of the prospective transferee or controlling party, and the grantee shall provide the city with all required information. Failure to provide all information reasonably requested by the city as part of said inquiry shall be grounds for denial of the proposed change, transfer or acquisition of control.

(d) *Assumption of control.* The city agrees that any financial institution having a pledge of the franchise or its assets for the advancement of money for the construction and/or operation of the franchise shall have the right to notify the city that it will take control and operate the telecommunications system. If the financial institution takes possession of the telecommunications system the city shall take no action to effect a termination of the franchise without first giving to the lender written notice thereof and a period of six (6) months thereafter (unless otherwise provided hereinbelow) (1) to allow the financial institution or its agent(s) to continue

operating as the franchisee under the franchise and; (2) to request the city, and for the city to determine whether to consent to the assignment of the grantee's rights, title, interest and obligations under the franchise to a qualified operator. The city acknowledges that in order for the financial institution to realize upon the collateral accorded to it by the loan documents, the financial institution must be entitled to a reasonable period of time after taking possession of the franchise under the loan document to obtain the city's consent to an assignment of the franchise to a qualified operator. The city agrees that such reasonable period of time is six (6) months after the financial institution takes possession of the telecommunication system and, further, agrees that the city shall use its best efforts to decide upon the assignment of the franchise to the new operator proposed by the financial institution within such period of time. The financial institution shall be entitled to such possession and other rights granted under this subsection until such time that the city determines whether to consent to such assignment (the "extended time"). If the city finds that such transfer, after considering the legal, financial, character, technical and other public interest qualifications of the applicant are satisfactory, the city will consent to the transfer and assign the rights and obligations of such franchise as in the public interest. During the six-month period or extended time, the financial institution shall enjoy all the rights, benefits and privileges of the grantee under the franchise, and the city shall not disturb such possession by the financial institution, provided the financial institution complies in all respects with the terms and provisions of the franchise and this chapter. The various rights granted to the financial institution under this subsection are contingent upon the lender's continuous compliance with the terms and provisions of this chapter and the franchise during the entire aforementioned six-month period or extended time, if applicable. For example, should an agent of the financial institution take possession of the telecommunication system pursuant to rights granted to the financial institution under this subsection, and such agent fails to comply with the level of service requirements set forth in this chapter or the franchise, the rights granted to the financial institution under this chapter and the franchise shall automatically terminate.

(e) *No waiver of city property rights.* The consent or approval of the city or any other public entity to any transfer of the grantee shall not constitute a waiver or release of the rights of the city in and to the public property or public rights-of-way, and any transfer shall, by its terms, be expressly subordinate to the terms and conditions of this chapter and the franchise.

(f) *Signatory requirement.* Any approval by the city of transfer of ownership or control shall be contingent upon the prospective transferee becoming a signatory to the franchise agreement.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-17. Franchise renewal.

Upon completion of the term of any franchise granted under this chapter, the city may in its sole discretion grant or deny renewal of the franchise of the grantee.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-18. Franchise fees.

(a) *[Franchise fees in general.]* The city finds that:

(1) The public rights-of-way to be used by the grantee in the operation of its system within the boundaries of the franchise area are valuable public properties acquired and maintained by the county, state, and city at great expense to its taxpayers, and

(2) The grant to the grantee to the said streets is a valuable property right without which the grantee would be required to invest substantial capital in right-of-way costs and acquisitions, and

(3) The administration of this chapter or the franchise imposes upon the city additional regulatory responsibility and expense, and

(4) The city reserves the right to charge an annual franchise fee for the use of the

rights-of-way for a telecommunications system. For the grantee's use of and presence in the city's rights-of-way, the grantee of any franchise hereunder shall pay to the city a franchise fee in the amount specified in the franchise. This annual franchise payment shall commence as of the effective date of the franchise and shall be in the amount of zero dollars and zero cents ($0.00) per linear foot of the public right-of-way, whether aerial or underground, for the installed telecommunications system. In the event an ordinance amendment shall increase the fee from zero dollars and zero cents ($0.00), the increased fee shall be calculated on an annual pro-rated basis and shall be paid to the city within thirty (30) days of the effective date of the ordinance. Sharing of the installed telecommunications systems by grantees is permissible provided that the grantee which owns the installed telecommunications system continues timely payment of the franchise fee. The franchise shall contain a current certified statement furnished by the grantee of the total linear footage of the public's right-of-way occupied by the grantee or grantee's facilities. Upon the city's request, the grantee shall provide an independent audited statement with supporting documentation of the grantee's total linear footage presence in the city's right-of-way. The annual franchise payment shall be in addition to any other applicable fee.

(5) Exemptions. Per G.S. § 160A-274, government or governmental entities owning telecommunications systems which provide governmental telecommunications services to governmental facilities shall be exempt from section 28.1-18, franchise fees.

(b) *Franchise fee in addition to other tax or payments.* This payment shall be in addition to any other tax or payment owed to the governments or other taxing jurisdiction by the grantee, unless such tax or payment is deemed a franchise fee under applicable law.

(c) *Acceptance by the city.* No acceptance of any payment by the city shall be construed as a release or as an accord and satisfaction of any claim the city may have for further or additional sums payable as a franchise fee under this chapter or for the performance of any other obligation of the grantee.

(d) *Failure to make required payment.* In the event that any franchise payment or recomputed amount is not made on or before the dates specified herein, grantee shall pay as additional compensation an interest charge, computed from such due date, at the annual rate equal to the commercial prime interest rate of the city's primary depository bank during the period that such unpaid amount is owed.

(e) *Payments to be made yearly.* The franchise fee and any other cost or damages assessed shall be payable yearly to the city and said payment shall be made to the city not later than thirty (30) days after the expiration of each calendar year.

(f) *The city's right to inspection.* The city shall have the right to inspect the grantee's records pertaining to the presence and location of the grantee's facilities, system or equipment in the public's right-of-way. Access to the aforementioned records shall not be denied by the grantee on the basis that said records contain "proprietary" information, but the city shall treat all such proprietary information to which it is given access as confidential and not copy or disclose it. Notwithstanding the above, the grantor shall be governed by the requirement of G.S. Ch. 132 relating to public records.

(g) *Advance payment.* The grantee may prepay the annual fee up to five (5) years in advance, provided that grantee at all times remains responsible for all changes in the number of linear feet of the right-of-way occupied by grantee. (Ord. No. 95-60, 6-1-95; Ord. No. 99-70, §§ 2—5, 5-18-99; Ord. No. 07-106, § 1, 6-19-07; Ord. No. 10-139, § 1, 9-7-10; Ord. No. 15-061, § 1, 5-19-15; Ord. No. 17-91, § 1, 7-18-17)

Sec. 28.1-19. Forfeiture or revocation.

(a) *Grounds for revocation.* Subject to subsection (b) below, the city reserves the right to revoke any franchise granted hereunder and

rescind all rights and privileges associated with the franchise in the following circumstances, each of which shall represent a default and breach under the chapter and the franchise grant.

(1) If the grantee shall default in the performance of any of the material obligations under this chapter, the franchise, or under such documents, contracts and other terms and provisions entered into by and between the city and the grantee.

(2) If the grantee shall fail to provide or maintain in full force and effect the liability and indemnification coverage or the performance bond as required in the franchise.

(3) If the grantee attempts to evade any of the material provisions of this chapter or the franchise or practices any fraud or deceit upon the city.

(4) The grantee becomes insolvent, unable or unwilling to pay its debts or is adjudged bankrupt.

(5) If the grantee ceases to provide services over the telecommunications system for any reason within the control of the grantee.

(b) *Procedure prior to revocation.*

(1) The city shall make written demand that the grantee comply with any such requirement, limitation, term condition, rule or regulation or correct any action deemed cause for revocation. If the failure, refusal or neglect of the grantee continues for a period of thirty (30) days following such written demand, the city may place its request for termination of the franchise upon a regular council meeting agenda. The city shall cause to be served upon such grantee at least seven (7) days prior to the date of such council meeting, a written notice of this intent to request such termination, and the time and place of the meeting, notice of which shall be published by the city clerk at least once, seven (7) days before such meeting in a newspaper of general circulation within the city.

(2) The council shall hear any persons interested therein, and shall determine in its discretion, whether or not any failure, refusal or neglect by the grantee was with just cause.

(3) If such failure, refusal or neglect by the grantee was with just cause, as defined by the city, the council shall direct the grantee to comply within such time and manner and upon such terms and conditions as are reasonable.

(4) If the council shall determine such failure, refusal, or neglect by the grantee was without just cause, then the council may, by resolution, declare that the franchise of the grantee shall be terminated and bond forfeited unless there is compliance by the grantee within ninety (90) days.

(Ord. No. 95-60, 6-1-95)

Sec. 28.1-20. Equal opportunity policy.

(a) *Equal employment opportunity and affirmative action programs.* Grantee shall be an equal opportunity/affirmative action employer adhering to all federal, state or municipal laws and regulations.

(b) *Procurement.* For all services, materials or equipment purchased for the construction, operations or maintenance of the telecommunications system, grantee shall use all reasonable efforts to purchase from competitively priced and otherwise qualified minority-owned, or female-owned businesses located in the City of Greensboro.

(Ord. No. 95-60, 6-1-95)

Secs. 28.1-21—28.1-31. Reserved.

ARTICLE III. REGULATION OF FRANCHISE

Sec. 28.1-32. Regulatory authority.

(a) *Ongoing regulation.* The city shall exercise appropriate regulatory authority under the provisions of this chapter and applicable law. This

authority shall be vested in the council and administered through the city manager or his/her/their designee. The city manager or his/her/their designee shall provide day-to-day administration and enforcement of the provisions of this chapter and any franchise granted hereunder, and shall carry out the city's responsibilities with regard to telecommunications.

(b) *Change in law* or *regulation.* Notwithstanding any other provisions of this chapter to the contrary, the grantee shall at all times comply with all laws and regulations of the local, state and federal government. In the event that any actions of the state or federal government or any agency thereof, or any court of competent jurisdiction upon final adjudication, substantially reduce in any way the power or authority of the city under this chapter or the franchise, or if in compliance with any local, state, or federal law or regulation, the grantee finds conflict with the terms of this chapter, the franchise, or any law or regulation of the city, then as soon as possible following knowledge thereof, the grantee shall notify the city of the point of conflict believed to exist between such law or regulation and the laws or regulations of the city, this chapter and the franchise. The city, at its option, may notify the grantee that it wishes to negotiate those provisions which are affected in any way by such modification in regulations or statutory authority. Thereafter, the grantee shall negotiate in good faith with the city in the development of alternate provisions which shall, to the extent permitted by law, materially maintain the rights of the city as established under the terms of this chapter and the franchise. The city shall have the duty, based upon the results of such negotiations, to modify any of the provisions to such reasonable extent as may be necessary to carry out the full intent and purpose of this chapter and the franchise and the agreements reached in negotiations.

(c) *Reservation of rights for regulation.* The city reserves the right to exercise the maximum plenary authority, as may at any time be lawfully permissible, to regulate the telecommunications system, the franchise and the grantee. Should applicable legislative, judicial or regulatory authorities at any time permit regulation not presently permitted to the city, the city may without the approval of the grantee engage in any such additional regulation as may then be permissible, whether or not contemplated by this chapter or the franchise, including without limitation, regulation regarding franchise fees, taxes, consumer protection, or any other similar or dissimilar matter.

(d) *Right of inspection of records.* The city shall have the right to inspect all books, records, reports, maps, plans, financial statements of the grantee and any parent company to the extent such materials are relevant to grantee's performance of its obligations under this chapter and the franchise, and other like materials of the grantee, at any time during normal business hours. grantee shall provide such information in such form as may be reasonably required by the city for said records.

(e) *Right of inspection of facilities.* The city shall have the right to inspect all telecommunications facilities or installation work performed subject to the provisions of the franchise and to make such tests as it shall find necessary to ensure compliance with the terms of this chapter and other pertinent provisions of the law.

(f) *Expense reimbursement to city.* The grantee shall pay the city a sum of money which will, when added to any application fees received, reimburse all reasonable costs and expenses incurred by it in connection with the granting an initial franchise, including, but not limited to, consultant fees, attorneys' fees, publication fees, travel expenses and all other direct costs. To the extent allowed by law, the grantee shall pay the city a sum of money which will, reimburse all reasonable costs and expenses incurred by it in connection with the transferring, extending or renewing a franchise, including, but not limited to, consultant fees, attorneys' fees, publication fees, travel expenses and all other direct costs. The city shall submit a detailed schedule of all such costs. Such payment shall be made within thirty (30) days after the city furnishes the grantee with a written statement of such expenses. (Ord. No. 95-60, 6-1-95; Ord. No. 20-163, § 3, 12-15-20)

Sec. 28.1-33. Supervision of the franchise.

(a) The city shall have the following regulatory authority:

(1) Administration and enforcement of the provisions of this chapter and any franchise granted hereunder.

(2) Award, renewal, extension or termination of a franchise pursuant to the provisions of this chapter, the franchise, and other applicable law.

(3) Consent prior to the transfer of any franchise granted hereunder, pursuant to the provisions of this chapter, the franchise and applicable law.

(4) Performance evaluation.

(5) Analyze the possibility of integrating telecommunications with other city, state or regional telecommunications networks.

(6) Formulate and recommend long-range telecommunications policy for the city.

(7) Represent the city's interest before local, state or federal government agencies in telecommunications matters.

(8) Such other regulatory authority as appropriate to carry out the intent of this chapter or the franchise.

(Ord. No. 95-60, 6-1-95)

Secs. 28.1-34—28.1-44. Reserved.

ARTICLE IV. BONDS, INSURANCE AND INDEMNIFICATION

Sec. 28.1-45. Performance bond and letter of credit.

(a) *Performance bond.* Prior to the effective date of the franchise, the grantee shall obtain and maintain during the entire term of any franchise and any extensions and renewals thereof, at its cost and expense, and file with the city, a corporate surety bond in an amount specified in the franchise to guarantee the faithful performance of the grantee of all its obligations provided under this chapter and the franchise or a letter of credit. Failure to timely obtain, file and maintain said bond or letter of credit shall constitute a violation within the meaning of this section. Such bond must be issued by a surety and in a form reasonably acceptable to the city.

(b) *Conditions.* The performance bond shall be issued by a surety licensed to do business in North Carolina and shall provide the following conditions:

(1) There shall be recoverable by the city jointly and severally from the principal and surety, any and all fines and liquidated damages due to the city and any and all damages, losses, costs, and expenses suffered or incurred by the city resulting from the failure of the grantee to: faithfully comply with the provisions of this chapter and the franchise; comply with all orders, permits and directives of any city agency or body having jurisdiction over its acts or defaults; pay fees due to the city; pay any claims, liens or taxes due the city which arise by reason of the construction, operation, maintenance or repair of the telecommunications system. Such losses, costs and expenses shall include but not be limited to attorney's fees and other associated expenses.

(c) *Reduction of bond.* As may be specified in the franchise or upon written application by the grantee, the city may, at its sole option, permit the amount of the bond to be reduced or waive the requirements for a performance bond if grantee demonstrates a reasonable basis thereafter. Reductions granted or denied upon application by the grantee shall be without prejudice to the grantee's subsequent applications or to the city's right, at its sole discretion, to require the restoration of the full bond at any time thereafter. However, no application shall be made by the grantee within one (1) year of any prior application.

(d) *Letter of credit.* If a performance bond is not provided, the grantee shalt obtain, maintain, and file with the city an irrevocable letter of credit from a financial institution acceptable to the city and licensed to do business in the state in an amount specified in the franchise, naming

the city as beneficiary. The form and contents of such letter of credit shall be acceptable to the city and the letter shall be released only upon expiration of the franchise or upon the replacement of the letter of credit by a successor grantee. Failure to obtain the letter of credit or performance bond within the time specified herein shall constitute a violation within the meaning of this section.

(e) *Reduction of letter of credit.* As may be specified in the franchise or upon written application by the grantee, the city may, at its sole option, permit the amount of the letter of credit to be reduced or waive the requirements for a letter of credit if grantee demonstrates a reasonable basis thereafter. Reductions granted or denied upon application by the grantee shall be without prejudice to the grantee's subsequent applications or to the city's right, at its sole discretion, to require the restoration of the full letter of credit at any time thereafter. However, no application shall be made by the grantee within one (l) year of any prior application.

(f) *Conditions.* The city may draw upon the letter of credit up to the amount of damage suffered by the city if the grantee fails to: faithfully comply with the provisions of this chapter and the franchise; comply with all orders, permits and directives of any city agency or body having jurisdiction over its acts or defaults; pay fees due to the city; or pay any claims, liens or taxes due the city which arise by reason of the construction, operation, maintenance or repair of the telecommunications system.

(g) *Use of performance bond and letter of credit.* After the time specified for cure and prior to drawing upon the letter of credit or the performance bond for the purposes described in this section, the city shall notify the grantee in writing that payment is due and the grantee shall have ten (10) days from the receipt of such written notice to make a full and complete payment. If the grantee does not make the payment within ten (10) days, the city may withdraw the amount thereof, with interest and penalties, from the letter of credit or the performance bond.

(h) *Notification.* Within three (3) days of a withdrawal from the letter of credit or performance bond, the city shall send to the grantee, by certified mail, return receipt requested, written notification of the amount, date and purpose of such withdrawal.

(i) *Replenishment of letter of credit and performance bond.* No later than thirty (30) days, after mailing to the grantee by certified mail notification of a withdrawal pursuant to subsection (f) above, the grantee shall replenish the letter of credit or performance bond in an amount equal to the amount so withdrawn unless grantee has challenged such withdrawal and/or is the basis thereafter. Failure to make timely replenishment of such amount to the letter of credit and/or performance bond shall constitute a violation of this chapter.

(j) *Non-renewal, alteration, or cancellation of letter of credit or performance bond.* The performance bond or letter of credit required herein shall be in a form reasonably satisfactory to the city and shall require thirty (30) days' written notice of any non-renewal, alteration or cancellation to both the city and the grantee. The grantee shall, in the event of any such cancellation notice, obtain, pay all premiums for, and file with the city, written evidence of the issuance of replacement bond or policies within thirty (30) days following receipt by the city or the grantee of any notice of cancellation.

(k) *City rights.* The rights reserved to the city with respect to the performance bond or letter of credit are in addition to all other rights of the city, whether reserved by this chapter, the franchise or authorized by law, and no action, proceeding or exercise of a right with respect to such a bond or letter of credit shall affect any other right the city may have.

(l) *Right to require replacement of bonds or insurance.* If the city becomes aware of the financial condition of any bonding or insurance company issuing a performance bond or insurance policy to grantee as required herein where, if such conditions were known at the time, the city would not have approved the surety of the bond or the city would not have found the form of the bond or the insurance policies satisfactory or if the financial condition of such bonding or insurance company materially change to the extent that such approvals would not have been made, the city may, at any time, require that any such bond or insurance policy be replaced with such other bond or insurance policy consistent with the requirements set forth in this section.

(m) *Insurance for contractor and subcontractors.* Grantee shall provide coverage for any contractor or subcontractor involved in the construction, installation, maintenance or operation of its telecommunications system by either obtaining the necessary endorsements to its insurance policies or requiring such contractor or subcontractor to obtain appropriate insurance coverage consistent with this section and appropriate to the extent of its involvement in the construction, installation, maintenance or operation of grantee's telecommunications system.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-46. Liability and insurance.

(a) *Certificate of insurance.* Prior to commencement of construction, but in no event later than sixty (60) days after the effective date of the franchise and thereafter continuously throughout the

duration of the franchise and any extensions or renewals thereof, the grantee shall furnish to the city, certificates of insurance, approved by the city, for all types of insurance required under this section. Failure to furnish said certificates of insurance in a timely manner shall constitute a violation of this chapter.

(b) *Filing.* A certificate of insurance obtained by the grantee in compliance with this section shall be filed and maintained with the city clerk during the term of the franchise.

(c) *Endorsement.* All insurance policies maintained pursuant to this chapter or the franchise shall contain the following, or a comparable, endorsement: it is hereby understood and agreed that this insurance policy may not be modified or canceled by the insurance company nor the intention not to renew be stated by the insurance company until thirty (30) days after receipt by the city's risk manager, by registered mail, of a written notice of such intention to cancel or not to renew.

(d) *State institution.* All insurance policies provided under the provisions of this chapter or the franchise shall be written by companies authorized to do business in the state and approved by the state.

(e) *Names insured.* At any time during the term of the franchise, the city may request and the grantee shall comply with such request, to include the city as a named insured for all insurance policies written under the provisions of this chapter or the franchise.

(f) *Commercial general liability insurance.* The grantee shall maintain, and by its acceptance of any franchise granted hereunder specifically agrees that it will maintain throughout the term of the franchise, general liability insurance insuring the grantee in the minimum of:

(1) One million dollars ($1,000,000.00) for property damage per occurrence;

(2) Two million dollars ($2,000,000.00) for property damage aggregate;

(3) One million dollars ($1,000,000.00) for personal bodily injury or death to any one (1) person; and

(4) Two million dollars ($2,000,000.00) bodily injury or death aggregate per single accident or annual aggregate.

(g) *Policy inclusions.* Such general liability insurance must include coverage for all of the following: occurrence form, premises operations, explosion and collapse hazard, underground hazard, products/completed operations hazard, contractual insurance, broad form property damage, and personal injury.

(h) *Automobile liability insurance.* The grantee shall maintain, and by its acceptance of any franchise granted hereunder specifically agrees that it will maintain throughout the term of the franchise, automobile liability insurance for owned, non-owned, or rented vehicles in the minimum amount of:

(1) Two million dollars ($2,000,000.00) for bodily injury and consequent death per occurrence;

(2) One million dollars ($1,000,000.00) for bodily injury and consequent death to any one person.

(3) Five hundred thousand dollars ($500,000.00) for property damage per occurrence.

(i) *Worker's compensation and employer's liability insurance.* The grantee shall maintain and by its acceptance of any franchise granted hereunder specifically agrees that it will maintain throughout the term of the franchise, worker's compensation and employer's liability, valid in the state, in the minimum amount of:

(1) Statutory limit for worker's compensation.

(2) Five hundred thousand dollars ($500,000.00) for employer's liability.

(j) *No limitation on liability.* None of the provisions of this chapter or any insurance policy required herein, or any damages recovered by the city hereunder, shall be construed to excuse the faithful performance by or limit the liability of grantee for damages under this chapter or the franchise.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-47. Indemnification.

(a) *Indemnity.* Grantee shall, at its sole cost and expense, fully indemnify, defend and hold harm-

less the city, its officers, boards and commissions, and city employees against any and all claims, suits, actions, liability and judgments for damages (including but not limited to expenses for reasonable legal fees and disbursements and liabilities assumed by the city in connection therewith):

(1) To persons or property, in any way arising out of or through the acts or omissions of grantee, its servants, agents or employees, or to which grantee's negligence shall in any way contribute.

(2) Arising out of grantee's failure to comply with the provisions of any federal, state, or local statute, ordinances, or regulation applicable to grantee in its business hereunder.

(b) *Condition.* The foregoing indemnity is conditioned upon the following:

The city shall give grantee prompt notice of any claim or the commencement of any action, suit or other proceeding covered by the provisions of this section. Nothing herein shall be deemed to prevent the city from cooperating with the grantee and participating in the defense of any litigation by its own counsel at its own costs and expense. Any sum received by the city as liquidated damages shall be deducted from any recovery which the city might have against the grantee under the terms of this section.

Secs. 28.1-48—28.1-58. Reserved.

ARTICLE V. DESIGN, CONSTRUCTION PROVISIONS

Sec. 28.1-59. Construction and technical standards.

(a) *Minimum interference.* The grantee's system and associated equipment erected by the grantee within the city shall be so located as to cause minimum interference with the proper use of streets, alleys, and other public rights-of-way, and to cause minimum interference with the rights and reasonable convenience of property owners who adjoin any of the said streets, alleys or other public rights-of-way. No pole or other fixtures placed in any public rights-of-way by the grantee shall be placed in such a manner as to interfere with normal travel on such public rights-of-way.

(b) *City maps.* The city does not guarantee the accuracy of any maps showing the horizontal or vertical location of existing substructures. In public rights-of-way, where necessary, the location shall be verified by excavation.

(c) *Quality of construction.* Construction, installation, operation, and maintenance of the telecommunications system shall be performed in an orderly and workmanlike manner, in accordance with then current technological standards. All cables and wires shall be installed, where possible, parallel with electric and telephone lines. Multiple cable configurations shall be arranged in parallel and bundled with due respect for aesthetic and engineering considerations.

(d) *Construction standards.* The construction, installation, operation, maintenance, and/or removal of the telecommunications system shall meet all of the following safety, construction, and technical specifications and codes and standards, as applicable:

(1) Occupational safety and health administration regulations (OSHA);

(2) National Electrical Code National Electrical Safety Code (NESC);

(3) Appropriate manual of construction procedures and standards as determined by the city's chief inspector of buildings;

(4) All federal, state and municipal construction requirements;

(5) All building and zoning codes, and all land use restrictions as the same exist or may be amended hereafter.

(6) Appropriate tagging to city standards.

(e) *Right to inspection of construction.* The city or its designee shall have the right to inspect at any time the telecommunications system, together with any appurtenant property of grantee site and within the city. Grantee shall cooperate

fully with the city during all inspections, and shall provide access to all equipment, records, and other materials and information necessary for such inspections. Except as otherwise provided by this chapter, the franchise, law, regulation or chapter, all inspections performed by the city shall be initially at the city's sole cost and expense. If the grantee is found not to be in compliance with the terms of the chapter and all other applicable law, then the grantee must reimburse the city for the costs of such inspections. This reimbursement is not to be considered a part of the franchise fee.

(f) *OSHA.* All worker facilities, conditions, and procedures that are used during construction, installation, operation, and maintenance of the telecommunications system shall comply with the standards of the Occupational Safety and Health Administration.
(Ord. No. 95-60, 6-1-95; Ord. No. 99-70, § 6, 5-18-99)

Sec. 28.1-60. System construction schedule.

The franchise shall specify the grantee's construction timetable. The timetable shall be a monthly schedule.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-61. Extension of service.

The grantee may request city authorization to extend service within the city and any areas annexed to the city under such extension provisions as provided for in the franchise.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-62. Use of streets.

(a) *Underground installation.* All installations shall be underground in those areas of the city where public utilities providing telephone and electric service are underground at the time of installation. In areas where either telephone or electric utility facilities are above ground at the time of installation, grantee may install its service above ground, provided that at such time as those facilities are required to be placed underground by the city or are placed underground, the grantee shall likewise place its services underground without cost to the city. All cable passing under the roadway shall be installed in conduit.

(b) *Pedestals.* In any case where enclosures housing mini-hubs, switching, or other such equipment are to be utilized along streets and sidewalks, such equipment must be vaulted or otherwise contained in an underground enclosure so as to conform to existing city and utility equipment installation requirements. A certificate of approval from the city, which approval will not be unreasonably withheld, shall be required for the location of any pedestal in a public right-of-way.

(c) *Permits.* Prior to construction or alteration of aerial or underground construction in the public right-of-way, the grantee shall in each case file plans with the appropriate city agencies, complete use agreements with the utility companies if necessary, obtain all construction permits, and receive written approval of the city before proceeding and if applicable, a certificate of appropriateness in the historic district.

(d) *Construction notice.* Grantee shall give appropriate notice to the city and residents within a reasonable period of time of proposed construction, excavation, laying or stringing of cable under streets or on poles, but in no event shall such notice be given less than fourteen (14 days) before such commencement.

(e) *Interference with persons, improvements, public and private property and utilities.* The grantee's system and facilities, including poles, lines, equipment and all appurtenances, shall be located, erected and maintained so that such facilities shall:

(1) Not endanger or interfere with the health, safety or lives of persons;

(2) Not interfere with any improvements the city, county or state may deem proper to make;

(3) Not interfere with the free and proper use of public streets, alleys, bridges, easements or other public rights-of-way, places or property, except to the minimum extent possible during actual construction or repair;

(4) Not interfere with the rights and reasonable convenience of private property owners, except to the minimum extent possible during actual construction or repair; and

(5) Not obstruct, hinder or interfere with any gas, electric, water or telephone facilities or other utilities located within the city.

(f) *Restoration to prior condition.* In case of any disturbance of pavement, sidewalk, driveway or other surfacing, the grantee shall, at its own cost and expense and in a manner approved by the city, replace and restore all paving, sidewalk, driveway, landscaping, or surface of any street or alley disturbed, in as good a condition as, or better than, before said work was commenced and in a good workmanlike, timely manner in accordance with standards for such work set by the city. Such restoration shall be completed within no more than twenty-four (24) hours after the damage is incurred. In such instances, the city shall give the grantee notice to the extent practicable.

(g) *Disconnection and relocation.* Grantee shall, at its sole cost and expense, protect, support, temporarily disconnect, relocate in the same street, or other streets and public rights-of-way, or remove from any street or any other public rights-of-way, any of its property as reason of traffic conditions, public safety, street construction, change or establishment of street grade, or the construction of any public improvement or structure by any city department may necessitate.

(h) *Private property.* Grantee shall be subject to all laws, ordinances or regulations regarding private property in the course of constructing, installing, operating or maintaining the telecommunications system in the city. Grantee shall promptly repair or replace all private property, both real and personal, damaged or destroyed as a result of the construction, installation, operating or maintenance of the telecommunications system at its sole cost and expense.

(i) *Cooperation with building movers.* The grantee shall, on the request of any person holding a building moving permit issued by the city, temporarily raise or lower its wire to permit the moving of buildings. The expense of such temporary removal, raising or lowering of wires shall be paid by the person requesting the same, and the grantee shall have the authority to require such payment in advance. The grantee shall be given not less than fifteen (15) working days' advance notice to arrange for such temporary wire changes.

(j) *Tree trimming.* Grantee may trim trees or other vegetation owned by the city to prevent branches, leaves or roots from touching or otherwise interfering with its wires, cables, or other structures as approved by the city.

(1) All tree/root trimming or pruning provided for herewith shall be done under the supervision and direction of the appropriate city agency and only with its prior written approval.

(2) All trimming or pruning shall be at the expense of the grantee.

(3) The grantee may contract for such trimming or pruning services with any person approved by the city prior to rendering of such services.

(4) Any and all persons engaged by the grantee to provide tree trimming or pruning services shall be deemed, for purposes of the franchise, an employee or agent of grantee when engaged in such activity; and in no event shall such person be deemed to be an employee of the city. If applicable, specific approval shall be received for tree trimming or pruning services in the historic district, which approval shall not be unreasonably withheld.

(5) Grantee shall use its best efforts to obtain the prior permission of the owner of any privately owned trees or other vegetation before it prunes or trims same.

(6) Grantee shall give appropriate notice to the city and residents within a reasonable time of proposed tree/root trimming and pruning, but in no event shall such notice be given less than seven (7) days before such commencement.

(k) *Public property.* Where any damages or alterations occur to the city's water, sewage or drainage lines or to any other municipal structures during the construction due to the presence,

negligence, operation or maintenance of the telecommunications system, the sole cost of such repairs including all services and materials will be billed against the grantee and these charges shall be paid immediately or the city may foreclose on performance bonds, or invoke other appropriate sanctions provided for in this chapter.

(l) *Easements.* All necessary easements over and under private property shall be arranged for by the grantee.

(m) *Construction and installation manual.* Grantee shall submit to the city a manual which sets forth the specifications, standards and procedures for construction and installation of its telecommunications system. Said manual shall be consistent with the highest standards of the telecommunications industry and shall, at a minimum, establish procedures to ensure quality work and provide for the safety and protection of residents and property. Said manual shall be included in the franchise.

(n) *Maps.* Upon completion of the construction of the telecommunications system, the grantee shall submit to the city a complete and accurate set of "as built" maps. Maps shall be based on current state plane coordinates and shall be provided to the city on disc in DXF format. Such maps shall be compatible with any geographic information system utilized by the city.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-63. Erection, removal and common use of poles.

(a) *Requirements to use existing poles.* Where poles already exist for use in serving the city and are available for use by the grantee, but it does not make arrangements for such use, the city may require the grantee to use such poles and structures if the public convenience would be enhanced thereby and the terms of the use available to the grantee are just and reasonable.

(b) *New poles.* No new poles shall be installed by the grantee without the prior approval of the city.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-64. Conduit in downtown area.

(a) *Approval for conduit.* No conduit shall be installed by the grantee in the downtown area without prior approval of the city with regard to location and any other pertinent aspect which approval shall not be unreasonably withheld. However, no location of any conduit of the grantee shall give rise to a vested interest and such conduit or structures shall be removed or modified by the grantee at its own expense whenever the public convenience would be enhanced thereby.

(b) *Use of existing conduit.* Where conduit already exists for use in serving the downtown area and is available for use by the grantee, but it does not make arrangements for such use, the city may require the grantee to use such conduit if the public convenience would be enhanced thereby and the terms of the use available to the grantee are just and reasonable.
(Ord. No. 95-60, 6-1-95)

Secs. 28.1-65—28.1-75. Reserved.

ARTICLE VI. SERVICE PROVISIONS

Sec. 28.1-76. Rights of individuals.

(a) *Nondiscrimination required.* Grantee shall not deny service, deny access, or otherwise discriminate against subscribers, channel users or general citizens on the basis of race, color, religion, national origin, age, sex, or physical or mental handicaps, provided the subscriber shall pay all applicable fees for the service desired. Grantee shall comply at all times with all other applicable federal, state and local laws and regulations, and all executive and administrative orders and rates relating to nondiscrimination which are hereby incorporated and made part of this chapter by reference.

(b) *Protection of subscriber privacy mandatory.* Grantee shall at all times protect the privacy of subscribers, as provided in this chapter and other applicable federal, state, and local laws.

(c) *Service standards.* Franchisee shall maintain and operate its communications system and business in an efficient manner and shall provide adequate, efficient and reasonable service to its

customers in the city. Franchisee shall comply with all applicable federal, state, and local laws, rules and regulations.
(Ord. No. 95-60, 6-1-95)

Secs. 28.1-77—28.1-88. Reserved.

Editor's note—Ord. No. 10-139, § 1, adopted Sept. 7, 2010, repealed § 28.1-77 in its entirety. The former § 28.1-77 pertained to institutional networks and derived from the original Code.

ARTICLE VII. REPORTS, FRANCHiSE APPLICATIONS AND MISCELLANEOUS

Sec. 28.1-89. Reports required.

The grantee shall file the following reports with the city:

(a) *Facilities report.* An annual report setting forth the physical miles of plant construction and plant in operation during the fiscal year shall be submitted to the city. Such report shall also contain any revisions to the system "as built" maps filed with the city. The annual report shall be provided in February.

(b) *Proof of bonds and insurance.* Grantee shall submit to the city the required performance bond, or a certified copy thereof, and written evidence of payment of required premium, and all policies of insurance required by this chapter, or certified copies thereof, and written notice of payment of required premium.

(c) *Financial reports.* The following financial reports for the franchise area shall be submitted annually to the city ninety (90) days after the end of the grantee's fiscal year:

(1) An ownership report, indicating all persons, who at any time during the preceding year did control or benefit from an interest in the franchise of ten percent (10%) or more.

(2) An annual and certified income statement from the previous calendar year, including subscriber revenue from each category of service.

(3) An annual list of officers and members of the board of grantee and of any parent corporation.

(d) *Additional reports.* The grantee shall prepare and furnish to the city at the times and in the form prescribed, such additional reports with respect to its operation, affairs, transactions or property, as may be reasonably necessary and appropriate to the performance of any of the rights, functions or duties of the city in connection with this chapter or the franchise.
(Ord. No. 95-60, 6-1-95)

Sec. 28.1-90. Franchise applications.

(a) *Application for franchise.* Any person or corporation seeking a telecommunications franchise shall meet the requirements established by the city and submit an application which meets all requirements of this chapter. Such application shall, at a minimum, contain the following:

(1) A description of the telecommunications system and services desired by the applicant including any system specifications established by the city.

(2) A description of the legal, technical, and financial qualifications of the applicant and the applicant's ability to construct, operate, and maintain the telecommunications system as proposed.

(3) The name, address, and telephone number of the applicant who may be contacted for further information.

(b) *Requirement for formal action on reasonable notice.* The city shall give notice to any applicant prior to acting on any telecommunications franchise. The meeting shall conducted by the city council in accordance with the following procedures:

(1) There shall be an agenda for the meeting which shall specify the proposal(s) to be considered at the meeting.

(2) Any person who has applied for a telecommunications franchise may appear at the meeting either in person or by authorized representative.

(3) All persons shall be given opportunity to participate in the meeting, but nothing contained herein shall limit the power of the mayor to establish reasonable time limits and otherwise limit repetitive statements or questions.

(4) Copies of all franchise applications are available for public inspection during normal business hours in the office of the city clerk.

(c) *City discretion.* Subject to the applicable law, the city, at its discretion, may reject any application for a franchise.
(Ord. No. 95-60, 6-1-95)

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Chapter 29

WATER, SEWERS AND WASTE DISPOSAL*

Article I. In General

Sec. 29-1. Consolidation of water and sewer system.
Sec. 29-2. Funds for construction of water and sewer mains and laterals.
Sec. 29-3. Water and sewer mains and assessments.
Sec. 29-4. Annexation of private water and sewer mains.
Sec. 29-5. Tampering with valves and hydrants.
Sec. 29-6. Rules and regulations for operation of water and sewer systems.
Sec. 29-7. Developer or owner funded water and sewer extensions.
Secs. 29-8—29-25. Reserved.

Article II. Connection Charges

Sec. 29-26. Connection charges.
Sec. 29-27. Reserved.
Sec. 29-28. Reserved.
Sec. 29-29. Reserved.
Sec. 29-30. Drainage systems to conform to city design.
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Article III. User Rates and Charges

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Sec. 29-48. Monthly rates inside the city; billing and availability charges.
Sec. 29-49. Monthly rates outside city; billing and availability charges.
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Sec. 29-51. Additional sewer service charge for special wastes.
Sec. 29-52. Rates for sewer services provided by districts or municipalities other than the city.
Sec. 29-53. System development fees; declaration of purpose.
Sec. 29-53.1. Exemptions and refunds of the system development fee for housing units located within the corporate limits of the city and defined as serving affordable to low income households with incomes below 80% of the area median income as calculated annually by the U.S. department of housing and urban development.
Sec. 29-53.2. Credits.
Sec. 29-54. Miscellaneous water and sewer charges.
Sec. 29-55. Fee for residential household hazardous waste collection.
Sec. 29-56. Penalty for late payment.
Sec. 29-57. Reserved.
Sec. 29-58. Penalty for tampering with water meters.
Sec. 29-59. Frontage fees for utility extensions outside of city limits.

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*__Charter reference—__Utilities, § 6.81 et seq.
__Cross references—__Nuisances, Ch. 17; solid wastes, Ch. 25; storm water management, Ch. 27.
__State law reference—__Municipal water and sewer systems, G.S. § 160A-311 et seq.

ARTICLE I. IN GENERAL

Sec. 29-1. Consolidation of water and sewer system.

The city owns and maintains a waterworks and a sewerage system, including sewerage treatment plants, and the best interest of the city will be served by operating these systems as a combined and consolidated system. The waterworks and sewerage systems of the city, including the sewage treatment plants, are hereby consolidated and combined and shall be operated as a combined and consolidated system. The rates adopted for the waterworks include an amount which is sufficient to provide for the payment of the annual interest on the existing bonded debt for the sewerage system, for the annual installments necessary for the amortization of such debts; and the necessary allowance for repairs, maintenance and operation. The charges for sewer service shall be added to and become a part of every water bill and shall be paid at the same time and in the same manner that water bills are paid, and if not so paid the water and sewer service shall be discontinued. (Code 1961, § 22-1)

Sec. 29-2. Funds for construction of water and sewer mains and laterals.

There shall be set up a "water and sewer operating construction fund" which shall be used for the construction of water and sewer mains and laterals if such is directed by the city council. If this fund is used, the assessments paid by the individual property owners on the particular streets thus improved, together with the interest on such assessments, shall be credited back to the same fund and shall be used only for the construction of water and sewer mains or laterals, unless otherwise directed by the council. (Code 1961, § 22-2)

Sec. 29-3. Water and sewer mains and assessments.

(a) The city council when considering water and sewer main assessments, shall determine which street or portions of streets inside the city shall be provided with water or sewer mains and what size the mains shall be. The council shall likewise determine the amount of construction cost to be borne by the abutting property owners and the amount to be borne by the city. The council shall determine when water or sewer laterals are to be paid as a part of the water and sewer improvement and shall determine whether the laterals terminate at the curbline or at the property line.

(b) The assessment formula for water and sewer improvements shall be set at a rate that recovers eighty (80) percent of the construction cost. The construction cost would be based on the prior three years average of the construction costs of a 6-inch water line and an 8-inch sewer line. The assessment rate will be reviewed for any necessary adjustments once a year in coordination with the annual budget process.

(c) Upon receiving notice of completion of a water/sewer project, city council shall confirm all assessment obligations in said project and shall call for advertisement of same in a local newspaper published at least weekly and which is generally available to Greensboro citizens. Such advertisement shall run within forty-five (45) days following the date of confirmation and shall inform that all listed assessment obligations may be fully satisfied, without interest, if payment-in-full of the total principal balance is received by the tax collector within ninety (90) days following the date of confirmation.

(d) Assessment accounts not paid in full within ninety (90) days following the confirmation date shall be scheduled for payment in substantially equal installments, plus interest on the whole unpaid principal balance. Such interest shall be computed from the date of confirmation at a rate fixed in the assessment resolution, with said rate not exceeding the maximum allowed by law. The first installment shall become due and payable no later than one (1) year (three hundred sixty-five (365) days) following confirmation, with subsequent installments being due and payable on the regular and sequential cycle of the installment frequency (monthly, quarterly, semi-annually or annually) elected by the obligee(s) and

with the final installment being due and payable by not later than one hundred twenty (120) months after the confirmation date.

If the obligee expresses no preference as to payment frequency the assessment obligation will be scheduled for payment in ten (10) annual installments. Upon approval of the tax collector, the frequency of payment for existing assessment accounts may be changed for the economic and budgetary convenience of the obligee, with the first such change being granted without charge and with subsequent changes being granted with a transaction fee of thirty-five dollars ($35.00).

(e) At any time after the first ninety (90) days in the life of an assessment account the full principal balance may be paid in full with all accrued interest and without early payoff penalty.
(Code 1961, § 22-3; Ord. No. 94-43, § 1, 6-6-94; Ord. No. 99-95, §§ 1—3, 6-15-99; Ord. No. 02-104, § 1, 6-18-02; Ord. No. 13-109, § 1, 8-5-13)

Sec. 29-4. Annexation of private water and sewer mains.

As a condition of providing water or sewer service to any property beyond the city limits, upon the annexation of any water mains or sewer mains which are served by the city system, so much of such mains as are within the city limits, as extended, shall become the property of the city without cost to the city, and shall be incorporated into the city water and sewer system as if they were originally constructed by the city.
(Code 1961, § 22-6)

Sec. 29-5. Tampering with valves and hydrants.

It shall be unlawful for any person to open, close, operate or otherwise tamper with any valves or hydrants which are a part of the water system of the city without first notifying and receiving the prior approval of the director of water resources of the city, or his/her/their designated agent; provided, that upon conviction of any contractor or employee of any contractor acting on behalf of such contractor for violation of the provisions of this section, the privilege license of such contractor may be revoked or suspended by the city council of the city in its discretion for a period of not more than six (6) months.
(Code 1961, § 22-6.1; Ord. No. 00-226, § 1, 12-5-00; Ord. No. 20-163, § 3, 12-15-20)

Cross reference—Reward for information relative to unauthorized tampering with water system, § 10-2.

Sec. 29-6. Rules and regulations for operation of water and sewer systems.

The city manager shall establish rules and regulations for the operation of the municipal water and sewer system. Upon approval by the council, it shall be unlawful for any person to violate any rule or regulation established by the city manager. A copy of the rules and regulations shall be filed with the city clerk.
(Code 1961, § 22-7)

Sec. 29-7. Developer or owner funded water and sewer extensions.

Water and sewer extensions within the designated water and sewer service district which are fully funded and paid for by the owner or developer of the project and which will incur no cost to the city, may be extended at the discretion of the director of the water resources department without further council action. These extensions remain subject to TRC review and approval, and shall remain subject to all other city regulations and procedures.
(Ord. No. 13-109, § 1, 8-5-13)

Secs. 29-8—29-25. Reserved.

ARTICLE II. CONNECTION CHARGES

Sec. 29-26. Connection charges.

(a) *Water connections.* That fixed charge for water service connection installed by city forces or under contract with the city shall include the setting of meter, meter setter, meter box, the

tapping of the main, and necessary pipe to extend to the property line or easement limit. Charges for these items shall be as follows:

Meter size (inches)	
5/8 × 3/4	per cost
3/4	per cost
1	per cost
1 1/2	per cost
2	per cost
3	per cost
4	per cost
6	per cost
8	per cost

Charge for installing an extra meter beside an existing meter:

Meter size (inches)	
5/8 × 3/4	$ 470.00
3/4	510.00
1	per cost
1 1/2	per cost
2	per cost

Charge for setting a meter when lateral has been run to property and meter box and meter setter have been set shall be as follows:

Meter size (inches)	
5/8	$ 165.00
5/8 (new construction)	185.00
3/4	200.00
1	235.00
1 1/2	966.00
2	1,107.00
3	per cost
4	per cost

(b) *Sewer connections.* The fixed charges for a sewer connection installed by city forces or under contract with the city shall include the tapping of the main, a cleanout and necessary pipe to extend to the property line or easement limit:

Charges for these items shall be as follows:

4-inch	$ 1,050.00
6-inch	per cost
8-inch	per cost
8-inch × 4-inch saddle only	per cost
8-inch × 6-inch saddle only	per cost

Deduct $100.00 if water and sewer in same ditch.

(c) *Installing or adjusting fire hydrants.* The fixed charge to install a fire hydrant or make adjustments to an existing hydrant are as follows:

Adjust hydrant	per cost
Add hydrant to main	per cost

(d) *Improved streets.* When making a water and/or sewer connection on a standard paved street (maximum sixty-foot right-of-way) a charge of five hundred seventy dollars ($570.00) shall be added to the applicable connection charge. All other paved streets will be at a cost/plus basis.

(e) *Miscellaneous charges.* Request for fire hydrant flow test fifty dollars ($50.00).
(Code 1961, § 22-4(a); Ord. No. 93-49, § 1, 6-3-93; Ord. No. 94-19, §§ 1, 2, 4-18-94; Ord. No. 96-64, § 1, 6-4-96; Ord. No. 97-96, § 1, 6-3-97; Ord. No. 98-123, § 1, 8-18-98; Ord. No. 99-85, § 1, 6-1-99; Ord. No. 00-226, § 2, 12-5-00; Ord. No. 04-125, § 1, 7-20-04; Ord. No. 04-99, § 1, 6-22-04; Ord. No. 05-146, § 1, 6-21-05; Ord. No. 06-139, § 1, 6-20-06; Ord. No. 06-227, § 1, 10-17-06; Ord. No. 23-081, § 1, 6-20-23; Ord. No. 25-103, § 1, 6-17-25)

Sec. 29-27. Reserved.

Editor's note—Section 2 of Ord. No. 93-49, adopted June 3, 1993, amended this Code by repealing § 29-27, pertaining to sewer connections, as derived from § 22-4(b) of the 1961 Code.

Sec. 29-28. Reserved.

Editor's note—Section 2 of Ord. No. 93-49, adopted June 3, 1993, amended this Code by repealing § 29-28, pertaining to improved streets, as derived from § 22-4(c) of the 1961 Code.

Sec. 29-29. Reserved.

Editor's note—It should be noted that Ord. No. 00-226, adopted on December 5, 2000 repealed section 29-29 in its entirety.

Sec. 29-30. Drainage systems to conform to city design.

It shall be the duty of all property owners, in order to abate and prevent nuisances resulting from improper drainage, to provide at their own expense a proper and adequate drainage system of their respective premises, such drainage system to conform to the design established by the city. (Code 1961, § 9-19)

Secs. 29-31—29-45. Reserved.

ARTICLE III. USER RATES AND CHARGES*

Sec. 29-46. Generally; sewer rates; billing and availability charges.

Rates for water and sewer service shall apply only to the quantities shown in the corresponding brackets, and the cost of any quantity shall be the cumulative total of all portions of that quantity. Rates for monthly sewer service inside the city shall be a uniform charge of five dollars and twenty-seven cents ($5.27) per one hundred (100) cubic feet of wastewater discharge plus a billing and availability charge as shown below:

Size of Meter	*Billing and Availability Charge*
⅝"	$5.43
¾"	8.77
1"	27.62
1¼"	65.00
1½"	110.00
2"	183.00
3"	370.00
4"	580.00
6"	1,108.00
8"	1,783.00
10"	2,679.00

A billing and availability charge shall be charged with each billing, whether monthly or quarterly billing. Customers with quarterly sewer service inside the city shall be charged a billing and availability fee at the rate charged to customers with a five-eighths-inch meter shown in the table above for monthly sewer service.

Rates for sewer service accounts outside the city shall be thirteen dollars and three cents ($13.03) per one hundred (100) cubic feet of wastewater discharge for the first three thousand (3,000) units, and five dollars and twenty-seven cents ($5.27) per unit for all units above three thousand (3,000), plus a billing and availability charge each bill as shown below:

Size of Meter	*Billing and Availability Charge*
⅝"	$13.71
¾"	21.97
1"	69.48
1¼"	166.00
1½"	279.00
2"	461.00
3"	923.00
4"	1,454.00
6"	2,778.00
8"	4,449.00
10"	6,671.00

A billing and availability charge shall be charged with each billing, whether monthly or quarterly billing. Customers with quarterly sewer service outside the city shall be charged a billing and availability fee at the rate charged to customers with a five-eighths-inch meter shown in the table above for monthly sewer service.

No discounts shall be allowed from the rates fixed on the above schedule. If a meter was cut off or if a final bill for the account is generated before the end of the billing period, the actual consumption plus the billing and availability charge for the appropriate meter size shall be charged.

The annual sewer charge inside the city for unmetered accounts shall be based on sixty (60) units of sewer at the current inside rate per one hundred (100) cubic feet of wastewater discharge or a pro rata portion for the months that the service is provided. The annual sewer charge outside the city for unmetered accounts shall be based on sixty (60) units of sewer at the current

*__Charter reference—__Lien for utility charges, § 6.83.

outside rate per one hundred (100) cubic feet of wastewater or a pro rata portion for the months that the service is provided.
(Code 1961, § 22-5; Ord. No. 88-10, § 1, 1-28-88; Ord. No. 90-75, § 1, 6-14-90; Ord. No. 94-42, § 1, 6-6-94; Ord. No. 96-65, § 1, 6-4-96; Ord. No. 98-88, § 1, 6-2-98; Ord. No. 98-184, § 1, 12-1-98; Ord. No. 99-85, § 2, 6-1-99; Ord. No. 99-189, § 1, 11-16-99; Ord. No. 01-135, § 1, 6-5-01; Ord. No. 02-121, § 1, 6-18-02; Ord. No. 03-150, § 1, 6-17-03; Ord. No. 04-143, § 1, 8-2-04; Ord. No. 04-99, § 2, 6-22-04; Ord. No. 05-146, § 2, 6-21-05; Ord. No. 06-139, § 2, 6-20-06; Ord. No. 07-122, § 1, 6-28-07; Ord. No. 08-195, § 1, 6-17-08; Ord. No. 10-83, § 1, 6-15-10; Ord. No. 10-168, § 1, 11-16-10; Ord. No. 11-14, § 1, 1-18-11; Ord. No. 12-65, § 1, 6-19-12; Ord. No. 13-90, § 1, 6-18-13; Ord. No. 14-085, § 1, 6-17-14; Ord. No. 15-091, § 1, 6-16-15; Ord. No. 016-74, § 1, 6-21-16; Ord. No. 17-71, § 1, 6-20-17; Ord. No. 18-075, § 1, 6-19-18; Ord. No. 19-084, § 1, 6-18-19; Ord. No. 21-096, § 1, 6-15-21, eff. 7-1-21; Ord. No. 21-169, § 1, 11-17-21; Ord. No. 22-139, § 1, 6-21-22; Ord. No. 22-161, § 1, 7-19-22; Ord. No. 23-080, § 1, 6-20-23; Ord. No. 24-086, § 1, 6-18-24; Ord. No. 25-103, § 2, 6-17-25)

Sec. 29-47. Reserved.

Editor's note—Ord. No. 10-83, § 2, adopted June 15, 2010, repealed § 29-47 in its entirety. The former § 29-47 pertained to quarterly water rates inside the city; billing and availability charges and derived from the Code of 1961, § 22-5(a); Ord. No. 88-10, § 1, adopted Jan. 28, 1988; Ord. No. 90-75, § 2, adopted June 14, 1990; Ord. No. 91-71, § 1, adopted June 13, 1991; Ord. No. 94-42, § 2, adopted June 6, 1994; Ord. No. 96-65, § 2, adopted June 4, 1996; Ord. No. 98-88, § 2, adopted June 2, 1998; Ord. No. 98-184, § 2, adopted Dec. 1, 1998; Ord. No. 99-189, § 2, adopted Nov. 16, 1999; Ord. No. 01-135, § 2, adopted June 5, 2001; Ord. No. 02-121, § 2, adopted June 18, 2002; Ord. No. 03-150, § 2, adopted June 17, 2003; Ord. No. 04-99, § 3, June 22, 2004; Ord. No. 05-146, § 3, adopted June 21, 2005; Ord. No. 06-139, § 3, adopted June 20, 2006; Ord. No. 07-122, § 2, adopted June 28 2007; Ord. No. 08-195, § 2, adopted June 17, 2008)

Sec. 29-48. Monthly rates inside the city; billing and availability charges.

(a) *Residential water charges.* Monthly billed (inside) accounts with five-eighths-inch and three-fourths-inch meters that are billed as residential accounts shall be charged a billing and availability charge of five dollars and ninety-one cents ($5.91) or nine dollars and fifty-three cents ($9.53) respectively, for each month. In addition, the account will be charged for water consumed as follows:

	Per Unit
First 3 units	$3.20
4th through 10th units	4.61
11th through 20th units	5.81
All units over 20	8.02

(b) *Nonresidential water charges.* All monthly billed (inside) accounts not described in subsection (a) above or subsection (c) below shall be billed a billing and availability charge as follows:

Size of Meter	*Billing and Availability Charge Inside the City*
⅝"	$5.91
¾"	9.53
1"	30.00
1¼"	70.00
1½"	120.00
2"	199.00
3"	402.00
4"	631.00
6"	1,204.00
8"	1,937.00
10"	2,910.00

Consumption of water shall be billed at four dollars and sixty-one cents ($4.61) per unit for all units.

(c) *Irrigation use.* All inside monthly billed irrigation accounts (water metered separately for irrigation or other outside use only) shall be eight dollars and two cents ($8.02) per unit plus a billing and availability charge as shown in subsection (b) above.

(d) *Fire meters.* Billing and availability charges on fire meters shall be based on the size of the main meter. However, the property owner may petition the water resources director to have a lower charge based on the bypass meter (if available) if they can demonstrate a clear history of inconsequential volumes passed through the larger meter.
(Code 1961, § 22-5(b); Ord. No. 88-10, § 1, 1-28-88; Ord. No. 90-75, § 3, 6-14-90; Ord. No.

91-71, § 2, 6-13-91; Ord. No. 94-42, § 3, 6-6-94; Ord. No. 96-65, § 3, 6-4-96; Ord. No. 98-88, § 3, 6-2-98; Ord. No. 98-184, §§ 3, 4, 12-1-98; Ord. No. 99-189, §§ 2—6, 11-16-99; Ord. No. 00-103, § 1, 7-1-00; Ord. No. 00-226, § 4, 12-5-00; Ord. No. 01-135, § 3, 6-5-01; Ord. No. 02-121, § 3, 6-18-02; Ord. No. 03-150, § 3, 6-17-03; Ord. No. 04-99, § 4, 6-22-04; Ord. No. 05-146, § 4, 6-21-05; Ord. No. 06-139, § 4, 6-20-06; Ord. No. 07-122, § 3, 6-28-07; Ord. No. 08-195, § 3, 6-17-08; Ord. No. 10-83, § 3, 6-15-10; Ord. No. 10-168, § 2, 11-16-10; Ord. No. 11-14, § 2, 1-18-11; Ord. No. 12-65, § 2, 6-19-12; Ord. No. 12-72, § 1, 7-17-12; Ord. No. 13-90, § 2, 6-18-13; Ord. No. 14-085, § 2, 6-17-14; Ord. No. 15-091, § 2, 6-16-15; Ord. No. 016-74, § 2, 6-21-16; Ord. No. 17-71, § 2, 6-20-17; Ord. No. 18-075, § 2, 6-19-18; Ord. No. 19-084, § 2, 6-18-19; Ord. No. 21-096, § 2, 6-15-21, eff. 7-1-21; Ord. No. 22-139, § 2, 6-21-22; Ord. No. 23-080, § 2, 6-20-23; Ord. No. 24-086, § 2, 6-18-24; Ord. No. 25-103, § 3, 6-17-25)

Sec. 29-49. Monthly rates outside city; billing and availability charges.

All water meters outside the corporate limits of the city shall be read monthly and shall be billed at the following rates:

(1) *Residential water charges.* Outside accounts with five-eights-inch and three-fourths-inch meters that are billed as residential accounts shall be charged a billing and availability charge of fourteen dollars and eighty-nine cents ($14.89) or twenty-three dollars and eighty-six cents ($23.86) respectively, for each bill. In addition, the account will be charged for water consumed as follows:

	Per Unit
First 3 units	$8.02
4th through 10th units	11.57
11th through 20th units	14.41
All units over 20	20.08

(2) *Nonresidential water charges.* All outside accounts not described in subsection (1) above or below shall be billed a billing and availability charge as follows:

Size of Meter	*Billing and Availability Charge Inside the City*
⅝"	$14.89
¾"	23.86
1"	75.46
1¼"	180.00
1½"	304.00
2"	501.00
3"	1,002.00
4"	1,579.00
6"	3,005.00
8"	4,832.00
10"	7,245.00

Consumption of water shall be billed at eleven dollars and fifty-seven cents ($11.57) per unit for the first three thousand (3,000) units, and four dollars sixty-one cents ($4.61) for all units above three thousand (3,000).

(3) *Irrigation use.* All outside irrigation accounts (water metered separately for irrigation or other outside use only) shall be charged twenty dollars and eight cents ($20.08) per unit plus a billing and availability charge as shown in subsection (2) above.

(4) *[Sewer service; Town of Jamestown.]* Monthly rates charged to consumers provided sewer service by the Town of Jamestown should be as commensurate with sewer service charges adopted by the Town of Jamestown.

(5) *[Sewer service; City of High Point.]* Monthly rates charged to consumers provided sewer service by the City of High Point shall be as commensurate with sewer service charges adopted by the City of High Point.

(6) *Fire meters.* Billing and availability charges on fire meters shall be based on the size of the main meter. However, the property owner may petition the water resources director to have a lower charge based on the by-pass meter (if available) if they can demonstrate a clear history of inconsequential volumes passed through the larger meter.

(Code 1961, § 22-5(c); Ord. No. 88-10, § 1, 1-28-88; Ord. No. 90-75, § 4, 6-14-90; Ord. No.

91-71, § 3, 6-13-91; Ord. No. 94-42, § 4, 6-6-94; Ord. No. 96-65, § 4, 6-4-96; Ord. No. 98-88, § 4, 6-2-98; Ord. No. 98-184, § 5, 12-1-98; Ord. No. 99-189, § 7, 11-16-99; Ord. No. 00-103, § 2, 7-1-00; Ord. No. 00-226, § 5, 12-5-00; Ord. No. 01-135, § 4, 6-5-01; Ord. No. 02-121, § 4, 6-18-02; Ord. No. 03-150, § 4, 6-17-03; Ord. No. 04-99, § 5, 6-22-04; Ord. No. 05-146, § 5, 6-21-05; Ord. No. 06-139, § 5, 6-20-06; Ord. No. 07-122, § 4, 6-28-07; Ord. No. 08-195, § 4, 6-17-08; Ord. No. 10-83, § 4, 6-15-10; Ord. No. 12-65, § 3, 6-19-12; Ord. No. 13-90, § 3, 6-18-13; Ord. No. 14-085, § 3, 6-17-14; Ord. No. 14-096, § 1, 7-15-14; Ord. No. 15-091, § 3, 6-16-15; Ord. No. 016-74, § 3, 6-21-16; Ord. No. 17-71, § 3, 6-20-17; Ord. No. 18-075, § 3, 6-19-18; Ord. No. 19-084, § 3, 6-18-19; Ord. No. 21-096, § 3, 6-15-21, eff. 7-1-21; Ord. No. 21-169, § 2, 11-17-21; Ord. No. 22-139, § 3, 6-21-22; Ord. No. 22-161, § 3, 7-19-22; Ord. No. 23-080, § 3, 6-20-23; Ord. No. 24-086, § 3, 6-18-24; Ord. No. 25-103, § 4, 6-17-25)

Sec. 29-50. Reserved.

Editor's note—Ord. No. 99-189, § 8, adopted Nov. 16, 1999, repealed former § 29-50 of the Code, which pertained to churches and swimming pools and derived from the 1961 Code, § 22-5(d).

Sec. 29-51. Additional sewer service charge for special wastes.

In addition to other sewer service charges, an additional service charge shall be made for excess biochemical oxygen demand and excess suspended solids. The concentration of the biochemical oxygen demand and suspended solids shall be determined by the city through representative sampling of the wastes.

More frequent samples shall be taken by the city at any time. If more frequent sampling is requested by the user, the city will do the additional sampling and analysis at the cost of the person requesting it. Analysis of the waste shall be in accordance with laboratory methods prescribed in the latest edition of "Standard Methods for the Examination of Water and Sewage" published by the American Public Health Association.
(Code 1961, § 22-5(e); Ord. No. 90-75, § 5, 6-14-90)

Sec. 29-52. Rates for sewer services provided by districts or municipalities other than the city.

In those cases where property inside the city is serviced by sewer services provided by districts or municipalities other than the city, the following rates shall apply:

(1) Where the user is billed directly by the provider, there will be no sewer charge by the city.

(2) Where the city is charged for such sewer service by the provider, the city will bill the user quarterly for the actual cost incurred.

(Code 1961, § 22-5(f); Ord. No. 87-41, § 1, 4-16-87)

Sec. 29-53. System development fees; declaration of purpose.

There are hereby established system development fees as hereafter set out. The purpose of the system development fee is to partially recover directly from new customers the costs of the capacity of the utility system to serve them.

The system development fee shall be applied to new development that connects to the utility system. New development shall be defined as any of the following: 1) the subdivision of land; 2) the construction, reconstruction, redevelopment, conversion, structural alteration, relocation, or enlargement of any structure which increases the number of meters or increases the meter size; or 3) any use or extension of the use of land which increases the number of meters or increases the meter size which began after November 29, 2017.

It is hereby declared that such charges are reasonable and necessary and results in a more equitable and economically efficient method of recovery of such costs to handle new growth and to serve new customers without placing an additional financial burden on existing customers solely through inordinate enhancement of

water and sewer rates. Hence the following system development fees are adopted and approved as follows:

(a) *System development fees.* The system development fees shall be set at the rate as outlined in G.S. § 162A-200 et seq. (Session Law 2017-188 (HB 436)). The City of Greensboro completed the required supporting analysis in accordance with G.S. § 162A-205 et seq. A copy of the study shall be filed with the city clerk, and the study may be accessed on the City of Greensboro website.

The system development fee shall be imposed for new development to fund costs necessitated by and attributable to the costs associated with new development and system growth. The fee is based on the blended value of both the existing and expanded system capacity and its calculation includes both existing assets and future capital projects required to serve growth.

The system development fee shall not exceed the allowable calculated amount as determined by the supporting analysis under G.S. § 162A-205 et seq. and the supporting analysis shall be updated at least every 5 years.

System Development Fees

	Water Charge	Wastewater Charge
Residential Rate (Per Unit)	$1,524.00	$1,297.00
General Service Meter Size (inches)		
⅝	$1,524.00	$1,297.00
¾	2,287.00	1,946.00
1	3,811.00	3,242.00
1½	7,622.00	6,485.00
2	12,195.00	10,376.00
3	24,390.00	20,752.00
4	38,109.00	32,426.00
6	74,731.00	64,851.00
8	121,947.00	103,762.00
10	175,099.00	148,988.00
12	301,714.00	269,189.00

Any multi-family project (including, but not limited to, apartments, condominiums, duplexes, townhomes, etc.) shall be charged a system development fee equal to fifty (50) percent of the charges set forth for a five-eighths-inch meter times the number of living units included in the dwelling(s) to be served.

With respect to the system development fee based on a five-eighths-inch water meter, any single-family dwelling unit having less than one thousand eight hundred twenty-two (1,822) heated square feet may pay the fee based on the actual heated square footage of the dwelling unit. The computation for determining the charge shall be as follows:

Water—Heated sq. ft. area × CUF water residential rate ° 1,822 =

Sewer—Heated sq. ft. area × CUF sewer residential rate ° 1,822 =

Total system development fee = Sum of above calculation.

(Ord. No. 88-10, § 2, 1-28-88; Ord. No. 88-15, § 1, 2-15-88; Ord. No. 89-84, § 1, 6-29-89; Ord. No. 89-143, § 1, 11-2-89; Ord. No. 97-94, § 1, 6-3-97; Ord. No. 98-88, § 5, 6-2-98; Ord. No. 98-184, § 6, 12-1-98; Ord. No. 07-123, § 1, 6-26-07; Ord. No. 08-194, § 1, 6-17-08; Ord. No. 09-26, § 1, 2-3-09; Ord. No. 11-203, § 1, 12-13-11; Ord. No. 12-46, § 1, 6-5-12; Ord. No. 18-076, § 1, 6-19-18; Ord. No. 23-081, § 2, 6-20-23; Ord. No. 24-087, § 1, 6-18-24; Ord. No. 25-104, § 1, 6-17-25)

Sec. 29-53.1. Exemptions and refunds of the system development fee for housing units located within the corporate limits of the city and defined as serving affordable to low income households with incomes below 80% of the area median income as calculated annually by the U.S. department of housing and urban development.

There shall be no exemptions and refunds of the fees for housing units affordable to low-

income households which are located outside of the corporate limits of the city at the time the individual applies for a water meter or sewer connection. Exemptions and refunds of the fees for housing units affordable to low income households located within the corporate limits of the city at the time the individual applies for a water meter or a sewer connection shall be as follows:

(a) *Units not for rental.* Any single-family, not for rent, residential unit containing one thousand five hundred (1,500) square feet, or less may be exempt from the fees based on building permit data. Any single-family, not for rent, residential unit over one thousand five hundred (1,500) square feet may be exempt from the fees based on builder participation in a low income housing production program as verified by the Greensboro Neighborhood Development Department.

(b) *Rental units.*

(1) All rental residential units shall be subject to the fees based on meter size and the same will be paid at the time of application for water or sewer connection;

(2) Provided that low income rental residential housing units renting for a monthly rental rate equal to, or less than, the Fair Market Rental rates currently adopted by the U.S. Department of Housing and Urban Development for the Greensboro, North Carolina, area, and in effect at the time of application, shall be eligible for refund of the fees in accordance with subsection (3) below;

(3) The fees will be refunded to the owner of a rental unit upon presentation of proof, on forms available from the city, to the Neighborhood Development Department that sixty (60) percent of the units in the rental development are rented for an amount equal to, or less than, the Fair Market Rental rate currently adopted by the U.S. Department of Housing and Urban Development for the Greensboro, North Carolina, area, and in effect at the time of application. The rental amount shall not be adjusted for utilities.

(4) A property owner intending to request a fee refund for particular rental residential units must file written notice with the Neighborhood Development Department when the fees are paid and provide rent documentation once the property has reached sixty (60) percent occupancy.

(5) Provided further that any residential rental units, the owner of which has contracted with the City of Greensboro in advance of construction guaranteeing that sixty (60) percent of the unit rentals will be equal to or less than the U.S. Department of Housing and Urban Development Fair Market Rental rates, shall be entitled to an exemption from the fees.

(c) The Neighborhood Development Department shall have the duty of determining appropriate exemptions from and refunds of the fees. Exemptions shall be administered by the water resources department. Refunds shall be administered by the Neighborhood Development Department.

(d) All refunds of the fees shall be from appropriations duly made and authorized by council.

(Ord. No. 89-143, § 2, 11-2-89; Ord. No. 93-59, § 1, 6-7-93; Ord. No. 96-64, §§ 4—8, 6-4-96; Ord. No. 98-184, §§ 7, 8, 12-1-98; Ord. No. 99-22, § 1, 2-16-99; Ord. No. 18-076, § 1, 6-19-18; Ord. No. 23-081, § 2, 6-20-23)

Sec. 29-53.2. Credits.

Credits are provided to customers for parcels of land that already have an existing water and/or sewer service connection(s). This credit is provided to recognize the system capacity already

allocated for the existing connection(s) serving a parcel that is being redeveloped or upgraded to require an increased-sized service connection(s).

In order for the water resources department to determine whether a customer qualifies for this credit and the value of the credit, the following must be done:

(a) Water and/or sewer services to be abandoned must be abandoned at the main and shown on the construction drawing(s) with the property address(es).

(b) Water resources or engineering and inspections department inspectors must provide documented verification of abandonment for each address provided on construction drawing(s).

(c) Water resources records must validate that the service(s) described herein is a valid legal connection(s) based on records research.

The value of previous connection(s) will be calculated based on the current fees in effect at the time of application for new connection(s). This calculated value of the previous connection(s) will be deducted from the fees calculated for the new service connections resulting in a net cost for new service.

In the case of exceeding credits, no refund will be given nor will the customer be allowed to apply credits toward another project. However, a project may include more than one parcel of contiguous property and those credits for all individual parcels may be collectively applied toward the fee associated with establishing any new connection(s) for those same contiguous parcels even if recombined.

In no case shall credits result in a net refund for a project.

(Ord. No. 18-076, § 1, 6-19-18; Ord. No. 23-081, § 2, 6-20-23)

Editor's note—Ord. No. 18-076, § 1, adopted June 19, 2018, amended § 29-53.2 in its entirety to read as herein set out. Former § 29-53.2, pertained to qualifications for refund of a portion of the capacity use fees for certain properties under construction and contiguous to the corporate limits. See Code Comparative Table for complete derivation.

Sec. 29-54. Miscellaneous water and sewer charges.

The following miscellaneous service charges are hereby adopted and approved:

	Miscellaneous Services	*Basis*	*Fee*
(1)	Two-inch temporary valve on hydrant for flushing	First 2 hours	$ 50.00
		Each additional hour	5.00
(2)	Meter on hydrant deposit	Per meter size	
		5/8", 3/4", 1"	200.00
		1 1/2"	500.00
		2", 3"	700.00
(3)	Water from fire station	First 1,000 gallons	20.00
		Each additional 1,000 gallons	5.00
(4)	Meter on hydrant	Per month, plus cost of water used	30.00
(5)	Reserved		
(6)	Extra service trip by meter service truck	Per trip	60.00
(7)	Illegal connection to meter setter (includes open bypasses)	Per meter size	
		5/8", 3/4", 1"	250.00
		1 1/2", 2"	400.00

	Miscellaneous Services	*Basis*	*Fee*
		3", 4"	1,000.00
		6", 8", 10"	2,000.00
(7.1)	Illegal connection to fire hydrant	—	500.00
(8)	Water and sewer map photocopy	Up to 11" x 17"	1.00
(8.1)	Color printed maps, standard paper	Per size	
		8½" x 11", 11" x 17"	5.00
		18" x 24"	6.00
		21" x 30"	9.00
		24" x 36"	12.00
		36" x 48"	15.00
(8.2)	Color printed maps, photo paper	Per size	
		8½" x 11", 11" x 17"	7.00
		18" x 24"	12.00
		21" x 30"	15.00
		24" x 36"	18.00
		36" x 48"	22.00
(8.3)	Black and white printed maps, standard paper	Per size	
		8½" x 11", 11" x 17"	2.00
		18" x 24"	3.00
		21" x 30"	6.00
		24" x 36"	9.00
		36" x 48"	12.00
(8.4)	Maps on compact disk	Each	5.00
(9)	Application and cut-on fee	—	15.00
(10)	Special meter test (at customer's request)	Inches	
		⅝	60.00
		¾	60.00
		1	60.00
		1¼	90.00
		1½	90.00
		2	120.00
		3	150.00
		4	150.00
		6	180.00
		8	210.00
(11)	Meter take out	—	40.00
(12)	Laboratory testing fee	Per sample	20.00
(13)	Plan review fee for water or sewer (if both, then double fee)	0—1,000 LF	67.00
		1,001—2,000 LF	116.00
		2,001—5,000 LF	187.00

	Miscellaneous Services	*Basis*	*Fee*
		Over 5,000 LF	282.00
		Lift station review	1,000.00
(14)	Sewer main inspection	Mobilization/1,000 feet	100.00
		Video inspection/feet	0.85
		Return trips each	250.00
		Inspection after repair	100.00
(15)	Late payment charges	After due date following second notice	20.00
		For second penalty	20.00
		After due date following second notice where no water or sewer service involved	15.00
(16)	Illegal use arrears bills	Cut off/turn on fee	40.00
(17)	High strength wastewater charges:		
	BOD	Per 1,000 pounds over 200 mg/l	82.00
	SS	Per 1,000 pounds over 200 mg/l	76.00
(18)	Septage	Per 1,000 gallons	24.00
(19)	Raw water charges:		
	Inside city	Per hundred cubic feet	1.25
	Outside city	Per hundred cubic feet	2.50
(20)	Water deposits for residential tenants	—	150.00
(21)	Backflow Device Fee	First month of non-compliance	100.00
		Second month of non-compliance	100.00
		Per month after second month of non-compliance	250.00
(22)	Backflow Processing Fee	Per test	5.00
(23)	Hydrant Flow Test Fee	Witness Test Only	120.00
		Full Hydrant Flow Test	150.00

(Ord. No. 88-10, § 2, 1-28-88; Ord. No. 89-20, §§ 1, 2, 2-16-89; Ord. No. 93-49, § 3, 6-3-93; Ord. No. 93-63, § 1, 6-21-93; Ord. No. 96-64, §§ 9—11, 6-4-96; Ord. No. 97-95, § 1, 6-3-97; Ord. No. 98-184, § 9, 12-1-98; Ord. No. 99-189, § 9, 11-16-99; Ord. No. 00-226, § 6, 12-5-00; Ord. No. 02-121, § 4, 6-18-02; Ord. No. 03-150, § 4, 6-17-03; Ord. No. 07-122, § 5, 6-28-07; Ord. No. 10-131, § 1, 9-7-10; Ord. No. 13-90, § 3, 6-18-13; Ord. No. 14-085, § 3, 6-17-14; Ord. No. 15-091, § 4, 6-16-15; Ord. No. 016-74, § 4, 6-21-16; Ord. No. 17-71, § 4, 6-20-17; Ord. No. 18-075, § 4, 6-19-18; Ord. No. 19-084, § 4, 6-18-19; Ord. No. 22-139, § 4, 6-21-22; Ord. No. 24-102, § 1, 7-16-24)

Sec. 29-55. Fee for residential household hazardous waste collection.

For the periodic receipt and disposal of residential household hazardous waste, a monthly service fee as set forth below shall be collected based upon the size of the water meter serving residential users. However, for single-family households not presently receiving city water and sewer service, the minimum monthly fee will be the same as that for the smallest meter size (5/8 inch). Residential household hazardous

waste shall include but not be limited to: motor oil, pesticides, lead based paint, solvents, cleaning agents, acid, batteries, and drain cleaner.

Meter Size (inches)	*Monthly Fee*
Residential customers not receiving water and sewer service	$0.97
⅝	0.97
¾	1.30
1	1.94
1¼	2.43
1½	3.57
2	5.50
3	10.07
4	16.57
6	32.82
8	36.07
10	74.84

(Ord. No. 89-162, § 1, 11-30-89; Ord. No. 94-38, § 1, 6-2-94; Ord. 10-82, § 1, 6-15-10; Ord. No. 11-128, § 1, 6-21-11; Ord. No. 18-074, § 1, 6-19-18; Ord. No. 22-142, § 1, 6-21-22)

Sec. 29-56. Penalty for late payment.

In addition to the water cut-off provisions contained in the Rules and Regulations for the Operation of the Water and Wastewater System of the City of Greensboro, when any customer becomes delinquent in the payment of a bill for solid waste removal, stormwater fee, hazardous waste fee, or other utility service there shall be a late payment fee as hereinafter set out. There shall be mailed to such customer a written notice to the effect that if the service bill due is not paid on or before the date named in the notice a late payment penalty of twenty dollars ($20.00) will be charged to the customer. One (1) week after the twenty dollar ($20.00) penalty is imposed an additional penalty of twenty dollars ($20.00) will be imposed. Provided, that, if a customer's billing account does not include any water or sewer services, the late payment penalty shall be fifteen dollars ($15.00).

The director of water resources or his/her/their designee is vested with the authority to waive late fees on water and sewer accounts that meet eligibility requirements for community assistance programs intended to assist with housing and utilities where late fees do not qualify for funding.

If the customer pays a service bill with a check that is returned unpaid for any reason, a fee in the maximum amount allowable by G.S. § 25-3-506 shall be added to the account for processing the returned check. Any other delinquent fee that would have accrued due to the past due date of the bill shall also be paid.
(Ord. No. 94-75, § 1, 8-15-94; Ord. No. 96-64, § 12, 6-4-96; Ord. No. 99-189, § 10, 11-16-99; Ord. No. 07-122, § 6, 6-28-07; Ord. No. 21-150, § 1, 10-19-21)

Sec. 29-57. Reserved.

Editor's note—Ord. No. 00-226, adopted on December 5, 2000 repealed section 29-57 in its entirety.

Sec. 29-58. Penalty for tampering with water meters.

Tampering with or relocating a water meter to an authorized address will result in a charge as hereinafter set out. There shall be a charge of two hundred fifty dollars ($250.00) for the first offense, five hundred dollars ($500.00) for the second offense and criminal penalties instituted thereafter.
(Ord. No. 99-189, § 11, 11-16-99; Ord. No. 07-122, § 7, 6-28-07)

Sec. 29-59. Frontage fees for utility extensions outside of city limits.

There are hereby established frontage fees for utility extensions outside of city limits as hereafter set out. The purpose of the fees is to partially recover directly from new customers outside the city the costs to extend the water and sewer utility beyond the municipal boundary. It is hereby declared that such charges are reasonable and necessary and results in a more equitable and economically efficient method of recovery of such costs to serve new customers outside of the city without placing an additional financial burden on existing customers. Hence, the following frontage fees are adopted and approved as follows:

Fee	*Water*	*Sewer*
Frontage (per front foot)	12.00	16.00

Frontage shall be collected at the time of signing an annexation agreement. These fees are a prerequisite of voluntary annexation.

Property owners demonstrating that frontage fees have been paid to or assessed by Guilford County shall be exempt from these fees.

Front footage charge fees shall not be levied on county community development projects pursuant to regulations promulgated by the United States Department of Housing and Urban Development.

(Ord. No. 11-33, § 1, 2-15-11; Ord. No. 17-71, § 5, 6-20-17)

Editor's note—Ord. No. 11-33 was adopted by city council on Feb. 15, 2011, and was retroactively effective on and after January 1, 2011.

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Chapter 29.5

WATER SHORTAGE RESPONSE PLAN*

The City of Greensboro Water Shortage Response Plan is hereby adopted by reference as fully as though set forth herein.

All revisions, changes, or amendments to the Water Shortage Response Plan are to be reviewed and approved at a regular or special meeting of City Council.

A copy of the City of Greensboro Water Shortage Response Plan is on file in the City Clerk's Office and in the Water Resources Department.

***Editor's note—**Ordinance No. 19-033, adopted April 16, 2019, removed §§ 29.5-1—29.5-17 and adopted by reference the City of Greensboro Water Shortage Response Plan.

Chapter 30

ZONING, PLANNING AND DEVELOPMENT ORDINANCE*

The official copy of the Land Development Ordinance that became effective on July 1, 2010, as amended, is maintained in the Office of the Greensboro City Clerk. Paper copies of the Land Development Ordinance are available for inspection in the City of Greensboro Planning Department and electronic copies may be accessed on-line at http://online.encodeplus.com/regs/greensboro-nc.

*__Editor's note—__Ord. No. 10-85, §§ 1—4, adopted June 15, 2010, states the following:

"Section 1. A new Chapter 30 of the Greensboro Code of Ordinances, entitled "Land Development Ordinance" is hereby adopted and which consists of:

1. Land Development Ordinance, Public Hearing Draft, dated 10/20/09.
2. Consolidated Changes List, dated 4/26/10.
3. Final List of Changes, dated 6/8/10.

Section 2. This ordinance shall become effective on July 1, 2010.

Section 3. Members of the public shall be allowed to continue using the current ordinance Chapter 30 of the Greensboro Code of Ordinances entitled "Zoning, Planning and Development Ordinance" through June 30, 2011.

Section 4. That the current Chapter 30 of the Greensboro Code of Ordinances entitled "Zoning, Planning and Development Ordinance" shall be repealed effective July 1, 2011."

Ord. No. 91-145, adopted Nov. 27, 1991, repealed Chapter 30 in its entirety, which pertained to zoning, and adopted a new Chapter 30 to read as herein set out. For the derivation of former Chapter 30, see the Code Comparative Table.

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CODE COMPARATIVE TABLE

1961 CODE

This table gives the location within this Code of those sections of the 1961 Code, as updated through March 16, 1987, which are included herein. Sections of the 1961 Code not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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(The official copy of the Land Development Ordinance that became effective on July 1, 2010, as amended, is maintained in the Office of the Greensboro City Clerk. Electronic copies may be accessed on-line at http://www.zoningplus.com/regs/greensboro.)		